

CASES DECIDED

IN THE

COURT OF APPEALS

OF THE

STATE OF NEW YORK

[241 NE3d 103, 216 NYS3d 551]

TAX EQUITY NOW NY LLC, Appellant, v CITY OF NEW YORK et al., Respondents.

Argued January 9, 2024; decided March 19, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 27, 2020. The Appellate Division modified, on the law, an order of the Supreme Court, New York County (Gerald Lebovits, J.; op 2018 NY Slip Op 32378[U] [2018]), which had (1) denied the motion of defendants City of New York and New York City Department of Finance (City defendants) to dismiss the complaint as against them; and (2) granted in part, and denied in part, the motion of defendants State of New York and New York Office of Real Property Tax Services (State defendants) to dismiss the complaint as against them by dismissing the fifth, sixth, seventh, eighth, eleventh, twelfth, thirteenth, fourteenth, and fifteenth causes of action and otherwise denying the motion as to the remaining causes of action. The modification consisted of dismissing the remaining causes of action against the State defendants, and granting the City defendants' motion to dismiss the complaint against them. The Appellate Division affirmed the order as modified and directed the Clerk to enter judgment dismissing the complaint.

Tax Equity Now NY LLC v City of New York, 182 AD3d 148, modified.

HEADNOTES**Taxation — Real Property Tax — Assessment — Disparate Impact**

1. The Appellate Division erred in dismissing plaintiff's causes of action against defendants City of New York and New York City Department of Finance alleging that the City's property taxation scheme resulted in disparate tax burdens for class one and class two properties of equivalent market value, both from borough to borough and within boroughs, in violation of RPTL 305 (2)'s mandate that "[a]ll real property in each assessing unit shall be assessed at a uniform percentage of value (fractional assessment)." Reading RPTL 305 (2) and the assessment caps in RPTL 1805 together to harmonize their legislative commands, RPTL 1805 did not foreclose plaintiff's claims but instead directs the City to ensure that its assessment is based on the property's fair market value. The legislative history does not suggest that section 1805 (1) was expected to limit the distribution of the tax burden within the class of residential taxpayers, or to hamstring a special assessment unit from curing inequities within the class. The RPTL does not limit the City's authority to take action to achieve an alignment between assessed and market values that ameliorates disparate tax burdens. The complaint's allegations, supported with independent studies and the City's own data of widening disparities resulting from its annually-repeated assessment methodology to class one and two properties, sufficiently pleaded violations of RPTL 305 (2) against defendants.

Taxation — Real Property Tax — Assessment — Fair Housing Act — Disparate Impact

2. The Appellate Division erred in dismissing plaintiff's three causes of action against defendants City of New York and New York City Department of Finance alleging violations of the Fair Housing Act (42 USC § 3601 *et seq.* [FHA]) based on a disparate impact theory. The complaint sufficiently pleaded that the City's tax assessment system was a cause of the barriers to housing access, which disparately impacted minority homeowners and minority-majority communities with respect to class one and class two properties, and perpetuated existing segregation throughout the City. Both intentional discrimination and disparate impact claims are cognizable under the FHA, which prohibits state and local laws and governmental practices that discriminate based on the protected classifications. The complaint alleged, relying on hard data, that the City drastically overassessed and overtaxed majority-minority communities and the properties in which minorities disproportionately lived as compared to whites in the City, that certain class properties were similarly taxed at higher rates along racial lines and that, because of the demographic differences between districts, the extreme disparities in tax rates fell heaviest on minorities. The complaint also alleged discrimination with respect to the terms and conditions of housing under 42 USC § 3604 (a) in light of the transfer of tax burdens to home buyers and renters. The Appellate Division imposed a causation requirement that was ill-suited to the judicial task at hand and inapt at the pleading stage of the litigation.

Taxation — Real Property Tax — Assessment — Equal Protection and Due Process

3. The Appellate Division properly dismissed plaintiff's causes of action against defendants City of New York and New York City Department of Finance alleging that the disparate tax burdens resulting from the City's property taxation scheme constituted federal and state equal protection and

due process violations, as there existed a rational tax-related purpose for the legislature's different treatment of class one and class two properties and imposition of assessment caps under RPTL 1805 (1). A taxation scheme does not violate equal protection if there is a plausible policy reason for the classification, which exists if there is any reasonably conceivable state of facts that could provide a rational basis for the classification. The statutory tax framework was designed to accomplish the tax-related objective of avoiding abrupt increases or shifts in tax liability over time. Moreover, the cap on each class share served the rational legislative objective of maintaining stability within the class and avoiding dramatic shifts in the tax burden. Similarly, the legislature has nearly unconstrained authority in the design of taxing measures unless they are utterly unreasonable or arbitrary. The City's property tax scheme was consistent with this principle; differentiating the tax burden among the several different property types did not fail the rational basis test applicable to due process claims.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Civil Rights §§ 450, 452, 455; AM JUR 2d Constitutional Law §§ 850, 851, 958, 961; AM JUR 2d State and Local Taxation §§ 572, 577, 606, 608, 619, 620.
CARMODY-WAIT 2d Judicial Review of Assessments and Taxes §§ 146:15, 146:16, 146:66, 146:67.
McKINNEY'S, RPTL 305 (2); 581, 1805.
NY JUR 2d Constitutional Law §§ 376, 427, 456; NY JUR 2d Taxation and Assessment §§ 92, 324, 420, 455.
42 USCA § 3601 *et seq.*

ANNOTATION REFERENCE

See ALR Index under Due Process; Equal Protection; Fair Housing Act; Fractional Assessment; Taxes.

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POINTS OF COUNSEL

Latham & Watkins LLP, Washington, D.C. (*Richard P. Bress*, admitted pro hac vice, *Michael E. Bern*, admitted pro hac vice, *Eric J. Konopka* and *Graham B. Haviland*, admitted pro hac vice, of counsel) and New York City (*James E. Brandt* and *Jonathan Lippman* of counsel), for appellants. I. Tax Equity Now NY, LLC pleaded viable claims under RPTL 305 (2). (*Matter of Hellerstein v Assessor of Town of Islip*, 37 NY2d 1; *Matter*

of *O'Shea v Board of Assessors of Nassau County*, 8 NY3d 249; 41 *Kew Gardens Rd. Assoc. v Tyburski*, 70 NY2d 325; *Foss v City of Rochester*, 65 NY2d 247; *City of New York v New York State Div. of Hous. & Community Renewal*, 97 NY2d 216; *Matter of Markus v Assessors of Town of Taghkanic*, 24 AD3d 1066, 6 NY3d 709; *Matter of Colt Indus. v Finance Adm'r of City of N.Y.*, 54 NY2d 533; *C.H.O.B. Assoc. v Board of County of Nassau*, 45 Misc 2d 184, 22 AD2d 1015, 16 NY2d 779; *Margeson v Smith*, 41 AD2d 896; *New York Pub. Interest Research Group v Board of Assessment Review of City of Albany*, 104 Misc 2d 128.) II. Tax Equity Now NY, LLC pleaded viable Fair Housing Act claims. (*Huntington Branch, N.A.A.C.P. v Town of Huntington*, 844 F2d 926; *Texas Dept. of Housing and Community Affairs v Inclusive Communities Project, Inc.*, 576 US 519; *Ojo v Farmers Group, Inc.*, 600 F3d 1205; *MHANY Mgt. Inc. v County of Nassau*, 843 F Supp 2d 287; *Hargraves v Capital City Mtge. Corp.*, 140 F Supp 2d 7; *Coleman v Seldin*, 181 Misc 2d 219; *County of Cook v HSBC N. Am. Holdings Inc.*, 314 F Supp 3d 950; *Georgia State Conference of the NAACP v City of La-Grange, Ga.*, 940 F3d 627; *Sassi v Mobile Life Support Servs., Inc.*, 37 NY3d 236; *National Fair Hous. Alliance v Federal Natl. Mtge. Assn.*, 294 F Supp 3d 940.) III. Tax Equity Now NY, LLC pleaded viable equal protection and due process claims. (*Sunday Lake Iron Co. v Township of Wakefield*, 247 US 350; *Nordlinger v Hahn*, 505 US 1; *Armour v Indianapolis*, 566 US 673; *Allegheny Pittsburgh Coal Co. v Commission of Webster Cty.*, 488 US 336; *Matter of Allied Corp. v Town of Camillus*, 80 NY2d 351; *Ames Volkswagen v State Tax Commn.*, 47 NY2d 345; *Matter of Schulz v New York State Legislature*, 230 AD2d 578.)

Sylvia O. Hinds-Radix, Corporation Counsel of the City of New York, New York City (Edan Burkett, Andrea M. Chan, Vincent D'Orazio, Paul J. DeSena and Steven T. Traditi of counsel), for City of New York and another, respondents. The Appellate Division properly dismissed the complaint as plaintiff has ignored the well-settled body of case law and recognized legal standards used by the highest courts in reviewing taxing statutes. (*Matter of Central Hudson Gas & Elec. Corp. v Assessor of Town of Newburgh*, 73 AD3d 1046; *Matter of 749 Broadway Realty Corp. v Boyland*, 1 Misc 2d 575, 1 AD2d 819, 3 NY2d 737; *Matter of Long Is. Light. Co. v State Tax Commn.*, 45 NY2d 529; *Supreme Assoc., LLC v Suozzi*, 34 Misc 3d 255; *Port Jefferson Health Care Facility v Wing*, 94 NY2d 284.)

Letitia James, Attorney General, New York City (Mark S.

Grube, Barbara D. Underwood and Ester Murdukhayeva of counsel), for State of New York and another, respondents. I. Tax Equity Now NY, LLC abandoned its claims against the state defendants. (*Matter of Lehigh Portland Cement Co. v Assessor of Town of Catskill*, 263 AD2d 558; *People v McDaniel*, 295 AD2d 371.) II. The Appellate Division properly dismissed Tax Equity Now NY, LLC's claims against the state defendants. (*Foss v City of Rochester*, 65 NY2d 247; *Cass v State of New York*, 58 NY2d 460; *Allegheny Pittsburgh Coal Co. v Commission of Webster Cty.*, 488 US 336; *Shapiro v City of New York*, 32 NY2d 96; *Matter of Long Is. Light. Co. v State Tax Commn.*, 45 NY2d 529; *Nordlinger v Hahn*, 505 US 1; *Matter of O'Shea v Board of Assessors of Nassau County*, 8 NY3d 249; *Matter of D. S. Alamo Assoc. v Commissioner of Fin. of City of N.Y.*, 71 NY2d 340; *Barklee Realty Co. v Pataki*, 309 AD2d 310; *A. Magnano Co. v Hamilton*, 292 US 40.)

Cadwalader, Wickersham & Taft LLP, New York City (*Jason M. Halper, Ellen V. Holloman and Sara E. Bussiere* of counsel), for Citizens Budget Commission, amicus curiae. New York City's property tax system creates unjustified inequities among residents.

LatinoJustice PRLDEF, New York City (*Jose Perez and Jackson Smith* of counsel), for LatinoJustice PRLDEF, amicus curiae. I. Economic data shows that, under New York City's real property tax system, Latinos carry an illegal and disproportionate tax burden. II. The segregation that Tax Equity Now NY, LLC alleges New York City's tax policies cause is the same source of real and lasting harm within the Latino community. (*Brown v Board of Education*, 347 US 483.) III. Elected officials will not act to fix New York City's real property tax system, and thus the courts must do so. (*Matter of Harkenrider v Hochul*, 38 NY3d 494; *Perry v Perez*, 565 US 388; *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332.)

MoloLamken LLP, New York City (*Sara E. Margolis* of counsel), for National Association for the Advancement of Colored People New York State Conference, amicus curiae. I. Consistent with other appellate decisions, the Fair Housing Act must be interpreted generously to achieve its goals of ending discrimination and building an integrated society. (*Buchanan v Warley*, 245 US 60; *Metropolitan Hous. Dev. Corp. v Village of Arlington Hgts.*, 558 F2d 1283; *The Comm. Concern-*

ing Community Improvement v City of Modesto, 583 F3d 690; *Mhany Mgt., Inc. v County of Nassau*, 819 F3d 581; *Huntington Branch, N.A.A.C.P. v Town of Huntington*, 844 F2d 926; *Suffolk Hous. Servs. v Town of Brookhaven*, 109 AD2d 323; *Trafficante v Metropolitan Life Ins. Co.*, 409 US 205; *City of Edmonds v Oxford House, Inc.*, 514 US 725; *Havens Realty Corp. v Coleman*, 455 US 363; *United States v Housing Auth. of City of Chickasaw*, 504 F Supp 716.) II. New York's property tax system disparately impacts African Americans in violation of the Fair Housing Act, which is a matter of public importance. (*United States v Balistreri*, 981 F2d 916; *Rivera v Incorporated Vil. of Farmingdale*, 571 F Supp 2d 359; *Matter of Greentree At Lynbrook Condominium No. 1 v Board of Assessors of Vil. of Lynbrook*, 81 NY2d 1036.) III. The New York property tax system perpetuates segregation, which is a matter of public concern. (*Grutter v Bollinger*, 539 US 306.)

OPINION OF THE COURT

RIVERA, J.

Plaintiff Tax Equity Now NY, LLC (TENNY) challenges New York City's property-tax system, alleging that the system imposes substantially unequal tax bills on similarly-valued properties that bear little relationship to the properties' fair market value. According to the complaint, the result is staggering inequities and a regressive tax system that hurts those who can least afford to pay heavy taxes. The complaint further alleges that multi-million-dollar properties are taxed at similar or lower rates than less valuable properties and that real property in majority-people-of-color districts is overassessed and subjected to higher taxes compared to properties in majority-white districts. TENNY seeks declaratory and injunctive relief against City and State defendants for alleged constitutional and statutory violations caused by the City's tax scheme. Despite the comprehensive, detailed allegations and legal precedent supporting the causes of action, the Appellate Division dismissed the complaint in its entirety at the pleading stage for failure to state any claim. That was error.

A pleading need only allege facts that "fit within any cognizable legal theory" (*Leon v Martinez*, 84 NY2d 83, 87-88 [1994]). As we have long emphasized, because the standard is intended to provide notice of a claim, at this stage of the proceeding we assume all facts alleged as true and draw all possible inferences therefrom (*see id.*). Thus, the question is not whether a party will eventually prove its claim once those allegations are

put to the test but whether the claim is based on a viable legal theory (see *Chanko v American Broadcasting Cos. Inc.*, 27 NY3d 46, 52 [2016]). Applying that standard here, we conclude that, although TENNY's complaint failed to state claims against the State defendants, the complaint exceeds our pleading standard and sufficiently alleges causes of action against the City defendants under section 305 (2) of the Real Property Tax Law and the federal Fair Housing Act (FHA) (42 USC § 3601 *et seq.*) on the general basis that the system is unfair and inequitable and has a discriminatory disparate impact on certain protected classes of New York City property owners. Accordingly, we modify the Appellate Division's order as to these causes of action.

I.

New York City's Real Property Taxation Scheme

In 1981, the legislature, over the Governor's veto, enacted article 18 of the RPTL (see L 1981, ch 1057), which reformed the State's property tax scheme in response to the Court's decision in *Matter of Hellerstein v Assessor of Town of Islip*, where the Court held that then-existing state law required the assessment of real property for tax purposes at its full market value (37 NY2d 1 [1975]). Pre-*Hellerstein*, localities operated under fractional assessment regimes that often assessed commercial and industrial property at higher ratios of assessed value over market value than they did for residential property (see *Matter of O'Shea v Board of Assessors of Nassau County*, 8 NY3d 249, 252-253 [2007]). Prior to the 1981 reforms, there was "widespread fear" that *Hellerstein* would shift "a significant portion of the property tax burden from businesses to homeowners" (*id.* at 253). The reforms repealed a provision of the RPTL that had required full value assessment, added section 305 (2), a new provision specifying that "[a]ll real property in each assessing unit shall be assessed at a uniform percentage of value (fractional assessment)" (RPTL 305 [2]), and added a new article 18 which established "special assessing units," which includes New York City (RPTL 1801 [a]).

Article 18 of the RPTL established four classes of real property in the City. Class one consists of one-, two-, and three-family residential property. Class two contains all other residential property, including condominiums, cooperatives and rental buildings. Utility property makes up class three and all

other real property is designated as class four (*see* RPTL 1801 [a]; 1802 [1]). The City’s total property tax burden is allocated among these four classes (Budget Rep on Bills at 1, Bill Jacket, L 1981, ch 1057). Section 581 of the RPTL provides that “real property owned or leased by a cooperative corporation or on a condominium basis shall be assessed . . . at a sum not exceeding the assessment which would be placed upon such parcel were the parcel not owned or leased by a cooperative corporation or on a condominium basis” (RPTL 581 [1] [a]). Thus, condominium and cooperative buildings are assessed as if they were rental properties.

The formula for determining the proportion of all real property taxes owed by each class is expressed in RPTL 1803-a, which also includes caps on the annual amount the class share for each class may increase relative to the total property tax burden of the City (*see* RPTL 1803-a). Section 1805 caps the assessed value increase of certain individual parcels. Class one property assessments may not increase more than 6% in any one year or more than 20% in any five-year period (*see* RPTL 1805 [1]). Assessment of a class two property with fewer than 11 residential units may not increase more than 8% in any one year or more than 30% in a five-year period (*see* RPTL 1805 [2]). Assessment of class two properties with 11 or more units is not limited but increases must be phased in over a five-year period (*see* RPTL 1805 [3]).

In addition to the RPTL 1803-a caps on increases by property class and RPTL 1805 caps on assessment increases, the final tax bill for individual properties may be further reduced by applicable abatements or exemptions. For example, RPTL 467-a provides a partial tax abatement for eligible condominium and cooperative owners (*see* RPTL 467-a).

To comply with this statutory framework, the New York City Department of Finance (DOF) first determines a parcel’s taxable value by estimating its full fair market value, which is calculated by application of a multifactor mathematical formula.¹ DOF then multiplies that market value by the fractional assessment rate for that parcel’s property class—class one

1. Among such factors for class one are capital improvements to the property as well as recent sales of similar properties in the neighborhood, and for class two, the parcel’s “income producing potential” (*see* Department of Finance, *NYC Residential Property Taxes: Class One* [FY 2025] at 3, available at https://www.nyc.gov/assets/finance/downloads/pdf/brochures/class_1_guide.pdf [last accessed Feb. 20, 2024]; Department of Finance, *NYC*

(n. cont’d)

properties at 6% of the parcel's market value and all other classes at 45% of market value, subject to the RPTL 1805 assessment caps. For example, a class one property estimated at a \$100,000 market value would have a \$6,000 taxable value ($100,000 \times 6\% = 6,000$) and a class one property with a \$200,000 estimated market value would have a \$12,000 taxable value ($200,000 \times 6\% = 12,000$). DOF then multiplies the taxable value of the property by the current tax rate for that property's class. The tax rate is a proportional rate based upon each class's RPTL 1803-a share of that class's tax burden—determined by the RPTL 1803-a statutory formula. This calculation results in the individual property owner's tax obligation. That amount is then adjusted based on any applicable State and City statutory and regulatory exemptions and abatements (*e.g.* Rules of City of NY Dept of Hous Preserv & Dev [28 RCNY] § 5-06 [providing tax exemption and abatement for residential rehabilitation or conversion to multiple dwellings]; *id.* Dept of Finance [19 RCNY] § 50-01 *et seq.* [providing partial property tax reduction for condominium and co-op owners]; RPTL 425 [providing qualifying homeowners partial relief from local education taxes]). This adjusted amount is then billed to the property owner.

As obvious from this summary, the City's real property tax assessment system is complex and reflects policies favoring certain types of property. While the City's assessments are subject to the state's RPTL statutory limitations that protect homeowners from drastic increases in property taxes from year to year, the RPTL allows the City to make certain discretionary adjustments to address inequities and avoid unlawful treatment of similarly-situated properties (*see O'Shea*, 8 NY3d at 259).

II.

Factual and Procedural History

TENNY “is an association committed to pursuing legal and political reform to address the inequity and illegality of New York City's property tax system.” TENNY's members include real property owners and renters and organizations committed to economic justice. In 2017, TENNY filed the underlying

Residential Property Taxes: Class Two [FY 2025] at 3, available at https://www.nyc.gov/assets/finance/downloads/pdf/brochures/class_2_guide.pdf [last accessed Feb. 20, 2024]).

complaint for injunctive and declaratory relief against defendants City of New York and DOF (referred jointly as the City), and the State of New York and the State Office of Real Property Tax Services (referred jointly as the State).

The complaint alleges that the City's tax system is inequitable, and that taxation is not based on fair market value as required by both the State Constitution and the RPTL. It further claims that the system has discriminatory disparate impact. The complaint asserts 16 causes of action for violations of: (1) article XVI, § 2 of the State Constitution; (2) RPTL 305 (2); (3) RPTL 1802 (1); (4) the State and Federal Equal Protection Clauses; (5) the State and Federal Due Process Clauses; and (6) the FHA. The complaint comprehensively describes the taxation methodology applied to real property within the City and alleges that publicly-criticized systemic inequities have resulted in million-dollar properties increasingly shouldering less of a tax burden than properties worth far less. The complaint alleges that the system is illegal because it violates the statutory and constitutional mandate that property taxes be imposed uniformly within each property class and "reflect a fair and realistic value of the property involved so that all property owners contribute equitably to the public fisc" (internal quotation marks omitted). The complaint also claims that the taxation system has a disproportionate discriminatory impact and perpetuates housing segregation in the City in violation of the FHA. The complaint includes examples to illustrate the alleged unfair tax consequences of the taxation scheme and its racially-disparate impact on the City's real property owners and diverse neighborhoods. The complaint further alleges that TENNY's members have suffered a specific harm because their properties are taxed at arbitrary and disproportionate rates compared to property within and outside their property classification.

The City and State separately moved to dismiss the complaint on several grounds, including, as relevant to this appeal, for failure to state a claim under CPLR 3211 (a) (7). Supreme Court denied the City's motion but granted the State's motion as to all but the state and federal due process claims, concluding, in part, that these were adequately pleaded (2018 NY Slip Op 32378[U] [Sup Ct, NY County 2018]). Defendants separately appealed and TENNY cross-appealed.

The Appellate Division granted the City's motion to dismiss and the State's motion as to the two remaining causes of action

and dismissed the complaint in its entirety (182 AD3d 148 [1st Dept 2020]).² The Court held that TENNY failed to state either an equal protection or due process challenge to RPTL 1805 (1)'s assessment caps and RPTL 581's treatment of all class two properties as rental property because those measures are rationally-related to the government's interests in promoting home ownership and shielding homeowners whose properties rapidly appreciate from dramatic tax increases, and do not constitute invidious discrimination (*see id.* at 157-165). The Court also rejected TENNY's claims under article XVI, § 2, holding this provision only "requires the State to have a process in place for the adjustment and review of assessments of individual taxpayers" and that the State met this constitutional requirement (*id.* at 162-163). TENNY's RPTL 305 (2) claim was dismissed because that section "must be read together and applied harmoniously" with RPTL 1805's assessment caps, which the legislature "knew that, over time, . . . were going to necessarily create disparities" and therefore could not have intended to run afoul of RPTL 305 (2) (*see id.* at 163-164). The Court further concluded that TENNY did not state a claim under RPTL 1802 (1) because, while it establishes four classes of real property in New York City, it "does not limit the number of permissible classifications to those four" (*id.* at 165). Finally, the Court held that TENNY failed to state a claim under the FHA because: (1) property tax assessments do not constitute a term or condition of sale under 42 USC § 3604 (b); and (2) the complaint did not plead a "robust causality" between the property tax system and continued patterns of segregation (*see id.* at 166-168).

We dismissed TENNY's appeal as of right under CPLR 5601 (b) (1) for lack of a substantial constitutional question (35 NY3d 1077 [2020]) and the Appellate Division denied TENNY leave to appeal to this Court (2021 NY Slip Op 72801[U] [1st Dept 2021]). Thereafter, we granted TENNY's motion for leave to appeal (38 NY3d 906 [2022]). We now conclude that the complaint sufficiently pleads violations of RPTL 305 (2) and the FHA against the City and that the remaining causes of action against the City and State were properly dismissed for failure to state a claim.

2. The Appellate Division rejected defendants' arguments that TENNY lacked standing (*see* 182 AD3d at 156). The parties do not challenge that determination before us.

III.A.Liberal Pleading Standard

On a CPLR 3211 (a) (7) motion to dismiss for failure to state a cause of action, the court affords the pleading “a liberal construction” (*Leon*, 84 NY2d at 87). “We accept the facts as alleged in the complaint as true, accord plaintiff[] the benefit of every possible favorable inference, and determine only whether the facts as alleged fit within any cognizable legal theory” (*id.* at 87-88; *see also* 34-06 73, *LLC v Seneca Ins. Co.*, 39 NY3d 44, 51 [2022]). The only question is whether the complaint adequately alleges facts giving rise to a cause of action, “not whether [it] properly labeled or artfully stated one” (*Chanko*, 27 NY3d at 52). Thus, “[w]hether a plaintiff can ultimately establish its allegations is not part of the calculus in determining a motion to dismiss” (*EBC I, Inc. v Goldman, Sachs & Co.*, 5 NY3d 11, 19 [2005]; *see also* *Sassi v Mobile Life Support Servs., Inc.*, 37 NY3d 236, 239 [2021]). The court must review each cause of action separately to determine its viability and may dismiss only those which fail as a matter of law (*see* CPLR 3211 [a] [“A party may move for judgment dismissing one or more causes of action asserted against (them)”]). New York’s liberal pleading standard requires only that the movant be placed on notice of the legal claim asserted.

We address initially those statutory-based causes of action against the City that are sufficiently pleaded and then explain why the remaining causes of action were properly dismissed. We then turn to TENNY’s claims against the State.

B.Causes of Action against the City1.RPTL 305 (2)

The second and sixth causes of action allege that the City’s real property taxation scheme violates RPTL 305 (2) based on intraclass disparate assessment and taxation within class one and class two, respectively. Section 305 (2) of the RPTL provides that “[a]ll real property in each assessing unit shall

be assessed at a uniform percentage of value (fractional assessment)” (RPTL 305 [2]). Thus, because under RPTL 1802 New York City is a special assessment unit divided into four classes, the assessor must apply the same fractional value to *each property within the same class* (see *Matter of O’Shea*, 8 NY3d at 254, 260; *Matter of Colt Indus. v Finance Adm’r of City of N.Y.*, 54 NY2d 533, 544-545 [1982]). “To comply with these State-wide mandates of the [RPTL], cities calculate real property taxes by determining the full value of each parcel, fixing the ratio of full value to assessed value in each class, and, finally, applying a uniform tax rate for each class of property to the assessed value producing the tax due” (*41 Kew Gardens Rd. Assoc. v Tyburski*, 70 NY2d 325, 330 [1987]).

The complaint alleges that the City’s assessment methods result in disparate tax burdens for class one and class two properties of equivalent market value, both from borough to borough and within boroughs. In support, the complaint relies on the City’s data, generated by the City’s Independent Budget Office (IBO). By way of example, the complaint alleges that class one properties in two Brooklyn boroughs are assessed at vastly different rates: Canarsie properties are assessed at over triple the rate of the same properties in Park Slope. The complaint alleges that this disparity is regressive and benefits wealthy taxpayers in neighborhoods with rapidly-increasing property values. In it, TENNY asserts that the Deputy Director of the IBO acknowledged this inequity in testimony before the State Assembly Committee on Real Property Taxation in January 2016, wherein he stated that the City’s assessment methods “guarantee[] that similar properties will face widely different tax burdens depending on where they are located in the city.” The complaint also refers to the head of DOF who was quoted in the press as acknowledging that the City’s property-tax system is filled with “unfairness and inequity.” TENNY alleges that these intraclass disparities “ensur[e] that older properties in faster appreciating neighborhoods are assessed and taxed at a lower effective rate than other properties of identical market value.”

The complaint visually depicts geographic disparities in fiscal year 2017. It includes charts setting forth: (1) the median ratios of assessed value to market value for class one properties by borough; (2) effective tax rates for each borough and as a Citywide percentage; (3) different 2017 taxes owed; (4) 2017 ratios of assessed value to sales price for homes sold in 2015 at

the same price of \$750,000; and (5) average ratios of assessed value to market value, as well as the average effective tax rate for class one properties by borough. The complaint alleges that the City can ameliorate the disparities and inequities by lowering the assessment ratio and raising the tax rate.

The complaint further alleges and describes that the most dramatic systemic disparities within class two stem from the City's assessment of cooperatives and condominiums. The sixth cause of action alleges that this method of value assessment separately violates RPTL 305 (2) based on the City's interpretation and application of RPTL 581 (1). To comply with the RPTL 581 (1) (a) prohibition on different tax treatment based on cooperative or condominium status, the City taxes them as if they were rentals. The assessment methodology for these properties is undisputed: "[a]s a matter of [DOF] policy, all cooperative and condominium units constructed before 1974—a category that includes 98% of cooperative apartments in the City—are valued under the income approach by comparison to rental properties that were built before 1974" and, "[b]ecause of the City's rent stabilization laws, this effectively means that older cooperatives and condominiums are compared to buildings whose income is suppressed by rent stabilization, even though those cooperative and condominium units do not and could not qualify for rent stabilization and are, in fact, sold (and rented) at much higher market values."

According to the complaint, "[t]his causes large disparities in the valuation of and effective tax rates applicable to condominiums and cooperatives depending on whether they were built before or after 1973." The complaint cites publicly-available records which, according to the complaint, suggest that the City assesses some condominiums and cooperatives at values less than the selling price of a single unit in the same building. The complaint again refers to external sources to support its allegations. Among them is a 2015 report from a leading national real estate firm that more than 5,000 condominium units sold in Manhattan in December 2014 for an average price of \$1,600 per square foot, but, as the complaint alleges, the City assessed them at \$304 per square foot (Elliman Report, *Manhattan Decade: 2005-2014* (2015), available at http://www.millersamuel.com/files/2015/02/Manhattan_10YR_2014.pdf [last accessed Jan. 27, 2024]). The complaint further alleges that, as a result of the City's interpretation of RPTL 581 (1) (a), "[t]he average renter within the same prop-

erty class bears the expense of an effective tax rate over 66 times higher,” citing a report from New York University’s Furman Center (State of New York City’s Housing and Neighborhoods 2011 at 8 [2011], available at http://furmancenter.org/files/sotc/SOC_2011.pdf [last accessed Jan. 27, 2024]). The complaint also quotes the City Comptroller’s 2012 audit report that DOF “did not properly follow its own Property Valuation Guidelines when selecting comparable properties” for class two cooperatives and condominiums (John C. Liu, *Audit Report on the Valuation of Class 2 Properties by the New York City Department of Finance* at 15 [Apr. 12, 2012], available at https://comptroller.nyc.gov/wp-content/uploads/documents/FN11_130.pdf [last accessed Jan. 27, 2024]). As the complaint further alleges, DOF itself has admitted that when comparable properties within the same neighborhood are not available, it relies on properties from another neighborhood even if the values are substantially different.

The City does not dispute TENNY’s numbers or the claims of wide inter- and intra- class disparities, but instead responds that the law requires only uniform assessment—not a uniform effective tax rate—which the City defines as the ratio between a property’s tax liability and the estimated market value. Put more simply, the City argues that properties with the same market value are not required to pay the same tax bill because of factors outside of the City’s control, such as the application of state legislatively mandated caps and exemptions. The Appellate Division similarly concluded that TENNY failed to state a claim under RPTL 305 (2), reasoning that, since the RPTL 1805 (1) caps on class one properties at 6% in one year or 20% over a five-year period were passed during the same legislative session as RPTL 305 (2), the legislature could not have intended the disparities caused by RPTL 1805 to violate RPTL 305 (2) (*see* 182 AD3d at 163-164). This interpretation of the statute—adopted by our dissenting colleagues (*see* Garcia, J., dissenting op at 33-40; Cannataro, J., dissenting op at 44-45)—is contrary to the text, legislative history and this Court’s precedent.

[1] We construe the “RPTL as a whole, with its various sections considered together and with reference to each other” (*Matter of DCH Auto v Town of Mamaroneck*, 38 NY3d 278, 296 [2022] [internal quotation marks and alterations omitted]) in accordance with the principle that, as “an integrated statutory scheme, they must be considered as a whole, with each

component viewed in relation to the others” (*Matter of Johnson v City of New York*, 38 NY3d 431, 441 [2022] [internal quotation marks omitted], citing McKinney’s Cons Laws of NY, Book 1, Statutes § 97, Comment at 213-214, 216 [1971 ed] [“(W)ords, phrases, and sentences of a statutory section should be interpreted with reference to the scheme of the entire section . . . and the meaning of a single section may not be determined by splitting it up into several parts”]). Thus, we must read RPTL 305 (2) and 1805 together and harmonize their legislative commands. In accordance with that interpretation, RPTL 1805 does not foreclose TENNY’s claims but instead directs the City to ensure that its assessment is based on the property’s fair market value. The conclusion in the dissents to the contrary is at odds with our prior analysis of RPTL 1805 (1) and the actions an assessment unit may undertake to address disparities—even when those disparities flow, at least in part, from the state-law-mandated caps.

In *O’Shea*, Nassau County settled pending litigation alleging, similar to TENNY here as against the City, that residential property assessments in the County were “completely divorced from current market value,” and led to “poor and minority homeowners . . . shouldering a disproportionate and discriminatory share of the countywide property tax burden” (8 NY3d at 255-256). “The only way for the County to comply with [its settlement obligations] was to lower the fraction by which every residential parcel’s full market value was to be multiplied to fix the assessed value” (*id.* at 258). As a result, “the County limited the number of residential parcels with fractional assessments exceeding the six percent cap” (*id.* at 258-259). The Court rejected the residential property owners’ claim that the County’s plan and the resulting drastic tax increases nullified RPTL 1805 (1) (*see id.* at 259-261).

The fact that *O’Shea* involved actions taken in furtherance of a negotiated settlement does not limit application of its analysis here because the *O’Shea* Court still interpreted the potential limitations of RPTL 1805 (1), not the settlement agreement. As the Court explained, there are no textual limitations on changes to the fractional assessment rate and the legislative changes that led to the enactment of, among other items, RPTL 305 (2) and article 18 (*id.* at 259). The legislature enacted this reform package “in response to *Hellerstein*,” and it “was principally aimed at protecting residential taxpayers from tax increases caused by tax shifts from businesses to homeowners

as a result of revaluation, not tax increases driven by market forces” (*id.*).

The legislative history puts to rest any doubt concerning the interaction between these provisions of the RPTL. As the *O’Shea* Court explained, the legislative history “does not in any way suggest that section 1805 (1) was expected to limit the distribution of the tax burden *within* the class of residential taxpayers, or to hamstring a special assessment unit from curing inequities within this class” (*id.*). Critically, the Court noted that Nassau County, complying with the negotiated settlement, had “lower[ed] the fraction by which every residential parcel’s full market value was to be multiplied to fix the assessed value” in a manner consistent with “a settled understanding of section 1805 (1)” shared by New York City at the time, which had previously “lowered its class one fractional assessment percentage from 28% to 8% over a period of time in order to bring assessed values for residential taxpayers in line with market values” (*id.* at 258-259). *O’Shea* makes clear that the RPTL does not limit the City’s authority to take action, as it has in the past, to achieve an alignment between assessed and market values that ameliorates disparate tax burdens. It is only a question of the City’s willingness to do so.

Our dissenting colleagues erroneously conclude otherwise by dividing this unitary scheme into two separate parts before purportedly demonstrating the City’s compliance with each, while completely ignoring the City’s exclusive and critical role in setting the target assessment ratio—the percentage of market value the City aims to capture in the assessment (*see* Garcia, J., dissenting op at 33-35). However, this bifurcated approach both defies established canons of construction and disrupts the scheme’s interlocking components. The City must comply with RPTL 305 (2)’s requirement that properties be “assessed at a uniform percentage of value” while also accounting for RPTL 1805’s assessment caps (*see* *Johnson*, 38 NY3d at 441). Those caps limit the increase in fair market value reflected in the taxable value of the property (currently 6% over the prior tax year), resulting in an assessment value that is below fair market value.³ This results in assessments at disuniform percentages of market value and, downstream, proper-

3. Judge Garcia’s dissent mistakes our reading of RPTL 305 (2) as an application of the assessment caps prior to the uniform assessment required under RPTL 305 (2) (*see* Garcia, J., dissenting op at 36). We here *account for* the inequities that spring from RPTL 1805 (1)’s assessment caps and other

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ties with faster-appreciating market values shouldering less of the tax burden than properties with less-rapidly-appreciating market values.

For example, assume class one parcel A estimated to have a fair market value of \$100,000 in year one and the following year its fair market value is estimated to have increased 15%, so that it is now worth \$115,000. If the City applies its 6% fractional assessment multiplier to arrive at the property's taxable value the property's assessed value would be \$6,000 during the first year and \$6,900 during the second year without the cap, but it would be \$6,360 once the cap is applied. Now, assume class one parcel B valued at \$100,000 during year one increases only 6% in fair market value to \$106,000 the following year. If the City applies the same 6% fractional assessment multiplier, then this property's assessed value would be \$6,000 during the first year and \$6,360 during the second year without the cap, but it would be the same value once the cap is applied because the increase was equivalent to the cap amount. As this example makes clear, application of the 6% assessment ratio along with the assessment cap results in an actual tax assessment ratio that is not "assessed at a uniform percentage of value" and which becomes increasingly out of sync with market values as certain similarly-situated properties appreciate more rapidly than others. The following charts depict this effect:

Year #1

Parcel	Market Value	Target Assessment Ratio	Assessed (Taxable) Value	Actual Assessment Ratio When Cap Applied
A	\$100,000	6%	\$6,000	6%
B	\$100,000	6%	\$6,000	6%

Year #2

Parcel	Market Value	Target Assessment Ratio	Assessed (Taxable) Value with 6% Increase Cap	Actual Assessment Ratio When Cap Applied
A	\$115,000	6%	\$6,360	5.530%
B	\$106,000	6%	\$6,360	6.000%

Contrary to the view of our dissenting colleagues—a consequence of its misinterpretation of the text and legislative his-

exclusions. Consistent with our precedents (*see e.g. Johnson*, 38 NY3d at 441), we read these provisions *together*, not in succession.

tory—the RPTL authorizes the City to avoid these disparities and the unlawful inequitable tax burden imposed on certain property owners. The view in Judge Garcia’s dissent—based on selective quotes from the legislative record—that the drafters of article 18 passed it with full knowledge of the disparities it supposedly would leave unaddressed (*see* Garcia, J., dissenting op at 37-39) is as unpersuasive now as when the Court rejected it in *O’Shea*. The view of our dissenting colleagues here is basically an amalgamation of the *O’Shea* dissent and the dissents in the Appellate Division there (*see* 8 NY3d at 261 [Smith, J., dissenting] [(A) jurisdiction subject to section 1805 (1) cannot increase the tax on, say, Mrs. Jones’s house by more than six percent in one year unless it increases everyone else’s taxes too. That, at least, is what the Legislature evidently thought when it enacted section 1805 (1)"]; *Matter of Briffel v County of Nassau*, 31 AD3d 79, 86 [2d Dept 2006, Spolzino, J., dissenting]; *id.* at 97 [Lifson, J., dissenting]).⁴ Even worse, the dissents here, unlike the dissent in *O’Shea* (*see id.*), ignore that the statutory framework was intended to avoid spikes in property taxes due to shifts from businesses to homeowners. It was not intended, as the dissents seem to assume, to permit assessments by the City that ignore disparities created by market forces (i.e., spikes in market value). It is possible to both prevent the type of “shock” to residential property taxpayers from an unanticipated large increase in their property’s market value and corresponding tax bill—the legislature’s animating concern—while also accounting for increases in market values within the same class by adjusting the City’s fractional assessment rate based on how the statutory caps suppress the fair market estimate later in the tax process. Unlike the dissents, which erroneously conclude that RPTL 305 (2) does not

4. Judge Garcia’s dissent correctly observes that, dissenting in *O’Shea*, Judge Smith read “the assessment referenced in section 1805 (1)” as requiring “that the ‘percentage used to determine the fractional assessment’ must be ‘held constant from year to year’ to effectuate the purpose of that law” (Garcia, J., dissenting op at 37 n 3, quoting 8 NY3d at 262 [Smith, J., dissenting]). But the dissent here ignores its critical context, namely the *O’Shea* dissent’s broader position that Nassau County had unlawfully changed the percentage used to calculate the assessed value—a position that failed to garner a majority (*see O’Shea*, 8 NY3d at 262-264 [Smith, J., dissenting]). Judge Smith’s understanding of course mirrored that of the Appellate Division dissenters in *O’Shea* and its companion cases—a view that failed to garner a majority in that court as well (*see Matter of Briffel v County of Nassau*, 31 AD3d 79, 92-97 [2d Dept 2006, Spolzino, J., dissenting]; *id.* at 97-99 [Lifson, J., dissenting]).

require the City to take this route (Garcia, J., dissenting op at 36-37; Cannataro, J., dissenting op at 44-45), we hold that it does.

Returning to hypothetical Parcels A and B discussed above, assume that, in the second tax year, the City lowered its target assessment ratio from 6% to 5%, as the law authorizes. This would result in Parcel A having an assessed value of \$5,750, while Parcel B would have an assessed value of \$5,300. The result is that each property would bear a consistent tax burden in proportion to its prevailing market value for the tax year (and, thus, accounting for the artificial value resulting from the tax cap). The following chart depicts the assessment the RPTL requires:

Year #2 with Reduced Target Assessment Ratios

Parcel	Market Value	Target Assessment Ratio	Assessed (Taxable) Value with 6% Increase Cap	Actual Assessment Ratio (When Cap Applied)
A	\$115,000	5%	\$5,750	5%
B	\$106,000	5%	\$5,300	5%

The complaint’s allegation that the City violates RPTL 305 (2) by using inappropriate comparison rentals to assess class two cooperatives and condominiums also has a basis in law (see *Leon*, 84 NY2d at 87-88; *Chanko*, 27 NY3d at 52). The City contends that RPTL 581 requires it to assess these properties as if they were rentals and thus cannot be liable for any disparities that result from such comparison. Section 581 of the RPTL prohibits different treatment based on the ownership of the unit (see *Matter of D. S. Alamo Assoc. v Commissioner of Fin. of City of N.Y.*, 71 NY2d 340, 347 [1988]). The Court held in *Matter of Greentree At Lynbrook Condominium No. 1 v Board of Assessors of Vil. of Lynbrook* that “the plain language of [RPTL] 581 mandates that the condominium [and cooperative] status of the subject properties be disregarded for tax assessment purposes, and that the properties be assessed ‘at a sum not exceeding the assessment which would be placed upon such parcel were the parcel not owned . . . on a condominium basis’” (81 NY2d 1036, 1039 [1993]). As such, “the properties are to be assessed as if they were rental properties” (*id.*).

Contrary to the City’s claim, *Greentree*’s observation that the properties at issue there had to be assessed as if they were rent-stabilized is not an immutable proposition that must be

applied in all cases. Instead, it reflects the fact that all the rentals in the assessing unit at issue in *Greentree* were rent-stabilized. In fact, most of New York City's rentals are *not* rent-stabilized.⁵ Nothing in the plain text of RPTL 581 requires municipalities to assess a luxury condominium or cooperative as if it were a regulated apartment where the properties differ in meaningful ways. Instead, the RPTL requires municipalities to treat condominiums and cooperatives like other similarly-situated rentals. Therefore, to the extent that condominium and cooperative properties would not be subject to rent stabilization if they were not held in ownership, the proper comparable is a non-rent-regulated unit. Therefore, claims that the comparisons are inapt and produce unlawful disparities are sufficient to survive the motion to dismiss.

In sum, the complaint's allegations, supported with independent studies and the City's own data of widening disparities resulting from its annually-repeated assessment methodology to class one and two properties, sufficiently plead violations of RPTL 305 (2) against the City. Therefore, the second and sixth causes of action should not have been dismissed.

2.

FHA

[2] The complaint also sufficiently pleads three causes of action against the City under the FHA based on a disparate impact theory. The fourteenth cause of action alleges that the disparities described throughout the complaint disproportionately burden racial minorities compared to whites, in violation of the FHA (42 USC § 3601 *et seq.*). In support of these allegations, the complaint provides data and uses examples to illustrate the disparities.⁶ Specifically, the complaint alleges that property owners in class one supermajority-minority com-

5. According to a 2017 survey conducted by the New York City Department of Housing Preservation and Development, 55% of the City's housing stock is not rent-stabilized (see C.R. Waickman, J.B.R. Jerome & R. Place, Report by New York City Department of Housing and Urban Development, *Sociodemographics of Rent Stabilized Tenants: An analysis based on the 2017 New York City Housing and Vacancy Survey (NYCHVS)* at 1 [2018], available at <https://www.nyc.gov/assets/hpd/downloads/pdfs/services/rent-regulation-memo-1.pdf> [last accessed Jan. 27, 2024]).

6. The complaint presents in percentage terms the latest census data breaking down by borough the City's population in housing units by race and ethnicity as follows:

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munity districts pay higher tax rates than those in supermajority white districts—properties in supermajority non-white districts are assessed at a 20% higher tax rate than supermajority-white districts, and majority-minority community districts are assessed at a rate 13% higher than the rate applied to majority white community districts. According to the complaint, the higher tax bills inhibit mobility and place a disproportionate burden on the purchase, ownership and renting of class one properties, in violation of the FHA’s prohibition on race-based discrimination.

The fifteenth cause of action asserts that the City’s tax policy favors class two owner-occupied housing, including condominiums and cooperatives, over class two rental property. Further, it alleges that the disparities in rental unit tax assessments are discriminatory and fall most heavily on minority renters in the City and impact their search for affordable housing, in violation of 42 USC § 3604 (a). TENNY alleges, with respect to class two properties, that the City’s tax scheme and the assessment caps have a disproportionate racial impact. The complaint alleges that renters are disproportionately people of color and that renters pay higher rents to cover the taxes building owners pass onto them as part of the rent. Rental building owners, the complaint further alleges, pay a higher effective tax rate than condominium and cooperative owners, who are disproportionately white, and this disparate impact violates the FHA. These are sufficient allegations to survive dismissal.

The FHA provides, in relevant part, that

RACE BY HOUSEHOLD AND PROPERTY TYPE BY BOROUGH								
	Renters		Conventional Homes		Private Cooperatives		Condominiums	
	White	Non-White	White	Non-White	White	Non-White	White	Non-White
Manhattan	41.3%	58.7%	48.6%	51.4%	70.0%	30.0%	68.3%	31.7%
Bronx	6.6%	93.4%	20.8%	79.2%	42.7%	57.3%	7.4%	92.6%
Kings	32.5%	67.5%	39.1%	60.9%	58.3%	41.7%	55.0%	45.0%
Queens	21.4%	78.6%	28.7%	71.3%	46.8%	53.2%	36.4%	63.6%
Staten Island	43.0%	57.0%	71.4%	28.6%	58.4%	41.6%	77.4%	22.6%
Citywide	35.6%	64.4%	47.7%	52.3%	67.0%	33.0%	59.7%	40.3%

(see United States Census Bureau, *Series VIIB: Population Households All Occupied Housing by Tenure* [2014], Table 94, available at <https://www.census.gov/data/tables/time-series/demo/nychvs/series-7b.html> [last accessed Jan. 27, 2024]).

“it shall be unlawful—

“(a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin[; and]

“(b) [t]o discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin” (42 USC § 3604 [a]-[b]).

The animating policy of the FHA is “to provide, within constitutional limitations, for fair housing throughout the United States” (42 USC § 3601). And the United States Supreme Court has “acknowledge[d] the Fair Housing Act’s continuing role in moving the Nation toward a more integrated society” (*Texas Dept. of Housing and Community Affairs v Inclusive Communities Project, Inc.*, 576 US 519, 547 [2015] [ICP]). To that end, both intentional discrimination and disparate impact claims are cognizable under the FHA (*id.* at 539-540), which prohibits state and local laws and governmental practices that discriminate based on the protected classifications (*see e.g. Mhany Mgt., Inc. v County of Nassau*, 819 F3d 581, 605-620 [2d Cir 2016] [holding that a village violated the FHA when it rezoned property in a manner that disparately impacted members of racial minority groups and, based on the village’s “knowledge of their constituents’ discriminatory animus,” also did so with “discriminatory intent”]; *Huntington Branch, N.A.A.C.P. v Town of Huntington*, 844 F2d 926, 937 [2d Cir 1988] [same when municipality refused to amend a zoning ordinance to permit construction of multifamily homes beyond an urban renewal area], *affd in part sub nom. Huntington v Huntington Branch, NAACP*, 488 US 15 [1988]).

The complaint alleges, again relying on hard data, that the City’s assessment and taxation practices have an FHA-prohibited discriminatory disparate impact. According to the complaint, the City drastically overassesses and overtaxes majority-minority communities and the properties in which minorities disproportionately live as compared to whites in the City. The complaint alleges that properties in class one

majority-minority neighborhoods are overassessed annually by \$1.9 billion and overtaxed annually by \$376 million compared to white homeowners in majority-white neighborhoods. TENNY alleges that class two properties are similarly taxed at higher rates along racial lines and that the disparities are extreme with some districts taxed at over 275% the rate of other districts and that, because of the demographic differences between the districts, these disparities in tax rates fall heaviest on minorities. The complaint further alleges that higher tax rates increase the cost of housing, in a City with an affordable housing shortage (see City of New York, *Housing New York: A Five-Borough, Ten-Year Plan* at 5 [2014] [observing that “New York City’s shortage of affordable housing has reached a crisis point”]; see also Oksana Mironova & Samuel Stein, *Our Fast Analysis of the 2021 New York City Housing and Vacancy Survey* at 7 [Oct. 2023] [noting that “most New Yorkers—55 percent, or 1,196,100 households—were rent burdened in 2021,” meaning, under federal guidelines, that they paid “rents that exceed(ed) 30 percent of gross household income”]). The complaint alleges that the higher tax rates increase foreclosure rates in majority-minority communities and make it more difficult for minorities to buy, own, maintain, and rent dwellings. Accepting these allegations as true, as we must on a motion to dismiss, the fourteenth cause of action sufficiently alleges an FHA violation (see *Leon*, 84 NY2d at 87).

The complaint also alleges that the City’s taxation assessment practices discriminate with respect to the terms and conditions of housing under 42 USC § 3604 (b). As TENNY argues, a property’s tax assessment and outstanding tax liability transfers upon sale to the purchaser and thus impacts the price paid—an obvious term of the sale. Similarly, landlords pass tax burdens onto their tenants in the rent charged—an obvious term of the rental (see RPTL 304 [2]). This transfer of tax burdens to home buyers and renters is alleged to be part of a discriminatory practice based on the protected classifications, and thus violates the FHA. Therefore, the fifteenth cause of action also sufficiently alleges an FHA violation.

The Appellate Division erroneously applied a heightened pleading standard to these FHA claims, relying on language from *ICP* (see 182 AD3d at 166). However, the Appellate Division overlooked the fact that *ICP* arrived before the United States Supreme Court, not on a motion to dismiss—as here—but following a summary judgment that the plaintiffs “had

made a prima facie showing of both intentional discrimination and disparate impact” under the FHA (*Inclusive Communities Project, Inc. v Texas Dept. of Hous. & Community Affairs*, 747 F3d 275, 279 [5th Cir 2014], *affd & remanded* 576 US 519 [2015]). Judge Garcia’s dissent also fails to acknowledge that this difference in procedural postures matters, especially when considered in conjunction with our State’s comparatively liberal pleading standards (*see* Garcia, J., dissenting op at 42-43).

The Supreme Court explained in *ICP* that “a disparate-impact claim that relies on a statistical disparity” fails unless the disparity is caused by the defendant’s policy (576 US at 542). The Court further explained that “[a] robust causality requirement ensures that racial imbalance . . . does not, without more, establish a prima facie case of disparate impact” (*id.* [internal quotation marks omitted]). As the Supreme Court has made clear, a plaintiff’s prima facie burden to show discrimination is an *evidentiary* standard, not a pleading standard (*Swierkiewicz v Sorema N. A.*, 534 US 506, 510 [2002]; *see also* *Mandala v NTT Data, Inc.*, 975 F3d 202, 208-209 [2d Cir 2020] [confirming that *Swierkiewicz*’s holding survived the Supreme Court’s subsequent decision in *Ashcroft v Iqbal* (556 US 662, 678 [2009])]). Thus, in *ICP*, the Supreme Court’s causation analysis aptly applied that Court’s precedents to an evidentiary record generated during discovery (*see Inclusive Communities Project, Inc. v Texas Dept. of Hous. & Community Affairs*, 749 F Supp 2d 486, 499 [ND Tex 2010]). Here, we are at the pleading stage, where we review only the sufficiency—not the ultimate success—of the complaint against defendants’ respective motions to dismiss (*see Sassi*, 37 NY3d at 239). The Appellate Division imposed a causation requirement that was ill-suited to the judicial task at hand and inapt at this stage of the litigation, where plaintiff’s factual assertions are accepted as true and we need only determine whether the facts fit any cognizable legal theory (*see Leon*, 84 NY2d at 87-88).

Here, the complaint alleges that the City’s tax assessment system is a cause of the barriers to housing access, barriers that disparately impact minority homeowners and minority-majority communities with respect to class one and class two properties. As we have discussed, those allegations are sufficiently pleaded.

Finally, the sixteenth cause of action asserts the City’s tax system perpetuates existing segregation throughout the City in violation of the FHA, 42 USC § 3604 (a). The FHA’s legislative

goals are twofold: elimination of discrimination in housing and the promotion of residential integration (*see Huntington Branch, N.A.A.C.P.*, 844 F2d at 936 [“Congress intended that broad application of the anti-discrimination provisions (of the FHA) would ultimately result in residential integration”], citing *United States v Starrett City Assoc.*, 840 F2d 1096, 1101 [2d Cir 1988] [same]; *see also ICP*, 576 US at 540 [noting that the FHA endeavors to facilitate governmental housing priorities and policies “without arbitrarily creating discriminatory effects or perpetuating segregation”]). As the Supreme Court has recognized: “disparate-impact liability may prevent segregated housing patterns that might otherwise result from covert and illicit stereotyping” (*ICP*, 576 US at 540). Thus, intentional conduct or a policy that has a segregative disparate impact based on any of the protected classifications violates the FHA (*see* 42 USC § 3604 [a]), although a party claiming such must provide more than bare statistics (*see ICP*, 576 US at 543).

New York has a long-standing history of housing segregation and remains one of the most segregated cities in the country (*see* Lolly Bowean, *Segregation declines in Chicago, but city still ranks high, census data show*, Chicago Tribune [Jan. 4, 2016], available at <https://www.chicagotribune.com/news/ct-segregation-declines-neighborhoods-change-met-20160103-story.html> [summarizing study concluding, among other things, that New York City is the second most segregated city in the United States] [last accessed Jan. 28, 2024]; Stephen Menendian, Samir Gambhir & Arthur Gailles, *Twenty-First Century Racial Residential Segregation in the United States* at 19, Othering & Belonging Institute at the University of California Berkeley [June 30, 2021] [observing that New York City is the most segregated metropolitan area in the country]). TENNY alleges “[b]lack and whites are the most isolated from other races” as “[v]ast sections of southeast Queens and central Brooklyn are nearly all black, while parts of Staten Island, the Upper East Side in Manhattan, and Orthodox areas in Brooklyn are nearly all white.” TENNY’s perpetuation-of-segregation claim alleges that the tax system’s disproportionate burdens on renters and majority-minority neighborhoods suppress minority mobility into wealthier, whiter neighborhoods. True, as TENNY acknowledges, individuals choose to live in a neighborhood or move into or out of a community for reasons unrelated to—or despite—high taxes (*see* Jeremy F. Pais, Scott J. South & Kyle Crowder, *White Flight Revisited: A*

Multiethnic Perspective on Neighborhood Out-Migration, Population Rsch & Poly Rev [No. 3] 322, 339, 342 [June 2009] [study concluding that “whites’ aversion towards minority neighbors remain(s) a motivation for their neighborhood out-migration” but also that “a legacy of racial discrimination leaves minorities apprehensive about being among the few minorities in Anglo neighborhoods because of real or perceived hostility”)]. The realities may present obstacles for TENNY’s perpetuation-of-segregation claim as this case progresses. However, at the pleading stage, we do not consider whether TENNY will eventually establish its cause of action, only whether it has alleged facts that support a legally viable claim (*see Chanko*, 27 NY3d at 52; *EBC I, Inc.*, 5 NY3d at 19). TENNY need not offer allegations defeating every alternative explanation for the suppressed mobility of minority group members in New York City. Thus, under our State’s liberal pleading standards, TENNY’s allegation that the City’s tax system perpetuates segregation suffices (*see Sassi*, 37 NY3d at 239; *Leon*, 84 NY2d at 87-88).

C.

The Remaining Causes of Action against the City Fail to State Cognizable Claims

[3] The remaining causes of action against the City based on the Federal and State Constitutions were properly dismissed for failure to state a claim. They are foreclosed by the deferential standard applied to taxation legislation and policy under existing case law.

1.

Federal and State Equal Protection and Due Process

The complaint alleges that the intraclass disparities described in the complaint with respect to properties within class one (third and fourth causes of action) and class two (seventh and eighth causes of action) constitute federal and state equal protection violations by the City. We conclude that the complaint does not allege a legally cognizable claim under the legal standard advanced by TENNY.

Both the Federal and State Constitutions forbid the government from denying persons “the equal protection of the laws” (US Const Amend XIV, § 1; NY Const, art I, § 11). The Court

has observed that “[t]he Federal and State Constitutions do not prohibit dual tax rates or require that all taxpayers be treated the same” but “require only that those similarly situated be treated uniformly” (*Foss v City of Rochester*, 65 NY2d 247, 256 [1985]). Hence, “[t]axing statutes, like other social and economic legislation that neither classify on the basis of a suspect class nor impair a fundamental right, must be upheld if the challenged classification is rationally related to achievement of a legitimate State purpose” (*Trump v Chu*, 65 NY2d 20, 25 [1985]). The statute “enjoys a presumption of constitutionality” (*id.*). In other words, the legislature may treat one class of individuals or entities differently from others for tax purposes “unless the difference in treatment is palpably arbitrary or amounts to an invidious discrimination” (*id.* [internal quotation marks and citation omitted]). Thus, even at the pleading stage, with all the favorable inferences we must draw from the factual allegations, a plaintiff faces a high hurdle because “[e]ven a ‘flagrant unevenness’ in application of the tax will not prevent the statute from passing constitutional muster” under equal protection (*Heimbach v State of New York*, 59 NY2d 891, 893 [1983], quoting *Matter of Long Is. Light. Co. v State Tax Commn.*, 45 NY2d 529, 535 [1978]).

As reflected in its briefs, TENNY assumes that our State Constitution’s equal protection guarantee restricts the City’s taxation scheme no differently than does its federal counterpart. Thus, we analyze the sufficiency of the complaint as limited by TENNY’s argument. “‘[A] classification neither involving fundamental rights nor proceeding along suspect lines . . . cannot run afoul of the [federal] Equal Protection Clause if there is a rational relationship between the disparity of treatment and some legitimate governmental purpose’” (*Armour v Indianapolis*, 566 US 673, 680 [2012], quoting *Heller v Doe*, 509 US 312, 319-320 [1993]). In such cases, a taxing scheme does not violate equal protection if “‘there is a plausible policy reason for the classification, the legislative facts on which the classification is apparently based rationally may have been considered to be true by the governmental decisionmaker, and the relationship of the classification to its goal is not so attenuated as to render the distinction arbitrary or irrational’” (*id.* at 681, quoting *Nordlinger v Hahn*, 505 US 1, 11 [1992] [citations omitted]). Such a “plausible reason” exists “if ‘there is any reasonably conceivable state of facts that could provide a rational basis for the classification’” (*id.*, quoting *FCC v Beach Communications, Inc.*, 508 US 307, 313 [1993]).

The complaint alleges that article 18 of the RPTL results in inequitable tax burdens between class one and class two properties, and within each of those classes as well. Contrary to TENNY's argument here, there is a rational tax-related purpose for treating dissimilar class one and class two properties differently and for imposing both assessment caps within each class and caps upon the amount by which the class share for each class may increase each year.

As we have recounted in the past and here, article 18 of the RPTL was enacted in the wake of the Court's holding in *Hellerstein*, a decision that generated concern that there would be a dramatic increase in taxes for homeowners (see *O'Shea*, 8 NY3d at 253-254; see also *supra*, section I). The legislature overrode a gubernatorial veto to enact chapter 1057 of the Laws of 1981, which added article 18, which "despite its imperfections" was viewed as "the only ball game in town to prevent a dramatic shift of real property taxes from businesses to homeowners, and provide a high degree of stability in the relative tax burdens of these categories of taxpayers" (*id.* at 254-255 [internal quotation marks and citations omitted]). The new law "was 'designed to maintain the stability of relative property class tax burdens'" (*id.* at 254, quoting Budget Rep on Bills at 1, Bill Jacket, L 1981, ch 1057). Thus, the statutory tax framework was designed to accomplish the tax-related objective of avoiding abrupt increases or shifts in tax liability over time. This is a rational tax-related purpose for the legislature's different treatment of class one and class two properties and imposition of caps under RPTL 1805 (1). Hence, within class one, the assessment caps result in differing effects on similarly-situated properties depending on the magnitude of their appreciation in value, but this treatment results from a rational legislative objective of shielding homeowners whose home values rapidly appreciate from unexpectedly high tax burdens (see *Nordlinger*, 505 US at 11-13). Moreover, the distinct treatment of condominiums and cooperatives within class two under RPTL 581 has a rational basis as it was intended "to insure that owners of condominiums and cooperative properties would be taxed fairly compared to rental properties held in single ownership and not penalized because of the type of ownership involved in their multiple dwellings" (*Matter of D. S. Alamo Assoc.*, 71 NY2d at 347). Because there are "plausible policy reason[s] for the classification[s]" the complaint fails to allege cognizable equal protection claims based on inter- and intra-

class property differences (*Armour*, 566 US at 681, quoting *Nordlinger*, 505 US at 11). The eleventh and twelfth causes of action based on an alleged policy designed to privilege the interests of class one properties over those of the other three classes—another permutation of the interclass disparities described in the complaint—fare no better. Section 1802 of the RPTL created the four property classes and RPTL 1803 requires that municipalities determine each class’s proportion of the total tax burden. The cap on each class share serves the rational legislative objective of maintaining stability within the class and avoiding dramatic shifts in the tax burden. Therefore, the Appellate Division properly dismissed these equal protection claims.

The ninth and tenth causes of action assert federal and state due process violations. The gravamen of those causes of action is that all properties must be taxed equally based on their market value, regardless of whether the property is residential, commercial or industrial, or the form in which it is held (cooperative, condominium or fee simple). These too were properly dismissed. Both the Federal and State Constitutions forbid the government from “depriv[ing] . . . any person of life, liberty, or property, without due process of law” (US Const, amend XIV; NY Const, art I, § 6). The Court has explained that

“[m]easures enacted in the exercise of the taxing power for the purpose of raising revenues violate the due process clause ‘only if the act be so arbitrary as to compel the conclusion that it does not involve an exertion of the taxing power, but constitutes, in substance and effect, the direct exertion of a different and forbidden power’ ” (*Matter of Ames Volkswagen v State Tax Commn.*, 47 NY2d 345, 348-349 [1979], quoting *A. Magnano Co. v Hamilton*, 292 US 40, 44 [1934] [some internal quotation marks omitted]).

In other words, “[t]he Legislature has nearly unconstrained authority in the design of taxing measures unless they are utterly unreasonable or arbitrary” (*Ames*, 47 NY2d at 349). The City’s property tax scheme is consistent with these principles; differentiating the tax burden among the several different property types does not fail the rational basis test applicable to due process claims.

2.

Article XVI, § 2 of the State Constitution

The complaint alleges violations of article XVI, § 2 of the State Constitution in its first cause of action relating to disparities within class one and in the fifth cause of action relating to disparities within class two. Both were properly dismissed.

Article XVI, § 2 provides that “[t]he legislature shall provide for the supervision, review and equalization of assessments for purposes of taxation” (NY Const, art XVI, § 2). Article XVI, § 2 requires fair processes for reviewing assessments to ensure “that each assessing unit bears its proportionate share” (*Foss*, 65 NY2d at 255). It does not require substantive equality of assessments between different classes.

TENNY argues that this constitutional provision imposes a substantive requirement that all properties within each class be assessed at the same percentage of their market value and relies on the Court’s decision in *Foss v City of Rochester* (65 NY2d 247 [1985]). This reliance is misplaced. Article XVI, § 2 imposes a duty on the legislature only, not the City. That obligation is to “provide for the supervision, review and equalization of assessments for purposes of taxation.” The legislature has provided such a system and, as discussed herein, RPTL 305 (2) and 1805 pose no obstacle to the City’s equalization of taxes. We see nothing in the State’s statutory scheme that constitutes a violation of article XVI, § 2.

Finally, although the complaint alleges an RPTL 1802 (1) cause of action claiming that the City has, in practice, created subclasses based on improper factors, TENNY has not briefed to us any argument in support of that claim or otherwise referenced its arguments below. Regardless, we conclude that the Appellate Division properly dismissed this cause of action because the complaint fails to sufficiently plead that the alleged nonuniform assessments constitute discrete, identifiable, impermissible subclasses rather than rationally-based differential tax treatment within the existing four classes.

D.

Claims against the State Defendants

The complaint alleges all of the same constitutional federal and state violations and FHA claims against the State that it alleged against the City. We easily dispose of these claims

because the gravamen of the complaint is a challenge to the City's real property tax scheme and, by so focusing, fails to separately explain why the State is liable for the City's methodological choices, including the City's failure to cure the inter- and intra- property class inequities. This failure in the pleading is fatal.

IV.

Conclusion

TENNY's complaint describes in detail the City's real property tax system and, with similar particularity, alleges that the system is unfair, illegal, and ever more inequitable with each passing year. The City and State do not dispute that the system results in disparities. The complaint recounts acknowledgements from City officials that these rampant disparities lead to inequality among similarly-situated property owners. While these officials bemoan the situation, the City fails to act. According to the complaint, the numbers tell the story of a taxation scheme that requires lower-income property owners and renters in majority-minority New York City neighborhoods to pay more than their fair share of the tax burden in violation of the law. TENNY contends that it sufficiently pleads that the law requires defendants to mitigate the existing disparities. We agree with TENNY in part.

We conclude that the complaint sufficiently pleads causes of action against the City for violations of RP TL 305 (2) and the FHA with respect to class one and class two properties. The remaining causes of action against the City and all the claims against the State fail to plead constitutional and statutory violations for the reasons we have discussed.

Accordingly, the Appellate Division's order should be modified, with costs awarded only to respondent State of New York, in accordance with this opinion and, as so modified, affirmed.

GARCIA, J. (dissenting in part). Tax Equity Now NY LLC (TENNY), an "association committed to pursuing legal and political reform to address the inequity and illegality of New York City's property tax system," asks this Court to remedy "staggering" inequities that allegedly result from the City's tax assessment regime, turning to the courts because "calls for political reform over the last three decades have fallen on deaf ears [and] elected officials have deemed the political costs of fixing the City's broken property tax system too high." Frustrated

with the political process, TENNY brings a myriad of claims against New York City and State, ranging from alleged violations of the equal protection and due process clauses of the New York State and Federal Constitutions to violations of the federal Fair Housing Act.

The gravamen of TENNY's complaint is that the New York State property tax system, as enacted and applied by City and State entities, "violates state and federal constitutional and statutory mandates that require that property taxes be imposed uniformly within each property class and reflect a fair and realistic value of the property involved" (182 AD3d 148, 154 [1st Dept 2020]). My colleagues in the majority hold that these allegations "exceed[] our pleading standard . . . on the general basis that the system is unfair, inequitable and has a discriminatory disparate impact" (majority op at 7). I disagree with that misrepresentation of what the standard requires. At a more serious level, the majority's approach misapprehends the relevant RPTL provisions, our precedent applying them, and the pleading requirements of a claim under the FHA. A review of the complaint against the plain language of these statutes, even construing the pleadings liberally and granting TENNY all favorable inferences as we must, shows that the complaint falls well short of alleging any cognizable legal theories of statutory violations. As a result, I agree with the Appellate Division that all claims against the City and State should be dismissed (182 AD3d 148 [1st Dept 2020]) and I dissent.¹

RPTL 305 (2) Claims

TENNY alleges that the City's assessment process violates RPTL 305 (2) in two ways, as discussed in more detail below. The majority's endorsement of these theories requires a misreading of the statutory language and our precedent; chiefly, a flawed understanding of the statute as *requiring* the City to provide equal tax treatment for all properties of equal market value. The statute requires no such thing.

While the majority claims to find support in the "text, legislative history and this Court's precedent" (majority op at 15), the opinion ignores the first two and misinterprets or misunderstands the case it primarily relies upon. As to the text, RPTL

1. I agree in result with the majority's dismissal of TENNY's state and federal constitutional claims for reasons stated by the Appellate Division (182 AD3d at 157-168).

305 (2) provides that “[a]ll real property in each assessing unit shall be assessed at a uniform percentage of value (fractional assessment).” The issue here is the meaning of “assessed at a uniform percentage of value” or “fractional assessment.” The majority interprets these terms to mean “assessed value after certain caps are applied.” This is incorrect, as a review of the taxing scheme, the legislative history, and the same precedent relied on by the majority makes clear (*see Matter of O’Shea v Board of Assessors of Nassau County*, 8 NY3d 249 [2007]). Instead, those terms refer to the fractional assessment obtained by applying the target assessment rate to a property’s market value.

In New York City, the Department of Finance “assesses the taxable value of a parcel of real property by multiplying its market value by the fractional assessment rate applied to that parcel’s property class, with Class One properties assessed at 6% of their market value and all other classes of property assessed at 45% of their market value” (182 AD3d at 155-156). Once that uniform percentage has been applied to market value and a fractional assessment determined, certain “caps” come into play. Most relevant here is the cap specified in RPTL 1805, which provides that “[t]he assessor . . . shall not increase the assessment of any individual parcel classified in class one in any one year . . . by more than six percent” and “shall not increase such assessment by more than twenty percent in any five-year period” (RPTL 1805 [1]); for class two properties, no assessment shall be increased by more than 8% in one year and 30% in any five-year period. Application of this cap structure is the basis for TENNY’s first claim under section 305 (2).

According to TENNY, with respect to class one properties, “the City taxes different parcels of real property within the Class at wildly different percentages of value” through its “application of assessment caps” and “[t]he City could avoid or minimize these disparities, while still applying assessment caps required by state law, by lowering Class One’s assessment ratio.” The majority accepts these allegations as sufficient to survive a motion to dismiss, in part because “the RPTL authorizes the City to avoid these disparities” (majority op at 18-19). While requiring equal tax treatment for all properties of equal market value is a laudable goal, and the City is certainly *permitted* to take the action demanded, the statute does not require the City to do so. The only issue under section

305 (2) is whether the City assesses property at a uniform percentage of market value. It does.

The charts below are useful in identifying what is—and what is not—relevant to our analysis of a section 305 (2) claim. That section requires that property be “*assessed* at a uniform percentage of value” using fractional assessment (emphasis added). Column IV, depicting the “fractional assessment,” is therefore the reference point for statutory compliance. As the charts demonstrate, the City follows the mandated approach—fractional assessments are calculated at a uniform 6% rate for class one properties (column III), producing the corresponding “fractional assessment” in column IV. Disparities only come into play when the caps required by RPTL 1805 are applied. But the application of these caps does not affect the uniformity of the fractional assessment. The assessment is calculated at a uniform percentage of market value—then the section 1805 assessment caps, and a myriad of other policies that may reduce a particular tax bill, are applied (column V).

Year 1

I. Property	II. Market Value	III. Target Assessment Ratio	IV. Fractional Assessment	V. Capped Assessment (6%)	VI. Actual Assessment Ratio
A	\$100,000	6%	\$6,000	\$6,000	6%
B	\$100,000	6%	\$6,000	\$6,000	6%

Year 2

I. Property	II. Market Value	III. Target Assessment Ratio	IV. Fractional Assessment	V. Capped Assessment (6%)	VI. Actual Assessment Ratio
A	\$115,000	6%	\$6,900	\$6,360	5.53%
B	\$106,000	6%	\$6,360	\$6,360	6%

The majority’s error is clear. Rather than use the “fractional assessment” column referred to in RPTL 305 (2), the majority appears to use some combination of “Capped Assessment” and “Actual Assessment Ratio” in finding the allegations that the City violated the statute sufficiently alleged (majority op at 15-20). This interpretation finds no support in the plain language of the statute and is flatly contradicted by our case law and the legislative history.

The majority rests its erroneous interpretation of the statute on a misreading of our holding in *Matter of O’Shea*. To the con-

trary, in *O'Shea* this Court made clear that the process represented by columns III and IV above is the proper reference point for compliance with section 305 (2) (8 NY3d 249). In that case, the petitioners, owners of real property in Nassau County, challenged an assessment, conducted pursuant to a court-approved stipulation, that saw the assessed market value of their homes soar, asserting that the assessment violated the cap structure of section 1805 (1) (*id.* at 252). The petitioners argued that “assessment” meant “full valuation or full market value or appraised fair market value, not fractional assessment” (*id.* at 259) so that the caps of section 1805 would essentially apply to column II above.

As provided in the stipulation, the County was obliged to “assess[] all Class I residential property in [the County] at a uniform percentage of value (fractional assessment) such that the uniform application of such fractional assessment rate does not result in any assessment for any individual parcel of Class I residential property that would require the application of RPTL 1805 to limit any assessment” (*id.* at 257). Given that applying even a 1% target assessment ratio would not meet that goal, the settlement acknowledged that .5% of the fractional assessments could nevertheless be subject to the section 1805 (1) caps (*id.*). The language used in the stipulation—“uniform percentage of value (fractional assessment)” —tracks the exact phrasing of section 305 (2) and makes clear that the reference point is columns III and IV, that is, the columns prior to the application of the caps. This Court used the same terminology in analyzing the issues, noting that only 0.47 % of the “assessed values” required the imposition of the section 1805 caps (*id.* at 258). Rather than focus on the clear import of the analysis, that section 305 (2) refers to the application of the assessment ratio and resulting assessed value *prior to* imposition of the caps, the majority takes *O'Shea* as support for its position that the statute references post-cap assessment value (*see* majority op at 16-18). Nothing makes the error of that position clearer than the fact that, under the majority's interpretation of section 305 (2), the settlement in *O'Shea* would be unlawful because nearly .5 percent of the properties had “actual assessment ratios” lower than the others in the class. The majority attempts to justify its interpretation of the statute based on a holding that would itself have permitted a violation of that interpretation.

Moreover, the majority extrapolates a statutory mandate for reduced assessment rates from a case that considered only

whether the reduced assessment rates required by a settlement provision violated the caps imposed by section 1805 (1). Although this Court held that the County could lower the fractional assessment rate (in that case to one percent of value) to the point of *almost* eliminating the effect of the cap without violating section 1805, there is nothing in *O'Shea* suggesting that section 305 (2) mandates such an approach. Section 305 (2) goes unaddressed and unchallenged in both *O'Shea* and in the complaint that led to the settlement discussed there. For good reason: the case involved only the effect of the assessment procedure implemented pursuant to the stipulation on the statutory assessment caps, not whether the County had a statutory duty to adopt that procedure.²

Similarly, that “there are no textual limitations on changes to the fractional assessment rate” (majority op at 16) does not bear on what section 305 (2) requires. It is this repeated error—confusing what the City may do with what the City must do—that underlies the majority’s analysis (*see* majority op at 17 [*O'Shea* makes clear that the RPTL does not limit the City’s authority to take action . . . to achieve an alignment between assessed and market values that ameliorates disparate tax burdens]; majority op at 19 [“the RPTL authorizes the City to avoid these disparities”]; *see O'Shea*, 8 NY3d at 259 [section 1805 (1) not intended to “hamstring a special assessment unit from curing inequities”]). Certainly, the City could do what TENNY demands it do, but section 305 (2) does not, unlike the stipulation in *O'Shea*, require it to do so.³

In addition to misunderstanding *O'Shea*’s impact on the issues here, the majority ignores the relevant legislative history of the statute. In support of its interpretation, the majority

2. The stipulation in *O'Shea* that required lowering the fractional assessment rate to eliminate the effect of the section 1805 caps for 99.5% of assessed homes was to expire after a minimum of three years and a maximum of six. The majority’s mandate, which will also apply to assessments done in Nassau County (*see* RPTL 1801 [a]), has no sunset.

3. The majority mischaracterizes the dissent in *O'Shea* in attempting to dismiss the argument here as previously rejected by this Court (*see* majority op at 19). The dissent in *O'Shea* asserted that the assessment referenced in section 1805 (1) required that the “percentage used to determine the fractional assessment” must be “held constant from year to year” to effectuate the purpose of that law (8 NY3d at 262 [Smith, J., dissenting]). Of course, as *O'Shea* held and as noted above, the City is not *barred* by section 1805 from taking the action demanded of it—lowering the percentage used—but again, that point is irrelevant to whether the statute requires it to do so and the *O'Shea* dissent is therefore irrelevant to the position taken here.

states that the “statutory framework was intended to avoid spikes in property taxes due to shifts from businesses to homeowners” (majority op at 19). While the legislation was “principally aimed at protecting residential taxpayers from tax increases caused by tax shifts from businesses to homeowners” (*O’Shea*, 8 NY3d at 259), opponents wanted it to do more. That is, they wanted it to do what TENNY now claims it does.

The legislature enacted article 18 of the RPTL over the governor’s veto. TENNY itself explains this opposition in its complaint, describing how “when the present system was proposed, it was denounced by the State Board of Equalization and Assessment . . . as a ‘dangerous piece of legislation’ that violated guarantees of equal protection and due process and would ‘institutionalize discriminatory assessment practices against all property owners’ ” and “[i]ts rejection was likewise urged by the sitting Governor, then Lieutenant Governor Mario Cuomo, the State Comptroller, the New York State Association of Counties, the New York Conference of Mayors and Municipal Officials, the New York AFL-CIO, the League of Women Voters of New York State, the Citizens Budget Commission, and others.” The governor’s veto and the widespread opposition to the legislation was driven by the prevailing view that the legislation did nothing to fix the existing inequities in the system and instead raised constitutional issues. Indeed, detractors argued that the legislation “raises both constitutional and equal rights issues” (Letter from Chairperson of NY St Assn of Counties, Conf of Mayors, Assn of Towns, School Bds Assn, Assessors Assn, and Assn of County Directors of Real Property Tax Servs, Bill Jacket, L 1981, ch 1057) and complained that “this bill does not provide the real property tax reform necessary to increase equity within the existing system,” in part because “[t]hose property owners whose assessments are unfairly high because of outdated assessment practices would continue to shoulder a disproportionate share of the tax burden” (*see* Budget Rep on Bills at 3, Bill Jacket, L 1981, ch 1057). Specifically, critics pointed to section 305 (2) as “allow[ing] similar properties to be assigned different tax rates on the basis of their location” and failing to “address the question of equal assessment” (Letter from President of Real Estate Bd of NY, Bill Jacket, L 1981, ch 1057, at 1). The bill’s opponents also criticized the fact that the bill failed to provide an established method for measuring actual property value (*see* Budget Rep on Bills at 4, Bill Jacket, L 1981, ch 1057 [“Al-

though this bill requires property to be assessed at a uniform percentage of value, it does not specify the standard to be used in measuring actual property value. Given the absence of a clear standard of value, local assessors could have wide discretion in determining the value of properties against which the uniform fractional assessment will be applied. This could perpetuate the inequitable practice of assessing comparable property at different values and ultimately lead to court challenges by taxpayers claiming denial of equal protection under the law”]).

Criticism was also lodged at RPTL 581, another provision TENNY challenges which relates to the method of assessing cooperatives and condominiums. The bill’s opponents argued that the animating purpose behind that section “compels assessors to assess such property in a certain manner which is established by statute, even though it may have a market value or other value which is in fact greater,” a result which they argued would be “repugnant to the concept of a fair assessment procedure” (Letter from Gen Counsel, NY Conf of Mayors & Municipal Officials at 2, Bill Jacket, L 1981, ch 1057). Others suggested that the legislation “virtually guarantees that the purchaser of a co-op will pay lower taxes than the purchaser of a single-family house with the same price” (Letter from Dick Netzer, Dean of NY Univ Graduate School of Public Admin at 3, Bill Jacket L 1981, ch 1057). The legislature overrode the governor’s veto and passed the legislation, despite the criticism of the proposed system as at best ineffective and at worst unfair (*see* 8 NY3d at 254-255).

In sum, as the legislative history makes clear, the statute was not designed to do what the majority demands of it. What section 305 (2) requires is that property be “assessed at a uniform percentage of value (fractional assessment).” That is done under the City’s current approach. A uniform percentage is applied, a consistent fractional assessment obtained, and then the caps, if applicable, are triggered. Certainly, as *O’Shea* holds, the City is permitted to implement this statutorily mandated process in a manner that would, as TENNY asserts, cause disparities to “vanish”—but the failure to do so is not a violation of the statute. The remedy for resulting unequal tax burdens is not for this Court to decide 40 years later that the statute now does what it was universally criticized for failing to do, but for elected officials to revisit the statute if they choose.

The majority's holding will also have the effect of eliminating any and all assessment caps. Under the majority's new rule, compliance with section 305 (2) is only possible by applying a target assessment ratio low enough to make the caps vanish—that is, to make all assessment ratios equal. That, of course, is not what is required and was never the understanding of section 305 (2) (*see e.g.* Letter from Legal Counsel, Div of Veterans' Affairs at 1, Bill Jacket, L 1981, ch 1057 [portraying section 305 (2) as favorably affecting veterans because the effect of the prior law, which “mandate(d) full value assessment, ha(d) diluted veterans tax exemptions”]). The policy considerations underlying any caps are now written out of New York law.

With respect to class two properties, TENNY's complaint alleges that, in addition to inequality arising out of the application of assessment caps, the “City's property tax system . . . provides for ‘radically different tax treatment of equally valuable properties, depending on the use of the property and the form in which it is owned’ ” because the City “refuses to tax cooperatives or condominiums based on their actual market value.” This claim is based on a similarly flawed interpretation of section 305 (2), namely a disagreement with the City's method of assessing the market value of these properties. TENNY's complaint alleges that the City's application of RPTL 581 leads to taxation that is not reflective of “the actual market value of cooperatives and condominiums.” But RPTL 305 (2) does not speak to market values and, of course, cannot be read to mandate equality of market value determinations.⁴ The legislative history discussed above shows that section 581 was expected to result in a skewed determination of market values and was criticized for failing to remedy that issue. Once again, the majority seeks to eliminate perceived disparities by “interpreting” section 305 (2) to accomplish exactly what those who opposed the legislation's passage warned that it did not do.

Given the majority's approach, it is no surprise that the holding contains no analysis of either the statute or the complaint's allegations of a violation. Instead, the majority focuses on how TENNY has suggested a solution that would “achieve an align-

4. Ironically, both the petitioners and the dissent in *O'Shea* argued that “assessment” in this context could be interpreted as “market value” or “assessed value,” rather than “fractional assessment” (8 NY3d at 259, 261-262).

ment between assessed and market values that ameliorates disparate tax burdens” (majority op at 17; *see also* majority op at 19 [“It is possible to both prevent . . . an unanticipated large increase in . . . (a taxpayer’s) tax bill . . . while also accounting for increases in market values within the same class by adjusting the City’s fractional assessment rate”]). Perhaps it would. But TENNY’s suggestion that it has a better way of doing things is irrelevant to the validity of the cause of action. That policy argument is again for the legislature.

While a correct reading of section 305 (2) may seem ill-designed to provide any individual relief to the taxpayer, that is because it was never intended to do so. It set forth a mechanism for assessment. And although unaddressed by any party, I note that neither of the relevant RPTL provisions provide for a private right of action, and the only review process set out in the statute is for the review of individual assessments under RPTL 524 and article 7 tax certiorari proceedings (*see e.g. Matter of School Transparency Org. for Parents v Harpursville Cent. Sch. Dist. [“HCSO”]*, 50 Misc 3d 478, 487 [Sup Ct, Broome County 2015] [granting motion to dismiss where complaint alleged violation of RPTL 1318 because no private right of action for a violation of that statutory provision exists]). The recognized procedural device for challenging “not [plaintiffs’] individual tax assessments, but rather the method by which those assessments are calculated . . . [is] a CPLR article 78 proceeding,” pursuant to which the City’s policies would be reviewed under an arbitrary and capricious standard (*Matter of Adams v Welch*, 188 AD2d 784, 786 [3d Dept 1992] [citing cases]). Because, as the majority acknowledges in its dismissal of TENNY’s equal protection and due process claims (majority op at 27-30), the challenged statute and the City’s application of them serve rational legislative objectives, no such claim could survive. This flaw in TENNY’s complaint explains the obvious disconnect in the majority’s analysis. And not only do we allow such a claim to be brought here, but we uphold it based on an erroneous reading of the statute and our precedent. Moreover, as there is no way to comply with the majority’s new rule other than by lowering the target assessment ratio to a fraction so low that all caps are eliminated, the majority has essentially ordered the City to do so. To define a violation as the majority does is to find a violation.

Fair Housing Act

I would affirm the Appellate Division's order dismissing TENNY's FHA claims.

"[A] plaintiff bringing a disparate-impact claim [under the FHA] challenges practices that have a 'disproportionately adverse effect on minorities' and are otherwise unjustified by a legitimate rationale" (*Texas Dept. of Housing and Community Affairs v Inclusive Communities Project, Inc.*, 576 US 519, 524-525 [2015] [ICP], quoting *Ricci v DeStefano*, 557 US 557, 577 [2009]). Allegations of a causal connection between such practices and the alleged adverse effect are a requirement of all FHA claims. The majority relies on the US Supreme Court's holding in *ICP* to permit TENNY's claims to proceed without such a connection, but misconstrues both the procedural nature and substance of this holding. While the Supreme Court received *ICP* following a bench trial, that Court granted certiorari to answer "the question whether disparate-impact claims are cognizable under the FHA"—a question that inherently speaks to the pleading stage (*id.* at 528). And in holding that such claims are cognizable, the Court addressed the appropriate pleading standard, explaining that "a disparate-impact *claim* that relies on a statistical disparity must fail if the plaintiff cannot point to a defendant's policy or policies causing that disparity" and a "plaintiff who fails to allege facts at the pleading stage or produce statistical evidence demonstrating a causal connection cannot make out a *prima facie* case of disparate impact" (*id.* at 542-543 [emphasis added]).

Rather than improperly imposing a *prima facie* requirement at the pleading stage, this language explains that, because failings at the pleading stage lead inexorably to a failing at later procedural stages, courts must "examine with care" allegations of disparate impact with a focus on "prompt resolution" (*id.* at 543; *see also id.* at 544 ["Were standards for proceeding with disparate-impact suits not to incorporate at least the safeguards discussed here, then disparate-impact liability might displace valid governmental and private priorities"]). Confirming that "[r]ecognition of disparate-impact claims is consistent with the FHA's central purpose," the Supreme Court noted the importance of limiting disparate impact liability "in key respects that avoid the serious constitutional questions that might arise under the FHA, for instance, if such liability were imposed based solely on a showing of a statistical disparity"

because “[t]he FHA is not an instrument to force housing authorities to reorder their priorities” (*id.* at 539-540).

The majority ignores TENNY’s failure to allege the required connection between the tax policies it challenges and higher tax rates in majority-minority communities. The complaint shows that there is a “higher likelihood that a majority-white district will comprise properties that have experienced more rapid and substantial appreciation, as compared to a majority-minority district,” that “[w]hile more than 64% of renters are racial minorities, only a little more than 40% of condominium owners and 33% of cooperative owners are racial minorities,” and that the tax system “exacerbate[s] the financial burden imposed upon [minority-majority neighborhoods] and constrain[s] household mobility.” TENNY fails to allege, however, that the policies it challenges have caused these disparities. As the Appellate Division explained, TENNY “failed to allege sufficient concrete facts or produce statistical evidence showing that the application of the property tax system, as opposed to other factors, causes financial barriers that inhibit the ability of minority residents to own homes” or “sufficient concrete facts or . . . statistical evidence showing how the current property tax system contributes to higher rates of foreclosure or discourages the production of rental units in majority-minority communities” (182 AD3d at 167). Moreover, with respect to the perpetuation of segregation claim, the Appellate Division properly deemed “without basis” TENNY’s “assumption that New York City residents would elect to relocate to other neighborhoods if defendants applied the property tax system differently” (*id.*). The mere identification of higher tax rates in particular neighborhoods does not state a claim for disparate impact liability under the FHA (*see e.g. Moody v Related Cos., L.P.*, 620 F Supp 3d 51, 57-58 [SD NY 2022] [“Plaintiffs have alleged no facts from which the Court can infer that . . . race-neutral housing policies have a disproportionate impact on any particular racial or ethnic group” because “different outcomes based on wealth do not provide a basis for an FHA claim”]). Without a showing of more than “bare statistics” (majority op at 26), TENNY’s FHA claims fail to meet the pleading requirements established in *ICP*.

* * *

As the Supreme Court has noted, in the context of constitutional challenges to state tax policy, “[t]he broad discretion as

to classification possessed by a legislature in the field of taxation has long been recognized [and] [t]he passage of time has only served to underscore the wisdom of that recognition of the large area of discretion which is needed by a legislature in formulating sound tax policies” (*Regan v Taxation With Representation of Wash.*, 461 US 540, 547 [1983], quoting *Madden v Kentucky*, 309 US 83, 87-88 [1940]; see *Matter of Association of Bar of City of N.Y. v Lewisohn*, 34 NY2d 143, 156 [1974] [“The State has great freedom in selecting the subjects of taxation and in granting exemptions and neither the due process clause nor the equal protection clause imposes any rigid limitations upon the State’s power to devise reasonable tax policies.”]). Inequalities in the effect of tax policy raise serious issues and resolution of those issues will have far-reaching consequences. The majority removes the debate over tax policy and reform from its proper forum and eliminates existing policy choices enacted through that democratic process. Instead of all interested stakeholders participating through their elected representatives in an effort to balance competing interests, our new rule virtually guarantees that the parties here will craft new tax policy in a settlement conference room—a result all the more disturbing as it flows from our own error of law. I dissent.

CANNATARO, J. (dissenting in part). I agree with the majority as to the pleading standard to be applied to claims under the federal Fair Housing Act (FHA) (42 USC § 3601 *et seq.*) and the conclusion that plaintiff sufficiently pleaded its causes of action under that standard. At the pleading stage, those allegations are legally sufficient to state a claim that the City’s property tax policies disparately impact minority groups. I further agree with the majority’s dismissal of plaintiff’s federal and state constitutional claims.

However, I cannot join the majority’s holding with respect to plaintiff’s claims arising under RPTL 305 (2). I agree with Judge Garcia’s partial dissent that the majority’s analysis of the interplay between RPTL 305 (2) and related assessment cap provisions essentially reads the statutory caps out of existence, and that flaws in the tax scheme, if any, should be addressed through the legislative process. In addition, the majority opinion strongly suggests, if not outright holds, that there is a singular remedy required for the alleged RPTL violations. In my view, it is neither necessary nor appropriate to go that

far in the context of a CPLR 3211 (a) (7) motion to dismiss. Thus, with respect to the remaining, non-FHA causes of action, I agree that they should be dismissed for failing to state a cause of action, largely for the reasons stated in Judge Garcia's partial dissent.

Chief Judge WILSON and Judges TROUTMAN and HALLIGAN concur. Judge GARCIA dissents in part in an opinion, in which Judge SINGAS concurs. Judge CANNATARO dissents in part in a separate dissenting opinion.

Order modified, with costs awarded only to respondent State of New York, in accordance with the opinion herein and, as so modified, affirmed.

[241 NE3d 136, 216 NYS3d 584]

In the Matter of AARON MANOR REHABILITATION AND NURSING CENTER, LLC, et al., Respondents-Appellants, v HOWARD A. ZUCKER, as Commissioner of Health, et al., Appellants-Respondents.

Argued March 12, 2024; decided April 23, 2024

SUMMARY

CROSS-APPEALS, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered May 12, 2022. The Appellate Division affirmed a judgment (denominated decision and order/judgment) of the Supreme Court, Albany County (Kimberly A. O'Connor, J.; op 2021 NY Slip Op 34085[U] [2021]), entered in a combined proceeding pursuant to CPLR article 78 and action for declaratory judgment, which, among other things, had (1) granted so much of defendants/respondents' motion for summary judgment dismissing the third and fifth causes of action in the second amended petition/complaint; (2) denied so much of defendants/respondents' motion to dismiss the fourth cause of action; (3) granted the fourth cause of action to the extent of declaring that any change to plaintiffs/petitioners' Medicaid reimbursement rates to remove residual equity reimbursement, in accordance with Public Health Law § 2808 (20) (d), back to April 1, 2020, was improperly retroactive and violative of Public Health Law § 2807 (7); (4) granted the first cause of action to the extent of barring defendants/respondents from taking any action to implement the residual equity elimination clause retroactively back to April 1, 2020; and (5) denied the second cause of action as moot and/or academic.

Matter of Aaron Manor Rehabilitation & Nursing Ctr., LLC v Zucker, 205 AD3d 1193, modified.

HEADNOTES

Health — Medicaid Reimbursement Rates — Elimination of Residual Equity Reimbursement Factor without Notice Period

1. Defendant/respondent New York State Department of Health properly implemented, effective immediately without a notice period, adjusted Medicaid reimbursement rates for plaintiff/petitioner for-profit nursing homes (petitioners) in order to comply with amended Public Health Law § 2808 (20) (d), which mandated the removal of the residual equity reimbursement factor from the rate computation formula. The legislature clearly expressed its intent that the "elimination clause" be applied without delay,

and that the initial implementing rate-making was not subject to the usual 60-day advance notice requirement. While the mere inclusion of language that a law takes “immediate effect” is insufficient on its own to establish legislative intent, here the language is tethered to a specific start date chosen by the legislature, and the measures are declared “to have been in full force and effect” as of that date, thus making clear that it is the effective date of the affected rate periods. In other words, the legislature intended that the residual equity reimbursement factor could no longer be considered in calculating rates for payments on or after the specified date. Moreover, the 60-day requirement of Public Health Law § 2807 (7) is subject to exceptions, and must yield to a law that authorizes rate-making without the notification delay. Public Health Law § 2808 (20) (d) states that it applies “[n]otwithstanding any contrary provision of law, rule or regulation.” Because the 60-day advance notice requirement would frustrate the cost-saving purpose of Public Health Law § 2808 (20) (d), adopted in the midst of a fiscal crisis, it is contrary to the immediate implementation of section 2808 (20) (d). Moreover, there was no retroactive impact on petitioners’ substantive rights because they had not yet provided services and earned any reimbursement payment.

Health — Medicaid Reimbursement Rates — Elimination of Residual Equity Reimbursement Factor — Reasonable and Adequate Rates

2. In a hybrid CPLR article 78 proceeding and action for declaratory judgment by plaintiff/petitioner for-profit nursing homes (petitioners) challenging defendant/respondent (respondent) New York State Department of Health’s implementation of adjusted Medicaid reimbursement rates to comply with amended Public Health Law § 2808 (20) (d), which mandated the removal of the residual equity reimbursement factor from the rate computation formula, petitioners’ claim that the recalculated rates violated Public Health Law § 2807 (3) was properly dismissed. Respondent responded to a mandate from the legislature to eliminate one factor in determining Medicaid reimbursement rates. The elimination of that factor did not automatically result in a rate that failed to reimburse each of petitioners’ necessary costs. In other words, elimination of the residual equity reimbursement factor did not automatically establish that the adjusted rates overall were not “reasonable and adequate to meet the costs which must be incurred by efficiently and economically operated facilities” (Public Health Law § 2807 [3]). Moreover, the legislature eliminated the residual equity reimbursement factor as a cost-saving measure upon recommendation of a Medicaid redesign team, evincing the legislature’s determination that, even without this factor, rates could be adequate to cover necessary costs and still reap budget savings for the State. Respondent was bound to effectuate this legislative mandate by adjusting the rates of for-profit facilities across the board, and could not make up for the possible reduction in reimbursement payments by increasing the rates in some other way. Any such action would be contrary to the statute and ultra vires.

Health — Medicaid Reimbursement Rates — Elimination of Residual Equity Reimbursement Factor — Equal Protection

3. In a hybrid CPLR article 78 proceeding and action for declaratory judgment by plaintiff/petitioner for-profit nursing homes (petitioners) challenging defendant/respondent (respondent) New York State Department of Health’s implementation of adjusted Medicaid reimbursement rates to comply with amended Public Health Law § 2808 (20) (d), which mandated the removal of the residual equity reimbursement factor from the rate computation formula,

petitioners' claim that the recalculated rates violated their equal protection rights was properly dismissed. The residual equity reimbursement factor applied only to for-profits and was capped at half the capital cost reimbursement received in the facility's 40th year. Not-for-profits are reimbursed for their capital costs based on a per item depreciation analysis and are not subject to a cap amount. The equity versus depreciation distinction and the cap on the residual equity reimbursement factor sufficiently established that petitioners as for-profit nursing homes are not similarly situated to not-for-profit nursing homes. Moreover, petitioners and not-for-profit nursing homes are not similarly situated for purposes of the discrete equal protection claim because they have fundamentally different underlying economic purposes and incentives.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Constitutional Law §§ 363, 364; AM JUR 2d Welfare Laws §§ 33, 34.

McKINNEY'S, Public Health Law §§ 2807 (3), (7); 2808 (20) (d).

NY JUR 2d Constitutional Law §§ 817, 818, 833, 842; NY JUR 2d Public Welfare and Elder Assistance § 178.

ANNOTATION REFERENCE

See ALR Index under Equal Protection; Medicaid; Nursing and Convalescent Homes.

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POINTS OF COUNSEL

Letitia James, Attorney General, Albany (Kate H. Nepveu, Barbara D. Underwood, Jeffrey W. Lang and Victor Paladino of counsel), for appellants-respondents. The legislature clearly expressed its intent that the payment factor be retroactively eliminated. (*Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332; *Matter of Kaye v Whalen*, 56 AD2d 111, 44 NY2d 754; *Matter of State of New York v John S.*, 23 NY3d 326; *Matter of Melendez v Wing*, 8 NY3d 598; *Easley v New York State Thruway Auth.*, 1 NY2d 374; *Matter of Walsh v New York State Comptroller*, 34 NY3d 520; *Delgado v State of New York*, 39 NY3d 242; *Matter of Jewish Home & Infirmary of Rochester v Commissioner of N.Y. State Dept. of Health*, 84 NY2d 252.)

Harter Secrest & Emery LLP, Rochester (F. Paul Greene and Christina M. Deats of counsel), for respondents-appellants. I. The court below properly granted relief under plaintiffs' first and fourth causes of action. (*Sega v State of New York*, 60 NY2d 183; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Matter of Jewish Home & Infirmary of Rochester v Commissioner of N.Y. State Dept. of Health*, 84 NY2d 252; *Kimmel v State of New York*, 29 NY3d 386; *Alliance of Am. Insurers v Chu*, 77 NY2d 573; *Eastern Enterprises v Apfel*, 524 US 498; *James Sq. Assoc. LP v Mullen*, 91 AD3d 164, 21 NY3d 233; *Matter of State of New York v John S.*, 23 NY3d 326; *Matter of Melendez v Wing*, 8 NY3d 598; *Matter of Walsh v New York State Comptroller*, 34 NY3d 520.) II. A party moving for summary judgment must show that it is entitled to judgment as a matter of law, and that there is no genuine issue of material fact to be determined at trial. (*Sillman v Twentieth Century-Fox Film Corp.*, 3 NY2d 395; *Vega v Restani Constr. Corp.*, 18 NY3d 499; *Zuckerman v City of New York*, 49 NY2d 557; *Deleon v New York City Sanitation Dept.*, 25 NY3d 1102; *Alvarez v Prospect Hosp.*, 68 NY2d 320; *Smalls v AJI Indus., Inc.*, 10 NY3d 733; *Stone v Goodson*, 8 NY2d 8; *Weiss v Garfield*, 21 AD2d 156; *Johnson v Phillips*, 261 AD2d 269; *Lopez v Senatore*, 65 NY2d 1017.) III. Supreme Court improperly granted defendants summary judgment on plaintiffs' third cause of action under Public Health Law § 2807 (3). (*Westbrook v Village of Endicott*, 67 AD3d 1319; *Rengifo v City of New York*, 7 AD3d 773.) IV. The court below improperly granted defendants summary judgment on plaintiffs' fifth cause of action for violation of equal protection. (*Bay Park Ctr. for Nursing & Rehabilitation, LLC v Shah*, 111 AD3d 1227; *Lizardo v Denny's, Inc.*, 270 F3d 94; *Diaz v Minhas Constr. Corp., LLC*, 188 AD3d 812.) V. The remainder of plaintiffs' first cause of action should have been granted or trial on the issue of CPLR article 78 relief should have been held.

O'Connell and Aronowitz, P.C., Albany (Cornelius D. Murray of counsel), for New York State Health Facilities Association, Inc., amicus curiae. I. There is no rational basis for distinguishing between for-profit and not-for-profit facilities when reimbursing for capital costs. (*Bay Park Ctr. for Nursing & Rehabilitation, LLC v Shah*, 111 AD3d 1227.) II. After residual reimbursement had been eliminated from the rates, the State never undertook the analysis required by Public Health Law § 2807 (3) before certifying that the revised rates were adequate. III. The State failed to comply with the requirements of

prior notice, misinformed stakeholders as to the contents of the proposed amendment to Public Health Law § 2808 (20) (d), and misinformed the federal government with respect to whether stakeholders had an opportunity to comment on the proposed amendment as required by federal law. (*Maybee v State of New York*, 4 NY3d 415; *Matter of Beekman-Downtown Hosp. v Whalen*, 44 NY2d 124; *Anthony L. Jordan Health Corp. v Axelrod*, 67 NY2d 935.)

OPINION OF THE COURT

RIVERA, J.

On these cross-appeals, we reject petitioners' challenges to adjusted Medicaid reimbursement rates issued to comply with amended Public Health Law § 2808 (20) (d), which mandates the elimination of one component from the computation formula used to set rates of for-profit residential health care facilities, on or after April 1, 2020. The amendment and the adjusted rates do not result in a retroactive effect and petitioners failed to establish that the rates are not "reasonable and adequate to meet the costs" under Public Health Law § 2807 (3) or that the rates violate their equal protection rights. We hold that respondents may implement the recalculated rates for services provided as of April 2, 2020, and that petitioners' other claims were properly dismissed.

I.

Medicaid is "a joint federal-state program established pursuant to title XIX of the Social Security Act (42 USC § 1396 *et seq.*), [which] pays for medical care for those otherwise unable to afford it, including nursing home care for older people with low incomes and limited assets" (*Matter of Nazareth Home of the Franciscan Sisters v Novello*, 7 NY3d 538, 542 [2006]). These services are delivered through a system of both proprietary—or for-profit—and not-for-profit facilities (10 NYCRR 86-2.10, 86-2.19 [a], [b], [c]; 86-2.20, 86-2.21, 86-2.22). The New York State Department of Health and its Commissioner administer New York's Medicaid program, including setting reimbursement rates to nursing home providers (*see* Social Services Law § 363-a [1], [2]). Unless "otherwise authorized by law," or expressly exempted under Public Health Law § 2808 (11), the Department must set reimbursement rates in advance of the dates of service and notify facilities "at least sixty days prior to the beginning of an established rate period for which

the rate is to become effective,” as required by Public Health Law § 2807 (7).

Medicaid reimbursement rates for facilities are made up of two components: operating expenses and capital expenses, the latter of which includes interest for debt on capital expenses and the cost of real property and equipment. The Department calculates rates based on a complex multifactor formula that accounts for capital and noncapital expenses. After the expiration of a 40-year period, the Commissioner had discretion to approve a payment factor not to exceed half of the capital cost reimbursement received by the facility in the final year of its useful facility life (10 NYCRR 86-2.21 [e] [7]). Prior to the legislative action underlying this appeal, a “residual equity reimbursement factor” was part of the capital cost component of Medicaid rates of for-profit residential health care facilities. This factor was a return on the facility’s “equity,” as defined in the regulations, and was included in the facility’s annual capital costs during its useful facility life, which is defined by regulation as the 40-year period after commencement of a nursing home’s operations, with the opportunity for extension in certain circumstances that are not at issue here (*see* 10 NYCRR 86-2.10, 86-2.19, 86-2.20, 86-2.22). In contrast, the capital costs for not-for-profit facilities were and continue to be reimbursed based on depreciation, which the Attorney General describes as “reimbursement . . . divided over the estimated useful life of a given item” (*see* Not-For-Profit Corporation Law §§ 102 [a] [5]; 515 [a]; 10 NYCRR 86-2.19 [a], [b], [c]).

On April 3, 2020, in the wake of skyrocketing Medicaid costs in New York that contributed to a \$6 billion budget gap, the legislature passed the 2020-2021 budget law which included Medicaid cost reduction measures (Jesse McKinley, *The Governor and the \$6 Billion Budget Gap*, NY Times, Mar. 10, 2020, <https://www.nytimes.com/2020/03/10/nyregion/budget-medicaid-cuomo-ny.html> [last accessed Mar. 22, 2024]; Luis Ferré-Sadurní & Jesse McKinley, *N.Y. Hospitals Face \$400 Million in Cuts Even as Virus Battle Rages*, NY Times, Mar. 30, 2020, <https://www.nytimes.com/2020/03/30/nyregion/coronavirus-hospitals-medicaid-budget.html> [last accessed Mar. 22, 2024]). On the recommendation of the Medicaid Redesign Team II, the legislature reduced the capital cost component 5% for all nursing homes and amended Public Health Law § 2808 (20) (d) to eliminate the residual equity reimbursement factor

(“the elimination clause”).¹ The legislature mandated that both measures “shall take effect immediately and shall be deemed to have been in full force and effect on and after April 1, 2020” (L 2020, ch 56, § 1, part NN, § 3). The legislature further specified that the elimination clause applies to rate periods as of this same date, “[n]otwithstanding any contrary provision of law, rule or regulation” (Public Health Law § 2808 [20] [d]).

The Department determined that section 2808 (20) (d), as amended, required adjustment of Medicaid rates and accordingly filed a State Plan Amendment that removed residual equity payments on or after April 2, 2020. Upon approval by the federal Centers for Medicare and Medicaid Services, the new rates were uploaded to the State payment system. On August 7, 2020, by letter issued to for-profit facilities, the Department announced the new rates, effective as of April 2, 2020.

Petitioners, 116 for-profit nursing homes, filed this hybrid declaratory judgment action and CPLR article 78 proceeding against State respondents—the Department and its Commissioner and the Director of the Budget—challenging the Department’s implementation of the recalculated rates without the residual equity reimbursement factor. Simultaneously, petitioners moved for a preliminary injunction to prevent respondents from enforcing the equity elimination clause. Supreme Court granted petitioners’ motion for a preliminary injunction against enforcement of the clause pending a final determination of the proceeding. Petitioners thereafter filed an amended complaint which, among other things, sought an order barring enforcement of the elimination clause and a declaration that implementation of the clause violates: (1) Public Health Law § 2807 (7)’s prohibition on retroactive rate-making and 60-day advance notice requirement; (2) Public Health Law § 2807 (3)’s requirement that reimbursement rates be “reasonable and adequate to meet the costs which must be incurred by efficiently and economically operated facilities”; and (3) petitioners’ state and federal equal protection rights by treat-

1. The Medicaid Redesign Team II was tasked with developing recommendations to reduce Medicaid costs and “restore financial stability” to the Medicaid program by achieving \$2.5 billion in savings. The team proposed a series of legislative changes for the 2020 budget, including the 5% reduction and elimination of residual equity reimbursement, that would reduce Medicaid expenditures (MRT II Executive Summary of Proposals, https://www.health.ny.gov/health_care/medicaid/redesign/mrt2/docs/2020-03-19_executive_summary_of_proposals.pdf [Mar. 19, 2020]).

ing them differently from similarly-situated non-profit nursing homes.

Following joinder of issue, respondents moved for summary judgment dismissing the declaratory judgment claims and to reargue or modify the preliminary injunction.

Supreme Court, among other things, (1) granted so much of respondents' motion for summary judgment dismissing the Public Health Law § 2807 (3) and equal protection causes of action as lacking merit; (2) denied so much of respondents' motion to dismiss the cause of action that the elimination clause violated Public Health Law § 2807 (7)'s prohibition on retroactive rate-making and 60-day advance notice requirements, because the court found the elimination clause was illegally retroactive; (3) granted the same cause of action to petitioners to the extent of declaring that any change to petitioners' Medicaid reimbursement rates in accordance with Public Health Law § 2808 (20) (d), back to April 1, 2020, is improperly retroactive and violative of Public Health Law § 2807 (7); and (4) granted the cause of action to petitioners seeking to bar respondents from implementing the elimination clause to the extent of barring any action to implement retroactively to April 1, 2020 (2021 NY Slip Op 34085[U] [Sup Ct, Albany County 2021]). The court also denied respondents leave to reargue or modify the preliminary injunction determination.

The Appellate Division affirmed, upholding Supreme Court's partial grant of respondents' motion for summary judgment on the ground that petitioners failed to raise a material issue of fact in response to respondents' initial showing that the rates were lawful, and agreed with petitioners that the adjusted rates were improperly applied retroactively (205 AD3d 1193 [3d Dept 2022]). We granted the parties' motions for leave to appeal (39 NY3d 906 [2023]; 39 NY3d 908 [2023]).

II.

Respondents' Appeal

Respondents argue that the advance notice requirements do not apply to retroactive rate adjustments that are authorized by the legislature; that the plain language of Public Health Law § 2808 (20) (d) exempts them from the notice requirements; and that the phrasing of "for rate periods on and after" implies the changes applied to the current rate period, rather than the next calendar year's rate period as argued by petition-

ers (Public Health Law § 2808 [20] [d], L 2020, ch 56, § 1, part NN, § 2). Petitioners respond that the phrase “rate period” implies calendar year, making the earliest effective date with notice January 1, 2021; that Public Health Law § 2807 (7) barred retroactive rate changes; and that there was no clear expression of retroactive intent in the equity elimination clause that superseded these notice requirements.

A.

We must first determine whether the Department acted in violation of the legislature’s intent when it announced recalculated rates in August 2020, for services provided on or after April 2, 2020. To decide that issue we look first to “the plain language of the statute, which is the clearest indicator of legislative intent” (*Matter of T-Mobile Northeast, LLC v DeBellis*, 32 NY3d 594, 607 [2018], citing *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]).

[1] We conclude that the legislature clearly expressed its intent that the elimination clause be applied without delay, and that the initial implementing rate-making was not subject to the usual 60-day advance notice requirement. Public Health Law § 2808 (20) (d), enacted on April 3, 2020, states that the elimination clause applies to “rate periods on and after April first, two thousand twenty” (L 2020, ch 56, § 1, part NN, § 2). The legislature also declared that the Medicaid cost-reduction measures in the 2020-2021 budget bill—the 5% cut affecting all facilities and the targeted elimination clause—“shall take effect immediately and shall be deemed to have been in full force and effect on and after April 1, 2020,” thus further evincing the legislature’s intent that there be no delay in reducing the Medicaid rates (L 2020, ch 56, § 1, part NN, § 3). While the mere inclusion of language that a law takes “immediate effect” is insufficient on its own to establish legislative intent (*Gottwald v Sebert*, 40 NY3d 240, 259 [2023]), here the language is tethered to a specific start date chosen by the legislature, and the measures are declared “to have been in full force and effect” as of that date, thus making clear that April 1st is the effective date of the affected rate periods. In other words, the legislature intended that the residual equity reimbursement factor could no longer be considered in calculating rates for payments on or after April 1st.

Petitioners’ assertion that the elimination clause is subject to the Public Health Law § 2807 (7) 60-day notice requirement is

belied by the statutory framework. As the Court has previously observed, and contrary to petitioners' argument, the "‘notwithstanding’ clause is plainly understood and clearly supersedes any inconsistent provisions of state law" (*Matter of State of New York v John S.*, 23 NY3d 326, 341 [2014] [emphasis and some internal quotation marks omitted]). Public Health Law § 2807 (7) is subject to exceptions, including those set forth in Public Health Law § 2808 (11) which provides, in turn, that the 60-day requirement "shall not apply. . . as otherwise authorized by law." Thus, the requirement of Public Health Law § 2807 (7) must yield to a law that authorizes rate-making without the notification delay. Public Health Law § 2808 (20) (d) states that it applies "[n]otwithstanding any contrary provision of law, rule or regulation." Because the 60-day advance notice requirement would frustrate the cost-saving purpose of Public Health Law § 2808 (20) (d), adopted in the midst of a fiscal crisis, it is contrary to the immediate implementation of Public Health Law § 2808 (20) (d). Therefore, section 2808 (20) (d) eliminates the advance notice requirement.

Petitioners argue that the use of the term "rate periods" must mean that the factor can no longer be considered for periods that run at the earliest from January 1, 2021, because that is the month when rates are typically made effective following the 60-day rate schedule announcement in November of the prior year. We reject what is essentially a customary practice argument since the legislature can, as it has here, choose a different course. In any case, the petitioners' argument fails on its own terms because, as respondents counter, at any time rates may be adjusted retroactively in certain enumerated circumstances, including to account for changes in conditions or findings related to costs and expenses pursuant to an audit (Public Health Law § 2808 [11]). Thus, the legislature knew when it amended Public Health Law § 2808 (20) (d) that a rate period—meaning the time period to which the rate applies—may encompass something less than a full year and need not start on January 1st.

B.

The courts below and the petitioners mistakenly characterize the Department's recalculated rates as an impermissible retroactive application of Public Health Law § 2808 (20) (d). A statute, and its administrative implementation, have "retroactive effect if '[they] would impair rights a party possessed when

[they] acted, increase a party's liability for past conduct, or impose new duties with respect to transactions already completed,' thus impacting 'substantive' rights" (*Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332, 365 [2020], citing *Landgraf v USI Film Products*, 511 US 244, 278-280 [1994]). "[T]he date that legislation is to take effect is a separate question from whether the statute should apply to claims and rights then in existence" (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]). Critically, "[a] statute does not operate 'retrospectively' merely because it is applied in a case arising from conduct antedating the statute's enactment" (*Gottwald v Sebert*, 40 NY3d 240, 258 [2023], quoting *Landgraf*, 511 US at 269).

Here, with the exception of, at most, the first two days in April, the residual equity reimbursement factor was eliminated for services provided on and after the enactment date of section 2808 (20) (d).² Accordingly, the law and recalculated rates did not "impair rights a party possessed when [they] acted, increase a party's liability for past conduct, or impose new duties with respect to transactions already completed" (*Regina*, 35 NY3d at 365). In other words, there was no retroactive impact on petitioners' substantive rights because petitioners had not yet provided services and earned any reimbursement payment.³

The *Alliance of Am. Insurers v Chu* test that requires consideration of the "fairness to the parties, reliance on pre-existing law, the extent of retroactivity and the nature of the public interest served by the law" also supports the conclusion that there is no violation from the Department's recalculation of rates without the capital cost factor for services provided on and after April 2, 2020 (77 NY2d 573, 586 [1991]). Rate changes

2. The two-day period is legally insignificant and does not drive our retroactivity analysis here where petitioners are concerned with limiting the reduction in their rates for periods after the amendment's effective date and before what they claim is the requisite 60-day advance notice requirement.

3. Petitioners' and the Appellate Division's reliance on *Matter of Jewish Home & Infirmary of Rochester v Commissioner of N.Y. State Dept. of Health* (84 NY2d 252, 257 [1994]) is similarly misplaced. That case is distinguishable because there the Department, and not the legislature, attempted to make rate changes retroactively, which we held was prohibited by Public Health Law § 2807 (7) (*see id.* at 260-262). Here, by contrast, the legislature authorized prospective rate changes, and because the rate changes were authorized by the legislature, the notice requirements of section 2807 (7) cannot thwart the legislature's clearly expressed intent.

may occur at any time during the year for any number of reasons, and even petitioners do not argue that the legislature or the Department can never adjust rates already set, thus minimizing any unfairness to petitioners or reliance on rates for services provided prior to the passage of the elimination clause. Indeed, the Department did not seek to claw back rates for services rendered before the April 2, 2020 date; thus, with the exception of one day, the recalculation is limited to services rendered as of the effective date of the law. Finally, the millions in savings achieved by the rate changes required by the elimination clause serves the public interest in reducing Medicaid costs. Accordingly, it was proper for the Department to incorporate the impact of the elimination clause into its rates, effective immediately without a notice period.

III.

Petitioners' Cross-Appeal

Petitioners challenge the dismissal of the Public Health Law § 2807 (3) and equal protection claims. Respondents counter that petitioners failed to plead that the rates do not cover necessary costs, and that petitioners are not similarly-situated to non-profit nursing homes, as would be necessary to assert an equal protection claim.

Summary judgment should be granted only when it “clearly appear[s] that no material and triable issue of fact is presented” (*Forrest v Jewish Guild for the Blind*, 3 NY3d 295, 314-315 [2004] [internal quotation marks and citation omitted]). “[T]he proponent of a summary judgment motion must make a prima facie showing of entitlement to judgment as a matter of law, tending sufficient evidence to demonstrate the absence of any material issues of fact” (*Matter of New York City Asbestos Litig.*, 33 NY3d 20, 25-26 [2019], quoting *Alvarez v Prospect Hosp.*, 68 NY2d 320, 324 [1986]). We conclude that respondents satisfied their burden on summary judgment and petitioners failed to identify a genuine issue of material fact.

[2] Public Health Law § 2807 (3) provides that the Department of Health Commissioner is required to certify to the Director of the Budget that the proposed Medicaid reimbursement rates “are reasonable and adequate to meet the costs which must be incurred by efficiently and economically operated facilities.” The provision requires reimbursement for only necessary costs, not actual or all costs (*see Matter of Nazareth*

Home of the Franciscan Sisters v Novello, 7 NY3d 538, 546 [2006]). Petitioners' claim fails because it contests the elimination of one factor in the determination of reimbursement rates without establishing that the readjusted rates fall below the legislative standard.⁴ Petitioners essentially contend that the residual equity reimbursement factor was necessary to provide sufficient reimbursement under the law and, without that reimbursement, the rates cannot be adequate. Here, the Department responded to a mandate from the legislature to eliminate one factor in determining Medicaid reimbursement rates. The elimination of that factor does not, as petitioners would have it, automatically result in a rate that fails to reimburse each of these petitioners' necessary costs. In other words, elimination of the residual equity reimbursement factor does not automatically establish that the adjusted rates overall are not "reasonable and adequate to meet the costs which must be incurred by efficiently and economically operated facilities."

Moreover, the legislature eliminated the residual equity reimbursement factor as a cost-saving measure upon recommendation of the Medicaid Redesign Team II, evincing the legislature's determination that, even without this factor, rates could be adequate to cover necessary costs and still reap budget savings for the State (see *The Governor and the \$6 Billion Budget Gap*, NY Times; *NY Hospitals Face \$400 Million in Cuts*, NY Times). The Department was bound to effectuate this legislative mandate by adjusting the rates of for-profit facilities across the board, and could not, as petitioners suggest, make up for the possible reduction in reimbursement payments by increasing the rates in some other way. Any such action would be contrary to the statute and ultra vires.

[3] Petitioners' equal protection claim is similarly without merit. "[T]he constitutional guarantee of equal protection is that all persons similarly situated must be treated alike" (*Matter of State of New York v Myron P.*, 20 NY3d 206, 211 [2012] [internal quotation marks omitted]). The residual equity reimbursement factor applied only to for-profits and was capped at half the capital cost reimbursement received in the facility's 40th year. Not-for-profits are reimbursed for their

4. Petitioners, like any other residential health care facility, may seek administrative individual rate adjustments based on the specific facts of each of the facilities' circumstances, including their necessary costs, and if they are denied relief, they may challenge those individual determinations based on the facts specific to their case (42 USC § 1983; 10 NYCRR 86-2.13 [a], [b]).

capital costs based on a per item depreciation analysis and are not subject to a cap amount. The equity versus depreciation distinction and the cap on the residual equity reimbursement factor sufficiently establish that petitioners as for-profit nursing homes are not similarly situated to not-for-profit nursing homes. Moreover, petitioners and not-for-profit nursing homes are not similarly situated for purposes of this discrete equal protection claim because, as the Appellate Division noted, they have fundamentally different “underlying economic purposes and incentives” (205 AD3d at 1198, quoting *Bay Park Ctr. for Nursing & Rehabilitation, LLC v Shah*, 111 AD3d 1227, 1229 [3d Dept 2013]).

IV.

Accordingly, the order of the Appellate Division should be modified, with costs to defendants/respondents, in accordance with this opinion and, as so modified, affirmed.

Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order modified, with costs to defendants/respondents, in accordance with the opinion herein and, as so modified, affirmed.

[241 NE3d 770, 217 NYS3d 1]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DARRYL
WATTS, Appellant.

Argued January 10, 2024; decided February 22, 2024

SUMMARY

APPEAL, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 29, 2022. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Diane R. Kiesel, J.; op 58 Misc 3d 552 [2017]), which had adjudicated defendant a risk level two sexually violent offender pursuant to the Sex Offender Registration Act.

People v Watts, 210 AD3d 595, affirmed.

HEADNOTES**Crimes — Sex Offenders — Sex Offender Registration Act — Due Process — Offender's Competency**

1. When there is a possibility that a sex offender may lack capacity to fully comprehend a Sex Offender Registration Act (SORA) (Correction Law art 6-C) risk-level assessment proceeding, due process does not preclude a court from determining the offender's risk level because the many safeguards already provided under SORA minimize the risk of inaccurate risk-level classification and adequately balance the competing private and State interests. Accordingly, where defendant was represented by counsel and provided the other protections listed in Correction Law article 6-C, his due process rights were not violated when Supreme Court declined to order a competency hearing before adjudicating him a level two sex offender. Although the liberty interest at stake was not to be discounted, it was more limited than the interest threatened by a criminal proceeding. Defendant had not demonstrated that his proposed safeguard—which amounted to exempting incompetent registrants from SORA classification for the duration of their disability—would meaningfully reduce inaccurate risk-level classifications, even if the robust existing procedures left gaps through which a rare incompetent registrant might fall. Even admitting the possibility of an initial misclassification, defendant could still seek modification of his risk level on an annual basis. Finally, beyond the obvious financial and administrative costs associated with the additional proposed safeguard, the State also has a compelling interest in protecting its citizens by promptly notifying the public of registrants who pose a heightened threat of recidivism. Delaying the classification of incompetent registrants threatens that interest, in that it risks that some dangerous registrants will be released into the community for lengthy periods without accurate risk-level designations or public notice.

Crimes — Sex Offenders — Sex Offender Registration Act — Classification of Civilly Confined Offender

2. The Sex Offender Registration Act (SORA) (Correction Law art 6-C) does not require courts to indefinitely postpone SORA classification until a

registrant's release from civil confinement, and doing so would inject a degree of uncertainty into the classification process not contemplated or intended by the legislature. Accordingly, a SORA classification hearing which adjudicated defendant a level two sex offender while he remained civilly committed to an Office of Mental Health psychiatric facility pursuant to Mental Hygiene Law article 9 was not premature. SORA's plain text and structure authorize risk-level determinations "[30] calendar days prior" to a registrant's release from incarceration following the completion of their prison sentence, regardless of pending civil commitment proceedings (*see* Correction Law § 168-n [2]). Unlike a registrant's release from incarceration, a registrant's release from civil confinement does not typically occur on a date scheduled far in advance: it is premised on changing conditions and can occur abruptly or on short notice (*see e.g.* Mental Hygiene Law §§ 9.33, 9.35). Given that unpredictability, defendant had not shown that it would be possible for the Board of Examiners of Sex Offenders, district attorneys' offices, and courts to reliably comply with the carefully developed SORA classification process—instituted to protect both the public and registrants' due process rights—if the various deadlines and milestones in that process were to be measured from release from civil confinement.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Mentally Impaired Persons §§ 131, 134.
NY JUR 2d Penal and Correctional Institutions §§ 34, 382,
396, 397, 402.

ANNOTATION REFERENCE

See ALR Index under Incompetent or Insane Persons;
Sex Offender Registration and Notification.

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POINTS OF COUNSEL

Twyla Carter, *The Legal Aid Society*, New York City (*Rachel L. Pecker* of counsel), for appellant. Holding a Sex Offender Registration Act (Correction Law art 6-C) hearing when a registrant lacks mental competency violates a registrant's constitutional rights, and thus, where there is evidence that a registrant lacks competency, fundamental fairness precludes the court from proceeding without first ordering a competency determination. (US Const Amends VI, XIV; NY Const, art I, § 6.) (*People v David W.*, 95 NY2d 130; *People v Baxin*, 26 NY3d 6; *Doe v Pataki*, 3 F Supp 2d 456; *People v Lashway*, 25 NY3d

478; *People v Mingo*, 12 NY3d 563; *People v Gillotti*, 23 NY3d 841; *Mathews v Eldridge*, 424 US 319; *Doe 1 v Marshall*, 367 F Supp 3d 1310; *Drope v Missouri*, 420 US 162.)

Darcel D. Clark, District Attorney, Bronx (*Joshua P. Weiss* and *Yael V. Levy* of counsel), for respondent. I. Because a Sex Offender Registration Act (Correction Law art 6-C) risk-level classification hearing is a civil proceeding intended to protect the public rather than to punish the sex offender, defendant had no statutory or due process right to a competency assessment prior to the hearing. (*LaRossa, Axenfeld & Mitchell v Abrams*, 62 NY2d 583; *People v Ramos*, 85 NY2d 678; *Mathews v Eldridge*, 424 US 319; *Doe v Pataki*, 3 F Supp 2d 456; *People v Windham*, 10 NY3d 801; *People v David W.*, 95 NY2d 130; *People v Williams*, 19 NY3d 100; *People v Finnegan*, 85 NY2d 53; *People v Kupprat*, 6 NY2d 88; *Matter of Town of Riverhead v New York State Bd. of Real Prop. Servs.*, 5 NY3d 36.) II. The Sex Offender Registration Act's (Correction Law art 6-C) plain language, legislative history, and overall scheme confirm that a court's duty to conduct the hearing is triggered upon an offender's release from incarceration. (*People v Staley*, 104 AD3d 583; *People v Lashway*, 25 NY3d 478; *People v Sherard*, 73 AD3d 537; *People v Rodriguez*, 102 AD3d 457; *People v Gillette*, 189 AD3d 512; *People v Norris*, 168 AD3d 1003; *People v Blum*, 166 AD3d 571; *People v Gordon*, 147 AD3d 988; *Matter of Charles B. v State of New York*, 192 AD3d 1583; *Matter of Christopher PP. v State of New York*, 151 AD3d 1334.)

Natalie M. Chin, Disability Rights and Justice Clinic, Washington Square Legal Services, Inc., New York City, for Mental Hygiene Legal Service, amicus curiae. I. Registrants have significant liberty interests that require protections under the due process clause of the New York and United States Constitutions. (*Doe v Pataki*, 3 F Supp 2d 456; *Matter of Lopez v Evans*, 25 NY3d 199.) II. Registrants' liberty interests are protected by the Due Process Clause of the New York and United States Constitutions and New York's Correction Law. (*People ex rel. Garling v Van Allen*, 55 NY 31; *Ajaeb v Ajaeb*, 276 App Div 1094, 301 NY 605; *Lunney v Graham*, 91 AD2d 592; *Carlisle v County of Nassau*, 64 AD2d 15; *Shepherd v Swatling*, 36 Misc 2d 881; *Matter of Daniel Aaron D.*, 49 NY2d 788; *People v Richetti*, 302 NY 290; *People v Johnson*, 1 NY3d 302; *People v Bradley*, 8 NY3d 124; *Crawford v Washington*, 541 US 36.) III. Participation by a registrant in Sex Offender Registration Act (Correction Law art 6-C) hearings is required

given the dynamic and variable factors at issue. (*People ex rel. Rivera v Superintendent, Woodbourne Corr. Facility*, 40 NY3d 307; *People v Gillotti*, 23 NY3d 841; *People v Crandall*, 90 AD3d 628; *People v Krull*, 208 AD3d 163; *People v Palmer*, 20 NY3d 373; *People v Cousin*, 209 AD3d 1047; *People v Snyder*, 175 AD3d 1331; *People v S.G.*, 4 Misc 3d 563; *People v Santiago*, 137 AD3d 762; *People v Marsh*, 116 AD3d 680.) IV. While the remedy may lie with the Legislature, this Court may take necessary interim steps to ensure that Sex Offender Registration Act (Correction Law art 6-C) proceedings comport with due process. (*People v Schaffer*, 86 NY2d 460; *People v Lally*, 19 NY2d 27; *People v Mendez*, 1 NY3d 15; *People v Gensler*, 72 NY2d 239; *People v Armlin*, 37 NY2d 167; *Tennessee v Lane*, 541 US 509.)

OPINION OF THE COURT

CANNATARO, J.

The Sex Offender Registration Act (SORA) (Correction Law art 6-C) requires that every person convicted of a sex offense be given a risk-level classification corresponding to their assessed likelihood of recidivism and potential danger to the community. This risk level, in turn, determines the scope of information available to the public concerning the offender. To protect against erroneous classification, judicial determination of an offender's risk level can occur only after the offender has been provided notice, counsel, disclosure of relevant information, and an opportunity to object and present evidence at a hearing, at which the People must prove the appropriateness of the classification by clear and convincing evidence. An offender's risk level is also subject to re-evaluation on an annual basis.

The primary question on this appeal is whether due process precludes a court from determining a sex offender's risk level when there is a possibility that the offender—although represented by counsel and provided the other protections listed above—may lack capacity to fully comprehend risk-level assessment proceedings. We hold that the many safeguards already provided under SORA minimize the risk of inaccurate risk-level classification and adequately balance the competing private and State interests in these civil proceedings.

I.

In July 2011, defendant Darryl Watts was arrested and charged with various offenses, including sexual abuse in the

first degree and assault in the second degree, after he knocked a 66-year-old woman to the ground and attempted to rape her (*see* Penal Law §§ 120.05 [12]; 130.65 [1]). Defendant, who suffers from severe schizophrenia and psychosis, “was responding to internal voices” and claimed that “the victim was chosen for him.” Six days after his arrest, a competency examination was conducted pursuant to CPL article 730 and Supreme Court determined that defendant was not mentally fit to stand trial. He was therefore placed in the custody and care of the Office of Mental Health (OMH), where he remained for more than five years and underwent six additional competency examinations.¹ In February 2017, after he was examined for a seventh time and found competent to stand trial, defendant pleaded guilty to sexual abuse and assault. The court sentenced him to a determinate term of incarceration of six years, followed by 10 years of postrelease supervision.

Defendant’s sexual abuse conviction subjected him to the registration and classification requirements of SORA (*see* Correction Law §§ 168-a [3] [a]; 168-d [1] [a]; 168-l [6]). In anticipation of his 2017 release from incarceration, the Board of Examiners of Sex Offenders (the Board) prepared a case summary and risk assessment instrument (RAI) recommending that defendant be classified as a level two (moderate risk) sex offender. On the date initially scheduled for the SORA classification hearing, defendant’s new attorney requested and was granted an adjournment to familiarize herself with the case. Because he was due to be released imminently, the court gave defendant a provisional level two designation “without prejudice to reconsideration,” on consent of the parties.

At the next hearing date, counsel informed the court that defendant had been transferred and confined to an OMH facility for treatment pursuant to Mental Hygiene Law article 9. His mental state was unstable and deteriorating such that OMH staff did not feel “comfortable” transporting him to court. Based on conversations with her client and OMH staff, counsel expressed concern that defendant would not be able to understand the nature of the SORA classification hearing or the requirements of the Act. Relying on the language of SORA, counsel argued that the hearing should be adjourned until de-

1. In July 2012, defendant was found fit to proceed and was arraigned. But in April 2013, he was again declared unfit and criminal proceedings paused. Subsequent competency examinations conducted in November 2013, November 2014, and April 2016 reaffirmed his unfitness.

fendant's release into the community. Alternatively, counsel argued that "[a]lthough [defendant] doesn't have a full set of due process rights at [a SORA classification] hearing, he does have some due process rights," and therefore asked the court to order a competency examination before proceeding with classification. The court briefly adjourned the hearing without deciding these issues.

At the next hearing date, defendant was unable to appear due to a conflicting court appearance relating to his article 9 confinement. Although Supreme Court expressed its view that a competency hearing was not required to proceed with SORA risk-level classification, it granted another adjournment to give defendant an opportunity to attend in person.

The risk assessment hearing finally took place in October 2017. Defendant was physically present, but his attorney maintained that he was unable to understand the nature of the proceedings, the RAI, or his obligations under SORA, and reiterated her request for a competency hearing. Counsel further argued that it was premature to conduct the hearing because defendant was still confined to an OMH facility and would not be released into the community for an indefinite period of time. Citing *People v Parris* (153 AD3d 68 [2d Dept 2017], *lv denied* 30 NY3d 904 [2017]), the court rejected defense counsel's argument that due process requires a competency examination prior to a SORA classification hearing. The court then proceeded with the hearing and formally adjudicated defendant a level two sex offender (*see* 58 Misc 3d 552 [Sup Ct, Bronx County 2017]). The Appellate Division unanimously affirmed (*see* 210 AD3d 595 [1st Dept 2022]). Defendant appeals to this Court as of right based on the existence of a substantial constitutional question (*see* 39 NY3d 1103 [2023]; CPLR 5601 [b] [1]).

II.

The fundamental principle at the core of the Constitution's due process guarantee "is that when the State seeks to take life, liberty or property from an individual, the State must provide effective procedures that guard against an erroneous deprivation" (*People v David W.*, 95 NY2d 130, 136 [2000]; *see* US Const, Amend XIV, § 1). "The bedrock of due process is notice and opportunity to be heard" (*David W.*, 95 NY2d at 138). However, the United States Supreme Court has made clear that due process is a flexible requirement, cautioning that "not

all situations calling for procedural safeguards call for the same kind of procedure” (*Morrissey v Brewer*, 408 US 471, 481 [1972]; see also *Medina v California*, 505 US 437, 453 [1992]).

This Court has recognized that SORA classification proceedings are civil and not punitive in nature. Thus, although the State must provide “more than mere summary process” at a classification hearing, the safeguards required “are not as extensive as those required in a plenary criminal or civil trial” (*People v Baxin*, 26 NY3d 6, 10 [2015] [internal quotation marks omitted]). Determination of whether a particular safeguard must be provided requires consideration of three factors: (1) the private interest that will be affected by the official action; (2) the risk of an erroneous deprivation of such interest through the procedures used, and the probable value, if any, of the additional or substitute procedural safeguard; and (3) the government’s interest, including the function involved and the fiscal and administrative burdens that the additional or substitute procedural requirement would entail (*Mathews v Eldridge*, 424 US 319, 334-335 [1976]; *David W.*, 95 NY2d at 136-137).

We begin, then, with consideration of the private interest at stake. This Court has recognized that SORA registrants have a substantial interest in not being stigmatized by classifications that overstate their danger to the community (*David W.*, 95 NY2d at 137; see also *People v Knox*, 12 NY3d 60, 66-67 [2009]; *Doe v Pataki*, 3 F Supp 2d 456, 469 [SD NY 1998]). “More than ‘name calling by public officials,’ [a SORA risk level] ‘is a determination of status’ that can have a considerable adverse impact on an individual’s ability to live in a community and obtain or maintain employment” (see *David W.*, 95 NY2d at 137, quoting *Paul v Davis*, 424 US 693, 703 [1976]). Specifically, when a registrant is classified as a level two (moderate risk) or level three (high-risk) sex offender, they must register for life, and information about the registrant appears in a public Internet directory (Correction Law §§ 168-b [6]; 168-l [6] [b], [c]; 168-q). Classification as a level three sex offender also subjects a registrant to more periodic verification requirements (see *id.* § 168-b [1] [b]), and to the residency restrictions of the Sexual Assault Reform Act (SARA) (Executive Law § 259-c [14]; see *People ex rel. Rivera v Superintendent, Woodbourne Corr. Facility*, 40 NY3d 307, 311 [2023]).

Thus, SORA risk-level classification implicates a private liberty interest and triggers due process safeguards (see *David*

W., 95 NY2d at 138). Nonetheless, this liberty interest does not rise to the level of a fundamental right or trigger a requirement that the State shield a sex offender from the social stigma flowing from their criminal conviction or an accurate assessment of their risk to the community (see *Vega v Lantz*, 596 F3d 77, 82 [2d Cir 2010]; *Knox*, 12 NY3d at 67). For that reason, although the liberty interest at stake here is not to be discounted, it is more limited than the interest threatened by a criminal proceeding, where an innocent person may be inaccurately branded a criminal and subjected not only to unjust stigma but the complete curtailment of liberty through a prison sentence.

The second factor to consider is the risk of an erroneous deprivation of the private liberty interest as a result of the procedures used, and the probable value, if any, of additional or substitute procedural safeguards (*David W.*, 95 NY2d at 136, citing *Mathews*, 424 US at 335). Although SORA classification is a civil rather than criminal undertaking, courts have required and this State has long provided a panoply of safeguards aimed at protecting registrants from erroneous SORA classifications (see *Doe v Pataki*, 3 F Supp 2d at 471-472; see also Budget Rep on Bills, Bill Jacket, L 1999, ch 453 at 4 [amending SORA to cure the due process deficiencies identified in *Pataki*]). SORA risk levels are based on factors developed and applied in the first instance by an agency practiced in evaluating such matters (the Board), and then tested at an adversarial hearing before a judge (Correction Law §§ 168-l [5]-[6]; 168-n [2]); the registrant is entitled to an attorney at the hearing, including one appointed by the court if the registrant is unable to afford an attorney of their own choosing (*id.* § 168-n [3]); the registrant and counsel must be provided advance notice of the hearing, the Board's recommendation, its bases, and any contrary assessment by the People sufficiently in advance to allow a meaningful opportunity to prepare a defense (*id.* § 168-n [2]-[3]); the registrant is entitled to pre-hearing discovery of material relied upon by the Board in making its recommendation (*id.* § 168-n [3]); the People must prove, by clear and convincing evidence, that the assigned classification is warranted (*id.*); the registrant must have the opportunity to appeal the classification (*id.*); and the registrant can seek modification of their risk level once per year—with a right to counsel at the modification hearing—for as long as they remain registered (*id.* § 168-o; see generally *Pataki*, 3 F Supp 2d at 471-472; *David W.*, 95 NY2d at 133; *Baxin*, 26 NY3d at 10-11; *People v Lashway*, 25 NY3d 478, 483-484 [2015]).

Defendant argues that his incompetency prevented him from taking full advantage of these protections, from being truly “present” at the hearing, and from assisting his counsel in preparing a defense. He therefore asks us to supplement the SORA procedures by requiring a competency examination when it appears that a registrant may lack capacity to understand the risk-level assessment proceeding. In addition, he “suggests that, upon a finding of incompetency, the SORA hearing and appropriate risk level designation would either be foreclosed or postponed indefinitely” (see *Parris*, 153 AD3d at 78).

Defendant has not demonstrated that his proposed safeguard—which amounts to exempting incompetent registrants from SORA classification for the duration of their disability—would meaningfully reduce inaccurate risk-level classifications, even if the robust existing procedures leave gaps through which a rare incompetent registrant might fall. If anything, defendant’s proposal seems certain to create inaccuracy, especially with respect to registrants who meet the criteria for heightened risk levels. It would result in every incompetent registrant, including those who could justly be adjudicated level three (high-risk) offenders, being treated more favorably than a level one (low-risk) offender regardless of the particular circumstances or risk to the public² (see *Doe v Sex Offender Registry Bd.*, 81 Mass App Ct 610, 616, 966 NE2d 235, 242 [2012] [hereafter *Doe (Massachusetts)*] [“due process does not entitle (incompetent) offenders to greater protection than that afforded their competent counterparts”]).

In contrast, it is far from inevitable that incompetent registrants will be misclassified when courts follow the ordinary procedures, particularly given a registrant’s right to counsel and the People’s heightened burden of proof at a classification hearing. Here, no showing was made that postponing defendant’s classification would have resulted in him being adjudicated a level one offender, rendering the value of the proposed additional safeguard conjectural rather than “prob-

2. The dissent suggests that exempting incompetent registrants from SORA classification would treat them no differently than persons who “move[] to New York from a different jurisdiction or [are] released from federal custody, or when for some other reason a court is unable to hold a hearing prior to the offender’s release” (dissenting op at 89). The classes of offenders the dissent is referencing are required to be given risk levels “expeditiously” (Correction Law § 168-1 [8]). SORA does not permit the type of avoidable and indefinite delay in risk-level classification the dissent and defendant are advocating for here.

able” (see *Mathews*, 424 US at 343).³ And even admitting the possibility of an initial misclassification, defendant can still seek modification of his risk level on an annual basis (see *Parris*, 153 AD3d at 82). This being the case, defendant simply has not shown that exempting incompetent registrants from SORA classification for indefinite periods is necessary or likely to make this civil process meaningfully more reliable or accurate (see *Doe [Massachusetts]*, 81 Mass App Ct at 615, 966 NE2d at 240 [concluding that “(t)he robust, adversary character of the classification process minimizes the risk of . . . erroneous classification,” even when a defendant is incompetent (internal quotation marks omitted)]).

The final *Mathews* factor requires us to consider “the public interest” and the administrative and societal costs associated with the additional proposed safeguard (*Mathews*, 424 US at 347; see *David W.*, 95 NY2d at 136-137). Obviously, conducting a psychiatric examination and additional hearing to determine a registrant’s mental competency would impose additional burdens on the government, as would the task of continually monitoring registrants found to be incompetent over indefinite periods to determine whether they have regained fitness and can be accurately classified. In this case, it took over five years and seven competency examinations before defendant was found competent to stand trial, a timeframe that could have been extended even further had he elected not to plead guilty.

Beyond the financial and administrative costs, the State also has a “compelling interest” in protecting its citizens by promptly notifying the public of registrants who pose a heightened threat of recidivism (see *Pataki*, 3 F Supp 2d at 470). Delaying the classification of incompetent registrants threatens that interest, in that it risks that some dangerous registrants will be released into the community for lengthy periods without accurate risk-level designations or public notice. Defendant and the dissent dispute this point, noting that

3. Defendant was represented by counsel who diligently defended his interests. Among other things, counsel successfully argued against the Board’s assessment of points based on defendant’s purported failure to accept responsibility at his parole intake interview, because there was “no evidence whether [he] was fully competent or fit” at the time of his alleged denial of guilt. Counsel also made creditable arguments in support of a request for a downward modification from level two based on defendant’s age and mental health issues, with supporting literature. Defendant does not seek our review of the court’s discretionary determination to deny a downward departure based on those factors.

offenders must still register with the Division of Criminal Justice Services at least 10 days prior to their release (*see* dissenting op at 81-82); however, risk-level classification determines the scope of information available to the public upon registration. Because the online sex offender database lists only level two and level three offenders (Correction Law § 168-q), members of the public who search the database will not be informed of a registrant without a risk level, regardless of the actual risk they pose.⁴

The dissent asserts that the State's interest in protecting the public is not advanced by classifying offenders while they are in OMH custody under Mental Hygiene Law article 9. However, defendant has never limited his due process argument to his specific situation. Rather, defendant argues that it is unconstitutional to classify *any* incompetent registrant during the period of their disability. As *Mathews* itself holds, "procedural due process rules are shaped by the risk of error inherent in the truthfinding process as applied to the generality of cases, not the rare exceptions" (424 US at 344). The dissent is also selective in its analysis of the effects of Mental Hygiene Law article 9 confinement. Just as article 9 confinement shields the public from offenders, it also shields offenders from the public and its stigma, which cannot in this context impact any offender's "ability to live in a community and obtain or maintain employment" (*David W.*, 95 NY2d at 137). Further, although it is possible that an offender may be denied placement at a particular residential treatment facility, such as a nursing home, as a result of their risk level (dissenting op at 90), this merely reinforces that an offender's risk level is useful in determining which custodial settings are suitable, and to avoid placing a potentially dangerous offender in an inappropriate facility.

[1] In the end, although the consequences of misclassification to registrants when they reenter society are "sufficiently serious to warrant more than mere summary process," the

4. The dissent also references a telephone number the public can call, but only limited information is available to the public through that method. Calling the number allows a person to "inquire whether a named individual required to register pursuant to [SORA] is listed," if the caller can supply the individual's "exact street address, including apartment number, driver's license number or birth date, along with additional information that may include social security number, hair color, eye color, height, weight, distinctive markings, ethnicity[,] or . . . any combination of the above listed characteristics if an exact birth date or address is not available" (Correction Law § 168-p [1]).

State nevertheless maintains a compelling interest in an “expedited” process “without the burden of a new adversary criminal trial” and its greater concomitant due process protections (see *Pataki*, 3 F Supp 2d at 470 [internal quotation marks omitted]). As we have further recognized, “the Due Process Clause simply does not mandate that all governmental decisionmaking comply with standards that assure perfect, error-free determinations” (*Pringle v Wolfe*, 88 NY2d 426, 434 [1996] [brackets omitted], quoting *Mackey v Montrym*, 443 US 1, 13 [1979]). What is required is a process that reasonably balances the competing interests at stake (see *Tulsa Professional Collection Services, Inc. v Pope*, 485 US 478, 484 [1988] [“The focus is on the reasonableness of the balance”]). Balancing the *Mathews* factors, we agree with the weight of authority that the State’s substantial interest in efficiently assessing registrants’ risk to the community outweighs that of incompetent registrants to a delay of SORA classification during an indefinite period of disability (see *Parris*, 153 AD3d at 78, 80-81; accord *State v Khan*, 2017-Ohio-4067, ¶ 17 [Ohio Ct App 2017]; *Doe [Massachusetts]*, 81 Mass App Ct at 615-616, 966 NE2d at 240-242).

Our conclusion that incompetency does not preclude SORA classification is fully consistent with jurisprudence in analogous contexts. In *Matter of Lopez v Evans*, this Court held that due process requires that a parolee be competent before the Division of Parole can adjudicate an alleged violation of the terms and conditions of their release (25 NY3d 199 [2015]). But as the Appellate Division recognized, there are significant distinguishing factors between parole revocation proceedings and SORA classification hearings. Most notably, parole revocation proceedings are punitive in nature and their purpose is to adjudicate wrongdoing, the consequence of which may be a defendant’s re-incarceration (*Parris*, 153 AD3d at 78-79; see *Lopez*, 25 NY3d at 206 [“Clearly salient are constitutional concerns about the fundamental fairness of a proceeding in which a (defendant) who is unable to make decisions about his defense may be returned to prison”]). In contrast, SORA classification hearings are not intended to serve as a form of punishment, and incarceration is not a potential consequence of SORA classification in and of itself. That restriction of liberty can occur only if a registrant later violates the rules applicable to their classification, at which point additional proce-

dures must be followed before the registrant may be penalized by incarceration.⁵

The People more aptly analogize this situation to the multitude of civil proceedings in which comparatively greater private interests are threatened, but which under current law may proceed notwithstanding questions regarding a party's competency. These include civil commitment proceedings under the Sex Offender Management and Treatment Act (SOMTA) (see e.g. *Matter of State of New York v Daniel OO.*, 88 AD3d 212 [3d Dept 2011], *appeal dismissed* 21 NY3d 1038 [2013]; *United States v Comstock*, 627 F3d 513 [4th Cir 2010], *cert denied* 564 US 1030 [2011]; *Matter of Oxner*, 440 SC 5, 889 SE2d 586 [2023]; *In re Detention of Morgan*, 180 Wash 2d 312, 330 P3d 774 [2014]; *Moore v Superior Ct.*, 50 Cal 4th 802, 237 P3d 530 [2010]; *Commonwealth v Burgess*, 450 Mass 366, 878 NE2d 921 [2008]; *In re Commitment of Weekly*, 2011 IL App [1st] 102276, 956 NE2d 634 [Ill App Ct 2011], *appeal denied* 963 NE2d 246, 357 Ill Dec 293 [2012]; *State ex rel. Nixon v Kinder*, 129 SW3d 5 [Mo Ct App 2003], *cert denied* 543 US 979 [2004]), federal immigration removal proceedings (*Munoz-Monsalve v Mukasey*, 551 F3d 1 [1st Cir 2008]; *Brue v Gonzales*, 464 F3d 1227, 1232-1233 [10th Cir 2006]; *Nee Hao Wong v Immigration & Naturalization Serv.*, 550 F2d 521 [9th Cir 1977]), and termination of parental rights proceedings (*Matter of Joyce T.*, 65 NY2d 39, 50 [1985]). In addition, the Appellate Division has held that an order of protection can be issued against an incompetent respondent in a family offense proceeding (see *Matter of Julie G. v Yu-Jen G.*, 81 AD3d 1079, 1081 [3d Dept 2011]). Under defendant's and the dissent's logic, incompetency would prevent the State from issuing such orders for the protection of domestic violence victims because they "place [the respondent] in jeopardy of criminal prosecution" in the event the respondent proceeds to contact (or harm) the subjects of the

5. Specifically, a registrant who fails to register or verify in the manner and within the time periods provided for under SORA may be prosecuted for committing a class E felony (see Correction Law § 168-t). Although we have no occasion here to decide the culpable mental state required for the crime of failure to register, we note that the Criminal Jury Instructions provide that, to be guilty, "a sex offender must know that he or she is required to register and must know the manner and time periods within which he or she is required to do so" (CJI2d[NY] Correction Law § 168-t, Failure to Register or Verify as a Sex Offender, https://www.nycourts.gov/judges/cji/4-SORA/SORA/Correction_168-t.SORA.pdf; see *People v Haddock*, 48 AD3d 969, 970-971 [3d Dept 2008], *lv dismissed* 12 NY3d 854 [2009]; Gary Muldoon, Handling a Criminal Case in New York § 23:91 [Sept. 2023 update]).

protective order (*see* dissenting op at 83). Due process has not been held to require competency determinations in these types of proceedings—even though they can result in civil confinement, deportation, the severing of family relationships, and the threat of future prosecution—and it therefore follows that due process is not offended by the failure to hold a competency hearing before determining which of three risk-level classifications should be assigned to a convicted sex offender (*see Parris*, 153 AD3d at 80).

The dissent's broader assertion that there is "no need to balance interests" under *Mathews* because the "courts and the legislature have already struck a balance favoring" a competency requirement (dissenting op at 80) finds no support in statute or case law. We cannot "presume" that the legislature contemplated a CPL article 730 equivalent for SORA through silence, or through the provision of basic procedural safeguards like notice, counsel, and a hearing held on a specific timeline prior to a registrant's release (*see id.* at 78). The decision to foreclose the classification of incompetent registrants during the period of their disability would create very real administrative burdens and public safety risks which do not exist under the current scheme and which must be weighed against the conjectured additional benefit to incompetent registrants.⁶ Our decision today respects the need for flexibility and limiting principles outside the criminal context to facilitate the government's ability to protect the citizens of this State whose interests may come into conflict with those of incompetent registrants. Balance and pragmatism are not antithetical to fundamental fairness; rather, they are essential to the administration of justice and demanded by the Constitution (*see Lassiter v Department of Social Servs. of Durham Cty.*, 452 US 18, 24-25 [1981] [instructing that "what 'fundamental fairness' consists of in a particular situation" cannot be determined without "assessing the several interests that are at stake"]; *see Morrissey*, 408 US at 481 ["To say that the concept of due process is flexible does not mean that judges are at large to apply

6. For precisely the same reason, we cannot avoid *Mathews* and circumvent consideration of a registrant's liberty interest simply by "presuming" that prior courts and the legislature weighed the interests involved and decided *against* a competency requirement, which after all appears nowhere in SORA, its legislative history, or this Court's precedents. As the dissent acknowledges, "this Court has no authority to replace its preferred policy for that of the legislature" (dissenting op at 82 n 3, citing *People v Davis*, 43 NY2d 17, 30 [1977]).

it to any and all relationships. Its flexibility is in its scope once it has been determined that some process is due; it is a recognition that not all situations calling for procedural safeguards call for the same kind of procedure”).

For these reasons, we reject the argument that defendant’s due process rights were violated when Supreme Court declined to order a competency hearing before adjudicating him a level two sex offender.

III.

Defendant’s counsel also argued below that the classification hearing was premature under SORA itself, and should not have been held while defendant remained civilly committed to an OMH psychiatric facility pursuant to Mental Hygiene Law article 9. More particularly, counsel argued that “the SORA Act itself says that the SORA hearing should be held before someone is released,” and that the most sensible reading of that requirement is that the hearing must occur “at the time [the registrant] is actually being released into the community,” not merely upon release from incarceration. We disagree.

[2] SORA’s plain text and structure authorize risk-level determinations “[30] calendar days prior” to a registrant’s release from incarceration following the completion of their prison sentence, regardless of pending civil commitment proceedings (*see* Correction Law § 168-n [2]). The statute does not require courts to indefinitely postpone SORA classification until a registrant’s release from civil confinement, and doing so would inject a degree of uncertainty into the classification process not contemplated or intended by the legislature. Unlike a registrant’s release from incarceration, a registrant’s release from civil confinement does not typically occur on a date scheduled far in advance: it is premised on changing conditions and can occur abruptly or on short notice (*see e.g.* Mental Hygiene Law §§ 9.33, 9.35). Given that unpredictability, defendant has not shown that it would be possible for the Board, district attorneys’ offices, and courts to reliably comply with the carefully developed SORA classification process—instituted to protect both the public and registrants’ due process rights—if the various deadlines and milestones in that process were to be measured from release from civil confinement.

Accordingly, the order of the Appellate Division should be affirmed, without costs.

RIVERA, J. (dissenting). It is a matter of fundamental fair-

ness and due process that a person called to appear before a court where their liberty is at stake should have the mental capacity to understand the nature of the proceedings, consult with counsel, and assist in their defense. A defendant's competency is also a prerequisite to the constitutional and statutory due process safeguards that expressly apply to Sex Offender Registration Act (SORA) (Correction Law art 6-C) risk classification proceedings.

Defendant has a mental disability. He is also a convicted sex offender who for most of his prosecution was found unfit to stand trial. After his release and during his SORA risk classification hearing defendant was confined to a psychiatric facility. His counsel requested a competency hearing to determine whether defendant understood the nature and consequences of the SORA proceedings and was capable of assisting with his defense. No one disputes that this request was well founded given defendant's chronic mental illness, history of unfitness to stand trial, immediate commitment upon completion of his sentence, and disorganized and illogical communications with counsel. Nor does anyone dispute that defendant has a protected liberty interest that entitled him to a hearing adequate to guard against the risk of an erroneous risk classification, as due process requires. I cannot agree with the majority that the SORA hearing held with defendant's competency in doubt satisfies due process. If he could not understand the proceedings, could not lucidly communicate with his counsel in preparing arguments to the court, and lacked the ability to understand the consequences of the court's judgment, the hearing was a mockery. We are a society of laws and those laws protect the mentally disabled. I dissent from the majority's endorsement of this injustice.

I.

Defendant Darryl Watts is mentally disabled. His illness dates back over 50 years. The majority acknowledges that defendant "suffers from severe schizophrenia and psychosis," and at the time of his offense "was responding to internal voices" and believed that "the victim was chosen for him" (majority op at 64). During the six-year pendency of his criminal prosecution, he was found mentally unfit to stand trial five times. His CPL article 730 examiners reported that he was "actively psychotic" such that he had no "rational or factual understanding of the roles of courtroom personnel or legal proceedings," did not recognize his lawyer, and was "unable to discuss his

case in a rational manner.” At one point, he expressed belief that the victim had been stalking him and that his lawyer was working for “both sides.” In 2013, defendant was admitted to Mid-Hudson Forensic Psychiatric Center for treatment.

After he was deemed competent at his seventh examination in December 2016, defendant pleaded guilty to first-degree sexual abuse (Penal Law § 130.65 [1]) and second-degree assault (Penal Law § 120.05 [12]), automatically subjecting him to SORA registration requirements. The court sentenced him to six years in prison and 10 years of postrelease supervision. Due to the length of time he had already spent in custody during his periods of incompetence, his release was set for July 2017. In preparation for that release date, the Board of Examiners of Sex Offenders (Board) recommended that defendant be adjudicated a level two (moderate risk) offender under SORA. However, in August 2017, shortly after his anticipated release date, defendant was transferred from Department of Corrections and Community Supervision (DOCCS) custody to involuntary confinement at South Beach Psychiatric Center—an Office of Mental Health (OMH) facility—pursuant to Mental Hygiene Law article 9.¹

Prior to defendant’s release and psychiatric confinement, the same judge that presided over defendant’s several incompetency determinations, plea, and sentence adjourned the SORA hearing to a future date but provisionally designated defendant a level two risk “without prejudice” pending a final determination. Thereafter, defendant’s counselor from the psychiatric center notified defense counsel that defendant “had a vastly different mental state presentation than the week before,” and that the facility did not “feel comfortable or think it was appropriate to transport him with their staff.” The counselor described defendant as “having very disorganized thinking, mood fluctuations, [and] unpredictable and . . . degenerative tendencies.” The staff, in fact, did not transfer defendant to his rescheduled SORA hearing, but counsel appeared and informed the court of the staff’s decision to hold defendant.

Counsel also expressed her “grave concerns” that defendant was not competent to understand his SORA hearing or its consequences. She explained that during her attempts to engage

1. Under article 9, a person with a mental illness may be involuntarily committed for care and treatment essential to their welfare when their “judgment is so impaired that [they are] unable to understand the need for such care and treatment” (Mental Hygiene Law § 9.01).

defendant, “his spe[ech] is illogical. It is disorganized. He doesn’t follow a fluid narrative so it is very difficult for me to follow what he is telling me as well as for me to comprehend whether he understands what I am saying.” Counsel further argued that SORA required the court to hold the hearing closer in time to defendant’s release into the community, and that holding the hearing while defendant was incompetent would violate his due process rights. The prosecution consented to an adjournment, and the court adjourned the case to consider defense counsel’s arguments and to see if defendant’s mental condition would improve.

Thirty days later, at the next court date, defendant was unavailable because he was appearing in Mental Hygiene Court the same morning. Defense counsel confirmed to the court that the psychiatric center was seeking to retain defendant, and again moved for a competency hearing. The court denied the motion, concluding that it was authorized to move forward with the SORA hearing without a competency determination, but granted another adjournment since defendant was only absent because of a conflicting court date.

The parties reconvened a few weeks later with defendant in attendance. Defense counsel stated her continued belief that defendant was not able to understand the nature of the proceedings and again argued that the hearing should be adjourned until closer in time to defendant’s release from psychiatric confinement. The court proceeded with the hearing over counsel’s objection, leaving counsel to present her arguments in support of a downward departure without defendant’s assistance. Counsel focused on the difficulties defendant would have finding housing as a level two offender and his lack of any prior violent criminal history. She also submitted studies showing that mental illness is not a reliable predictor of recidivism and that offenders above the age of 50 reoffend at a lower rate. Counsel supported her arguments with evidence from the existing record and outside expert sources, not on communications with or input from defendant.

In its written decision adjudicating defendant a level two sexually violent offender, the court acknowledged counsel’s representations that defendant was committed to a secure psychiatric facility at the time of the hearing, and that in the eight months between defendant’s sentencing and the hearing, “defendant was described as having ‘decompensated’ and according to counsel was traveling on a downward spiral into an-

other bout of mental illness.” Based on its own observations, the court found that during the hearing defendant “sat at counsel table with a vacant stare and did not appear to have said a word to his lawyers.” The court further acknowledged that defendant was being held at a psychiatric facility pursuant to a civil commitment order for at least another four months. On the merits, the court found defendant was properly assessed 90 points, placing him in the level two risk category. The court rejected defendant’s request for a downward departure, in part, because it did “not know [defendant’s] current mental state, [and] it hardly seems possible we can predict his future psychiatric condition and how it might impact his likelihood of offending.”

II.

Defendant argues that competency is a fundamental right at a SORA classification hearing because an incompetent registrant is unable to meaningfully exercise the rights and procedural protections afforded them under the statute. Defendant also contends that his classification hearing was held prematurely because it was held long before he was set to be released into the community. The prosecution responds that SORA’s list of procedural requirements is exhaustive and does not include a right to a competency hearing, and that the statute plainly mandates a hearing upon release from a correctional facility.

Contrary to the majority’s conclusion, SORA’s procedural safeguards presume the offender’s competence to understand the nature and consequences of the hearing and meaningfully participate in and assist with his defense. The question before us does not require a rebalancing of defendant’s interests against those of the State. Instead, the analysis here is controlled by prior case law recognizing an offender’s right to due process, SORA’s codification of judicially-identified procedural requirements, and the fundamental tenet of fairness at the core of any due process analysis.

We have previously recognized, as have federal courts, an offender’s liberty interest in “not being required to register under an incorrect label” (*People v Knox*, 12 NY3d 60, 66 [2009], citing *Paul v Davis*, 424 US 693, 701-710 & n 5 [1976]; *People v David W.*, 95 NY2d 130, 137 [2000]; *People v Gillotti*, 23 NY3d 841, 863 [2014]). As we reaffirmed in *People v Brown*, an offender has a “liberty interest in a criminal designation that

rationally fits [their] conduct and public safety risk” (41 NY3d 279, 290 [2023]). The protections afforded an offender in a SORA risk classification proceeding were recognized in the *Doe v Pataki* federal litigation, wherein the courts held offenders have a right to constitutional due process and invalidated the prior framework that lacked those safeguards (3 F Supp 2d 456 [SD NY 1998], *on remand from* 120 F3d 1263 [2d Cir 1997]). The federal district court observed that risk level classification hearings fall “somewhere between a criminal proceeding . . . and a simple administrative proceeding,” and that, although the due process protections required for these proceedings “are not as extensive” as those required in a criminal trial, registrants are entitled to, at a minimum: a hearing; notice of the hearing which explains the proceeding’s purpose and discloses the Board’s recommendation; counsel; prehearing discovery of evidence that informed the Board’s recommendation; a requirement that the State prove the facts supporting each risk factor by clear and convincing evidence; and the right to appeal the determination (3 F Supp 2d at 470-472).

To comply with the federal court’s order, the legislature codified these procedural safeguards by amending SORA (*see* Mem of NY St Atty Gen Legis Bur Chief, Bill Jacket, Bill Jacket, L 1999, ch 453 at 6 [explaining that the changes to Correction Law § 168-n respond to the concerns set forth in *Doe*]). SORA thus provides that a court shall make a risk level determination prior to a sex offender’s “discharge, parole, release to post-release supervision or release . . . by the sentencing court” (Correction Law § 168-n [1]; *People v Boone*, 41 NY3d 573 [2024] [reading this language to mean release from DOCCS custody]). The court shall also make a determination on the level of notification after receiving a recommendation from the Board (*id.* § 168-n [2]). In advance of the risk assessment, a sex offender is entitled to counsel, notice of the SORA hearing date, a copy of the Board’s risk level recommendation to the court with the Board’s reasons, notice that the purpose of the hearing is to determine the offender’s risk level (one, two or three) and the registration requirements (*id.* § 168-n [3]). The notice must also advise the offender that “[f]ailure to appear may result in a longer period of registration or a higher level of community notification because you are not present to offer evidence or contest evidence offered by the district attorney” (*id.*). The notice must also advise the offender that they have a right to a hearing and to be represented by counsel—and, if the of-

fender is eligible, one will be appointed—and the right to the prosecution’s statement with its proposed determinations and reasons therefore (*id.*). The offender has a right to discovery and to present evidence on their behalf, including witnesses and documentary materials, as well as the right to testify in support of their arguments and downward departure request, if any (*id.*). The prosecutor bears the burden to establish by clear and convincing evidence the facts supporting its recommendation (*id.*). The court must set forth its written factual findings and conclusions of law supporting its risk level determination (*id.*).

The majority plows unnecessarily through a thicket of legal issues that are irrelevant because an offender’s liberty interest and their constitutional right to due process in a risk classification proceeding are constitutionally and statutorily established. There is simply no need to balance interests under *Mathews v Eldridge* (424 US 319 [1976]) because the courts and the legislature have already struck a balance favoring offenders’ rights to procedural safeguards.

The question is not whether defendant is entitled to a competency hearing prior to his risk classification as some additional form of due process, but whether it violates an offender’s extant due process rights to conduct a risk level assessment hearing when they are not competent to participate in the proceeding or their competence is in question. Put another way, the question is whether an offender must be competent for the procedural safeguards to be meaningful. The answer is so obvious it hardly bears discussion and yet the majority ignores first principles and concludes that a competency requirement is unnecessary because the procedural safeguards are sufficient without consideration of the offender’s mental capacity. That analysis is fatally flawed because it fails to recognize that the existing safeguards presume the offender’s competence to invoke their protections.

As a matter of fundamental fairness and common sense, this panoply of due process guarantees acquires significance only when the offender is competent to participate in the hearing.² Notice is meaningless unless the offender understands its

2. The importance of a defendant’s competence throughout the legal proceedings against them has been recognized since the mid-eighteenth century. Blackstone’s Commentaries discussed an earlier law in place during the reign of Henry VIII which said that a person who commits a crime while “being compos mentis” and then later “fall[s] into madness” may “be tried in

(n. cont’d)

contents. The right to counsel is meaningless if the offender cannot communicate lucidly with their legal representative. Indeed, as appellate counsel argues on this appeal, an offender is denied effective representation by counsel if due to their mental disability they are unable to engage counsel and provide information to assist in their defense. The right to be present and participate is illusory if an offender attends court physically without the mental capacity to understand and participate in the proceedings. And an offender's rights to controvert the prosecution's evidence and recommended risk level classification, to challenge an upward departure request and argue in support of a downward departure are made a mockery if the offender is mentally unable to articulate their thoughts, express remorse to the court, or explain why they present a lower risk of offense than the Board and the prosecution contend.

Nor does this inherent competency requirement undermine "the purpose underlying SORA—to protect the public from sex offenders" (*People v Mingo*, 12 NY3d 563, 574 [2009]). Under SORA, an offender must register with the Division of Criminal Justice Services "at least ten calendar days prior to discharge, parole, release to post-release supervision or release from any state or local correctional facility, hospital or institution where [they were] confined or committed" or "at the time sentence is imposed for any sex offender released on probation or discharged upon payment of a fine, conditional discharge or unconditional discharge" (Correction Law § 168-f [1]). The legislature ensured with this pre-risk classification mandate that there would be no lapse in registration during any potential delay between an offender's release from custody and the court's risk classification determination. In other words, an offender will not "slip through the cracks" if they were released into the community without having been designated a SORA risk level. The risk level classification sets the community notification level that applies to an already-registered offender. Level one offenders and those who have not yet received a risk

[their] absence" and even "suffer death, as if [they] were of perfect memory." Blackstone called this law "savage and inhuman," and observed that, even for an individual who commits a crime while sane, they "ought not to be arraigned for it" if they are not competent "to plead to it with that advice and caution that [they] ought," and should not be tried if they cannot "make [their] defense" (4 William Blackstone, *Commentaries on the Laws of England* at 24-25). The critical observation holds true in the SORA context: an incompetent individual cannot defend themselves.

level classification must register annually for 20 years from the date of their registration, while level two and three offenders must register annually for life (*id.* § 168-h [1]-[2]). Level three offenders must also verify their address every 90 calendar days with local law enforcement (*id.* § 168-h [3]). All registered offenders—classified or not—are listed in a telephone database available to the public (*id.* § 168-p [1]), while level two and three offenders also appear in the online database which makes public the offender's name, address, place of employment, photo, crimes of conviction, and other identifying information (*id.* § 168-q [1]).³ Thus, there is no lapse in law enforcement notification and the public has a mechanism for learning certain information about an offender even without a risk level classification. Of course, persons like defendant, whose mental disability renders them incompetent to participate in a SORA hearing may very well not be released into the community for some time. As of this appeal, defendant is still confined in a psychiatric facility. He poses no danger to the public.

III.

Even under the majority's unnecessary analysis, the *Mathews v Eldridge* balancing test leads to the same conclusion: an offender's competency at the risk classification hearing is an indispensable requirement of the process due (*see* 424 US at 335). Indeed, contrary to the majority's view, all three *Mathews* factors tip in favor of a competency requirement.

As to the first factor, the majority acknowledges an offender's liberty interest in an accurate risk classification but concludes that the interest is limited based on the civil nature of SORA registration and risk classification proceedings (majority op at 66-67). Only by constricting the lens through which it views this interest can the majority reach such a conclusion.

3. The majority asserts that incompetent, unclassified offenders would not be listed on the online sex offender database, and that the telephone hotline would only disclose the offender's presence on the registry to callers who can supply certain identifying information about the offender (majority op at 70 & n 4). This distinction matters little with respect to offenders who, like defendant, are civilly committed to a secure treatment facility and therefore pose no danger to the public. Moreover, this pre-classification registration applies to *all* offenders until the time that their risk level can be correctly classified, after a hearing in which they are able to participate. To the extent the majority believes it to be inadequate, this Court has no authority to replace its preferred policy for that of the legislature (*see People v Davis*, 43 NY2d 17, 30 [1977]).

Offenders who are not competent or whose competence is in doubt have an additional interest at stake because they are at greater risk of failing to comply with SORA due to their mental disability. Failure to comply with SORA registration requirements—and for offenders subject to Sexual Assault Reform Act (SARA), the additional requirements that flow from a level two or three designation—places an offender in jeopardy of criminal prosecution, with an attendant loss of liberty. Reporting requirements differ by risk level. For example, level one and two offenders must report in person for a current photograph every three years, while level three offenders must appear every year. Level three offenders designated as a sexual predator must also verify their address every 90 days. An incompetent registrant who cannot understand the nature of the proceeding—particularly ones who, like defendant here, have a long history of mental illness—may be incapable of complying with these heightened requirements year after year. As one Ohio court queried, how could “an individual in the throes of Alzheimer’s disease . . . functionally be able to comply with the annual registration requirements”? (*State v Chambers*, 151 Ohio App 3d 243, 248, 783 NE2d 965, 969 [2002]). Of course, noncompliance puts the individual at risk of incarceration. Failure to register or verify is a class E felony for a first offense and a class D felony for a second or subsequent offense, and may also be a basis for parole revocation (Correction Law § 168-t). Further, a level three designation subjects an offender to the residency restrictions of SARA (Executive Law § 259-c [14]). Level two and three offenders are ineligible for certain housing, including with the New York City Housing Authority, making it significantly more difficult to find a suitable, SARA-compliant residence. If the offender is unable to find compliant housing, they may be confined past their conditional or maximum release date.⁴ Thus, the outcome of a SORA hearing may directly result in continued incarceration and may indirectly result in re-incarceration should the mentally disabled offender be unable to comply with the heightened reporting requirements of a moderate or high-risk designation. The

4. This is a significant problem for offenders with additional housing requirements. Disabled offenders, for example, are “held in prison an average of three years past their release date awaiting [SARA]-compliant housing” (Kevin Bliss, *New York’s SARA Requirements Force Sex-Offenders into Homelessness Then Hold Them in Prison Due to Their Homelessness*, Criminal Legal News [Apr. 2020]).

majority fails to account for and accommodate this liberty interest of a mentally incompetent offender.

As to the second factor—the likelihood of an erroneous determination absent the procedure sought by an offender—the majority bootstraps its way to a conclusion that there are already “robust” procedural requirements in a SORA hearing that sufficiently protect against erroneous deprivation of the narrow interest it believes is at stake (majority op at 68). As discussed, the Constitution and SORA guarantee an offender a host of rights (Correction Law §§ 168-n [2], [3]; 168-o [2]; *Doe*, 3 F Supp 2d at 470-472). The majority fails to recognize that these statutorily codified constitutional rights cannot be exercised by an incompetent defendant.

Indeed, many of these rights are identical to the ones afforded to defendants in parole revocation hearings, which this Court has expressly held cannot be exercised by an incompetent individual (see *Matter of Lopez v Evans*, 25 NY3d 199, 206 [2015]). The majority attempts to distinguish *Lopez* on the ground that parole revocation proceedings are “punitive in nature and their primary purpose is to adjudicate wrongdoing, the consequence of which may be a defendant’s reincarceration,” compared with SORA risk classification hearings which “are not intended to serve as a form of punishment, and incarceration is not a potential consequence of SORA classification in and of itself” (majority op at 71). This minimizes the interest at stake in SORA hearings. Although the Court has stated that SORA is not a penal statute, there is no question that its “consequences” are “unlimited,” and that registration—especially at a higher risk level classification—carries stigma that “pervades into every aspect of an offender’s life” (*Doe*, 120 F3d at 1279). Additionally, as discussed with respect to the offender’s interest under the first *Mathews* factor, the threat of incarceration is implicated in a SORA classification hearing, particularly for incompetent registrants.

The majority holds that SORA hearings are “more aptly analogize[d]” to civil commitment proceedings under the Sex Offender Management and Treatment Act (SOMTA), which “may proceed notwithstanding questions regarding a party’s competency” (majority op at 72). But those proceedings are instituted only where the State believes there is sufficient evidence that the defendant is “a detained sex offender who suffers from a mental abnormality,” defined in the statute as “a congenital or acquired condition, disease or disorder that af-

fects the emotional, cognitive, or volitional capacity of a person” in a manner that predisposes them to criminal sexual conduct (Mental Hygiene Law §§ 10.07 [a]; 10.03 [i]). It is self-evident that such proceedings can go forward without a competency determination; they are instituted precisely because the individual has some alleged mental condition or disorder. That mental condition or disorder cannot hinder a SOMTA proceeding when it is the very reason for the proceeding. Moreover, the purposes of SOMTA and SORA hearings are not the same. While a SOMTA hearing is, in part, designed to protect the community, its purpose is also to provide care and treatment to mentally ill sex offenders (Mental Hygiene Law § 10.01 [c], [f] [“The goal of a comprehensive system should be to protect the public, reduce recidivism, and ensure offenders have access to proper treatment,” and “the system should offer meaningful forms of treatment to sex offenders in all criminal and civil phases, including during incarceration, civil commitment, and outpatient supervision”]). Although a SORA risk classification is civil, its purpose is in no way to assist the offender but solely to set the proper risk level to ensure public safety (*Brown*, 41 NY3d at 284; *Mingo*, 12 NY3d at 574).

The majority references other types of civil hearings but those comparisons are similarly inapt (*see* majority op at 72). In the immigration context, the federal government has “broad power” to “make[] rules that would be unacceptable if applied to citizens” (*Reno v Flores*, 507 US 292, 305-306 [1993], quoting *Fiallo v Bell*, 430 US 787, 792 [1977]). Thus, the individual’s interest is outweighed by federal authority. The termination of parental rights can be effected where a parent is, “by reason of mental illness or intellectual disability, [unable] to provide proper and adequate care” for their child (Social Services Law § 384-b [4] [c]). Those termination proceedings, like SOMTA proceedings, necessarily involve an incompetent party. It would be impractical and contradictory to create a rule that would require a parent to argue that they are too mentally ill to understand the proceeding but are mentally fit to care for their child. The majority also cites one Appellate Division decision for the proposition that “an order of protection can be issued against an incompetent respondent in a family offense proceeding” (majority op at 72, citing *Matter of Julie G. v Yu-Jen G.*, 81 AD3d 1079, 1081 [3d Dept 2011]). *Julie G.* says no such thing. The Appellate Division held that “the competency procedures under CPL article 730, applicable in criminal ac-

tions, do not govern in family offense proceedings in Family Court” but nevertheless “[i]n civil proceedings, the court can appoint a guardian ad litem for a party who cannot understand the proceedings, defend [their] rights or assist counsel” (*id.*, citing CPLR 1201). Thus, the Appellate Division recognized what the majority chooses to ignore: the law does not run roughshod over the mentally disabled but instead protects their rights.

Two of the most critical rights that an incompetent offender cannot fully exercise is the right to counsel and the right to be present at the hearing. SORA guarantees the right to counsel, including assigned counsel for eligible offenders. But that right is rendered meaningless unless counsel can communicate with their client because the client “provide[s] the factual underpinnings of the presentation” (*Lopez*, 25 NY3d at 206). An attorney cannot advance their client’s interests if the client lacks “sufficient present ability to consult with [their] lawyer with a reasonable degree of rational understanding” (*Dusky v United States*, 362 US 402, 402 [1960]).

Defendant’s case illustrates the lawyer’s quandary. Defendant gave such a limited personal history that counsel was not even sure what grade level defendant completed in school. There was no way for counsel to seek relevant documentary evidence outside of the record, such as medical records related to defendant’s family history of schizophrenia or letters of support from loved ones. Defendant also at one point had suggested his trial attorney was working “on both sides,” indicating that, as a result of his mental disability, he might not have trusted counsel enough to disclose personal information to her. Medical records in particular often require a defendant to sign medical release forms that someone who is paranoid as a result of their mental disability may refuse to sign, without understanding the consequences of this decision. This defendant was without the benefit of any additional mitigating evidence that counsel might have been able to find with defendant’s assistance, and thus counsel was hampered in her presentation of relevant materials under Correction Law § 168-n (3).

Being forced to present a defense without the participation of the client doubtless causes an ethical dilemma for defense attorneys. “To be meaningful the right to counsel ‘requires the guiding hand of counsel at every step in the proceedings’ ” (*People v Joseph*, 84 NY2d 995, 997 [1994], citing *Powell v Alabama*, 287 US 45, 69 [1932]). The Court’s decision today will require counsel in a SORA proceeding to present their client’s

defense knowing they have not “guided” their client at all, nor, with the assistance of their client, collected mitigating evidence that would ordinarily be their responsibility to present in support of a defense or an affirmative request for a downward departure. The Appellate Division has held counsel ineffective at SORA hearings where counsel failed to sufficiently communicate with their client (*see e.g. People v Moore*, 208 AD3d 1514, 1515 [3d Dept 2022] [counsel at SORA hearing was ineffective where he “had not had a chance to speak with defendant” and further failed to present a defense]; *People v VonRapacki*, 204 AD3d 41, 44 [3d Dept 2022] [counsel “did not communicate with his client at all” and “essentially agreed to the Board’s recommendation”]). The majority’s decision ignores our effective assistance of counsel standards by sanctioning an attorney’s inability to adequately discuss the defense with their client or seek mitigating evidence based on their client’s input—conduct that would be considered ineffective in any other context where assistance of counsel is guaranteed (*see People v Oliveras*, 21 NY3d 339, 344-345 [2013] [counsel in criminal trial was ineffective where he argued that the defendant “was not playing with a full deck” but did not obtain or review any of the defendant’s psychiatric records (internal quotation marks omitted)]; *Matter of Mark T. v Joyanna U.*, 64 AD3d 1092, 1093 [3d Dept 2009] [assigned counsel in Family Court was ineffective where he represented what he believed to be in his child client’s best interest but revealed he “had neither met nor spoken with the child”], *lv denied* 15 NY3d 715 [2010]).

The majority’s decision also fails to account for and accommodate a mentally disabled offender’s right to be present at the SORA hearing, as provided in SORA (Correction Law § 168-n [3]). The prosecution in this case and the Appellate Division in *People v Parris* (153 AD3d 68, 82 [2d Dept 2017])—which the majority cites approvingly (majority op at 69, 71)—acknowledged that an incompetent defendant is not “present” to participate in the SORA proceeding. That is correct as an incompetent defendant is present physically but does not possess the mental acuity necessary to understand the proceedings and assist in their defense (*see Drope v Missouri*, 420 US 162, 171 [1975] [“Some have viewed the common-law prohibition” against trials of incompetent defendants “as a by-product of the ban against trials *in absentia*; the mentally incompetent defendant, though physically present in the courtroom, is in

reality afforded no opportunity to defend himself” (internal quotation marks omitted)). Indeed, the SORA court found that during the hearing defendant had “a vacant stare” and did not say “a word to his lawyers.” This is not even due process in name only.

The majority recognizes that errors will occur but rather than avoid them up front, unwisely adopts the approach taken in *Parris* and declares that a misclassified offender can simply seek modification on an annual basis (majority op at 68-69, citing *Parris*, 153 AD3d at 82). A modification hearing is legally inadequate for several reasons. First, a post-deprivation proceeding cannot remedy the due process violation suffered by a mentally disabled offender who is unable to understand the proceedings and assist in their defense. The hearing held under these circumstances *is* the violation. Indeed, pre-deprivation hearings are the norm. “Due process requires that a person whose constitutional rights are affected by government action is entitled to be heard and it makes obvious sense in most cases ‘to minimize substantially unfair or mistaken deprivations’ by insisting that the hearing be granted at a time when the deprivation can still be prevented” (*Matter of Lee TT. v Dowling*, 87 NY2d 699, 713 [1996], citing *Fuentes v Shevin*, 407 US 67, 79-82 [1972]). Second, post-deprivation proceedings are particularly inappropriate in cases like this one involving reputational harm (*id.*). That is obvious here because once an individual is classified as a level two or three offender and placed on the online database, that bell cannot be unrung and the stigma is near impossible to shake off (*Doe v Pataki*, 940 F Supp 603, 626-627 [SD NY 1996] [“the consequences of community notification are unlimited” and cause stigma that “by its very nature pervades into every aspect of an offender’s life” (brackets omitted)]; *see also* brief for Office of the Public Defender for the State of New Jersey et al., amici curiae, in *Smith v Doe*, 538 US 84 [2003], available at 2002 WL 1798881, *7-21 [discussing examples of ostracism and vigilante violence against sex offenders]). Third, a modification hearing is meaningless to an offender determined to be incompetent for the rest of their life.

As to the third *Mathews* factor, I agree that the State has an interest in protecting the public from sex offenders (*People v Mingo*, 12 NY3d 563, 574 [2009] [referring to SORA’s purpose of protecting the public as a “significan(t) . . . mission”]). That interest is not furthered by adjudicating defendant’s risk level

at a time when he is civilly committed in a secure OMH facility for treatment pursuant to article 9 and must register as a sex offender now (*see* Correction Law § 168-f). The majority cannot explain how defendant poses a risk to public safety serious enough to outweigh the other *Mathews* factors while he is locked up with no release date in sight.⁵ Instead, the majority and the prosecution raise the specter of “dangerous registrants” (who are incompetent) possibly being released into the community for “lengthy periods” without the additional notice that accompanies a SORA level two or level three classification. To be sure, we must take seriously the legislature’s determination that SORA’s three-tiered classification scheme effectively serves the critical purpose of “protect[ing] the public from sex offenders” (*Mingo*, 12 NY3d at 574). But the prosecution has offered no details about who this group might include and how sizable it might be, nor has the prosecution answered with any precision why incompetent offenders cannot be treated similarly to other individuals who register first and have their SORA level adjudicated after they are living in the community (i.e., when a person moves to New York from a different jurisdiction or is released from federal custody, or when for some other reason a court is unable to hold a hearing prior to the offender’s release) (*see* Correction Law § 168-l [8]).⁶

5. The prosecution suggests without any data that a risk classification might provide protection to patients, staff, and visitors at his treatment facility. There is no basis to conclude that defendant poses any greater risk to those individuals than he did to corrections officers, other inmates, and visitors while he was in DOCCS custody, nor that the OMH facility’s knowledge of a risk level classification would in any way change its treatment or handling of defendant. Staff at secure treatment facilities are aware of their patients’ diagnoses and criminal history and are equipped to handle individuals who may pose a danger to others (*see* OMH Official Policy Manual § A-3018, Criminal Histories [Aug. 25, 2023] [“To provide a safe environment at OMH facilities criminal histories of adult patients are checked on admission to the facility”]; *see also* § A-3024, Responding to Crisis Situations [Aug. 25, 2023] [explaining OMH policy on “Responding to Behavioral Codes and Psychiatric Crisis Situations”]).

6. The majority posits that because SORA mandates an “expeditious[]” hearing for such offenders, it cannot permit “indefinite delay[s]” for incompetent offenders (majority op at 68 n 2). The majority misses the point: the sole purpose of the statute is public safety, yet the legislature expressly contemplated that in some cases, strict adherence to its timing scheme would not be feasible and an individual may be living in their community before a risk level hearing can take place. It is illogical to say that, although some offenders will rejoin their community—where they will pose some risk of recidivism—without a risk level adjudication, an incompetent individual who is

(n. cont’d)

Additionally, as we recognized in *Brown*, “[p]opulating the registry with the names and information of individuals who do not pose a danger of sexual recidivism to children undermines the usefulness of the registry and wastes government resources on tracking people who are not the intended targets of SORA nor implicate the public risk and law enforcement needs that first necessitated SORA registries” (41 NY3d at 297 [internal quotation marks and some brackets omitted]). The usefulness of the registry is similarly undermined when its classification system is inaccurate, and government resources are wasted when individuals who pose a lower risk of recidivism are subjected to the heightened notification requirements of a high-risk classification (see *E.B. v Verniero*, 119 F3d 1077, 1107-1108 [3d Cir 1997] [holding that the government has no “interest in notifying those who will come into contact with a registrant who has erroneously been identified as a moderate or high risk”]). There is no way to guarantee that an offender is accurately assessed when they are not competent to understand the proceeding or participate in their defense.

The majority puts its thumb on the scale in favor of the State’s interest in protecting the public by minimizing the harm to a mentally ill offender that inheres in a hearing violative of due process. Indeed, the majority suggests that, because defendant is civilly confined, he is “shield[ed]” from “the public and its stigma” (majority op at 70). First, the majority ignores that the deprivation of defendant’s right to counsel and right to be present at his SORA hearing was harm in and of itself. Second, mentally ill sex offenders—including those who are institutionalized—are whole human beings who may still experience stigma and reputational harm. The fact that the public cannot immediately act upon that stigma by denying the offender a job or refusing them service does not render the stigmatizing label meaningless; to the contrary, an erroneous overclassification creates real and practical harms for committed offenders. For example, a high-risk classification increases the risk that an otherwise clinically-appropriate residential treatment setting will deny the offender placement. In this way, an inaccurate classification while hospitalized may doom the offender to commitment more restrictive than their actual risk of recidivism warrants, potentially denying them access to

civilly confined and therefore presents no risk to the public must be adjudicated a risk level upon their transfer from one kind of custody to another.

the least restrictive alternative. Indeed, defense counsel represented to the Court that OMH doctors have recommended a nursing home as the “best place” for defendant, but his level two classification has “hampered” their ability to find placement for him.

Finally, the majority considers the “additional burdens on the government” posed by “a psychiatric examination and additional hearing to determine a registrant’s mental competency” and the “continual[] monitoring [of] registrants found to be incompetent over indefinite periods to determine whether they have regained fitness and can be accurately classified” (majority op at 69). That concern is without factual basis in the record. Indeed, the courts below did not find—nor did the prosecution ever specifically argue—that pre-hearing competency evaluations would burden the State. The defense also represents that, in at least one case, the prosecution agreed that “a registrant is entitled to a competency determination if the SORA court is aware of the possibility of incompetence” (brief for defendant-appellant at 32, citing *People v Hood*, 35 AD3d 1138 [3d Dept 2006]). Moreover, while administrative burden is a relevant consideration under *Mathews*, it is not enough to override the substantial liberty interest at stake in a SORA proceeding, especially when the offender, as is the case here, is civilly committed at the time of hearing.

IV.

The majority is wrong on the law that due process tolerates a SORA risk classification hearing conducted when the offender is not competent to understand the nature and consequences of the proceeding and is unable to assist counsel with their defense. The majority endorses two systems of justice: one for competent offenders and one less protective for those with mental illness. It is time for the legislature to act where the Court has failed and accord equal rights to mentally disabled offenders.

Judges GARCIA, SINGAS and TROUTMAN concur. Judge RIVERA dissents in an opinion, in which Chief Judge WILSON concurs. Judge HALLIGAN dissents, would apply the *Mathews v Eldridge* (424 US 319 [1976]) balancing test and, doing so, reverse for reasons stated in part III of the dissenting opinion.

Order affirmed, without costs.

[241 NE3d 796, 217 NYS3d 27]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DWANE
ESTWICK, Appellant.

Argued April 18, 2024; decided May 21, 2024

SUMMARY

APPEAL, by permission of the Acting Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 24, 2022. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Stephen Knopf, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree and robbery in the second degree.

People v Estwick, 208 AD3d 799, reversed.

HEADNOTE

**Crimes — Jurors — Selection of Jury—*Batson* Violation — Court
Supplied Race-Neutral Reason for Peremptory Strike and Prosecution Remained Silent**

A *Batson* violation occurred during defendant's trial when, in response to the prosecution's exercise of a peremptory challenge against a prospective African-American juror, the court stepped in to provide a race-neutral explanation and the prosecution remained silent. Accordingly, defendant was entitled to a new trial. Under the well-established *Batson* framework (*Batson v Kentucky*, 476 US 79 [1986]), once a prima facie showing of discrimination is made, the nonmovant must come forward with a race-neutral explanation, and if the nonmovant fails to meet this burden, an equal protection violation is established. When the court supplied a race-neutral reason for the peremptory strike, it failed to hold the prosecution to its burden and instead, effectively became an advocate for the prosecution, thus abandoning its *Batson*-specific duty to consider the prosecutor's race-neutral explanations in light of all of the relevant facts and circumstances, and in light of the arguments of the parties.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 964, 966; AM JUR 2d Jury § 206.

CARMODY-WAIT 2d Jury Selection and Supervision §§ 191:60–191:67 191:70.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 22.3.

NY JUR 2d Criminal Law: Procedure §§ 2625–2630.

ANNOTATION REFERENCE

See ALR Index under Peremptory Challenges.

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Query: peremptory /s race-neutral /3 prosecutor & court
/s explanation & speculat!

POINTS OF COUNSEL

Patricia Pazner, Appellate Advocates, New York City (Martin B. Sawyer of counsel), for appellant. I. The prosecutor failed to meet his step two burden of providing facially nondiscriminatory reasons for striking two women of color, and both peremptory challenges were pretextual when the sole reason given for striking one was refuted by the contemporaneous record made by the court, and the reason the court attributed to the prosecutor for striking the other, a long-standing, police department employee, also lacked record support, was speculative, and was not applied to a similarly-situated white man. (*Batson v Kentucky*, 476 US 79; *People v Allen*, 86 NY2d 101; *People v Luciano*, 10 NY3d 499; *People v Hecker*, 15 NY3d 625; *People v Bolling*, 79 NY2d 317; *Hernandez v New York*, 500 US 352; *People v Smocum*, 99 NY2d 418; *Purkett v Elem*, 514 US 765; *People v Payne*, 88 NY2d 172; *People v Coleman*, 195 AD3d 1411.) II. The prosecution's erroneous disclosure of the location of the incident, which prevented the defense from investigating, deprived appellant of his constitutional right to present a defense. (*Crane v Kentucky*, 476 US 683; *Chambers v Mississippi*, 410 US 284; *People v DiPippo*, 27 NY3d 127; *Brady v Maryland*, 373 US 83; *People v Simmons*, 36 NY2d 126; *People v Rosario*, 9 NY2d 286; *People v Rong He*, 34 NY3d 956; *People v Ulett*, 33 NY3d 512; *People v Jackson*, 78 NY2d 638.)

Melinda Katz, District Attorney, Kew Gardens (Danielle S. Fenn and John M. Castellano of counsel), for respondent. I. The Appellate Division correctly ruled that defendant had failed to sustain his burden of demonstrating a violation of *Batson v Kentucky* (476 US 79 [1986]). (*People v Smocum*, 99 NY2d 418; *People v Allen*, 86 NY2d 101; *People v Stephens*, 84 NY2d 990; *People v Richardson*, 100 NY2d 847; *People v James*, 99 NY2d 264; *Hernandez v New York*, 500 US 352; *Purkett v Elem*, 514 US 765; *People v Payne*, 88 NY2d 172; *People v Alvarado*, 306 AD2d 18; *People v Sanchez*, 302 AD2d 282.) II. Defendant was not denied his right to present a defense and any possible error was harmless. (*People v Davis*, 41 NY2d 678; *People v Zurita*, 64 AD3d 800; *People v Martinez*, 22 NY3d 551;

People v Carter, 53 NY2d 113; *People v Owusu*, 93 NY2d 398; *People v Pettigrew*, 14 NY3d 406; *People v Handy*, 20 NY3d 663; *People v Joseph*, 86 NY2d 565; *People v Kelly*, 62 NY2d 516; *People v Crimmins*, 36 NY2d 230.)

Center on Race, Inequality, and the Law, New York University Law School, New York City (*Tasleemah Tolulope Lawal*, Jason D. Williamson and Vincent M. Southerland of counsel), and *New York Civil Liberties Union Foundation*, New York City (*Ifeyinwa Chikezie*, Daniel R. Lambright and Molly K. Biklen of counsel), for Center on Race, Inequality, and the Law at New York University Law School and another, amici curiae. I. New York’s current *Batson* test employs a subjective analysis that allows for discriminatory peremptory strikes. (*People v Bridgeforth*, 28 NY3d 567; *People v Allen*, 86 NY2d 101; *Purkett v Elem*, 514 US 765; *Hernandez v New York*, 500 US 352; *People v Smocum*, 99 NY2d 418; *Miller-El v Cockrell*, 537 US 322; *People v Payne*, 88 NY2d 172; *People v Luciano*, 10 NY3d 499; *Wainwright v Witt*, 469 US 412; *People v Hecker*, 15 NY3d 625.) II. New York courts should adopt an objective standard at step three of the *Batson* test. (*People v Goetz*, 68 NY2d 96.) III. This Court’s history of advancing the law to promote equity supports the adoption of an objective *Batson* standard. (*People v Hameed*, 88 NY2d 232; *Georgia v McCollum*, 505 US 42; *People v Blunt*, 162 AD2d 86; *J. E. B. v Alabama ex rel. T. B.*, 511 US 127; *People v Bennett*, 206 AD2d 382.)

OPINION OF THE COURT

RIVERA, J.

Under the well-established *Batson* framework, “[o]nce a prima facie showing of discrimination is made, the nonmovant must come forward with a race-neutral explanation,” and if the nonmovant fails to “meet this burden, an equal protection violation is established” (*People v Smocum*, 99 NY2d 418, 422 [2003], citing *Batson v Kentucky*, 476 US 79 [1986]). “[T]he job of enforcing *Batson* rests first and foremost with trial judges” who are supposed to “operate at the front lines of American justice” (*Flowers v Mississippi*, 588 US 284, 302 [2019]). A single violation of *Batson* “mandates automatic reversal” (*People v Hecker*, 15 NY3d 625, 661 [2010]).

* * *

Defendant was convicted after a jury trial of first-degree and second-degree robbery and sentenced to an aggregate of 12

years' imprisonment, followed by five years of postrelease supervision. The Appellate Division affirmed (208 AD3d 799 [2d Dept 2022]). A Judge of this Court granted leave to appeal (39 NY3d 1078 [2023]). Defendant claims, as he did below, that the prosecution failed to provide any explanation, much less a race-neutral explanation, for its peremptory strike of prospective juror K.S. and that he is therefore entitled to a new trial. We agree.

Here, it is undisputed that defendant established a prima facie case of discrimination with respect to the prosecution's exercise of a peremptory challenge against K.S., an African-American female, and that the burden then shifted to the prosecution to provide a race-neutral basis for its peremptory strike. The People failed to do so entirely (*see People v Bridgforth*, 28 NY3d 567, 576 [2016]). Rather, the court stepped in to provide an explanation, speculating that the prosecution had gotten a "bad vibe" from K.S. regarding whether her prior jury service resulted in an acquittal. The prosecution remained silent. The court nevertheless ruled that the prosecution had "given a legitimate race[-]neutral reason" for the strike.

This serious departure from the *Batson* framework was an error of the highest order. When the court supplied a race-neutral reason for the peremptory strike, it failed to hold the prosecution to its burden and instead, effectively became an advocate for the prosecution, thus abandoning its *Batson*-specific duty to "consider the *prosecutor's* race-neutral explanations in light of all of the relevant facts and circumstances, and in light of the arguments of the parties" (*Flowers*, 588 US at 302 [emphasis added]). It is the nonmovant's expressed explanation for its peremptory challenge—and whether such explanation is mere pretext for a race-based motive—not simply whether a race-neutral reason could theoretically exist—which is the focus of the *Batson* framework at steps two and three (*see Batson*, 476 US at 97-98; *Flowers*, 588 US at 298, 302; *Smocum*, 99 NY2d at 422). The court's speculation as to the prosecution's basis for the strike was irrelevant and deprived defendant of any meaningful way to demonstrate pretext in the face of the prosecution's silence.

Based on our decision, we have no occasion to address defendant's other arguments (*Hecker*, 15 NY3d at 661). Accordingly, the Appellate Division order should be reversed and a new trial ordered.

Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO, TROUTMAN and PRITZKER* concur. Judge HALLIGAN took no part.

Order reversed and a new trial ordered.

* Designated pursuant to NY Constitution, article VI, § 2.

[241 NE3d 1239, 217 NYS3d 478]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v COREY
DUNTON, Respondent.

Argued March 14, 2024; decided April 23, 2024

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered July 5, 2022. The Appellate Division (1) granted defendant's application for a writ of error coram nobis to vacate a decision and order of that Court (op 184 AD3d 473 [2020]), which had affirmed a judgment of Supreme Court, New York County (Melissa C. Jackson, J., at hearing; Juan M. Merchan, J., at jury trial and sentencing), convicting defendant, upon a jury verdict, of attempted murder in the second degree, assault in the first degree (two counts), assault in the second degree, criminal possession of a weapon in the second degree (two counts), and reckless endangerment in the first degree; (2) vacated the decision and order; (3) reversed, on the law, the judgment of conviction; and (4) ordered a new trial.

People v Dunton, 2022 NY Slip Op 68332(U), reversed.

HEADNOTES

Crimes — Right to be Present at Trial — Removal from Courtroom without Warning Following Disruptive Outburst

1. In a criminal prosecution, defendant's removal from the courtroom without warning during the announcement of the verdict and polling of the jury after his disruptive verbal outburst was proper, where defendant was considered a safety risk because of his history of violent outbursts both in and out of the courthouse and the totality of his misconduct rendered a warning immediately preceding his removal impracticable. CPL 260.20 provides that a defendant must be present during the trial but may be removed if they are "disorderly and disruptive" such that the "trial cannot be carried on with [the defendant] in the courtroom . . . if, after [they] ha[ve] been warned by the court that [they] will be removed if [they] continue[] such conduct, [they] continue[] to engage in such conduct." A court may dispense with the constitutional and statutory warnings when it is impracticable to give them. The safety concerns of the court and correction officers were justified based on defendant's history of alleged violence against correction officers and inmates and his possession of weapons, and his in-court intimidation of a prosecution witness during her testimony. In disregard of his professed assurances, and demonstrating his contempt for the proceedings and the court, defendant disrupted the announcement of the verdict three times. It was only after defendant could not be controlled and the jurors had become visibly upset by defendant's verbal abuse that the court

directed the officers to take charge and defendant was removed from the courtroom. Any delay in defendant's removal would have permitted further disruption of the proceedings and risked physical danger to the public, jurors, judge, court officers and staff and the lawyers. These factors informed the court's reasonable, on-the-spot decision that it needed to remove defendant swiftly to ensure the safety of everyone in the courtroom.

Crimes — Right to Counsel — Effective Representation — Appellate Counsel's Failure to Raise Meritless Claim on Direct Appeal

2. The Appellate Division erroneously concluded that the trial court in defendant's criminal prosecution violated defendant's right to be present at trial by removing him from the courtroom without warning during the announcement of the verdict and polling of the jury after his disruptive verbal outburst, and therefore incorrectly granted defendant's writ of error coram nobis on the sole ground that appellate counsel was ineffective for failing to raise that meritless claim on direct appeal. The trial court did not violate defendant's right because, at the time of trial, it was well established that warnings could be dispensed with when impracticable. The Appellate Division erroneously concluded that the law was clear that the trial court committed reversible error, and appellate counsel was not ineffective for failing to raise a meritless claim. Moreover, the affirmation from the supervising lawyer on defendant's direct appeal failed to establish that appellate counsel's advocacy did not reflect a competent grasp of the facts, law, or appellate procedure regarding a defendant's right to be present in the courtroom. The affirmation declared that supervising counsel did not consider raising a challenge to defendant's removal from the courtroom but failed to explain why. Counsel's silence as to the reasons for not considering the courtroom removal challenge could not be determined from the record. Thus, defendant failed to meet his burden on a coram nobis petition of demonstrating that counsel was ineffective for failing to raise the removal issue.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 977, 989, 991, 1004, 1111–1116.
CARMODY-WAIT 2d Right to Counsel §§ 184:281, 184:283;
CARMODY-WAIT 2d Conduct of Trial, in General
§§ 190:102, 190:130, 190:138, 190:142.
LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 24.2.
MCKINNEY'S, CPL 260.20.
NY JUR 2d Criminal Law: Procedure §§ 864, 873, 956, 957,
2539, 2555, 2561.

ANNOTATION REFERENCE

See ALR Index under Absence or Presence; Attorneys;
Trials.

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POINTS OF COUNSEL

Alvin L. Bragg, Jr., District Attorney, New York City (Andrew E. Seewald, Steven C. Wu and Christopher P. Marinelli of counsel), for appellant. Appellate counsel was not ineffective for failing to argue that the trial judge improperly ejected defendant from the courtroom for abusing the jurors as they returned the verdict. (People v Benevento, 91 NY2d 708; People v Baldi, 54 NY2d 137; People v Turner, 5 NY3d 476; People v Carter, 7 NY3d 875; People v Keschner, 25 NY3d 704; Strickland v Washington, 466 US 668; People v Ambers, 26 NY3d 313; People v De La Hoz, 131 AD2d 154; People v Ramchair, 8 NY3d 313; People v Williams, 85 NY2d 945.)

Cleary Gottlieb Steen & Hamilton LLP, New York City (Sabrina Singer, Jared Gerber and Alexandra Lotty of counsel), and Caprice R. Jenerson, Office of the Appellate Defender, New York City (Stephen Chu of counsel), for respondent. I. Corey Dunton did not receive effective assistance of counsel on appeal, where his lawyer failed to raise or even consider the issue of his right to be present at a material stage of trial. (Strickland v Washington, 466 US 668; People v Turner, 5 NY3d 476; People v Stultz, 2 NY3d 277; People v Baldi, 54 NY2d 137; People v Alvarez, 33 NY3d 286; Jackson v Leonardo, 162 F3d 81; Lynch v Dolce, 789 F3d 303; Ramchair v Conway, 601 F3d 66; Mayo v Henderson, 13 F3d 528; Rosario v Ercole, 601 F3d 118.) II. Appellant's arguments for a change in the law on defendant's right to be present do not modify the ineffective assistance of counsel standard at the time of Corey Dunton's direct appeal—nor should they be adopted. (People v Collins, 99 NY2d 14; People v Morales, 80 NY2d 450; People v Bragle, 88 NY 585; Cabberiza v Moore, 217 F3d 1329; Labar v Koplín, 4 NY 547; People v Pickett, 92 AD2d 843; Posey v United States, 416 F2d 545; Humphries v District of Columbia, 174 US 190; People v Rios, 213 AD2d 726; United States v Canady, 126 F3d 352.)

Jenay Nurse Guilford, Center for Appellate Litigation, New York City (Robert Hunter and Bryan S. Furst of counsel), for Center for Appellate Litigation, amicus curiae. I. Appellate counsel's performance is deficient where, due to an admitted oversight, counsel omits an argument that, at the time of the

appeal, could not reasonably be deemed “so weak as to be not worth raising” (*People v Turner*, 5 NY3d 476, 483 [2005]). (*Strickland v Washington*, 466 US 668; *Smith v Murray*, 477 US 527; *Nix v Whiteside*, 475 US 157; *Kimmelman v Morrison*, 477 US 365; *People v Harris*, 26 NY3d 321; *Williams v Taylor*, 529 US 362; *People v Stultz*, 2 NY3d 277; *People v Caban*, 5 NY3d 143; *People v Benevento*, 91 NY2d 708.) II. Appellate counsel’s performance must be assessed based on the actual reason for the challenged omission, not hypothetical reasons that contradict the record. (*People v Keschner*, 25 NY3d 704; *People v Maffei*, 35 NY3d 264; *People v Evans*, 16 NY3d 571; *Wiggins v Smith*, 539 US 510; *Massaro v United States*, 538 US 500; *Lopez v Greiner*, 323 F Supp 2d 456; *People v Robinson*, 209 AD3d 505; *People v Negron*, 26 NY3d 262; *People v Smith*, 90 AD3d 561; *People v Clark*, 28 NY3d 556.)

OPINION OF THE COURT

RIVERA, J.

The issue on this appeal is whether the Appellate Division erred in granting defendant’s writ of error coram nobis on the ground of ineffective assistance of appellate counsel for failure to assert a claim on direct appeal that defendant was improperly removed from the courtroom without prior warning during the announcement of the verdict and the polling of the jury. Because a prior warning was not practicable under the unique circumstances of this case, the trial court did not violate defendant’s statutory and constitutional right to be present during this material stage of the trial and appellate counsel was not ineffective for omitting this nonmeritorious claim. Therefore, we reverse the Appellate Division.

I.

Factual and Procedural History

Defendant Corey Dunton was 16 years old when he opened fire into the Bryant Park skating rink at a 17 year old who refused to turn over his jacket. The shots struck the victim four times, wounding his hands and legs. Another stray bullet struck a 14-year-old bystander, which left him paralyzed from the waist down. For these acts, a jury convicted defendant of attempted murder in the second degree (Penal Law §§ 110.00, 125.25 [1]), two counts of assault in the first degree (Penal Law § 120.10 [1], [3]), two counts of criminal possession of a weapon in the second degree (Penal Law § 265.03 [1] [b]; [3]), assault

in the second degree (Penal Law § 120.05 [2]), and reckless endangerment in the first degree (Penal Law § 120.25). On this appeal, we are concerned with the circumstances that informed the trial court's decision to remove defendant from the courtroom during the reading of the verdict based on his disruptive behavior. As the record establishes, the court and law enforcement officials considered defendant a security threat. Defendant's detention at Rikers Island pending trial was marked by several violent outbursts, which the prosecution reported to the court and required adoption of various security precautions. For example, before jury selection, the prosecutor informed the court that there had been a "[host] of incidents, some charged, some indicted at Rikers Island." These incidents included unprovoked assaults on another inmate and a corrections officer, and possession of weapons. The prosecutor informed the court that video footage from one such incident showed defendant throwing a plastic chair which bounced off the wall and hit an officer, then showed defendant repeating the action with a second chair. The prosecutor further stated that defendant's record at Rikers was "rife with these types of incidents." Based on this information and for security reasons, the court ordered that defendant not stand and only turn his head but not his body when introduced to prospective jurors.

As the trial progressed, corrections and court officers apprised the court of defendant's continued violent conduct, which led the court to take additional security precautions. On one occasion, defendant created a "flood situation" in a holding area and punched an individual who responded. The court noted for the record that this misbehavior resulted in stricter security during transportation to the courthouse, and that defendant's other "alleged acts of violence" against officers and fellow inmates "only heightens whatever tension there may be in the courtroom" and "puts everyone on heightened awareness." On another occasion, officers informed the court that during a break, defendant spit at an officer and damaged a computer.¹ Officers did not arrest defendant only to avoid delaying the trial.

1. The dissent downplays the significance of these incidents in the courthouse, stating, for example, that the flood merely delayed the start of trial (*see* dissenting op at 113-114), glossing over that defendant punched someone who attempted to provide assistance. But defendant's actions on these occasions demonstrated to the trial judge that defendant was prone to unpredictable and violent behavior, even inside the sanctity of the court.

The court also observed that defendant was at times malingering or otherwise attempting to delay trial, which resulted in a rebuke from the court that it would not tolerate any purposeful delays. The court specifically warned defendant that, if for any reason defendant failed to appear in court “because of [his] own doing,” the trial would go on without him.

Defendant’s misconduct extended to the courtroom, increasing concerns about witness and juror safety, and leading to more warnings and the continuation of security measures. For example, after the prosecutor told the court that a witness for the prosecution and members of the gallery had informed him that defendant was staring down the witness during her testimony, smirking and laughing at her and covering his mouth which, according to the prosecutor, was a signal for the witness to keep her mouth shut, the court warned defendant to conduct himself appropriately and not act in any way that might intimidate a witness. Then, when defendant later took the stand in his own defense, counsel made a request that defendant be permitted to stand and point to a chart. The court denied the request stating it would put defendant “five or six feet from the jury” without any physical restraints, and that allowing him near the jury was contrary to corrections and court officers’ recommendations.

Notice of defendant’s continued alleged violent attacks outside the courtroom put the court and law enforcement on heightened alert of a potential in-court outburst given the impending verdict and defendant’s explosive tendencies. Specifically, toward the end of trial, the prosecutor informed the court that earlier in the week defendant, “without warning,” “punched another corrections officer” in the face and that, as in prior incidents, chemical agents had been used to subdue defendant. At that point, the court stated its intent to place defendant in handcuffs for the reading of the verdict, citing the safety of “everyone in the courtroom.” Defense counsel objected to the handcuffing and pointed out that, throughout the trial, defendant had “behaved like a gentleman” in the courtroom. The court agreed but explained that because defendant had multiple times “punched someone entirely unprovoked and by surprise,” he might “for no reason, out of the blue, just throw a punch” at someone in the courtroom.

When the jury notified the court that it had reached a verdict, the court brought up the restraint issue again and clarified that court and correction officers had requested that

defendant be restrained. The court further explained that it had reviewed video footage of one of the earlier altercations, which it described as depicting defendant “clearly trying to escalate and create some hostility.” The court further observed that correction officers were able to deescalate the situation only through their “patience and professionalism.”

In response, defense counsel argued that defendant had “earned the right not to be cuffed” through his good behavior in court and informed the court that defendant had given counsel his “assurance” that he would remain calm during the announcement of the verdict. The prosecution said it would defer to the recommendation of the court officers but again pointed out that defendant had “six, perhaps seven pending indictments arising from incidents that occurred at Rikers Island” with correction officers and fellow inmates. The court ordered defendant to be handcuffed, citing defendant’s “documented history of . . . acting out” and “becoming violent and being physically aggressive with court personnel [and] fellow inmates.” The court commented that it had “seen things get ugly very fast in a courtroom” and that it was weighing the “safety and well-being” of those in what the judge described as a “quite small” courtroom.

After defendant was produced, the court informed him that he was being handcuffed for the “safety and security of everyone in the courtroom” and that the court “want[ed] to make sure that everybody remains in control and nothing happens.” Defendant indicated that he understood.²

The jury entered the courtroom and the foreperson announced, without interruption, the verdict of guilty on each of the first five counts. At that point, defendant audibly laughed. The foreperson continued and announced guilty on the sixth count. Defendant then interrupted, and the following took place:

“THE DEFENDANT: You thought that was gonna

2. The dissent quotes the trial court’s comment to defendant that requiring him to wear handcuffs in the courtroom was “something [it had] never done before” (dissenting op at 115). To the extent the dissent means to suggest that defendant may have been unaware of the court’s ongoing concern that he presented a security risk, this is belied by the court’s decision not to allow defendant to stand up before the jury, its various warnings to him throughout trial regarding his out-of-court conduct, and the very fact that the court determined it was necessary to impose restraints during the reading of the verdict for the “first time” (*id.* at 114-115).

break me? I thought about sentencing. I don't care about sentencing. You think you all broke me? Y'all didn't break me.

"THE COURT: Please control your client.

"THE DEFENDANT: I'm good. You all didn't break me. Give me the whole 50 years. I don't give a f*** about nothing. It's over. It is what it is. All 12 of y'all can sit there and say you all did the right thing. That's what I want y'all to know. Live with that. Live with that.

"THE COURT: Officers, take charge.

"THE DEFENDANT: Live with that. It is what it is. I ain't gonna walk out of here. What y'all done ain't gonna break me. You ain't gonna see me cry. I'm walking out the same way I came in, immaculate. Suck my d***."

Court officers then removed defendant from the courtroom. In defendant's absence, the foreperson announced a guilty verdict on the seventh and final count and the court polled the jurors, who each concurred in the verdict.

Once the jurors were excused, the court put the following on the record:

"THE COURT: . . . Mr. Dunton began to act out. He became quite verbally abusive, began screaming out profanity. It became upsetting. I saw the jurors were becoming upset. I allowed it to go on for a few seconds. I tolerated it for a while. Eventually, I did ask the court officers to take charge and have him removed from the courtroom. In hindsight, it appears the right decision to have him handcuffed in the courtroom."

The court then asked whether the attorneys had any motions, and defense counsel said he had nothing further.

On direct appeal, defendant argued that: (1) arresting officers violated *Payton v New York* (445 US 573 [1980]) by coercing him to leave his apartment; (2) inculpatory statements he made during fingerprinting should have been suppressed; (3) the lineup identification was unduly suggestive; and (4) the People's summation deprived him of a fair trial. The Appellate Division, First Department, affirmed the judgment, rejecting

all of defendant's arguments (184 AD3d 473 [1st Dept 2020]).³ This Court denied leave to appeal (35 NY3d 1093 [2020]). Shortly thereafter, the Second Department reversed a conviction in *People v Antoine*, where the defendant had made a disruptive verbal outburst after the guilty verdict was read but before the jury was polled, and the court concluded that the trial court erred in failing to issue any warning to the defendant before removing him from the courtroom (189 AD3d 1445, 1446 [2d Dept 2020]). After *Antoine* was issued, the appellate counsel who supervised defendant's direct appeal contacted the Office of the Appellate Defender (OAD) regarding filing a writ of error coram nobis on behalf of defendant. OAD filed the writ, arguing that appellate counsel was ineffective for failing to raise the following three claims which would have necessitated vacatur of the Appellate Division's order and/or reversal of the judgment: (1) the trial court violated defendant's constitutional and statutory right to be present during the rendering of the verdict when it removed him from the courtroom without prior warning; (2) the sentencing court erred in not making an express determination on the record whether defendant was eligible for youthful offender consideration; and (3) defendant's maximum sentence of 25 years was excessive given his age and history of trauma and mental health issues. In support of the writ, defendant submitted an affirmation from the supervising attorney in which counsel stated as to the first claim, that "[t]o the best of [his] recollection, [he] did not consider raising a challenge to [defendant's] removal from the courtroom during the verdict without sufficient warning."

The Appellate Division granted the writ, vacated its prior order affirming defendant's judgment of conviction, reversed the judgment, and ordered a new trial (2022 NY Slip Op 68332[U] [1st Dept 2022]). The Court concluded that appellate counsel was ineffective for failing to raise a mode of proceedings error based on defendant's ejection from the courtroom without prior warning during a material stage of the trial, in violation of his Sixth Amendment right to be present. Based on that decision, the Court did not consider defendant's other arguments in support of the writ. A Judge of this Court granted the People leave to appeal (39 NY3d 1110 [2023]).

3. As to the two unpreserved arguments noted by the dissent here (dissenting op at 116), the Appellate Division rejected them on the merits, as an alternative holding (184 AD3d at 474).

II.Defendant's Removal Without Warning Was Proper

The prosecution argues that the trial court's removal of defendant from the courtroom was a proper exercise of discretion because, given his history of violent outbursts, the court had reason to believe defendant posed an imminent risk of harm. Alternatively, the prosecution contends that any violation of defendant's right to be present was de minimis and would not require reversal because he was present for six of the seven counts and the recitation of the verdict is a mere "ministerial act" for which defendant's presence would have made no difference. The prosecution further suggests that the court's warnings to defendant that the trial would continue in his absence should he fail to appear based on his out-of-court misconduct were sufficient to put defendant on notice that the court could remove him for any in-court misbehavior. Defendant contends that his removal without advance warning was unlawful based on his prior good behavior in the courtroom and the fact that he was handcuffed during a purely verbal outburst, and counters that there is no de minimis exception to the right to be present. Defendant also argues that CPL 260.20 entitled him to a warning specific to in-court conduct.

[1] We reject the prosecution's claim that any error was de minimis based on the timing of defendant's removal from the courtroom. There is no material stage of the proceeding that is any less consequential to a defendant's right to be present. However, we agree that the trial court's actions were appropriate under the unique circumstances of this case and in no way contrary to law.

A defendant has a constitutional right "to be present at all material stages of their criminal trial," which includes the reading of the verdict and the polling of the jury (*People v Ramirez*, 41 NY3d 406, 408 [2024]; see also *People v Sanders*, 39 NY3d 216, 221 [2023] [a defendant "is still presumed innocent" until "the jury returns to the courtroom, publicly announces the verdict and, if polled, confirms the verdict"])). Further, CPL 260.20 provides that a defendant must be present during the trial but may be removed if they are "disorderly and disruptive" such that the "trial cannot be carried on with [the defendant] in the courtroom . . . if, after [they] ha[ve] been warned by the court that [they] will be removed if [they] continue[] such conduct, [they] continue[] to engage in such

conduct.” A court may dispense with the constitutional and statutory warnings when it is impracticable to give them (*People v Palermo*, 32 NY2d 222, 225 n [1973]; see e.g. *People v Byrnes*, 33 NY2d 343, 350 [1974] [the trial court did not err in removing the defendant without warning when he “leaped on the counsel table and lunged in the direction of (a witness) in an assaultive manner”]; *People v Wilkins*, 33 AD3d 409, 410 [1st Dept 2006] [same, where the defendant “suddenly charged across the floor and attempted to attack the prosecutor”], *lv denied* 7 NY3d 905 [2006]; *People v Jackson*, 16 AD3d 156, 156 [1st Dept 2005] [same, where the defendant “punched his attorney in the face and then engaged in a lengthy and violent struggle with numerous court officers”], *lv denied* 4 NY2d 887 [2005]).⁴ That was the case here.

The court and correction officers considered defendant a safety risk. Their concerns were justified based on defendant’s history of alleged violence at Rikers against correction officers and inmates and his possession of weapons, and his in-court intimidation of a prosecution witness during her testimony. To ensure the safety of the jury and all those present in the courtroom, the court imposed security measures limiting defendant’s movements. Thus, the court prohibited defendant from standing during his direct testimony because of his close proximity to the jury, and restrained defendant in accordance with court and correction officers’ recommendations. Defendant’s delaying tactics also led the court to admonish him three times that it would proceed without defendant should he fail to appear.

These concerns and the tension caused by defendant’s conduct reached their apex once the jury announced it had reached a verdict. Although counsel conveyed to the court defendant’s assurances that he would remain calm, the court ordered defendant be handcuffed and explained to counsel and defendant that this was for security reasons. In disregard of his professed assurances, and demonstrating his contempt for the proceedings and the court, defendant disrupted the an-

4. The dissent cites Appellate Division authority for the proposition that “a warning will be found practicable in all but the most extreme cases, usually involving violent in-court conduct” (dissenting op at 117, 120), but this Court has never limited the impracticability exception in such manner. Though *Wilkins* and *Jackson* may have involved violent in-court conduct, we have never foreclosed the possibility that a warning is impracticable where a defendant makes a verbal outburst and the court reasonably believes that danger is imminent.

nouncement of the verdict three times. First, he laughed after the foreperson announced guilty on five counts, including the top count of attempted murder.⁵ Second, moments later, after the foreperson announced guilty on the sixth count, defendant directed a verbal outburst at the jury. Third, after the court instructed counsel to control defendant, defendant continued his tirade, using profanity directed specifically at the jury. It was only after defendant could not be controlled and the jurors had become visibly upset by defendant's verbal abuse that the court directed the officers to take charge and defendant was removed from the courtroom.⁶

Contrary to the dissent's view, the totality of defendant's misconduct in and out of the courthouse rendered a warning to defendant immediately preceding his removal impracticable (*see* dissenting op at 112). Any delay in defendant's removal would have permitted further disruption of the proceedings and risked physical danger to the public, jurors, judge, court officers and staff and the lawyers. As the court had earlier observed, "things get ugly very fast in a [quite small] courtroom." The fact that defendant was handcuffed did not eliminate the possibility that he could physically move about and further disrupt the proceedings and injure those in attendance. Indeed, defendant had previously displayed violent sudden outbursts and there was no certainty that handcuffs would prevent him from reacting in the same manner. There was also good reason for the court to doubt that defendant would heed a warning, in the middle of an outburst and immediately preceding his removal. After all, defense counsel was unable to control defendant during his outburst, which was in disregard of the

5. The dissent agrees that "[a]lthough it is unclear from the record whether defendant's laugh was audible to the trial court, it is reasonable to assume that it was" based on the small size of the courtroom (dissenting op at 118 n 4). This is further confirmation that defendant was perilously close to the court reporter, the bench, and the jury.

6. Though the dissent may be correct that defendant uttered only two profanities, we cannot say from the record that the court was being "hyperbol[ic]" in its description of the outburst (dissenting op at 115 n 3). A cold record, upon review by an appellate court, cannot convey a speaker's volume or tone or the rapidity of the communication, nor can it reflect the reactions of others or the tension in the courtroom. Indeed, the court described not only defendant's outburst but the jury's reaction to it. As we have stated, the trial judge has a unique vantage point to observe persons in the courtroom, and has "inherent authority and the affirmative obligation to control conduct and decorum in the courtroom, in order to promote the fair administration of justice for all" (*People v Nelson*, 27 NY3d 361, 367 [2016]).

court's efforts to maintain safety in the courtroom and was a direct attack on the jury and its effort to complete its solemn duty. Further, any incentive defendant may have had to maintain composure during trial, while in the presence of the jury, was no longer present once the foreperson announced guilty on six of seven counts, including the top count of attempted murder. These factors informed the court's reasonable, on-the-spot decision that it needed to remove defendant swiftly to ensure the safety of everyone in the courtroom.

Contrary to the dissent's claim, defendant's removal did not violate the constitutional warning requirement set out in *Illinois v Allen* (397 US 337 [1970]). There, the defendant was verbally "obstreperous" and used "vile and abusive language" purposely to disrupt the trial (*id.* at 341-342). He did not have a history of unprovoked violence like defendant here, nor did the trial court remove him for any legitimate concern about the security of the courtroom. The dissent also makes the baseless assertion that we have created a new rule (*see* dissenting op at 112). The rule is well established and unchanged by our decision here: a defendant must be warned that their continued disruptive conduct will result in removal from the courtroom, unless such warning is impracticable under the circumstances. It will be the rare case where waiting to provide such warning imperils the safety of those in the courtroom. But this is such a case, notwithstanding the dissent's attempts to recharacterize defendant's actions as unremarkable. Defendant was repeatedly violent in and out of the courthouse requiring additional security, he blatantly disregarded his assurance that he would remain calm during the announcement of the verdict, and the jurors were visibly disturbed by the outbursts defendant directed at them. A warning to defendant during his verbal tirade was simply impracticable. A court with a reasonable basis for its security concerns based on a defendant's prior violent conduct, disrespect for the solemnity of the proceedings, and inability to maintain their composure after promising they would, need not wait until the court's fears are realized (*see Wilkins*, 33 AD3d at 410 [a defendant "should not be permitted one free swing" (internal quotation marks omitted)]).⁷

7. Given our holding, we need not address the prosecution's remaining argument.

III.Ineffective Assistance of Appellate Counsel

In the context of a coram nobis application, “appellate advocacy is meaningful if it reflects a competent grasp of the facts, the law and appellate procedure, supported by appropriate authority and argument” (*People v Alvarez*, 33 NY3d 286, 290 [2019] [brackets omitted], citing *People v Stultz*, 2 NY3d 277, 285 [2004]). Effective appellate representation “by no means requires counsel to brief or argue every issue that may have merit; rather, appellate attorneys are afforded wide latitude in deciding which points to advance” (*id.* [internal quotation marks omitted], citing *Stultz*, 2 NY3d at 285). However, even a single failure which “undermine[s] confidence in the outcome” of the proceedings before the court (*Strickland v Washington*, 466 US 668, 694 [1984]), or otherwise deprives a defendant of meaningful representation, amounts to ineffective assistance of counsel (*see People v Turner*, 5 NY3d 476 [2005]; *People v Borrell*, 12 NY3d 365, 368-369 [2009]).

[2] The Appellate Division held that appellate counsel was ineffective solely for failing to raise the removal issue on direct appeal, reasoning that the trial court’s ejection of defendant without a warning immediately before his removal violated defendant’s right to be present during a material stage of the trial, which would have required reversal of defendant’s conviction. As we have explained, the trial court did not violate defendant’s right because, at the time of trial, it was well established that warnings could be dispensed with when impracticable, like here. In other words, the Appellate Division erroneously concluded that the law was clear that the trial court committed reversible error, and appellate counsel was not ineffective for failing to raise a meritless claim (*Stultz*, 2 NY3d at 286-287).⁸ Moreover, and contrary to the dissent’s interpretation, the affirmation from the supervising lawyer on defendant’s direct appeal fails to establish that appellate

8. The dissent suggests we have addressed the issues out of order by looking to the merits of the underlying removal claim before assessing appellate counsel’s alleged ineffectiveness (*see* dissenting op at 112). But we cannot say whether appellate counsel was ineffective for failing to raise a claim without first deciding whether that claim had a basis under the law at the time. As we have discussed, it was clear at the time of defendant’s appeal that he had no meritorious claim based on his removal from the courtroom, and, therefore, appellate counsel was not ineffective on that ground (*see Stultz*, 2 NY3d at 285).

counsel's advocacy in this case did not reflect a competent grasp of the facts, law, or appellate procedure regarding a defendant's right to be present in the courtroom. The affirmation declares that supervising counsel did not consider raising a challenge to defendant's removal from the courtroom but critically fails to explain why. The absence of such reason is particularly curious given that counsel provides an explanation for his decision not to raise the youthful offender issue—he thought it unlikely the sentencing court would have granted defendant youthful offender status—and further admits that in making this decision he did not distinguish between general grounds and specific bases for such a request, citing *People v Middlebrooks* (25 NY3d 516 [2015]). Counsel's silence as to the reasons for not considering the courtroom removal challenge cannot be determined from the record. Thus, defendant failed to meet his burden on a coram nobis petition of “demonstrating that counsel was ineffective” for failing to raise the removal issue (*Alvarez*, 33 NY3d at 290).

IV.

The Appellate Division erroneously concluded that the trial court violated defendant's right to be present, and therefore incorrectly granted defendant's writ of error coram nobis on the sole ground that appellate counsel was ineffective for failing to raise this meritless claim on direct appeal. Accordingly, the order should be reversed and the case remitted to the Appellate Division for consideration of issues raised but not determined by that Court.

AARONS, J.* (dissenting). There are two issues in this case. *First*, was defendant deprived of the effective assistance of appellate counsel when his attorney on direct appeal failed to challenge his removal from the courtroom without a warning during the trial? To answer this question, counsel's performance must be assessed against the circumstances and law at the time of the direct appeal—roughly four years ago.

Second, did the trial court erroneously remove defendant from the courtroom without a warning? To answer this question, the Court could apply existing law, exercise its authority

* Designated pursuant to NY Constitution, article VI, § 2.

to refine or expand its decisional law, or even create a new doctrine to meet the needs of the case.

The majority answered these questions in reverse order. Starting with the second question, the majority created a new rule to conclude that warning defendant to stop his verbal outbursts inside the courtroom was not “practicable” based upon his history of violent conduct outside the courtroom (*People v Palermo*, 32 NY2d 222, 225 n [1973]).¹ Having deemed the issue of defendant’s removal meritless, the majority then addressed the first question and held that appellate counsel was not ineffective for failing to raise that now-meritless issue. This conclusion is irrational because it depends on a standard that did not exist at the time of appellate counsel’s representation (*cf. People v Flowers*, 28 NY3d 536, 541 [2016] [declining to charge counsel with anticipating “a novel and unprecedented statement of law”]; *People v Feliciano*, 17 NY3d 14, 28 [2011] [finding appellate counsel was not ineffective for failing to assert “novel” arguments that called for “an extension of or change in—not an application of—existing law”]).

Further, the majority’s new framework for practicability compromises the constitutional and statutory right to be present at one’s trial (*see* US Const 6th Amend; NY Const, art I, § 6; CPL 260.20). The majority insists on its new rule because defendant’s case presents “unique circumstances” (majority op at 100, 106). To the extent the majority points to defendant’s record of alleged violent incidents while in the custody of New York City Department of Correction at Rikers Island where he was incarcerated as an adolescent and held for years before conviction, those circumstances are not unique (*see e.g.* Steve J. Martin et al., Special Report by the *Nunez* Independent Monitor at 5 [June 8, 2023]; Independent Commission on New York City Criminal Justice and Incarceration Reform, *A More Just New York City* at 26 [2017]; United States Attorney for the Southern District of New York, CRIPA Investigation of the New York City Department of Correction Jails on Rikers Island at 8 [Aug. 4, 2014]).

The Appellate Division applied existing law and determined that appellate counsel was ineffective for omitting from the direct appeal a challenge to defendant’s removal without warn-

1. The majority protests my characterization of this as a “new rule” (majority op at 109). Although the warning requirement itself is “well established and unchanged” (majority op at 109), the majority’s expansion of the practicability exception to that requirement is new.

ing from the courtroom during a material stage of his trial (2022 NY Slip Op 68332[U] [1st Dept 2022]). Additionally, in the interest of judicial economy, the Appellate Division reversed defendant's judgment of conviction and ordered a new trial based upon its conclusion that defendant's unwarned removal violated his right to be present at trial and constituted a mode of proceedings error (*id.*, citing *People v D'Alessandro*, 2010 NY Slip Op 75591[U] [1st Dept 2010] [finding appellate counsel ineffective and that "judicial economy dictates that we dismiss the indictment at this stage"])). I would do the same. I therefore respectfully dissent.

I.

In November 2013, 16-year-old defendant demanded a 17 year old's winter jacket at an ice-skating rink. The 17 year old refused and skated away. When the 17 year old came around again, defendant pulled a gun and fired, hitting the 17 year old with four bullets and causing permanent injury to his hand. A fifth bullet lodged itself into the spine of a 14-year-old bystander, paralyzing him from the waist down. Following defendant's arrest, he was incarcerated at Rikers Island to await trial. In early 2014, a psychologist determined that defendant had the cognitive capacity to achieve academically but showed symptoms of mental health disorders, and his conduct was the product of early onset issues of psychological trauma requiring treatment with medication and therapy.

By the time defendant's trial began in 2016, he had spent three years jailed at Rikers Island where, his current attorney tells us, he did not receive the intense mental health care his diagnoses required. During his lengthy pretrial incarceration, defendant was involved in or instigated violent incidents with correction officers and other incarcerated individuals, resulting in indictments.

Defendant's violent incidents at Rikers did not stop when the trial started, though the closest such conduct came to the courtroom was when he spat on a correction officer and damaged a computer "downstairs" at the courthouse.² Defendant's nonappearance delayed the start of trial on a few occasions—

2. Although the majority discusses "incidents in the courthouse" (majority op at 101 n 1; *see also* majority op at 109), the courtrooms are under the control of the judges and court officers, and the holding cell and transfer areas are under the control of correction officers employed by the Department of Correction—the same agency that runs Rikers Island. To determine whether a

(n. cont'd)

for example, when he allegedly created a “flood situation” and punched another person at the jail the previous day, and when he tried to bring ointment and toothpaste to court that correction officers prohibited as contraband. Accordingly, the trial court warned defendant that if he failed to appear as a result of his out-of-court conduct, the trial would proceed without him (see *People v Parker*, 57 NY2d 136, 141 [1982]). In addition, the court restricted defendant’s movements during the trial, by not permitting him to stand or turn his body during jury selection or stand to point at a chart during his testimony.

During the trial, a prosecution witness began “equivocating and having difficulty articulating . . . her answers” during her testimony. The witness and “people who were in the audience” complained to the prosecutor that defendant was staring, “smirking and laughing” at the witness and covering his mouth, which the witness interpreted as a signal to “keep her mouth shut.” The prosecutor, outside of defendant’s presence, brought the alleged conduct to the attention of the court, which trial counsel denied observing but suggested was innocuous and probably misconstrued. Neither the prosecutor nor the court observed the complained-of conduct, but nevertheless the court concluded the allegation alone triggered its “obligation . . . to simply remind [defendant] not to engage in any conduct that in any way intimidates a witness.” When defendant returned, the court administered that warning, hastening to add it was “not accusing [him] of anything.” Defendant responded that he understood the court’s warning, and no other witness-intimidation complaints appear in the record. And relevantly here, the court never warned defendant that any in-court disruptive conduct during the trial would result in his removal from it (see CPL 260.20; *People v Parker*, 57 NY2d at 140-141; compare *People v Fecu*, 205 AD3d 436, 436-437 [1st Dept 2022], *lv denied* 38 NY3d 1150 [2022]; *People v Brown*, 192 AD3d 1603, 1603-1605 [4th Dept 2021]).

That brings us to the verdict. While acknowledging defendant had acted appropriately in the courtroom throughout trial, the trial court, over objection, determined defendant’s conduct outside the courtroom required him to be handcuffed during the verdict for the safety of everyone else in the courtroom. “I have seen things get ugly very fast in a courtroom,” the court

CPL 260.20 warning was practicable at the time it ought to have been issued, it is more appropriate to look at defendant’s behavior inside the *courtroom* as opposed to his behavior in other settings.

said to counsel outside of defendant's presence. So, "in the interest of avoiding having an ugly situation," court officers would not remove defendant's handcuffs when he returned to hear the verdict. When defendant arrived, the court mostly repeated its rationale for leaving defendant in handcuffs, adding, "That's something we've never done before. This is the first time we're doing that."

The jury returned and announced the verdict. The first five counts, including the top count of attempted murder, came back guilty, and at that point the transcript reads, "The defendant laugh[ed]." When the sixth count also came back guilty, the transcript reflects the following:

"THE DEFENDANT: You thought that was gonna break me? I thought about sentencing. I don't care about sentencing. You think you all broke me? Y'all didn't break me.

"THE COURT: Please control your client.

"THE DEFENDANT: I'm good. You all didn't break me. Give me the whole 50 years. I don't give a f*** about nothing. It's over. It is what it is. All 12 of y'all can sit there and say you all did the right thing. That's what I want y'all to know. Live with that. Live with that.

"THE COURT: Officers, take charge.

"THE DEFENDANT: Live with that. It is what it is. I ain't gonna walk out of here. What y'all done ain't gonna break me. You ain't gonna see me cry. I'm walking out the same way I came in, immaculate. Suck my d***."

Defendant was removed from the courtroom, and, at the court's direction, the foreperson announced the jury's finding of guilt on the seventh count without defendant there to hear it. Nor was defendant present when the jurors each confirmed their guilty verdict on all counts.

Once the jury was discharged, the trial court stated "for the record" that defendant "began to act out. He became quite verbally abusive, [and he] began screaming out profanity."³ The court further stated it "saw the jurors were becoming upset."

3. Even a cursory reading of the transcript reveals the trial court injected hyperbole into the "record" it created of defendant's verbal outbursts. Defendant uttered two profanities: the first was directed at no one, and the second occurred *after* the court directed defendant's removal.

Still, the court stated it “allowed [defendant’s conduct] to go on for a few seconds,” and “tolerated it for a while” before the court “ask[ed] the court officers to take charge and have him removed from the courtroom.”

On direct appeal, appellate counsel made no mention of defendant’s unwarned removal from the courtroom in the brief, much less put it in issue. Instead, appellate counsel focused on four other issues, two of which were unpreserved and all of which were unavailing. The Appellate Division affirmed the judgment of conviction, and this Court denied leave to appeal.

According to the supervising attorney on direct appeal, defendant’s trial counsel contacted him in December 2020 regarding *People v Antoine* (189 AD3d 1445 [2d Dept 2020], *lv denied* 37 NY3d 953 [2021]), in which the Second Department reversed a conviction and ordered a new trial based upon a defendant’s unwarned removal from a courtroom during a jury verdict. The supervising attorney, in turn, contacted the Office of the Appellate Defender about petitioning for a writ of error coram nobis alleging the failure to raise defendant’s removal on direct appeal amounted to ineffective assistance of appellate counsel. That office consented to submitting the petition. In support, the supervising attorney affirmed he made the decisions “about the claims to be pursued on [direct] appeal,” and he “did not consider” challenging defendant’s unwarned removal.

II.

“[A] single failing in an otherwise competent performance may, in a rare case, be so egregious and prejudicial as to deprive a defendant of [their] constitutional right to effective legal representation” (*People v Keschner*, 25 NY3d 704, 723 [2015] [internal quotation marks and citations omitted]; see *People v Ambers*, 26 NY3d 313, 317-318 [2015]). “To rise to that level, the omission must typically involve an issue that is so clear-cut and dispositive that no reasonable [appellate] counsel would have failed to assert it, and it must be evident that the decision to forgo the contention could not have been grounded in a legitimate [legal] strategy” (*People v McGee*, 20 NY3d 513, 518 [2013]; accord *People v Keschner*, 25 NY3d at 723).

Failing to challenge defendant’s removal from the courtroom qualifies as such an omission, for it was “a ‘winning argument’ [that would have led] to appellate reversal of a judgment of conviction and sentence” (*People v Keschner*, 25 NY3d at 723; see *People v Flowers*, 28 NY3d at 541; *People v Turner*, 5 NY3d

476, 481 [2005]; *see also* *People v Espinosa*, 40 NY3d 1065, 1070 [2023, Rivera, J., dissenting] [“The law on an omitted claim need not be ‘definitively settled’ at the time of trial and the claim need not be ‘a clear winner’ before its omission can qualify as ineffective assistance”], quoting *People v Turner*, 5 NY3d at 483).

A.

A defendant has a well-established right to be present at all material stages of a trial, which includes the reading of the verdict (*see e.g. People v Rivera*, 23 NY3d 827, 831 [2014]; *People v Williams*, 85 NY2d 945, 947 [1995]; *People v Byrnes*, 33 NY2d 343, 349 [1974]; *see generally* US Const 6th Amend; NY Const, art I, § 6). A defendant may waive that right either expressly or, as relevant here, impliedly through disruptive conduct (*see Illinois v Allen*, 397 US 337, 343 [1970]; *Snyder v Massachusetts*, 291 US 97, 106 [1934], *overruled on other grounds by Malloy v Hogan*, 378 US 1 [1964]; CPL 260.20; *see also* Rules of App Div, 1st Dept [22 NYCRR] § 604.3 [a]; Rules of App Div, 2d Dept [22 NYCRR] § 702.2 [a]). Whether express or implied, a defendant’s waiver must be voluntary, knowing and intelligent to be valid (*see People v Parker*, 57 NY2d at 140; *People v Epps*, 37 NY2d 343, 349 [1975]).

A court may only remove a defendant for conduct “so disorderly and disruptive . . . that [the] trial cannot be carried on with [the defendant] in the courtroom” (CPL 260.20). Even then, a court may only order a defendant removed if, after the court warns the defendant that continuing the conduct will result in removal, the defendant “continues to engage in such conduct” (CPL 260.20). Carving out a narrow exception to the rule, this Court has stated that the warning is only necessary if it is “practicable” to issue it (*People v Palermo*, 32 NY2d at 225 n). That is, a court must issue a warning if there is a “practical opportunity” to do so (*People v Wilkins*, 33 AD3d 409, 410 [1st Dept 2006], *lv denied* 7 NY3d 905 [2006]). Generally, a warning will be found practicable in all but the most extreme cases, usually involving violent in-court conduct (*see e.g. People v Jackson*, 16 AD3d 156, 156 [1st Dept 2005], *lv denied* 4 NY3d 887 [2005]; *see also People v Brown*, 192 AD3d at 1605).

B.

There is no dispute that defendant was removed from the courtroom without the required warning (*see* CPL 260.20), thus

narrowing the focus to whether issuing that warning was practicable—which it was. Nothing in the record indicates that defendant acted out violently. Indeed, the court severely restricted defendant’s movement during trial, refusing at times to allow him to stand or even turn his body to face the jury, and there is no indication that he failed to comply with those instructions. At the time of the verdict, he was handcuffed, and there is no suggestion in the record before us that defendant was even standing when he spoke. Nor did defendant’s defiant statements to the jury constitute a threat of violence to them or anyone else (*see People v Byrnes*, 33 NY2d at 349; *People v Hendrix*, 63 AD3d 958, 959 [2d Dept 2009], *lv denied* 13 NY3d 797 [2009]; *compare People v Davis*, 270 AD2d 162, 163 [1st Dept 2000], *lv denied* 95 NY2d 795 [2000]). Given these circumstances, the trial court should have instructed defendant to cease his verbal disruptive conduct or be removed.

The record plainly discloses practical opportunities to issue a pre-removal warning. When defendant laughed, the court said nothing.⁴ Likewise, when defendant said, “You thought that was gonna break me?” and four more sentences after that, no one-sentence warning followed even though the court spared a moment to admonish trial counsel to control defendant, and then let him go on—notwithstanding its “inherent authority and . . . affirmative obligation to control conduct and decorum in the courtroom, in order to promote the fair administration of justice for all” (*People v Nelson*, 27 NY3d 361, 367 [2016])). Then, in response to defendant’s nine-sentence verbal outburst, no warning issued—the court simply directed the officers to “take charge” (*see People v Burton*, 138 AD3d 882, 884 [2d Dept 2016])). This timeline confirms it was practicable to issue a one-sentence warning that another outburst would waive his right to attend his trial—a conclusion the trial judge tacitly confirmed by stating he “tolerated it for a while.” Thus, defendant’s unwarned removal was a mode of proceedings error entitling him to reversal (*see id.*; *compare People v Nelson*, 27 NY3d at 367). When his attorney did not raise the issue on direct appeal, defendant’s right to the effective assistance of counsel was violated (*see People v Turner*, 5 NY3d at 485).

4. Defendant’s laughter was loud enough to be heard and recorded by the court reporter. Although it is unclear from the record whether defendant’s laugh was audible to the trial court, it is reasonable to assume that it was. According to the transcript, the well of the courtroom was “quite small” and defendant was close to both the court reporter and the bench.

C.

The People resist this conclusion by proposing several arguments that might have dissuaded appellate counsel from challenging defendant's removal on direct appeal. Of course, no argument could have discouraged the supervising attorney from selecting this issue because, as he stated in his affirmation, he never considered the issue at all. Put another way, appellate counsel's decision to omit this issue was not "grounded in a legitimate [legal] strategy" (*People v McGee*, 20 NY3d at 518).

Further, none of the People's arguments "could" constitute a legitimate strategy that would have thwarted appellate counsel from raising defendant's unwarned removal (*id.*). The People first suggest that counsel could have thought the totality of the court's other warnings put defendant on sufficient notice that he could be removed. True enough, defendant may have been issued *Parker* warnings that put him on notice that the trial would continue in his absence if his out-of-court conduct prevented his appearance (*see People v Parker*, 57 NY2d at 140-142), but those warnings by definition do not address in-court behavior. Consequently, *Parker* warnings cannot do the job of CPL 260.20, which requires an express warning that targets specific disruptive conduct that must not be repeated in the courtroom or risk removal. No reasonable appellate counsel would reject the plain text of that provision for the People's "effective warning" rubric that finds no support even in the cases they cite (*see People v Hemphill*, 173 AD3d 471, 479 [1st Dept 2019] [defendant removed for outburst during verdict, though "(e)arlier in the trial, the court had warned defendant that any further outbursts by him would result in his removal from the courtroom while his trial continued" (emphasis added)], *affd* 35 NY3d 1035 [2020], *revd on other grounds* 595 US 140 [2022]; *People v Irick*, 203 AD3d 517, 517 [1st Dept 2022] [defendant removed from a suppression hearing without a CPL warning when he threw himself on the floor, and he had been warned that "if he persisted in his announced plan to prevent the hearing from going forward, the hearing would proceed in his absence" (emphasis added)]; *People v Paige*, 134 AD3d 1048, 1050, 1052 [2d Dept 2015] [defendant removed for shouting expletives at a police witness after "he had been repeatedly warned by the trial court that if he did not desist in" his pattern of disruptive behavior that "he would be barred from attending the remainder of the trial" (emphasis added)]).

Even less convincing is the People's argument that appellate counsel could have thought a pre-removal warning was impracticable based upon defendant's documented history of violent outbursts outside the courtroom. The People point to no authority for that proposition. The best they can find is a case of another defendant who "attempted to attack [a] prosecutor, in close proximity to the jurors," and "had to be restrained by numerous court officers, some of whom were injured in the violent struggle" (*People v Wilkins*, 33 AD3d at 410). Yet, even that case turned on that defendant's "violent behavior *in the courtroom* [that] went far beyond mere disruption, and created an emergency necessitating his immediate removal" (*id.* [emphasis added]). Even if appellate counsel considered this a colorable opposing argument, there was no legal authority to support it. This argument could therefore not have provided a basis to omit a challenge to defendant's removal from his direct appeal.

The People also posit that counsel could have been swayed by the absence of authority supporting a full reversal of the conviction given defendant's presence during the verdict on six of the seven counts. That would have been an unreasonable consideration given long-standing authority holding mode of proceedings errors result in reversal (*see People v Patterson*, 39 NY2d 288, 295 [1976], *affd* 432 US 197 [1977]). Further, there is no recognized de minimis violation of the right to be present during a material stage of a trial—a point on which the majority and I agree (*compare People v Chisolm*, 85 NY2d 945, 947-948 [1995]). Consequently, defendant's absence for only one out of the seven counts and the jury poll could not have convinced reasonable appellate counsel versed in the law at the time of the direct appeal to omit a challenge to defendant's unwarned removal.

D.

The majority concludes that defendant failed to meet his burden to show appellate counsel was ineffective because the supervising attorney's affirmation "critically fails to explain why" he did not consider raising the removal issue (majority op at 111). This is a red herring, for the relevant inquiry is whether omitting that issue was the product of a "legitimate [legal] strategy" (*People v McGee*, 20 NY3d at 518). The supervising attorney's affirmation completely answers that question.

In any event, it is clear from the supervising attorney's affirmation "that appellate counsel's advocacy in this case did not

reflect a competent grasp of the facts, law, or appellate procedure regarding a defendant's right to be present in the courtroom" (majority op at 110-111; see *People v Stultz*, 2 NY3d 277, 285 [2004]). The trial transcript of defendant's unwarned removal for a verbal disruption was prima facie evidence of a mode of proceedings error. When the supervising attorney affirmed he "did not consider" raising a challenge to the removal, he could have only reasonably meant two things: either he did not read the record thoroughly enough to spot the error, or he did not understand the significance of the error. The second option seems more likely, as the interruption during the rendering of the verdict, followed by defendant's removal, practically jumped off the pages of the trial transcript. Either way, counsel's admission demonstrates a less-than-competent grasp of a dispositive issue in this case.

III.

Turning to the underlying trial error, the majority adopts a version of the People's argument that the warning was impracticable based upon defendant's history of violent out-of-court outbursts. Under the majority's new addition to the judge-made practicability exception, "[a] court with a reasonable basis for its security concerns based on a defendant's prior violent conduct, disrespect for the solemnity of the proceedings, and inability to maintain their composure after promising they would, need not wait until the court's fears are realized" (majority op at 109).⁵ Read in the light of this case's "unique circumstances" (majority op at 100, 106), the majority's new standard really means a defendant who engages in a nonthreatening verbal disruption during trial may be removed without warning based upon that defendant's history of violent out-of-court conduct, even if that conduct never enters the

5. Contrary to the majority's view (see majority op at 110 n 8), defendant had a clearly meritorious claim at the time of his direct appeal. That much is evident from the unanimous decision in the appealed-from First Department order, which the majority calls erroneous but does not say how that Court misunderstood or misapplied the law as it existed at the time. Further, this case is here because trial counsel read *People v Antoine* (189 AD3d 1445), which was decided under existing precedent, six months after defendant's direct appeal. There, notwithstanding a two-Justice dissent, this Court denied leave to appeal from the Second Department's order of a new trial (37 NY3d 953 [2021]) on facts nearly identical to this case—except for any mention of that defendant's out-of-court violent conduct, which only just *today* became relevant in assessing whether a one-sentence pre-removal warning is practicable.

courtroom. And whether that unwarned removal violates the defendant's right to be present at trial now turns on a judge's fear of violence rather than the "practical opportunity" to say a few words of warning required by law (*People v Wilkins*, 33 AD3d at 410; see also Black's Law Dictionary [11th ed 2019], practicable ["reasonably capable of being accomplished; feasible in a particular situation"]).

The majority's new vision of practicability is a long way from its origin. The caveat that warnings should be issued when practicable was mentioned in *People v Palermo* (32 NY2d 222), in which this Court found no constitutional error in briefly gagging a disruptive defendant after warning him to cease such conduct (see *id.* at 225-227). This Court suggested in dicta that "where practicable the defendant be warned that his conduct may result in the imposition of court sanctions" (*id.* at 225 n). This Court also correctly observed that *Illinois v Allen* "did not specifically require that a warning be given prior to the imposition of *each* sanction" authorized by that case, i.e., gagging a defendant, holding a defendant in contempt, or removing a defendant from the courtroom (*People v Palermo*, 32 NY2d at 225 n [emphasis added]; see *Illinois v Allen*, 397 US at 343; compare *People v Cornelius*, 107 AD2d 757, 757 [2d Dept 1985]). Left unsaid was the Supreme Court's conclusion respecting the *specific* sanction of removal:

"[W]e explicitly hold today that a defendant can lose his right to be present at trial if, after he has been warned by the judge that he will be removed if he continues his disruptive behavior, he nevertheless insists on conducting himself in a manner so disorderly, disruptive, and disrespectful of the court that his trial cannot be carried on with him in the courtroom" (*Illinois v Allen*, 397 US at 343).

Given this holding, the majority's practicability exception to the warning requirement, based upon a court's assessment of a defendant's predisposition to violence as revealed by out-of-court (and consequently off-the-record) conduct, is constitutionally suspect.

The pre-removal warning is no obstacle to a court's discretionary responsibility to maintain order, security, and decorum in the courtroom. Quite the opposite—the Supreme Court invented the warning in *Illinois v Allen* (397 US at 342-343) to facilitate that discretion by providing a means to constitutionally remove a disruptive defendant from a trial. Consequently,

whether the court had “good reason . . . to doubt that defendant would heed a warning” (majority op at 108) cannot possibly be relevant to whether it was practicable for the court to have issued it in the first place (*compare People v Lundquist*, 180 AD3d 806, 807 [2d Dept 2020], *lv denied* 35 NY3d 1028 [2020]; *People v Burton*, 138 AD3d at 884).

I cannot condone a standard of practicability that would make it easier to deprive some defendants of their rights and not others based upon an assumption that violent behavior at the jailhouse reliably predicts violence in the courtroom. Indeed, that assumption is belied by the record in this case—the *first* case decided under the majority’s new standard (*cf. People v Rivas*, 306 AD2d 10, 12 [1st Dept 2003] [“there is no indication in the record, or even in the court’s later recitation of the events, that Rivas himself participated in any further disruption after he was warned to be quiet”]).

It should not be easy to dispense with the warning requirement for any defendant. After all, relinquishing the constitutional and statutory right to be present at trial is subject to a waiver analysis (*see People v Parker*, 57 NY2d at 140; *People v Epps*, 37 NY2d at 349). The CPL 260.20 warning is not a courtesy but a critical assurance of constitutionality—if a defendant continues to disrupt the trial after being warned of the consequence of removal, the continuation implies a valid waiver. Given this function,⁶ permitting courts to disregard that assurance whenever a defendant with a history of out-of-court violence engages in a nonthreatening verbal disruption is profoundly misguided. I decline to endorse such a practice.

Chief Judge WILSON and Judges SINGAS, CANNATARO, TROUTMAN and BANNISTER* concur. Judge AARONS* dissents in an opinion. Judges GARCIA and HALLIGAN took no part.

Order reversed and case remitted to the Appellate Division, First Department, for consideration of issues raised but not determined by that Court.

6. The warning provision was added to CPL 260.20 to codify the holding in *Illinois v Allen* (397 US at 343; *see e.g.* Letter from NY County Dist Atty, June 14, 1971, Bill Jacket, L 1971, ch 789 at 8).

* Designated pursuant to NY Constitution, article VI, § 2.

[241 NE3d 1257, 217 NYS3d 496]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MELVIN
BAEZ, Appellant.

Argued March 12, 2024; decided April 25, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 23, 2022. The Appellate Division order, insofar as appealed from, affirmed a judgment of the Supreme Court, Queens County (Gene Lopez, J.), which had convicted defendant, after a nonjury trial, of criminal possession of a controlled substance in the fourth degree and using a portable electronic device while operating a motor vehicle.

People v Baez, 202 AD3d 1102, affirmed.

HEADNOTE

Crimes — Evidence — Chain of Custody — Reasonable Assurances of Identity and Condition of Evidence

In defendant's prosecution for criminally possessing cocaine, the People laid a legally sufficient foundation for admission of the drugs into evidence notwithstanding a gap in the custodial chain, where the People's showing established a legally adequate chain of custody and provided reasonable assurances of the identity and unchanged condition of the evidence. The primary focus of the reasonable assurances inquiry is on whether, during the gap in the chain of custody, some unknown party could have caused a material and prejudicial change in the condition or nature of the evidence. The gap here spanned only a few hours overnight and at all times the drugs remained safely under police control in an identifiable location at a precinct station and were found where they were supposed to be when an officer arrived to voucher the evidence. Moreover, if a gap is brief and logical explanations for the inconsistencies are provided, or can reasonably be inferred from the surrounding circumstances, discrepancies in the record regarding the condition, appearance, or handling of contraband merely raise weight and credibility issues for the jury to resolve. While there were discrepancies relating to the descriptions of the evidence in the voucher invoice and felony complaint, the officer responsible for both documents was capably cross-examined by defendant, identified the evidence as items recovered from defendant at the scene, and admitted that the felony complaint misdescribed those items. The photograph of the evidence corroborated the witnesses' trial testimony concerning the items included in the narcotics envelope, and there was no gap in the custodial chain or evidence of tampering between when an officer took the photograph and sealed the evidence, and when the criminologist took possession of the still-sealed package with its unique identification numbers.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Evidence §§ 943, 944.
CARMODY-WAIT 2d Particular Types of Evidence
§§ 194:45–194:47.
LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed)
§&tinsp;24.4.
NY JUR 2d Criminal Law: Procedure §§ 2207, 2209, 2210.

ANNOTATION REFERENCE

See ALR Index under Chain of Custody.

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POINTS OF COUNSEL

Twyla Carter, The Legal Aid Society, New York City (Harold V. Ferguson, Jr. of counsel), for appellant. Contrary to the Appellate Division, Second Department's decision, the People failed to present legally sufficient evidence to establish the chain of custody of the evidence allegedly recovered by Officer Shuyi Lin during Officer Mark Lewis's search of Melvin Baez and reasonable assurances of the identity and unchanged condition of this evidence (US Const Amend XIV; NY Const, art I, § 6). (*People v Julian*, 41 NY2d 340; *People v McGee*, 49 NY2d 48; *People v Connelly*, 35 NY2d 171; *Amaro v City of New York*, 40 NY2d 30; *People v Hawkins*, 11 NY3d 484; *People v Espino*, 208 AD2d 556; *People v Montoya*, 244 AD2d 510; *People v Steiner*, 148 AD2d 980; *People v Douglas*, 24 AD3d 794; *People v Gamble*, 94 AD2d 960.)

Melinda Katz, District Attorney, Kew Gardens (Christopher J. Blira-Koessler and John M. Castellano of counsel), for respondent. The testimony of three police witnesses established that the evidence was secured in police custody from the scene of arrest through the laboratory and to the courtroom; any errors in paperwork and the like did not defeat the chain of custody but went to the weight of the evidence. (*People v Julian*, 41 NY2d 340; *People v McGee*, 49 NY2d 48; *People v Connelly*, 35 NY2d 171; *People v Jamison*, 29 AD2d 973; *People v Hawkins*, 11 NY3d 484; *People v White*, 40 NY2d 797; *United*

States v Dewitt, 943 F3d 1092; *People v Montoya*, 244 AD2d 510; *People v Espino*, 208 AD2d 556; *People v Steiner*, 148 AD2d 980.)

OPINION OF THE COURT

CANNATARO, J.

Defendant Melvin Baez was convicted after a nonjury trial of possessing a quantity of cocaine. The sole question on appeal is whether the People laid a legally sufficient foundation for admission of the drugs into evidence. We agree with the courts below that the People's showing established a legally adequate chain of custody and provided reasonable assurances of the identity and unchanged condition of the evidence.

I.

At approximately 11:00 p.m. on February 4, 2014, NYPD officers Mark Lewis and Shuyi Lin observed defendant using his cell phone while driving and conducted a traffic stop (*see* Vehicle and Traffic Law § 1225-d [1]). When defendant rolled down his window to speak with the officers, Officer Lewis observed that defendant had bloodshot eyes and slurred speech and both officers smelled marijuana in the car. The officers asked defendant to step out of his vehicle and arrested him, at which point Officer Lewis conducted a search for weapons and contraband. As Officer Lewis placed his hand inside the pocket of defendant's jacket, defendant made a jerking motion and a clear plastic bag with a white substance inside fell to the ground. Defendant stomped on the bag and dragged it with his foot before being moved away by Officer Lewis. Officer Lin retrieved the bag, which she testified had been torn. To keep the contents of the bag safe while in transit to the station, Officer Lin placed the bag inside a latex glove and tied the glove shut.

When Officer Lin arrived at the station, she placed the latex glove and its contents inside a narcotics envelope used to voucher and safeguard drugs. Because she had to return to patrol and was not permitted to keep the evidence with her, she left the envelope on a desk inside an office at the police station and told Officer Lewis where to find it. She testified that the only other person in the office at the time was an administrative officer tasked with watching evidence recovered by other officers during arrests.

Early the next morning Officer Lewis found the narcotics envelope where Officer Lin had told him to look for it inside the

station. According to Officer Lewis, the envelope contained both the latex glove, which he recalled Officer Lin using to secure the evidence, and the plastic bag recovered from defendant. Inside the plastic bag was a white substance and a smaller plastic bag containing 45 even smaller Ziploc packets. Officer Lewis separated the bag holding the 45 Ziploc packets from the larger bag and photographed the two items of evidence.¹ Officer Lewis then weighed all the evidence by placing “everything together on one uncalibrated scale.”

After photographing and weighing the evidence, Officer Lewis placed the evidence back inside a manilla narcotics envelope and completed a voucher invoice. He then sealed the envelope and invoice inside a plastic security envelope. The narcotics envelope, voucher invoice, and security envelope each had unique identification numbers. The voucher invoice indicated that the evidence consisted of two items with the same description: “Alleged crack cocaine; color: white; packaged in: clear plastic bag; form: rock; 9 grams in total.” Officer Lewis placed the security envelope inside a safe at the station. Once inside, the evidence could only be retrieved by an officer assigned to transport the evidence to an NYPD laboratory.

The People also called Yanitza Osorio, a criminologist from the NYPD laboratory who analyzed the white substance three days after defendant’s arrest. Osorio testified that when she received the security envelope, its seals were intact and it contained no visible damage.² When she opened the contents of the manilla narcotics envelope inside, she found a clear plastic bag containing “loose solid material,” and a “second item, which was one clear plastic Ziploc bag containing forty-five clear plastic Ziploc bags containing solid material residue.” Osorio filled out a discrepancy form because the voucher invoice appeared to describe two identical bags of alleged crack cocaine. She did not notice any rips in the plastic bags. Osorio weighed the white substance in the first bag and determined it was 5.535 grams of cocaine. She did not test the “residue” in the “second item” containing the 45 Ziploc packets. Osorio then resealed the evidence and completed her report. The identifica-

1. The photograph was introduced into evidence at trial. It does not depict the latex glove and neither officer testified what became of the glove.

2. Presumably, Osorio would take note of the condition of the security envelope because damage to that envelope could be indicative of tampering with its contents.

tion numbers listed in the report match those used by Officer Lewis.

At the conclusion of the People's case, defendant filed a written motion to dismiss the indictment, arguing that the cocaine was inadmissible because the People failed to establish a complete chain of custody and there were no reasonable assurances that the substance examined by Osorio and introduced at trial was authentic. After permitting defendant to supplement his written papers with an oral statement on the record, Supreme Court denied defendant's motion. As relevant here, the court found defendant guilty of criminal possession of a controlled substance in the fourth degree (Penal Law § 220.09 [1]), while acquitting him of several other charges. Defendant appealed and the Appellate Division unanimously affirmed, holding that the evidence was legally sufficient to establish the chain of custody of the cocaine and provided reasonable assurances of the identity and unchanged condition of the evidence (202 AD3d 1102 [2d Dept 2022]). A Judge of this Court granted defendant leave to appeal (38 NY3d 1186 [2022]). We now affirm.

II.

Before a court will admit into evidence an object allegedly taken from a defendant or found at the scene of a crime, the People must first lay a foundation that the object is the one recovered and that its condition is substantially unchanged (*People v Connelly*, 35 NY2d 171, 174 [1974]; *accord People v Julian*, 41 NY2d 340, 342-343 [1977]). In the case of a fungible item, such as a package of white powder, a sufficient foundation is provided when “‘all those who have handled the item “identify it and testify to its custody and unchanged condition” ’” (*Julian*, 41 NY2d at 343, quoting *Connelly*, 35 NY2d at 174). We have cautioned that this “chain of custody” requirement should not be “extended to unreasonable limits” (*id.*; see also *People v Ely*, 68 NY2d 520, 527-528 [1986]). In addition, “[g]aps in the chain of custody may be excused when circumstances provide reasonable assurances of the identity and unchanged condition of the evidence. Such gaps go to the weight of the evidence, not its admissibility” (*People v Hawkins*, 11 NY3d 484, 494 [2008] [citation omitted]; *People v White*, 40 NY2d 797, 799-800 [1976]). In keeping with the purpose and function of the chain of custody approach, the primary focus of the reasonable assurances inquiry is on whether, “during the

gap in the chain of custody, some *unknown* party”—i.e., an individual not called for questioning and assessment—“could have caused a material and prejudicial change in the condition or nature of the evidence” (*Julian*, 41 NY2d at 344 [emphasis added]; see *Connelly*, 35 NY2d at 175-176 [“the fact that the item was or might have been accessible to *other persons not called as witnesses* casts suspicion on the integrity of the evidence often rendering it inadmissible especially when it appears that the evidence was available to *unknown* persons over an extended period” (emphases added)]).

Here, the People called every individual known to have handled the evidence from the time of its seizure to trial, other than those officers who merely transported the evidence in sealed packaging between locations (see *Connelly*, 35 NY2d at 175 [rejecting the notion that when an exhibit has been mailed for analysis each postal employee who handled the item should be considered a necessary link]). Defendant argues that a gap in the custodial chain existed between the time the evidence was left at the police station by Officer Lin and the time it was picked up by Officer Lewis. But even accepting that there was a short period of time during which the evidence was not fully sealed or attended by a testifying witness, the People’s foundation was sufficient to “provide reasonable assurances of the identity and unchanged condition of the evidence” (*Julian*, 41 NY2d at 342-343 [internal quotation marks and citation omitted] [drugs properly admitted despite People’s failure to account for their “day-by-day location” over a three-year period]; see *Connelly*, 35 NY2d at 175-176 [failure to testify that evidence was locked away or indicate how custody was maintained at all times was not determinative]; see also *People v Pearson*, 224 AD2d 779, 779 [3d Dept 1996], *lv denied* 88 NY2d 940 [1996]).

Specifically, the record indicates that the gap spanned, at most, only a few hours overnight and “[a]t all times, the drugs apparently remained safely under police control” in an identifiable location at a precinct station (see *Julian*, 41 NY2d at 343-344). Officer Lin testified that she placed the evidence inside an envelope used to voucher drugs, and that the only other person in the office at the time was an administrative officer who was tasked with safeguarding such evidence. In leaving the evidence at the station to resume her patrol, Officer Lin followed a procedure intended to reduce opportunities for error

and misconduct (*cf. Pearson*, 224 AD2d at 779; *see also Julian*, 41 NY2d at 341-343). When Officer Lewis arrived to voucher the evidence, “the drugs were found precisely where they were supposed to be” (*see Julian*, 41 NY2d at 343). He testified that the envelope contained not only the white substance and other materials recovered from defendant’s pocket but also the latex glove he recalled Officer Lin using at the scene. These circumstances reduce the risk that the condition of the evidence changed or that it was handled by someone not called as a witness during the brief period in which it was left at the station.

Defendant argues that no reasonable assurances exist to bridge the gap in the chain of custody because there are discrepancies in how the evidence was described at various points between its recovery and trial. Several courts have held that gaps in a custodial chain will not be excused where there are clear and material discrepancies in the record regarding the condition, appearance, or handling of contraband that are never explained by the prosecution, leaving no reasonable assurance that the evidence was not altered during the gap in custody (*see e.g. People v Montoya*, 244 AD2d 510, 510-511 [2d Dept 1997]; *People v Espino*, 208 AD2d 556, 557 [2d Dept 1994], *lv denied* 84 NY2d 1031 [1995]; *People v Steiner*, 148 AD2d 980, 981-982 [4th Dept 1989]). But if a gap is brief and logical explanations for the inconsistencies are provided, or can reasonably be inferred from the surrounding circumstances, such discrepancies merely raise weight and credibility issues for the jury to resolve in assessing whether the People met their ultimate burden of establishing proof of guilt beyond reasonable doubt (*see e.g. People v Sarmiento*, 168 AD2d 328, 328-329 [1st Dept 1990], *affd for reasons stated* 77 NY2d 976 [1991]; *People v Welch*, 71 AD3d 1329, 1331 [3d Dept 2010], *lv denied* 15 NY3d 811 [2010]; *People v Lanza*, 299 AD2d 649, 650-651 [3d Dept 2002], *lv denied* 100 NY2d 540 [2003], *rearg denied* 100 NY2d 563 [2003]).

Such was the case here. The most troubling discrepancies in the record relate to the descriptions of the evidence in the voucher invoice and felony complaint. But Officer Lewis was responsible for both documents and was capably cross-examined by defendant. Officer Lewis identified the evidence as items recovered from defendant at the scene. He admitted

that the felony complaint misdescribed those items.³ He further explained that, when typing out the voucher invoice, his intent was to convey that the narcotics envelope contained “alleged crack cocaine” in two plastic bags with a combined weight of nine grams, which he measured by placing everything together on an uncalibrated scale. In contrast, criminologist Osorio testified that she weighed only the white substance in the larger of the two bags (*see Lanza*, 299 AD2d at 649-650; *People v Martinez*, 151 AD2d 965, 965 [4th Dept 1989], *lv denied* 74 NY2d 814 [1989]). The photograph taken by Officer Lewis corroborates both witnesses’ trial testimony concerning the items included in the narcotics envelope, and there was no gap in the custodial chain or evidence of tampering between when Officer Lewis took the photograph and sealed the evidence, and when Osorio took possession of that still-sealed package with its three unique identification numbers.⁴

Defendant also focuses on Osorio’s testimony that she did not “see” or write in her worksheet that there were rips in the plastic bags recovered from defendant, which he characterizes as irreconcilable with Officer Lin’s testimony about the torn condition of the larger bag. Defendant ignores that the bags were admitted into evidence at trial and the factfinder was expressly encouraged to examine them to confirm Officer Lin’s testimony. If the larger bag *was* torn in some way, Osorio’s mere failure to notice that defect would not support an inference of tampering.⁵ Because the bag is not part of the record on

3. Officer Lewis averred in the felony complaint that he recovered “two (2) twist bags containing more than four ounces (4 oz) of cocaine.” Four ounces is more than 20 times the amount Osorio determined the substance weighed and more than 12 times the amount Officer Lewis himself recorded as the combined weight of the evidence on the voucher invoice.

4. Although not clear from the record, it seems likely the felony complaint was executed during this period, after the evidence had already been photographed and sealed.

5. Contrary to the dissent’s characterization of the testimony, the only bag that Osorio affirmatively stated had no rips or holes in it was the plastic security envelope. Osorio’s primary role was to test the substance inside defendant’s bags, not to examine their condition. Moreover, although the dissent makes much of Officer Lin’s statement that “[e]verything started po[ul]ring out” of the bag when defendant stomped on it and dragged it across the ground, that lone statement does not support the dissent’s assumption that the bag could not have been handled in an office setting without threatening the “teaspoon” of cocaine that remained, or that Osorio would have remembered the presence or absence of rips two years after she tested the drugs inside. A physical examination of the bag, which was available to the

(n. cont’d)

appeal, it is impossible to discern the existence or extent of any discrepancy, let alone conclude that it rendered the *drugs* inadmissible.⁶

In making these points, we do not condone the seemingly careless manner in which the items were described, particularly in the official records. Imprecision and inaccuracy in police paperwork not only impede the prosecution of crime, they erode public confidence in law enforcement and lend credence to allegations of incompetence and misconduct. Nonetheless, it is a fundamental principle of our justice system that factfinders determine credibility and decide which inferences to draw from conflicting evidence, based on their direct examination of the physical evidence and observations of each witness's demeanor and tone (critical inputs unavailable to us on this appellate record). At the admissibility stage, the court's role is that of gatekeeper: the task is merely to assess whether the judge or jury, acting as factfinder, has been provided sufficient evidence to support a factual conclusion that the item in question is what the People claim (*see Julian*, 41 NY2d at 344). This Court, moreover, is jurisdictionally prohibited from making factual findings or engaging in weight of the evidence review. Our authority extends only to deciding questions of law⁷ (*People v Bleakley*, 69 NY2d 490 [1987]).

factfinder but not to this Court, could refute each of the dissent's negative assumptions and, in the process, relieve it of having to speculate about what the evidence showed.

6. Other discrepancies highlighted by defendant and the dissent are overstated or have little to do with the minimal gap in the custodial chain. The varying descriptions of the cocaine as being in "rock" form, as a combination of rock and powder, or as "loose solid material," are all consistent with a substance that defendant partially crushed at the scene, as he was consistently described doing. There is no evidence that the substance changed in color or in some other immutable or inexplicable respect (*compare Montoya*, 244 AD2d at 510-511; *Espino*, 208 AD2d at 557; *Steiner*, 148 AD2d at 981-982). Officer Lin's testimony that she recovered "a plastic bag" and similar discrepancies regarding the number of bags recovered at the scene were explained by Officer Lewis's testimony that the smaller plastic bag and its 45 Ziploc packets were inside the larger plastic bag that fell from defendant's pocket. The isolated snippet of grand jury testimony in which Officer Lewis stated that he "recover[ed]" the evidence is not materially inconsistent with the officers' trial testimony or indicative of deceit; indeed, similar phrasing was used throughout trial. Nor is the fact that neither officer clearly explained who removed the evidence from the latex glove, or what happened to the latex glove after the evidence was vouchered, indicative of tampering. The glove was not itself evidence.

7. The dissent goes far beyond mere impermissible weight of the evidence

(n. cont'd)

In this case, a legally adequate foundation was provided by the People’s chain of custody showing. Defendant’s problem is not with the fact that the evidence was left overnight at a police station or with any risks specific to that gap, it is with the credibility of the People’s witnesses and the purportedly insufficient weight accorded the discrepancies. It was within the province of the factfinder to attribute those discrepancies to “mistake, including faulty observation, recollection or recording” rather than to draw the more cynical inference of a conspiracy against defendant (*see People v Tavares*, 134 AD3d 436, 437 [1st Dept 2015], *lv denied* 26 NY3d 1150 [2016]; *People v Ciriaco*, 11 AD3d 324, 324 [1st Dept 2004]; *lv denied* 4 NY3d 742 [2004]; *People v Beverly*, 5 AD3d 862, 864-865 [3d Dept 2004], *lv denied* 2 NY3d 796 [2004]; *Matter of Kassan D.*, 287 AD2d 564, 565 [2d Dept 2001]; *People v Cassells*, 254 AD2d 109, 109 [1st Dept 1998], *lv denied* 92 NY2d 981 [1998], *rearg denied* 92 NY2d 1029 [1998], *habeas denied* 2000 WL 1010977, 2000 US Dist LEXIS 10327 [SD NY July 21, 2000]; *People v Figueroa*, 213 AD2d 343, 343 [1st Dept 1995], *lv denied* 86 NY2d 794 [1995]; *People v Padilla*, 175 AD2d 20, 20-21 [1st Dept 1991], *lv denied* 79 NY2d 830 [1991]; *People v Newman*, 129 AD2d 742, 742 [2d Dept 1987] [all treating explainable discrepancies in paperwork or testimony as raising issues of weight and credibility for the factfinder]). The evidence was therefore properly admitted.

Accordingly, the order of the Appellate Division, insofar as appealed from, should be affirmed.

RIVERA, J. (dissenting). Defendant was convicted for drug possession and a traffic violation after police stopped him for allegedly driving while using his cell phone. At trial, the arresting officers could not explain why the bag of drugs they recovered—which was torn during the arrest so severely that

review, drawing negative inferences against the prosecution at every opportunity, questioning uncontested matters like the legality of the police stop, and relying on an informational source that does not qualify for judicial notice and did not exist at the time of trial, namely a Gothamist article discussing a vague and redacted document with a column that simply states “adverse credibility findings,” on which Officer Lewis’s name appears. While this information might have formed a basis for impeachment of Officer Lewis’s credibility through cross-examination, it by no means constitutes record evidence warranting the dissent’s apparent conclusion that Officer Lewis’s testimony here was incredible as a matter of law. More generally, appellate judges should not presume that the inferences we draw from a cold record are more reliable than the conclusions of the factfinder who examined the physical evidence and observed the witness examinations.

the drugs were “po[u]ring out”—miraculously arrived at the crime laboratory for testing intact, transformed into a bag that the criminalist repeatedly confirmed had no rips or holes. Nor could they explain how the items they found on defendant weighed over 20 times more than what the crime lab found. The nature and number of these discrepancies belie the majority’s claims of a “brief” gap in the chain of custody showing and “logical explanations for the inconsistencies” in the arresting officers’ testimony and the criminal laboratory’s undisputed findings (*see* majority op at 130). On this record the prosecution failed to establish by clear and convincing evidence an unbroken, reliable chain of custody, that drugs were recovered from defendant, as charged.

The majority concedes that there are discrepancies in the chain of custody and acknowledges that the prosecution failed to fill these gaps, but attempts to make up for the missing links through speculation and obfuscation (*see* majority op 129-130, 131-132). Try as it might, the majority cannot explain away the lack of evidence regarding who, specifically, if anyone, was present and ensured the envelope was not handled when it was left in the precinct overnight, or how and why the contents of the evidence bag changed. By rewriting our law so that a chain of custody deficiency is now treated as a weight of the evidence problem, the majority disregards the judiciary’s essential role as a gatekeeper on questions of admissibility in order to affirm a conviction obtained with questionable evidence. I dissent.

I.

The prosecution must establish the foundation for evidence by clear and convincing evidence (*People v McGee*, 49 NY2d 48, 59-60 [1979]). “The offering party must establish, first, that the evidence is identical to that involved in the crime; and, second, that it has not been tampered with” (*People v Julian*, 41 NY2d 340, 342-343 [1977]). “[A] fungible item, such as a package of white powder, presents special difficulties in proving . . . authenticity” (*id.* at 343). “If the object was taken from the defendant or found at the scene of the crime, the foundation is laid once it is shown that the thing offered is the one recovered and that its condition is substantially unchanged” (*People v Connelly*, 35 NY2d 171, 174 [1974]).

Here, there are so many material and troubling inconsistencies in the testimony regarding what the officers purportedly recovered from defendant that it’s difficult to know which one

to discuss first.¹ I'll start with the most critical and inexplicable discrepancy: the changing condition of the bag containing alleged drugs. One of the arresting officers, Officer Lin, testified that, during the arrest, the bag was ripped on the ground, where it left a white stain. She then "took out [her] latex glove" and "put [the bag] inside of the glove." Officer Lin explained she did this because "[t]he bag was broken. Everything started po[u]ring out." To be crystal clear: she confirmed that putting the bag in the glove was necessary *because* the bag was torn open. At the precinct, Officer Lin then placed that glove in an envelope, which the prosecution argued was the same envelope delivered to the crime lab for testing. However, the criminalist who opened the evidence package repeatedly testified that there were no rips or holes in any of the bags she received, including the bag that contained the tested substance. At trial, the criminalist further confirmed that the bags entered into evidence were in the same or substantially the same condition that she found them, and after reviewing the bag in evidence, she further testified that all of the bags she received—including the "plastic bags contained within" the security envelope—had no rips or holes. The prosecution did not provide any explanation on the record of how the ripped bag containing the drugs reached the crime lab undamaged.

Because the majority cannot rationally account for the self-mending bag, it instead questions the reliability of the criminalist by asserting that the criminalist's job was to test the substance, not the bag (*see* majority op at 131-132 n 5). This assertion is belied by the criminalist's testimony that her analysis includes "taking an inventory" of all the materials received in the bag and noting any discrepancies in those materials—not just the drugs themselves. She did that here and brought those discrepancies to the attention of her supervisor. The majority cannot avoid one more bit of testimony. Upon viewing the bag again and being questioned about it, the criminalist testified unequivocally that the bag she received had no rips or holes.

Next, and relatedly, is the mystery of the disappearing latex glove. Officer Lin testified she put the glove that contained the ripped drug bag in an unsealed envelope at the precinct, which she left unattended on a desk. Officer Lewis testified he

1. The third officer present at the stop of defendant's vehicle and during his arrest did not testify at trial, so my analysis is limited to the testimonies of Officers Lin and Lewis.

recovered the envelope from that same spot at some later, undisclosed time, that it contained the glove and that he photographed the envelope's contents. But, as Officer Lewis admitted, the photograph does not depict the glove. And, the criminalist did not find a glove in the envelope sent to the lab. Officer Lewis's testimony that he removed the evidence from the glove before photographing it is incredible on its face because if the bag was ripped—as Officer Lin testified and which constituted the sole reason for putting the bag in the glove—then removing the bag from the glove would have caused some or all of the substance to fall out, potentially destroying evidence.

Then, there are the inconsistent references to 45 glassine bags and conflicting testimony during different stages of this case regarding who recovered what from defendant when he was stopped. At trial, Officer Lin testified to retrieving the one ripped bag from the ground and putting it in the glove. She did not testify that she put anything other than that glove in the unsealed envelope that she left on the precinct table. But Officer Lewis testified before the grand jury that *he* recovered *two* clear bags containing *multiple* Ziploc bags that fell from defendant's pocket to the ground. Further, this grand jury testimony does not match the two arrest reports he filled out, where he stated that he personally recovered a single bag of crack cocaine and made no mention of another bag containing 45 glassine envelopes. The property voucher filled out by Officer Lewis likewise makes no mention of the glassine bags or a second plastic bag. During cross-examination at trial, Officer Lewis testified that it was Officer Lin who recovered the evidence, that there were two bags, and that one bag was inside the other. Given the officers' different versions of what they allegedly found on defendant, it is unclear who recovered what.

Another meaningful discrepancy in the evidence concerns the weight of the seized substance. Officer Lewis alleged in the felony complaint—the instrument charging defendant and the basis for his prosecution—that he recovered “two twist bags containing more than four ounces of cocaine.” Four ounces is the equivalent of 113.39 grams. The property voucher he filled out states that there were two bags, each containing nine grams of crack cocaine. Officer Lewis explained that, although he listed a nine-gram bag of crack cocaine twice on the form, it was a duplicate, as opposed to referring to two separate bags. But that conflicts with the crime lab report which states that

the tested substance weighed 5.53 grams. Officer Lewis attempted to explain this weight discrepancy as based on his use of a uncalibrated scale and that he weighed all of the items together. But, by these assessments, Officer Lewis recovered at least two teaspoons of cocaine from defendant while the lab found half that amount in one bag, all while the other bag contained 45 Ziploc bags and an unidentified residue, which could not explain the difference. And, even if we ignore this discrepancy, there is no explanation for the difference between these weights and the one listed in the felony complaint, which is over 20 times the weight of the drugs tested at the lab.

Lastly, there is uncertainty as to the integrity of the plastic glove Officer Lin first placed in an unsealed envelope which she then left on the desk in the precinct for an unknown period of time. There is no evidence as to who had access to the envelope before Officer Lewis retrieved it the morning after defendant's late-night arrest. Officers Lin and Lewis did not identify anyone charged with watching the envelope and neither officer testified about any protocol for safeguarding the envelope while it was out of their control or view. Indeed, the testimony makes clear that no action was taken to prevent tampering until hours after Officer Lin left it, when Officer Lewis eventually placed the unsealed envelope in a sealed package, vouchered it with a unique identification number, and then placed it in a narcotics safe for transportation by another officer to the crime lab. As the Court explained in *Connelly*, "the fact that the item was or might have been accessible to other persons not called as witnesses casts suspicion on the integrity of the evidence often rendering it inadmissible especially when it appears that the evidence was available to unknown persons over an extended period" (35 NY2d at 175-176). While, in *Connelly*, the officers testified to "the identity and unchanged condition of the evidence," here we have testimony of the officers who collected, packaged, and vouchered the alleged drugs that contradicts the criminalist who received and tested the packaged substance, thus placing in question the integrity of the evidence (*id.* at 176).

The majority notes that almost although not everyone *known* to have handled the evidence testified at trial (*see* majority op at 129). But that begs the question whether someone else handled the envelope and its contents during the hours before Officer Lewis recovered it. There is no evidence of the name and rank of the person the majority assumes safeguarded the

evidence, no evidence that Officer Lin notified anyone that there was evidence that needed to be safeguarded, and no evidence of how the unsealed envelope was in fact safeguarded. Thus, we cannot assume, as the majority does, that there is “no . . . evidence of tampering” (*see* majority op at 131).² The majority’s effort to minimize the discrepancies falls flat because it matters that Officer Lewis could not get his story straight about what exactly was retrieved from defendant; it matters that there was no explanation for what happened to the glove that kept the drugs from “po[u]ring out” between the arrest and Officer Lewis’s vouchering; it matters that 45 glassine packets appeared for vouchering that were never mentioned in the arrest report or Officer Lin’s testimony, as though she somehow would not notice fitting a bag with 45 bags into the latex glove; and it matters that the bag changed from a ripped to un-ripped condition.

These discrepancies lead to the inexorable conclusion that the prosecution failed to establish by clear and convincing evidence a chain of custody from the point of defendant’s stop and arrest to the crime lab test, that laid a proper foundation “that the thing offered is the one recovered and . . . its condition is substantially unchanged” (*Connelly*, 35 NY2d at 174).

II.

The majority insists that, if the chain of custody is adequate and there are logical explanations for any inconsistencies, then “such discrepancies merely raise weight and credibility issues for the jury to resolve in assessing whether the People met their ultimate burden of establishing proof of guilt beyond reasonable doubt” (majority op at 130). This inverted analysis misses the mark. Proffered evidence of drugs allegedly recovered from a defendant is only admissible if it meets a threshold legal test that the chain of custody as described is unbroken and reasonably assures a court that the drugs offered for admission were actually retrieved, as charged by the prosecution (*Connelly*, 35 NY2d at 174; *Julian*, 41 NY2d at 342-343). Assurance of a reliable chain of custody provides the foundation for *admission* of the evidence, as a matter of law,

2. Notwithstanding the majority’s unwarranted assertions, I rely on the law as applied to the record before us, in contrast to the majority, which attempts to minimize the discrepancies by noting them in footnotes and by selectively drawing inferences favorable to the prosecution even though contradicted by the record evidence (*see* majority op at 132-133 n 7).

not for assessing the weight assigned to it as a matter of fact or credibility. In other words, if the chain of custody does not connect the item retrieved at point A to the item at point B, we do not put evidence of the item at point B before the trier of fact.

The majority's string cites to Appellate Division cases that repeat well-established, general rules of evidence do not stand for a different proposition (*see* majority op at 130, 133). While cases regarding a changed color or consistency of the proffered drug—say from white to brown powder, or from a powdery to a chunky substance—are qualitatively different from the type of discrepancies at issue on this appeal, they apply the controlling rule under *Connelly* and *McGee* to drug cases: If the prosecution fails to establish by clear and convincing evidence that the drug is the same one allegedly recovered from a defendant, then it is inadmissible (*see People v Montoya*, 244 AD2d 510, 511 [2d Dept 1997] [seized substance erroneously admitted when the prosecution never attempted to explain how the substance changed from powdery to chunky, or how it changed color]; *People v Espino*, 208 AD2d 556, 557 [2d Dept 1994] [same when chemist failed to provide explanation for how texture of cocaine changed from white powder to brownish white and hard]; *People v Steiner*, 148 AD2d 980, 980 [4th Dept 1989] [same when the prosecution presented no testimony concerning whether it was possible for cocaine to change from powder to chunks and then back to powder again]; *People v Layou*, 71 AD3d 1382, 1383 [4th Dept 2010] [same when substances were left unattended in a police station room and then had “significant weight discrepancies” when analyzed at a crime lab]).

This same rule controls here, where the basis for doubting the connection of the substance to defendant is the change in the drug itself or the manner in which the drugs have been handled by law enforcement and the inconsistency in the conditions of the containers holding the substance between when they were first received and when they were eventually tested. If the drug is not identical or the drug or its packaging appears tampered with suggesting it is not the same item, we do not put it to the factfinder to conclude that tainted evidence establishes the defendant's guilt. Before admitting such evidence, the court must be satisfied that there is clear and convincing evidence that the drugs proffered were recovered from defendant as described by the officers. If so, then the trier

of fact can determine whether the drugs tested are the same as those allegedly recovered from defendant—a different matter from whether defendant was in fact knowingly possessing drugs for personal use or sale.

The chain of custody test safeguards individuals against wrongful convictions by ensuring that law enforcement follows adequate custodial procedures. Like the majority, I do not condone careless police work (*see* majority op at 132). But, I am unwilling to excuse it or disavow our judicial role of deciding whether there is clear and convincing evidence connecting the defendant to the items allegedly recovered at the scene by transforming a question of proper foundation for admission into a question of weight of the evidence.

We also should not ignore that Officer Lewis—the main witness for the prosecution connecting defendant to the drugs tested—is on the Queens County District Attorney’s list of officers with an “adverse credibility finding.” That means a court or internal investigation questioned the officer’s truthfulness in some other matter (*see Martinez v City of New York*, 2022 WL 17090267, *21 n 10, 2022 US Dist LEXIS 210204, *70 n 10 [ED NY, Nov. 18, 2022, No. 16-CV-79 (NRM) (CLP)] [noting that “(i)n 2019, the Queens County District Attorney announced that her office had prepared and would maintain an internal list of ‘substantiated misconduct allegations, criminal matters, adverse credibility findings and civil lawsuits’ related to NYPD officers”]; *Officers with Classification Adverse Credibility Findings*, Queens County District Attorney [print date Feb. 18, 2021], embedded at George Joseph, *Queens DA Reveals New Internal List Of NYPD Officers With Credibility Issues*, Gothamist [Feb. 16, 2021], <https://gothamist.com/news/queens-prosecutors-tracked-nypd-cops-suspected-lying-and-criminal-convictions-documents-show> [accessed Apr. 1, 2024] [document from the Queens County District Attorney released pursuant to New York’s Freedom of Information Law including Officer Mark Lewis on list of officers with “adverse credibility findings”]). Here, Officer Lewis submitted different versions of events throughout the course of this prosecution concerning who recovered the substance at issue, how it was packaged, and how much the substance weighed. These shifting narratives should have alerted the court to problems with the reliability of the chain of custody and led to exclusion of the drug evidence. Indeed, defendant represented himself at the trial, and defendant impeached Officer Lewis regarding the grounds

for the stop that precipitated the alleged recovery of drugs with evidence of defendant's own cell phone records. According to appellate counsel, those records show that defendant's phone had no outgoing or incoming calls or texts at the time of the stop, despite Officer Lewis's testimony that defendant had been on a phone call. Defendant also questioned the officer regarding allegations that he had planted evidence on two other individuals. This cross-examination provided context for the court's assessment of the discrepancies in Officer Lewis's testimony and whether the prosecution's chain of custody evidence was reliable.

If the majority is going to affirm defendant's conviction for drug possession, it should do so based on clear and convincing evidence that the alleged substance and amount the officers say they recovered from defendant is actually what the crime lab received, tested, and found to be a specified quantity of cocaine. No one's liberty should be taken on anything less than evidence of those links in the chain that connect a defendant to illegal drugs.

Judges GARCIA, SINGAS, TROUTMAN and HALLIGAN concur. Judge RIVERA dissents in an opinion, in which Chief Judge WILSON concurs.

Order insofar as appealed from affirmed.

[242 NE3d 642, 217 NYS3d 857]

RICHARD ALCANTARA et al., Appellants, v ANTHONY J. ANNUCCI,
as Acting Commissioner of Corrections and Community
Supervision, et al., Respondents.

Argued March 12, 2024; decided April 25, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 31, 2022. The Appellate Division order, insofar as appealed from, (1) modified, on the law, a judgment of the Supreme Court, Albany County (Denise A. Hartman, J.; op 66 Misc 3d 850 [2019]), which had (a) partially granted defendants' motion for summary judgment to the extent of declaring plaintiffs have not shown that defendant New York State Department of Corrections and Community Supervision (DOCCS) is failing to comply with its obligations under Correction Law § 73 concerning the location, conditions of confinement, and rehabilitative programming within the Fishkill Correctional Facility; (b) partially denied defendants' motion for summary judgment and, (c) upon searching the record, granted partial summary judgment to plaintiffs to the extent of declaring that plaintiffs have demonstrated that DOCCS is failing to comply with its obligations under Correction Law § 73 to provide community based programming and educational, vocational and employment opportunities in the communities outside the Fishkill Correctional Facility environs; (2) denied partial summary judgment to plaintiffs; (3) granted defendants' motion for summary judgment in its entirety; and (4) dismissed the complaint. The modification consisted of reversing so much of the judgment as had partially denied defendants' motion for summary judgment and granted partial summary judgment to plaintiffs, upon a search of the record.

Alcantara v Annucci, 203 AD3d 1483, modified.

HEADNOTES

Prisons and Incarcerated Individuals — Conditions of Confinement — State's Obligation to Secure Community-Based Opportunities to Persons Confined in Residential Treatment Facility

1. The wholesale refusal by the New York State Department of Corrections and Community Supervision (DOCCS) to undertake efforts to secure community-based employment, educational, and training opportunities for

persons confined in its residential treatment facility (RTF) constitutes a violation of Correction Law §§ 2 (6) and 73 (2) and (3), which require DOCCS, at a minimum, to undertake reasonable efforts to secure community-based opportunities for those persons subject to its RTF programming. DOCCS cannot categorically refuse to attempt to secure community-based opportunities for RTF residents. While DOCCS has discretion in operating its RTF programs, the record demonstrated that DOCCS was exercising no discretion with respect to community-based opportunities. The permissive phrase “may be allowed to go outside” in Correction Law § 73 (1) was misconstrued as empowering DOCCS to bar all RTF residents categorically from accessing community-based opportunities without considering whether such opportunities were available or appropriate. By reading the phrase in isolation, defendants read the definitional provision out of the statute, eviscerated the character and purpose of the RTF, and undermined the legislative intent. While references to “flexibility” in the legislative history support that DOCCS has discretion in fashioning its RTF programming, that flexibility is tied to the needs of individual offenders about to reenter the community. This legislative history is directly contrary to DOCCS’ construction of the statute, which had given rise to an inflexible policy that did not take individual RTF residents into account.

Prisons and Incarcerated Individuals — Conditions of Confinement — Adequacy of Residential Treatment Facility Programming

2. The Appellate Division properly affirmed that part of a judgment which entered a declaration in defendants’ favor in an action challenging the adequacy of the programming and employment opportunities offered at defendant New York State Department of Corrections and Community Supervision’s (DOCCS) residential treatment facility (RTF), where defendants demonstrated as a matter of law that the internal programming at the RTF was at least minimally adequate, and plaintiffs failed to raise an issue of fact. The statute for RTF programming provides for the assignment of a “specific program” to each resident and that the program be “directed toward the rehabilitation and total reintegration into the community” of residents (Correction Law § 73 [3]). The details fall entirely within the discretion of DOCCS.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Penal and Correctional Institutions §§ 99, 100.

McKINNEY’S, Correction Law §§ 2 (6); 73.

NY JUR 2d Criminal Law: Procedure § 3269; NY JUR 2d Penal and Correctional Institutions § 272.

ANNOTATION REFERENCE

See ALR Index under Prisons and Prisoners; Rehabilitation.

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POINTS OF COUNSEL

Willkie Farr & Gallagher LLP, New York City (*Matthew Freimuth* and *Ravi Chanderraj* of counsel), *The Legal Aid Society*, New York City (*Robert Newman* of counsel), and *Prisoners’ Legal Services of New York*, Albany (*James Bogin* of counsel), for appellants. I. The Appellate Division erred in holding that Fishkill Correctional Facility satisfies the statutory requirements for a residential treatment facility despite providing no community-based programming opportunities to any residents, as well as insufficient programming inside the facility. (*Matter of Allstate Ins. Co. v Libow*, 65 NY2d 807; *People v Anonymous*, 34 NY3d 631; *Matter of Comptroller of City of N.Y. v Mayor of City of N.Y.*, 7 NY3d 256; *Matter of New York County Lawyers’ Assn. v Bloomberg*, 19 NY3d 712; *People v Mobil Oil Corp.*, 48 NY2d 192; *Matter of Lemma v Nassau County Police Officer Indem. Bd.*, 31 NY3d 523; *People ex rel. Johnson v Superintendent, Adirondack Corr. Facility*, 36 NY3d 187; *Matter of Gonzalez v Annucci*, 32 NY3d 461.) II. Even if the Department of Corrections and Community Supervision had discretion to completely deny access to community-based programming for incarcerated residential treatment facility residents, it cannot deny access to such programming to residential treatment facility parolees. (*People ex rel. McCurdy v Warden, Westchester County Corr. Facility*, 36 NY3d 251.)

Letitia James, Attorney General, New York City (*Blair J. Greenwald*, *Barbara D. Underwood* and *Andrea Oser* of counsel), for respondents. I. The Department of Corrections and Community Supervision is statutorily authorized but not required to provide outside activities in its residential treatment facility (RTF) programs. (*Matter of Comptroller of City of N.Y. v Mayor of City of N.Y.*, 7 NY3d 256; *Matter of National Energy Marketers Assn. v New York State Pub. Serv. Commn.*, 33 NY3d 336; *Matter of Doe v Coughlin*, 71 NY2d 48; *Castle Rock v Gonzales*, 545 US 748; *People ex rel. Johnson v Superintendent, Adirondack Corr. Facility*, 36 NY3d 187; *Matter of New York State Socy. of Surgeons v Axelrod*, 77 NY2d 677; *Matter of Scoglio v County of Suffolk*, 85 NY2d 709; *County of Broome v Badger*, 55 AD3d 1191; *Matter of General Elec. Capital Corp. v New York State Div. of Tax Appeals, Tax Appeals Trib.*, 2 NY3d 249; *Associated Bldrs. & Contrs. of Texas, Inc. v National Labor Relations Bd.*, 826 F3d 215.) II. Viewed

as a whole, Fishkill Correctional Facility’s RTF program provides appropriate education, training, and employment opportunities. (*Matter of Alvarez v Annucci*, 186 AD3d 704, 38 NY3d 974; *Matter of Gonzalez v Annucci*, 32 NY3d 461; *Vose v Yulee*, 64 NY 449; *Matter of Ordway*, 196 NY 95; *Matter of Long v Adirondack Park Agency*, 76 NY2d 416; *People v Buckley*, 75 NY2d 843; *Matter of Toys “R” Us v Silva*, 89 NY2d 411; *People ex rel. McCurdy v Warden, Westchester County Corr. Facility*, 36 NY3d 251; *Bingham v New York City Tr. Auth.*, 99 NY2d 355.)

OPINION OF THE COURT

TROUTMAN, J.

The issue on this appeal is whether the Department of Corrections and Community Supervision (DOCCS) has a statutory obligation to attempt to secure community-based “employment, educational and training opportunities” for the persons confined in its residential treatment facility (RTF) at Fishkill Correctional Facility (Correction Law § 2 [6]; *see id.* § 73 [2]). We hold that DOCCS’s wholesale refusal to secure such opportunities for Fishkill RTF residents constitutes a violation of the statute.

I.

Plaintiffs are convicted sex offenders who were confined in the Fishkill RTF while on postrelease supervision (PRS). Since 2014, DOCCS has used the Fishkill RTF to confine convicted sex offenders past the maximum expiration dates of their carceral sentences in circumstances where the offenders are unable to find housing in compliance with the requirements of the Sexual Assault Reform Act (SARA), which bars them from living within 1,000 feet of a school (*see* Executive Law § 259-c [14]). DOCCS derives the authority for this confinement from Penal Law § 70.45 (3), which permits transfer of a person to an RTF for the first six months of PRS, and from Correction Law § 73 (10), which permits use of the RTF as a residence for a person on PRS (*see People ex rel. McCurdy v Warden, Westchester County Corr. Facility*, 36 NY3d 251, 260-262 [2020]). We have concluded that DOCCS has the constitutional authority to confine offenders in this manner (*see People ex rel. Johnson v Superintendent, Adirondack Corr. Facility*, 36 NY3d 187, 192 [2020]).

In 2016, plaintiffs commenced a proceeding seeking one or more injunctions, declaratory relief pursuant to CPLR 3001, and class certification.¹ On defendants' motion to dismiss, Supreme Court dismissed the proceeding in part and converted what remained into an action seeking a declaration that DOCCS's operation of the Fishkill RTF "fails to comply with the statutes governing [RTFs] because it does not offer adequate programming or employment opportunities." In denying class certification, the court reasoned that this converted declaratory judgment action would "adequately protect the interests of similarly situated offenders." Following discovery, defendants moved for summary judgment and a declaration in their favor. Plaintiffs opposed the motion.

The evidence before the motion court established that there were only two kinds of employment opportunities available to Fishkill RTF residents, neither of them in the community. One of the jobs involved labor at the prison storehouse, located on prison grounds less than a tenth of a mile from the gates that surround the prison. The storehouse crew was limited to eight RTF residents, less than a tenth of the RTF's population. The only other employment opportunity made available to RTF residents was in the "porter pool," performing janitorial work alongside members of the general population. Furthermore, a deputy superintendent of Fishkill Correctional Facility testified that there was a work release program under which members of the general population were allowed to go outside prison grounds to work in the community, but that RTF residents were ineligible for the work release program. With respect to internal programming, defendants submitted the affidavit of an offender rehabilitation coordinator who facilitated a program for RTF residents consisting of nine modules including Sex Offender Registration Act requirements, securing employment, and relapse prevention. She averred that the program was "specified" to sex offenders and that most of the modules were "adapted to" or "specifically target" the particular challenges faced by sex offenders.

Supreme Court granted defendants' motion in part, concluding that defendants established that the internal programming was "at least minimally adequate" to satisfy DOCCS's statu-

1. Plaintiffs invoked CPLR 7803 (1), alleging that defendants "failed to perform duties enjoined on them by law." Plaintiffs did not seek relief under CPLR 7803 (3), as Judge Cannataro acknowledges. Even if they had, CPLR 7803 (3) is inapplicable in this converted declaratory judgment action.

tory obligations, and that plaintiffs failed to raise an issue of fact (66 Misc 3d 850, 863 [Sup Ct, Albany County 2019]). The court entered a declaration to that effect. Otherwise, the court searched the record and granted partial summary judgment to plaintiffs. The court agreed with plaintiffs that DOCCS failed to provide adequate community-based opportunities, concluding that DOCCS does not have the authority to deny “all” community-based employment opportunities to the residents of the Fishkill RTF, and that the possibility of work in the prison storehouse does not satisfy DOCCS’s responsibility to secure such opportunities (*id.* at 865). Accordingly, the court declared that “DOCCS is failing to comply with its obligations under Correction Law § 73 to provide community-based programming and educational, vocational and employment opportunities in the communities outside the Fishkill Correctional Facility environs” (*id.* at 866).

The Appellate Division, *inter alia*, modified the judgment by reversing so much thereof as granted partial summary judgment to plaintiffs, and it granted defendants’ motion in its entirety. The Court concluded that, although the statute requires DOCCS to locate RTFs near a community with employment, training, and educational opportunities, there was no mandate that DOCCS offer such opportunities outside the facility (*see* 203 AD3d 1483, 1484-1485 [3d Dept 2020]). The Court acknowledged that offering community-based employment, educational, and training opportunities would seem to serve the purpose behind a rehabilitation program but reasoned that DOCCS was in the better position to make that determination (*see id.* at 1485). The Court further concluded that defendants met their burden of establishing that Fishkill RTF’s internal programming was adequate, and plaintiffs failed to raise an issue of fact (*see id.* at 1485-1486).

We granted leave to appeal (39 NY3d 906 [2023]).

II.

Before proceeding to the merits, we address two threshold matters. First, the appeal is moot because plaintiffs were long ago released from confinement in the RTF (*see Johnson*, 36 NY3d at 195-196). Although the Appellate Division did not address mootness, we conclude that the issues presented in this appeal may be decided under the exception to the mootness doctrine because the issues are substantial and novel, are likely to recur, and will typically evade our review (*see id.* at 196).

Second, we conclude that plaintiffs did not preserve their contention that DOCCS failed to accord them the distinct rights of a person on community supervision for whom DOCCS is using the RTF as a residence under Correction Law § 73 (10), as opposed to the rights of an incarcerated person transferred into the RTF under Correction Law § 73 (1). We have previously acknowledged the difference between those two types of RTF residents (*see McCurdy*, 36 NY3d at 261 & n 5). The nature of the rights of a Correction Law § 73 (10) resident remains an open question (*see id.*), but not one that we have occasion to address in this appeal. The parties do not dispute that plaintiffs were assigned RTF programming pursuant to Correction Law § 73 (2) and (3). The only challenge properly before us is to the adequacy of that programming.

III.

Our fundamental role in interpreting a statute is to effect the intent of the legislature (*see Patrolmen's Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205, 208 [1976]). We start with the statutory language, the clearest indicator of the legislative intent, and we construe the statute as a whole and consider its various provisions together and with reference to each other (*see McCurdy*, 36 NY3d at 257). “The literal language of a statute is generally controlling unless the plain intent and purpose . . . would otherwise be defeated, or where a literal construction would lead to absurd or unreasonable consequences that are contrary to the purpose of the statute’s enactment” (*People ex rel. E.S. v Superintendent, Livingston Corr. Facility*, 40 NY3d 230, 235 [2023] [internal quotation marks and brackets omitted]; *see Matter of Anonymous v Molik*, 32 NY3d 30, 37 [2018]).

Correction Law § 2 (6) defines an RTF in terms of its external features and the connection between those external features and the population to be confined therein:

“A correctional facility consisting of a community based residence in or near a community where employment, educational and training opportunities are *readily available* for persons who are on parole or conditional release and for persons who are or who will soon be eligible for release on parole who intend to reside in or near that community when released” (emphasis added).

“[R]eadily available” community-based opportunities are thus essential to a facility’s designation as an RTF. By contrast, definitions of other types of correctional facilities lack any focus on outside resources and instead define those facilities in terms of their internal features (*see e.g.* Correction Law § 2 [8] [defining a “(c)orrectional (c)amp” as a “correctional facility consisting of a camp maintained for the purpose of including conservation work in the program of incarcerated individuals”]; *id.* § 2 [10] [defining a “(g)eneral confinement facility” as a “correctional facility for confinement and treatment of persons under institutional programs oriented to education, vocational training and industry”]).

The statute also provides that DOCCS is “responsible for securing” for RTF residents “education, on-the-job training and employment” opportunities and for supervising residents who are participating in these activities outside the facility (*id.* § 73 [2]). And the statute expressly permits outside access for the purpose of engaging in RTF programming, as RTF residents “may be allowed to go outside the facility during reasonable and necessary hours to engage in any activity reasonably related to [their] rehabilitation and in accordance with” their assigned programs (*id.* § 73 [1]).

The statute, read as a whole, affords DOCCS “leeway to design its RTF programs” (*Johnson*, 36 NY3d at 207). While the plain language of the statute confirms that community-based opportunities are an essential characteristic of an RTF, the statute does not create an individual right to community-based opportunities. This is evident by the legislature’s use of the permissive phrase, “may be allowed to go outside,” which must be read to afford DOCCS discretion in determining whether an individual RTF resident should be allowed outside the facility to engage in community-based activities (Correction Law § 73 [1]). Moreover, DOCCS’s responsibility to RTF residents extends only to securing those opportunities that it deems “appropriate” (*id.* § 73 [2]); it does not require DOCCS to secure community-based opportunities that would be inappropriate.

Plaintiffs nonetheless argue that at least some RTF residents must be allowed to go outside the facility to engage in employment, educational, or on-the-job training activities. Otherwise, plaintiffs argue, the facility loses its character as an RTF. Defendants counter that the statutory language imposes no obligation whatsoever to secure community-based opportuni-

ties, nor does it create a percentage or threshold number of RTF residents who must be able to participate in these activities, leaving the decision entirely to the discretion of DOCCS.

[1] We agree with plaintiffs that DOCCS cannot categorically refuse to attempt to secure community-based opportunities for RTF residents. Crucially, while DOCCS surely has discretion in operating its RTF programs, the record here demonstrates that DOCCS is exercising no discretion with respect to community-based opportunities. DOCCS instead offers only speculation that the opportunities would be difficult to secure for the types of offenders housed in that RTF. To be sure, the statute establishes no percentage or threshold number of RTF residents who must be allowed outside the facility to engage in community-based activities. But defendants incorrectly construe the permissive phrase, “may be allowed to go outside,” to empower DOCCS to bar all RTF residents categorically from accessing community-based opportunities without considering whether such opportunities are available or appropriate. A comprehensive reading of the statutory provisions cannot support such a construction. By reading the permissive phrase in isolation, defendants read the definitional provision out of the statute, eviscerate the character and purpose of the RTF, and undermine the legislative intent.

Our construction is buttressed by the legislative history. When the governor signed the bill that first created RTFs (L 1966, ch 655), he observed that residents “would participate in rehabilitation programs within the [RTF] and would be permitted to go outside the [RTF], under the careful supervision of the Board of Parole, to attend school, to work or to participate in other rehabilitative activities” (Governor’s Approval Mem, Bill Jacket, L 1966, ch 655 at 2). Not long thereafter, this enactment was replaced by Correction Law § 73 as part of comprehensive reorganization of the corrections system that provided DOCCS’s predecessor department “the flexibility needed for tailored rehabilitative programs” (Budget Rep on Bills, Bill Jacket, L 1970, ch 476 at 16), and that empowered the department to “utilize treatment programs according to the needs of individual inmates” (Senate Mem in Support, Bill Jacket, L 1970, ch 476 at 3). The Correctional Association of New York praised the bill for creating “flexibility in the handling of inmates, permitting the department to more readily transfer an inmate to an institution based on his particular need rather than statutory requirements” (Letter in Support, Bill Jacket, L

1970, ch 476 at 21). While the references to “flexibility” support that DOCCS has discretion in fashioning its RTF programming, this flexibility is tied to the needs of individual offenders about to reenter the community. This legislative history is directly contrary to DOCCS’s construction of the statute, which has given rise to an inflexible policy that does not take individual RTF residents into account.

We do not doubt that the task of securing community-based opportunities for the population at Fishkill RTF, all or nearly all of whom are sex offenders who pose a public safety risk, would be a challenging one. Securing community-based opportunities such as these depend not only on the ready availability of those opportunities in spaces that the offenders may lawfully enter, but also on the willingness of the employers and the educators in the community to employ, train, or educate convicted offenders. But although DOCCS does not have the authority to impress private enterprise into service, there is a big difference between undertaking efforts to secure community-based opportunities for RTF residents where appropriate and deciding categorically that no one in the RTF is permitted to go outside into the community to engage in readily available opportunities. All of these offenders have completed their prison sentences. Due to the enactment and enforcement of SARA, DOCCS is faced with the reality that, while these offenders cannot stay in prison and cannot go home, they must go somewhere, and DOCCS made the decision to house them in an RTF. The solution is not for this Court to redefine RTFs by stripping them of the community-based character and purpose that the legislature established in the statute. As we have noted, DOCCS has significant leeway in operating RTFs, and we have confidence in DOCCS’s ability to discharge its public safety function while complying with its statutory obligations.

We thus conclude that DOCCS’s wholesale refusal to undertake efforts to secure community-based opportunities for RTF residents constitutes a violation of the statute. Correction Law §§ 2 (6) and 73 (2) and (3) require DOCCS, at a minimum, to undertake reasonable efforts to secure community-based opportunities for those persons subject to its RTF programming.²

2. The assistant solicitor general stated during oral argument that DOCCS has declined to undertake efforts to secure community-based op-

(n. cont’d)

IV.

[2] Otherwise, for the reasons stated at the Appellate Division, we agree with defendants that they are entitled to summary judgment because they demonstrated as a matter of law that the internal programming at the Fishkill RTF is at least minimally adequate, and plaintiffs failed to raise an issue of fact (*see* 203 AD3d at 1485-1486). Statutory requirements for RTF programming within a facility are few and broad. The statute provides for the assignment of a “specific program” to each resident and that the program be “directed toward the rehabilitation and total reintegration into the community” of residents (Correction Law § 73 [3]). The details fall entirely within the discretion of DOCCS (*see Johnson*, 36 NY3d at 207). We therefore conclude that the Appellate Division properly affirmed that part of the judgment which entered a declaration in defendants’ favor.

Accordingly, the order insofar as appealed from should be modified, without costs, in accordance with this opinion and, as so modified, affirmed.

GARCIA, J. (dissenting in part). Plaintiffs, convicted sex offenders subject to the condition that they reside no less than 1,000 feet from school property or a childcare facility (*see* Executive Law § 259-c [14] [Sexual Assault Reform Act (SARA)]), brought this action alleging, among other things, that they were being illegally confined to the Fishkill Residential Treatment Facility (RTF) and that Fishkill is not a statutorily compliant RTF. The sole issue here is whether the Department of Corrections and Community Supervision (DOCCS) was obliged to secure educational, training, and employment opportunities for plaintiffs “that were community based and outside of the facility” (*Alcantara v Annucci*, 203 AD3d 1483, 1484 [3d Dept 2022]). I agree with the majority that the relevant statutes impose no such duty or obligation on DOCCS (*see* majority op at 149). We should therefore affirm the Appellate Division’s holding to that effect. But the majority recasts the issue as whether DOCCS has a “statutory obligation *to attempt* to secure community-based” opportunities (majority op at 145

portunities for RTF residents, choosing instead to direct its resources to assisting them in finding SARA-compliant housing. Although offering such assistance does not relieve DOCCS of its obligations under Correction Law § 73, successful efforts to find approved housing for RTF residents in an expeditious manner may be relevant to whether efforts taken to comply with Correction Law § 73 are reasonable.

[emphasis added]), as a way to provide a remedy that plaintiffs do not seek, affords no substantive relief to RTF residents, and offers no guidance for DOCCS going forward in determining what “attempts” must be made. I dissent.

All or nearly all of the Fishkill RTF residents are sex offenders subject to SARA’s special housing condition.¹ That condition applies only to sex offenders who either committed certain enumerated offenses against a minor or who have been designated a “level three sex offender” under the Sex Offender Registration Act (*see* Executive Law § 259-c [14]), meaning “the risk of repeat offense is high and there exists a threat to the public safety” (Correction Law § 168-1 [6] [c]). As DOCCS maintains, and the majority accepts, this is a particularly challenging population to place in “community-based” opportunities (*see* majority op at 151).²

Plaintiffs, who sought class certification for various classes and subclasses, all made up of RTF residents subject to the SARA residency restriction, brought a CPLR article 78 proceeding alleging, as relevant here, that they were not being afforded such opportunities.³ Supreme Court rejected all of plaintiffs’ claims with the exception of declaring “that plaintiffs have demonstrated that DOCCS is failing to comply with its obligations under Correction Law § 73 *to provide* community-based programming and educational, vocational and employment opportunities in the communities outside the Fishkill Correctional Facility environs” (66 Misc 3d 850, 866 [Sup Ct, Albany County 2019] [emphasis added]).

1. In certain circumstances, DOCCS may place sex offenders subject to SARA in RTFs when compliant housing cannot be located (*see People ex rel. McCurdy v Warden, Westchester County Corr. Facility*, 36 NY3d 251 [2020]; *People ex rel. Johnson v Superintendent, Adirondack Corr. Facility*, 36 NY3d 187 [2020]; *see also Matter of Gonzalez v Annucci*, 32 NY3d 461, 473 [referencing “the enormous difficulty in finding appropriate housing for sex offenders”]). As the majority describes the situation, DOCCS faces the “reality” that these sex offenders “cannot stay in prison and cannot go home” (*see* majority op at 151)—if “home” is within 1,000 feet of a school or childcare facility.

2. These residents must be closely monitored. In securing community-based opportunities, DOCCS has the statutory obligation to “supervise such incarcerated individuals during their participation in activities outside” the facility “at all times” (Correction Law § 73 [2]; *id.* § 73 [1] [while residents “may be allowed to go outside the facility,” they “shall be at all times in the custody of [DOCCS] and under its supervision”]).

3. Although plaintiffs originally commenced this action as an article 78 petition seeking declaratory and injunctive relief, Supreme Court converted the proceeding to a declaratory judgment action.

The Appellate Division, addressing this same issue—whether the statute mandated that DOCCS provide opportunities outside the facility—reversed, holding that Supreme Court “erred in granting partial summary judgment . . . on the claim that DOCCS did not create an appropriate RTF program outside the confines of Fishkill” (203 AD3d at 1484-1485). The majority agrees that there is no statutory duty or obligation to provide such programming and that the statute affords discretion and flexibility to DOCCS (*see* majority op at 149-151). But instead of confirming the Appellate Division’s grant of summary judgment to defendants dismissing the claim, the majority fashions new relief in the form of mandating that DOCCS “undertake reasonable efforts to secure community-based opportunities for those persons subject to RTF programming” (majority op at 151).

This case concerns the difficulty in placing sex offenders subject to the SARA housing condition in community-based jobs and whether the relevant statutes require DOCCS to do so. The key question—can DOCCS categorically refuse to attempt obtaining community-based opportunities for the subset of residents composed of high-risk sex offenders subject to SARA?—goes unanswered. Under the majority’s new rule, it is unclear whether DOCCS must (1) attempt to locate community-based opportunities generally and then determine if the provider will accept sex offenders subject to SARA; or (2) attempt to find specific opportunities for that group of sex offenders. And if it applies generally, can DOCCS make the discretionary determination that community-based opportunities are not appropriate given the high risk to the community posed by these sex offenders as a subgroup of RTF residents (*see* majority op at 149 [“DOCCS’s responsibility to RTF residents extends only to securing those opportunities that it deems ‘appropriate’ . . . ; it does not require DOCCS to secure community-based opportunities that would be inappropriate”])?

It might appear that the majority’s amorphous holding is harmless error. DOCCS, after all, must only make reasonable efforts to secure community-based opportunities that it “deems ‘appropriate’ ” (*see* majority op at 149, citing Correction Law § 73 [2]), and that obligation to attempt to do so is not enforceable by any individual resident (*id.*). But what is an “appropriate” community placement for a sex offender, particularly one subject to the condition that prevents the offender from residing within 1,000 feet of a school? Is this purely a subjective

standard that courts must defer to in providing DOCCS with “flexibility” to run the RTF (*see* majority op at 151)? Can a class of residents subject to SARA bring a suit to enforce such a vague directive? Two things are certain to follow today’s ruling: uncertainty and litigation.

CANNATARO, J. (dissenting in part). Every Judge of this Court appears to agree that the inclusion of community-based opportunities within RTF programming is ultimately a matter within DOCCS’s discretion (majority op at 149; Garcia, J., dissenting op at 154; *see also Matter of Doe v Coughlin*, 71 NY2d 48, 59 [1987] [recognizing courts’ traditional deference “to the discretion of correction officials on matters relating to the administration of prison facilities and rehabilitation programs”]). Judge Garcia admonishes the majority for creating a new and ill-defined duty on the part of DOCCS “*to attempt* to secure community-based’ opportunities” (Garcia, J., dissenting op at 152-153, quoting majority op at 145), a criticism with which I fully agree. I write separately to express my view that the creation of a “reasonable efforts” standard is unnecessary because the appropriate standard for reviewing DOCCS’s exercise of discretion is well settled and not unique to this area of administrative law. When DOCCS’s policies and determinations with respect to community-based programming are challenged, the proper question is whether they are “affected by an error of law or [are] arbitrary and capricious or an abuse of discretion” (CPLR 7803 [3]). The fact that plaintiffs litigated this dispute on a different theory—pleading that defendants “failed to perform a duty enjoined upon [them] by law” (CPLR 7803 [1]), and then pursuing a declaratory judgment to that effect—does not authorize this Court to create a different mechanism to avoid abuses of discretion.

There was no error of law here. As everyone agrees, DOCCS had no absolute duty to provide community-based opportunities. Had the legislature intended to require DOCCS to undertake “reasonable efforts” to secure community-based opportunities for RTF residents, it would have said so in plain language (*see e.g.* Correction Law § 137 [6] [j] [vi]). Instead, the Correction Law provides that DOCCS is “responsible for securing *appropriate* education, on-the-job training and employment” for RTF residents, with no specific mention of community-based activities (*id.* § 73 [2] [emphasis added]). This careful wording can only be construed as a deliberate choice by the legislature to leave the provision or denial of

community-based opportunities to the discretion of DOCCS (subject to judicial review), not as an invitation for the judiciary to append additional duties that do not appear on the face of the statute (*see e.g. People v Jackson*, 87 NY2d 782, 788 [1996]; McKinney's Cons Laws of NY, Book 1, Statutes § 74).

Nor does the record establish that DOCCS's refusal to seek or approve community-based opportunities over the relevant period was irrational or an abuse of discretion. Preliminarily, it must be appreciated that the entire population (or close thereto) of the RTF during this time consisted of high-risk sex offenders (*see* majority op at 145, 151; Garcia, J., dissenting op at 153). If, as DOCCS has suggested, the Department rationally believed that efforts to secure community-based opportunities "appropriate" for high-risk sex offenders would be futile or would frustrate more efficient community reintegration strategies—such as helping sex offenders secure SARA-compliant housing and leave confinement entirely—it would be difficult to characterize that determination as either irrational or an abuse of discretion, especially considering that DOCCS "secur[ed] appropriate education, on-the-job training and employment" *inside* the facility (*see* Correction Law § 73 [2]).

Since CPLR 7803 (3) prevents DOCCS from adopting policies that are arbitrary and capricious or abuses of discretion, there is no need for the majority's creation of a duty of "reasonable efforts." By mandating such efforts, the majority is prescribing and limiting DOCCS's discretion rather than reviewing it. I would accordingly affirm the order of dismissal. The majority's well-intentioned but ambiguous decision casts unnecessary doubt on whether DOCCS can make rational decisions with respect to RTF programming in the future, and for that reason, I respectfully dissent.

Chief Judge WILSON and Judges RIVERA and HALLIGAN concur. Judge GARCIA dissents in part and votes to affirm in an opinion, in which Judge SINGAS concurs. Judge CANNATARO dissents in part and votes to affirm in a separate dissenting opinion.

Order insofar as appealed from modified, without costs, in accordance with the opinion herein and, as so modified, affirmed.

[242 NE3d 652, 217 NYS3d 867]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v CID C.
FRANKLIN, Respondent.

Argued March 14, 2024; decided April 25, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered July 6, 2022. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Queens County (Ira H. Margulis, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree; and (2) ordered a new trial.

People v Franklin, 207 AD3d 476, reversed.

HEADNOTE

Crimes — Right of Confrontation — Criminal Justice Agency Interview Reports — Primary Purpose

An out-of-court statement is testimonial when, viewed objectively, all the circumstances indicate its primary purpose was to create an out-of-court substitute for trial testimony. Accordingly, in defendant's prosecution for criminally possessing a gun found in the basement of the home he shared with two other people, introduction of the Criminal Justice Agency (CJA) report created upon defendant's arrest while awaiting arraignment reflecting his address as the "BSMT" of the home did not violate defendant's right of confrontation, as the primary purpose of the interview report was administrative rather than to create an out-of-court substitute for trial testimony. The CJA report was introduced as a business or public record, which are generally admissible absent confrontation because, having been created for the administration of an entity's affairs and not for the purpose of establishing or proving some fact at trial, they are not testimonial. Moreover, the primary purpose of a CJA interview and resulting report is administrative, not something tailored to establish or prove past events potentially relevant to later criminal prosecution. Its objective is to give the arraignment judge information pertaining to a defendant's suitability for pretrial release, not to elicit incriminating statements. A CJA interview report is routinely prepared for all arrestees in New York City, and the information collected is the same in every case, regardless of the particular facts or the elements of the relevant crime. The pedigree information collected, including the defendant's address, is pertinent to establishing community ties; it was only incidentally relevant in this case. The fact that the report became relevant during trial did not alter or diminish the primary purpose for which it was created.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 1045, 1046, 1056, 1060, 1062–
1064.

CARMODY-WAIT 2d Particular Types of Evidence
§§ 194:77–194:80.

LaFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 24.4.

NY JUR 2d Criminal Law: Procedure §§ 2295, 2297.

ANNOTATION REFERENCE

See ALR Index under Confrontation of Witnesses.

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POINTS OF COUNSEL

Melinda Katz, District Attorney, Kew Gardens (John M. Castellano, Eric C. Washer and Johnnette Traill of counsel), for appellant. Defendant's Confrontation Clause rights were not implicated by a report containing biographical information he himself provided during an interview whose primary purpose was to inform the arraignment judge's bail determination. (Davis v Washington, 547 US 813; Michigan v Bryant, 562 US 344; Crawford v Washington, 541 US 36; Williams v Illinois, 567 US 50; Ohio v Clark, 576 US 237; People v John, 27 NY3d 294; Melendez-Diaz v Massachusetts, 557 US 305; Bullcoming v New Mexico, 564 US 647; People v Pealer, 20 NY3d 447.)

Patricia Pazner, Appellate Advocates, New York City (Hannah Kon of counsel), for respondent. The admission of a form authored by an employee of the criminal justice agency during a custodial interview with respondent, and used by the prosecution at trial as the sole proof of an essential element of the crime, violated respondent's Sixth Amendment right to confrontation and the hearsay rules. (People v Yu, 167 AD3d 521, 33 NY3d 1037; People v Alemany, 13 NY3d 424; People v Brown, 109 Misc 2d 366; People v Devone, 163 Misc 2d 581; Melendez-Diaz v Massachusetts, 557 US 305; Davis v Washington, 547 US 813; Michigan v Bryant, 562 US 344; Ohio v Clark, 576 US 237; United States v Noria, 945 F3d 847.)

University at Buffalo School of Law Amicus Brief Practicum, Buffalo (Eugene M. Fahey and Michael J. Pastrick of counsel), for University at Buffalo School of Law, amicus curiae. A determination that the statement to the criminal justice agency is admissible could unintentionally threaten the integrity of the

right to counsel and chill access to problem-solving courts. (*People v Ortega*, 40 NY3d 463; *McMann v Richardson*, 397 US 759; *People v Benevento*, 91 NY2d 708.)

OPINION OF THE COURT

HALLIGAN, J.

This case requires us to determine when an out-of-court statement is “testimonial” and thus triggers the requirements of the Sixth Amendment’s Confrontation Clause. Consistent with precedent from the United States Supreme Court, we ask whether, in light of all the circumstances viewed objectively, the statement was created for the primary purpose of serving as trial testimony. Contrary to the Appellate Division, we conclude that the Criminal Justice Agency (CJA) report at issue here does not qualify under this standard.

I.

In the course of responding to a road rage incident that included a report of a firearm, police officers searched the basement of the home that the defendant Cid Franklin shared with his son and stepmother, Grace Mapp. Officers discovered a gun in a basement closet containing blankets, pillows, and other miscellaneous items belonging to both Mapp and Franklin. Franklin was subsequently arrested and, while in Queens central booking prior to arraignment, interviewed by an employee of the Criminal Justice Agency, as is standard practice for New York City defendants.

CJA is a nonprofit organization funded by the City of New York that provides pretrial services similar to those provided by probation departments in counties outside the city (*see People v Yu*, 167 AD3d 521, 522 [1st Dept 2018]). As relevant here, CJA interviews “nearly all individuals arrested” in New York City to “make a pretrial release recommendation to the court” (New York Criminal Justice Agency, <http://www.nycja.org/> [hover over “Services” in the main menu and click on “Court Services” in the drop-down menu]; *see also People v Jin Cheng Lin*, 26 NY3d 701, 715 n 1 [2016]; *People ex rel. Maxian v Brown*, 77 NY2d 422, 425 [1991]). In interviewing arrestees to determine their suitability for pretrial release, CJA employees ask them questions regarding community ties and warrant history, including an arrestee’s address, how long they have lived there, their employment status, whether they expect anyone at their arraignment, their education, and other relevant queries.

The CJA employee records the answers to these questions on a standardized form titled “Interview Report.” The employee also verifies the information provided by the arrestee with a third person, whose contact information the CJA employee obtains from the arrestee, and records that verification in a separate section of the form. The CJA employee then gives the completed form, including a recommendation on whether the arrestee is suitable for release, to the arraignment judge, the prosecutor, and defense counsel.

As relevant here, the CJA employee who interviewed Franklin recorded his address as “[XX] 168TH ST, BSMT.” The employee also recorded that he or she verified this information with Mapp, referred to as Franklin’s “mother” on the form.

That form was central to the People’s case at trial. No DNA or fingerprints were discernable on the gun. The officer who took Franklin’s pedigree information testified that Franklin gave his address as [XX] 168th Street, without specifying where in the house he lived. None of the witnesses who testified at Franklin’s trial provided direct proof that he lived in the basement, and the People put forth no evidence that any personal documents or effects of Franklin’s were found there. To prove that Franklin had dominion and control over the basement, the People introduced the CJA form through the current CJA Queens borough supervisor, Oscar Morales. The interviewer was no longer employed by CJA and did not testify.

Defense counsel objected to the introduction of the form both as hearsay¹ and as a violation of Franklin’s Sixth Amendment right of confrontation. Supreme Court rejected both objections, admitting the form as either “a public document” or “a business record,” and finding that “there is no *Crawford* violation in that this was not made specifically for [a] prosecution purpose,” but rather “as an aid to the Judge to [determine] if any bail should be set at arraignments.” Franklin was convicted of one count of second-degree criminal possession of a weapon (Penal Law § 265.03 [3]).

1. Defendant also argues before us that the report was improperly admitted under the hearsay rules (*see e.g. Matter of Leon RR*, 48 NY2d 117, 122-123 [1979] [addressing embedded hearsay in business reports]; Vincent C. Alexander, Supp Prac Commentaries, McKinney’s Cons Laws of NY, CPLR C4518:3 [discussing records with “Multiple Layers of Hearsay”]). The Appellate Division reversed the judgment based solely on its determination that the Confrontation Clause was violated, and we reach no issue in this appeal other than the grounds on which the Appellate Division ruled.

The Appellate Division reversed, holding that the introduction of the report through Morales, who did not author it, violated Franklin’s Confrontation Clause rights (207 AD3d 476 [2d Dept 2022]). A Judge of this Court granted leave to appeal (39 NY3d 986 [2022]), and we now reverse.

II.

The Sixth Amendment of the Federal Constitution provides that “[i]n all criminal prosecutions, the accused shall enjoy the right . . . to be confronted with the witnesses against [them]” (US Const Amend VI). The Confrontation Clause focuses on “‘witnesses’ against the accused—in other words, those who ‘bear testimony’” (*Crawford v Washington*, 541 US 36, 51 [2004]). Thus, to determine whether the defendant’s confrontation rights were implicated by introduction of the CJA report, we ask whether the report was “testimonial” (*id.*).

The Appellate Division relied on *Crawford*’s definition of testimony as “[a] solemn declaration or affirmation made for the purpose of establishing or proving some fact” (207 AD3d at 476, quoting *Crawford*, 541 US at 51). Citing several decisions that apply an “essential element” test, the Court reasoned that introduction of the CJA form violated the Confrontation Clause because it was “admitted in order to establish an essential element” of the charged crime, and defendant “was never given the opportunity to cross-examine the CJA employee” who prepared it (*id.* at 477, citing *People v Ellerbee*, 203 AD3d 1068, 1069 [2d Dept 2022] [testimony “improperly admitted in order to establish an essential element of the crime” in violation of the Confrontation Clause], *People v Stokeling*, 165 AD3d 1180, 1181 [2d Dept 2018] [same], and *People v Francis*, 114 AD3d 699, 700 [2d Dept 2014] [introduction of facts going to essential element through supervisor insufficient]).

These “essential element” cases generally rest on our decision in *People v Pacer* (6 NY3d 504 [2006]). In *Pacer*, decided two years after *Crawford*, the People relied on an affidavit explaining the Department of Motor Vehicle’s routine procedures that had been prepared for use at trial to prove that the defendant knew or had reason to know his driving privileges had been revoked (*see id.* at 507). This Court held that introduction of the affidavit violated the defendant’s right of confrontation because “the lack of a live witness to confront eliminated defendant’s opportunity to contest a decisive piece of evidence against him” (*id.* at 512). *Pacer* and several

subsequent cases, including the Appellate Division’s decision below and the cases it cites, look to whether an out-of-court statement establishes an essential element of the crime to determine whether it is testimonial.

As we recently recognized in *People v Ortega*, the Supreme Court has refined its Confrontation Clause analysis on numerous occasions since it decided *Crawford* in 2004 (40 NY3d 463, 474 [2023];² see also *Ohio v Clark*, 576 US 237, 244 [2015] [noting the Supreme Court’s “labor()” subsequent to *Crawford* to “flesh out what it means for a statement to be ‘testimonial’ ”]). These decisions render some of our earlier analyses at odds with the current framework (see e.g. *Ortega*, 40 NY3d at 474 [recognizing that our previous analysis in *People v Freycinet* (11 NY3d 38 [2008]) was “inconsistent with the demands of the Confrontation Clause as articulated more recently by the Supreme Court”]). As with the test applied to autopsy reports in *Freycinet*, the “essential element” approach in *Pacer* has been eclipsed by subsequent developments in Confrontation Clause jurisprudence. We now clarify that in ascertaining whether out-of-court statements are testimonial, courts should inquire, as the U.S. Supreme Court has instructed, “whether, in light of all the circumstances, viewed objectively, the ‘primary purpose’ of the conversation was to ‘creat[e] an out-of-court substitute for trial testimony’ ” (*Clark*, 576 US at 245, quoting *Michigan v Bryant*, 562 US 344, 358 [2011]). When that standard is met, the statement should be deemed testimonial for purpose of the Confrontation Clause.

III.

The Supreme Court first articulated the primary purpose test only months after this Court decided *Pacer*, in two cases concerning out-of-court statements from domestic abuse victims (see *Davis v Washington* and *Hammon v Indiana*, 547 US 813 [2006]). In *Davis*, the statements at issue were made to a 911 operator (*id.* at 817-819), and in *Hammon*, to police officers after a physical attack (see *id.* at 820). The Supreme Court

2. *Ortega* presents the distinct question of when forensic reports are testimonial (40 NY3d at 474; see also *Melendez-Diaz v Massachusetts*, 557 US 305, 307-308 [2009] [certificates of analysis indicating that seized material was cocaine]; *Bullcoming v New Mexico*, 564 US 647, 651 [2011] [forensic laboratory report certifying defendant’s blood-alcohol concentration]; *Williams v Illinois*, 567 US 50, 56 [2012] [DNA profile]). We do not address that issue here.

concluded that the statements in *Davis* were not testimonial because they were made “under circumstances objectively indicating that the primary purpose of the interrogation [was] to enable police assistance to meet an ongoing emergency,” while in *Hammon*, the statements were testimonial because “the primary purpose of the interrogation [was] to establish or prove past events potentially relevant to later criminal prosecution” (*see id.* at 822).

Since *Davis* and *Hammon*, the Supreme Court has continued to apply the primary purpose test in cases concerning out-of-court conversations (*see Bryant*, 562 US at 360 [examining the “primary purpose” of an out-of-court interrogation through an “objective analysis of the circumstances of (the) encounter and the statements and actions of the parties”]; *Clark*, 576 US at 245 [reaffirming the primary purpose test]).³ *Clark* confirms the centrality of the primary purpose test and sets forth relevant considerations: whether the statements were made under circumstances indicating “that the primary purpose of the interrogation is to establish or prove past events potentially relevant to later criminal prosecution” (*id.* at 244 [internal quotation marks omitted], quoting *Davis*, 547 US at 822); the “informality of the situation and the interrogation,” with a “formal station-house interrogation, like the questioning in *Crawford*, . . . more likely to provoke testimonial statements, while less formal questioning is less likely to reflect a primary purpose aimed at obtaining testimonial evidence against the accused” (*id.* at 245 [internal quotation marks omitted], quoting *Bryant*, 562 US at 366, 377); the “standard rules of hearsay, designed to identify some statements as reliable” (*id.* [internal quotation marks omitted], quoting *Bryant* 562 US at 358-359); and to whom the statements are made, as “[s]tatements made to someone who is not principally charged with uncovering and prosecuting criminal behavior are significantly less likely to be

3. The federal circuits likewise apply the primary purpose test (*see e.g. Johnson v Griffin*, 2024 WL 302387, *3, 2024 US App LEXIS 1802, *8-9 [2d Cir, Jan. 26, 2024, 22-2007-pr]; *United States v Latu*, 46 F4th 1175, 1180 [9th Cir 2022]; *United States v Stepanets*, 989 F3d 88, 116 [1st Cir 2021]; *United States v Miller*, 982 F3d 412, 434-435 [6th Cir 2020]; *United States v Mathis*, 932 F3d 242, 255 [4th Cir 2019]; *United States v Buluc*, 930 F3d 383, 392 [5th Cir 2019]; *United States v Hano*, 922 F3d 1272, 1287 [11th Cir 2019]; *Lambert v Warden Greene SCI*, 861 F3d 459, 469-470 [3d Cir 2017]; *United States v Klemis*, 859 F3d 436, 444 [7th Cir 2017]; *United States v LeBeau*, 867 F3d 960, 980 [8th Cir 2017]; *United States v Alcorta*, 853 F3d 1123, 1137 [10th Cir 2017]).

testimonial than statements given to law enforcement officers” (*id.* at 249).

Defendant contends that *Crawford* articulates a “core class” of testimonial statements that are always subject to the Confrontation Clause and thus immune from primary purpose analysis, and that the CJA report here falls within that category because an objective witness would reasonably believe it “would be available for use at a later trial” (541 US at 52 [internal quotation marks omitted]). *Crawford*, however, acknowledged that it was leaving “for another day any effort to spell out a comprehensive definition of ‘testimonial’ ” (*id.* at 68), and the Supreme Court has subsequently applied the primary purpose test to statements falling within *Crawford*’s “core class” of police interrogations to determine whether they were testimonial (*see Davis*, 547 US at 822; *Bryant*, 562 US at 355).

Precedent therefore confirms that an out-of-court statement is testimonial when, viewed objectively, all the circumstances indicate its primary purpose was to create an out-of-court substitute for trial testimony.⁴

IV.

We now turn to whether the introduction of the CJA Interview Report violated the Confrontation Clause. The CJA report is markedly different from the mine-run of evidence that runs afoul of the Confrontation Clause in several key respects.

First, though we do not resolve the defendant’s hearsay objection here (*see* n 1, *supra*), we note that the CJA report was introduced as a business or public record. As the Supreme Court has explained, “[b]usiness and public records are generally admissible absent confrontation not because they qualify under an exception to the hearsay rules, but because—having been created for the administration of an entity’s affairs and not for the purpose of establishing or proving some fact at trial—they are not testimonial” (*Melendez-Diaz*, 557 US at 324;

4. The dissent appears to agree that the primary purpose test governs this inquiry (dissenting op at 173), notwithstanding comments that the test “was written” only for “the kinds of statements . . . in *Clark* and *Davis*” (dissenting op at 174), and suggesting that a nebulous “but for” standard informs the primary purpose test (dissenting op at 175). These points are either unsupported by or contradicted by precedent. To the extent the dissent suggests that courts may “pick and choose” among standards (dissenting op at 176 n 5), we are bound to follow the Supreme Court’s precedent on the Sixth Amendment.

see also *Crawford*, 541 US at 56 [“Most of the hearsay exceptions covered statements that by their nature were not testimonial—for example, business records”]).

Second, the People introduced the report not to put before the jury the CJA interviewer’s conclusions, but as evidence that Franklin had “self-report[ed]” his residence as the basement of the house. According to the CJA supervisor’s testimony, standard practice is that all the information of the report, including the defendant’s address, comes “from the defendant,” though it is also later “verified” through a third party. But the People’s argument that because the defendant, rather than the CJA employee, was the declarant, the statement falls outside the ambit of the Confrontation Clause is unpreserved for our review. We therefore proceed to the merits of the Confrontation Clause assuming, arguendo, that the CJA interviewer was the declarant of the statements found on the form for purposes of the Confrontation Clause.

Under the relevant circumstances, we conclude that the primary purpose of the CJA interview report was not to create an out-of-court substitute for trial testimony, and that it is not therefore testimonial. The primary purpose of a CJA interview and resulting report is administrative, not something tailored “to establish or prove past events potentially relevant to later criminal prosecution” (*Clark*, 576 US at 244 [internal quotation marks omitted]). Its objective is to give the arraignment judge information pertaining to a defendant’s suitability for pretrial release (see *Yu*, 167 AD3d at 522), not to elicit incriminating statements. This function is reflected in the pedigree nature of the questions posed to defendants during these interviews (see e.g. *People v Williams*, 264 AD2d 325, 328-329 [1st Dept 1999] [defendant’s “CJA interview” is “defendant’s pedigree evidence”]), and confirmed by the notation on the face of the report: a CJA report “assesses the defendant’s risk of flight by considering . . . community ties and warrant history as defined in sections 2 (a) (ii) and 2 (a) (iii) and (vi) of CPL 510.30 and open cases,” and “does not consider other criteria listed in CPL 510.30 such as defendant’s mental condition, the weight of the evidence, or the possible sentence.”

We find it significant that a CJA interview report is routinely prepared for all arrestees in New York City. The information collected is the same in every case, regardless of the particular facts or the elements of the relevant crime: the interviewer collects a predetermined set of pedigree information from the de-

fendant and makes a recommendation to the court as to the defendant's suitability for pretrial release.⁵ As for the verification step (*see* dissenting op at 173), the record indicates that the defendant provides the verification source and contact information, and there is no indication that the CJA employees conduct any independent inquiries.

The dissent opines, without any record support, that CJA interviewers are "standing in the shoes of a law enforcement officer" (dissenting op at 176). To the extent this characterization sweeps in practices "everywhere else in the state" (*id.* at 171), our decision rests on the facts before us in this case, not suppositions about other approaches to providing pretrial services. As explained, while CJA employees work within the court system, they are not "principally charged with uncovering and prosecuting criminal behavior" (*Clark*, 576 US at 249), and for this reason are not law enforcement officers as contemplated by the Supreme Court's Confrontation Clause jurisprudence.⁶

That a CJA report is generated for a court and has consequences for a defendant's liberty does not change the fact that its primary purpose is administrative, and not testimonial.⁷ We note that other courts have reached a similar conclusion regarding other records primarily prepared for administrative reasons (*see Melendez-Diaz*, 557 US at 324 [records "created for the administration of an entity's affairs and not for the purpose

5. The information the defendant provides to the CJA may assist him by facilitating his release (*see* New York Criminal Justice Agency, <https://www.nycja.org> [CJA description of its mission as "assist(ing) the courts and the City in reducing unnecessary pretrial detention"]).

6. Even if we viewed the CJA employee as akin to a probation officer, that alone would not make the report testimonial since we have long recognized that even police officers conduct both "investigative inquiries" and inquiries purely directed at "administrative concerns" (*see e.g. People v Wortham*, 37 NY3d 407, 415 [2021], citing *People v Rodney*, 85 NY2d 289, 294 [1995] [addressing the pedigree exception to *Miranda*]).

7. Use of the report to determine whether a defendant should be released prior to trial does not make the report testimonial, contrary to the dissent's contention (*see e.g. dissenting op* at 174-175). " '[T]he right to confrontation is a *trial right*' available against witnesses *at trial*" (*People v Hameed*, 88 NY2d 232, 239 [1996], quoting *Pennsylvania v Ritchie*, 480 US 39, 52-53 [1987], and citing *Barber v Page*, 390 US 719, 725 [1968] [right to confrontation is "basically a trial right," contrasting trial with preliminary hearings, which are "much less searching" inquiries into whether "to hold the accused for trial"])). The only case the dissent offers in support of its view is a trial court opinion that does not discuss the Confrontation Clause and has been cited only once in 40 years (*see dissenting op* at 174-175, 175, 176-177, citing *People v Brown*, 109 Misc 2d 366 [Sup Ct, New York County 1981]).

of establishing or proving some fact at trial” are “not testimonial”]; *see also United States v Noria*, 945 F3d 847, 856, 859 [5th Cir 2019] [forms created by Customs and Border Patrol relaying migrants’ basic information not testimonial because routinely created in the course of the agency’s “non-adversarial duties,” not “in anticipation of litigation”]; *United States v Caraballo*, 595 F3d 1214, 1228-1229 [11th Cir 2010] [“basic biographical information” that is “routinely requested” not testimonial, though it may later become relevant to prosecution]; *United States v Torralba-Mendia*, 784 F3d 652, 666 [2015] [immigration documents “prepared for administrative purposes” not testimonial]; *State v Staudenmayer*, 411 Mont 167, 176, 523 P3d 29, 35 [2023] [minute entries not testimonial because primary purpose is to “aid the administration of the trial court”]; *Jackson v United States*, 924 A2d 1016, 1020-1021 [DC 2007] [docket entries and notice to return created for operation of the court, not to document facts or events for future prosecution]).

Finally, the pedigree information collected, including the defendant’s address, is pertinent to establishing community ties; it is only incidentally relevant in this case (*see e.g. Noria*, 945 F3d at 857-858 [“No doubt, the biographical portion of an (immigration form) can be helpful to the Government in a later criminal prosecution,” but it is not testimonial because its “primary purpose is administrative, not investigative or prosecutorial”]; *Caraballo*, 595 F3d at 1229 [an “incidental or secondary use” is of “little moment” because the question is the “primary purpose”]). The fact that the report became relevant during this trial does not alter or diminish the primary purpose for which it was created (*see Clark*, 576 US at 250).

The introduction of the CJA interview report thus did not violate the defendant’s right of confrontation, and consequently, we reverse.⁸

Accordingly, the order of the Appellate Division should be reversed, and the case remitted to that Court for consideration of

8. Although the dissent suggests that CJA interview reports may be widely used against defendants, we have identified only four cases over the past five decades in which the prosecution has attempted to do so at trial, even though CJA presumably creates these forms for countless individuals arrested by NYPD every year (*see e.g. Jin Cheng Lin*, 26 NY3d at 714-715; *People v Mitchell*, 74 AD3d 417, 417 [1st Dept 2010] [holding that a CJA report was a “business record” and “not testimonial”], *lv denied* 15 NY3d 922 [2010]; *Williams*, 264 AD2d at 328-329; *Brown*, 109 Misc 2d at 367). Policy issues sounding in the right to counsel and the Fifth Amendment right against

(n. cont’d)

the facts and issues raised but not determined on appeal to that Court.

AARONS, J.* (dissenting). The issue is whether an interview report recommending defendant's pretrial release, produced by the New York City Criminal Justice Agency (CJA) at Queens Central Booking while defendant awaited arraignment and provided directly to the arraignment court, was "testimonial" and thus subject to the Confrontation Clause. I would conclude that the CJA report was a "statement[] that [was] made under circumstances which would lead an objective witness reasonably to believe that the statement would be available for use at a later trial" (*Crawford v Washington*, 541 US 36, 52 [2004] [internal quotation marks and citation omitted]). Put another way, "its primary purpose was testimonial" (*Ohio v Clark*, 576 US 237, 245 [2015]).

The majority takes the opposite view, relying on assumptions about the relevant circumstances, i.e., pretrial release determinations are administrative, the residential address collected is merely "pedigree information," rather than viewing the CJA report as a critical datapoint in assessing pretrial release.

And for that effort, the majority concludes that a jailhouse interview report generated at the start of a criminal prosecution and submitted to the court to utilize in a core judicial decision concerning a defendant's liberty is *not* a "testimonial" statement. Because the Sixth Amendment right of confrontation applies to the CJA report at issue here, I respectfully dissent.

I.

A.

The facts of defendant's alleged crime are essentially as the majority articulates. Police found a gun in the basement of a house defendant shared with his stepmother and son but found no direct evidence that defendant had dominion and control over that space—an element deemed essential by all parties to prove defendant constructively possessed a weapon in violation of the law.

After defendant's arrest, he was jailed at Queens Central Booking to await arraignment. There, an employee of the

self-incrimination are not before us in this case and we do not opine on them (see brief for amicus curiae University of Buffalo School of Law).

* Designated pursuant to NY Constitution, article VI, § 2.

CJA—a nonprofit agency under contract with and funded by the City of New York—interviewed defendant to assess his fitness for pretrial release and bail and make a recommendation to the arraignment court.

Significantly, on the subject report, the CJA employee wrote “BSMT” next to defendant’s current address of “[XX] 168TH ST.” The report also indicates defendant’s mother “verified” that defendant lived with her at that address, and that he had lived there for three years.

And herein lies the problem—the arresting officer testified only to defendant’s street address, whereas the CJA report adds “BSMT.”¹ Therefore, it is critical to this case to know who said that he lived in the basement, when, and under what conditions. The interview report captures data about defendant as well as his mother, which undermines the reliability of the form language indicating that the address came from defendant. Regardless, the only “witness” statement the People offered to prove defendant occupied the basement was the CJA employee’s report asserting defendant lived at his home address in a “BSMT.”

B.

Rather than produce the CJA employee who wrote “BSMT” on the form, the People introduced the report through Oscar Morales, the recently installed Queens borough manager for CJA who did not interview defendant, complete the report, or have any direct knowledge as to whether defendant said he lived in the basement or whether he in fact lived there. Indeed, when the interview was conducted in 2016, Morales was work-

1. The majority refers to defendant’s address as “pedigree information,” which is the term used for basic data such as name, address and birthdate taken down after a defendant is arrested and booked. In this context, however,

“the data . . . goes far beyond the mere pedigree information secured by arresting officers during the booking procedures. For example, the police official asks simply for the defendant’s residence. The CJA staff member, on the other hand, inquires also as to: the length of such residence; with whom the defendant lives; any alternative residence; and the names of friends and relatives who can confirm such information.” (*People v Brown*, 109 Misc 2d 366, 371 [Sup Ct, NY County 1981] [internal quotation marks and citations omitted].)

That information factors into the pretrial release recommendation. Indeed, according to the unredacted subject report, defendant received points in his favor for providing a verified “NYC area address.”

ing at the Bronx CJA in an unspecified role for an unspecified period with no indication he knew of CJA's business practices at that time (*cf.* CPLR 4518).

Nevertheless, Morales testified to the procedure used to generate the report at Queens Central Booking—where he had been working for about a year. According to Morales, the CJA interviewer goes to an arrestee's cell, who is called over for the five-minute interview while waiting to be arraigned. At this point, the interviewer uses a tablet to collect some information from the arrestee, including the arrestee's "name, date of birth, sex, address, prior address, whether or not they work, [and] whether or not someone is coming to court during their arraignment." The interviewer records this information on an interview report form, then verifies the information collected with another source identified by the arrestee. All of this is done so that "[CJA] can verify community ties in order to make our recommendation to the Judge that they can be released without paying bail." The interviewer calculates point values based upon the arrestee's and verifier's responses and records a recommendation for pretrial release on the interview report. The court receives a copy of the report along with the prosecutor and defense counsel.

C.

The majority asserts that the CJA report serves the court's administrative function. Not so. The CJA report is created in the context of an arraignment—a decidedly judicial affair (*see Clark v Town of Ticonderoga*, 291 AD2d 597, 600 [3d Dept 2002], *lv denied* 98 NY2d 604 [2002]). Among other functions, an arraignment commences the criminal action, and is the process by which a person charged with a crime is brought under the personal jurisdiction of the court (*see* CPL 1.20 [9]). With jurisdiction established, the court then issues a "securing order" that reasonably assures the defendant will return to court (CPL 500.10 [5]; *see* CPL 510.10 [1]). Depending on the crime alleged and certain other factors, the securing order may incarcerate the defendant to await trial with or without bail or direct release on the defendant's own recognizance with or without conditions (*see* CPL 500.10 [5]; 510.10 [1]). To make that determination, the court at the time of defendant's arraignment in 2016 was required to use "available information" to consider, among many other factors, defendant's "family ties and the length of [their] residence if any in the community,"

along with defendant’s “employment and financial resources” and “previous record[,] if any[,] in responding to court appearances when required or with respect to flight to avoid criminal prosecution” (CPL former 510.30 [2] [a]).

A court may not necessarily have had access to the information required to issue the securing order, but it could rely upon a report from a pretrial services agency to collect the information at the time a defendant is arraigned. Such an agency is either “a public entity under the supervision and control of a county or municipality or a non-profit entity under contract to the county, municipality or the state” (CPL 510.45 [2]). Outside of New York City, pretrial services are generally the purview of the county probation departments (*see People v Yu*, 167 AD3d 521, 522 [1st Dept 2018], *lv denied* 33 NY3d 1037 [2019]). Within New York City, the CJA does that job pursuant to a contract with the City, which funds its operation (*see id.*). Said differently, the CJA does a job that everywhere else in the state is entrusted to law enforcement officers (*see generally* CPL 2.10 [24]; 2.20).

II.

The Federal Constitution guarantees criminal defendants the right “to be confronted with the witnesses against [them]” (US Const 6th Amend). “In particular, the Confrontation Clause is concerned with admission of testimonial statements made by declarants who are unavailable for cross-examination” (*People v Hao Lin*, 28 NY3d 701, 704 [2017], citing *Williams v Illinois*, 567 US 50, 76 [2012]). “Thus, under [Supreme Court] precedents, a statement cannot fall within the Confrontation Clause unless its primary purpose was testimonial. ‘Where no such primary purpose exists, the admissibility of a statement is the concern of state and federal rules of evidence, not the Confrontation Clause’” (*Ohio v Clark*, 576 US at 245, quoting *Michigan v Bryant*, 562 US 344, 359 [2011]).

Tying the confrontation right to a determination that a hearsay statement is “testimonial” originates in *Crawford v Washington* (541 US 36), though that case did not define the universe of statements that could be testimonial. Instead, the *Crawford* Court looked to an 1828 Webster’s Dictionary and used the definitions of *witness* and *testimony* to identify a “core class” of testimonial statements. The Court listed “[v]arious formulations of this core class,” including, “statements that were made under circumstances which would lead an objective

witness reasonably to believe that the statement would be available for use at a later trial” (*id.* at 51-52 [internal quotation marks and citation omitted]). The Court also identified “affidavits, custodial examinations, prior testimony that the defendant was unable to cross-examine, or *similar pretrial statements* that declarants would reasonably expect to be used prosecutorially” (*id.* at 51 [internal quotation marks and citation omitted; emphasis added]). Indeed, “[r]egardless of the precise articulation, some statements qualify under any definition—for example, *ex parte* testimony at a preliminary hearing” (*id.* at 52).

Of course, *Crawford* was addressed to an out-of-court statement by a witness to police, which was not a scenario animating the Sixth Amendment’s ratification in late eighteenth century (*see id.* at 52-54). Consequently, police interrogations did not fit neatly into the core class of testimonial statements assembled using the tools of originalism. The *Crawford* Court, speaking through Justice Scalia, temporarily solved this problem by analogizing modern police interrogations to questioning by seventeenth century English magistrates and then simply included those interrogations in the core class.

Because *Crawford* could be read as subjecting all out-of-court statements to police to the Confrontation Clause analysis, the Supreme Court later refined its definition of *testimonial* through the primary purpose test. The Court in *Davis v Washington* (547 US 813 [2006]) emphasized that the correct application of the test must look to all of the surrounding circumstances. Accordingly, the Court concluded that statements made “under circumstances objectively indicating that the primary purpose of the interrogation is to enable police assistance to meet an ongoing emergency” were not testimonial—for example, a 911 call reporting an assault that had occurred moments before (*id.* at 818, 822). By contrast, statements “are testimonial when the circumstances objectively indicate that there is no such ongoing emergency, and that the primary purpose of the interrogation is to establish or prove past events potentially relevant to later criminal prosecution,” such as statements made to police arriving at the location of a domestic violence incident that had already ended, and therefore the officers’ questions about that incident were investigatory (*id.* at 821-822). Nothing in *Davis* overruled *Crawford*; the fact that the Court limited how statements to police triggered the right of confrontation did not negate the other examples of core-class

testimonial statements (*see Lambert v Warden Greene SCI*, 861 F3d 459, 469-470 [3d Cir 2017]).

Ohio v Clark (576 US 237) further refined the primary purpose test as applied to out-of-court statements made by and to individuals who are not law enforcement. Those statements are by their nature less likely to be testimonial than statements made to police and other government officials (*see Crawford v Washington*, 541 US at 51). In that case, statements by a child to his teachers reporting abuse were not testimonial because the primary purpose of those conversations was protective, not investigatory, and the teachers were not “principally charged with uncovering and prosecuting criminal behavior” (*Ohio v Clark*, 576 US at 249).

The *Clark* Court articulated the primary purpose test as “whether, in light of all the circumstances, viewed objectively, the ‘primary purpose’ of the conversation was to ‘creat[e] an out-of-court substitute for trial testimony’” (*id.* at 245, quoting *Michigan v Bryant*, 562 US at 358). This is the test the majority clarifies that courts should apply to ascertain whether out-of-court statements are testimonial (*see* majority op at 164).

III.

A.

“[C]onsidering all the relevant circumstances here,” the primary purpose of the CJA interview report was testimonial (*Ohio v Clark* 576 US at 246; *see Michigan v Bryant*, 562 US at 369). The CJA report—generated for and given directly to the court during a criminal prosecution to prove facts and make conclusions about defendant—is a “pretrial statement[] that declarants would reasonably expect to be used prosecutorially” (*Crawford v Washington*, 541 US at 51). Although titled an interview report, the verification step makes the process of generating it investigative. The CJA provides services of a probation department, including operating a supervised release program in Queens, which, in my view, makes that organization like a law enforcement agency for present purposes. Assuming the procedure outlined by Morales was followed—an issue defendant does not concede—the CJA employee created the subject report after questioning defendant while he was in custody. Although the interview report form in the record was not a sworn state-

ment, “the absence of oath [i]s not dispositive” of testimoniality (*id.* at 52). That the report was generated for the court itself indicates it was made with sufficient solemnity to qualify as testimonial (*see id.*). In sum, the formality of the circumstances under which the report was created, the role of the CJA employee, the interview and verification procedure, and the intended recipient all lean toward concluding the CJA interview report was testimonial (*see id.* at 51; *cf. Garlick v Lee*, 1 F4th 122, 134-135 [2d Cir 2021], *cert denied* 595 US —, 142 S Ct 1189 [2022]).

Four other considerations merit attention in the analysis. *First*, the report was generated in preparation for arraignment—the start of defendant’s criminal prosecution (*compare United States v Noria*, 945 F3d 847, 849-851, 856 [5th Cir 2019], *cert denied* 589 US —, 140 S Ct 2629 [2020]; *United States v Hano*, 922 F3d 1272, 1287 [11th Cir 2019], *cert denied* 589 US —, 140 S Ct 488 [2019]; *United States v Caraballo*, 595 F3d 1214, 1226-1227, 1229 [11th Cir 2010]).

Second, the CJA interview report functioned, essentially, as a fact-finding tool for the court to use in meeting its obligation to issue a securing order informed by relevant considerations (*see* CPL former 510.30 [2] [a]; *People v Yu*, 167 AD3d at 522). This direct connection to the court sets the CJA interview report apart from the kinds of statements the primary purpose test was written to address in *Clark* and *Davis*.

Third, the statements in the report “can be used against [arrestees] if they violate any release conditions” (*People v Brown*, 109 Misc 2d 366, 369 [Sup Ct, NY County 1981]).

Fourth, the report provides data to determine pretrial release, which bears on an arrestee’s prosecution. As one trial judge wrote over 40 years ago,

“Competent studies have fully documented the many disadvantages endured by incarcerated defendants—both pretrial and postconviction—as compared to their bailed or paroled counterparts. Lack of adequate ability to prepare a defense, to consult with counsel, to communicate with relatives and friends, to locate witnesses and to gather evidence, are but a few, pretrial; as well as a greater likelihood of conviction in all events. Post-

conviction, the detainee can expect a more severe sentence.” (*Id.* at 368 [citation omitted].)²

B.

In light of these considerations, I cannot subscribe to the majority’s conclusion that the subject report fails the *Clark* primary purpose test. The report was a testimonial statement because it was generated for the court “to create a record for [defendant’s] criminal prosecution” (*United States v LeBeau*, 867 F3d 960, 981 [8th Cir 2017]). But for that prosecution, there would be no conversation between the CJA employee and defendant and thus no report—a relationship that suggests the primary purpose of the conversation and report was “prosecutorial” (*United States v Noria*, 945 F3d at 857).

Simply stated, the declarant at issue—the CJA employee—is speaking through the report to the court.³ No doubt, defendant and the CJA employee knew this when defendant’s interview occurred (*see People v Brown*, 109 Misc 2d at 369). The CJA employee’s questions and that employee’s duty to ask them—and thus the report generated by that questioning—were prescribed by the employee’s obligation to the court (*compare Ohio v Clark*, 576 US at 249). Defendant’s responses to the CJA employee’s questions were therefore informed by his awareness of the employee’s role as a court functionary (*compare id.*).

Worth noting is that the primary purpose test was developed on facts that differ from this case in important ways. Put plainly, neither the police in *Davis* nor the teachers in *Clark* wrote reports about their conversations with the complainants

2. In other words, the CJA interview report informs the court’s pretrial release decision, which has a measurable impact on whether a criminal prosecution will result in a conviction. And the CJA is not blind to this connection (*see e.g.* New York City Criminal Justice Agency, *NYC Pretrial Data, What are the court case outcomes for prosecuted arrests?*, <https://www.nycja.org/court-case-outcomes> [last accessed Apr. 19, 2024; click on question three under “About the Data”] [“In 2022, there were 87,909 disposed cases stemming from Summary Arrests that were not resolved at arraignment. . . . For those released pretrial, 24% of cases were resolved with a guilty disposition, compared to 62% for those detained until disposition”]). In my view, that connection and the CJA’s awareness of it are relevant considerations in determining whether the primary purpose of the CJA interview report “is to establish or prove past events potentially relevant to later criminal prosecution” (*Davis v Washington*, 547 US at 822).

3. There is no dispute that the CJA employee wrote “BSMT” and everything else in the report.

in those cases that they immediately handed directly to the court for a judicial determination as those prosecutions commenced.⁴ Identifying this case's distinguishing features is important because the primary purpose test is a fact-driven inquiry (see e.g. *Ohio v Clark*, 576 US at 246-251; *Michigan v Bryant*, 562 US at 359, 374-375). And the Supreme Court has not provided an exhaustive list of considerations bearing on the primary purpose test (see *Davis v Washington*, 547 US at 822). Relatedly, the Supreme Court has not set categorical rules for determining testimonial statements (see *Ohio v Clark*, 576 US at 246).⁵ In light of this history, I do not read *Clark* or other Supreme Court precedent to bar this Court from holding the CJA report testimonial.

In any event, the primary purpose test requires consideration of all relevant circumstances. The report here took the place of the CJA employee speaking directly to the court at the start of defendant's criminal prosecution to inform a judicial decision impacting him. From that perspective, and in view of all of the relevant circumstances—many of which were not at issue in *Clark* and its predecessors—the primary purpose of the CJA interview report was testimonial (cf. *Lambert v Warden Greene SCI*, 861 F3d 459, 469 [3d Cir 2017], quoting *Crawford v Washington*, 541 US at 68).

IV.

The CJA report is not some kind of intake form; it is a statement by a person standing in the shoes of a law enforcement officer working within the criminal justice system about a defendant that has critical consequences for that defendant's liberty. Starting at arraignment, the report can help or hurt a defendant: declining to participate in the CJA interview will count against the defendant and jeopardize his freedom despite being cloaked with the presumption of innocence (see *People v Brown*, 109 Misc 2d at 374). Regardless of its contents, the People

4. I do not suggest a defendant should be able to assert the confrontation right during arraignment (see majority op at 166 n 7).

5. Even after *Clark*, courts occasionally seem to pick and choose among Supreme Court decisions setting out Confrontation Clause precedent (see e.g. *United States v Foreman*, 84 F4th 615, 620 [5th Cir 2023] [using test articulated in *Davis v Washington* (547 US 813, 822 [2006])]; *United States v Noria*, 945 F3d at 852 [same], quoting *Bullcoming v New Mexico*, 564 US 647, 659 n 6 [2011] [same]; see also *People v Ortega*, 40 NY3d 463, 474 [2023], quoting *Crawford v Washington*, 541 US at 51; see generally *United States v Miller*, 982 F3d 412, 436-437 [6th Cir 2020], cert denied 141 S Ct 1354 [2021]).

receive a copy, and it can be used to make any case they can against a defendant's interests. And it's tucked into the court's file to be pulled out and leveraged against a defendant at any time during the prosecution.

Today, this Court approves of using a CJA interview report to prove where a defendant lived in a prosecution that hinges on that fact. Tomorrow, it may be used to prove any other fact that the report assembles, such as a defendant's employment status, where he gets his money, whom he financially supports, how he pays for his food, his history in treatment programs, or any other information that the CJA gives to the court about a locked-up defendant.⁶ The confrontation right does not bar the report from coming in as evidence at all; it simply requires the proponent of the evidence to produce the witness who wrote it. Nothing more.

The Confrontation Clause is meant to protect against convictions based upon untested and unreliable evidence. In this case, a lone statement of questionable provenance secured defendant's conviction. The People concede that, if the trial court erred, that error would not be harmless, necessitating a new trial. I agree and cast my vote in favor of that outcome.

Chief Judge WILSON and Judges GARCIA, SINGAS and CANNATARO concur. Judge AARONS* dissents in an opinion, in which Judge BANNISTER* concurs. Judges RIVERA and TROUTMAN took no part.

Order reversed and case remitted to the Appellate Division, Second Department, for consideration of the facts and issues raised but not determined on appeal to that Court.

6. Although there is a small number of reported cases in which the prosecution sought to introduce the CJA report as evidence (see e.g. *People v Jin Cheng Lin*, 26 NY3d 701, 714-715 [2016]; *People v Mitchell*, 74 AD3d 417 [1st Dept 2010], *lv denied* 15 NY3d 922 [2010]; *People v Williams*, 264 AD2d 325, 328 [1st Dept 1999], *lv denied* 93 NY2d 1046 [1999]; *People v Brown*, 109 Misc 2d at 367), that number will surely increase as a result of this case.

* Designated pursuant to NY Constitution, article VI, § 2.

[242 NE3d 668, 217 NYS3d 883]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EUGENE
L. LIVELY, Appellant.

Argued April 17, 2024; decided May 21, 2024

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered July 28, 2023. The Appellate Division affirmed a judgment of the Jefferson County Court (David A. Renzi, J.), which had convicted defendant, after a nonjury trial, of criminal possession of a controlled substance in the third degree.

People v Lively, 218 AD3d 1312, reversed.

HEADNOTE**Crimes — Unlawful Search and Seizure — Search of Parolee's Pocket**

Defendant parolee's motion to suppress heroin recovered from an earbud case in his pocket when he was searched by a parole officer should have been granted, as the People failed to establish at the suppression hearing that the search of defendant's pocket was substantially related to the performance of parole officers' duties to search for an unnamed parole absconder who was "potentially" at defendant's home. To meet the required standard for searches of parolees set forth in *People v Huntley* (43 NY2d 175 [1977]), it is not enough necessarily that there was some rational connection between the parole officer's conduct and the performance of the officer's duties; rather, the particular conduct must also have been substantially related to the performance of duty in the particular circumstances. In addition, the absence of evidence that parole officers were acting as agents of the police, standing alone, is insufficient to render a parole search lawful. The evidence at the suppression hearing established only that the parole officers went to defendant's residence to search for a different parolee. There was no evidence that defendant provided any assistance to the absconder in violation of his own terms and conditions of parole or that circumstances developed after the parole officers arrived at defendant's residence which rendered the search of his pocket substantially related to the performance of their duties.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Evidence §§ 595, 644, 648; AM JUR 2d Searches
and Seizures § 33.

CARMODY-WAIT 2d Search and Seizure §§ 173:63, 173:369;

CARMODY-WAIT 2d Pretrial Motions § 189:281.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 3.9.

NY JUR 2d Criminal Law: Procedure §§ 261, 440, 1656.

ANNOTATION REFERENCE

See ALR Index under Exclusion of Evidence; Parole, Probation, and Pardon; Search and Seizure.

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POINTS OF COUNSEL

Law Offices of Karen G. Leslie, Riverhead (Karen G. Leslie of counsel), for appellant. I. Appellant's right to be free from unreasonable searches and seizures was violated by a search of his person and residence for an alleged absconder with insufficient facts upon which to predicate the search and seizure. (*Samson v California*, 547 US 843; *Oregon v Hass*, 420 US 714; *Cooper v California*, 386 US 58; *Sibron v New York*, 392 US 40; *Arkansas v Sullivan*, 532 US 769; *United States v Knights*, 534 US 112; *United States v Reyes*, 283 F3d 446; *United States v Singleton*, 608 F Supp 2d 397; *Griffin v Wisconsin*, 483 US 868.) II. The scale was improperly admitted into evidence as there was no foundation or chain of custody. (*People v Julien*, 41 NY2d 340; *People v Flanigan*, 174 NY 356; *People v Connelly*, 35 NY2d 171; *People v Montoya*, 244 AD2d 510; *People v Arena*, 65 AD2d 182; *People v Fuller*, 168 AD2d 972; *People v Manini*, 79 NY2d 561.) III. Evidence before the grand jury was insufficient as to Suboxone used to predicate possession with intent upon. (*People v Swamp*, 84 NY2d 725; *People v Deleon*, 34 NY3d 965; *People v Sayavong*, 83 NY2d 702; *People v Huston*, 88 NY2d 400; *People v Pelchat*, 62 NY2d 97; *United States v Estepa*, 471 F2d 1132.) IV. Appellant's guilt was not proved beyond a reasonable doubt (US Const Amend XIV; NY Const, art I, § 6). (*People v Bleakley*, 69 NY2d 490; *People v Contes*, 60 NY2d 620; *Jackson v Virginia*, 443 US 307; *People v Hines*, 97 NY2d 56; *People v Kirkpatrick*, 32 NY2d 17; *People v Finch*, 23 NY3d 408; *County Court of Ulster Cty. v Allen*, 442 US 140.)

Kristyna S. Mills, District Attorney, Watertown (Morgan R. Mayer of counsel), for respondent. I. The defendant's right to be free from unreasonable searches and seizures was not violated when he was searched pursuant to the conditions of his parole. (*People v Turriago*, 90 NY2d 77; *People v Parker*, 32

NY3d 49; *People v Huntley*, 43 NY2d 175; *People v McMillan*, 29 NY3d 145; *Matter of Russo v New York State Bd. of Parole*, 50 NY2d 69; *Greenholtz v Inmates of Neb. Penal & Correctional Complex*, 442 US 1; *People v Ramirez-Portoreal*, 88 NY2d 99; *People v Allen*, 73 NY2d 378; *Samson v California*, 547 US 843; *United States v Singleton*, 608 F Supp 2d 397.) II. The defendant's legal sufficiency argument was not preserved; in the alternative, the evidence was legally sufficient. (*People v Gray*, 86 NY2d 10; *People v Hines*, 97 NY2d 56; *People v Bleakley*, 69 NY2d 490; *People v Santos*, 86 NY2d 869; *People v Alvino*, 71 NY2d 233; *People v Sanchez*, 86 NY2d 27; *People v Olivo*, 230 AD2d 653; *People v Hughes*, 254 AD2d 498, 92 NY2d 1033; *People v McCollum*, 176 AD3d 1402.) III. The scales were properly admitted. (*People v Connelly*, 35 NY2d 171; *People v Sansalone*, 208 Misc 491; *People v Crimmins*, 36 NY2d 230.) IV. The evidence before the grand jury regarding Suboxone was sufficient for the purpose of securing an indictment. (*People v Abdulla*, 118 AD3d 1462, 25 NY3d 987; *People v Swamp*, 84 NY2d 725; *People v Deleon*, 34 NY3d 965.)

OPINION OF THE COURT

TROUTMAN, J.

In *People v Huntley*, this Court held that parolees do not surrender their constitutional rights against unreasonable searches and seizures (43 NY2d 175 [1977]). Because the People failed to establish at the suppression hearing that the search of defendant's pocket was substantially related to the performance of the parole officers' duties, defendant's suppression motion should have been granted.

In February of 2021, defendant, who was on parole, was visited by parole officers at his home. A parole officer searched his person, recovered a small case used for headphones from his pocket, and upon opening the case, discovered heroin. Defendant was subsequently charged with one count of criminal possession of a controlled substance in the third degree.*

Defendant moved to suppress the physical evidence recovered from him. During a suppression hearing, a parole officer testified that defendant had signed the standard form regarding the terms and conditions of parole, which required him to submit to searches of his residence and person. The officer further testified that she was asked to conduct a home visit at defendant's residence to search for a parole absconder, whom the

* Defendant was acquitted of a charge related to possession of Suboxone.

parole officer believed was “potentially” at defendant’s home. The alleged absconder was not identified on the record. When the parole officers arrived, they handcuffed defendant for the officers’ safety. The officer who testified then conducted a pat-down of defendant because she observed a bulge in his pocket. Upon a further search of his pocket, the officer recovered an earbud case containing suspected narcotics, which tested positive for heroin.

The suppression court denied defendant’s motion, concluding that the search was lawful because the parole officers were acting in the performance of their duties. Following a bench trial, defendant was convicted of third-degree criminal possession of a controlled substance.

On appeal, the Appellate Division affirmed the judgment in a split decision (218 AD3d 1312 [4th Dept 2023]). The majority held that the search of defendant was substantially related to the performance of the parole officers’ duties and that the parole officers were not acting as agents of the police or searching for evidence as part of a separate criminal investigation (*see id.* at 1312-1313). Two dissenting Justices would have held that the search of defendant’s pocket was unlawful because there was no evidence that the search was “related to defendant’s status as a parolee” or that defendant had violated the conditions of his parole (*see id.* at 1314-1315 [Bannister & Montour, JJ., dissenting]). A dissenting Justice granted defendant leave to appeal to this Court. We now reverse.

In *Huntley*, we established the standard for searches of parolees. We agreed with the defendant that parolees do not surrender all constitutional rights against unreasonable searches and seizures (*see* 43 NY2d at 181-183). We observed that “in any evaluation of the reasonableness of a particular search or seizure the fact of defendant’s status as a parolee is always relevant and may be critical; what may be unreasonable with respect to an individual who is not on parole may be reasonable with respect to one who is” (*id.* at 181). Accordingly, for parole officer searches of parolees, “whether the action was unreasonable and thus prohibited by constitutional proscription must turn on whether the conduct of the parole officer was rationally and reasonably related to the performance of the parole officer’s duty” (*id.*).

Turning to the application of *Huntley* in this case, the People failed to satisfy their burden at the suppression hearing to

demonstrate that the search of defendant's pocket was rationally and reasonably related to the parole officers' duties under the particular circumstances presented. Although the People assert on appeal that any assistance defendant provided to the parole absconder would be a violation of defendant's own terms and conditions of parole, the record is silent as to whether defendant provided any such assistance or how any such assistance might be related to the search of defendant's pocket. The evidence at the suppression hearing established only that the parole officers went to defendant's residence to search for a different parolee. The People failed to elicit evidence during the suppression hearing regarding defendant's relationship, if any, with the unnamed absconder, nor did the People establish that defendant was even aware that this person was on parole or had absconded. Moreover, the People did not introduce any evidence that defendant was suspected of harboring an absconder or was otherwise violating the terms and conditions of his parole.

Of course, unannounced home visits are a common feature of parole supervision, and the presence of parole officers at defendant's home is not problematic. Importantly, however, in *Huntley*, we observed that to meet the required standard for searches of parolees, "[i]t would not be enough necessarily that there was some rational connection" between the parole officer's conduct and the performance of the officer's duties; rather, "the particular conduct must also have been substantially related to the performance of duty in the particular circumstances" (*id.* at 181).

Here, the People failed to meet their burden to establish that the search of defendant's pocket was substantially related to the performance of the parole officers' duties in the particular circumstances presented, i.e., the search of defendant's residence for a parole absconder. Nor did the People present any evidence at the hearing that circumstances that developed after the parole officers arrived at defendant's residence rendered the search of his pocket substantially related to the performance of their duties. On this record, the parole officer had no reason to continue the brief pat-down search of the exterior of defendant's person by searching his pocket and investigating the contents of an earbud case.

The People's reliance on the fact that the parole officers were not acting as agents of police or searching for evidence of a crime is misplaced (*see also* 218 AD3d at 1313). Granted, we

acknowledged in *Huntley* that “conduct which may be unreasonable with respect to a parolee if undertaken by a police officer may be reasonable if taken by the parolee’s own parole officer,” and we thought it “significant” that the parole officers were not “seeking contraband or evidence in aid of prosecution for criminal activity” (*Huntley*, 43 NY2d at 181-182). The Appellate Division has similarly observed that a parole officer’s search is unlawful when the parole officer is acting as a “conduit for doing what the police could not do otherwise” (*People v Escalera*, 121 AD3d 1519, 1520 [4th Dept 2014] [internal quotation marks omitted], *lv denied* 24 NY3d 1083 [2014]; *see also People v Candelaria*, 63 AD2d 85, 90 [1st Dept 1978]). But the absence of evidence that parole officers were acting as agents of the police, standing alone, is insufficient to render a parole search lawful. The *Huntley* standard must also be satisfied.

In light of our conclusion, defendant’s remaining contentions, to the extent reviewable, are academic.

Accordingly, the order of the Appellate Division should be reversed and the indictment dismissed.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and HALLIGAN concur.

Order reversed and indictment dismissed.

[242 NE3d 1152, 218 NYS3d 241]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v PATRICK
LABATE, Respondent.

Argued February 15, 2024; decided March 21, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, Second, Eleventh and Thirteenth Judicial Districts, entered April 8, 2022. The Appellate Term (1) reversed, on the law, a judgment of the Criminal Court of the City of New York, Queens County (Karen Gopee, J.), which had convicted defendant, upon a jury verdict, of reckless driving; (2) vacated so much of an order of that Criminal Court (Joanne Watters, J.) as had, upon reargument, adhered to its prior order denying the branch of defendant's motion seeking to dismiss, on statutory speedy trial grounds, the count in the accusatory instrument charging defendant with reckless driving; (3) granted that branch of defendant's motion; and (4) dismissed that count of the accusatory instrument.

People v Labate, 74 Misc 3d 138(A), 2022 NY Slip Op 50309(U), affirmed.

HEADNOTE**Crimes — Right to Speedy Trial — People's Failure to Provide
Explanation for Postreadiness Delay — Entire Adjournment Not
Just Requested Days Chargeable to People**

In a prosecution for reckless driving and related charges in which the People filed an off-calendar statement of readiness, were not ready on three successive trial dates, and failed to provide any explanation despite the court's invitation to do so, and despite the opportunity to provide an explanation in their opposition to defendant's CPL 30.30 motion, the full 43-day adjournment granted by the court in response to the People's request for a 12-day adjournment at the first scheduled trial date was chargeable to the People. If the People are not ready for trial after they have declared readiness and seek an adjournment, the People must provide an explanation for their postreadiness requests for adjournments either some time before or in response to a defendant's CPL 30.30 motion. That explanation—whether given in advance of the scheduled trial date, contemporaneously with it, or thereafter—is presumed valid, and the People will not be charged with the time beyond that which they requested, because the additional delay is assumed to result from court congestion or some other factor beyond the People's control. The burden then shifts to the defendant to overcome that presumption. However, when the People have failed to offer a reason for a postreadiness adjournment request causing delay of a previously scheduled

trial date, they are charged with the entire delay, not merely the length of the adjournment they requested.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law § 937.
CARMODY-WAIT 2d Timeliness of Prosecution; Speedy Trial
§§ 186:120, 186:133–186:135, 186:137.
LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 18.2.
MCKINNEY'S, CPL 30.30.
NY JUR 2d Criminal Law: Procedure §§ 1927–1931.

ANNOTATION REFERENCE

See ALR Index under Constitutional Law; Continuances
and Adjournment; Speedy Trial.

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POINTS OF COUNSEL

Melinda Katz, District Attorney, Kew Gardens (Amanda R. Iannuzzi, Sharon Y. Brodt and John M. Castellano of counsel), for appellant. The Appellate Term's decision dismissing the accusatory instrument on statutory speedy trial grounds contravened this Court's precedent, including *People v Brown* (28 NY3d 392 [2016]), which the Appellate Term misapplied. (*People v Chavis*, 91 NY2d 500; *People v Carter*, 91 NY2d 795; *People v Cortes*, 80 NY2d 201; *People v Goss*, 87 NY2d 792; *People v Boumoussa*, 104 AD3d 863; *People v Stirrup*, 91 NY2d 434; *People v Anderson*, 66 NY2d 529.)

Patricia Pazner, Appellate Advocates, New York City (Brian Perbix of counsel), for respondent. The People's failure to proffer any reason, let alone a valid one, for their unreadiness on the first three trial dates established that their initial off-calendar statement of readiness and their request for a 12-day adjournment on the first trial date were illusory; additionally, their failure to explain the basis for the adjournment request also required them to be charged with the entire 43-day adjournment. (*People v Brown*, 28 NY3d 392; *People v Sibblies*, 22 NY3d 1174; *People v Kendzia*, 64 NY2d 331; *People v Nunez*,

47 AD3d 545; *People v Collins*, 82 NY2d 177; *People v Cortes*, 80 NY2d 201; *People v Liotta*, 79 NY2d 841; *People v Betancourt*, 217 AD2d 462; *People v McKenna*, 76 NY2d 59; *People v Anderson*, 66 NY2d 529.)

OPINION OF THE COURT

Chief Judge WILSON.

After filing an off-calendar statement of readiness in December 2017, the People were not ready on the first scheduled trial date of September 5, 2018. The People requested a 12-day adjournment without explanation, and the trial court adjourned the trial to October 18, 2018. On the next two dates set for trial, October 18th and November 28th, the People again announced they were not ready, each time providing no explanation. Mr. Labate, who was charged with a class A misdemeanor, was statutorily entitled to be tried within 90 days of the charge. Four hundred and twenty days after he was charged, he had still not been tried. Indisputably, most of that time is not chargeable to the People. The sole question in this case is what part of the 43-day period between September 5, 2018, and October 18, 2018, should be charged to the People. On this record, the full 43-day adjournment is chargeable to the People, and the accusatory instrument was properly dismissed.

I.

On December 10, 2017, Patrick Labate was arrested and charged with reckless driving (Vehicle and Traffic Law § 1212) and related offenses. In short, he crashed his car into a parked police vehicle that had its overhead lights activated, instead of taking one of the two roads at either side of the police car.¹ At arraignment the following day, the People were not ready on two counts, including the reckless driving count, because they

1. Following the arrest, Mr. Labate was charged with criminal mischief in the fourth degree (Penal Law § 145.00 [3]); operating a motor vehicle while under the influence of alcohol or drugs (Vehicle and Traffic Law § 1192 [2]); aggravated driving while intoxicated (Vehicle and Traffic Law § 1192 [2-a]); operating a motor vehicle while under the influence of alcohol (Vehicle and Traffic Law § 1192 [3]); and operating a motor vehicle while under the influence of alcohol or drugs (Vehicle and Traffic Law § 1192 [1]). Prior to trial, the People dismissed the counts of operating a motor vehicle while under the influence of alcohol or drugs and aggravated driving while intoxicated. The court granted Mr. Labate's trial order of dismissal for the count of criminal mischief in the fourth degree. Mr. Labate was acquitted of the remaining counts of operating a motor vehicle while under the influence

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lacked a necessary supporting deposition. On December 28, 2017, the People filed an off-calendar supporting deposition and a certificate of readiness declaring ready for trial on all counts. It is undisputed that between the day Mr. Labate was arraigned on December 11, 2017, and the off-calendar statement of readiness on December 28, 2017, 17 days were chargeable to the People.

After a series of hearing dates where the People reaffirmed their readiness, Criminal Court set a first trial date for September 5, 2018. On that day, the People appeared and stated that they were not ready for trial. They requested a 12-day adjournment to September 17, 2018. The court inquired, “Why aren’t the People ready? Do you have an indication?” to which the assistant district attorney—who was filling in for the assigned trial assistant—replied, “I do not at this time, your Honor.” The court then noted, “This case is from 2017. We need to prioritize it. Can we put this on for October 18th?” All the parties agreed. On its court action sheet, the court wrote the People’s reason for unreadiness as “no reason” and the case was adjourned to October 18, 2018.

On October 18th, the People again stated that they were not ready. A different assistant district attorney—also not the assigned trial assistant—requested an adjournment to October 29, 2018. The court asked if the assistant district attorney who had handled the pretrial motions was still assigned to the case, to which the appearing assistant district attorney replied, “He was promoted within the office. I don’t believe he’s handling the case any longer.” She named the new trial assistant assigned to the case, who was not present in court that day. The court pointed out that this case was last on September 5th,² which was prior to the promotion of the previously assigned trial assistant, and asked, “[W]hy aren’t the People ready today?” The People responded, “I’m not sure, Your Honor.” The court then required the People to file a new certificate of readiness: “[B]ecause there’s no reason [given] today[,] I’m going to request the People—require the People to file a certificate of readiness . . . and we’ll adjourn this matter once again for trial.” The court reemphasized that “[t]his case is almost a year

of alcohol and operating a motor vehicle while under the influence of alcohol or drugs.

2. The court transcript in the record has this date as “December 5th,” but given the fact that the prior court date was September 5th, it seems this was a stenographic error.

old.” Although the People had requested an adjournment to October 29th, the court offered a November date.³ All parties agreed to a November 28th, 9:30 a.m. adjournment for trial. The court again wrote “no reason” for the People’s unreadiness on its court action sheet.

On the November 28th trial date, the People were once again not ready. The court asked the People if there was any reason they would like to place on the record and the People responded, “No, your Honor.” The People did not request an adjournment to a specific date. The court reminded the People that the order to file a certificate of readiness was a “continuing standing order.” The court then suggested a January trial date and the People offered that “[t]he first week of February is okay.” The court clarified that the People understood they were being charged with the time until they filed the new certificate of readiness, and the People responded: “Yes, your Honor. We’ll file but—when we are ready” All parties agreed to a February 4, 2019 date for a jury trial. The court stated on the record that the People were charged with the entire period and once again put on its court action sheet “no reason” as to the People’s unreadiness.

Off-calendar, on December 3, 2018, the People filed a new certificate of readiness. On February 4th, even though neither the assistant district attorney of record nor the defense counsel of record were present, the People (on the second call) indicated they were ready. At that point, Mr. Labate’s case was “420 days old.” Defense counsel filed a motion to dismiss pursuant to CPL 30.30, asserting that the People were not ready for trial within the statutorily required 90-day period from the commencement of the action.⁴

3. The trial court originally offered November 9th, but defense counsel had hearings and trials for the entire month of November and only had November 28th available.

4. The motion to dismiss argued that count 1 (Vehicle and Traffic Law § 145.00 [1]), count 5 (Vehicle and Traffic Law § 1212), count 2 (Vehicle and Traffic Law § 1192 [2]), count 3 (Vehicle and Traffic Law § 1192 [2-a]), count 4 (Vehicle and Traffic Law § 1192 [3]), and count 6 (Vehicle and Traffic Law § 1192 [1]) should be dismissed, but the Appellate Term ruled only on the count in the accusatory instrument charging Mr. Labate with reckless driving—count 5, Vehicle and Traffic Law § 1212—and passed on “no other issue” (74 Misc 3d 138[A], 2022 NY Slip Op 50309[U], *3 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2022]). Accordingly, only the validity as to that one claim is in front of us.

II.

In his CPL 30.30 motion, Mr. Labate argued that the People's failure to be ready on successive trial dates and requests for specific adjournments without offering any explanations rendered the earlier statement of readiness illusory. The People's opposition to the motion offered no explanation for why the People were not ready, or any general response to Mr. Labate's accusation that the original off-calendar statement of readiness or the subsequent on-record indications of future readiness on September 17th were illusory.

Criminal Court denied Mr. Labate's motion to dismiss. The court found the People were chargeable with 75 days and rejected Mr. Labate's claim that the People should be charged with the entire 43-day adjournment from September to October. The court reasoned that September 5th was the People's first postreadiness declaration of unreadiness and as "the case was not adjourned to the People's requested date, there is no basis to believe that the People would not actually be ready on the requested date." Mr. Labate's case proceeded to trial where a jury convicted him of reckless driving and acquitted him of all the remaining charges.

Mr. Labate appealed, and the Appellate Term unanimously reversed (74 Misc 3d 138[A], 2022 NY Slip Op 50309[U], *1 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2022]). The court reasoned that, because the People did not "provide any explanation, reasonable or otherwise, for their failure to be ready on September 5, 2018, October 18, 2018 or November 28, 2018," Mr. Labate "met his burden of demonstrating that the People's statement that they would be ready for trial on September 17th, which is 'presumed truthful and accurate,' was illusory" (2022 NY Slip Op 50309[U], *2, quoting *People v Brown*, 28 NY3d 392, 405 [2016]). Thus, the court held that the People's failure to provide any explanation for their unreadiness on the first three trial dates or any basis for their 12-day adjournment request required them to be charged with the entire 43-day adjournment period from September 5th to October 18th. As a result, the court reversed the judgment, granted the branch of Mr. Labate's motion as to the reckless driving count, and dismissed that count.

A Judge of this Court granted the People leave to appeal. We now affirm the Appellate Term's order, but on different reasoning.

III.

The dispute about how to charge time in this case exists purely in a postreadiness context—meaning, the time after which the People have already declared ready for trial. In a postreadiness context, the People are generally charged with any delay resulting from their own inaction (*see Brown*, 28 NY3d at 404), but not delay attributable to the court (*see People v Goss*, 87 NY2d 792, 797 [1996]). Thus, when the People request an adjournment to a specific date, the requested time is ordinarily charged to the People, and time beyond that is presumptively not charged to the People, because it is assumed to result from court congestion or some other factor beyond the People’s control. The question here is whether that presumption can be maintained on this record. Our decisional law requires that the disputed time be charged to the People.

Section 30.30 of the Criminal Procedure Law was enacted in 1972 to address prosecutorial delays that “deprived defendants of their right to a prompt trial, hindered the People’s ability to try cases effectively, and undermined public confidence in the criminal justice system” (*People v Sibblies*, 22 NY3d 1174, 1176 [2014]; *People v Anderson*, 66 NY2d 529, 535 n 1 [1985]; *see also People v Sinistaj*, 67 NY2d 236, 239 [1986]; *People v Price*, 14 NY3d 61, 64 [2010]; *Brown*, 28 NY3d at 403). The statute places a specific time limit on the People to be ready for trial and otherwise requires dismissal.

Because the most serious offense with which Mr. Labate was charged was a class A misdemeanor, the People were required to be ready for trial within 90 days (*see CPL 30.30 [1] [b]*). Once a defendant “sufficiently alleges that the People were not ready within the statutory period, ‘the People [have] the burden of showing their entitlement to a statutory exclusion’ ” (*Brown*, 28 NY3d at 403, citing *People v Luperon*, 85 NY2d 71, 81 [1995]). Mr. Labate sufficiently alleged that the People were not ready within 90 days as 420 days had elapsed between the filing of the information and the date of his CPL 30.30 motion.

Section 30.30 also, however, specifically contemplates circumstances and periods that must be excluded when computing the People’s time (*see CPL 30.30 [4]*). The People may toll the “speedy trial clock” by declaring ready for trial (*Brown*, 28 NY3d at 404). Being “ready for trial” requires the People to make a statement of readiness, either on the record in open court or as a written off-calendar notice (*People v Chavis*, 91

NY2d 500, 505 [1998]; *see also* *People v Kendzia*, 64 NY2d 331, 337 [1985]). Because a statement of readiness serves to “toll the ‘speedy trial clock’ from running” either completely or “for the remainder of that adjournment period” (*People v Stirrup*, 91 NY2d 434, 440 [1998]), a declaration of readiness must be more than “merely mouthing those words” (*People v England*, 84 NY2d 1, 5 [1994]). Announcing trial readiness cannot simply be an “empty declaration that the People are prepared to present their direct case” but instead must affirm that “the People have done all that is required of them to bring the case to a point where it may be tried” (*id.* at 4).

Once the People have declared ready, a postreadiness delay may still be “charged to the People when the delay is attributable to their inaction and directly implicates their ability to proceed to trial” (*Brown*, 28 NY3d at 404, quoting *People v Carter*, 91 NY2d 795, 799 [1998]; *see also* *Anderson*, 66 NY2d at 535). That proposition is long-standing. In *People v McKenna*, we dismissed an indictment under CPL 30.30 because of an “unexcused, postreadiness delay by the prosecution” (76 NY2d 59, 63-64 [1990]). Likewise, in *People v Jones* (66 NY2d 529, 539-540 [1985]), we held that the People’s postreadiness “unexcused failure” to produce a defendant in their custody for trial warranted the People being charged the delay (*McKenna*, 76 NY2d at 64-65).

Of course, there are plenty of perfectly good reasons why—some of which the statute specifically contemplates—the People may declare trial readiness and subsequently become unready on a scheduled trial date, causing a postreadiness delay that should not count against them (*see* CPL 30.30 [3] [b]; [4]; *see also* *People v Dean*, 45 NY2d 651, 656-657 [1978] [“Subdivision 4 recognizes that certain delays are inherent in any criminal justice system and must be tolerated, and that other delays are caused by the defendant and should not prejudice the People’s right to bring him to trial”]). One such reason is court congestion.

Our decisional law draws a line between postreadiness and prereadiness delay as it relates to court congestion. Although the courts may be congested before the People are ready to try a case, that time is charged to the People because such delays “do not excuse the People from timely declaring their readiness for trial” (*People v Smith*, 82 NY2d 676, 678 [1993]; *People v Brothers*, 50 NY2d 413, 417 [1980] [“court congestion before the District Attorney is ready for trial . . . is irrelevant and

thus cannot excuse the District Attorney's failure to be ready. While court congestion may prevent a trial, in no sense does it operate to prevent the District Attorney from being ready"]; *see also People v Collins*, 82 NY2d 177, 181 [1993]; *People v Correa*, 77 NY2d 930, 931 [1991]). Correspondingly, once the People announce they are ready for trial, a postreadiness delay due to court congestion is *not* chargeable to the People when they were ready to try the case but the court (or defendant) was not (*see People ex rel. Franklin v Warden, Brooklyn House of Detention for Men*, 31 NY2d 498, 500 [1973]; *People v Giordano*, 56 NY2d 524, 525 [1982]; *Anderson*, 66 NY2d at 534, 535; *People v Cortes*, 80 NY2d 201, 209-210 [1992]; *Goss*, 87 NY2d at 798; *Brown*, 28 NY3d at 408). That distinction is important here.

Charging courts with postreadiness delays means the People are in fact "ready for trial" and the court's congestion (or the defendant's unreadiness, or other factors affecting court availability) is the only reason preventing the case from advancing to trial. Our decisional law supports that distinction (*see Franklin*, 31 NY2d at 500-502 [where none of the delays were attributed to the failure of the prosecutor to be ready for trial given they maintained readiness and offered proof that the cause was "calendar congestion and lack of court facilities"]; *Giordano*, 56 NY2d at 525 [affirming the order of the Appellate Division where the People established their continued readiness for trial during a period where the defendant was out of the court's jurisdiction and continued to do so until defendant was brought to trial and the People further established that the delay was due to court congestion]; *Anderson*, 66 NY2d at 535 [the People established on the record their continued readiness for trial during the period "after readiness was announced" and "further established that the delay was attributable to court congestion"]; *Cortes*, 80 NY2d at 210 ["once the People announce their readiness on the record" subsequent delays resulting from court congestion provide no basis for CPL 30.30 as that delay does not "directly implicate() the People's ability to proceed with trial"]⁵ Put simply, where the "impediment that caused the delay during the disputed periods" does not "affect the People's ability to present their

5. Notably, in all these cases, the Court highlighted not only that the People maintained their readiness throughout but also that the People established the delay was attributable to court congestion.

own case” and consequently does “not affect their ‘readiness,’ ” those periods of postreadiness delay are “simply not cognizable under CPL 30.30” (*Cortes*, 80 NY2d at 210). Indeed, it would make no sense to charge the People with delay when they are ready to go forward with trial and factors unrelated to their readiness prevent one from occurring.

IV.

It follows then that our precedents consistently explain that if the People are not ready for trial after they have declared readiness and seek an adjournment, the People must provide an explanation for their postreadiness requests for adjournments either some time before or in response to a defendant’s CPL 30.30 motion. That explanation—whether given in advance of the scheduled trial date, contemporaneously with it, or thereafter—is presumed valid, and the People will not be charged with the time beyond that which they requested in determining whether their 30.30 time has expired. The burden then shifts to the defendant to overcome that presumption (*see Brown*, 28 NY3d at 406).

Our most recent explanation of that test is set forth in *People v Brown*, which we decided with two companion cases—*People v Young* and *People v Canady*. In section II of that opinion—which contains our statement of law that controlled all three cases—we stated, “[i]n the postreadiness context, the People bear the burden of ensuring that the record explains the cause of adjournments sufficiently for the court to determine which party should properly be charged with any delay” (*id.* at 404 [internal quotation marks and citations omitted]). In that same section, we repeated that “the People retain the obligation in the postreadiness context to ensure ‘that the record explains the cause of adjournments sufficiently for the court to determine which party should properly be charged with any delay’ ” (*id.* at 406, citing *Stirrup*, 91 NY2d at 440). We reiterated that point a third time, stating, “if the People announce that they are not ready after they have filed an off-calendar statement of readiness, the People ultimately must explain the reason for their change in readiness status” (*id.*). We expressly stated, and now reaffirm, that “[t]he People could, but need not, state the reasons on the record at the calendar call. In all events,

however, the People must establish a valid reason for their unreadiness in response to a defendant's CPL 30.30 motion" (*id.*).⁶

In sum, *Brown* requires the People to ensure that the record explains the cause of adjournments (*see id.*). The People's explanation may be provided contemporaneously in open court (which may be the simplest) or later, even as late as in response to a defendant's motion under CPL 30.30, because a determination as to whether an adjournment will be charged or excluded is ordinarily "made when the defendant moves to dismiss . . . , and not at the time the adjournment is granted" (*People v Berkowitz*, 50 NY2d 333, 349 [1980]). However, when the People have failed to offer a reason for a postreadiness adjournment request causing delay of a previously scheduled trial date, they are charged with the entire delay, not merely the length of the adjournment they requested.

Brown is not novel in that regard; it merely reminded that the People's explanation need not be made contemporaneously in open court. Nearly a quarter century earlier, in *People v Liotta*, we held that

"where, as here, the court grants adjournments after the People have announced the indictment ready for trial, the burden rests on the People to clarify, on the record, the basis for the adjournment so that on a subsequent CPL 30.30 motion the court can determine to whom the adjournment should be charged. Inasmuch as the People failed to do so in this case, the adjournment must be charged to them" (79 NY2d 841, 843 [1992]).

Likewise, in *People v Jamison*, we found a 49-day postreadiness adjournment was chargeable to the People because on the

6. It is not clear what point the dissent seeks to make by claiming that we fail to "recognize that a record can explain who caused a delay without elaborating on the specific reason for that delay" (dissenting op at 204; *see also id.* at 206, 208). "Who" asked for a delay is obvious from the record, but as to time beyond that requested, the "why" becomes important to know how to charge the time. The conclusion the dissent reaches in that paragraph is one with which we fully agree: "we know that the period of adjournment requested by the People will be charged to the People regardless of the reason for the request" (*id.* at 204). Yet we do so bearing in mind that *Brown* repeatedly emphasizes that in a postreadiness context, where the People are not ready on a scheduled trial date, they "bear the burden of ensuring that the record explains the *cause* of adjournments sufficiently for the court to determine which party should properly be charged with any delay"—that is, the "why" for any time beyond the time requested by the People (28 NY3d at 404 [emphasis added]; *see also id.* at 400, 406).

calendar call the “prosecutor did not assert the People’s readiness for trial or ask the court for an explanation for the lengthy adjournment. Because the People failed to clarify, on the record, the basis for this adjournment, the period was properly charged to them” (87 NY2d 1048, 1049 [1996]; *see also Collins*, 82 NY2d at 182 [where the People failed to prove their postreadiness request for a continuance was only for a five-day adjournment, “the People clearly failed to meet their burden of making a record to reflect the true basis for this two-week adjournment” thus the “entire delay” was charged to them]). Despite the dissent’s recharacterization of our precedent (*see* dissenting op at 204-206), there is simply no escaping the very first paragraph of *Brown*, which states its holding, in relevant part:

“If the People announce that they are not ready after having filed an off-calendar statement of readiness, and the defendant challenges such statement—at a calendar call, in a CPL 30.30 motion, or both—the People *must* establish a valid reason for their change in readiness status to ensure that a sufficient record is made for the court to determine whether the delay is excludable” (28 NY3d at 400 [emphasis added]).

Contrary to the dissent’s contention, *People v Canady* does not suggest otherwise (*see* dissenting op at 206-207). Instead, the contrast between *Brown* and *Canady* provides a good illustration of our longstanding rule. In *Canady*, after filing an off-calendar statement of readiness, the People subsequently showed up to court two separate times, announced they were no longer ready, and requested specific and shorter adjournment dates than the court ultimately gave them (*Brown*, 28 NY3d at 401). The first time, the People were not ready “because the assigned prosecutor was engaged in a trial” (*id.*). The second time, the People were not ready because “the People did not have their file” (*id.*). Both times, however, the People gave reasons for their postreadiness adjournment requests. Accordingly, this Court concluded that they should have been charged only with the time they had requested (*id.* at 407-408). Indeed, the paragraph stating the result in *Canady*—“[t]he postreadiness delay attributable to the court is not charged to the People”—begins by stating that the People were not ready because the prosecutor was on trial in another case (*id.* at 407). Thus, the People’s provision of a reason was central to

our holding in *Canady*, as the balance of the opinion expresses clearly and repeatedly.⁷

Mr. Labate's case is not like *Canady*; it is instead like *Brown*. In *Brown*, after filing an off-calendar statement of readiness, the People appeared at the subsequent calendar call and announced they were not ready and, as here, "failed to provide an explanation as to why they were not ready" (*id.* at 402). What is clear from the difference between *Brown* and *Canady*, and from our consistent precedents from *Liotta* onward, is that, once a defendant raises a CPL 30.30 challenge, the People must, at some point, provide an explanation for their postreadiness adjournments and delay so that the court can determine what portion of the delay is properly attributable to them.

The crucial error in our dissenting colleagues' misimpression that we are "overturn[ing] decades of precedent" (dissenting op at 199) is most clearly found in their contention that "the additional 31 days were undisputedly caused by the court" (*id.*).⁸ The People have a duty to maintain readiness (*see Kendzia*, 64 NY2d at 337-338). Here, after declaring readiness, the

7. The dissent does not contend that *Canady* is not distinguishable on its facts, inasmuch as the People provided reasons there and none here. Instead, the dissent contends that our decision in *Canady* did not rely on that difference (*see* dissenting op at 206-207). That, of course, renders vacuous the dissent's claim about any stare decisis effect of *Canady* (*see id.* at 207-208): "stare decisis . . . will not be extended to cases fairly and reasonably distinguishable" (*Vilas v Plattsburgh & Montreal R.R. Co.*, 123 NY 440, 441 [1890]).

8. It is also difficult to believe that we have "overturned decades of precedent" (dissenting op at 199) when commentators and the Appellate Division alike have understood *Brown* as we do (*see e.g.* John M. Castellano, *Prac Insights*, NY CLS, CPL 30.30 [2024] ["Under (*Brown*), statements of readiness are generally presumed valid, but that presumption could be rebutted. Where, for example, the prosecution subsequently answered that it was not ready for trial, the burden would shift to the prosecution to explain how it could legitimately have been ready previously and later became unready"]; William C. Donnino, *Prac Commentaries*, McKinney's Cons Laws of NY, CPL 30.30 ["(O)nce the defendant (shows that the CPL 30.30 time limit has been exceeded), the burden shifts to the prosecution to show that the People were ready and remained ready during the requisite period If the defense fulfilled its initial burden and the prosecution failed to answer or to sufficiently controvert the defense allegations, the motion must be granted"]; 1 NY CLS Desk ed Gilbert's Criminal Practice Annual § 30.30 [pursuant to *Brown*, if after declaring readiness "the prosecution subsequently answered that it was not ready for trial, the burden would shift to the prosecution to explain how it could legitimately have been ready previously and later became unready"]; *People v Owens*, 209 AD2d 549 [2d Dept 1994]; *People v Fields*, 214 AD2d 332, 333-334 [1st Dept 1995] [where the People requested a specific adjournment and the court granted a further one at defense counsel's

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People were not ready on September 5th, nor again on the next scheduled trial date of October 18th, nor on the next scheduled trial date of November 28th, and asserted readiness (though the trial assistant was not present) on the date that Mr. Labate moved to dismiss on CPL 30.30 grounds—420 days after the accusatory instrument was filed. As in *Liotta*, “the burden rests on the People to clarify . . . the basis for the adjournment so that . . . the court can determine to whom the adjournment should be charged” (79 NY2d at 843), and *Brown*, “the People must establish a valid reason for their change in readiness status . . . for the court to determine whether the delay is excludable” (28 NY3d at 400), the People’s repeated unexplained unreadiness on repeated trial dates to which they had assented casts grave doubt on any claim that the delay “undisputedly” was due to court congestion.

Our dissenting colleagues caution our holding today is insensitive to faultless prosecutors (*see* dissenting op at 199) and will lead to “people who perpetrate crimes escaping accountability due to mere scheduling errors” (*id.* at 211). At bottom, however, our dissenting colleagues take umbrage with the CPL 30.30 statute as a whole, rather than with our holding. What they characterize as an “unnecessary technicality” (*id.*) that will “undoubtedly result in the unnecessary dismissal of viable prosecutions with no basis for such dismissal found in CPL 30.30” (*id.* at 212), is in fact, not a “new rule” (*see id.* at 199, 209, 210) but has been in place for half a century, equally contemplated by both the legislature and our precedent.

Imposing strict time limitations on the prosecution with the threat of dismissal is consequential. No doubt the legislature was aware of the potential impact speedy trial limits would have on the State and enacted CPL 30.30 nonetheless. Undeniably, the legislature still concluded that “defendants, victims,

specific request, the People were “properly charged only with the . . . postreadiness adjournment requested” however, where the People “failed to satisfy their burden of providing a clear record” of “the basis for (their) postreadiness adjournment” they “must assume responsibility for the entire postreadiness delay”]; *People v Betancourt*, 217 AD2d 462, 464 [1st Dept 1995] [“While the People cannot be charged with any time added to the requested adjournment because of court congestion or inconvenience when, in a post-readiness period, they request an adjournment for a specific number of days to a date certain, and *explain why* such a limited adjournment is necessary . . . (,) when the record reveals no such request” and the People never “*explain(ed)* why an adjournment was being requested or how they might be ready again on two days notice,” they “may not avail themselves of that rule” (emphasis added)].

and society are best served by a criminal justice system that expedites prosecutions and manages delays accordingly” (*Brown*, 28 NY3d at 413 [Rivera, J., concurring in part], citing Governor’s Program Bill Mem, Bill Jacket, L 1972, ch 184 at 5, 1972 Legis Ann at 6).

It is also unclear why our dissenting colleagues believe that our decision will cause people who commit “heinous crimes” to walk free (dissenting op at 211). The duty of the People to explain the reason for their unreadiness is slight and need not be stated contemporaneously.

Moreover, although Mr. Labate’s conviction occurred immediately before April 2019, when the legislature amended CPL 30.30 as part of “a suite of criminal justice reforms” (*People v Galindo*, 38 NY3d 199, 203 [2022]), those amendments, restate in part, the same rule from *Brown* that we reaffirm today. As relevant here, the legislature amended portions of subdivision (4), which governs the periods of time to be excluded when calculating chargeable time to the People (*see* L 2019, ch 59, § 1, part KKK, § 1). Section 30.30 now provides that “[a]ny such exclusion when a statement of unreadiness has followed a statement of readiness made by the [P]eople must be evaluated by the court after inquiry on the record as to the reasons for the [P]eople’s unreadiness and shall only be approved upon a showing of sufficient supporting facts” (CPL 30.30 [4] [g]). Thus, the dissent’s concerns will materialize—or not—without regard to our decision.

V.

Here, as described above, the People filed an off-calendar statement of readiness, were not ready on three successive trial dates, and failed to provide any explanation despite the court’s invitation to do so, and despite the opportunity to provide an explanation in their opposition to Mr. Labate’s 30.30 motion. Indeed, even in their papers to this Court, the People offered no explanation for any of the times they were not ready on a previously scheduled trial date to which they had assented. Surely that conduct does not serve the legislature’s intended purpose of “discourag[ing] prosecutorial inaction” (*Price*, 14 NY3d at 64). Instead, the People’s conduct fits squarely within our dissenting colleagues’ understanding of postreadiness delays—they are “charged to the People only when the delay is attributable to their inaction and directly implicates their ability to proceed to trial” (dissenting op at 203 [internal quotation marks and citations omitted]).

Accordingly, applying the rule of *Liotta* and *Brown*, the order of the Appellate Term should be affirmed.

TROUTMAN, J. (dissenting). Today the majority overturns decades of precedent by creating an ill-advised new rule that will force courts to dismiss cases on speedy trial grounds through no fault of the prosecutor.

Our State's speedy trial statute requires the People to be ready for trial within a time frame based on the highest charge in the accusatory instrument (*see* CPL 30.30 [1]). If the People are not ready for trial within that time frame, or cause postreadiness delay that pushes the trial outside of that time frame, then defendants can move to dismiss the charges against them (*see id.*). Until today, after declaring ready for trial, the People were required to ensure only that, going forward, the record reflected who caused any postreadiness delay. By ensuring that the People make a record, a court reviewing the record can determine, for example, whether any postreadiness delay was caused by the People or by the court. This is important because we have held on numerous occasions that postreadiness delay attributable to the court is not attributable to the People (*see e.g. People v Canady*, 28 NY3d 392, 403, 407 [2016]; *People v Goss*, 87 NY2d 792, 797 [1996]).

The majority's opinion upends this commonsense understanding that courts and parties have relied on for decades by attributing the court's postreadiness delay to the People. Applied here, this new rule means the People are held responsible for 43 days of postreadiness delay when they requested only a 12-day adjournment and the additional 31 days were undisputedly caused by the court—all because the prosecutor appearing did not know the underlying reason for the People's 12-day adjournment request.

The majority provides no rationale for imposing this new requirement on the People. Nor does it provide any clarity as to what types of "valid" explanations by a prosecutor will suffice in this postreadiness context. Is an undisclosed ailment sufficient? Staffing issues? On this the majority is silent. Courts and prosecutors are left without guidance to navigate the perils created by this new rule—a rule unmoored from CPL 30.30 and this Court's speedy trial jurisprudence. While the majority leaves much unexplained, the deleterious effect on the administration of justice is certain. I dissent.

I.

In the early morning hours of December 10, 2017, defendant while operating a motor vehicle recklessly crashed into a parked police car, thereby endangering the life of the officer inside who was pried out of the wreck. The police arrested defendant and charged him with multiple misdemeanor offenses, including reckless driving (Vehicle and Traffic Law § 1212). Based on the charges, the People were required to be ready for trial within 90 days (*see* CPL 30.30 [1] [b]).

On December 28, 2017, the People filed an off-calendar statement of readiness regarding the reckless driving charge. It is uncontested that the People were chargeable with 17 days of delay up to that date. The People declared their maintained readiness at several subsequent appearances, and there were various adjournments for discovery and motion practice. On the first scheduled trial date of September 5, 2018—more than eight months after the People’s initial declaration of readiness—a different prosecutor appeared for the People and requested an adjournment to September 17. In response to the court’s questioning, the prosecutor answered that he had no “indication” at that time why the adjournment was necessary. The court then proposed adjourning the matter until October 18—the 43-day period at issue on this appeal—and both defendant and the People agreed.

On October 18, 2018, a different prosecutor appeared and indicated that the People could not proceed that day, requesting an adjournment to October 29, 2018. The People explained that the previous prosecutor had been promoted and was no longer handling the case. When asked why the People could not proceed that day, the current prosecutor responded that she was “not sure.” In response to defense counsel’s request, the court ordered the People to file another certificate of readiness, which they ultimately did.

After some additional appearances and adjournments, the parties appeared before the court on February 4, 2019. The People were ready for trial, but defendant moved to dismiss the reckless driving charge on speedy trial grounds, contending that the prosecution’s delays exceeded the 90-day limit of CPL 30.30. Defendant argued that, in view of the People’s subsequent unexplained unreadiness, their statement on September 5 that they would be ready for trial on September 17 was illusory and, therefore, the People should be charged with all 43

days of the earlier adjournment from September 5 to October 18, not just the 12 days they had requested.

Criminal Court denied the speedy trial motion, charging the People with only the 12-day adjournment they requested on September 5, reasoning that “[t]he established rule is that ‘postreadiness delay attributable to the court is not chargeable to the People,’ thus, the period of the adjournment in excess of that actually requested by the People is excluded.” The court also held that defendant failed to show either that the People’s initial statement of readiness was illusory or that the People were not, in fact, ready on the date they requested. Following a jury trial, defendant was convicted of reckless driving and sentenced to a conditional discharge.

The Appellate Term reversed, granted defendant’s CPL 30.30 motion, and dismissed the reckless driving charge, reasoning that defendant had demonstrated that the People’s statement they would be ready for trial on September 17 was “illusory” (74 Misc 3d 138[A], 2022 NY Slip Op 50309[U], *2 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2022]). The majority now holds that the entire 43-day adjournment period was chargeable to the People, asserting that the “presumption” that postreadiness court delay is not chargeable to the People cannot be maintained because the People failed to provide a reason for their September 5 adjournment request. Inasmuch as the majority’s analysis finds no support in either our precedent or CPL 30.30, I cannot agree.

II.

“CPL 30.30 was enacted to serve the narrow purpose of insuring prompt prosecutorial readiness for trial, and its provisions must be interpreted accordingly” (*People v Brown*, 28 NY3d 392, 403 [2016] [internal quotation marks omitted]; see *People v Price*, 14 NY3d 61, 64 [2010]). Notably, CPL 30.30 “addresses only the problem of prosecutorial readiness, and is not a speedy trial statute in the constitutional sense” (*People v Anderson*, 66 NY2d 529, 535 [1985]).

In misdemeanor cases such as this one, CPL 30.30 requires the People to be ready for trial within 90 days (see CPL 30.30 [1] [b]). Whether the People have timely satisfied this obligation is generally determined by computing the time elapsed between commencement of the criminal action and the People’s statement of readiness, adding periods of postreadiness delay attributable to the People, and subtracting periods excludable

under the statute (*see People v Cortes*, 80 NY2d 201, 208 [1992]). Thus, evaluating a CPL 30.30 motion for dismissal requires a court to determine when the People filed their first valid statement of readiness, what periods of delay are attributable to the People, and what periods of delay may be excluded.

There are two elements to a valid statement of readiness (*see Brown*, 28 NY3d at 403). First, the statement of readiness must be made either on the record in open court or by a written notice of readiness sent by the prosecutor to both defense counsel and the appropriate court clerk (*see id.*; *People v Kendzia*, 64 NY2d 331, 337 [1985]). Second, the People must actually be ready to proceed at the time they declare readiness (*see Brown*, 28 NY3d at 403-404; *Kendzia*, 64 NY2d at 337). “Readiness is not defined simply by an empty declaration that the People are prepared to present their direct case” (*Brown*, 28 NY3d at 404 [internal quotation marks and brackets omitted], quoting *People v England*, 84 NY2d 1, 4 [1994]). “The inquiry is whether the People have done all that is required of them to bring the case to a point where it may be tried” (*id.* [internal quotation marks omitted]).

While a failure to declare readiness within the statutory limits results in dismissal of the prosecution unless the People can demonstrate that sufficient time periods should be excluded, a statement of readiness satisfies the People’s duty to be ready for trial and serves to toll the “speedy trial clock” from running for the remainder of the adjournment period (*Brown*, 28 NY3d at 404; *see People v Stirrup*, 91 NY2d 434, 440 [1998]). Significantly, a statement of readiness made by the People is illusory and “insufficient to stop the running of the speedy trial clock,” if the People are not actually ready at the time it is made, such as when the statement merely indicates the People’s expectation of future readiness (*Brown*, 28 NY3d at 404 [internal quotation marks omitted]; *see Kendzia*, 64 NY2d at 337). However, a statement of readiness is “presumed truthful and accurate” (*Brown*, 28 NY3d at 405). Thus, “a defendant who challenges such a statement must demonstrate that it is illusory” and, “[i]n the absence of proof that [a] readiness statement did not accurately reflect the People’s position . . . , the People [have] discharged their duty under CPL 30.30” (*id.* at 404-405 [internal quotation marks omitted]; *see People v Carter*, 91 NY2d 795, 799 [1998]).

Interpreting CPL 30.30 in light of its legislative purpose, we have drawn a distinction between delays occurring in a pre-

readiness context and those that occur postreadiness (see *Brown*, 28 NY3d at 403-406). While the People are chargeable with all prereadiness delays not excludable under the statute (see *Cortes*, 80 NY2d at 213), postreadiness delays are charged to the People only “when the delay is attributable to their inaction and directly implicates their ability to proceed to trial” (*Carter*, 91 NY2d at 799; see *Anderson*, 66 NY2d at 534). And, after the People make a valid statement of readiness, their adjournment requests are treated as postreadiness delay unless the defendant can show that the adjournment resulted from the People’s failure to maintain continued readiness for trial (see generally *Anderson*, 66 NY2d 529).

Adjournment requests and other postreadiness delays—e.g., the People not being ready to proceed on a particular day—do not necessarily indicate that the People have failed to maintain continued trial readiness (see *id.* at 539, 543). As we stated, CPL 30.30 “was intended to limit the People’s time for preparation to the period specified, but they are entitled to the full period allowed, either before or after answering ready” (*id.* at 537). When, for example, the People have completed the necessary preparations for trial, but request an adjournment for a scheduling conflict, the People’s readiness is not vitiated or called into question; they are simply exercising their prerogative to use any remaining statutory speedy trial time. Nor is such an adjournment fairly characterized as a prediction of future readiness; the People have already done all that is required to proceed to trial and simply will not proceed on that particular day.

Critically, “the defendant ordinarily has the burden of showing that any postreadiness adjournments occurred under circumstances that should be charged to the People” (*Brown*, 28 NY3d at 404 [internal quotation marks omitted]). Postreadiness delays attributable to causes other than the People’s inaction—e.g., a court’s calendar backlog—are not charged to the People (see *id.*; see *People v Goss*, 87 NY2d 792, 797 [1996] [“postreadiness delay attributable to the court is not charged to the People”]). “Thus, as to periods of delay that occur following the People’s statement of readiness, any period of an adjournment in excess of that actually requested by the People is excluded” (*Brown*, 28 NY3d at 404 [internal quotation marks and brackets omitted], quoting *People v Boumoussa*, 104 AD3d 863, 863 [2d Dept 2013]).

III.

Because the majority concedes that “[t]he dispute about how to charge time in this case exists purely in a postreadiness context—meaning, the time after which the People have already declared ready for trial” (majority op at 190)—they err in affirming the Appellate Term’s dismissal of this criminal proceeding. In so doing, the majority incorrectly treats the well-established rule that postreadiness delay attributable to the court is not charged to the People as a mere “presumption” that a defendant can rebut without proving that the People’s statement of readiness was illusory (*id.*). This is error. As we reiterated in *Brown*, “[i]n the absence of proof that [a] readiness statement did not accurately reflect the People’s position . . . , the People [have] discharged their duty under CPL 30.30” (28 NY3d at 404 [internal quotation marks omitted]). In other words, the only way to overcome the rule that “postreadiness delay attributable to the court is not charged to the People” is by proving that the People’s readiness statement was illusory (*id.* [internal quotation marks omitted]). It is not by pointing out that the People failed to give a reason for requesting a postreadiness adjournment.

There is no dispute that, “[i]n the postreadiness context, the People bear the burden of ensuring that the record explains the cause of adjournments sufficiently for the court to determine which party should properly be charged with any delay” (*id.* [internal quotation marks omitted]). The problem is that the majority fails to recognize that a record can explain who caused a delay without elaborating on the specific reason for that delay. In other words, we know that the period of adjournment requested by the People will be charged to the People regardless of the reason for the request.

None of the cases cited by the majority support charging the People with postreadiness delay attributable to the court simply because that delay followed an adjournment admittedly chargeable to the People where the reason for the adjournment is unclear. Rather, those cases stand for completely different propositions.

In *People v Stirrup* (91 NY2d 434, 440 [1998]), the People requested a postreadiness adjournment on January 14, 1994, but did not specify the length of the adjournment. We determined that the clock ran until the People filed an off-calendar statement of readiness 10 days later, on January 24. Our

opinion did not discuss any reason for the adjournment beyond the People's requesting it. Yet the People were not charged with the remainder of the adjournment from January 24 to March 3 because they were not the cause of that delay. None of the cases cited in *Stirrup* contain any discussion indicating that the reasons for a requested adjournment are relevant. Instead, they are concerned with the People making sure the record indicates (1) who was asking for an adjournment and (2) how long they were asking for. If those things are not clear from the record, the People will be charged the time, as shown by the following cases.

People v Liotta—which the majority would have us believe compels its holding—involved an unexplained 28-day adjournment granted after an off-the-record bench conference (see 79 NY2d 841, 843 [1992]). The record, however, did not indicate who requested the adjournment. We concluded that the People were chargeable with the adjournment because the People had not met their burden “to clarify, on the record, the basis for the adjournment so that on a subsequent CPL 30.30 motion the court can determine to whom the adjournment should be charged” (*id.*).

None of *Liotta*'s progeny cited by the majority hold otherwise (see majority op at 196-197 n 8). In all those cases, the Appellate Division charged time to the People when they failed to make a record of who requested an adjournment, the length of the adjournment requested by the People, or who was responsible for the delay (see *People v Fields*, 214 AD2d 332, 333 [1st Dept 1995]; *People v Betancourt*, 217 AD2d 462, 464 [1st Dept 1995]; *People v Owens*, 209 AD2d 549, 550 [2d Dept 1994]), none of which is the case here.

Additionally, in our decision in *People v Collins*, although the People argued that they had requested an adjournment of only five days, the record only reflected a request for an *indefinite* adjournment, with no objection when the court adjourned the case for 14 days (see 82 NY2d 177, 181 [1993]). Because the People failed to ensure the record reflected that they were requesting only five days and that the remainder of the time was due to some other “basis,” the People were chargeable with the entire period (*id.* at 182).

In *People v Cortes*, the People argued that a 44-day delay was occasioned by defense counsel's expressed intention to make a CPL 30.30 motion (see 80 NY2d 201 [1992]). “However,

no contemporaneous record was made of the reason for the . . . adjournment and, consequently, the trial court could not determine on the subsequent CPL 30.30 motion to whom the adjournment should be charged” (*id.* at 215). We recognized that,

“[a]lthough the defendant ordinarily has the burden of showing that any postreadiness adjournments occurred under circumstances that should be charged to the People[,] . . . it is the People’s burden to ensure, in the first instance, that the record of the proceedings at which the adjournment was actually granted is sufficiently clear to enable the court considering the subsequent CPL 30.30 motion to make an informed decision as to whether the People should be charged” (*id.* at 215-216).

Because the People failed to satisfy their obligation, we held that they must assume responsibility for the delay.

Despite what the majority contends, none of these cases supports the proposition that the record needs to reflect the reason why the People sought a postreadiness adjournment, so long as the extent of their requested adjournment is clear. Moreover, none of these cases stand for the proposition that the People can be charged with postreadiness delay caused by the court.

In fact, we have held just the opposite. In *Canady*, a companion case to *Brown*, we stated in no uncertain terms—as we have on prior occasions—that “postreadiness delay attributable to the court is not charged to the People” (28 NY3d at 407; *see Goss*, 87 NY2d at 797).

The majority unconvincingly attempts to distinguish *Canady* by pointing out that the People stated that they could not proceed “because the assigned prosecutor was engaged in a trial” and because “the People did not have their file” (majority op at 195, quoting *Canady*, 28 NY3d at 401). As a result, the majority claims that *Canady* does not apply to this case because “here . . . [the People] ‘failed to provide an explanation as to why they were not ready’ ” (majority op at 196 [quoting our decision in *Brown*, not *Canady*]).

But nothing in our decision in *Canady* tied our application of the rule that the People are not chargeable with the court’s delay to either the fact of, or the basis for, the People’s explanation for their delay. Instead, we stated the postreadiness adjournment rule without qualification: “[A]s to periods of delay

that occur following the People's statement of readiness, any period of an adjournment in excess of that actually requested by the People is excluded" (*Canady*, 28 NY3d at 404; see *People v Goss*, 87 NY2d 792, 797 [1996]; *People v Boumoussa*, 104 AD3d 863, 863 [2d Dept 2013]). We did not qualify our holding other than to say that the record needed show to whom the court should charge various periods of time. We did not require any further explanation and neither did the courts in any of the cases that we cited for this proposition (see *id.*, citing *Goss*, 87 NY2d at 797 ["(P)ostreadiness delay attributable to the court is not charged to the People"]; *Boumoussa*, 104 AD3d at 863 ["As to periods of delay that occur following the People's statement of readiness, any period of an adjournment in excess of that actually requested by the People is excluded"]). Indeed, the dissent in *Canady* specifically took issue with the majority's refusal to attach significance to the People's failure to explain their need for an adjournment, and the dissent would have affirmed "because the People failed to provide any reason for their statement of unreadiness and thus the court did not err in charging them with 41 days" (*Canady*, 28 NY3d at 415 [2016, Rivera, J., dissenting]). Consequently, the majority's attempt to distinguish *Canady* so contorts the meaning of *Canady* that it no longer resembles what was written in that decision. If the majority is going to overturn our precedent, it would be preferable that they acknowledge what they are doing rather than doing it sub silentio.

In charting a different course, the majority disregards the doctrine of stare decisis, "which holds that common-law decisions should stand as precedents for guidance in cases arising in the future and that a rule of law once decided by a court, will generally be followed in subsequent cases presenting the same legal problem" (*People v Peque*, 22 NY3d 168, 194 [2013] [internal quotation marks omitted]). The benefits of this doctrine are that it "promotes the evenhanded, predictable, and consistent development of legal principles, fosters reliance on judicial decisions, and contributes to the actual and perceived integrity of the judicial process" (*People v Taylor*, 9 NY3d 129, 148 [2007] [internal quotation marks omitted]), by assuring the public "that a court is an institution, not merely a collection of individuals, and that governing rules of law do not change merely because the personnel of the court changes" (*People v Bing*, 76 NY2d 331, 338 [1990]). The public is deprived of those benefits today.

Undoubtedly, “*stare decisis* . . . will not be extended to cases fairly and reasonably distinguishable” (*Vilas v Plattsburgh & Montreal R.R. Co.*, 123 NY 440, 441 [1890]). But as shown above, the facts of this case are neither “fairly [nor] reasonably distinguishable” from *Canady* and our precedent relied upon therein (*id.*; see *supra* at 206-207). Given the basis of our decision in *Canady*, the majority can hardly claim that this case does not present the same legal problem addressed in that case. Consequently, applying the doctrine of *stare decisis*, this Court should reach the same conclusion here that it did in *Canady* and hold that dismissal of this criminal proceeding is not warranted under CPL 30.30.

To be sure, we have repeatedly acknowledged that, “[i]n the postreadiness context, the People bear the burden of ensuring that the record explains the cause of adjournments sufficiently for the court to determine which party should properly be charged with any delay” (*Brown*, 28 NY3d at 404 [internal quotation marks omitted], quoting *Stirrup*, 91 NY2d at 440). Yet, the majority’s reliance on this line of precedent is misplaced. A record can explain who caused a delay without elaborating on the specific reason for that delay. Here, we know that the People will be charged with 12 days based on their request for an adjournment regardless of the reason for the request, and the People have never claimed otherwise. Absent any demonstration by defendant that the People were not ready for trial when they issued their statement of readiness, we have never held that the People are chargeable with delay attributable to the court simply because the delay followed an adjournment chargeable to the People and counsel was unable to articulate the reason it was necessary.

Moreover, we have never required the People to make a record of the specific reason for the court’s postreadiness delay, which would be absurd. As the majority acknowledges, delay attributable to the court “is assumed to result from court congestion or some other factor beyond the People’s control” (majority op at 190). Given the majority’s acknowledgement that court congestion is just “[o]ne such reason” for court delay (majority op at 191), it is puzzling why they spend so much time discussing it (see *id.* at 191-193). Contrary to what the majority asserts (see *id.*), the reason for the court’s delay does not matter. And it seems unwise to task the People with meddling in the court’s affairs to determine the reason for court delay, given that “[o]bviously the court must set its own calendar” (*Goss*, 87

NY2d at 797). In the end, the reason for a court's postreadiness delay is utterly irrelevant to our analysis (see *People v Giordano*, 56 NY2d 524, 525 [1982] ["(w)hatever may in fact have been the reason why the case was not reached for trial (after the People announced their readiness), there is no basis for dismissal pursuant to that statute"]¹).

The majority relies on *Brown* for the proposition that delay attributable to the court must be charged to the People if they do not "provide an explanation" or "valid reason" why they needed an adjournment (majority op at 196, 197, quoting *Brown*, 28 NY3d at 400, 402, 406). *Brown* supports no such proposition inasmuch as, there, the *Brown* Court needed to know the reason for the delay in order to determine if the People's off-calendar statement of readiness was illusory (see *Brown*, 28 NY3d at 408-409). Here, where the majority concedes that we are operating in a postreadiness context (majority op at 190), the explanation for the delay is irrelevant because the record clearly indicates who caused each period of delay.

The majority's new rule amounts to a conflation of the facts and holdings in *Brown*, which dealt with illusory statements of readiness, and *Canady*, which dealt with postreadiness adjournments.² Stated differently, this new rule is an amalgamation of two disparate concepts soldered together to create a new rule that would substantially nullify this Court's holding in *Canady* by combining *Brown*'s concern with illusory statements of readiness with *Canady*'s application of the longstanding rule that, postreadiness, time attributable to the court is not attributable to the People. Either we are in a postreadiness context, as the majority admits, or the People's statement of readiness was illusory, which the majority does not argue.

The majority's attempt to use *Brown* in this way is unsupported by our precedents. For example, despite the majority's assertion to the contrary, we did not dismiss in *People v*

1. This quotation from *Giordano* undermines the majority's reliance on that case as being one concerned with the issue of court congestion. It was the Appellate Division that based its determination on the People's establishing "that the delay was attributable to court congestion" (*Giordano*, 81 AD2d 1003, 1003 [4th Dept 1981]), we did not. We were, instead, expressly indifferent about the "reason" for the court's delay and never mentioned court congestion (see *Giordano*, 56 NY2d at 525).

2. The commentaries to which the majority cites support no such conflation of our separate holdings in *Brown* and *Canady* (see majority op at 196-197 n 8).

McKenna because the People failed to proffer an excuse for postreadiness delay (76 NY2d 59 [1990]). Rather, we dismissed because the record established the People's "concededly negligent failure to provide the Grand Jury minutes for five months after their statement of readiness was made," which "was a direct, and virtually insurmountable, impediment to the trial's very commencement" (76 NY2d at 64). Similarly, the basis for the delay was not unexplained in *People v Jones*; the delay chargeable to the People was caused by the People's unexcused failure to use due diligence to produce the defendant in court (see 66 NY2d at 539-540). In each of these cases—unlike here—the reason for the delay called into question the People's overall readiness for trial and the presumption of truthfulness and accuracy as to the People's prior statement of readiness was rebutted by defendant's demonstration that the People were not, in fact, ready for trial at the time the statement was filed.

By contrast, here, defendant has made no showing that either the People's statement of readiness was illusory or that the People would not be ready on the date to which they sought an adjournment, and the majority does not conclude otherwise. The majority's suspicion that the People's adjournment request "casts grave doubt" on the truthfulness and accuracy of their earlier statements of readiness is baseless (majority op at 197). The People's adjournment request here—made more than eight months after the People's initial declaration of readiness and with several intervening ready appearances—is a far cry from those cases in which the People declared readiness off calendar only to be unready days later at the very next court appearance (see *Brown*, 28 NY3d at 399; *People v Sibblies*, 22 NY3d 1174, 1175 [2014]).

The implications of the majority's holding are potentially momentous given that the majority does not believe they have created a *new* rule. They view their decision as merely clarifying the application of a "longstanding rule" (majority op at 195). But if that is true, the majority's holding will apply to criminal judgments currently deemed final and potentially expose them to collateral attack in any case where the People failed to give a reason for their postreadiness adjournment request (see generally *People v Favor*, 82 NY2d 254, 263 [1993] ["(R)etroactivity should not be in question when a court's ruling merely applies previously established principles in a new factual setting or settles a question in a manner that was clearly foreshad-

owed”)). Unfortunately, the majority overlooks this serious concern.

IV.

The majority’s holding today does not serve the interests of justice. And although the majority makes the baseless allegation that the dissent “take[s] umbrage with the CPL 30.30 statute as a whole” (majority op at 197), they are wrong. As recently as December we unanimously held that, if the People fail to establish that they “exercise[d] due diligence and made reasonable inquiries prior to filing the initial COC [certificate of compliance] despite a belated or missing disclosure,” their “COC should be deemed improper, the readiness statement stricken as illusory, and—so long as the time chargeable to the People exceeds the applicable CPL 30.30 period—the case dismissed” (*People v Bay*, 41 NY3d 200, 213 [2023]; *see also People v Bay*, 39 NY3d 1077 [2023, Troutman, J.] [granting leave to appeal to this Court]).³ No, what I take umbrage with is the majority’s treatment of this Court’s precedent, not the statute that was the focus of our precedent.

Today’s holding makes way for people accused of heinous crimes to avoid trial due to what is the epitome of a technicality. Although some outside the legal profession on occasion scoff at the vindication of a criminal defendant’s constitutional or statutory rights—because they wrongly view the defendant as being “let off on a technicality”—this is not that. The majority’s decision today creates an unnecessary technicality that has no basis in the Constitution, CPL 30.30, or our precedents, and it will result in people who perpetrate crimes escaping accountability due to mere scheduling errors.

To the extent the majority is concerned that the People may seek adjournments for discrete periods of time in the hopes

3. *Bay* involved the amended version of CPL 30.30, which “governs the periods of time to be excluded when calculating chargeable time to the People” (majority op at 198, citing L 2019, ch 59, § 1, part KKK, § 1), and “now provides that ‘[a]ny such exclusion when a statement of unreadiness has followed a statement of readiness made by the [P]eople must be evaluated by the court after inquiry on the record as to the reasons for the [P]eople’s unreadiness and shall only be approved upon a showing of sufficient supporting facts’” (*id.*, quoting CPL 30.30 [4] [g]). The parties agree that the amendments do not apply here, and we have no occasion to interpret their application to these facts. The majority’s advisory opinion that the amendments effectively dictate the same outcome should therefore be regarded as dicta.

that additional time will be granted due to court delay, trial courts maintain discretion to deny adjournment requests where gamesmanship is suspected. Today's decision ignores a court's responsibility for the delays that it creates or the adjournments that it tolerates.

While the reason for a postreadiness adjournment request may be relevant to the trial judge's exercise of discretion, absent any showing sufficient to rebut the presumption that the People's prior statement of readiness was truthful and accurate, the reason the People seek to use the additional time remaining on the speedy trial clock is irrelevant so long as the record is clear as to whom the delay is attributable and as to the length of the requested adjournment. The majority's contrary conclusion will undoubtedly result in the unnecessary dismissal of viable prosecutions with no basis for such dismissal found in CPL 30.30 or, until today, our jurisprudence interpreting the speedy trial statute. I therefore dissent.

Judges RIVERA, CANNATARO and HALLIGAN concur. Judge TROUTMAN dissents in an opinion, in which Judges GARCIA and SINGAS concur.

Order affirmed.

[242 NE3d 1174, 218 NYS3d 263]

ROMAN CATHOLIC DIOCESE OF ALBANY et al., Appellants, v MARIA
T. VULLO et al., Respondents, et al., Defendants. (And An-
other Action.)

Argued April 16, 2024; decided May 21, 2024

SUMMARY

APPEAL, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered June 2, 2022. The Appellate Division, upon remand from the Supreme Court of the United States (595 US —, 142 S Ct 421 [2021]), affirmed an order of the Supreme Court, Albany County (Richard J. McNally Jr., J.; op 2018 NY Slip Op 33829[U] [2018]), which had granted a motion by defendants Superintendent of New York State Department of Financial Services and New York State Department of Financial Services for summary judgment dismissing the complaints against them.

Roman Catholic Diocese of Albany v Vullo, 206 AD3d 1074, affirmed.

HEADNOTE

Constitutional Law — Freedom of Religion — Employer Health Insurance Coverage for Medically Necessary Abortion Services — Religious Employer Exemption

The regulation requiring New York employer health insurance policies that provide hospital, surgical, or medical expense coverage to include coverage for medically necessary abortion services (11 NYCRR 52.16 [o] [1]) and the criteria delineating a “religious employer” for purposes of an exemption from that requirement (11 NYCRR 52.2 [y]) are generally applicable and do not violate the Free Exercise Clause of the United States Constitution, as they do not allow for standardless and discretionary individualized exemptions, nor for comparable secular conduct while discriminating against religious conduct. The “religious employer” exemption is not subject to the discretionary determination by a municipal official that allows the government to consider the reasons for the person’s conduct and whether noncompliance with the policy is worthy of solicitude. Instead, a “religious employer” is defined by objective criteria delineated in the regulation itself and once met, the employer may claim the exemption. Neither an entity’s decision to claim the exemption nor an insurer’s determination as to an entity’s satisfaction of the criteria invites the government to consider the particular reasons for a person’s conduct by providing a mechanism for individualized exemptions. Moreover, New York State permits no secular conduct that undermines its interests in the insurance-based provision of medically necessary abortion services. The exemption is an attempt to ameliorate the burden posed on a class of entities that would likely be the most burdened by the mandate. Thus, the exemption provides a way to accommodate religious beliefs in some

cases. In doing so, the regulation favors religious exercise rather than discriminates against it.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Abortion and Birth Control §§ 3, 49, 105; AM JUR 2d Constitutional Law §§ 435, 438, 439.
 11 NYCRR 52.2 (y); 52.16 (o) (1).
 NY JUR 2d Constitutional Law §§ 253, 258; NY JUR 2d Insurance § 1516.

ANNOTATION REFERENCE

See ALR Index under Abortion; Freedom of Religion; Health and Accident Insurance.

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POINTS OF COUNSEL

Jones Day, Washington, D.C. (*Noel J. Francisco*, admitted pro hac vice, *Victoria Dorfman* and *Ryan M. Proctor* of counsel) and New York City (*Kelly C. Holt* of counsel), and *Tobin and Dempf, LLP*, Albany (*Michael L. Costello* of counsel), and *The Becket Fund for Religious Liberty*, Washington, D.C. (*Eric Baxter*, admitted pro hac vice, *Mark Rienzi*, admitted pro hac vice, *Daniel Blomberg*, admitted pro hac vice, *Lori Windham*, admitted pro hac vice, and *Daniel D. Benson*, admitted pro hac vice, of counsel), for appellants. I. The abortion mandate undisputedly imposes a substantial burden on religious exercise. II. The abortion mandate is not a neutral law of general applicability, and thus cannot escape strict scrutiny under *Employment Div., Dept. of Human Resources of Ore. v Smith* (494 US 872 [1990]). (*Church of Lukumi Babalu Aye, Inc. v Hialeah*, 508 US 520; *Larson v Valente*, 456 US 228; *Railway Express Agency, Inc. v New York*, 336 US 106; *Colorado Christian Univ. v Weaver*, 534 F3d 1245; *Duquesne Univ. of the Holy Spirit v National Labor Relations Bd.*, 947 F3d 824; *Kedroff v Saint Nicholas Cathedral of Russian Orthodox Church of North America*, 344 US 94; *Presbyterian Church in U. S. v Mary Elizabeth Blue Hull Memorial Presbyterian Church*, 393 US 440; *Mitchell v Helms*, 530 US 793; *New York v Cathedral Academy*, 434 US 125;

NLRB v Catholic Bishop of Chicago, 440 US 490.) III. The State cannot carry its burden to overcome strict scrutiny. (*United States v Playboy Entertainment Group, Inc.*, 529 US 803; *Utica Mut. Ins. Co. v Prudential Prop. & Cas. Ins. Co.*, 64 NY2d 1049; *People v Ladd*, 89 NY2d 893; *Gonzales v O Centro Espírita Beneficente União do Vegetal*, 546 US 418; *Brown v Entertainment Merchants Assn.*, 564 US 786; *Eu v San Francisco County Democratic Central Comm.*, 489 US 214; *Holt v Hobbs*, 574 US 352; *Fisher v University of Tex. at Austin*, 570 US 297; *Korte v Sebelius*, 735 F3d 654.)

Letitia James, Attorney General, Albany (Laura Etlinger, Barbara D. Underwood and Andrea Oser of counsel), for respondents. I. *Catholic Charities of Diocese of Albany v Serio* (7 NY3d 510 [2006]) rejects the same free-exercise claim asserted here. II. *Fulton v Philadelphia* (593 US 522 [2021]) does not overrule *Catholic Charities of Diocese of Albany v Serio* (7 NY3d 510 [2006]) or otherwise require a different result. (*Employment Div., Dept. of Human Resources of Ore. v Smith*, 494 US 872; *People v Brown*, 40 NY2d 381; *Fletcher v Kidder, Peabody & Co.*, 81 NY2d 623; *People v Overton*, 24 NY2d 522; *Immuno AG. v Moor-Jankowski*, 77 NY2d 235; *People v Moll*, 26 NY2d 1, 398 US 911; *YU Pride Alliance v Yeshiva Univ.*, 211 AD3d 562; *Sherbert v Verner*, 374 US 398; *Fraternal Order of Police Newark Lodge No. 12 v City of Newark*, 170 F3d 359.) III. Plaintiffs' additional arguments do not rest on *Fulton v Philadelphia* (593 US 522 [2021]) and provide no basis to reverse in any event. (*Larson v Valente*, 456 US 228; *Corporation of Presiding Bishop of Church of Jesus Christ of Latter-day Saints v Amos*, 483 US 327; *Catholic Charities of Diocese of Albany v Serio*, 28 AD3d 115; *Duquesne Univ. of the Holy Spirit v National Labor Relations Bd.*, 947 F3d 824; *Colorado Christian Univ. v Weaver*, 534 F3d 1245; *A.H. by & through Hester v French*, 985 F3d 165; *Spencer v World Vision, Inc.*, 633 F3d 723; *Rollins v Dignity Health*, 830 F3d 900; *Priests For Life v United States Dept. of Health & Human Servs.*, 772 F3d 229; *Herzog Bros. Trucking v State Tax Commn.*, 72 NY2d 720.)

Edward T. Mechmann and Alexis N. Carra-Tracey, New York City, for New York State Catholic Conference, amicus curiae. I. The state constitutional standard established in *Catholic Charities of Diocese of Albany v Serio* (7 NY3d 510 [2006]) should be overruled. (*Employment Div., Dept. of Human Resources of Ore. v Smith*, 494 US 872; *People v P.J. Video*, 68 NY2d 296; *Planned Parenthood of Southeastern Pa. v Casey*,

505 US 833; *Matter of Fosmire v Nicoleau*, 75 NY2d 218; *Matter of Rourke v New York State Dept. of Correctional Servs.*, 201 AD2d 179; *Matter of King v Cuomo*, 81 NY2d 247.) II. The abortion mandate is an unconstitutional burden on the free exercise of religion. (*Matter of Brown v McGinnis*, 10 NY2d 531; *People v Barber*, 289 NY 378; *Matter of Fosmire v Nicoleau*, 75 NY2d 218; *Seabrook v City of New York*, 210 F3d 355; *People v Woodruff*, 26 AD2d 236, 21 NY2d 848; *Hope v Perales*, 83 NY2d 563; *People v Scott*, 79 NY2d 474; *People v Harris*, 77 NY2d 434; *O'Neill v Oakgrove Constr.*, 71 NY2d 521; *Rivers v Katz*, 67 NY2d 485.)

New York Civil Liberties Union Foundation, New York City (*Gabriella Larios*, *Robert Hodgson* and *Katharine ES Bodde* of counsel), and *American Civil Liberties Union Foundation*, Washington, D.C. (*Daniel Mach* and *Michelle Fraling*, admitted pro hac vice, of counsel), for New York Civil Liberties Union and another, amici curiae. I. Only individualized, discretionary exemptions render a law not generally applicable under *Fulton v Philadelphia*'s narrow holding (593 US 522 [2021]). (*Employment Div., Dept. of Human Resources of Ore. v Smith*, 494 US 872; *Church of Lukumi Babalu Aye, Inc. v Hialeah*, 508 US 520; *Illinois Bd. of Elections v Socialist Workers Party*, 440 US 173; *C.F. v New York City Dept. of Health & Mental Hygiene*, 191 AD3d 52; *F.F. v State of New York*, 194 AD3d 80, 37 NY3d 1040; *Phillips v City of New York*, 775 F3d 538; *Intercommunity Ctr. for Justice & Peace v I.N.S.*, 910 F2d 42; *Stormans, Inc. v Wiesman*, 794 F3d 1064; *King v Governor of the State of N.J.*, 767 F3d 216; *Lighthouse Inst. for Evangelism, Inc. v City of Long Branch*, 510 F3d 253.) II. The medically necessary abortion regulation is neutral and generally applicable under *Fulton v Philadelphia* (593 US 522 [2021]). (*Bowen v Roy*, 476 US 693; *Spencer v World Vision, Inc.*, 633 F3d 723; *Emilee Carpenter, LLC v James*, 575 F Supp 3d 353; *303 Creative v Elenis*, 600 US 570.) III. Accepting appellants' reading of *Fulton v Philadelphia* (593 US 522 [2021]) would yield untenable results.

Notre Dame Law School, Religious Liberty Clinic, Notre Dame, Indiana (*Francesca Matozzo* and *John A. Meiser*, admitted pro hac vice, of counsel), Notre Dame, Indiana, for Notre Dame Law School Religious Liberty Clinic, amicus curiae. I. New York State's abortion mandate impermissibly invites the State to inquire into religious questions. (*Serbian Eastern*

Orthodox Diocese for United States and Canada v Milivojeovich, 426 US 696; *Watson v Jones*, 80 US 679; *Kedroff v Saint Nicholas Cathedral of Russian Orthodox Church of North America*, 344 US 94; *Jones v Wolf*, 443 US 595; *NLRB v Catholic Bishop of Chicago*, 440 US 490; *Hosanna-Tabor Evangelical Lutheran Church and School v EEOC*, 565 US 171; *Matter of Congregation Yetev Lev D'Satmar, Inc. v Kahana*, 9 NY3d 282; *Thomas v Review Bd. of Indiana Employment Security Div.*, 450 US 707; *Gonzales v O Centro Espírita Beneficente União do Vegetal*, 546 US 418; *Church of Lukumi Babalu Aye, Inc. v Hialeah*, 508 US 520.) II. The government cannot single out a particular set of favored religious traditions for favorable treatment. (*Trinity Lutheran Church of Columbia, Inc. v Comer*, 582 US 449; *Larson v Valente*, 456 US 228; *West Virginia Bd. of Ed. v Barnette*, 319 US 624; *Epperson v Arkansas*, 393 US 97.) III. The misguided exemption will not serve the State's interests and will lead to perverse consequences.

OPINION OF THE COURT

Chief Judge WILSON.

Plaintiffs, the Roman Catholic Diocese of Albany and a variety of entities ranging from churches to religiously affiliated organizations to a single individual, provide medical insurance plans to their employees. They have challenged a regulation promulgated by the Department of Financial Services as violative of the First Amendment of the United States Constitution. The challenged regulation requires New York employer health insurance policies that provide hospital, surgical, or medical expense coverage to include coverage for medically necessary abortion services (*see* 11 NYCRR 52.16 [o] [1]). Their challenge is to the regulation's exemption for "religious employers," which is defined by four factors (*see* 11 NYCRR 52.2 [y]). Plaintiffs' claim, in essence, is that the exemption is too narrow, such that the First Amendment rights of certain types of religiously affiliated employers are violated because they do not meet the terms of the exemption.

This litigation began in 2016, raising a federal free exercise claim that was then legally indistinguishable from *Catholic Charities of Diocese of Albany v Serio* (7 NY3d 510 [2006]), which concerned insurance coverage for contraception. Notably, the statutorily defined criteria to qualify as a "religious employer" litigated in *Serio* are identical to those challenged here (*see* Insurance Law § 3221 [l] [16] [E]). We resolved the federal free exercise claim in *Serio* by holding the insurance

mandate and the accompanying “religious employer” definition and exemption were neutral and generally applicable pursuant to *Employment Div., Dept. of Human Resources of Ore. v Smith* (494 US 872 [1990]; see 7 NY3d at 522).¹ Because the arguments being raised, and the regulation being challenged in this litigation were substantially the same as in *Serio*, the motion court dismissed plaintiffs’ complaints on the basis of stare decisis, and the Appellate Division affirmed on the same ground. We initially declined to hear plaintiffs’ appeal and plaintiffs petitioned for certiorari from the Supreme Court of the United States.

While plaintiffs’ certiorari petition was pending, the Supreme Court decided *Fulton v Philadelphia* (593 US 522 [2021]). Thereafter, the Court granted plaintiffs’ petition, vacated the Appellate Division’s judgment, and remanded to reconsider the case in light of *Fulton*.

On remand, the Appellate Division answered the question put to it by the Supreme Court: is *Serio* still controlling precedent in light of *Fulton*? Because *Serio* was decided pursuant to *Smith*, a case the Supreme Court explicitly did not overrule in *Fulton*, the Appellate Division held that *Serio* was still good law and affirmed its previous decision that neither the medically necessary abortion regulation nor the “religious employer” exemption as defined violated the Free Exercise Clause.

We agree. Under *Fulton*, both the regulation itself and the criteria delineating a “religious employer” for the purposes of the exemption are generally applicable and do not violate the Free Exercise Clause. Neither the existence of the exemption in the regulation nor the defined criteria allow for “individualized exemptions” that are standardless and discretionary, nor do they allow for comparable secular conduct while discriminating against religious conduct.

I.

The Department of Financial Services is authorized to regulate “the form, content and sale of accident and health insurance policies” (Insurance Law § 3217 [a]). In 1972, it promulgated a regulation stating that no health insurance policy “shall limit or exclude coverage by type of illness, ac-

1. In *Serio*, we also rejected the plaintiffs’ free exercise challenge under article I, § 3 of New York State’s Constitution, though we did not interpret our Constitution’s clause using *Smith*’s rubric (see 7 NY3d at 525).

cident, treatment or medical condition,” outside of certain specified exceptions (11 NYCRR 52.16 [c]). In 2013, pursuant to the Federal Affordable Care Act, the Department of Financial Services developed a standard health insurance policy template—referred to as the “Model Language”—to serve as a guide for required coverages and insurers. Policies that conform to the Model Language covered “medically necessary abortions.”²

In 2016, plaintiffs commenced the first of two actions against the Department of Financial Services and its former Superintendent, Maria T. Vullo (hereinafter collectively DFS), seeking declaratory and injunctive relief. Plaintiffs challenged certain portions of the Model Language under various constitutional provisions, including, as relevant here, the Free Exercise Clause of the Federal and New York State Constitutions, and the separation of powers and rulemaking provision of the New York State Constitution. Plaintiffs argued that because they provide medical insurance plans to their employees out of a moral obligation to do so, the regulation forced them to fund abortion “in violation of their religious doctrines, teachings and conscience rights.” DFS moved to dismiss the complaint for failure to state a cause of action and plaintiffs opposed the motion, amended the complaint to add a cause of action pursuant to the Religious Freedom Restoration Act, and cross-moved for injunctive relief.

In 2017, while those motions were pending, DFS amended 11 NYCRR part 52 to make explicit that health insurance companies *must* provide coverage for “medically necessary abortions,” with an exemption for insurance policies offered by “religious employer[s]” (11 NYCRR 52.16 [o] [1], [2]; 52.1 [p]). The definition of a “religious employer” is as follows:

“[A]n entity for which each of the following is true:
(1) The inculcation of religious values is the purpose of the entity[;] (2) The entity primarily employs persons who share the religious tenets of the entity[;] (3) The entity serves primarily persons who share the religious tenets of the entity[;] (4) The entity is a nonprofit organization as described

2. As of September 2017, “medically necessary abortions” as defined in the Model Language included, among other things, “abortions in cases of rape, incest or fetal malformation.” That definition is a close iteration of the Model Language issued by the Department of Financial Services in 2015 and 2016, which informed the basis of plaintiffs’ challenge in their first action.

in section 6033(a)(2)(A)i or iii, of the Internal Revenue Code of 1986, as amended” (*id.* § 52.2 [y]).

Under the procedures set forth in the regulation, a “group or blanket policy that provides hospital, surgical, or medical expense coverage delivered or issued for delivery” in New York to a “religious employer” may exclude coverage for medically necessary abortions if: (1) the entity provides the insurance carrier with an “annual certification” that the entity meets the four criteria and thus qualifies as a “religious employer” as so defined; and (2) the entity requests a contract without coverage for medically necessary abortions (*id.* § 52.16 [o] [2] [i]). The insurance carrier must then issue a rider to each primary insured, at no additional cost to the insured or the “religious employer,” that provides coverage for medically necessary abortions in place of the “religious employer,” and then must provide notice of the issuance of the policy and rider to the Superintendent (*id.* § 52.16 [o] [2] [ii]-[iii]).

Plaintiffs, who have neither tried to invoke the “religious employer” accommodation nor expressly stated that they do not qualify for it, commenced a second action against DFS challenging the amended regulation. The second complaint asserted the same causes of action in the first amended complaint but did not include any claims under the Religious Freedom Restoration Act. The motion court joined the two actions.

DFS moved to dismiss the action, arguing, among other things, that the causes of action were essentially identical to those raised in *Catholic Charities of Diocese of Albany v Serio* (7 NY3d 510 [2006]) and should be dismissed on the principle of stare decisis. Plaintiffs cross-moved for summary judgment on all their causes of action and for a preliminary injunction, offering evidence of unsuccessful legislative efforts to mandate insurance coverage for abortion services in support of its separation of powers argument. The motion court converted DFS’s motions to dismiss into motions for summary judgment pursuant to CPLR 3211 (c), granted the motions, and dismissed the complaints (2018 NY Slip Op 33829[U] [Sup Ct, Albany County 2018]). The court found that plaintiffs’ constitutional claims were the same as those raised in *Serio*, which was binding precedent requiring the dismissal of the claims in the instant matter. The court rejected plaintiffs’ attempts to distinguish the two cases and their remaining arguments. Plaintiffs appealed.

The Appellate Division unanimously affirmed (185 AD3d 11 [3d Dept 2020]). The Court agreed that plaintiffs’ arguments

were the same as those raised and rejected in *Serio* (*id.* at 16). The Court held that like *Serio*, the challenged regulation here was a “neutral regulation” to be “uniformly applied without regard to religious belief or practice, except for those who qualif[y] for a narrowly tailored religious exemption” (*id.* at 17).

Plaintiffs appealed from the Appellate Division’s order on constitutional grounds (*see* CPLR 5601 [b] [1]) and sought leave to appeal to this Court. On the Court’s own motion, we dismissed the appeal on the ground that no substantial constitutional question was directly involved and denied leave to appeal (36 NY3d 927 [2020]). Plaintiffs petitioned the Supreme Court of the United States for a writ of certiorari.

While the petition was pending, the Supreme Court decided *Fulton v Philadelphia* (593 US 522 [2021]). In light of that decision, the Supreme Court granted plaintiffs’ petition, vacated the judgment, and remanded the action to the Appellate Division “for further consideration in light of *Fulton*” (*Roman Catholic Diocese of Albany v Emami*, 595 US —, —, 142 S Ct 421, 421 [2021]). Justices Thomas, Alito, and Gorsuch would have granted plenary review (*id.*).

On remand, the Appellate Division answered the Supreme Court’s narrow question of whether *Serio* “remains valid and controlling precedent in the wake of *Fulton*” in the affirmative (206 AD3d 1074, 1074 [3d Dept 2022]).³ The Court reasoned that because *Fulton* did not overrule *Smith*, upon which *Serio* primarily relied, *Serio* remains good law (*id.* at 1074-1075). The Court also held that nothing in *Fulton* “clearly conflicts with the holding of [*Serio*]” (*id.* at 1075) and that *Serio* had taken into account aspects of prior Supreme Court rulings emphasized in *Fulton*—specifically, that “a law is not generally applicable if it invites the government to consider the particular reasons for a person’s conduct by providing a mechanism for individualized exemptions or if it prohibits religious conduct while permitting secular conduct that undermines the government’s asserted interests in a similar way” (*id.* [internal quotation marks and brackets omitted]).

Additionally, the Appellate Division rejected plaintiffs’ argument that *Fulton* supported the proposition that “a regulatory

3. While this case was pending before the Appellate Division on remand, the legislature enacted a statute codifying the regulation’s mandate (*see* Insurance Law §§ 3221 [k] [22]; 4303 [ss]) and its “religious employer” exemption (*see* Insurance Law §§ 3221 [l] [16] [E] [1]; 4303 [cc] [5] [A]).

scheme cannot be generally applicable due to the presence of any exemptions” (*id.*). Instead, the Court reasoned that *Fulton* dealt with a “‘formal system of entirely discretionary exceptions’ that invited the government to decide what motives for not complying with the regulatory requirement were worthy” (*id.*, quoting *Fulton*, 593 US at 536). Therefore, the Court held, “*Fulton* does not bar the holding of [*Serio*] that a regulation, like the one at issue here, was neutral and generally applicable despite the presence of exemptions based upon specific criteria” (*id.*).

The Appellate Division rejected plaintiffs’ remaining arguments “to the extent that they fall within the limited scope of the remand and are properly preserved for [the Court’s] review” and affirmed the motion court’s 2019 order dismissing the complaints (*id.* at 1076).

Plaintiffs appealed once again on constitutional grounds (*see* CPLR 5601 [b] [1]) and sought leave to appeal to this Court. We retained the appeal and denied leave as unnecessary (39 NY3d 1060 [2023]).

II.

The issue before us is a very narrow one. Although several Justices wrote concurring opinions in *Fulton* suggesting that *Smith* was wrongly decided and should be overruled (*see Fulton*, 593 US at 543 [Barrett, J., concurring]; *id.* at 545 [Alito, J., concurring]; *id.* at 618 [Gorsuch, J., concurring]), *Smith* remains good law, and the question before us is whether *Fulton* impaired *Smith* in a way that undoes *Serio* in whole or in part. The issue before us is further limited in two other ways. First, because *Fulton* addresses a federal free exercise claim only, that is the only claim before us. Second, because *Fulton* was decided “under the rubric of general applicability” (*id.* at 533) and not neutrality, the question before us is limited to whether *Fulton* altered Supreme Court doctrine on general applicability in a way that should cause us to revisit *Serio*.

A.

Preliminarily, the Free Exercise Clause of the First Amendment, applicable to the States under the Fourteenth Amendment (*see Cantwell v Connecticut*, 310 US 296, 303 [1940]), provides that “Congress shall make no law . . . prohibiting the free exercise” of religion. “At a minimum, the protections of the Free Exercise Clause pertain if the law at issue discriminates

against some or all religious beliefs or regulates or prohibits conduct because it is undertaken for religious reasons” (*Church of Lukumi Babalu Aye, Inc. v Hialeah*, 508 US 520, 532 [1993]). Importantly, in *Smith* (494 US 872 [1990]) and *Church of Lukumi* (508 US 520 [1993]), the Supreme Court held that laws incidentally burdening religion are not subject to strict scrutiny under the Free Exercise Clause so long as they are neutral and generally applicable.

In *Smith*, the Court synthesized a large body of its decisional law into a “valid and neutral law of general applicability” (494 US at 878-879) test but did not explicitly treat “neutrality” and “general applicability” as individual parts of a test. The thrust of the Supreme Court precedent relied on by the *Smith* Court holds that even devoutly held religious beliefs must give way to generally applicable laws where the government has not explicitly targeted a religion.

As the Supreme Court explained, “[t]he mere possession of religious convictions which contradict the relevant concerns of a political society does not relieve the citizen from the discharge of political responsibilities” (*id.* at 879 [internal quotation marks omitted]). This is true notwithstanding the “devastating effects” a neutral and generally applicable law may have on religious practices or communities (*Lyng v Northwest Indian Cemetery Protective Assn.*, 485 US 439, 451 [1988] [Free Exercise Clause did not preclude government logging and road construction activities on lands long used for religious purposes by Native American tribes]; *see also Prince v Massachusetts*, 321 US 158, 171 [1944] [holding that child labor laws can be enforced against a mother who used her children to distribute religious literature]), or the deeply held belief of religious individuals that compliance would make them a party to immoral or sinful behavior (*see Gillette v United States*, 401 US 437, 461 [1971] [sustaining the military Selective Service System against the claim that it violated free exercise by conscripting persons opposed to a particular war on religious grounds]; *see also United States v Lee*, 455 US 252, 258-261 [1982] [concluding people whose religious beliefs prohibited the payment of Social Security taxes could be required to pay them]). To hold otherwise would be “a constitutional anomaly,” would “court[] anarchy,” and would “make the professed doctrines of religious belief superior to the law of the land,” ef-

fectively “permit[ing] every citizen to become a law unto himself”⁴ (*Smith*, 494 US at 879, 886, 888).

The Court in *Fulton* expressly chose not to overrule *Smith* (see 593 US at 533) or the precedents it cites in which government action burdening religious beliefs or practices were upheld. Instead, *Fulton* provided elaboration as to a particular circumstance in which a law does not qualify as “generally applicable.” In *Fulton*, because the City of Philadelphia’s contractual nondiscrimination clause vested a city commissioner with “sole discretion” to grant an exception to an agency for rejecting a prospective foster family based on sexual orientation, the Court held the City’s policy to not be generally applicable (*id.* at 535, 536). *Fulton* suggests two different ways in which a governmental policy will fail the test for general applicability and trigger strict scrutiny under the Free Exercise Clause: (1) a law cannot invite “the government to consider the particular reasons for a person’s conduct by providing a mechanism for individualized exemptions”; and (2) a law cannot prohibit “religious conduct while permitting secular conduct that undermines the government’s asserted interests in a similar way” (*id.* at 533-534 [internal quotation marks omitted]). The Court resolved *Fulton* under the first of those tests, holding that the City’s nondiscrimination policy incorporated an entirely discretionary “‘mechanism for individualized exemptions’” (*id.* at 533, quoting *Smith*, 494 US at 884) that invited “the government to decide which reasons for not complying with the policy are worthy of solicitude . . . at the Commissioner’s ‘sole discretion’” (*id.* at 537).

Turning back to *Serio*, in 2006, this Court held that the New York State Legislature’s Women’s Health and Wellness Act (WHWA) contraceptive insurance mandate’s burden was the “incidental result of a ‘neutral law of general applicability’” (7 NY3d at 522). The WHWA is designed to advance women’s

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4. Indeed, the Supreme Court cautioned that this danger “increases in direct proportion to the society’s diversity of religious beliefs, and its determination to coerce or suppress none of them. Precisely because ‘we are a cosmopolitan nation made up of people of almost every conceivable religious preference,’ and precisely because we value and protect that religious divergence, we cannot afford the luxury of deeming *presumptively invalid*, as applied to the religious objector, every regulation of conduct that does not protect an interest of the highest order” (494 US at 888 [citation omitted], quoting *Braunfeld v Brown*, 366 US 599, 606 [1961]).

health and the equal treatment among genders and requires an employer's health insurance contract to provide coverage for the cost of contraceptive drugs or devices if the contract provided coverage for prescription drugs (*see id.* at 518; Insurance Law § 3221 [l] [16]). The statute provides an exemption for "religious employers" who requested an insurance contract without coverage for contraceptive methods that were contrary to the "religious employer's" religious tenets, whereupon the insurer would be obligated to offer contraception coverage to individual employees who may purchase it at their own expense (*Serio*, 7 NY3d at 519; Insurance Law § 3221 [l] [16] [A], [B] [i]). A "religious employer" is statutorily defined, and an entity had to meet four criteria to qualify (*Serio*, 7 NY3d at 519; Insurance Law § 3221 [l] [16] [A] [1]). The statutory definition of "religious employer" challenged in *Serio* is identical to the regulatory "religious employer" definition challenged here.

In *Serio*, applying *Smith* and *Church of Lukumi*, we rejected the free exercise challenge, holding that the four-factor test delineating a "religious employer" for the purposes of the statute met the "neutral law of general applicability" test (*Serio*, 7 NY3d at 522). However, our analysis of the issue focused on the concept of neutrality.⁵ Because *Fulton* appears to treat neutrality and general applicability as analytically distinct concepts (*but see Church of Lukumi*, 508 US at 531 ["(n)eutrality and general applicability are interrelated"]), and because *Serio* does not discuss general applicability, our task is to determine whether the "religious employer" exemption meets either of *Fulton*'s general applicability tests. We conclude that the regulatory definition for "religious employer" set forth by DFS is generally applicable within the meaning of *Fulton*.

B.

In *Fulton*, the City of Philadelphia stopped referring children to Catholic Social Services (CSS)—one of more than 20 foster care agencies in the City—after discovering that CSS would not certify same-sex couples to be foster parents due to its religious beliefs about marriage (*Fulton*, 593 US at 526-527). CSS and others challenged the City's referral freeze as a violation of the Federal Free Exercise Clause (*id.* at 531). In its defense, the City explained that CSS's refusal "to certify same-

5. That is unsurprising as the *Serio* plaintiffs made only a passing reference to general applicability.

sex couples violated a non-discrimination provision in its contract with the City” (*id.*). The provision stated, in relevant part, that a provider “shall not reject a child or family . . . for Services based upon . . . their . . . sexual orientation . . . unless an exception is granted by the Commissioner or the Commissioner’s designee, in his/her sole discretion” (*id.* at 535). The Court held that provision incorporated a “system of individualized exemptions” (*id.*) and such an “inclusion of a formal system of entirely discretionary exceptions . . . render[ed] the contractual non-discrimination requirement not generally applicable” (*id.* at 536). Analogizing it to the unemployment benefits system with a “good cause” exemption at issue in *Sherbert v Verner* (374 US 398 [1963]), the Court concluded that Philadelphia’s non-discrimination policy “invite[d] the government to decide which reasons for not complying with the policy [we]re worthy of solicitude . . . at the Commissioner’s sole discretion” (*Fulton*, 593 US at 537 [internal quotation marks omitted]), which made it not generally applicable and subject to strict scrutiny.

The “formal system of entirely discretionary” “individual exemptions” (*id.* at 536, 535) invalidated in *Fulton* is fundamentally different from the four regulatory factors establishing the religious exemption challenged in this case.⁶ *Fulton* scrupulously adopted phrases from *Smith*—“a mechanism for individualized exemptions” (*id.* at 533, quoting *Smith*, 494 US at 884) and “a system of individual exemptions” (*id.* at 534, quoting *Smith*, 494 US at 884)—instead of simply saying “exemptions.” Thus, *Fulton* advises that when exemptions are “individual” or “individualized,” they cannot be characterized as “generally applicable.” Importantly, Philadelphia’s system of “individual exemptions” failed *Fulton*’s general applicability test because the exemptions were “at the ‘sole discretion’ of the Commissioner” (*id.* at 535, 536, 537).

Courts have cautioned that individualized exemptions “create[] the risk that administrators will use their discretion to exempt individuals from complying with the law for secular

6. As noted, the regulatory definition of “religious employer” challenged here is identical to the statutory definition of “religious employer” challenged in *Serio*. That *Serio* addressed a statute and we now address a regulation is a distinction “of no moment, as it is well settled that a properly promulgated regulation is entitled to the same deference as a legislative act” (185 AD3d at 17, citing *Raffellini v State Farm Mut. Auto. Ins. Co.*, 9 NY3d 196, 201 [2007]). Thus, our analysis and holding apply equally to the regulatory and statutory factors delineating a “religious employer.”

reasons, but not religious reasons” (*We the Patriots USA, Inc. v Hochul*, 17 F4th 266, 288 [2d Cir 2021]). “Placing unbridled discretion in the hands of a government official or agency” has long been understood as highly problematic in the First Amendment context generally (*City of Lakewood v Plain Dealer Publishing Co.*, 486 US 750, 757 [1988]; *see also id.* at 755-757; *Shuttlesworth v Birmingham*, 394 US 147, 153 [1969]; *Forsyth County v Nationalist Movement*, 505 US 123, 129 [1992]).

There are fundamental differences between the purely discretionary system of exemptions in *Fulton* and the “religious employer” exemption at issue here. The decision to grant or deny the exemption here is not “at the sole discretion” of any single person or authority, but rather is determined by enumerated factors. The “religious employer” exemption is not subject to the discretionary determination by a municipal official that allows the government to consider the reasons for the person’s conduct and whether noncompliance with the policy is “worthy of solicitude” (*Fulton*, 593 US at 537). Instead, a “religious employer” is defined by objective criteria delineated in the regulation itself and once met, the employer may claim the exemption.

The medically necessary abortion coverage requirement uniformly applies to all policies in New York State that provide hospital, surgical, or medical expense coverage (*see* 11 NYCRR 52.16 [o] [1]), with the exception of a “religious employer” who requests an exemption (*id.* § 52.16 [o] [2]; *see also* 185 AD3d at 17). There is no individualized discretionary process whereby DFS or the Superintendent may grant or deny an entity’s exemption. As in *Serio*, an entity can qualify for an exemption by meeting the four factors for a “religious employer” and then requesting said exemption from its insurance carrier.⁷ It is then the insurance carrier, not DFS, who issues a rider for individual coverage (*see* 11 NYCRR 52.16 [o] [2]). Thus, exemptions are not available for “good cause,” as prohibited in *Sherbert*, nor does DFS or the insurance carrier have the authority to grant an exemption in its sole discretion as prohibited in *Fulton*.

7. The contraceptive insurance requirement in *Serio* applied uniformly to all insurance policies providing drug coverage except to those who sought accommodations as a “religious employer” as defined by statute (*see* 7 NY3d at 519-520). There was no discretionary mechanism for the Superintendent to grant or deny an exemption on an individualized basis. Exemptions were given to those who met the statutory factors for a “religious employer” and who then applied for such an exemption.

The federal appellate courts have interpreted *Fulton* to hold that an exception based upon objective criteria is not subject to strict scrutiny (see e.g. *303 Creative LLC v Elenis*, 6 F4th 1160, 1187 [10th Cir 2021] [“Conversely, an exemption is not ‘individualized’ simply because it contain(s) express exceptions for objectively defined categories of persons” (some internal quotation marks and citation omitted)], *revd on other grounds* 600 US 570 [2023]). As the Tenth Circuit in *Elenis* observed, “[w]hile of course it takes some degree of individualized inquiry to determine whether a person is eligible for even a strictly defined exemption, that kind of limited yes-or-no inquiry is qualitatively different from the kind of case-by-case system envisioned by the *Smith* Court in its discussion of *Sherbert* and related cases” (*id.* [internal quotation marks and citation omitted]).

In contrast, federal precedent that deals with case-by-case exceptions are subject to strict scrutiny pursuant to the Federal Free Exercise Clause. In *Dahl v Board of Trustees of W. Michigan Univ.* (15 F4th 728, 733 [6th Cir 2021]), a University’s vaccine mandate policy provided that “ ‘all student-athletes’ must provide proof of at least one dose of a COVID-19 vaccine ‘to maintain full involvement in the athletic department.’ But ‘[m]edical or religious exemptions and accommodations will be considered on an *individual basis*’ ” (emphasis added). The University also retained “discretion to extend exemptions in whole or in part” which is ultimately why the Sixth Circuit held the policy to be “not generally applicable” under *Fulton* (*id.*). Similarly, in *Kane v De Blasio* (19 F4th 152, 169 [2d Cir 2021]), because an arbitration procedure for a religious accommodation to a COVID-19 vaccine mandate was subject to an arbitrators’ “substantial” discretionary review and the criteria was inconsistently applied, the Second Circuit held that the procedure failed the test for general applicability.

Here, the “religious employer” exemption “does not give government officials discretion to decide whether a particular individual’s reasons for requesting exemption are meritorious” (*We the Patriots USA, Inc. v Connecticut Office of Early Childhood Dev.*, 76 F4th 130, 150 [2d Cir 2023]). Like the exemption in *We the Patriots USA, Inc.*, entitlement to the exemption here has nothing to do with an individualized discretionary consideration of the reason *why* the employer seeks the accommodation. An insurance carrier grants an exemption to an entity that requests a contract without coverage for medically

necessary abortions and provides an “annual certification” that it is a “religious employer” as defined by the four objective criteria (*see* 11 NYCRR 52.16 [o] [2] [i]).⁸ That process does not assess the reason why an entity is seeking an exemption. Instead, the decision to grant an exemption fits squarely within the “yes-or-no inquiry” that is different in kind from a standardless case-by-case system prohibited by *Fulton* (*see* 303 *Creative LLC*, 6 F4th at 1187).

The same can be said about meeting the four factors defining a “religious employer.” Plaintiffs contend that the “religious exemptions qualifying criteria” are not objective but rather “embed[] numerous discretionary judgments” in an adjudicator determining whether the organization qualifies or not. They claim that whether an organization “primarily” serves “persons who share the religious tenets of the entity” is a determination that is “far from objective where an organization routinely interacts with different individuals in different capacities” in addition to making an adjudicator “identify both a required level of belief and a required quantum of common beliefs” in discerning which individuals sufficiently “share the religious tenets of the entity.” Instead, plaintiffs claim, resolving whether an entity qualifies under the four criteria for a “religious employer” requires an “individualized determination that leaves substantial room for discretion.”

Although the factual question of whether a particular entity meets the regulatory definition can be the subject of dispute, that cannot be sufficient to render a regulation lacking in general applicability. Of course, any statutory or regulatory term must be interpreted, but if that rendered a provision discretionary and unable to survive general applicability within the meaning of *Fulton*, it is hard to imagine any scheme that would be nondiscretionary; in at least some cases there would be a question as to whether conduct met the terms of the provision. Plaintiffs themselves cite the federal contraception religious exemption as an example of a statute that passes the test for general applicability (45 CFR 147.132 [a] [2]). The language plaintiffs tout as consistent with the Free Exercise Clause— “[t]he exemption . . . will apply to the extent that an entity described in . . . this section objects, based on *its sincerely*

8. The record here is devoid of direct evidence of the procedure for how exemptions are considered because plaintiffs opted to bring a pre-enforcement challenge to the regulation.

held religious beliefs”—contains words that are subject to different interpretations, vesting the same type of discretion plaintiffs challenge here in whomever is charged with deciding what is a belief, whether that belief is religious, and whether it is sincerely held (*id.* [emphasis added]).

Thus, unless we are either prepared to say that no one claiming a religious belief may be subjected to any law inconsistent with that belief, or are prepared to say that the only way to define which beliefs can be regulated is to leave it up to the regulated individual—both of which would contravene *Smith* and more than a century of federal free exercise jurisprudence (see 494 US at 879; *Gillette*, 401 US at 461 [“Our cases do not at their farthest reach support the proposition that a stance of conscientious opposition relieves an objector from any colliding duty fixed by a democratic government”]; *Reynolds v United States*, 98 US 145, 166-167 [1879] [“Can a man excuse his practices to the contrary because of his religious belief? To permit this would be to make the professed doctrines of religious belief superior to the law of the land, and in effect to permit every citizen to become a law unto himself”])—society must have some way to create regulatory and statutory definitions that meet the general applicability test.

The proposition that a state has the authority to cabin, through specific criteria, who qualifies as a “religious employer” is consistent with Supreme Court and other state court precedent (see *Larson v Valente*, 456 US 228, 255 n 30 [1982] [a state may require organizations “claiming the benefits of (a) religious-organization exemption” from a regulatory statute “to prove that (it) is a religious organization within the meaning of the (statute)” (emphasis added)]; see also *Catholic Charities of Sacramento, Inc. v Superior Court*, 32 Cal 4th 527, 551, 85 P3d 67, 83 [2004] [“To accomplish th(e) purposes (of proving an organization is a religious entity within the meaning of a statute) without explicitly defining the religious groups and practices to be accommodated, in order to distinguish them from secular groups and practices not entitled to accommodation, would often be impossible”]). The complaint that some criteria are hard to determine is not a claim about lack of general applicability, nor is the claim that some are so onerous as to burden religious exercise impermissibly. For example, plaintiffs’ argument that the exemption would fail to reach a convent that ministers to the poor without regard to their religion does not demonstrate a lack of general applicability, because the

failure to qualify under the regulatory rubric does not invite the “government to consider the particular reasons for a person’s conduct by providing a mechanism for individualized exemptions” (*Fulton*, 593 US at 533 [internal quotation marks and citations omitted]).

It is always possible to imagine improvements to statutory or regulatory language that would make it clearer to resolve anticipated or theoretical problems. But we decline to engage in a searching analysis as to whether the factors used in the “religious employer” definition are the most careful and narrowly tailored as can be envisioned, as that would effectively incorporate strict scrutiny through the back door. The purpose of the general applicability test is to decide whether a law must be *subjected* to strict scrutiny in the first instance.

Accordingly, the “religious employer” exemption survives the first test of general applicability described by *Fulton*. Qualifying as a “religious employer” requires application of specific criteria, not a standardless system of discretionary case-by-case evaluations. Neither an entity’s decision to claim the exemption nor an insurer’s determination as to an entity’s satisfaction of the criteria invites “the government to consider the particular reasons for a person’s conduct by providing a mechanism for individualized exemptions” (592 US at 533 [internal quotation marks omitted]).

C.

The “religious employer” exemption also does not violate the Free Exercise Clause by permitting comparable secular conduct—*Fulton*’s second test for general applicability whereby a law cannot prohibit “religious conduct while permitting secular conduct that undermines the government’s asserted interests in a similar way” (593 US at 534).

Here, secular employees must comply with the insurance mandate for medically necessary abortion services. Taking *Fulton*’s test as written, New York State permits no secular conduct that undermines its interests in the insurance-based provision of medically necessary abortion services. It is also helpful to remember that the “religious employer” exemption is an attempt to ameliorate the burden posed on a class of entities that would likely be the most burdened by the mandate. The exemption provides a way to accommodate religious beliefs in some cases. In doing so, the regulation favors religious exercise rather than discriminates against it (*see Serio*, 7 NY3d

at 522-523, quoting *Catholic Charities of Sacramento, Inc.*, 32 Cal 4th at 551, 85 P3d at 83 [“The high court has never prohibited statutory references to religion for the purpose of accommodating religious practice. To the contrary, the court has repeatedly indicated that it is a permissible legislative purpose to alleviate significant governmental interference with the ability of religious organizations to define and carry out their religious missions” (internal quotation marks and citations omitted)]).

Plaintiffs do not point to any secular employers who are exempt from complying with the mandate; thus, they cannot show that New York has undermined its interest in the mandate by its treatment of secular employers. Instead, they advance a novel argument, seeking to extend the language in *Fulton* to a different situation: one in which the comparison is not of religious versus secular employers, but among different types of religious employers. Plaintiffs rely heavily on *Tandon v Newsom* to argue for that extension of *Fulton*’s language (593 US 61 [2021 per curiam] [granting motion for injunctive relief pending appeal]). In *Tandon*, the Supreme Court explained that a government regulation is not neutral or generally applicable if it treats “any comparable secular activity more favorably than religious exercise,” with comparability “judged against the asserted government interest that justifies the regulation” (*id.* at 62 [emphasis omitted]; see also *Roman Catholic Diocese of Brooklyn v Cuomo*, 592 US 14, 16-19 [2020 per curiam] [applying the same principle to grant injunctive relief pending appeal]; *Kennedy v Bremerton School Dist.*, 597 US 507, 527 [2022] [citing to *Fulton* for that principle and applying it to the application of disciplinary directives]).

Plaintiffs argue that *Tandon* should not be limited to comparable secular conduct that results in distinctions between secular and religious conduct, but should be extended to distinctions drawn among religious entities. In doing so, plaintiffs argue that *Fulton* is implicated because the “religious employer” exemption expressly exempts “some religious organizations but not others.” They contend that an exemption that applies to organizations for which “the purpose of the entity” is “inculcation of religious values” only if the entity “primarily employs” and “primarily serves persons who share the religious tenets of the entity” bears no relationship to any of the State’s purported interests in mandating insurance coverage for medically necessary abortions. Instead, they claim that these

criteria reflect only “the State’s decision that the religious beliefs of certain entities are more ‘worthy of solicitude’ than the religious beliefs of other entities.” In effect, plaintiffs aver that the State’s discrimination of certain entities that exercise their religion in a manner the State does not “prefer” is the type of conduct that *Fulton* expressly forbids. That argument is without merit.

First, the Supreme Court’s remand order does not ask or authorize us to innovate existing Supreme Court doctrine. Plaintiffs’ proposed extension of *Tandon* is not supported by any case law, which instead focuses exclusively on distinctions between secular and religious conduct. Thus, as it stands, the existence of a “religious employer” exemption that does not extend to all possible religious entities does not implicate any rule concerning general applicability.

Second, the deviation from *Fulton*’s language that plaintiffs advocate for is really an argument that the “religious employer” exemption is not neutral,⁹ because it targets certain beliefs and activities and not others (*see Church of Lukumi*, 508 US at 533 [“if the object of a law is to infringe upon or restrict practices because of their religious motivation, the law is not neutral”]). But neutrality is not before us on remand from the Supreme Court.¹⁰

The creation of any religious accommodation necessarily requires the government to distinguish the types of entities or activities that are covered from those that are not. Although a State may not distinguish between religious denominations or entangle itself in assessments regarding “the centrality of particular beliefs or practices to a faith” (*see Smith*, 494 US at 887; *see also Catholic Charities of Sacramento, Inc.*, 32 Cal 4th at 546, 85 P3d at 80 [making a similar point]), that is not what the regulation’s definition of a “religious employer” does.

9. Plaintiffs’ argument also conflates the first and second *Fulton* tests of general applicability by invoking the individualized exemption “worthy of solicitude” language in their claim. Additionally, their argument sounds more like the Establishment Clause argument raised in *Serio* that is not at issue here (*see* 7 NY3d at 528-529 [“Plaintiffs contend that the legislation is invalid under *Larson* because it distinguishes between religious organizations that are exempt from the contraception requirements and those that are not”]).

10. Moreover, by choosing to bring a pre-enforcement challenge, plaintiffs have avoided providing details about whether they qualify for the “religious employer” exemption or, if not, which criteria they fail to satisfy. That information is obviously essential to proper assessment of their argument that they are being treated differently from a comparable group.

As we explained in *Serio*, qualification as a “religious employer” depends on “the nature of [an employer’s] activities” and business structure, not its “denominations” or beliefs (*see* 7 NY3d at 529). The parallel regulation here similarly does not differentiate among religious beliefs; instead, it differentiates between religious and nonreligious entities. For example, a person having two part-time jobs, one cleaning the floors of a Catholic church and one cleaning the floors of a soup kitchen run by a Catholic charity that serves all people, may be entitled to obtain insurance covering medically necessary abortions from one but not the other. Nothing about that situation disfavors any religion based on its beliefs; it differentiates between employers and the type of entity.

Accordingly, the “religious employer” exemption is generally applicable under both tests delineated in *Fulton*. *Fulton* therefore does not undermine *Serio* in any manner that affects the disposition of this case.

D.

For the first time in a supplementary brief to the Appellate Division on remand from the Supreme Court, plaintiffs raised an additional argument about general applicability. Plaintiffs argue that because the medically necessary abortion regulation does not apply to employers who self-insure, who provide no employee health insurance at all, or address the coverage needs of those who are not employed, there are “holes” that defeat the general applicability of the regulation, making it subject to strict scrutiny. Plaintiffs argue that these “holes” in the coverage effectively exempt secular employers from the coverage requirement, while simultaneously declining to exempt comparable religious employers. DFS responds that plaintiffs miss the point of the regulation, which is limited in scope to employers who obtain group health insurance policies issued or delivered in New York State. This argument, raised for the first time in plaintiffs’ reply brief on remand to the Appellate Division, is not preserved for our review (*see People v Baumann & Sons Buses, Inc.*, 6 NY3d 404, 407, 408 [2006]).

III.

The sole issue on remand is whether *Fulton* disturbs our holding in *Serio* when evaluating DFS’s promulgation of a “religious employer” exemption pursuant to the Free Exercise Clause. Although *Fulton* provides a new articulation of the

tests for general applicability, and although *Serio* did not turn on general applicability, *Fulton*'s articulation does not mean that the parallel "religious employer" exemptions here and in *Serio* are unconstitutional. Accordingly, the Appellate Division order should be affirmed, without costs.

Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and IANNACCI* concur. Judge HALLIGAN took no part.

Order affirmed, without costs.

* Designated pursuant to NY Constitution, article VI, § 2.

[242 NE3d 1188, 218 NYS3d 277]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEVIN
L. THOMAS, Appellant.

Argued April 17, 2024; decided June 18, 2024

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered December 22, 2022. The Appellate Division affirmed (1) a judgment of the Chemung County Court (Christopher P. Baker, J.), which had convicted defendant, upon a plea of guilty, of criminal possession of a controlled substance in the third degree, and (2) an order of that County Court, which had denied, without a hearing, defendant's motion pursuant to CPL 440.10 to vacate the judgment of conviction.

People v Thomas, 211 AD3d 1326, reversed.

HEADNOTE**Crimes — Unlawful Search and Seizure — Traffic Stop Prolonged for Search by Parole Officer — Requisite Level of Suspicion**

The courts below erred in determining that defendant was not entitled to suppression of a large quantity of heroin recovered from the backseat of his car during a warrantless search by his parole officer based on the finding that the police had a founded suspicion of criminality justifying the continued detention of defendant in order to contact his parole officer. The proper standard for detaining an individual beyond the time reasonably required to complete a traffic stop is reasonable suspicion. A seizure justified only by a police-observed traffic violation becomes unlawful if it is prolonged beyond the time reasonably required to complete the mission of issuing a ticket for the violation, which mission does not include additional measures designed to detect evidence of criminality. Here, the courts below evaluated whether the traffic stop was prolonged beyond the time reasonably required for its completion under the founded suspicion standard applicable to the common-law right to inquire, a lesser standard than the reasonable suspicion necessary to prolong a traffic stop. While there was record support for the affirmed finding that the traffic stop was justified at its inception, remittal was required for a determination as to whether, under the totality of the circumstances, including defendant's lifetime parole status and the officers' awareness that he was likely in violation of multiple conditions of his parole, reasonable suspicion of criminal activity justified detaining defendant beyond completion of the traffic infraction investigation.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Searches and Seizures §§ 33, 124, 301.

CARMODY-WAIT 2d Search and Seizure §§ 173:63, 173:332, 173:359.

LaFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 3.7.

NY JUR 2d Criminal Law: Procedure §§ 261, 425, 492, 500.

ANNOTATION REFERENCE

See ALR Index under Automobiles and Highway Traffic; Parole, Probation, and Pardon; Search and Seizure.

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Query: traffic /2 stop /s prolong! & suspicion & parole*

POINTS OF COUNSEL

Casey Law LLC, Albany (*John B. Casey* of counsel), for appellant. I. The unlawfully prolonged detention of defendant requires suppression of the drug evidence found in his vehicle. (*People v Rodriguez*, 185 AD3d 1233, 36 NY3d 975; *People v Banks*, 85 NY2d 558; *People v Edwards*, 14 NY3d 741, 14 NY3d 794; *People v Jarrett*, 157 AD3d 534, 31 NY3d 1014; *People v Milaski*, 62 NY2d 147.) II. The police lacked a founded suspicion of criminality to ask defendant for consent to search his vehicle or detain him to await a canine unit. (*People v Arroyo*, 167 AD3d 1537, 33 NY3d 945; *People v Lowe*, 79 AD3d 1676, 16 NY3d 833; *People v Leiva*, 33 AD3d 1021.) III. The search of defendant's vehicle was unreasonable and the parole officer was acting merely as an agent of the police. (*People v Wade*, 172 AD3d 1644, 33 NY3d 1109; *People v Escalera*, 121 AD3d 1519, 24 NY3d 1083; *People v Mackie*, 77 AD2d 778; *People v Candelaria*, 63 AD2d 85.)

Weeden A. Wetmore, District Attorney, Elmira (*Nathan M. Bloom* of counsel), for respondent. I. Extending the police encounter to question and detain Kevin Thomas was justified under *People v De Bour* (40 NY2d 210 [1976]) by escalating levels of suspicion. (*People v Huntley*, 43 NY2d 175; *People v McMillan*, 29 NY3d 145; *People v Barksdale*, 26 NY3d 139; *People v Brown*, 25 NY3d 973; *People v Garcia*, 20 NY3d 317; *People v Hollman*, 79 NY2d 181; *People v Simmons*, 79 AD3d 431, 16 NY3d 836; *People v Gates*, 31 NY3d 1028; *People v Banks*, 148 AD3d 1359; *People v Kenon*, 291 AD2d 246.) II. The parole officer's search was valid because it furthered his independent duty to investigate a technical parole violation. (*People*

v Candelaria, 63 AD2d 85; *People v Vann*, 92 AD3d 702; *United States ex rel. Santos v New York State Bd. of Parole*, 441 F2d 1216; *People v Mackie*, 77 AD2d 778.)

OPINION OF THE COURT

CANNATARO, J.

The question presented by this appeal is whether the courts below erred in denying defendant's motion to suppress a large quantity of heroin recovered from the backseat of his car during a warrantless search by defendant's parole officer, who had been contacted by police in the course of a traffic stop. Because the lower courts applied an incorrect legal standard in analyzing whether the traffic stop was unreasonably prolonged, we reverse and remit to County Court for further proceedings.

The testimony presented at the suppression hearing established that defendant, who was on lifetime parole for prior narcotics offenses, was observed driving outside his county of residence by an off-duty police officer who recognized defendant's distinctive vehicle and license plate. The off-duty officer, who was familiar with defendant, suspected that defendant was in violation of a condition of his parole requiring him to stay within a certain geographic area and so contacted an on-duty officer in the vicinity of defendant's residence.

The on-duty officer knew defendant to be on parole, and suspected that he was in violation of his parole conditions because he was outside of the county and out after the standard parole curfew time. Based on these facts and defendant's history, he believed defendant was "possibly transporting drugs." The officer and his partner waited for defendant to return to the jurisdiction at a location where they could observe him exiting the highway. When defendant exited the highway, the officers followed defendant's vehicle, observed him commit a traffic infraction by failing to come to a complete stop at a stop sign and initiated a traffic stop at about 9:20 p.m. Defendant had pulled into his driveway by the time he stopped his vehicle and the ensuing encounter was captured on one officer's body camera. Defendant readily admitted committing the traffic infraction, claiming he was distracted because he was talking on the phone, and provided his driver's license, which the officer confirmed was valid. The officer then questioned defendant about where he was coming from and whether he was in violation of his curfew. Defendant provided a series of inconsistent responses that the officer knew to be false. Defendant also

appeared nervous and, when asked, withheld consent to search his vehicle. The officers repeatedly stated that if he did not give consent, they would call his parole officer to search the car. The police attempted to have a canine unit come to the scene to conduct a sniff of the exterior of the vehicle, but none was available.

Then, at about 9:40 p.m., the police contacted defendant's parole officer to advise him of what had transpired up to that point. The parole officer indicated that he would report to the scene to investigate. Defendant was frisked, his personal belongings were removed and he was placed, without handcuffs, in the back of the patrol car for officer safety purposes to await his parole officer's arrival. Upon arrival, defendant refused to answer his parole officer's questions, despite a parole condition requiring him to do so. The parole officer searched defendant's vehicle and discovered 2,000 glassines of heroin inside a shoebox.

In support of his motion to suppress, defendant argued that the People failed to prove that the officers had the requisite level of suspicion to extend the traffic stop after its initial basis—the traffic infraction—was exhausted, asserting that a traffic stop cannot be extended for the purpose of investigating an unrelated crime for which the officer lacked reasonable suspicion.¹ He also argued that the parole officer's warrantless search of his vehicle was not justified, as the parole officer was acting as an agent of the police.

County Court denied the motion, finding that the initial stop was justified by the police officer's observation of the traffic infraction. The court further found that, under the totality of the circumstances, including defendant's parole status and the false responses he gave to the police officers' questions, the police had a founded suspicion of criminality justifying the continued detention of defendant in order to contact his parole officer. The court went on to find that, based on the credible evidence of defendant's parole violations, the ensuing search of the vehicle by the parole officer was rationally and reasonably related to that officer's parole duties.

Defendant was convicted, upon his guilty plea, of criminal possession of a controlled substance in the third degree. The

1. Defendant also sought to suppress his statements to law enforcement made after the justification for the traffic stop had been exhausted, as obtained in violation of his *Miranda* rights.

Appellate Division affirmed, concluding that suppression was properly denied as the traffic stop, which was justified at its inception, was not unlawfully prolonged (211 AD3d 1326 [3d Dept 2022]). The Court opined that defendant's inconsistent and false responses, considered with the apparent violations of the conditions of his parole and his nervous demeanor, provided a founded suspicion of criminality, allowing the officers to extend the stop to request consent to search or await a canine sniff. The Court further concluded that, once the police officers learned that the canine unit was unavailable, it was reasonable for them to contact defendant's parole officer and detain defendant pending the parole officer's arrival. Finally, the Court determined that the subsequent warrantless search of the vehicle was substantially related to the performance of the parole officer's duty in the circumstances.

Two Justices dissented and would have granted suppression, concluding that defendant was detained beyond what was reasonable under the circumstances because the police officers lacked a founded suspicion that criminality was afoot after the justification for the traffic stop had been exhausted. An Appellate Division Justice granted defendant leave to appeal (39 NY3d 1081 [2023]).

The proper standard for detaining an individual beyond "the time reasonably required" to complete a traffic stop is reasonable suspicion (*Rodriguez v United States*, 575 US 348, 354-355 [2015] [internal quotation marks omitted]; see *People v Banks*, 85 NY2d 558, 562 [1995]). Given that a traffic stop is a "limited seizure" of the occupants of a vehicle, "[f]or a traffic stop to pass constitutional muster, the officer's action in stopping the vehicle must be justified at its inception and the seizure must be reasonably related in scope, including its length, to the circumstances which justified the detention in the first instance" (*Banks*, 85 NY2d at 562). A "continued involuntary detention of [a] defendant . . . constitute[s] a seizure in violation of their constitutional rights, unless circumstances coming to [the officer's] attention following the initial stop furnish[] . . . reasonable suspicion that they were engaged in criminal activity" (*id.* [emphasis added]). Likewise, the United States Supreme Court has held that "[a] seizure justified only by a police-observed traffic violation . . . become[s] unlawful if it is prolonged beyond the time reasonably required to complete th[e] mission of issuing a ticket for the violation" (*Rodriguez*, 575 US at 350-351 [internal quotation marks and citation omitted]). In this

vein, although that “mission” encompasses “‘ordinary inquiries incident to [the traffic] stop,’” it does not include additional measures designed to detect evidence of criminality (575 US at 355, quoting *Illinois v Caballes*, 543 US 405, 408 [2005]). Thus, an otherwise lawful traffic stop may not be prolonged “absent the reasonable suspicion ordinarily demanded to justify detaining an individual” (575 US at 355).

Here, there is record support for the affirmed finding that the traffic stop was justified at its inception, based upon the police officer’s observation that defendant committed a traffic infraction (see *People v Hinshaw*, 35 NY3d 427, 430 [2020]). However, the courts below evaluated whether the traffic stop was prolonged beyond the time reasonably required for its completion under the founded suspicion standard applicable to the common-law right to inquire (see *People v De Bour*, 40 NY2d 210, 223 [1976]), a lesser standard than the reasonable suspicion necessary to prolong a traffic stop. As a result, remittal is necessary to allow for consideration of this issue under the proper standard.²

We note that although “a parolee does ‘not surrender [their] constitutional rights against unreasonable searches and seizures’ merely by virtue of being on parole,” “‘in any evaluation of the reasonableness of a particular search or seizure,’ whether undertaken by parole or police officers, ‘the fact of defendant’s status as a parolee is always relevant and may be critical’” (*People v McMillan*, 29 NY3d 145, 148-149 [2017], quoting *People v Huntley*, 43 NY2d 175, 181 [1977]). The issue is whether, under the totality of the circumstances, including

2. The dissent’s suggestion that the existence of reasonable suspicion to prolong the traffic stop can be decided by this Court in the first instance because that standard is more favorable to defendant than the incorrect standard applied by the courts below finds no support in *LaFontaine, Concepcion*, or their progeny (see *People v Concepcion*, 17 NY3d 192 [2011]; *People v LaFontaine*, 92 NY2d 470 [1998]). Because neither the suppression court nor the Appellate Division applied the reasonable suspicion standard to the facts, we are precluded from reaching that issue here (see CPL 470.15 [1]; 470.35 [1]; *People v Ingram*, 18 NY3d 948, 949 [2012]).

Whether reasonable suspicion exists is a mixed question of law and fact, and our review of that issue is limited to whether record support exists for the lower courts’ determination (see *People v Harrison*, 57 NY2d 470, 477 [1982]). Contrary to the dissent, we express no opinion on the mixed question of whether reasonable suspicion existed, and we would not characterize the lower courts’ review of this issue as “perfunctory” or a mere formality (dissenting op at 248) given the important role of these courts in determining suppression issues in the first instance.

defendant's lifetime parole status and the officers' awareness that he was likely in violation of multiple conditions of his parole, "reasonable suspicion of criminal activity justified detaining [defendant] beyond completion of the traffic infraction investigation" (*Rodriguez*, 575 US at 358). As stated, "[a] seizure justified only by a police-observed traffic violation . . . become[s] unlawful if it is prolonged beyond the time reasonably required to complete th[e] mission of issuing a ticket for the violation" (*id.* at 350-351 [internal quotation marks and citation omitted]).

Accordingly, the order of the Appellate Division should be reversed and the matter remitted to County Court for further proceedings in accordance with this opinion.

RIVERA, J. (dissenting). The record on appeal establishes that the officers had a lawful basis to stop defendant Kevin Thomas for a traffic violation, and reasonable suspicion that he had engaged in criminal activity, thereby justifying his prolonged detention until his parole officer arrived and searched defendant's vehicle. Therefore, I would affirm the Appellate Division rather than remit for further proceedings.

I.

I agree with the majority's summary of the facts and procedural history (*see* majority op at 238-240). I also agree with the majority's articulation of the standard applicable to defendant's motion to suppress (*see id.* at 240-241). A traffic stop is "[l]ike a *Terry* stop" (*Rodriguez v United States*, 575 US 348, 354 [2015]), where "an investigative detention must be temporary and last no longer than is necessary to effectuate the purpose of the stop" and "the investigative methods employed should be the least intrusive means reasonably available to verify or dispel the officer's suspicion in a short period of time" (*Florida v Royer*, 460 US 491, 500 [1983]). Thus, "[f]or a traffic stop to pass constitutional muster, the officer's action in stopping the vehicle must be justified at its inception and the seizure must be reasonably related in scope, including its length, to the circumstances which justified the detention in the first instance," and a "continued involuntary detention of [a] defendant . . . constitute[s] a seizure in violation of their constitutional rights, unless circumstances coming to [the officer's] attention following the initial stop furnished . . . reasonable suspicion that they were engaged in criminal activity" (*People v Banks*, 85 NY2d 558, 562 [1995]; *see also Rodriguez*,

575 US at 355). Although, as the majority states, the Appellate Division “applied an incorrect legal standard” in affirming the denial of defendant’s motion to suppress (majority op at 238), I conclude that under the unique circumstances presented here, remittal is unwarranted because the facts are undisputed, the legal issue is resolved by application of established precedent and defendant’s claim is meritless. Nothing bars final resolution in this Court and thus the prudent course is to preserve judicial resources and affirm the Appellate Division.

II.

As a threshold matter, this appeal falls outside the *LaFontaine/Concepcion* rule that the intermediate appellate court—and, in turn, we—may not review issues “‘either decided in an appellant’s favor, or not ruled upon, by the trial court’” (*People v Concepcion*, 17 NY3d 192, 195 [2011], quoting *People v LaFontaine*, 92 NY2d 470, 474 [1998]). Members of this Court have roundly criticized the rule (*see Concepcion*, 17 NY3d at 201 [Smith, J., joined by Pigott, J., dissenting] [*“LaFontaine . . . was a mistake, and a serious one . . . I had hoped that this would provide the occasion for giving that case a decent burial, but the majority ill-advisedly resurrects it”*]; *People v Ingram*, 18 NY3d 948, 949 [2012, Pigott, J., joined by Smith, J., dissenting] [*“For the reasons that Judge Smith stated in his dissent in . . . Concepcion . . . , I remain convinced that . . . LaFontaine . . . should be overruled”*])). And while the rule survives, we have, over recent years, narrowly construed it to mitigate nonsensical results (*see People v Nicholson*, 26 NY3d 813, 817 [2016] [*“(T)he Appellate Division does not exceed its statutory authority or run afoul of our decisions in . . . LaFontaine . . . and . . . Concepcion . . . when it relies on the record to discern the unarticulated predicate for the trial court’s evidentiary ruling”*]; *People v Garrett*, 23 NY3d 878, 885 n 2 [2014] [distinguishing between “separate alternative grounds for decision” which the *LaFontaine* rule covers and components of a “single multipronged legal ruling” which it does not]; *id.* at 899 [Smith, J., concurring] [endorsing the *Garrett* “majority’s limitation of the rule”]).

The Appellate Division majority, like County Court, rejected defendant’s claims that the drugs found in his vehicle should have been suppressed, concluding that the officers had a founded suspicion of criminality based on defendant’s conduct

before the traffic stop, his statements in response to police questioning, and his status as a parolee. The Appellate Division dissent correctly references this Court's decision in *Banks* for the proposition that “ ‘the officer's action in stopping the vehicle must be justified at its inception and the seizure must be reasonably related in scope, including its length, to the circumstances which justified the detention in the first instance’ ” (211 AD3d at 1332, quoting *People v Blanche*, 183 AD3d 1196, 1198 [3d Dept 2020], quoting *Banks*, 85 NY2d at 562). Further, both the suppression court and the Appellate Division majority also correctly referenced *People v McMillan*, and *People v Huntley*, for the notion that “ ‘in any evaluation of the reasonableness of a particular search or seizure,’ . . . ‘the fact of defendant's status as a parolee is always relevant and may be critical’ ” (*McMillan*, 29 NY3d 145, 148-149 [2017], quoting *Huntley*, 43 NY2d 175, 181 [1977]). However, the suppression court and both the Appellate Division majority and dissent all evaluated whether the officers' actions here were supported by founded suspicion (*see* 211 AD3d at 1330; *id.* at 1332-1333 [Aarons, J., dissenting]). These references to “founded suspicion” appear to have their genesis in a different *Banks* decision, issued by the Third Department, *People v Banks* (148 AD3d 1359, 1360 [3d Dept 2017]). In that decision, the Appellate Division cited to our 1995 decision in *Banks* for the erroneous proposition that officers must have a “founded suspicion that criminal activity is afoot” to justify extending the scope of the detention beyond the circumstances giving rise to a vehicular stop (*Banks*, 148 AD3d at 1360). But this Court in *Banks* held that the defendant in that case was illegally detained because “defendant's nervousness and the innocuous discrepancies in his and [a codefendant's] answers to the Trooper's questions regarding the origin, destination and timing of their trip did not alone, as a matter of law, provide a basis for reasonable suspicion of criminality” (85 NY2d at 562, citing *People v Milaski*, 62 NY2d 147, 156 [1984]).

Notably, in his post-suppression hearing memorandum, defendant conceded that the officer had probable cause to stop him for failing to stop at the stop sign, but argued that “[a] police officer m[ay] not artificially extend the detention” incident to a traffic stop “in order to investigate some unrelated crime or offense for which the officer does not have reasonable suspicion or probable cause.” On appeal, both defendant and the prosecution refer to the lesser “founded suspicion” standard

at different points in their briefing. As we reaffirm today, that is not the proper standard (*see* majority op at 240). However, the parties also expressly discuss whether the officers had reasonable suspicion to prolong defendant's detention. Defendant, relying on *Banks* and *Milaski*, repeats the argument he asserted before the Appellate Division that

“[i]t was during the unlawful prolonged detention of defendant that the police officers removed property from defendant's pockets and found receipts from Popeye's and White Castle. It is well settled that apparent nervousness and inconsistent answers to police questioning about one's whereabouts do not alone provide a basis for reasonable suspicion of criminal activity upon which further detention is justified (*see People v Banks*, 85 NY2d 558, 562 [1995], *cert denied* 516 U.S. 868; *People v Milaski*, 62 NY2d 147, 156 [1984]). Thus, even if defendant was agitated or nervous and gave inconsistent answers to [the officer's] questioning of his whereabouts prior to the stop, such actions do not provide a founded suspicion of criminality to justify a prolonged detention of defendant. Consequently, the prolonged detention was unreasonable, and all evidence obtained as a result of the detention, including the heroin, must be suppressed and the indictment dismissed.”

The prosecution, as before the Appellate Division, contends that

“defendant's detention for less than 30 minutes was based upon reasonable suspicion that criminal activity was afoot” because he “was seen outside the county by a seasoned police officer, he was out past his curfew, he possessed fast-food wrappers and receipts from restaurants outside the county date-stamped and timestamped that afternoon, he made up four false explanations about where he had been coming from, exhibited extremely nervous behavior, including sweating profusely and pacing, and finally, as time went on, the defendant became disorderly.”

Similarly, before us, the prosecution maintains that, once defendant lied that “he [had come] from Rochester, officers had reasonable suspicion of criminality sufficient to detain him

through [the parole officer's] investigation." Describing the escalating level of suspicion, the prosecution argues specifically:

"[Defendant's] first two lies—(1) that he had dropped off his cousin, and (2) that he had been driving around looking for his wife—could be explained away as [him] attempting to conceal mere technical parole violations. But once [he] lied that he was in Rochester—which would be its own parole violation because Rochester is outside Chemung County—the level of suspicion was elevated further. Officers now had additional reason to suspect he was lying to cover up not just a technical parole violation but an actual crime. Combined with his highly nervous demeanor and the fact that he was already on parole for narcotics offenses, this gave officers reasonable suspicion that criminal activity was afoot. This reasonable suspicion gave officers cause to detain him pending [the parole officer's] arrival."

The majority and I agree that defendant's detention must be justified by the more demanding reasonable suspicion standard—as opposed to founded suspicion. Thus, defendant, as the appellant, is not placed in a worse position by application of the correct standard here. Further, the prosecution argues that defendant's responses to the officer's permissible questioning eventually provided the officers with reasonable suspicion of criminal activity. County Court, confronted with defendant's claim that the officers lacked "reasonable suspicion or probable cause" to extend his detention, specifically ruled, adversely to defendant, on the constitutionality of this action. The Appellate Division affirmed, albeit under an erroneous founded suspicion standard. The Court's reminder that the proper standard is reasonable suspicion works in defendant's favor.

In sum, defendant and the prosecution at different points have referenced the correct legal standard, that standard is more favorable to defendant, and the lower courts decided adversely to defendant on the specific issue he raised.¹ Therefore, the *LaFontaine/Concepcion* rule is no bar to addressing the constitutionality of defendant's detention, and ac-

1. The majority predicates its disagreement with my conclusion that *LaFontaine* and its progeny do not bar our consideration of whether the police had reasonable suspicion before extending the seizure exclusively on the

(n. cont'd)

cordingly obviates any need for remittal (*Concepcion*, 17 NY3d at 195).

III.

On the merits, the record establishes that an officer familiar with defendant, his parole status, and his history of involvement with narcotics observed defendant's car driving in Pennsylvania—an apparent violation of a parole condition that defendant not leave Chemung County. The officer communicated his observations to another officer back in Syracuse, who also was familiar with defendant's criminal history and parole status. This second officer observed defendant drive back into Chemung County and followed him as he drove to a delicatessen before observing him run through a stop sign and drive into his own nearby driveway.² The officer then approached defendant, accompanied by another officer wearing a body cam. Defendant admitted he ran the stop sign, but then volunteered contradictory information about whether he had a curfew as a parolee before lying about his whereabouts in response to the officer's question about where he was coming from—accounts that changed several times once the officer responded that he knew defendant was not telling the truth based on what the officer observed once defendant exited the highway.

The officers' stop of defendant's vehicle was supported by probable cause based on their observations of a traffic violation (*see People v Hinshaw*, 35 NY3d 427, 430 [2020]). Ordinarily, a police officer would have no lawful basis to detain a driver suspected of a traffic violation for an extended duration based on inaccurate responses to questions about their whereabouts alone because, absent more, and “as a matter of law,” such does not “provide a basis for reasonable suspicion of criminality” (*Banks*, 85 NY2d at 562, citing *Milaski*, 62 NY2d at 156). Here, however, the officers possessed reasonable suspicion of criminal activity given defendant's false answers, combined with the officers' personal knowledge of his criminal history, parole status, and apparent parole violations for travel outside Chemung County beyond his curfew time (*see Rodriguez*, 575 US

second of these three reasons (*see* majority op at 241 n 2). But, as the above shows, my conclusion follows from all three premises taken together.

2. Defendant has never suggested that a different analysis controls because he had parked in his driveway when the officers approached him. Therefore, the relevance of this fact to his challenge is not before us.

at 354-355).³ Put another way, if defendant was unknown to the officers, then “nervousness and the innocuous discrepancies in his . . . answers” (*Banks*, 85 NY2d at 562) would not have justified the officers’ prolonged detention after resolving the Vehicle and Traffic Law violation because driving through a stop sign does not provide reasonable suspicion that the driver has committed or is about to commit a crime. But, here, defendant was known to be on parole for drug-related conduct and was observed violating at least two conditions of his parole. That highly relevant information provided the requisite level of suspicion to hold defendant until his parole officer arrived.

The parole officer’s subsequent warrantless search of defendant’s vehicle which led to the discovery of the illegal drugs was likewise constitutional because it was “rationally and reasonably related to the performance of the parole officer’s duties” (*People v McMillan*, 29 NY3d 145, 148 [2017]). Specifically, the parole officer “has an obligation to detect and to prevent parole violations for the protection of the public from the commission of further crimes; . . . to prevent violations of parole and to assist [the parolee] to a proper reintegration into [their] community” (*People v Huntley*, 43 NY2d 175, 181 [1977]). The record establishes the parole officer acted reasonably to discharge these duties.

IV.

I would affirm the Appellate Division and end the matter now rather than remit for what will be a perfunctory determination by that Court that the officers were justified in both the stop and subsequent detention. Therefore, while I join fully the majority’s articulation of the proper standard to be applied, I dissent from its decision to delay that application in defendant’s case.

Chief Judge WILSON and Judges GARCIA, SINGAS, TROUTMAN and HALLIGAN concur. Judge RIVERA dissents and votes to affirm in an opinion.

3. This question is not a “mixed” one, as the majority asserts (*see* majority op at 241 n 2) because neither party disputes the facts found below or inferences to be drawn therefrom, and the only issue is whether, “as a matter of law, the officers’ observations could . . . form the ‘minimum showing necessary to establish’ a reasonable suspicion that defendant had committed or was about to commit a crime” (*People v Messano*, 41 NY3d 228, 235 [2024], quoting *People v McRay*, 51 NY2d 594, 601 [1980]).

Order reversed and case remitted to County Court, Chemung County, for further proceedings in accordance with the opinion herein.

[243 NE3d 494, 218 NYS3d 540]

FAVOURITE LIMITED et al., Appellants, v BENEDETTO CICO et al.,
Respondents, et al., Defendant.

Argued February 13, 2024; decided March 19, 2024

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 21, 2022. The Appellate Division, with two Justices dissenting, insofar as appealed from, modified, on the law, an order of the Supreme Court, New York County (Jennifer G. Schechter, J.; op 2021 NY Slip Op 33636[U] [2021]), which, to the extent appealed from as limited by the briefs, had (1) granted plaintiffs' motions for leave to file a third amended complaint, and (2) granted plaintiffs' motions to dismiss the counterclaims of defendants Benedetto Cico and Carla Cico for breach of contract and a declaratory judgment. The modification consisted of denying plaintiffs' motion for leave to file a third amended complaint.

Favourite Ltd. v Cico, 208 AD3d 99, reversed.

HEADNOTES

Pleading — Amendment — Supreme Court's Discretion to Grant Leave to Amend Complaint Following Appellate Division's Dismissal of Complaint

1. In a breach of contract action in which defendants, during the pendency of their appeal from Supreme Court's order granting plaintiffs' cross-motion to file a second amended complaint, filed counterclaims also based on alleged breaches of the parties' operating agreement, the dismissal of plaintiffs' second amended complaint by the Appellate Division did not deprive Supreme Court of its authority to consider a third amended complaint that purportedly cured the defect, where the dismissal was without prejudice and defendants' counterclaims remained pending in Supreme Court. Therefore, Supreme Court retained control over the parties and continued to adjudicate claims related to the same transactions that formed the subject matter of the complaint. For that reason, the Appellate Division order also did not render the case final for purposes of appealability, as no appeal to the Court of Appeals may be taken from an order which leaves claims pending in the action between the same parties. Because the original action remained pending in Supreme Court even after the complaint was dismissed, Supreme Court retained the power to grant leave to plaintiffs to file another amended complaint. The mere fact that a complaint is dismissed by an appellate court does not generally imply that the trial court lacks such power. Although the appellate court may explicitly direct that leave to amend be granted, it is not required to do so in order to preserve the trial court's discretion to grant such leave.

Pleading — Amendment — Timeliness

2. In a breach of contract action, plaintiffs' motion for leave to amend following dismissal of the second amended complaint was timely filed within

the six-month time limit to bring a new action under CPLR 205 (a) due to the COVID-19 tolling provisions in Executive Order (A. Cuomo) No. 202.8 (9 NYCRR 8.202.8). “A claim asserted in an amended pleading is deemed to have been interposed at the time the claims in the original pleading were interposed, unless the original pleading does not give notice of the transactions, occurrences, or series of transactions or occurrences, to be proved pursuant to the amended pleading” (CPLR 203 [f]). The claims in the third amended complaint were the same as those in the second amended complaint, which Supreme Court found to be timely—the only difference between the complaints was the explanation of how the company was properly revived. Therefore, the claims in the third amended complaint were timely asserted under the standard for a motion to amend. Moreover, Executive Order 202.8, enacted shortly after the Appellate Division order dismissing the complaint was made, tolled all filing periods until November 3, 2020. The clock then ran until the motion for leave to amend was submitted. Subtracting the tolling period, the motion to amend was filed well within the six months provided by CPLR 205 (a).

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Pleading §§ 634, 649–651, 655, 659.
CARMODY-WAIT 2d Limitation of Actions § 13:445;
CARMODY-WAIT 2d Amendment of Pleadings §§ 34:7,
34:17–34:21, 34:23, 34:25, 34:26, 34:83.
McKINNEY’S, CPLR 203 (f); 205 (a).
NY JUR 2d Pleading §§ 78, 211, 212, 222–224, 227, 230,
252, 253.
SIEGEL, NY PRAC (6th ed) §§ 49, 52, 237.

ANNOTATION REFERENCE

See ALR Index under Amendment of Pleadings.

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POINTS OF COUNSEL

Fein & Jakab, New York City (*Peter Jakab* of counsel), and *Valla & Associates, Inc., P.C.*, New York City (*Antonio Valla* and *Daniela Morrison* of counsel), for appellants. I. Following remittitur from appellate courts, lower courts are empowered to consider changed circumstances and provide relief in view of them. (*Rudiger v Coleman*, 228 NY 225; *Gramercy Park Residence Corp. v Ellman*, 162 AD3d 495; *Matter of Altimari v Meis-*

ser, 23 AD2d 672; *Quern v Jordan*, 440 US 332; *United States v Bell*, 988 F2d 247; *Rutherford v United States*, 806 F2d 1455; *Landis v North American Co.*, 299 US 248; *People v Johnston*, 67 Misc 3d 267; *Lang v Pataki*, 176 Misc 2d 676; *GAF Corp. v Werner*, 106 AD2d 41.) II. The role of entry of judgment, or its lack, in the legal analysis applicable to this appeal. (*Woodson v Mendon Leasing Corp.*, 100 NY2d 62; *State of New York Mtge. Agency v Braun*, 182 AD3d 63; *Cooke-Garrett v Hoque*, 109 AD3d 457; *Silverstri v Smallberg*, 165 Misc 2d 827, 224 AD2d 172, 88 NY2d 1004; *Nash v Port Auth. of N.Y. & N.J.*, 22 NY3d 220; *United States v Will*, 449 US 200; *Clapp v Hawley*, 97 NY 610; *Matter of Aho*, 39 NY2d 241; *Whitney v Whitney*, 57 NY2d 731; *Malay v City of Syracuse*, 25 NY3d 323.) III. The majority below erred in holding that the trial court's grant of leave to amend was an extension of the statute of limitations. (*Rubin v Napoli Bern Ripka Shkolnik, LLP*, 151 AD3d 603; *Scribani v Buchannon*, 101 AD3d 1517; *Bank of N.Y. v Midland Ave. Dev. Co.*, 248 AD2d 342; *Gaines v City of New York*, 215 NY 533; *George v Mt. Sinai Hosp.*, 47 NY2d 170; *Matter of Morris Invs. v Commissioner of Fin. of City of N.Y.*, 121 AD2d 221; *Doyle v American Home Prods. Corp.*, 583 F3d 167; *Perez v Paramount Communications*, 92 NY2d 749.)

Marvin Kemp, PLLC, Rhinebeck (*Sean M. Kemp* of counsel), for Carla Cico, respondent, and *Toptani Law Offices*, New York City (*Edward Toptani* of counsel), for Benedetto Cico, respondent. I. After the First Department dismissed appellants' action, the trial court lacked discretion to grant leave to amend because there was no pleading before the trial court to amend. (*Tanner v Stack*, 176 AD3d 429; *Panagouloupoulos v Carlos Ortiz Jr. MD, P.C.*, 143 AD3d 792; *Amaranth LLC v National Australia Bank Ltd.*, 40 AD3d 279; *Kazakhstan Inv. Fund v Manolovici*, 2 AD3d 249; *Chiacchia & Fleming v Guerra*, 309 AD2d 1213; *Jeffrey L. Rosenberg & Assoc. v Kadem Capital Mgt.*, 306 AD2d 155; *Carpenter v Plattsburgh Wholesale Homes, Inc.*, 83 AD3d 1175; *Deutsche Bank Natl. Trust Co. v James*, 164 AD3d 467; *Christiana Trust v Rice*, 187 AD3d 1495; *BGC Partners, Inc. v Avison Young [Can.], Inc.*, 192 AD3d 498.) II. The trial court did not have authority to review and modify the first decision. (*Rudiger v Coleman*, 228 NY 225; *Matter of Natural Resources Defense Council v New York City Dept. of Sanitation*, 214 AD2d 41; *Matter of Altimari v Meisser*, 23 AD2d 672; *Gramercy Park Residence Corp. v Ellman*, 162 AD3d 495; *Harvey v Members Empls. Trust for Retail Outlets*, 96 NY2d 99; *Spiegel v Ferraro*, 73 NY2d 622; *Matter of Schneider*, 298

NY 532.) III. Filing a motion for leave to amend does not satisfy CPLR 205 (a). (*George v Mt. Sinai Hosp.*, 47 NY2d 170; *U.S. Bank N.A. v DLJ Mtge. Capital, Inc.*, 33 NY3d 72; *Rubin v Napoli Bern Ripka Shkolnik, LLP*, 151 AD3d 603; *Henneberry v Borstein*, 91 AD3d 493; *Scribani v Buchannon*, 101 AD3d 1517; *Bank of N.Y. v Midland Ave. Dev. Co.*, 248 AD2d 342; *Balanoff v Doscher*, 140 AD3d 995.)

OPINION OF THE COURT

Chief Judge WILSON.

This case concerns the proper scope of the trial court's discretion to grant leave to amend a complaint under CPLR 3025 (b). The Appellate Division dismissed plaintiffs' second amended complaint in its entirety for lack of standing, leaving only the defendants' counterclaims pending in Supreme Court. Supreme Court then granted plaintiffs leave to file a third amended complaint to cure the standing issue, despite defendants' objections that plaintiffs were instead required to file a new action. The Appellate Division sided with defendants, holding that Supreme Court had no discretion to grant leave to amend a complaint that the Appellate Division had dismissed. We now reverse.

I.

Plaintiff Upper East Side Suites LLC (UESS) is a Delaware LLC formed in 2006 to acquire a five-story building in Manhattan and rent the apartments within as short-term accommodations.¹ The remaining plaintiffs are investors in UESS. Defendants Carla and Benedetto Cico were the sole managers of the company. The short-term accommodation business was unsuccessful, and the property was eventually sold in a distress sale. The Cicos used the proceeds as a down payment on a separate building, but ended up forfeiting the down payment once that sale failed to close, leaving no money returnable to the investors. The investors allege that the Cicos repeatedly lied to them about these operations and that the purchase of the second building was never authorized or disclosed. After the members removed the Cicos as managers of the company, plaintiffs commenced an action in May 2016 for breach of the operating agreement, breach of fiduciary duty, and other related claims.

When the Cicos were removed as managers, and unbeknownst to plaintiffs, Benedetto Cico resigned as the registered

1. We take the facts here as pleaded in the complaint.

agent for UESS. Therefore, in November 2016 the Delaware Secretary of State cancelled the LLC's certification of formation (*see* Del Code Ann title 6, § 18-104 [d]).

The original complaint was dismissed in February 2018 after UESS lost counsel and failed to appear, but the plaintiffs were permitted to file an amended complaint. The investors (but not UESS) timely filed an amended complaint, which Benedetto Cico moved to dismiss, arguing among other things that a suit may not be brought on behalf of a cancelled Delaware LLC. UESS member Sirio SRL then acquired a certificate of revival for UESS, and the plaintiffs cross-moved to file a second amended complaint with both the investors and UESS as plaintiffs. In an October 2018 order denying the motion to dismiss and granting the cross-motion to file the second amended complaint, Supreme Court held that because UESS had been revived, the Cicos' arguments related to the inactivity of the company were no longer relevant.²

The Cicos appealed. During the pendency of the appeal, the Cicos filed counterclaims against both UESS and the individual plaintiffs; the counterclaims were based on alleged breaches of the operating agreement. The counterclaims remained pending in Supreme Court throughout the appeal of the October 2018 order granting the motion to file the second amended complaint.

In March 2020, the Appellate Division reversed that order and granted the Cicos' motion to dismiss the complaint, holding that UESS had not been properly revived. The Court held that because there was no evidence that the company had authorized Sirio SRL to act on its behalf, the certificate of revival obtained by Sirio was not valid, and UESS therefore continued to lack standing or capacity.

The Appellate Division's decretal paragraph is as follows:

“Order . . . entered October 30, 2018, which, insofar as appealed from, denied defendants Benedetto Cico's and Carla Cico's motions to dismiss the amended complaint, and granted in part plaintiffs' cross motion for leave to file a second amended

2. The Cicos then moved to dismiss the second amended complaint, claiming that the action was time-barred. Supreme Court denied the motion to dismiss and held that the action was timely. The Cicos also appealed that order, but the appeal was rendered academic by the Appellate Division ruling on the October 2018 order.

complaint, unanimously reversed, on the law, without costs, the motions granted, and the cross motion denied. The Clerk is directed to enter judgment accordingly” (181 AD3d 426, 426 [1st Dept 2020]).

When the case returned to Supreme Court, the plaintiffs informed the court that they would again attempt to cure the revival issue by working with the Delaware Secretary of State. Their efforts culminated in the filing of a new certificate of revival in December 2020, with evidence of a vote by membership authorizing the action. The plaintiffs then moved pursuant to CPLR 3025 (b) to file a third amended complaint. The Cicos opposed, arguing that amendment was improper after the Appellate Division had dismissed the previous complaint in its entirety.

Supreme Court granted the motion to amend. The court reasoned that although plaintiffs could have commenced a separate action under CPLR 205 (a) after the Appellate Division dismissed their claims without prejudice, “[i]t would make no sense, under the circumstances, for plaintiffs to have commenced another separate action . . . and then to have moved to consolidate it with this one when this one has always remained active and pending” (2021 NY Slip Op 33636[U], *1-2 [Sup Ct, NY County 2021]). The court also noted that the filing of a new action would have been timely on the amendment date.³

The Appellate Division reversed in a 3-2 decision. The majority held that its dismissal of the second amended complaint left Supreme Court powerless to entertain a motion to file another amended complaint, because no complaint remained pending to amend. It also separately held that the amendment was time-barred. The dissent concluded that although a complaint dismissed by the Appellate Division with prejudice may not be amended, it is within the discretion of the court of instance to allow amendment of a complaint dismissed without prejudice or not on the merits under certain circumstances. The dissent also reasoned that there was no timeliness issue due to the COVID-19 tolling provisions in Executive Order (A. Cuomo) No. 202.8 (9 NYCRR 8.202.8), which went into effect shortly after the prior Appellate Division decision.

3. In the same order, Supreme Court also granted an earlier motion by the plaintiffs to dismiss the Cicos’ counterclaims. This portion of the order was affirmed by the Appellate Division and is not at issue here.

The plaintiffs appealed as of right under CPLR 5601 (a).

II.

CPLR 3025 (b) states that “[a] party may amend his or her pleading . . . at any time by leave of court,” and that such leave “shall be freely given.” In accordance with this liberal policy, we have stated that a request for leave to amend should generally be granted absent prejudice or surprise to the opposing party (*see McCaskey, Davies & Assoc. v New York City Health & Hosps. Corp.*, 59 NY2d 755, 757 [1983]; *Kimso Apts., LLC v Gandhi*, 24 NY3d 403, 411 [2014]). The grant or denial of a motion to amend is reviewed for abuse of discretion (*Kimso Apts.*, 24 NY3d at 411).

Here, the issue is not prejudice or surprise—the third amended complaint maintained the same substantive claims the parties had been litigating for years, only adding information related to UESS’s revival to ensure that the proper party to pursue those claims was before the court. Rather, the Appellate Division holding rests on the more fundamental premise that when an appellate court has dismissed a complaint in its entirety, the trial court has no discretion to grant leave to amend that complaint under CPLR 3025 (b), even if the dismissal was without prejudice and not on the merits and the defect would be curable by amendment. In the Cicos’ view, the plaintiffs’ only option after the Appellate Division dismissal was to pursue their claims in a new action within six months under CPLR 205 (a).⁴ However, plaintiffs contend that under the circumstances of this case, the trial court also possessed discretion to grant their motion to amend in the original action under CPLR 3025 (b). We agree, and therefore reverse.

When an appellate court remits a case to the trial court, further proceedings in the trial court must be consistent with the appellate court remittitur (*see Sayre v People*, 128 NY 622, 622-623 [1891]; *In re Sanford Fork & Tool Co.*, 160 US 247, 255 [1895]; *see also Litchfield Constr. Co. v City of New York*, 219 App Div 369, 370 [1st Dept 1927] [“upon remittitur . . . judgment must be entered in strict accordance therewith”]). In

4. CPLR 205 (a), a saving statute, allows plaintiffs whose actions are terminated other than on the merits to refile even if the statute of limitations on the action has elapsed during the course of litigation. It states that when a cause of action is terminated not on the merits, a new action “upon the same transaction or occurrence” commenced within six months will be timely so long as the original action was timely (CPLR 205 [a]).

some cases, the only action consistent with the appellate court mandate is for the trial court to terminate the action. For example, if a complaint were dismissed with prejudice by the appellate court, it would be inconsistent with that order for the trial court to entertain a CPLR 3025 (b) motion.

Here, however, the Appellate Division dismissal of the second amended complaint due to lack of standing or capacity was without prejudice (*see Landau, P.C. v LaRossa, Mitchell & Ross*, 11 NY3d 8, 12-14 [2008]).⁵ The order contemplated that the company could “in theory, be revived,” but simply stated that Sirio SRL had done so improperly (181 AD3d at 427). Therefore, there is nothing in the Appellate Division’s order or opinion that would prevent plaintiffs from pursuing their claims after curing the standing or capacity issue.⁶

[1] The question on appeal, then, is whether the Appellate Division’s decision required the plaintiffs to commence a separate action instead of seeking leave to file an amended complaint. Whatever the answer to that question might be in a case in which no action remained between the parties in Supreme Court,⁷ here the action remained pending in Supreme Court because of the Cicos’ counterclaims. Therefore, Supreme Court retained control over the parties and continued to adjudicate claims related to the same transactions that formed the subject matter of the complaint. For that reason, the Ap-

5. Capacity “concerns a litigant’s power to appear and bring its grievance before the court” (*Community Bd. 7 of Borough of Manhattan v Schaffer*, 84 NY2d 148, 155 [1994]). By contrast, standing concerns whether the litigant “has a sufficiently cognizable stake in the outcome so as to ‘cast[] the dispute “in a form traditionally capable of judicial resolution” ’” (*id.* at 154-155, quoting *Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761, 772-773 [1991]). A company generally has standing to assert claims on its own behalf, but if it is defunct it may lack capacity to do so. Individual members of the company certainly have capacity to appear in court, but their standing to assert claims on behalf to the company may be questioned. Under New York law, dissolution of a corporation does not necessarily preclude individual standing to assert derivative claims (*see* Business Corporation Law § 1006 [b]; *Independent Inv. Protective League v Time, Inc.*, 50 NY2d 259, 264 [1980]).

6. The dissent argues that because the dismissal was for lack of standing, it could not be cured by amendment (dissenting op at 263-264). Assessing the legal effect of an action taken by members of a cancelled LLC would require analysis of the distinction between standing and capacity as well as relevant statutory and decisional law (*e.g.* Business Corporation Law § 1006; Del Code Ann title 6, § 18-1109 [c]; *Independent Inv. Protective League*, 50 NY2d at 264). Absent briefing and argument on these issues, we are not convinced that the defect here was consequential or incurable.

7. That question is not raised here and we express no opinion on it.

pellate Division order also did not render the case final for purposes of appealability, as no appeal to the Court of Appeals may be taken from an order which leaves claims pending in the action between the same parties (*see Burke v Crosson*, 85 NY2d 10, 15-16 [1995]).

Because the original action remained pending in Supreme Court even after the complaint was dismissed, Supreme Court retained the power to grant leave to plaintiffs to file another amended complaint. The mere fact that a complaint is dismissed by an appellate court does not generally imply that the trial court lacks such power. Indeed, we have regularly contemplated the possibility that plaintiffs might replead claims at the trial court after they are dismissed by our court (*e.g. A.J. Temple Marble & Tile v Union Carbide Marble Care*, 87 NY2d 574, 585 [1996]; *Abrams v Donati*, 66 NY2d 951, 953 [1985]; *Sanders v Schiffer*, 39 NY2d 727 [1976]). There is nothing particularly novel about repleading a dismissed complaint in Supreme Court to cure a defect discovered on appeal.

Although the Cicos argue that such amendment is possible only when leave to amend is expressly granted by the appellate court, we decline to read silence by the appellate court so broadly. There is no requirement that the appellate court specify the effect of a dismissal. Under CPLR 5013, dismissal before the close of the proponent's evidence is without prejudice unless the court specifies otherwise. Similarly here, although the appellate court may explicitly direct that leave to amend be granted, it is not required to do so in order to preserve the trial court's discretion to grant such leave.

The Cicos also advance a more technical argument—that where the entire complaint has been dismissed, granting leave to amend is not possible because there is no complaint remaining to amend. However, that position is at odds with the common practice of dismissing complaints with leave to amend.⁸ If, as the Cicos contend, a dismissed pleading no longer exists and cannot be amended, dismissal with leave to amend would not be possible. But appellate courts, not to mention trial courts, regularly dismiss complaints with leave to amend—the action remains pending and the amendment may be granted, notwithstanding the dismissal of the complaint (*see Sanders*, 39 NY2d at 729 [granting such disposition]; *Kelly v Overseas Invs.*, 18

8. For example, the original complaint in this case was dismissed by the trial court with leave to amend.

NY2d 622, 624 [1966] [same]). Because this disposition is consistent with the CPLR, we cannot agree with the dissent's analysis of the language of CPLR 3025 (dissenting op at 264).⁹

Our holding is consistent with the general discretion of the trial court to manage its docket in the interest of judicial economy (*see generally Landis v North American Co.*, 299 US 248, 254-255 [1936] [discussing “the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants”]). As Supreme Court observed, there is no reason to require the commencement of a new action, with the associated cost and inconvenience for both the parties and court, where the court already has jurisdiction over the parties in a case on the same subject matter. Here, for example, commencing a new action would have required Hague Convention service on parties in Italy at the time of a serious COVID-19 outbreak, for no apparent benefit. The negative practical consequences of depriving trial courts of their docket management powers further counsel against expounding additional requirements from the simple fact that a complaint has been dismissed.¹⁰ The dis-

9. Although we have no quarrel with the use of dictionaries as interpretive aids, the definitions relied on by the dissent provide no aid here. The dissent asserts that no amendment can be granted unless a complaint is “extant” (dissenting op at 264-265), but the only support it cites for that proposition is Black’s Law Dictionary, which does not say “extant,” but instead, as the very definitions quoted by the dissent say, requires only that the amended complaint “replaces an earlier pleading” or “rectif[ies] or make[s] right.” The idea that something that has ceased to exist cannot be replaced, rectified or made right is wholly novel: lost, stolen or destroyed goods can be replaced, rectified or made right. So too it is with legal doctrines or governments that cease to exist and later—sometimes centuries later—are replaced, rectified or made right.

We also clarify that any dictionary definition stating that amendments must be limited to “small changes” (dissenting op at 264) does not correctly state the law: amendments, even those that add entirely new claims, facts, legal theories, causes of action or parties should be granted freely so long as the adverse party is not prejudiced (*see Kimso Apartments*, 24 NY3d at 411 [liberal policy applies “even if the amendment substantially alters the theory of recovery”]; *Fahey v County of Ontario*, 44 NY2d 934 [1978] [allowing amendment to advance a statute of limitations defense which was dispositive of the action]; *Kelly*, 18 NY2d at 624 [1966] [allowing amendment to advance an entirely new legal theory]).

10. The dissent observes that, had Supreme Court dismissed the counterclaims before addressing the motion for leave to amend, “it would have lacked authority” to permit amendment, which is “not what the CPLR intends” because the result would be “controlled by administrative act rather than legal analysis or doctrine” (dissenting op at 267). But the CPLR is a set

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missal of the complaint by the Appellate Division did not deprive Supreme Court of its authority to consider an amended complaint that purportedly cured the issue.¹¹

III.

[2] The motion to amend was timely. “A claim asserted in an amended pleading is deemed to have been interposed at the time the claims in the original pleading were interposed, unless the original pleading does not give notice of the transactions, occurrences, or series of transactions or occurrences, to be proved pursuant to the amended pleading” (CPLR 203 [f]). The claims in the third amended complaint are the same as those in the second amended complaint, which Supreme Court found to be timely—the only difference between the complaints is the explanation of how the company was properly revived. Therefore, the claims in the third amended complaint were timely asserted under the standard for a motion to amend.

The Appellate Division also considered whether the claims would have been timely under CPLR 205 (a). Although CPLR 205 (a) is applicable only to new actions, we understand the concern that a motion to amend which would not have been timely as a new action under CPLR 205 (a) could be used to circumvent the six-month limit given by that statute. Therefore, in a situation like the one presented here, the CPLR 205 (a) time limit could serve as a guidepost to the issue of whether amendment would result in prejudice or surprise. But to be clear, a trial court might grant leave to amend even after the CPLR 205 (a) time limit without abusing its discretion.

In any case, the motion here was also made within the six-month time limit to bring a new action under CPLR 205 (a). The Appellate Division order dismissing the complaint was made on March 3, 2020. On March 20, 2020, Executive Order 202.8 was enacted and tolled all filing periods until November 3, 2020. The clock then ran until the motion for leave to amend was submitted on January 8, 2021 (*see Perez v Paramount Communications*, 92 NY2d 749, 755 [1999]). Subtracting the

of procedural rules, and Supreme Court has discretion as to the order in which it addresses matters before it, which may have practical, procedural and even substantive consequences for the parties.

11. We have considered the arguments of the parties regarding entry of judgment. Given that under the circumstances of this case entry of judgment is a ministerial act (*see* CPLR 5016 [c]), it is not relevant to our decision here.

tolling period, the motion to amend was filed well within the six months provided by CPLR 205 (a).

IV.

Because the dismissal of the complaint was without prejudice and other claims in the action remained pending, Supreme Court did not lack discretion to consider plaintiffs' motion to amend the complaint under CPLR 3025 (b). Accordingly, the order of the Appellate Division insofar as appealed from should be reversed, with costs, and case remitted to that Court for further proceedings in accordance with this opinion.

RIVERA, J. (dissenting). Previously in this litigation, the Appellate Division dismissed the second amended complaint in its entirety and held that the named company-plaintiff lacked standing and capacity to sue. After that dismissal, the company had only one recourse: commence a new action under CPLR 205 (a) based on the same transaction or occurrence, if, within that time, it acquired standing to sue. No new action was commenced and instead, plaintiff investors in the company—co-plaintiffs in the dismissed action—sought leave to amend the dismissed complaint because, according to plaintiffs, the company had, since dismissal, acquired standing by filing for a certificate of revival and certificate of good standing. The majority here reaches the astonishing conclusion that Supreme Court had authority to grant the motion, effectively circumventing both the Appellate Division's mandate to dismiss and the requirements of the CPLR. The majority's decision is wrong for several reasons. First, there was no lawful ground to grant leave to amend because the defect previously identified by the Appellate Division—that the company had no legal existence when the second amended complaint was filed—could not be cured retroactively. Second, because the Appellate Division dismissed the complaint in its entirety, there was no plaintiff's pleading to amend under CPLR 3025 (b). I dissent.

* * *

Plaintiffs are investors in named company-plaintiff Upper East Side Sites LLC (UESS or the company), organized under Delaware law. In 2016, plaintiffs jointly commenced an action against two individuals who they claim mismanaged UESS. After UESS defaulted on the action, Supreme Court granted leave for the then-remaining plaintiffs to file an amended derivative

complaint without UESS as a named party, which they did. Thereafter, Supreme Court partially granted the plaintiffs' motion to file a second amended complaint with UESS again as a named party on its two derivative claims, but rejected a direct fraud claim by the plaintiff investors. On appeal from that order, the Appellate Division in 2020 dismissed the second amended complaint in its entirety (181 AD3d 426 [1st Dept 2020]).

The Appellate Division concluded that UESS had no capacity or standing to sue because, at the time the second amended complaint was filed, Delaware had cancelled its certificate of formation and the certificate of revival obtained by one of the plaintiff investors was legally ineffective (*id.* at 426-427). The Court further concluded that, under the terms of the operating agreement, the plaintiff investors had no authority to act for UESS. "Thus, the Company may not sue as a direct plaintiff, and the members thereof may not bring derivative claims on its behalf" (*id.* at 427). Accordingly, the Court ordered that "[s]ince plaintiffs lack standing or capacity, this action should be dismissed" (*id.*).

Prior to the Appellate Division's dismissal, defendants filed an amended answer asserting two counterclaims for breach of the company operating agreement. After the Appellate Division issued its order, plaintiffs moved to dismiss the counterclaims, and while that motion was pending, moved in Supreme Court for leave to file a third amended complaint, arguing that a month after the Appellate Division dismissal another certificate of revival had been filed—now in accordance with Delaware law—and thus UESS was properly revived and had capacity to sue. Supreme Court granted leave to file a third amended complaint, opining that although a new action would be timely, "[i]t would make no sense, under the circumstances, for plaintiffs to have commenced another separate action under a different index number and then to have moved to consolidate it with this one when this one has always remained active and pending" (2021 NY Slip Op 33636[U], *1-2 [Sup Ct, NY County 2021]). In the same order, Supreme Court dismissed the counterclaims. Hence, the concerns animating Supreme Court's decision to grant leave to amend in order to avoid two actions and a motion to consolidate were illusory and unfounded (*id.* at *2).

On appeal from that order, the Appellate Division reasoned that because it dismissed all of the claims for lack of standing

before plaintiffs filed their motion to amend, “there was no action pending when plaintiffs moved for leave to file the third amended complaint. Thus, the trial court lacked any discretion or authority to grant plaintiffs such leave” (208 AD3d 99, 108 [1st Dept 2022]). Instead, “plaintiffs’ only remedy was to commence a new action, which they failed to do” (*id.*).

Although the majority reverses on the ground that the trial court had authority to grant leave to amend, we need not address that issue at all because there was no legal basis to grant plaintiffs’ motion in the first instance. Contrary to the plaintiffs’ assertion, they did not cure the lack of standing in the underlying action.¹

“[T]he decision whether to grant leave to amend a complaint is committed to the sound discretion of the court” (*Davis v South Nassau Communities Hosp.*, 26 NY3d 563, 580 [2015]; CPLR 3025 [b]). Generally, “leave to amend a pleading should be freely granted in the absence of prejudice to the nonmoving party where the amendment is not patently lacking in merit” (*id.*). It is axiomatic that no purpose is served by granting a motion to amend where the fatal defect in the pleading remains uncorrected. A trial court’s broad discretionary authority does not extend to a meritless motion. Here, in support of their motion to amend, plaintiffs claimed that they remedied the defect that was the basis for the 2020 Appellate Division dismissal when, *after* that dismissal, UESS properly filed a certificate of correction of the certificate of revival and a certificate of revival of a Delaware limited liability company.² But the Appellate Division’s conclusion that UESS lacked standing and capacity to sue was related temporally to the only pleading before that court—the second amended complaint. Unlike a pleading defect where a party fails to assert an existing fact that would have established standing, the defect here was legal, not factual, and related to the company’s prior status. The certificate issued after the 2020 dismissal could not retroactively provide UESS with standing to sue defendants; at

1. For purposes of this appeal, I assume that UESS was revived effective December 11, 2020, the date the certificate of revival was filed with the Delaware Secretary of State.

2. Plaintiffs have not argued on this appeal that the Appellate Division erroneously concluded its prior certificate of revival was ineffective. Therefore, I have no occasion to consider the propriety of that decision.

most, a newly-issued certificate could have revived UEES as of the effective date of the certificate's issuance and authorized UEES to sue in a future action. While a non-merits dismissal does not always foreclose an amendment to cure a pleading defect, the nature of the problem here—UEES's unrevived status due to the certificate signatory's lack of authority to represent the company at the time the second amended complaint was filed—could never be cured retroactively by obtaining a certificate after the Appellate Division's dismissal.³ Therefore, Supreme Court abused its discretion when it granted leave to amend a complaint without merit and the Appellate Division should be affirmed.

Putting aside the majority's erroneous implicit holding that Supreme Court decided that motion on a legally sound basis, the majority's express reasons for concluding that leave to amend was properly granted are based on a flawed interpretation of the CPLR and a misreading of the Appellate Division's mandate.

Under CPLR 3025 (a), a party may amend their pleading at any time by leave of court. However, in order to amend, there must actually be a pleading to amend, and it must be the movant's own pleading. Black's Law Dictionary defines a pleading as "[a] formal document in which a party to a legal proceeding (esp. a civil lawsuit) sets forth or responds to allegations, claims, denials, or defenses" (Black's Law Dictionary 1394 [11th ed 2019]). To "amend" means "[t]o correct or make usu[ally] small changes to (something written or spoken); to rectify or make right," and an "amended complaint" means "[a] complaint that modifies and replaces the original complaint by adding relevant matters that occurred before or at the time the action began" (*id.* at 101, 1395; *see also* Merriam-Webster.com Dictio-

3. The majority argues that "[a]ssessing the legal effect of an action taken by members of a cancelled LLC would require analysis of the distinction between standing and capacity as well as relevant statutory and decisional law," and concludes that without briefing and argument on those issues it cannot say the standing defect "was consequential or incurable" (majority op at 257 n 6). The majority chooses to ignore that Supreme Court recognized, over defendants' objection, the "certificates of correction and revival" in its order granting plaintiffs leave to amend (2021 NY Slip Op 33636[U], *2). And if plaintiffs did not cure the defect there is simply no legal basis to permit leave to amend. Thus, we are squarely presented with the question whether plaintiffs could retroactively cure their lack of standing by post-dismissal action.

nary, amend [<https://www.merriam-webster.com/dictionary/amend>] [defining “amend” as “to put right”].⁴ Similarly, an “amended pleading” is a “pleading that replaces an earlier pleading and that contains matters omitted from or not known at the time of the earlier pleading” (*id.* at 1395). Thus, by definition, there must be an extant pleading capable of amendment for an amendment to be effective.⁵ Here, once the Appellate Division dismissed the second amended complaint in its entirety, that pleading no longer had any legal significance; it simply ceased to exist as the plaintiffs’ statement of the causes of action against defendants. Put another way, when plaintiffs moved to file a third amended complaint, there was no complaint to amend.

The majority’s reversal here proceeds from two erroneous assumptions. First, that because the Appellate Division’s “order contemplated that the company could ‘in theory, be revived,’” but plaintiffs failed to effectively do so, the Appellate Division did not foreclose an amendment (majority op at 257). This is a misreading of the Appellate Division’s 2020 order, which stated that UESS could have been revived but that it never was (181 AD3d at 427). That clear pronouncement settled once and for all UESS’s status at the time the second amended complaint

4. The majority takes issue with my reference to Black’s Law Dictionary, but “dictionary definitions have traditionally been regarded as useful guideposts in ascertaining the meaning of a word or phrase” (*Matter of Village of Chestnut Ridge v Howard*, 92 NY2d 718, 723 [1999]). Indeed, it is a frequent and long-standing practice of members of the judiciary, including those in the majority here, to use dictionaries—legal and otherwise—to interpret the law (see e.g. *Matter of Avella v City of New York*, 29 NY3d 425, 435 [2017, Wilson, J.]; *Consolidated Rest. Op., Inc. v Westport Ins. Co.*, 41 NY3d 415, 427-428 [Feb. 15, 2024, Halligan, J.]; *Anderson v Commack Fire Dist.*, 39 NY3d 495, 504 [2023, Cannataro, J.]; *Nitkewicz v Lincoln Life & Annuity Co. of N.Y.*, 40 NY3d 349, 355 [2023, Singas, J.]). The majority also takes issue with Black’s Law Dictionary’s reference to “small changes” in one of its definitions of “amend” (majority op at 259 n 9), but conveniently ignores the complete dictionary reference: “amend” also means “to rectify or make right,” and an “amended complaint” “modifies and replaces the original complaint.” There is no question that these definitions support an interpretation that an amended pleading can “add entirely new claims, facts, legal theories, [or] causes of action or parties” (*id.*). The definitions do not support the majority’s view that changes can be made to a pleading that has been completely removed from the action by dismissal.

5. The majority disagrees with this proposition because the word “extant” does not appear in any of the relevant definitions (majority op at 259 n 9). But the only logical interpretation of the cited definitions requires an extant pleading; if there is no pleading in existence, then there can be nothing to “rectify or make right,” and nothing that the amended complaint “modifies and replaces.”

was filed. The Appellate Division's order cannot reasonably be understood, as the majority suggests, to have anticipated that UESS could, by some future act, reach back years to a date when UESS did not exist as a legal entity under the laws of Delaware and retroactively revive itself. Even if there were any conceivable doubt on this point, the Appellate Division's 2022 opinion and order, now before us on this appeal, laid it to rest by characterizing its 2020 order as an "outright dismissal of the claims," which "was binding on the parties," and observing that its "dismissal presented a unique procedural scenario that deprived Supreme Court of discretion to grant leave to amend the second amended complaint" (208 AD3d at 108). Moreover, the Court also reaffirmed its commitment to "the basic principle that an order of the Appellate Division unconditionally dismissing a complaint is a clear and unequivocal directive that the case is no longer active and pending" (*id.* at 110). Supreme Court could not ignore that mandate by allowing plaintiffs to amend a dismissed complaint.⁶

However, there was a path available to plaintiffs to pursue their claims. With the new certificate of revival in hand, plaintiffs could have filed a new action pursuant to CPLR 205 (a), which permits commencement of a new action based upon the same transaction or occurrence or series of such within six

6. The majority does not address plaintiffs' principal argument that, under *Rudiger v Coleman* (228 NY 225 [1920]), Supreme Court complied with the Appellate Division's mandate. Regardless, plaintiffs' reliance was misplaced. *Rudiger* involved a land dispute where ultimately this Court remitted to the trial court to enter judgment to direct reconveyance of the property, reassignment of the subject contract and an accounting for rents collected by the defendants (*id.* at 230). The defendants argued that it was impossible to comply with the decree of reconveyance because during the pendency of the appeal, part of the land had been condemned by New York City, and the defendants had taken certain other actions on the land (*id.* at 231). Special Term entered a new interlocutory judgment to adjust for the changed conditions, and this Court upheld that judgment as a proper exercise of the lower court's power to adapt the form and measure of relief to the exigencies of new conditions (*id.* at 233). The adaptation was "not nullification, but enforcement" (*id.*). *Rudiger* stands for the proposition that, upon a remittal from an appellate court, the lower court may fashion an appropriate remedy to comply with the remittal order based on changed circumstances of which the appellate court could not have been aware before remittal. Here, the ground for the 2020 dismissal of the second amended complaint was an ineffective attempt to revive UESS with a certificate obtained by someone lacking authority to act for the company. The post-dismissal certificate of revival filing in Delaware does not constitute a change in circumstances of which the Appellate Division was unaware at the time, but rather a response to the defect it identified that could provide standing in a future action.

months after the termination of an action for a non-merits ground like lack of standing. Plaintiffs did not avail themselves of that saving statute.⁷ Despite the majority's decision today, CPLR 3025 (b) should not be understood by practitioners as a convenient replacement for CPLR 205 (a). Indeed, reliance upon CPLR 3025 (b) is a high-risk venture, as a court may deny leave to amend after the deadline for a new action under CPLR 205 (a) has passed.

The majority's second erroneous assumption is that, because of defendants' counterclaims, "the original action remained pending in Supreme Court even after the complaint was dismissed" (majority op at 258). Though it does not say so expressly, the logical conclusion of the majority's holding is that revival of a complaint via leave to amend is possible only in circumstances where counterclaims are pending before the trial court at the time the plaintiff seeks leave to amend. The majority stops short of endorsing the far more dubious proposition that a trial court has the power to revive a complaint where there is no longer an action before it, all claims having been dismissed or dismissal affirmed by an appellate court (majority op at 257 & n 7).

In any event, this procedural "hook" fails to hold up because Supreme Court disposed of the defendants' counterclaims in the same judicial order in which it granted plaintiffs' motion for leave to amend. Under the majority's view, if Supreme Court had first signed a separate order dismissing the counterclaims, it would have lacked authority to issue another order permitting amendment. That change in outcome, controlled by administrative act rather than legal analysis or doctrine, is not what the CPLR intends. No matter how the majority characterizes it, the procedural posture did not change the fact that

7. Any practical difficulties in filing that action were no greater than for any other litigant during the same period. The majority points to the inconvenience that filing a new action would pose to plaintiffs here, namely, that "a new action would have required Hague Convention service on parties in Italy at the time of a serious COVID-19 outbreak" (majority op at 259). But it was only one defendant, Carla Cico, whom the plaintiffs believed was residing in Italy and plaintiffs make no assertion that they could not seek alternative service. The other defendant, Benedetto Cico, resided in California, which, like New York, had extended filing deadlines in response to the pandemic (see Blaine Corren, *Judicial Council Revises Emergency Rule on Statutes of Limitations in Civil Cases*, California Courts Newsroom [May 29, 2020], available at <https://newsroom.courts.ca.gov/news/judicial-council-revises-emergency-rule-statutes-limitations-civil-cases> [accessed Mar. 4, 2024]).

there was no existing pleading interposed by the plaintiffs to be amended. The only pleading in the action was the defendants' amended answers which included the counterclaims. Plaintiffs could have responded to the counterclaims, but they could not have asserted a counterclaim in their reply to the counterclaims (1PT1 West's McKinney's Forms Civil Practice Law and Rules § 1:2 [Feb. 2024 update] ["(I)f plaintiff has a counterclaim to one of defendant's counterclaims, plaintiff may not assert that counter-counterclaim in a reply. Rather, plaintiff must amend the complaint"], citing CPLR 3011). Thus, no plaintiff pleading was before the trial court.

The majority doubles down, contending that "[t]here is nothing particularly novel about repleading a dismissed complaint in Supreme Court to cure a defect discovered on appeal" (majority op at 258). But this would be true if the defect can be cured by future action and the appellate court does not dismiss the entire complaint. Neither of those circumstances exist here.⁸

The fact that the Appellate Division's dismissal for lack of standing is not on the merits and thus generally without prejudice is not in dispute, nor do either of these unexceptional observations aid the majority. The dismissal had consequences for plaintiffs beyond a rejection of their legal argument, because the grounds for dismissal limited the plaintiffs' litigation strategy moving forward. The majority confuses a non-merits dismissal without prejudice to amend with the class of dismissal here, which was without prejudice *to file a new action* (see 73A NY Jur 2d, Judgments § 414 ["A judgment of dismissal that recites that it is rendered without prejudice does not operate as a bar precluding the plaintiff from maintaining another action upon the same cause of action"]⁹). Examples of the former include cases, like those cited by the majority where

8. The majority's citation to CPLR 5013 is curious and adds nothing to its analysis. That section simply states that "[a] judgment dismissing a cause of action before the close of the proponent's evidence is not a dismissal on the merits unless it specifies otherwise, but a judgment dismissing a cause of action after the close of the proponent's evidence is a dismissal on the merits unless it specifies otherwise." There is no dispute that the dismissal here was not on the merits or that a party could seek to amend a pleading before its dismissal. Section 5013 does not stand for the proposition, as suggested by the majority, that all dismissals are without prejudice unless the court says so expressly (majority op at 258).

9. The "common practice of dismissing complaints with leave to amend" is of the majority's own making (see majority op at 258). It is also a mischaracterization of a court's authority to dismiss with leave *to replead* or to stay a

(n. cont'd)

the complaint fails to state a cause of action due to some missing factual assertion (majority op at 258, citing *A.J. Temple Marble & Tile v Union Carbide Marble Care*, 87 NY2d 574, 585 [1996]; *Sanders v Schiffer*, 39 NY2d 727 [1976]). In contrast, the Appellate Division's dismissal on standing grounds requires that the party's status be corrected. If that correction has only future effect, as here, the party cannot retroactively establish standing by amendment of a dismissed complaint. A trial court's power to manage its docket cannot supersede the commands of an appellate court's mandate and the CPLR.

An affirmance here would not, as the majority claims, "depriv[e] trial courts of their docket management powers" (majority op at 259). They retain that power so long as they comply with appellate court mandates upon remittal and render orders in accordance with the CPLR. Here, Supreme Court acknowledged that, as a legal matter, plaintiffs could have filed a new action under CPLR 205 (a), but the court simply thought it better to avoid that process and allow plaintiffs to amend. However, the Appellate Division mandate left no discretion to the trial court and thus an amendment was not a legally viable option.

The Appellate Division correctly held that Supreme Court had no authority to grant plaintiffs' motion. I would affirm.

Judges SINGAS, CANNATARO and HALLIGAN concur. Judge RIVERA dissents and votes to affirm in an opinion, in which Judges GARCIA and TROUTMAN concur.

Order insofar as appealed from reversed, with costs, and case remitted to the Appellate Division, First Department, for further proceedings in accordance with the opinion herein.

proceeding so that a party may cure a nonjurisdictional defect. With respect to the majority's observation that the original complaint in this litigation was dismissed with leave to amend, Supreme Court made clear that the plaintiffs were granted leave to timely replead, and if they failed to do so, the court would then issue an order dismissing the action with prejudice. That is not what occurred here, because the Appellate Division dismissed the complaint for lack of standing, leaving no recourse to replead but only to re-file a new action.

[244 NE3d 520, 219 NYS3d 218]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JASON
BROWN, Appellant.

Argued April 17, 2024; decided May 21, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered June 30, 2023. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, Bronx County (Cori Weston, J., at original suppression hearing; Jeffrey Rosenbluth, J., on motion to reopen suppression hearing; Linda Poust Lopez, J., at reopened suppression hearing, plea and sentence), which had convicted defendant, upon a plea of guilty, of disorderly conduct.

People v Brown, 79 Misc 3d 127(A), 2023 NY Slip Op 50645(U), reversed.

HEADNOTES

Crimes — Unlawful Search and Seizure — Traffic Stop — Community Caretaking Doctrine

1. Police may stop an automobile in an exercise of their community caretaking function if there are specific, objective, and articulable facts that would lead a reasonable officer to conclude that an occupant of the vehicle is in need of assistance, and the police intrusion is narrowly tailored to address the perceived need for assistance. An officer's conclusory testimony that the stop was motivated solely by concern for the occupants, standing alone, cannot satisfy the first prong. There must be an objective basis to support the officer's claimed belief. With respect to the second prong, the suppression court should consider whether the police intrusion reasonably matches the problem at hand or if there are less intrusive alternatives for addressing the concern. Thus, if a vehicle stop is justified based on specific, objective, and articulable facts that would lead a reasonable officer to conclude that an occupant of the vehicle is in need of assistance, but the officers thereafter determine that no aid is needed, any further police action must be evaluated under the framework applicable to officers acting in their criminal law enforcement capacity. For an automobile stop, this means that any continuation of the stop beyond what is necessary to ascertain whether an occupant needs aid requires at least reasonable suspicion of criminal activity. Community caretaking permits only the use of evidence duly discovered in the course of advancing the caretaking function at hand. Further police intrusion must be constitutionally justified.

Crimes — Unlawful Search and Seizure — Traffic Stop — Stop of Vehicle Based on Observation of Passenger Door Opening and Closing — Community Caretaking Doctrine

2. In a criminal prosecution, the stop of a vehicle driven by defendant after a police officer observed the passenger side door open and close "quickly" and

“forcefully” while the car was in motion was not justified under the community caretaking doctrine, where the officer’s testimony did not establish specific, objective, and articulable facts that would lead a reasonable officer to conclude that an occupant of the vehicle was in need of assistance. The sole basis for the officer’s belief that an occupant of the vehicle might need aid was his observation of the front passenger door opening and closing while the vehicle was in motion. He testified that he did not see or hear anything else that indicated someone was in distress, nor did the door repeatedly open and close or remain open for an extended period of time, which might have suggested that there was a safety or equipment problem. The observation of the car door opening and closing once while the vehicle was in motion, standing alone, would not lead a reasonable officer to conclude that an occupant of the vehicle was in need of aid. There are many innocuous reasons why a car door might open and close while a vehicle is in motion.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Searches and Seizures §§ 12–14, 129–131.
CARMODY-WAIT 2d Search and Seizure §§ 173:20–173:23,
173:26, 173:351, 173:352.
LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 3.7.
NY JUR 2d Criminal Law: Procedure §§ 219, 220, 511.

ANNOTATION REFERENCE

See ALR Index under Probable Cause; Search and Seizure.

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POINTS OF COUNSEL

Twyla Carter, The Legal Aid Society, New York City (Harold V. Ferguson, Jr. of counsel), for appellant. The Appellate Term erred when it held that the warrantless police stop of Jason Brown’s private motor vehicle was permissible under the public safety exception to the Fourth Amendment because the intruding officer was acting in his law enforcement capacity when he stopped the car, and he lacked either probable cause that Jason Brown had committed a traffic violation or reasonable suspicion that he was committing a crime (US Const Amends IV, XIV; NY Const, art I, § 12). (*People v Cantor*, 36 NY2d 106; *People v Dodt*, 61 NY2d 408; *People v Misuis*, 47 NY2d 979; *People v Hinshaw*, 35 NY3d 427; *People v Spencer*, 84 NY2d 749; *People v Robinson*, 97 NY2d 341; *People v Sobot-*

ker, 43 NY2d 559; *People v Concepcion*, 17 NY3d 192; *People v De Bour*, 40 NY2d 210.)

Darcel D. Clark, District Attorney, Bronx (*Saad Siddiqui*, *Yael V. Levy* and *Vincent Rivellese* of counsel), for respondent. When exercising their “community caretaking” function, police may stop a car without any suspicion of criminality if they have an objectively reasonable public safety concern and the intrusion is not overly burdensome. (*People v De Bour*, 40 NY2d 210; *People v Gallmon*, 19 NY2d 389; *Cady v Dombrowski*, 413 US 433; *People v Bryant*, 92 NY2d 216; *People v Hollman*, 79 NY2d 181; *People v Hinshaw*, 35 NY3d 427; *People v Bennett*, 70 NY2d 891; *South Dakota v Opperman*, 428 US 364; *Colorado v Bertine*, 479 US 367; *United States v Lyle*, 919 F3d 716.)

OPINION OF THE COURT

TROUTMAN, J.

We are asked to decide whether the police lawfully stopped defendant’s vehicle while acting in their role of assisting those in need of aid. Although we recognize a “community caretaking” function pursuant to which, in certain circumstances, police may stop a moving vehicle, we nevertheless conclude that under the circumstances here, the stop of defendant’s vehicle was unlawful.

I.

In May of 2017, police officers stopped a vehicle driven by defendant. When the officers approached the car, they smelled marijuana, and they asked defendant to exit the vehicle. Thereafter, defendant admitted to possession of ecstasy. Defendant was charged with criminal possession of a controlled substance in the seventh degree. He moved to suppress his statement and the physical evidence recovered.

During the suppression hearing, Police Officer Harris Haskovic testified that while he and his partner were traveling in an unmarked vehicle, he observed the passenger side door of the vehicle in front of them open and close “quickly” and “forcefully” while the car was in motion. Haskovic thought this was “strange” and believed that it was possible that “somebody needed some sort of aid.” He then pulled the vehicle over.

Officer Haskovic and his partner approached the vehicle. Upon doing so, Haskovic noticed an odor of marijuana coming from the vehicle. Haskovic asked defendant, who was driving, for his license and registration, observing that defendant ap-

peared “very nervous.” Two passengers were inside the vehicle: one in the front passenger seat and another in the rear seat. Haskovic asked defendant to step out of the vehicle and if he had “anything on him.” Defendant said he had “some E, called it his party drug.” Defendant was arrested, after which marijuana and more ecstasy were found in the car.

Haskovic estimated that defendant’s vehicle was traveling 20 or 25 miles per hour when the front passenger door opened and closed, which was not above the speed limit. Haskovic could not observe anything happening inside the car, he did not hear any screaming or calls for help, and he conceded that he did not observe the vehicle commit any traffic infractions that could have provided probable cause for the stop.

After the suppression hearing, the People argued that Haskovic’s stop of the vehicle was justified by his observation of the door opening and closing while the car was in motion, which led to his reasonable concern that someone in the vehicle needed assistance. The suppression court agreed. The court concluded that at the time of the stop, defendant had not committed a traffic infraction, nor did police have reasonable suspicion of criminal activity. The court held, however, that it was reasonable for Haskovic to be concerned for the safety of the passenger after he saw the vehicle door open and close while the vehicle was in motion, and this safety concern justified the stop.¹ Defendant thereafter pleaded guilty to disorderly conduct.

On appeal, the Appellate Term affirmed the judgment, holding that “the stop of the vehicle was justified based on considerations of public safety” (79 Misc 3d 127[A], 2023 NY Slip Op 50645[U], *1 [App Term, 1st Dept 2023]). A Judge of this Court granted defendant leave to appeal (40 NY3d 996 [2023]). We now reverse.

II.

A.

The parties here agree that police may act in an exercise of their “community caretaking” duty to assist people in need, and that the community caretaking doctrine allows police to stop a moving vehicle. The parties also largely—though not

1. The court subsequently reopened the suppression hearing, for reasons not relevant here, and adhered to its prior decision.

entirely—agree on the standard we should adopt for this community caretaking doctrine. They urge this Court for the most part to adopt the standard articulated by the Pennsylvania Supreme Court in *Commonwealth v Livingstone* (644 Pa 27, 174 A3d 609 [2017]).

We have not yet considered whether the community caretaking doctrine permits the stop of a vehicle. This Court has long recognized, however, that the “role of the police in our society is a multifaceted one” and that the police have an “obligation . . . to render assistance to those in distress” (*People v De Bour*, 40 NY2d 210, 218 [1976]). When considering the issue of whether an emergency justified a warrantless entry into a residence, we have stated that the police “are required to serve the community in innumerable ways, from pursuing criminals to rescuing treed cats” (*People v Molnar*, 98 NY2d 328, 331 [2002]; see also *People v Gallmon*, 19 NY2d 389, 394 [1967]).² And we have acknowledged that the police may impound a car “when necessary to protect public safety” pursuant to their community caretaking role (*People v Hinshaw*, 35 NY3d 427, 438 [2020]; see also *People v Tardi*, 28 NY3d 1077, 1078 [2016]). Other New York courts have also considered whether police stops of automobiles based on public safety concerns were lawful (see e.g. *People v Scottburgh*, 71 Misc 3d 131[A], 2021 NY Slip Op 50316[U], *2-3 [App Term, 2d Dept, 9th & 10th Jud Dists 2021], citing *People v Fenti*, 57 Misc 3d 471 [Penfield Just Ct 2017], and *People v Del Rio*, 61 Misc 3d 944 [Middletown City Court 2018]).

Many other state high courts have recognized a community caretaking doctrine, sometimes phrased as a “public safety” or “public servant” doctrine, that allows police intrusion based on a reasonable belief that someone is in need of aid (see e.g. *State v Short Bull*, 2019 SD 28, ¶¶ 11-21, 928 NW2d 473, 476-478 [2019]; *Byram v State*, 510 SW3d 918, 922-925 [Tex Crim App 2017]; *State v Scriven*, 226 NJ 20, 38-40, 140 A3d 535, 545-546 [2016]; *State v McCormick*, 494 SW3d 673, 686-688 [Tenn 2016]; *State v Anderson*, 2015 UT 90, ¶¶ 25-30, 362 P3d 1232, 1239-1240 [Utah 2015]; *State v Hinton*, 198 Vt 167, 170-173, 112 A3d 770, 773-775 [2014]; *State v Kurth*, 813 NW2d 270, 277-279 [Iowa 2012]; *Trejo v State*, 2008-CT-02133-SCT, ¶¶ 14-

2. The People do not contend that the emergency exception to the warrant requirement has any application here (see generally *Molnar*, 98 NY2d at 332).

18, 76 So 3d 684, 689-690 [Miss 2011]; *People v McDonough*, 239 Ill 2d 260, 268-272, 940 NE2d 1100, 1107-1109 [2010]; *State v Kramer*, 315 Wis 2d 414, 425-440, 759 NW2d 598, 604-612 [Wis 2009]; *Williams v State*, 962 A2d 210, 216-222 [Del 2008]; *State v Bakewell*, 273 Neb 372, 375-377, 730 NW2d 335, 338 [2007]; *State v Rincon*, 122 Nev 1170, 1175-1176, 147 P3d 233, 237 [2006]; *State v Acrey*, 148 Wash 2d 738, 748-751, 64 P3d 594, 599-600 [2003]; *State v Boyle*, 148 NH 306, 307-309, 807 A2d 1234, 1236-1237 [2002]; *State v Lovegren*, 310 Mont 358, 363-367, 51 P3d 471, 473-476 [2002]; *see also Livingstone*, 644 Pa at 58-69, 174 A3d at 627-634 [collecting and discussing cases]). The impetus for allowing the police to act in such scenarios is a recognition that police are often called to render assistance outside of their criminal investigation role and that police officers should be encouraged to render aid to citizens in distress (*see Livingstone*, 644 Pa at 60-61, 174 A3d at 628-629).

The United States Supreme Court has also recognized community caretaking as a valid function of the police, albeit in a more limited context than earlier cases from other jurisdictions might suggest. The Supreme Court has stated that “[b]ecause of the extensive regulation of motor vehicles and traffic, and also because of the frequency with which a vehicle can become disabled or involved in an accident on public highways,” police officers often engage in “community caretaking functions” with respect to automobiles, “totally divorced from the detection, investigation, or acquisition of evidence relating to the violation of a criminal statute” (*Cady v Dombrowski*, 413 US 433, 441 [1973]). *Cady* held that the warrantless police search of an impounded vehicle was lawful (*see id.* at 442-448).

Recently, the Supreme Court clarified that *Cady* and the community caretaking doctrine has no application to warrantless searches and seizures inside the home (*see Caniglia v Strom*, 593 US 194 [2021]). Although emergencies and exigent circumstances may justify warrantless entry into the home, the Court held that the community caretaking doctrine does not (*see id.* at 197-199). The Court reasoned that its opinion in *Cady* emphasized the distinction between homes and vehicles, and the Court observed that *Cady*’s “recognition that police officers perform many civic tasks in modern society was just that—a recognition that these tasks exist, and not an open-ended license to perform them anywhere” (*id.* at 199). The Court concluded that “[w]hat is reasonable for vehicles is different from what is reasonable for homes” (*id.*).

In the wake of *Caniglia* and its focus on the home, one of the federal Circuit Courts of Appeal to address the question concluded that *Caniglia* has no impact on the community caretaking doctrine as applied to vehicles (*see United States v Treisman*, 71 F4th 225, 232 [4th Cir 2023]; *see also e.g. Taylor v State*, 326 So 3d 115, 117 n 1 [Fla Dist Ct App 2021]; Comment, *Caniglia v Strom*, 135 Harvard L Rev 371, 375-376 [2021] [“The Court’s doctrinal answer to the community caretaking exception’s scope was relatively unremarkable: it resolved a circuit split in favor of precedent that acknowledges the special status of private homes in Fourth Amendment jurisprudence”]). Others have concluded that *Caniglia* should serve as a reminder that the community caretaking doctrine cannot be used to “overrun core Fourth Amendment protections” and “permits only the use of evidence duly discovered in the course of advancing the caretaking function at hand” (*United States v Morgan*, 71 F4th 540, 545 [6th Cir 2023]). “Community-caretaking actions, in short, are permitted when reasonable but only when reasonable” (*id.* at 546).

B.

In light of our previous recognition that police officers are often called upon to provide “historically grounded, and usually welcome” aid to those in distress (*see id.* at 545), we, like many other state high courts, recognize a community caretaking doctrine that may allow police to stop a moving vehicle. We nevertheless acknowledge, as many of our sister courts have, the risk that the community caretaking doctrine may be used by police to circumvent the federal and state constitutional rights afforded to citizens to protect them from unreasonable and unwarranted police intrusions (*see id.* [care must be taken “not to allow this historically grounded, and usually welcome, explanation for police work to overrun core Fourth Amendment protections”]). The standard we adopt for community caretaking in this context must weigh both of those concerns.

[1] We conclude that the police may stop an automobile in an exercise of their community caretaking function if two criteria exist. First, the officers must point to specific, objective, and articulable facts that would lead a reasonable officer to conclude that an occupant of the vehicle is in need of assistance. Second, the police intrusion must be narrowly tailored to address the perceived need for assistance. Once assistance has been provided and the peril mitigated, or the perceived

need for assistance has been dispelled, any further police action must be justified under the Fourth Amendment and article I, § 12 of the State Constitution.

With respect to the first prong, we agree with both parties and the *Livingstone* court that “a critical component of the community caretaking doctrine is that the police officer’s action be based on specific and articulable facts which, viewed objectively and independent of any law enforcement concerns, would suggest to a reasonable officer that assistance is needed” (*Livingstone*, 644 Pa at 72, 174 A3d at 636). An officer’s conclusory testimony that the stop was motivated solely by concern for the occupants, standing alone, cannot satisfy the first prong. There must be an objective basis to support the officer’s claimed belief.³

We disagree with defendant, however, that “an officer’s contemporaneous subjective concerns regarding criminal activity will preclude a finding that a seizure is valid under the community caretaking function” (*id.*), for two reasons. First, our overall search and seizure jurisprudence generally assesses the constitutionality of police action based on the objective standard of reasonableness, acknowledging the “difficulty, if not futility, of basing the constitutional validity of searches or seizures on judicial determinations of the subjective motivation of police officers” (*People v Garvin*, 30 NY3d 174, 186 [2017] [internal quotation marks omitted]).

Second, a vehicle occupant may require assistance *because of* criminal activity, and a police officer may consider that as one possible cause of the need for assistance. We should not deter police officers from acting in such circumstances. As the Wisconsin Supreme Court adeptly explained:

“In regard to our community caretaker analysis,
the nature of a police officer’s work is multifaceted.

3. The concurrence argues that because Haskovic admitted on cross-examination that “potential criminal activity factored into [his] decision to stop” the vehicle, we need not consider the community caretaking doctrine (concurring op at 285-286). But Haskovic’s testimony was consistent with his expressed concern about passenger safety. Haskovic was asked, “So—and the fact of the matter is, the car wasn’t being stopped based on the fact that you perceived that to be a traffic infraction, it was stopped for other reasons, like safety, where you thought something illegal might be going on; correct?” Haskovic responded, “Correct.” In any event, as the concurrence acknowledges, the standard for determining whether a stop was lawful must be based on objective reasonableness rather than the subjective belief of the officer.

An officer is charged with enforcing the law, but he or she also serves as a necessary community caretaker when the officer discovers a member of the public who is in need of assistance. As an officer goes about his or her duties, an officer cannot always ascertain which hat the officer will wear—his law enforcement hat or her community caretaker hat. For example, an officer may come upon what appears to be a stalled vehicle and decide to investigate to determine if assistance is needed; however, the investigation may show that a crime is being committed within the vehicle. Therefore, from the point of view of the officer, he or she must be prepared for either eventuality as the vehicle is approached. Accordingly, the officer may have law enforcement concerns, even when the officer has an objectively reasonable basis for performing a community caretaker function.” (*Kramer*, 315 Wis 2d at 433-434, 759 NW2d at 608).

To provide another example, in *Byram*, a police officer saw a passenger slumped over and unconscious inside a vehicle, and the driver did not respond to audible inquiries regarding the passenger’s well-being before driving away (see *Byram*, 510 SW3d at 920). The court observed that the officer might have reasonably suspected that the passenger was dangerously intoxicated, experiencing a medical emergency, or perhaps being transported somewhere by the driver without her knowledge and against her will (see *id.* at 924-925). Although only the last possibility would suggest criminality, the officer was not prohibited from stopping the moving vehicle to check on the passenger’s condition simply because that possibility might have entered the officer’s mind.

We therefore agree with the *Livingstone* court that “so long as a police officer is able to point to specific, objective, and articulable facts which, standing alone, reasonably would suggest that . . . assistance is necessary, a coinciding subjective law enforcement concern by the officer will not negate the validity of that [officer’s actions] under the . . . community caretaking doctrine” (*Livingstone*, 644 Pa at 74, 174 A3d at 637). In other words, “[t]he circumstances should . . . make clear that the police would have been wholly justified in pursuing the community caretaking end even in the absence of a law enforcement objective” (Debra Livingston, *Police, Community Caretak-*

ing, and the Fourth Amendment, 1998 U Chi Legal Forum [Issue 1] 261, 303 [1998]).

With respect to the second prong—that the police intrusion must be narrowly tailored to address the perceived need for assistance—the suppression court should consider whether the police intrusion “reasonably match[es] the problem at hand” or if there are less intrusive alternatives for addressing the concern (*Morgan*, 71 F4th at 545-546). In other words, “the level of intrusion must be commensurate with the perceived need for assistance” (*Livingstone*, 644 Pa at 74, 174 A3d at 637). Once “‘the officer is assured that the citizen is not in peril or is no longer in need of assistance or that the peril has been mitigated, then any actions beyond that constitute a seizure’” implicating the Fourth Amendment and article I, § 12 of the State Constitution (*Livingstone*, 644 Pa at 74-75, 174 A3d at 637, quoting *Lovegren*, 310 Mont at 366, 51 P3d at 476).

Thus, if a vehicle stop is justified based on specific, objective, and articulable facts that would lead a reasonable officer to conclude that an occupant of the vehicle is in need of assistance, but the officers thereafter determine that no aid is needed, any further police action must be evaluated under the framework applicable to officers acting “in their criminal law enforcement capacity” (see generally *People v Hollman*, 79 NY2d 181, 184-185 [1992]). For an automobile stop, this means that any continuation of the stop beyond what is necessary to ascertain whether an occupant needs aid requires at least reasonable suspicion of criminal activity (see *Rodriguez v United States*, 575 US 348, 350, 354-355 [2015]; *People v Banks*, 85 NY2d 558, 562 [1995]). “[C]ommunity caretaking permits only the use of evidence duly discovered in the course of advancing the caretaking function at hand” (*Morgan*, 71 F4th at 545).⁴ Further police intrusion must be constitutionally justified.

4. We disagree with the concurrence that the exclusionary rule should be applied to any evidence recovered during the course of a valid community caretaking stop (concurring op at 289-291). The exclusionary rule “prohibits the use of evidence obtained in violation of an accused’s Fourth Amendment rights in a criminal proceeding” (*People v Young*, 55 NY2d 419, 424 [1982]; see also *People v Arnau*, 58 NY2d 27, 32 [1982] [(E)vidence which is obtained as a result of illegal police activity may not be used against a defendant at (a) criminal trial]). Where the automobile stop is lawful, and therefore the defendant’s constitutional rights have not been violated, the exclusionary rule is inapplicable (see *Livingston, Police, Community Caretaking, and the Fourth Amendment*, 1998 U Chi Legal Forum at 305 [“The Court in the Fourth Amendment context, however, has never held that evidentiary exclusion is proper in the absence of a constitutional violation”]).

We respectfully disagree with our concurring colleagues that we “needlessly” opine on the community caretaking doctrine. Although the lower courts did not use the phrase “community caretaking,” they both held that the stop of defendant’s vehicle was justified based on concerns of public safety (*see* 2023 NY Slip Op 50645[U], *1), and both parties on this appeal expressly ask the Court to consider the community caretaking doctrine and provide guidance on its parameters. As noted above, other New York courts have considered stops of moving vehicles based on community caretaking (*see Scottburgh*, 2021 NY Slip Op 50316[U], *2; *Del Rio*, 61 Misc 3d at 951; *Fenti*, 57 Misc 3d at 475-480). Whether phrased as a “public servant,” “public safety,” or “community caretaking” doctrine, courts in this state and many others have considered and will continue to consider if police may stop moving vehicles based on safety concerns. If we were to ignore the parties’ arguments on this appeal, we would be abdicating our role as the State’s highest court to provide needed guidance to lower courts on how they should assess police conduct in these circumstances. To hold that the stop violated defendant’s constitutional rights, without explaining why, would engender confusion and would leave police and lower courts to supply their own standards as to whether the stop was lawful. Avoiding the issue would not prevent lower courts from assessing whether public safety concerns justified an automobile stop, but rather would simply leave them without a clear standard to render that decision.

The concurrence suggests that no recognition of the community caretaking doctrine is necessary because the police already have the authority to respond to “true emergencies” (concurring op at 288). The emergency doctrine, however, allows police to act only to “assist persons who are seriously injured or threatened with such injury” (*Brigham City v Stuart*, 547 US 398, 403 [2006]; *see Caniglia*, 593 US at 198; *Molnar*, 98 NY2d at 332 [(T)he police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property” (internal quotation marks omitted)]). The community caretaking doctrine, by contrast, “also encompasses far less time-sensitive concerns where neither persons nor property would be placed in substantial jeopardy by failing to act immediately” (Michael R. Dimino, Sr., *Police Paternalism: Community Caretaking, Assistance Searches, and Fourth Amendment Reasonableness*, 66 Wash & Lee L Rev 1485, 1506 [2009]), and “the

distress exhibited by the individual need not suggest harm dire enough to trigger the emergency aid doctrine” (*Byram*, 510 SW3d at 923). For example, the community caretaking doctrine has been held to justify the stop of a moving vehicle where a passenger appears unconscious and possibly in need of medical assistance but not necessarily in imminent danger (*see id.* at 924-925); where police stop motorists to warn of a downed tree (*see Hinton*, 198 Vt at 173, 112 A3d at 775); and where a passenger appears to be flagging the police officer for assistance (*see State v Rohde*, 22 Neb App 926, 942-943, 864 NW2d 704, 715 [2015]).

We recognize, however, that the community caretaking doctrine is subject to abuse, and we caution that suppression courts should carefully scrutinize automobile stops where community caretaking is proffered as the justification in order to prevent abuse of the doctrine (*see McCormick*, 494 SW3d at 688 [(“W)hen the community caretaking exception is invoked to validate a search or seizure, courts must meticulously consider the facts and carefully apply the exception in a manner that mitigates the risk of abuse”]). The community caretaking doctrine may be used to justify an automobile stop even when there is no probable cause to believe that the driver has committed a traffic infraction and no reasonable suspicion that the occupants have committed, are committing, or are about to commit a crime (*see Hinshaw*, 35 NY3d at 430) only when the test for the community caretaking doctrine set forth above is satisfied. We expect that such cases will be rare.

C.

[2] Here, the stop of defendant’s vehicle was not justified under the first prong of the community caretaking doctrine because Haskovic’s testimony did not establish specific, objective, and articulable facts that would lead a reasonable officer to conclude that an occupant of the vehicle was in need of assistance. The sole basis for Haskovic’s belief that an occupant of the vehicle might need aid was his observation of the front passenger door opening and closing while the vehicle was in motion. As discussed, he testified during the suppression hearing that he did not see or hear anything else that indicated someone was in distress, nor did the door repeatedly open and close or remain open for an extended period of time, which might have suggested that there was a safety or equipment problem.

The observation of the car door opening and closing once while the vehicle was in motion, standing alone, would not lead a reasonable officer to conclude that an occupant of the vehicle was in need of aid. As defendant points out, there are many innocuous reasons why a car door might open and close while a vehicle is in motion, including that a car sensor is alerting an occupant that the door is not fully closed, a seatbelt or item of clothing is stuck in the door, or the occupant is attempting to free an insect inside the vehicle (*see Livingstone*, 644 Pa at 70, 174 A3d at 634-635 [discussing innocuous reasons why a motorist might pull to the side of a highway]). Haskovic articulated specific facts but not ones which would have led a reasonable officer to believe that an occupant of the vehicle needed assistance. Whatever concern the officer had about the door opening, it did not justify pulling the vehicle over.

Because Haskovic did not articulate specific and objective circumstances that would reasonably suggest that an occupant of the vehicle needed aid, the first prong of the community caretaking doctrine is not satisfied. We therefore have no reason to consider the scope of the police interaction under the second prong of the analysis.

Accordingly, the order of the Appellate Term should be reversed and the accusatory instrument dismissed.

RIVERA, J. (concurring). Defendant Jason Brown was driving within the speed limit on a New York City street when a police officer pulled him over after observing the front passenger door quickly open and shut. Nothing unusual about that. Occupants of motor vehicles commonly open and close car doors quickly and may do so even when a car is in motion—for instance, if the door is not properly locked or an item of clothing or a seat belt is caught in the door. This innocuous conduct does not even hint at criminality. Therefore, I agree with the majority that, on these facts, the police had no lawful basis for an investigatory stop of defendant's vehicle. That is all we need say. However, the majority goes further and needlessly opines on the "community caretaking doctrine" where the lower courts made no mention of such doctrine. More troubling, the majority adopts a new standard which is unnecessary to resolve the appeal because by any measure, the officers' conduct was not objectively reasonable. Traditional notions of judicial restraint counsel against the majority's exposition. I therefore concur only in the result.

* * *

Defendant moved to suppress his statements and the drugs recovered from his person and the car after the vehicular stop. At the first suppression hearing, Officer Haskovic testified that he and his partner were traveling in an unmarked car when he noticed defendant driving a vehicle about 25 miles per hour, one car length ahead. As defendant's car approached an intersection, Officer Haskovic observed the front passenger door "swing[] open and then quickly shut[]." The officer testified that the opening and closing of the door was not a traffic violation. Nor did he observe the driver engage in speeding, "undue swerving" or reckless driving. The officer further testified that he did not hear any screams or see any smoke coming from the car and, before the stop, he had no other information regarding the car or the driver.

Nevertheless, the officer pulled over defendant based solely on the opening and closing of the door, which the officer described as "strange" and which led him to believe that "possibly somebody . . . needed some sort of aid or something was going on in that vehicle." The officer and his partner approached the vehicle from opposite sides, at which point Officer Haskovic noticed a woman sitting in the front passenger seat and another man sitting in the rear passenger-side seat. Neither officer asked if anyone was in distress, nor did Officer Haskovic observe any conduct to suggest that someone needed assistance. Instead, Officer Haskovic asked defendant where he was going, and followed up with a request for defendant's license and registration. According to Officer Haskovic, at this point, he noticed a smell of marijuana emanating from the car. He then ordered defendant to step out of the car, elicited an admission from defendant that he had drugs in his pocket, recovered ecstasy from defendant's person and other drugs from inside the car, and arrested all of the car's occupants.

The court denied defendant's motion to suppress, concluding that "[i]t was reasonable for the officer to be concerned for the passenger's safety and this safety concern outweighs the interference [with] the defendant's liberty." On defendant's motion, the court reopened the suppression hearing, and defendant questioned Officer Haskovic regarding a previously-undisclosed 9-1-1 call regarding an individual in the vicinity where defendant was stopped who was cited as the possible perpetrator of a previous assault. Officer Haskovic testified that he did not hear the radio run and did not stop defendant

on that basis. He testified, as he did at the initial hearing, that he conducted the stop “to inquire for safety.” The court denied defendant’s renewed motion to suppress, concluding that the “radio run dealt with somebody who was on foot, a couple of blocks away,” that the officer credibly testified that the stop was unrelated to it, and that the officer’s concern that somebody might have needed help rendered the stop reasonable. That was error.

On appeal, the Appellate Term rejected defendant’s challenge to the denial of his suppression motion, concluding that “the stop of the vehicle was justified based on considerations of public safety, even where an ‘actual violation of the Vehicle and Traffic Law [is] not . . . detectable’ and this safety concern outweighs the interference of defendant’s liberty” (79 Misc 3d 127[A], 2023 NY Slip Op 50645[U], *1 [App Term 1st Dept 2023] [citation omitted], quoting *People v Ingle*, 36 NY2d 413, 420 [1975]). This too was error.

As we recently stated in *People v Hinshaw*, a vehicular stop is a seizure for Fourth Amendment purposes and requires probable cause of a traffic violation or reasonable suspicion that the driver or occupants have committed, are committing or about to commit a crime, or that the stop is conducted pursuant to uniform traffic procedures (see 35 NY3d 427, 430 [2020]). Here, Officer Haskovic did not base his stop of defendant’s car on any of these three grounds and the prosecution makes no such claim. However, the prosecution asserts—and the courts below determined—that there was a public safety basis for the stop. The majority and I agree that the stop was not justified based on any suggestion that a traffic violation or crime were afoot.

Here, the mere onetime, quick opening and closing of the passenger side door did not provide a basis to stop defendant’s vehicle under any recognized Fourth Amendment standard. The officer’s observations did not support “probable cause that [the] driver . . . committed a traffic violation” or “reasonable suspicion that the driver or occupants of the vehicle have committed, are committing, or are about to commit a crime” (*Hinshaw*, 35 NY3d at 430). And the door swinging open and closed on a slow-moving vehicle is not so odd or uncommon as to indicate that someone in the car needed help, unrelated to a crime-in-progress. Some of the more obvious and innocent reasons for quickly opening and closing a car door are to remove a stuck seat belt, article of clothing, or bag, or because the door is ajar. As these examples illustrate, far from suggest-

ing nefarious conduct or danger, opening and closing a car door may ultimately prevent injury to the car’s occupants (*see* majority op at 281-282; *see also* Insurance Institute for Highway Safety & Highway Loss Data Institute, *Fatality Facts 2021: Yearly Snapshot* [May 2023], available at <https://www.iihs.org/topics/fatality-statistics/detail/yearly-snapshot#seat-belt-use> [observing that, according to data from the U.S. Department of Transportation, 45% of drivers and 45% of passengers killed in car accidents in 2021 were unbelted] [last accessed May 2, 2024]). Any view endorsing this conduct as the basis for police intervention would countenance seizures based on the ordinary and banal, with their attendant risk of “dangerous, sometimes fatal outcomes for both individuals and officers” (*People v Johnson*, 40 NY3d 172, 193 [2023, Rivera, J., concurring]).

The majority’s resolution of this case under a “community caretaking doctrine” is unnecessary and misguided. First, “[w]e are bound, of course, by principles of judicial restraint not to decide questions unnecessary to the disposition of the appeal” (*People v Carvajal*, 6 NY3d 305, 316 [2005]). The prosecution’s and defendant’s insistence that we “consider the community caretaking doctrine and provide guidance on its parameters” does not displace those principles (majority op at 280). Neither court below expressly mentioned or relied on any such community caretaking doctrine to conclude that the seizure was constitutional. Thus, the majority announces a new rule without analyzing why the lower courts’ reasoning is erroneous or why our law as it stands is inadequate to resolve this appeal.

The record in this case also renders it wholly “unnecessary” to break new ground here (*Carvajal*, 6 NY3d at 316). Officer Haskovic did not know what was happening in the car before he stopped it, testifying that he thought “possibly somebody . . . needed some sort of aid or something was going on in that vehicle” and admitting on cross-examination that he “thought something illegal might be going on.” Thus, as the majority acknowledges (*see* majority op at 277 n 3), potential criminal activity factored into the officer’s decision to stop defendant. In my view, our familiar, well-established standards for a vehicular stop apply (*see Hinshaw*, 35 NY3d at 430). For these same reasons, we have no occasion to consider the arguments by the prosecution and defendant about the contours and ap-

plication of a different standard based on an amorphous community caretaking function.*

Second, the majority creates confusion. It provides no clear definition of what constitutes a “community caretaking function,” leaving it to police officers to test its limits. At best community caretaking appears to be a catchall for police action that does not facially involve the investigation of criminal conduct—an uncertain constitutional terrain. The phrase “community caretaking” originally appeared in *Cady v Dombrowski*, a case that involved the towing and evidence-yielding inventory of a vehicle disabled after an accident, as a mere passing recognition that officers sometimes address public safety concerns unrelated to criminal activity (413 US 433, 441 [1973]). Specifically, the Court remarked that police “frequently investigate vehicle accidents in which there is no claim of criminal liability and engage in what, for want of a better term, may be described as community caretaking functions, totally divorced from the detection, investigation, or acquisition of evidence relating to the violation of a criminal statute” (*id.*). Three years later, the Supreme Court drew on *Cady* to cement its inventory-search jurisprudence, and again made passing reference to what it previously “ha[d] called ‘community caretaking functions’” to declare that “[t]he authority of police to seize and remove from the streets vehicles impeding traffic or threatening public safety and convenience is beyond challenge” (*South Dakota v Opperman*, 428 US 364, 368-369 [1976]). From there, courts around the country began citing *Cady* as support for a “community caretaking doctrine” (majority op at 274-275 [collecting cases]).

Indeed, post-*Cady* this Court acknowledged—also in passing and without mentioning *Cady*’s reference to “community caretaking”—that police officers are public servants that perform many governmental functions that are unrelated to crime control (see *People v De Bour*, 40 NY2d 210, 218 [1976]). For better or for worse, officers are called upon to address situations that might have been resolved (perhaps more ap-

* For sure, a holding “that the stop violated defendant’s constitutional rights, without explaining why, would engender confusion and would leave police and lower courts to supply their own standards as to whether the stop was lawful” (majority op at 280). But that is what the majority does when, without explaining why the lower courts’ determinations were erroneous here, it disregards the intermediate appellate courts’ routine invocation of other Fourth Amendment doctrine when confronted with circumstances that it now brings within its new community caretaking doctrine.

appropriately or less costly) by someone with a particular expertise who is not a law enforcement official (see Michael Maciag, *The Daily Crisis Cops Aren't Trained to Handle*, Governing [Apr. 27, 2016], available at <https://governing.com/archive/gov-mental-health-crisis-training-police.html> [last accessed May 2, 2024] ["In the country as a whole, mental health situations are responsible for about 1 in 10 police calls"]; Hasan T. Arslan, *Examining Police Interactions with the Mentally Ill in the United States*, in *Enhancing Police Service Delivery: Global Perspectives and Contemporary Policy Implications* 95, 98 [James F. Albrecht & Garth den Heyer eds 2021] [presenting data suggesting that, from 2016 through 2021, nearly 25% of people killed by police officers suffered from mental illness]). The Court has observed that "over 50% of police work is spent in pursuits unrelated to crime" (*De Bour*, 40 NY2d at 218). Consequently, the Court has said that "unrealistic restrictions on the authority to approach individuals would hamper the police in the performance of their other vital tasks" (*id.*). "This is not to say that constitutional rights to privacy and freedom from unreasonable searches and seizures must be abandoned to accommodate the public service aspect of the police function" (*id.*). "The overriding requirement of reasonableness in any event, must prevail" (*id.*).

However, in *Caniglia v Strom*, the Supreme Court strongly signaled its disapproval of intrusions justified on so-called community caretaking grounds and suggested that *Cady* did not mark the introduction of a separate community-caretaking doctrine (593 US 194 [2021]). In *Caniglia*, the Supreme Court sharply criticized the Circuit Court for having "extrapolated" from its "statement" in *Cady* "a freestanding community-caretaking exception that applies to both cars and homes" (*id.* at 197). In doing so, the Court clarified that *Cady*'s "reference to 'community caretaking'" and "recognition that police officers perform many civic tasks in modern society was just that—a recognition that these tasks exist, and not an open-ended license to perform them anywhere" (593 US 194, 199 [2021], citing *Cady*, 413 US at 441). The separate writings in *Caniglia* indicate that several members of the Supreme Court likely view these tasks as more akin to responses to emergencies that implicate the imminent-danger exception to the warrant requirement (see *id.* at 199-200 [Roberts, Ch. J., concurring] [noting that "(a) warrant to enter a home is not required . . . when there is a 'need to assist persons who are seriously

injured or threatened with such injury’ ”], quoting *Brigham City v Stuart*, 547 US 398, 403 [2006]; *id.* at 202-203 [Alito, J., concurring] [observing that the Supreme Court’s “precedents do not address situations” where police make warrantless entries into the homes of individuals injured but unable to call for assistance]; *id.* at 206 [Kavanaugh, J., concurring] [“This case does not require us to explore all the contours of the exigent circumstances doctrine as applied to emergency-aid situations because the officers here disclaimed reliance on that doctrine”]. The majority ignores these signals, justifying its adoption of a broad community caretaking carveout from the Fourth Amendment’s familiar strictures primarily with references to state court decisions, all of which predate *Caniglia* (see majority op at 274-275).

The majority’s community caretaking rule carves away a large portion of Fourth Amendment jurisprudence as a solution in search of a problem. Our precedents already permit officers to act quickly in response to true emergencies, as the officer in this case purported to do. If someone is yelling for help in a building, or a car is sparking at risk of fire, officers are already permitted to intervene (see *De Bour*, 40 NY2d at 218-219). Much of what other courts embracing the exception treat as community caretaking is, in actuality, a police response to imminent danger or an example of traditional law enforcement for which prevailing Fourth Amendment principles already account.

For example, the majority cites to *Byram v State* (see majority op at 278), where Texas’s high court upheld a stop of a moving vehicle based on the officer’s observation of signs that its passenger was “suffering from alcohol poisoning,” as she was “hunched over and motionless, as the reek of alcohol wafted out” (510 SW3d 918, 924 [Tex Crim App 2017]). However, this set of circumstances better resembles an emergency wherein an individual is in need of imminent intervention, not community caretaking (see *Brigham City*, 547 US at 406). The same goes for the majority’s reliance on *State v Rohde* (see majority op at 281), where Nebraska’s intermediate appellate court upheld a stop based on a passenger’s standing up through the car’s moonroof and waiving her arms toward the officer “before disappearing back into the vehicle” because this “indicated a high level of distress signifying that the passenger may have been in danger” (22 Neb App 926, 942-943, 864 NW2d 704, 715 [2015]). Or, take the majority’s reference to *State v*

Hinton (see majority op at 281), where the Supreme Court of Vermont upheld the stop of a moving vehicle by an officer parked near a downed tree to stop and divert drivers, during which he observed defendant exhibiting signs of intoxication (198 Vt 167, 168, 173, 112 A3d 770, 771-772, 775 [2014]). However, this approximates a nonprogrammatically, but “tailored roadblock” set up in response to a sudden problem that “the Fourth Amendment would almost certainly permit” under the Supreme Court’s current checkpoint jurisprudence (*Indianapolis v Edmond*, 531 US 32, 44 [2000]).

Here, if Officer Haskovic thought someone in the car was held against their will, that would have required immediate investigation of a crime-in-progress and justified a warrantless seizure to safely secure the individual and apprehend any suspects (see *Hinshaw*, 35 NY3d at 430). Alternatively, if the officer observed one of the car’s occupants in physical distress, the Fourth Amendment permitted the officer to respond to what he perceived as an imminent emergency, and his conduct would have been evaluated under the well-established exigency exception to the warrant requirement (see *Stuart*, 547 US at 403 [observing that the “exigency” of “emergency (aid)” requires officers to have an objectively reasonable basis for believing that an occupant—there, of a home—is “seriously injured or (imminently) threatened with such injury” before acting without a warrant]). Under either circumstance, the Court has observed, “whereas a policeman’s badge may well be a symbol of the community’s trust, it should never be considered a license to oppress” (*De Bour*, 40 NY2d at 220).

The majority observes that one policy-based justification for the doctrine it adopts is “that police officers should be encouraged” to undertake these non-law enforcement multifaceted roles (majority op at 275). Yet, officers regularly have done so for decades even absent our embrace of community caretaking as an independent basis for police intrusions upon individual liberty (see e.g. *De Bour*, 40 NY2d at 218). As courts, the police, and society all recognize, police officers historically have engaged in tasks unrelated to ordinary law enforcement. The greater concern is the potential for the majority’s community caretaking carveout to encourage unconstitutional stops and seizures based on nothing more than a hunch. That is bad for individuals, the police and society generally (see *Johnson*, 40 NY3d at 177 [Rivera, J., concurring]).

Given the majority’s adoption of a “community caretaking” carveout, we can avoid the danger of more stops by applying

the exclusionary rule. Thus, in those cases where a court determines that an officer has acted pursuant to a “community caretaking function,” and that there were “specific, objective, and articulable facts that would lead a reasonable officer to conclude that an occupant of the vehicle is in need of assistance,” and “the police intrusion [was] narrowly tailored to address the perceived need for assistance” (majority op at 276), any contraband retrieved or incriminating statement made as a direct result of the police intrusion should be inadmissible against the defendant.

The exclusionary rule “is an essential part of both the Fourth and Fourteenth Amendments” and “[t]o hold otherwise is to grant the right but in reality to withhold its privilege and enjoyment” (*Mapp v Ohio*, 367 US 643, 656-657 [1961]). Accordingly, the Court has regarded it as “a judicially created tool for the effectuation of constitutionally guaranteed rights” (*People v McGrath*, 46 NY2d 12, 20 [1978]) whose applicability is most appropriate as the potential for a “foreseeable deterrent effect” against future abuses increases (*see People v Jones*, 2 NY3d 235, 241 [2004]). The need for such deterrence is greatest where there is a high risk of pretextual police action justified on public safety grounds.

The majority concedes that its new community caretaking doctrine is susceptible to “abuse,” yet prohibits the judiciary from applying the exclusionary rule (majority op at 276, 279 n 4, 280-281). This reasoning misunderstands the concept of deterrence lying at the core of the exclusionary rule, which is inherently forward-looking: application of the exclusionary rule in one case aims to quell the temptation for overreach and subterfuge in other, future ones (*see Jones*, 2 NY3d at 241). By putting on notice “officer[s] engaged in the often competitive enterprise of ferreting out crime” (*Johnson v United States*, 333 US 10, 14 [1948]), that exploitation of the community caretaking doctrine would be fruitless in that enterprise, only strict application of the exclusionary rule to community caretaking-based intrusions would prevent the majority’s new doctrine from spiraling into a judicially-licensed pretext for ordinary crimefighting unbounded by the Fourth Amendment’s familiar limitations. As the primary author of the leading treatise on Fourth Amendment jurisprudence, regularly cited by the United States Supreme Court, has insightfully posited:

“If the fruits of an admittedly illegal search need

not be suppressed where there would be a minimal advance in the deterrence of police misconduct, . . . then it is not fanciful to suggest that the exclusionary rule should be employed when the deterrence objective could be substantially advanced, without regard to whether it is certain that an improperly motivated search actually occurred in the particular case” (3 Wayne R. LaFave et al., *Search & Seizure* § 7.5 [e], *Pretext arrest, detention, impoundment or inventory* [6th ed, Mar. 2024 update] [internal quotation marks omitted]).

Moreover, nothing suggests that application of the exclusionary rule to evidence the police happen upon while carrying out these tasks will compel officers to stop assisting the public unless criminality is readily apparent. After all, an officer who complies with the majority’s standard has not violated a defendant’s rights and thus acts without fear of reprisal or civil liability.

In sum, whether a police officer has violated the Fourth Amendment distills to whether the officer’s actions were objectively reasonable, even when responding to a potential noncriminal public safety issue. We need not look beyond our borders for new rules. Here, the stop based on the unremarkable occurrence of the passenger side door quickly swinging open and closed was unreasonable because it did not evince criminal activity or a need to provide emergency assistance to someone in distress.

Judges GARCIA, SINGAS, CANNATARO and HALLIGAN concur. Judge RIVERA concurs in result in an opinion, in which Chief Judge WILSON concurs.

Order reversed and indictment dismissed.

[244 NE3d 1059, 219 NYS3d 600]

AUDTHAN LLC, Appellant-Respondent, v NICK & DUKE, LLC,
Respondent-Appellant.

Argued March 12, 2024; decided April 25, 2024

SUMMARY

CROSS-APPEALS, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 6, 2022. The Appellate Division affirmed an order of the Supreme Court, New York County (Sabrina B. Kraus, J.; op 2022 NY Slip Op 30546[U] [2022]), which had (1) granted so much of defendant's motion seeking to dismiss that part of the first cause of action for anticipatory repudiation of contract; (2) granted so much of defendant's motion seeking to dismiss that part of the third cause of action as seeks attorneys' fees for defending against termination notices; and (3) otherwise denied defendant's motion to dismiss the third amended complaint. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the order of Supreme Court, properly made?"

Audthan LLC v Nick & Duke, LLC, 211 AD3d 419, modified.

HEADNOTE

Contracts — Repudiation — Unequivocal Refusal to Perform Obligations

In an action arising out of a lease agreement pursuant to which plaintiff would develop property owned by defendant upon approval of a "cure" agreement with the New York City Department of Housing Preservation and Development (HPD), plaintiff sufficiently alleged a cognizable cause of action that defendant's statement in a letter to HPD that it would "never" approve "any" cure agreement because of plaintiff's alleged failure to account for court-adjudicated rent-stabilized tenancies was a repudiation of defendant's core obligations under the parties' agreement. To constitute repudiation, there must be some express and absolute refusal to perform that is positive and unequivocal. According to the complaint, defendant's refusal to sign the 2015 proposed cure agreement (PCA) was based on a specific aspect of the agreement that defendant claimed was not compliant with the lease and therefore needed to be modified for defendant to execute the PCA. By comparison, the complaint alleged that defendant's letter to HPD in 2021 was a blanket refusal to sign "any" cure agreement. Under the circumstances, the complaint sufficiently alleged that defendant's refusal to sign the PCA in 2015 fell short of its contractual requirements without amounting to a total breach. Defendant's conduct in 2015 was not accompanied by any statement or indication that it would never perform its obligations with respect to the PCA, potentially making it different in kind from the 2021 letter, which the

complaint alleged constituted a clear and unequivocal statement that defendant would never perform its obligations at any point. Thus, plaintiff sufficiently demonstrated that defendant's 2021 statement was both a new development and a distinct material breach that escalated, for the first time, to an unequivocal repudiation.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Contracts §§ 552, 683–684, 686–688, 691–692, 695–696; AM JUR 2d Landlord and Tenant § 876.
CARMODY-WAIT 2d Complaints in Particular Actions § 29:12.
DOLAN, RASCH'S NEW YORK LANDLORD AND TENANT, INCLUDING SUMMARY PROCEEDINGS (5th ed) § 2:40.
NEW YORK CONTRACT LAW (2d ed) §§ 14:1–14:2, 14:6–14:10, 14:13.
NY JUR 2d Contracts §§ 421, 428, 445–449, 510, 543, 627; NY JUR 2d Landlord and Tenant § 446.
WILLISTON ON CONTRACTS (4th ed) §§ 39:37–39:38, 39:40, 63:28–63:30, 63:45–63:47, 63:49, 63:51, 68:21.

ANNOTATION REFERENCE

See ALR Index under Anticipatory Renunciation or Repudiation; Cancellation or Rescission; Contracts; Land Development and Developers; Landlord and Tenant; Rent Control; Renunciation and Repudiation.

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POINTS OF COUNSEL

Katsky Korins LLP, New York City (*Elan R. Dobbs*, *Adrienne B. Koch*, *Mark Walfish* and *Joshua David Riegel* of counsel), for appellant-respondent. I. Audthan LLC's claim for repudiation of the lease should be reinstated. (*Tenavision, Inc. v Neuman*, 45 NY2d 145; *Princes Point LLC v Muss Dev. L.L.C.*, 30 NY3d 127; *Awards.com v Kinko's, Inc.*, 42 AD3d 178, 14 NY3d 791; *ESPN, Inc. v Office of Commr. of Baseball*, 76 F Supp 2d 383; *Children of Am. [Cortlandt Manor], LLC v Pike Plaza Assoc., LLC*, 113 AD3d 583; *Canali U.S.A. v Solow Bldg. Co.*, 292 AD2d 170; *Scavenger, Inc. v GT Interactive Software Corp.*, 289 AD2d 58; *Coniber v Center Point Transfer Sta., Inc.*, 137 AD3d 1604;

Lovasz v Fowler, 211 App Div 860; *Aetna Cas. & Sur. Co. v Aniero Concrete Co., Inc.*, 404 F3d 566.) II. Section 33.09 of the lease does not preclude Audthan LLC's recovery of money damages either for landlord's repudiation or for its other breaches. (*U.S. Bank N.A. v DLJ Mtge. Capital, Inc.*, 33 NY3d 84; *Terminal Cent. v Modell & Co.*, 212 AD2d 213; *Boll v Sharp & Dohme, Inc.*, 281 App Div 568; *Lundy Dev. & Prop. Mgt., LLC v Cor Real Prop. Co., LLC*, 181 AD3d 1180; *Vacold LLC v Cerami*, 545 F3d 114; *Rubinstein v Rubinstein*, 23 NY2d 293; *Vermont Teddy Bear Co. v 538 Madison Realty Co.*, 1 NY3d 470; *Premium Point Park Assn. v Polar Bar, Inc.*, 306 NY 507; *Bruce v Fulton Natl. Bank of City of N.Y.*, 79 NY 154; *Landmark Ventures, Inc. v InSightec, Ltd.*, 179 AD3d 493.)

Rosenberg & Estis, P.C., New York City (Jeffrey Turkel, Bradley S. Silverbush and Jake W. Bedor of counsel), for respondent-appellant. I. Section 33.09, an unremarkable sole remedy provision, should be enforced as written. (*Nomura Home Equity Loan, Inc., Series 2006-FM2 v Nomura Credit & Capital, Inc.*, 30 NY3d 572; *Matter of Part 60 Put-Back Litig.*, 36 NY3d 342; *Metropolitan Life Ins. Co v Noble Lowndes Intl., Inc.*, 84 NY2d 430; *Electron Trading, LLC v Morgan Stanley & Co. LLC*, 157 AD3d 579; *Devash LLC v German Am. Capital Corp.*, 104 AD3d 71, 21 NY3d 863; *Ambac Assur. Corp. v Countrywide Home Loans, Inc.*, 31 NY3d 569; *Muzak Corp. v Hotel Taft Corp.*, 1 NY2d 42.) II. Audthan LLC's quiet enjoyment claim relating to notices of termination should be dismissed. (*Dave Herstein Co. v Columbia Pictures Corp.*, 4 NY2d 117; *M.Y. Realty Corp. v Atlantic First Fin. Corp.*, 19 AD3d 156; *Cut-Outs, Inc. v Man Yun Real Estate Corp.*, 286 AD2d 258, 100 NY2d 507.) III. General Obligations Law § 7-103 (1) does not require landlord to surrender the security deposit. (*Harlem Capital Ctr., LLC v Rosen & Gordon, LLC*, 145 AD3d 579; *Spagnoletti v Chalfin*, 131 AD3d 901; *Jimenez v Henderson*, 144 AD3d 469.) IV. The Appellate Division correctly dismissed Audthan LLC's anticipatory repudiation claim. (*Kaplan v Madison Park Group Owners, LLC*, 94 AD3d 616, 20 NY3d 858; *Rapson Invs. LLC v 45 E. 22nd St. Prop. LLC*, 180 AD3d 614; *Feldmann v Scepter Group, Pte. Ltd.*, 185 AD3d 449; *Callanan v Keeseville, Ausable Chasm & Lake Champlain R.R. Co.*, 199 NY 268; *Parlux Fragrances, LLC v S. Carter Enters., LLC*, 204 AD3d 72; *Aetna Cas. & Sur. Co. v Aniero Concrete Co., Inc.*, 404 F3d 566; *Equitable Trust Co. of N.Y. v Connecticut Brass & Mfg. Corp.*, 290 F 712; *Awards.com v Kinko's, Inc.*, 42 AD3d 178, 14 NY3d 791; *Phoenix Acquisition*

Corp. v Campcore, Inc., 81 NY2d 138.) V. The First Department properly found that section 33.09 governs landlord's refusal to approve the Proposed Cure Agreement. (*Florence v Merchants Cent. Alarm Co.*, 51 NY2d 793; *Gross v Sweet*, 49 NY2d 102.)

OPINION OF THE COURT

Chief Judge WILSON.

Nick & Duke, LLC (N&D) owns 182-188 Eleventh Avenue in Manhattan. The property includes a single room occupancy (SRO) hotel occupied by some rent-stabilized tenants. Audthan LLC is a real estate developer. In 2013, N&D and Audthan entered into an agreement to replace the SRO with a mixed-used residential and commercial building for a 40-year lease term. Both parties understood that an approval of a "cure" agreement with the New York City Department of Housing Preservation and Development (HPD) would be required for the project to go forward and incorporated terms relating to that approval into the agreement. This is where things fell apart. Both parties agree that the ground lease has been terminated, but disagree as to whose fault it was, when the termination occurred, and what damages, if any, are available to whom.

Although the litigation is nearly a decade old, this case comes to us on Audthan's appeal and N&D's cross-appeal from the Appellate Division's affirmance of Supreme Court's order dismissing parts of the first and third causes of action of Audthan's third amended complaint and rejection of N&D's motion to dismiss the remaining portions of that complaint.¹ We now hold that the portion of the first cause of action seeking to recover damages for breach of contract on the theory of repudiation was erroneously dismissed. To the extent preserved, N&D's arguments do not entitle it to dismissal of the complaint at the pleading stage, except, as the lower courts held, as to its claim for attorneys' fees in count three.

I.

In May 2013, N&D and Audthan entered into a 40-year term lease with an option to renew at Audthan's sole discretion for

1. At the pleading stage, we take all allegations in the complaint as true for the purpose of this appeal, and also rely on documents attached to or referenced in the complaint (see *Leon v Martinez*, 84 NY2d 83, 87-88 [1994]; *Rovello v Orofino Realty Co.*, 40 NY2d 633, 635 [1976]).

another 48 years. Audthan undertook to construct a 58,000 square foot luxury residential and commercial property that would revert to N&D at the end of the lease term. Pursuant to a 2009 finding of harassment from a prior lessee, HPD imposed a restrictive declaration on the property site barring any further development or the issuance of any building permits unless and until N&D cured the harassment finding by, among other things, creating 15,000 permanent square feet of low-income housing on the site.²

The harassment cure was specified in the ground lease between N&D and Audthan. Section 14.01 of the lease required Audthan to obtain a cure agreement from HPD for the harassment finding and to develop the 15,000 square feet of low-income housing HPD required. Because no building permit could issue until a cure agreement with HPD was signed, the lease obligated N&D to cooperate with Audthan “in good faith” at Audthan’s expense “in executing any agreements, certifications, filings or similar documents as are consistent with the provisions of th[e] Lease or otherwise reasonably acceptable to [N&D] in order to effect the HPD Cure.”

The lease contemplated that Audthan would develop a building divided into three separate condominiums: one would contain the 15,000 square feet of low-income housing units and be deeded to a nonprofit that would operate and take legal title to the permanent low-income housing on the property necessary for a cure; and Audthan would retain physical possession of the two remaining condominiums until the lease term ended, at which point N&D would regain possession of those, but not the space allocated to the low-income housing units.

Additionally, both parties agreed to the following provision found in section 33.09 of the lease:

“Whenever Lessor’s or Lessee’s consent or approval is required under the terms of this Ground Lease, such consent or approval shall not be unreasonably withheld, conditioned or delayed unless otherwise specified herein. Each of Lessor and Lessee hereby waives to the fullest extent permitted by law any right to damages (actual, incidental or consequen-

2. Section 93-90 (d) of the New York City Zoning Resolution similarly provides that where there is an existing harassment finding on a property located in the Special West Chelsea District (applicable here), that property cannot be developed until the harassment is “cured.”

tial) based upon either party's actual or allegedly wrongful withholding, conditioning or delaying any consent or approval under or in connection with this Ground Lease. Such party's sole remedy for any wrongfully withheld, conditioned or delayed consent or approval shall be the right to seek injunctive relief."

In 2015, while Audthan was negotiating a cure agreement with HPD, it had taken over possession of the subject property, including the SRO, and was renting residences at the SRO hotel to new occupants. During that time, some of the SRO occupants to whom Audthan rented residences brought wrongful eviction cases against Audthan pursuant to Rent Stabilization Code (RSC) (9 NYCRR) §§ 2520.6 (j) and 2522.5 (a) (2).³ In four adjudicated cases, Audthan was found to have wrongfully evicted tenants from the SRO hotel.⁴ As a result of those adjudications, the tenants were granted rent-stabilized status.

In December 2015, Audthan and HPD finalized a proposed cure agreement (PCA). HPD notified the parties that it had approved the PCA but would not execute it until the agreement received N&D's signature. The PCA stated that Audthan would

3. RSC § 2520.6 (j) states that an SRO occupant can become a rent-stabilized tenant by requesting "a lease of six months or more pursuant to section 2522.5 (a) (2) of this Title." Section 2522.5 (a) (2) provides that an SRO occupant can also become a rent-stabilized tenant by requesting a lease "at any time during [their] occupancy."

4. In *Guira v Audthan LLC* (48 Misc 3d 1217[A], 2015 NY Slip Op 51152[U], *4 [Civ Ct, NY County 2015]), the court found Audthan had unlawfully evicted the tenant, noting Audthan's actions were "geared to evading their obligations under the Rent Stabilization Code." In *Ouattara v Audthan LLC* (49 Misc 3d 1206[A], 2015 NY Slip Op 51496[U] [Civ Ct, NY County 2015]), the tenant sued Audthan to be restored as a permanent rent-stabilized tenant. Audthan responded by suing the tenant and the Division of Housing and Community Renewal for a declaration that RSC §§ 2520.6 (j) and 2522.5 (a) (2) were unconstitutional (*Audthan LLC v Ouattara*, Sup Ct, NY County, index No. 159096/2015). The court determined that Audthan had unlawfully locked out the tenant, concluding that Audthan's actions "appear[] to be geared to evading their obligations under the Rent Stabilization Code" through policies they implemented to prevent "individuals from becoming permanent tenants and limiting occupancy to transients" (*Ouattara*, 49 Misc 3d 1206[A], 2015 NY Slip Op 51496[U], *4). In *Ahmed v Chelsea Highline Hotel* (49 Misc 3d 139[A], 2015 NY Slip Op 51577[U] [App Term, 1st Dept 2015]), the Appellate Term held that the tenant had been forcibly removed and because he had a possessory interest in the premises, he could not be ousted without legal process. Finally, in *Cabelis v Audthan LLC* (L&T index No. 76374/15), a tenant sued Audthan for illegally locking him out. The court held that Audthan violated RSC § 2522.5 (a) (2) and ordered Audthan to return the apartment to the tenant.

gut renovate the SRO hotel to provide the low-income housing required to effectuate the cure and allow Audthan to develop the property. The PCA allocated 14,825 square feet to low-income housing to adhere to the lease provisions and stated that the square footage was “exclusive of the so-called Non-Relocating Units.” The “Non-Relocating Units” were four occupied rent-stabilized units in the SRO hotel that would not count towards the low-income housing requirement. The four occupied rent-stabilized units allocated in the PCA were not the same four units that the courts had created because of Audthan’s unlawful actions.⁵

Audthan sent the PCA to N&D to sign on December 23, 2015, and again on February 9, 2016. N&D did not sign it. In response, Audthan contended that N&D was in breach of its obligations under the lease. In March 2016, Audthan moved for an injunction compelling N&D to approve the PCA. N&D opposed the motion, refusing to approve the PCA because it did not account for the court-adjudicated stabilized units. N&D argued that because the footage of the four court-adjudicated units would not count toward the 14,825 square feet of designated low-income housing and were also permanent, non-relocating units, the building would be forced to contain more than the “approximately” 15,000 square feet of low-income housing provided for in the lease. N&D complained that to include four more non-relocating units in addition to the 14,825 square feet designated by the PCA, Audthan would need to shift footage away from the luxury portion of the building that N&D stood to inherit. In 2017, Supreme Court denied Audthan’s motion for immediate injunctive relief, holding there were issues of fact as to whether N&D was justified in refusing to execute the PCA and whether a revised cure agreement was required (55 Misc 3d 1222[A], 2017 NY Slip Op 50739[U] [Sup Ct, NY County 2017]).

As the litigation progressed, N&D purported to terminate the lease at least four times: in July 2015 (shortly after Audthan commenced this action); in June 2016 (shortly after Audthan moved to compel N&D to sign the December 2015 PCA);

5. Although the court reinstated tenancy in units 2C, 2D, 3C, and 4A, designating them as rent-stabilized units, Exhibit D of the PCA, which was supplied by Audthan, identified the Non-Relocating Units as 3A, 3E1, 4C, and 4E. It also listed the court-ordered stabilized units as vacant. Neither the PCA nor its addenda mentioned Audthan’s four wrongful eviction adjudications.

in October 2017 (the day after Audthan sought an order compelling N&D to return its security deposit to a segregated account); and in February 2020 (following Supreme Court’s denial of N&D’s request to stay its time to complete discovery). Each of N&D’s attempted terminations resulted in the issuance of a *Yellowstone* injunction prohibiting N&D from terminating the ground lease.

On April 28, 2021, N&D sent HPD a letter notifying it of the four 2015 adjudications against Audthan and asked HPD to revoke the PCA or acknowledge that HPD proposed to grant Audthan’s cure application notwithstanding those adjudications. HPD responded that because no approved agreement existed, there was nothing for it to rescind. N&D wrote HPD on May 11, 2021, stating that CPLR 7803 (1) required HPD to render a decision on the PCA. HPD responded, “once the lessor and lessee are prepared to execute the proposed Cure Agreement, HPD will review the proposed Cure Agreement (including allegations set forth in your letters) to determine if the proposed Cure Agreement is still warranted . . . [and] if the proposed Cure Agreement should be adopted, should be modified or should be denied.” On June 4, 2021, N&D responded to HPD that in direct contradiction of its May 27th correspondence, several years earlier HPD had said its review was complete and the PCA was approved. The letter also stated the following:

“[N&D] will not, and will never, approve any version of a PCA, because no cure is warranted in light of adjudicated harassment of tenants by . . . Audthan [N&D] will not be put in a position whereby [N&D] must commit to sign the PCA before HPD determines whether ‘the Cure Agreement is still warranted.’ In light of the information already provided to HPD, we suggest that HPD should simply issue an order of denial and revoke the draft PCA.”

N&D’s letter further stated that if N&D did not receive a final determination on the cure application by June 21st, it would commence a mandamus proceeding. On July 26, 2021, Audthan notified N&D that it was interpreting N&D’s June 4th letter as repudiating the lease, and shortly thereafter Audthan surrendered the premises.

Subsequently, Audthan amended its complaint to withdraw its original request for injunctive relief and add new claims.

Audthan's third amended complaint, now before us, contains five causes of action. The first cause of action is for breach of contract, based on N&D's alleged breaches in 2015 for refusing to sign the PCA, and on an anticipatory repudiation theory based on N&D's June 4, 2021 statement that it "will never" approve any cure agreement. The second cause of action is for a breach of the covenant of quiet enjoyment, based on two different set of facts: (a) N&D's refusal to sign the cure agreement; and (b) the several lease termination notices N&D sent from 2015 to 2020, which forced Audthan to incur legal expenses in obtaining *Yellowstone* injunctions and otherwise responding to those termination notices. The third cause of action is for breach of contract and has three subparts: (a) a breach of the implied covenant of good faith and fair dealing that otherwise duplicates count two; (b) a claim for attorneys' fees related to fighting the notices of termination; and (c) a claim for the additional rent Audthan paid under protest, which it alleges was not due under the contract. The fourth cause of action is for a preliminary and permanent injunction barring N&D from applying Audthan's security deposit as an offset against unpaid rents or any other claim N&D might have. Finally, the fifth cause of action is for the dissolution of the \$518,000 undertakings that were posted in connection with the *Yellowstone* injunctions.

N&D moved to dismiss the complaint pursuant to CPLR 3211 (a) (1), (5), and (7) and for entry of a money judgment against Audthan for outstanding use and occupancy and other charges.

II.

Supreme Court granted N&D's motion to dismiss the first cause of action to the extent based on anticipatory repudiation and the third cause of action to the extent it seeks attorneys' fees (2022 NY Slip Op 30546[U] [Sup Ct, NY County 2022]). The court reasoned that Audthan could not assert an anticipatory breach for the same conduct as an actual breach and that Audthan was not entitled to damages for legal fees expended in connection with this litigation. The court otherwise denied N&D's motion. Both parties appealed.

The Appellate Division affirmed in a 3-2 decision. It held that Audthan could not "seek separate redress on a theory of repudiation for the breach of contract cause of action" (211 AD3d 419, 420 [1st Dept 2022]). Because Audthan's theory of repudiation is predicated on N&D's June 4th letter, the Court

reasoned that the letter, when “read in its entirety,” states the same reasons N&D refused to sign the PCA in 2015—its failure to account for Audthan’s “ongoing harassment of tenants and the rent-stabilized tenancies newly created” after Audthan submitted its application to cure the 2009 harassment finding (*id.* at 420-421). According to the Appellate Division, N&D’s June 4th statement that it would “absolutely refuse to sign ‘any’ cure agreement [was] merely an extension of the same breach alleged in 2015” (*id.* at 421). The Court concluded that if N&D was not found to have breached the lease in 2015, “then its actions in 2021 do not constitute a separate breach of the lease, much less a repudiation. Moreover, because a party cannot repudiate a contract it has already breached, if [N&D] is found to have breached the lease in 2015, there can be no repudiation in 2021” (*id.*).

The two dissenting Justices concluded that Audthan sufficiently pleaded anticipatory breach because “where an obligation is ongoing or serial in nature, a *subsequent* material breach can support a claim on a theory of repudiation notwithstanding earlier claims for partial breach” (*id.* at 422 [Rodriguez, J., dissenting in part]). The dissent viewed N&D’s “unequivocal statement in . . . 2021” as sufficiently “different in kind from the earlier alleged conduct” such that it establishes a “separate material breach of the obligations under section 14.01” of the ground lease (*id.* at 423). The dissent reasoned that because Audthan procured several *Yellowstone* injunctions throughout the course of this action, it clearly “elected, upon the earlier alleged breaches, to keep the contract in force, declare the default[s] only . . . partial breach[es], and recover th[e] damages caused by th[ose] partial breach[es],” which permitted Audthan to “treat any subsequent material breach as a repudiation of the contract” (*id.* [internal quotation marks and citation omitted]). Finally, the dissent emphasized the current procedural posture and claimed the majority’s interpretation of the June 4th letter was a “premature” finding of fact, in which the majority also conflated the 2015 and 2021 allegations (*id.* at 424-425).

As to the remaining claims, the Appellate Division was unanimous. For the remaining breach of contract claim in the first cause of action, the Court held that section 33.09 of the ground lease “does not operate to foreclose [Audthan] from seeking monetary damages for [N&D’s] refusal to enter into a cure agreement with HPD” (*id.* at 421). Citing *Kalisch-Jarcho, Inc.*

v City of New York (58 NY2d 377, 384-385 [1983]), the Court reasoned that although section 33.09 states that Audthan's remedy is "limited to injunctive relief, the third amended complaint adequately alleges bad faith conduct that, if established, could overcome section 33.09's limitation on damages" (211 AD3d at 421). Accordingly, the Court held that Audthan sufficiently pleaded that claim and denied N&D's motion to dismiss.

For the second cause of action seeking damages for breach of the covenant of quiet enjoyment, the Appellate Division affirmed Supreme Court's ruling on the same rationale (*id.*). The Court found Audthan's claim was sufficiently supported by two separate allegations: (a) N&D's refusal to execute the PCA denied Audthan the beneficial use of the premises and it was obliged to vacate; and (b) Audthan's allegation that N&D issued "serial termination notices, which required [Audthan] to seek four *Yellowstone* injunctions over the course of seven years of litigation" (*id.*).

As to the third cause of action, the Court affirmed Supreme Court's dismissal as to the attorneys' fees but found Audthan otherwise sufficiently stated a claim. The Court agreed that Audthan had no basis for seeking attorneys' fees as damages for the termination notices that N&D allegedly served in bad faith "since no agreement, court rule, or statute allows recovery of attorneys' fees in this circumstance" (*id.* at 422). The Court found Audthan sufficiently alleged its fourth and fifth causes of action on the same reasoning as Supreme Court.

Both parties cross-moved for leave to appeal to this Court. The Appellate Division granted both motions and certified the following question: "Was the order of this Court, which affirmed the order of Supreme Court, properly made?" (2023 NY Slip Op 63452[U] [1st Dept 2023]). We now answer in the negative solely as to the dismissal of Audthan's cause of action for breach of contract seeking to recover on a theory of repudiation. We otherwise affirm.

III.

On a motion to dismiss a complaint under CPLR 3211, "we must liberally construe the pleading and 'accept the facts as alleged in the complaint as true, accord plaintiffs the benefit of every possible favorable inference, and determine only whether the facts as alleged fit within any cognizable legal theory'" (*Himmelstein, McConnell, Gribben, Donoghue & Joseph, LLP v*

Matthew Bender & Co., Inc., 37 NY3d 169, 175 [2021], quoting *Leon v Martinez*, 84 NY2d 83, 87-88 [1994]; see also *Roni LLC v Arfa*, 18 NY3d 846, 848 [2011] [“On a CPLR 3211 motion to dismiss . . . the question of ‘(w)hether a plaintiff can ultimately establish its allegations is not part of the calculus’ ”], quoting *EBC I, Inc. v Goldman, Sachs & Co.*, 5 NY3d 11, 19 [2005]).

N&D moved to dismiss Audthan’s anticipatory repudiation claim under CPLR 3211 (a) (1) and (7) which requires N&D to prove a defense “founded upon documentary evidence” and demonstrate Audthan’s complaint failed to state a claim, respectively. To succeed under CPLR 3211 (a) (1), N&D’s “documentary evidence” must “utterly refute[]” Audthan’s “factual allegations, conclusively establishing a defense as a matter of law” (*Goshen v Mutual Life Ins. Co. of N.Y.*, 98 NY2d 314, 326 [2002]). Dismissal under CPLR 3211 (a) (7) is warranted only if Audthan “fails to assert facts in support of an element of the claim, or if the factual allegations and inferences to be drawn from them do not allow for an enforceable right of recovery” (*Connaughton v Chipotle Mexican Grill, Inc.*, 29 NY3d 137, 141-142 [2017]). Given the current procedural posture, dismissal of Audthan’s anticipatory repudiation claim was unwarranted.

“ ‘An anticipatory breach of contract by a promisor is a repudiation of [its] contractual duty before the time fixed in the contract for . . . performance has arrived’ ” (*Princes Point LLC v Muss Dev. L.L.C.*, 30 NY3d 127, 133 [2017], quoting 10-54 Corbin on Contracts § 54.1 [2017]; see *Wester v Casein Co. of Am.*, 206 NY 506, 514 [1912]; 13 Richard A. Lord, Williston on Contracts § 39:37 [4th ed, May 2022 update]). Under the doctrine of anticipatory repudiation or anticipatory breach, “if one party to a contract repudiates [its] duties thereunder prior to the time designated for performance and before [it] has received all of the consideration due . . . thereunder, such repudiation entitles the nonrepudiating party to claim damages for total breach” (*Long Is. R.R. Co. v Northville Indus. Corp.*, 41 NY2d 455, 463 [1977]). To constitute repudiation, “there must be some express and absolute refusal to perform” (*Ga Nun v Palmer*, 202 NY 483, 489 [1911]) that is “positive and unequivocal” (*Tenavision, Inc. v Neuman*, 45 NY2d 145, 150 [1978]; see *Princes Point LLC*, 30 NY3d at 133).

The first cause of action alleges N&D engaged in multiple acts that breached the ground lease agreement: a set of acts in refusing to sign the cure agreement tendered in 2015, and a

2021 statement that it would never sign any agreement. Contrary to the conclusions of the courts below, a claim for breach and a claim for anticipatory repudiation can both be stated on these facts at the pleading stage.

According to the complaint, N&D's refusal to sign the 2015 PCA was based on a specific aspect of the agreement that N&D claimed was not compliant with the lease and therefore needed to be modified for N&D to execute the PCA—namely, Audthan's alleged failure to account for the court adjudicated rent-stabilized tenancies. By comparison, the complaint alleged that N&D's 2021 letter to HPD was a blanket refusal to sign “any” cure agreement. Under these circumstances, the complaint sufficiently alleges that N&D's refusal to sign the PCA in 2015 fell short of its contractual requirements without amounting to a total breach. Importantly, Audthan highlights, N&D's conduct in 2015 was not accompanied by any statement or indication that it would never perform its obligations with respect to the PCA, potentially making it, as the Appellate Division dissent claimed, “different in kind” from the 2021 letter, which the complaint alleges constituted a clear and unequivocal statement that N&D would never perform its obligations at any point (211 AD3d at 423 [Rodriguez, J., dissenting]).

Taking the facts alleged in the complaint as true, which we must do at this stage of the proceeding, Audthan sufficiently demonstrated that N&D's 2021 statement was both a new development and a distinct “material breach that escalated, for the first time, to an unequivocal repudiation” (*id.* at 424). As Supreme Court held with regard to the alleged breaches occurring before 2021, questions of fact remain as to whether N&D's acts constituted breaches. That is also true as to the alleged 2021 breach. Ultimately, Audthan could lose its claim that N&D breached the contract before it refused to sign any agreement yet prevail on the alleged 2021 anticipatory repudiation claim. A plaintiff, of course, is permitted to plead in the alternative (*see* CPLR 3014, 3017). Accordingly, Audthan alleged a cognizable cause of action that N&D's 2021 statement was a repudiation of its core obligations under section 14.01 and the lower courts' dismissal of this claim was premature.

Turning to N&D's cross-appeal, the Appellate Division, relying on *Kalisch-Jarcho*, held that because Audthan's complaint sufficiently alleged bad faith, section 33.09—the “sole remedy” cause in the lease—did not bar Audthan's claim for monetary damages based on N&D's refusal to sign the PCA (*see* 211 AD3d

at 421). N&D argues that the Appellate Division’s reliance on *Kalisch-Jarcho* was misplaced in light of our decision in *Matter of Part 60 Put-Back Litig.* (36 NY3d 342 [2020]), which explains the circumstances in which “sole remedy” provisions are enforceable. However, in response to Audthan’s argument that a bad faith or malicious refusal would render section 33.09 unenforceable, N&D did not contend before Supreme Court that no such exception existed; rather, N&D instead argued only that such exception did not apply because N&D acted in its own economic self-interest and Audthan’s allegations of bad faith were therefore insufficient to overcome the sole remedy provision. Supreme Court interpreted N&D’s argument as conceding that bad faith conduct that is willful or undertaken with malice would render section 33.09 of the lease inapplicable. Although N&D now argues that our decision in *Matter of Part 60 Put-Back Litig.* sharply curtails the holding in *Kalisch-Jarcho* that invalidated some “sole remedy” provisions, the record below is devoid of any mention of *Matter of Part 60 Put-Back Litig.* or any argument that a bad-faith refusal would nevertheless be insulated by a sole remedy provision. That issue is therefore unpreserved for our review on this appeal. The argument N&D did advance—that its conduct was not undertaken in bad faith—cannot be resolved in N&D’s favor on the pleadings taken in the light most favorable to Audthan.

IV.

We have reviewed the remaining arguments N&D advances for dismissal of other portions of the complaint and find them without merit.⁶ Accordingly, the order of the Appellate Division should be modified, without costs, by denying defendant’s motion to dismiss in part in accordance with this opinion, as so modified, affirmed, and certified question answered in the negative.

Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order modified, without costs, by denying defendant’s motion to dismiss in part in accordance with the opinion herein,

6. The parties now agree that N&D cured its previous violation of General Obligations Law § 7-103 (1) and therefore a determination of Audthan’s fourth cause of action seeking return of its security deposit must await consideration of the underlying merits of the case.

as so modified, affirmed, and certified question answered in the negative.

[245 NE3d 1103, 220 NYS3d 654]

In the Matter of the Claim of JUSTIN TIMPERIO, Respondent, v
BRONX-LEBANON HOSPITAL et al., Appellants. WORKERS'
COMPENSATION BOARD, Appellant.

Argued April 16, 2014; decided May 16, 2024

SUMMARY

APPEALS, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered February 3, 2022. The Appellate Division (1) reversed a decision of the Workers' Compensation Board which had affirmed a decision of the Workers' Compensation Law Judge determining that claimant had a compensable work-related injury; and (2) remitted the matter to the Board for further proceedings.

Matter of Timperio v Bronx-Lebanon Hosp., 203 AD3d 179, reversed.

HEADNOTES

Appeal — Parties Aggrieved — Employer and Carrier Aggrieved by Order Dismissing Workers' Compensation Law Claim They Filed on Behalf of Employee

1. Where an employer or its carrier has filed a Workers' Compensation Law claim on behalf of an employee, requested an administrative determination on the claim, and opposed claimant's arguments that no workers' compensation award should be made, the employer and its carrier are aggrieved by an Appellate Division order reversing an award in claimant's favor and dismissing the claim. To the extent *Matter of Parks v Weaver* (14 NY2d 546 [1964]) provides to the contrary, it should not be followed.

Workers' Compensation — Injuries Arising out of and in Course of Employment — Statutory Presumption — Lack of Evidence as to Motivation for Workplace Assault

2. In cases involving assaults that occur at work, a lack of evidence as to the motivation for the assault does not rebut the presumption set forth in Workers' Compensation Law § 21 (1), which provides that when an injury arises in the course of a worker's employment, it is presumed to arise out of that worker's employment and therefore is compensable, absent substantial evidence to the contrary. Accordingly, in a case in which claimant was shot at the hospital where he was working by an assailant with whom he had no prior contact, the presumption applied and was un rebutted and the claim was compensable. It was undisputed that the assault occurred in the course of claimant's employment, thereby triggering the Workers' Compensation Law § 21 (1) presumption. It was also undisputed that the record included no evidence of the motivation for the assault or any indication of a prior relationship between the assailant and claimant; they never worked together, did not know each other, and had no prior communication. The Appellate Divi-

sion therefore erroneously disturbed the Workers' Compensation Board's determination that the claim was compensable. To the extent the Appellate Division has read *Matter of Seymour v Rivera Appliances Corp.* (28 NY2d 406 [1971]) to require an additional affirmative showing of a "nexus" with employment when there is a workplace assault, such a showing is not required.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Workers' Compensation §§ 323, 324.

McKINNEY'S, Workers' Compensation Law § 21 (1).

NY JUR 2d Workers' Compensation §§ 377, 504–506, 652, 654.

ANNOTATION REFERENCE

See ALR Index under Workers' Compensation.

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POINTS OF COUNSEL

Letitia James, Attorney General, Buffalo (Sarah L. Rosenbluth, Barbara D. Underwood and Andrea Oser of counsel), for New York State Workers' Compensation Board, appellant. Substantial evidence supports the Workers' Compensation Board's determination that Justin Timperio's injury was compensable, and the Third Department erred in holding otherwise. (Matter of Zamora v New York Neurologic Assoc., 19 NY3d 186; Matter of Galdon v Robert Basil Inc., 213 AD3d 1063; O'Connor v Midiria, 55 NY2d 538; Aprile-Sci v St. Raymond of Penyafort R.C. Church, 151 AD3d 671; Fouchecourt v Metropolitan Opera Assn., 537 F Supp 2d 629; Matter of Malacarne v City of Yonkers Parking Auth., 41 NY2d 189; Matter of Sarmiento v Empire Contr. of NY Corp., 188 AD3d 1384; Smith v State of New York, 91 AD2d 1181, 59 NY2d 718; Matter of Kaplan v New York City Tr. Auth., 178 AD3d 1262; Matter of Rosen v First Manhattan Bank, 84 NY2d 856.)

Mauro Lilling Naparty LLP, Woodbury (Caryn L. Lilling and Katherine Herr Solomon of counsel), and Weiss, Wexler & Wornow, P.C., New York City (Evan Perigoe of counsel), for Bronx-Lebanon Hospital and another, appellants. I. The Third Depart-

ment improperly declined to apply the Workers' Compensation Law § 21 (1) presumption that claimant's injury arose out of his employment. (*Matter of Barth v Cassar*, 38 AD2d 984; *Matter of Toro v 1700 First Ave. Corp.*, 16 AD2d 852, 12 NY2d 1001; *Matter of Morales v Lopez*, 192 AD3d 1298; *Matter of Siliverdis v Sea Breeze Servs. Corp.*, 82 AD3d 1459; *Matter of Pappas v State Univ. of N.Y. at Binghamton*, 53 AD3d 941; *Matter of Blanchard v Eagle Nest Tenancy in Common*, 285 AD2d 856; *Matter of Marshall v Murnane Assoc.*, 267 AD2d 639; *Matter of Valenti v Valenti*, 28 AD2d 572; *Matter of Bennett v G. O. Dairies*, 114 AD2d 574; *Matter of Lemon v New York City Tr. Auth.*, 72 NY2d 324.) II. The Third Department's decision denying workers' compensation benefits to claimant would strip future victim-employees of compensation for injuries arising from random or unprompted assaults and mass-casualty events at the workplace. (*Maines v Cronomer Val. Fire Dept.*, 50 NY2d 535; *Matter of Valenti v Valenti*, 28 AD2d 572; *Matter of Bennett v G. O. Dairies*, 114 AD2d 574; *Matter of Conyers v Bar*, 38 AD2d 987; *Matter of Blair v Bailey*, 279 AD2d 941; *Matter of Moran v Moran Transp. Lines*, 264 App Div 966; *Matter of Funicello v Chain Bldg. Corp.*, 251 App Div 759; *Matter of Rothenberg v AAA Custom Lab*, 77 AD2d 708; *Matter of Boston v Medical Servs. for Women*, 215 AD2d 845.)

Law Offices of Arnold N. Kriss, Brooklyn (Arnold N. Kriss and Gabriel Taussig of counsel) and Floral Park, for respondent. I. Respondent's injuries are not compensable under Workers' Compensation Law § 10 (1) in that they did not arise out of and in the course of respondent's employment. (*Matter of Lemon v New York City Tr. Auth.*, 72 NY2d 324; *Matter of Malacarne v City of Yonkers Parking Auth.*, 41 NY2d 189; *Matter of Connelly v Samaritan Hosp.*, 259 NY 137; *Matter of McCarter v La Rock*, 240 NY 282; *Matter of Scholtzhauer v C. & L. Lunch Co.*, 233 NY 12; *Matter of Heitz v Ruppert*, 218 NY 148; *Matter of Ognibene v Rochester Mfg. Co.*, 298 NY 85; *Matter of Baker v Hudson Val. Nursing Home*, 233 AD2d 608; *Matter of Giliotti v Hoffman Catering Co.*, 246 NY 279; *Matter of Masek v St. Vincent's Med. Ctr.*, 97 AD2d 580.) II. The Workers' Compensation Law § 21 (1) presumption was rebutted by substantial evidence. (*People ex rel. Vega v Smith*, 66 NY2d 130; *300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176; *Matter of FMC Corp. [Peroxygen Chems. Div.] v Unmack*, 92 NY2d 179; *Matter of Carriage House Motor Inn v City of Watertown*, 136 AD2d 895; *Matter of Johnson v New*

York City Tr. Auth., 182 AD3d 970; *Matter of Grover v State Ins. Fund*, 165 AD3d 1329, 33 NY3d 971; *Matter of Yoga Vida NYC, Inc. [Commissioner of Labor]*, 28 NY3d 1013; *Matter of Hanna v Able Body Labor*, 62 AD3d 1200; *Matter of Rasiej v Syska Hennesy Group Inc.*, 145 AD3d 1332; *Matter of Fatima v MTA Bridges & Tunnels*, 106 AD3d 1327.) III. *Matter of Rosen v First Manhattan Bank* (84 NY2d 856 [1994]) does not compel a determination that respondent's injuries were compensable. (*Matter of Verneau v Consolidated Edison Co. of N.Y., Inc.*, 37 NY3d 387; *Riley v County of Broome*, 95 NY2d 455; *People v Cahill*, 2 NY3d 14; *Matter of Johnson v City of New York*, 38 NY3d 431; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *K mart Corp. v Cartier, Inc.*, 486 US 281; *Clark v Martinez*, 543 US 371; *United States v Reese*, 92 US 214; *Matter of Jean-Pierre v Brookdale Hosp. Med. Ctr.*, 190 AD3d 1053; *Matter of Cuthbert v Panorama Windows Ltd.*, 78 AD3d 1450.) IV. Appellants' broad and sweeping expressions of concern are not warranted. It is for the New York State Legislature to determine whether all random workplace assaults are compensable under the Workers' Compensation Law. (*Matter of Johannesen v New York City Dept. of Hous. Preserv. & Dev.*, 84 NY2d 129; *Murphy v American Home Prods. Corp.*, 58 NY2d 293.)

OPINION OF THE COURT

HALLIGAN, J.

In this appeal, we clarify the operation of the rebuttable presumption set forth in Workers' Compensation Law § 21 (1), which provides that when an injury arises in the course of a worker's employment, it is presumed to arise out of that worker's employment and therefore is compensable, absent substantial evidence to the contrary. In cases involving assaults that occur at work, a lack of evidence as to the motivation for the assault does not rebut that presumption. Thus, the presumption applied and was un rebutted here, and the Appellate Division's contrary conclusion was error.

I.

On June 30, 2017, Henry Bello, a former employee of Bronx-Lebanon Hospital (BLH), entered the hospital wearing a doctor's white medical coat, under which he hid a loaded AR-15 rifle, ammunition magazines, and a juice container filled with gasoline. He proceeded to the 16th floor of the hospital, a non-public area, where petitioner Justin Timperio was working as a first-year resident. Bello opened fire, killing one doctor and

wounding five members of the medical staff—including Timperio—before killing himself. Bello and Timperio were strangers prior to the shooting; they never worked at BLH at the same time and had no other prior contact.

BLH notified the Workers' Compensation Board (WCB) of Timperio's injuries in July 2017. The hospital subsequently requested an administrative decision from the WCB to establish a claim under the Workers' Compensation Law and enter awards. While the matter was proceeding before a Workers' Compensation Law Judge (WCLJ), Timperio filed a negligence action in federal court against BLH and the store that sold Bello the rifle he used in the shooting. After that court rejected BLH's attempt to have the case dismissed, holding that Timperio's injuries were not compensable because "there [was] no evidence suggesting that the shooting originated in work-related differences" (*see Timperio v Bronx-Lebanon Hosp. Ctr.*, 384 F Supp 3d 425, 431-433 [SD NY 2019]), it stayed the action pending resolution of this workers' compensation claim (*Timperio v Bronx-Lebanon Hosp. Ctr.*, 2020 WL 8996683, *1, 2020 US Dist LEXIS 41589, *1 [SD NY, Mar. 9, 2020, 18 Civ 1804 (PGG)]). In September 2020, a WCLJ determined that Timperio's injuries were compensable under the Workers' Compensation Law.¹ Timperio appealed to the WCB, which affirmed the decision.

[1] The Appellate Division reversed (203 AD3d 179, 184-185 [3d Dept 2022]). The Court applied the correct standard that, to be compensable under the Workers' Compensation Law, an injury must have arisen "out of and in the course of a worker's employment" and that under Workers' Compensation Law § 21 (1), an injury that arose in the course of employment is presumed to have arisen out of employment as well (*id.* at 184, citing Workers' Compensation Law § 10 [1] and *Matter of Rosen v First Manhattan Bank*, 84 NY2d 856, 857 [1994]). The Court also acknowledged our holding that "[a]n award of compensation may be sustained even though the result of an assault, so long as there is any nexus, however slender, between the motivation for the assault and the employment" (*id.* at 185, quoting *Matter of Seymour v Rivera Appliances Corp.*, 28 NY2d 406, 409 [1971]). The Court, however, deemed "such nexus . . .

1. A different WCLJ had found Timperio's injuries compensable in an initial proceeding that neither Timperio nor his counsel attended. That decision was vacated due to Timperio's absence, and the September 2020 proceeding followed.

lacking” (*id.*). It held that the lack of record evidence establishing any employment-related animus “was sufficient to rebut the presumption” in Workers’ Compensation Law § 21 (1) and concluded that the claim was therefore not compensable (*id.*). We granted leave to appeal (39 NY3d 910 [2023]).² Because the Appellate Division erred in its application of Workers’ Compensation Law § 21 (1)’s presumption, we now reverse.

II.

Determinations by the WCB must be upheld where they are supported by substantial evidence in the record (*see Matter of Zamora v New York Neurologic Assoc.*, 19 NY3d 186, 192-193 [2012]). Workers’ Compensation Law § 21 (1) provides that “[i]n any proceeding for the enforcement of a claim for compensation under this chapter, it shall be presumed in the absence of substantial evidence to the contrary . . . [t]hat the claim comes within the provision of this chapter.”

We have previously addressed the operation of this presumption in several cases involving workplace assaults. Less than a decade after enactment of Workers’ Compensation Law § 21 (1), we considered the case of a “dairyman’s chauffeur” who, while driving his employer’s car and delivering cheese, was randomly stabbed by an “insane man” who “stabbed any one near him” (*Matter of Katz v Kadans & Co.*, 232 NY 420, 421 [1922]). We concluded that because the chauffeur was “sent into the street on his [employer]’s business” and then injured from “exposure to the risks of the street,” the injury “necessarily [arose] out of his employment” and therefore was compensable (*id.*). Decades later, we affirmed a compensation award to an employee assaulted by a man “he had never previously seen,” because under the Workers’ Compensation Law § 21 (1) presumption, “[w]hen an injury is sustained in the course of employment it will be presumed, as a matter of law, that it did arise out of the employment” (*Matter of Slade v Perkins*, 42 AD2d 667, 668 [3d Dept 1973], *affd* 33 NY2d 988 [1974]). More

2. [1] Where, as here, an employer or its carrier has filed a Workers’ Compensation Law claim on behalf of an employee, requested an administrative determination on the claim, and opposed claimant’s arguments that no workers’ compensation award should be made, the employer and its carrier are aggrieved by an Appellate Division order reversing an award in claimant’s favor and dismissing the claim. To the extent *Matter of Parks v Weaver* (14 NY2d 546 [1964]) provides to the contrary, it should not be followed.

recently, we reiterated the same principle in *Matter of Rosen v First Manhattan Bank* (84 NY2d 856, 857 [1994]).

[2] As stated in Workers' Compensation Law § 21 (1) and recognized by this Court, the presumption is rebuttable by "substantial evidence" establishing that it was not the workplace itself that exposed the employee to harm. But where the assault occurs in the course of employment and there is no evidence as to its motivation, the presumption is triggered and is not rebutted (*see* McKinney's Cons Laws of NY, Book 64, Workmen's Compensation Law § 21 at 143 [1922 ed] [explaining the presumption of Workers' Compensation Law § 21 (1) is "sufficient in a close or evenly balanced case to turn the scale in favor of the employee. And where there is no substantial evidence to overcome the presumption an award will be made"])). Once it has been established that an employee was assaulted "in the course of" employment, the presumption—unless rebutted—obviates the need for an affirmative showing that the assault arose "out of" the employment.

The Appellate Division essentially inverted *Seymour's* "nexus" standard by requiring the Board to come forward with evidence of a nexus to employment. Instead, as we made clear in *Rosen*, *Seymour* stands for the principle that "an assault which arose in the course of employment is presumed to have arisen out of the employment, absent substantial evidence that the assault was motivated by purely personal animosity" (*Matter of Rosen v First Manhattan Bank*, 84 NY2d 856, 857 [1994], citing *Seymour*, 28 NY2d at 409; *see also Seymour*, 28 NY2d at 409 [presumption cannot be rebutted by the inference of personal animosity "in the absence of substantial evidence to support it"])). To the extent the Appellate Division has read *Matter of Seymour* to require an additional affirmative showing of a "nexus" with employment when there is a workplace assault, such a showing is not required.

This reading accords with the text of Workers' Compensation Law § 21 (1) and the purpose of the Workers' Compensation Law, which is to "protect[] work[ers] and their dependents from want in case of injury on the job" (*Matter of Johannesen v New York City Dept. of Hous. Preserv. & Dev.*, 84 NY2d 129, 134 [1994], quoting *Matter of Post v Burger & Gohlke*, 216 NY 544, 553 [1916]). To that end, the Workers' Compensation Law establishes a "broad scheme of compensation" intended to ensure a "swift and sure source of benefits to injured employees" (*Crosby v State of N.Y., Workers' Compensation Bd.*, 57

NY2d 305, 313 [1982]), including in circumstances where an employee might not be able to obtain relief through a common-law tort action.

Here, it is undisputed that the assault occurred in the course of Mr. Timperio's employment, thereby triggering the Workers' Compensation Law § 21 (1) presumption. It is also undisputed that the record includes no evidence of the motivation for the assault or any indication of a prior relationship between the assailant and the claimant; Bello and Timperio never worked together, did not know each other, and had no prior communication. The Appellate Division therefore erroneously disturbed the WCB's determination that the claim is compensable.

Accordingly, the order of the Appellate Division should be reversed, with costs, and the decision of the Workers' Compensation Board reinstated.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and TROUTMAN concur.

Order reversed, with costs, and decision of the Workers' Compensation Board reinstated.

[245 NE3d 1107, 220 NYS3d 658]

In the Matter of MICHELE RAWLINS, Appellant, v TEACHERS'
RETIREMENT SYSTEM OF THE CITY OF NEW YORK et al.,
Respondents.

Argued April 16, 2024; decided May 23, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 26, 2022. The Appellate Division affirmed an order of the Supreme Court, New York County (Arthur Engoron, J.; op 2021 NY Slip Op 34134[U] [2021]), entered in a proceeding pursuant to CPLR article 78, which had (1) denied the petition to annul respondent Teachers' Retirement System of the City of New York's determination denying petitioner's application for accidental disability retirement benefits; and (2) dismissed the proceeding.

Matter of Rawlins v Teachers' Retirement Sys. of the City of N.Y., 205 AD3d 629, affirmed.

HEADNOTE

Civil Service — Retirement and Pension Benefits — Accidental Disability Retirement — What Constitutes Accident

In a CPLR article 78 proceeding challenging the determination by the Medical Board of respondent Teachers' Retirement System of the City of New York denying petitioner's application for accidental disability retirement benefits based upon her post-traumatic stress disorder (PTSD) diagnosis following a series of events at her former school where a food-service worker left her feeling threatened and harassed, substantial evidence supported the determination that petitioner's injury was not caused by an "accident" within the meaning of Retirement and Social Security Law § 605 (f). When a member's disability is alleged to have resulted from the intentional acts of any third party, the relevant question is whether the injury-causing event was sudden, unexpected, and outside the risks inherent in the work performed. The record supported the Board's determination that petitioner's injuries did not result from such an event. Although petitioner claimed that her PTSD was brought on by a particular occurrence which caused petitioner to flee the school building and never return to work, that event was merely the latest of a series of incidents in which the food-service worker trespassed on school property and acted in a confrontational manner toward petitioner, causing her significant stress and anxiety.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Pensions and Retirement Funds §§ 1111–1113,
1115.

CARMODY-WAIT 2d Proceeding Against a Body or Officer
§§ 145:974, 145:976–145:977.

McKINNEY'S, CPLR art 78; Retirement and Social Security Law § 605 (f).

NY JUR 2d Pensions and Retirement Systems §§ 314, 323,
407, 419–421, 423.

ANNOTATION REFERENCE

Relationship between performance of official duties and subsequent disability or death, for purpose of pension or survivorship benefits of government employee other than fireman, policeman, or military personnel. 85 ALR2d 1048.

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Query: "Teachers' Retirement System" & "accidental disability"

POINTS OF COUNSEL

Chet Lukaszewski, P.C., Mineola (*Chester Lukaszewski* of counsel), for appellant. I. Respondents' accidental disability retirement denial was arbitrary and capricious, as petitioner was disabled by an "accident" for pension purposes. (*Matter of Picciurro v Board of Trustees of N.Y. City Police Pension Fund*, Art. II, 46 AD3d 346; *Matter of Tobin v Steisel*, 64 NY2d 254.) II. The Appellate Division misapplied or overlooked the law. III. The Appellate Division overlooked or misapprehended key facts, which warrant review. IV. A conflict with prior decisions of this Court exists. (*Matter of Kelly v DiNapoli*, 30 NY3d 674; *Matter of Walsh v Scoppetta*, 18 NY3d 850.) V. This case involves an issue of public importance. (*Matter of Biondi v McCall*, 239 AD2d 837.) VI. Action is required to correct error below and to cure substantial injustice. VII. There should be no rule that purposeful conduct cannot be an accident; but if there is, criminal acts like occurred herein should not qualify as such. (*Matter of Baird v Kelly*, 25 AD3d 311.) VIII. A finding for respondents could set an inequitable precedent, whereas a finding for petitioner will not result in a wave of accidental disability retirement approvals.

Sylvia O. Hinds-Radix, Corporation Counsel, New York City (*Janet L. Zaleon, Richard Dearing* and *Ingrid R. Gustafson* of counsel), for respondents. The Appellate Division properly upheld the denial of accidental disability retirement benefits.

(*Matter of Borenstein v New York City Employees' Retirement Sys.*, 88 NY2d 756; *Matter of Lichtenstein v Board of Trustees of Police Pension Fund of Police Dept. of City of N.Y.*, Art. II, 57 NY2d 1010; *Matter of Rizzo v DiNapoli*, 39 NY3d 991; *Matter of Kelly v DiNapoli*, 30 NY3d 674; *Matter of Hambel v Regan*, 78 NY2d 1092; *Matter of Starnella v Bratton*, 92 NY2d 836; *Matter of McCambridge v McGuire*, 62 NY2d 563; *Matter of Kowal v DiNapoli*, 30 NY3d 1124, 145 AD3d 1152; *Matter of Whitton v Spinnato*, 143 AD2d 274; *Matter of Impellizeri v Teachers' Retirement Sys. of City of N.Y.*, 173 AD2d 389.)

OPINION OF THE COURT

CANNATARO, J.

Petitioner Michele Rawlins, a member of the respondent Teachers' Retirement System of the City of New York (TRS) and former school principal, commenced this CPLR article 78 proceeding to annul the determination of the TRS Medical Board that she is entitled to ordinary disability retirement benefits but not accidental disability retirement benefits (ADR). We hold that substantial evidence supports the Board's determination that petitioner's injury was not caused by an "accident" within the meaning of the statutory scheme. In reaching this conclusion, we decline to adopt a rule that "purposeful conduct by coworkers" can never be the basis for an award of ADR. When a member's disability is alleged to have resulted from the intentional acts of any third party, the relevant question continues to be whether the injury-causing event was sudden, unexpected, and outside the risks inherent in the work performed.

I.

Petitioner was diagnosed with post-traumatic stress disorder (PTSD) and became unable to perform her job responsibilities following a series of incidents at her former school in which a disgruntled food-service worker left her feeling threatened and harassed. The last such incident occurred in April 2019, when the worker entered the school after having been transferred to another work location and demanded to speak with petitioner, insisting that she had his "belt and wallet." Petitioner, who overheard this encounter from a nearby room, believed the worker's remarks had "sexual overtones" and felt she was being stalked. She fled the school building and never returned to work following the incident.

The Board denied petitioner's initial application for ADR on the ground that she "did not sustain an accident in the work

setting.” It based this determination on petitioner’s description of the events in question, which occurred over the course of at least three months in early 2019. Petitioner subsequently reapplied for ADR and the Board adhered to its prior determination that no qualifying accident occurred, this time adding that “[p]urposeful conduct by coworkers giving rise to a disabling injury is not an accident within the meaning of the pension statute.”

Petitioner commenced this CPLR article 78 proceeding to annul the Board’s determination. Supreme Court denied the petition and dismissed the proceeding, holding that the Board’s determination had a rational basis and noting that “New York courts have held that intentional harassment or assault by a coworker does not constitute a service-related accident” (2021 NY Slip Op 34134[U], *2 [Sup Ct, NY County 2021]). The Appellate Division affirmed, reasoning that the Board “rationally found that petitioner’s injuries resulted not from an accident in the work setting but from ‘[p]urposeful conduct’ by a former coworker, which ‘is not an accident within the meaning of the pension statute’ ” (205 AD3d 629, 630 [1st Dept 2022]). We granted leave to appeal (39 NY3d 914 [2023]) and now affirm.

II.

To qualify for ADR, a TRS member must show that their disability resulted from an “accident” sustained in the performance of their duties (*see* Retirement and Social Security Law § 605 [f]; Administrative Code of City of NY § 13-551). Because the term “accident” is not defined by any applicable statute or regulation, this Court has “adopt[ed] the commonsense definition of a ‘sudden, fortuitous mischance, unexpected, out of the ordinary, and injurious in impact’ ” (*Matter of Lichtenstein v Board of Trustees of Police Pension Fund of Police Dept. of City of N.Y., Art. II*, 57 NY2d 1010, 1012 [1982], quoting *Arthur A. Johnson Corp. v Indemnity Ins. Co. of N. Am.*, 6 AD2d 97, 100 [1st Dept 1958], *affd* 7 NY2d 222 [1959]). Stated differently, an accident is “a sudden, unexpected event that was not a risk inherent in the work performed” (*Matter of Kowal v DiNapoli*, 30 NY3d 1124, 1125 [2018]; *Matter of Kelly v DiNapoli*, 30 NY3d 674, 678, 682, 684-685 [2018]). The Medical Board determines in the first instance whether a TRS member suffers from a disability resulting from a service-related accident (*see* Retirement and Social Security Law § 605 [f]; Administrative Code of City of NY §§ 13-519, 13-550 [a]; 13-551). On article 78

review, the Board's determination to deny ADR generally will not be disturbed if it is based on substantial evidence; that is, if it is rationally supported by the record viewed as a whole (see *Kelly*, 30 NY3d at 684; *Matter of Borenstein v New York City Employees' Retirement Sys.*, 88 NY2d 756, 760-761 [1996]).

Initially, we disagree with the Appellate Division that the Board's determination can be upheld simply because the accident alleged in this case was caused by the purposeful acts of a coworker (see 205 AD3d at 630). We have so far left open the possibility that injuries caused by the intentional acts of a third party might in some cases satisfy the requirements for ADR, and continue to do so today (see *Matter of Walsh v Scopetta*, 18 NY3d 850, 852 [2011]; see also *Matter of McCambridge v McGuire*, 62 NY2d 563, 567 [1984] [the focus of the inquiry is on "the precipitating cause of injury"]; *Arthur A. Johnson Corp.*, 6 AD2d at 100 [observing that "an act, deliberate from the point of view of its initiator, may be considered an accident if seen through the eyes of its victim"]). Indeed, respondents do not urge us to hold that ADR is unavailable as a matter of law when an injury is caused by a coworker's purposeful acts; they instead posit that the Board is permitted to evaluate the underlying facts and circumstances in such a case and "find that the event was unpredictable, sudden, and fortuitous, and also clearly beyond the scope of the duties of the member's job." That measured approach parallels our analysis in *Kowal*, in which we sustained the denial of ADR to a court security officer who was injured when an assailant armed with 40 shotgun shells began to fire indiscriminately into a crowded courthouse lobby. Rather than rely on the assailant's obvious intent to kill or grievously injure, we reasoned that the officer "failed to establish that his injuries were caused by a sudden, unexpected event that was not a risk inherent in the work performed" (30 NY3d at 1125).

Here, similarly, the record supports the Board's determination that petitioner's injuries did not result from an event that was sudden, fortuitous, and unexpected (see *id.*; *Kelly*, 30 NY3d at 678; *Lichtenstein*, 57 NY2d at 1012; see also *Matter of Picciurro v Board of Trustees of N.Y. City Police Pension Fund, Art. II*, 46 AD3d 346, 348-349 [1st Dept 2007]; *Matter of Pisani v Kelly*, 30 AD3d 297, 298 [1st Dept 2006]; *Matter of Sinopoli v McCall*, 245 AD2d 868, 869 [3d Dept 1997], *lv denied* 92 NY2d 803 [1998], *rearg denied* 92 NY2d 921 [1998]; *Matter of Impellizeri v Teachers' Retirement Sys. of City of N.Y.*, 173 AD2d

389, 390 [1st Dept 1991], *lv denied* 78 NY2d 859 [1991]). Although petitioner claims that her PTSD was brought on by the April 2019 occurrence, that event was merely the latest of a series of incidents in which the food-service worker trespassed on school property and acted in a confrontational manner toward petitioner, causing her significant stress and anxiety. As early as February 2019, petitioner informed school officials that the employee was continuously disobeying instructions to keep away from the school and that she was “concerned about the students and the building staff that have to endure his confrontational behavior.” Following another incident in March, petitioner wrote that she “d[id] not feel comfortable with [the employee] given his behavior in the school.” The Board rejected petitioner’s initial ADR application on the ground that “based on the description of the incidents in question that occurred in the work setting on April 18, 2019, as well as the previous events in the work setting in February and March of 2019, [petitioner] has failed to demonstrate that an accident occurred in the work setting.” Because that reasoning is supported by the evidentiary record, the Board’s determination to deny ADR will not be disturbed on this appeal.

Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, TROUTMAN and HALLIGAN concur.

Order affirmed, with costs.

[245 NE3d 1110, 220 NYS3d 661]

NIGEL JOHN ECCLES et al., Appellants, v SHAMROCK CAPITAL
ADVISORS, LLC, et al., Respondents.

Argued April 16, 2024; decided May 23, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 13, 2022. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Andrea Masley, J.; op 2022 NY Slip Op 30187[U] [2022]), which, to the extent appealed from as limited by the briefs, had denied (a) so much of the motion by defendants Michael LaSalle, Edward Oberwager, Andrew Cleland, Matthew King, Carl Vogel, David Nathanson, Fastball Holdings LLC, Fastball Parent 1 Inc., Fastball Parent 2 Inc., PandaCo, Inc., FanDuel Inc., and FanDuel Group, Inc. which was to dismiss the first cause of action for breach of fiduciary duty as against King, Cleland, Oberwager, LaSalle, Vogel, and Nathanson, the second cause of action for breach of fiduciary duty as against King, and the fourth cause of action for aiding and abetting breach of fiduciary duty as against KKR & Co., Inc., Fan Investor Limited, Fan Investors L.P., Shamrock Capital Advisors, LLC, Shamrock Capital Growth Fund III, LP, Shamrock FanDuel Co-Invest LLC, and Shamrock FanDuel Co-Invest II LP (the KKR/Shamrock defendants); and (b) so much of the motion by KKR & Co., Inc., Fan Investor Limited, Fan Investors L.P., Shamrock Capital Advisors, LLC, Shamrock Capital Growth Fund III, LP, Shamrock FanDuel Co-Invest LLC, and Shamrock FanDuel Co-Invest II, LP to dismiss the fourth cause of action; (2) granted those portions of defendants' motions; and (3) directed the Clerk to enter judgment dismissing the complaint.

Eccles v Shamrock Capital Advisors, LLC, 209 AD3d 486, reversed.

HEADNOTES

Conflict of Laws — What Law Governs — Internal Affairs Doctrine — Substantive Law of Place of Incorporation

1. The substantive law of a company's place of incorporation presumptively applies to causes of action arising from its internal affairs. In order to overcome this presumption and establish the applicability of New York law, a party must demonstrate both that the interest of the place of incorporation is

minimal and that New York has a dominant interest in applying its own substantive law. Accordingly, in an action arising out of a merger between defendant Scottish company and the United States assets of another foreign corporation, the Appellate Division properly held that Scots law, the law of the company's place of incorporation, presumptively applied to plaintiffs' claims, and plaintiffs' allegations were insufficient to overcome the presumption. Plaintiffs' allegations involved the internal affairs of the Scottish company, as the complaint centered around the valuation of merger consideration by the director defendants in the course of approving a merger agreement and their legal duties to certain shareholders as it pertained to those actions. The company had considerable contacts with Scotland, as five of the plaintiffs founded the company in Scotland and registered it under the United Kingdom Companies Act, its articles of association expressly referenced the Act as the governing law, it maintained offices in Scotland, and a plurality of the plaintiffs lived in Scotland. Moreover, New York did not have a dominant interest in applying its own law, as only 10-15% of the company's total revenue was derived from New York customers.

Evidence — Judicial Notice — Content of Foreign Law

2. In an action arising out of a merger between defendant Scottish company incorporated in Scotland and the United States assets of another foreign corporation, the Appellate Division did not err in taking judicial notice of the applicable Scots law in resolving defendants' motions to dismiss and did not abuse its discretion in doing so without remitting for a hearing. The construction of foreign law is a legal question that may be appropriate for summary resolution when sufficient information based on documentary and other evidence is presented. While a court, in its discretion, might defer decision on the motion and choose to hold a hearing so that it may conduct additional inquiry into the foreign law question, such a hearing is not mandated as a matter of course. Nothing in the text of CPLR 4511 or other CPLR provisions purports to require a hearing when there is a dispute as to the content of foreign law so long as the court has "sufficient information" to determine that law without one (CPLR 4511 [b]). Here, the foreign jurisdiction's laws and cases are written in English, and the applicable principles derive from English common law. Additionally, the parties provided voluminous materials, including expert affidavits, relevant statutes, and dozens of cases, which cogently explained the relevant principles. The dispute between the experts centered more around the application of Scots law to the facts of the case rather than the substance of Scots law.

Corporations — Officers and Directors — Shareholders' Claim for Breach of Fiduciary Duty under Scots Law

3. In an action by plaintiffs, common shareholders and founding members of a Scottish company, alleging that defendants, the company's directors, breached their fiduciary duties by deliberately undervaluing the company's assets during merger negotiations which ultimately prevented plaintiffs from receiving any consideration based on the merger, plaintiffs sufficiently stated a claim under Scots law that defendants at least owed limited fiduciary duties to plaintiffs. The fiduciary duties owed by a director to a shareholder personally are dependent on establishing a special factual relationship between the director and the shareholder in the particular case. The interaction between the waterfall provision in the company's articles of association and defendants' drag-along rights left the common shareholders in an especially vulnerable position. The arrangement could have given rise to an inference that defendants, in being vested with the power to negotiate a merger

agreement and subsequently value intangible merger consideration, undertook a duty not to undermine the common shareholders' interests in those transactions, much less to do so for their own self-interest. In effect, defendants could have been deemed entrusted with properly valuing and distributing any merger consideration so as to protect the common shareholders' interest in any corporate value in excess of the stated amount. A finding that no such limited duty existed would effectively hold that, by authorizing the restructuring, plaintiffs agreed that defendants should be allowed to prefer and promote their own interests at the expense of the common shareholders by intentionally undervaluing the merger consideration. Based on the unique circumstances of the case, plaintiffs' allegations at least gave rise to a possible inference that special circumstances were present, and defendants' documentary evidence did not utterly refute the allegations.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Corporations §§ 15, 1442, 1558, 1563–1564, 1944; AM JUR 2d Evidence §§ 116, 120, 123; AM JUR 2d Foreign Corporations §§ 331, 341.

CARMODY-WAIT 2d General Rules of Pleading § 27:27; CARMODY-WAIT 2d Actions and Proceedings by and Against Corporations, Their Officers, Directors, and Shareholders §§ 121:166, 121:172, 121:208.

McKINNEY'S, CPLR 4511 (b).

NY JUR 2d Business Relationships §§ 692, 697, 1153; NY JUR 2d Evidence and Witnesses §§ 22, 37, 496.

ANNOTATION REFERENCES

Determination of question relating to foreign law as one of law or of fact. 34 ALR 1447.

What law governs as to shareholder's right to maintain derivative action. 93 ALR2d 1354.

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POINTS OF COUNSEL

Nixon Peabody LLP, New York City (*Stephen P. Younger*, *Erik A. Goergen* and *Paul F. Downs* of counsel), and *Bartlit Beck LLP*, Chicago, Illinois (*Sean W. Gallagher*, admitted pro hac vice, *Nevin M. Gewertz* and *Cindy L. Sobel*, admitted pro hac vice, of counsel), for appellants. I. The First Department erred by ignoring longstanding conflicts of law precedent and applying the internal affairs doctrine without considering New York's

interests in this dispute. (*German-American Coffee Co. v Diehl*, 216 NY 57; *Greenspun v Lindley*, 36 NY2d 473; *Babcock v Jackson*, 12 NY2d 473; *Intercontinental Planning v Daystrom, Inc.*, 24 NY2d 372; *Israel Discount Bank v Rosen*, 59 NY2d 428; *Schultz v Boy Scouts of Am.*, 65 NY2d 189; *Cooney v Osgood Mach.*, 81 NY2d 66; *Hart v General Motors Corp.*, 129 AD2d 179; *Norlin Corp. v Rooney, Pace Inc.*, 744 F2d 255; *Tyco Intl., Ltd. v Kozlowski*, 756 F Supp 2d 553.) II. The First Department erred by determining the substance of disputed Scots law issues without discovery, an evidentiary hearing, or initial findings by the trial court, as is required by CPLR 4511 and long-standing New York practice. (*Carlington Sales Co. v Zao Trade House IEC-Intorg*, 265 AD2d 258; *Rosman v Trans World Airlines*, 34 NY2d 385; *Matter of Duysburgh*, 154 Misc 2d 82; *De Sairigne v Gould*, 3 Misc 2d 452, 1 AD2d 820; *Pfleuger v Pfleuger*, 304 NY 148; *Hamilton v Miller*, 23 NY3d 592; *People v Jones*, 73 NY2d 427; *King v Kloczek*, 187 AD3d 1614; *Leon v Martinez*, 84 NY2d 83; *Goshen v Mutual Life Ins. Co. of N.Y.*, 98 NY2d 314.)

Proskauer Rose LLP, Los Angeles, California (*Jonathan M. Weiss*, admitted pro hac vice, and *Bart H. Williams*, admitted pro hac vice, of counsel), New York City (*Timothy W. Mungovan* of counsel) and Boston, Massachusetts (*Michael R. Hackett*, admitted pro hac vice, and *William D. Dalsen* of counsel), for Shamrock Capital Advisors, LLC and others, respondents, and *Quinn Emanuel Urquhart & Sullivan, LLP*, New York City (*Andrew J. Rossman*, *William B. Adams*, *Ellison Ward Merkel* and *Matthew Fox* of counsel) and Chicago, Illinois (*Joseph H. Margolies* of counsel), for KKR & Co., Inc. and others, respondents. I. The First Department correctly held that plaintiffs' fiduciary breach claims are governed by the law of the place of incorporation. (*Merrick v Van Santvoord*, 34 NY 208; *Cohn v Mishkoff Costello Co.*, 256 NY 102; *Matter of American Fibre Chair Seat Corp.*, 265 NY 416; *Diamond v Oreamuno*, 24 NY2d 494; *Royal China, Inc. v Regal China Corp.*, 304 NY 309; *Sternfeld v Toxaway Tanning Co.*, 290 NY 294; *Langfelder v Universal Labs.*, 293 NY 200; *German-American Coffee Co. v Diehl*, 216 NY 57; *Skolnik v Rose*, 55 NY2d 964; *Demarest v Flack*, 128 NY 205.) II. The First Department properly determined the governing foreign law. (*Bingham v New York City Tr. Auth.*, 99 NY2d 355; *Misicki v Caradonna*, 12 NY3d 511; *Matter of Garayua v New York City Police Dept.*, 68 NY2d 970; *Matter of City of New York v New York City Civ. Serv. Commn.*, 6 NY3d 855; *Matter of Chemical Specialties Mfrs. Assn. v Jorling*, 85

NY2d 382; *Pfleuger v Pfleuger*, 304 NY 148; *Rosman v Trans World Airlines*, 34 NY2d 385; *Andes Petroleum Ecuador Ltd. v Occidental Petroleum Co.*, 213 AD3d 403; *Carlington Sales Co. v Zao Trade House IEC-Intorg*, 265 AD2d 258; *Rawitz v Rawitz*, 31 AD2d 832.)

King & Spalding LLP, New York City (Mark A. Kirsch and Matthew L. Biben of counsel) and Washington, D.C. (Kellam M. Conover, admitted pro hac vice, of counsel), for Andrew Cleland and others, respondents. I. The First Department correctly applied settled internal-affairs law. (*Edgar v MITE Corp.*, 457 US 624; *Cohn v Mishkoff Costello Co.*, 256 NY 102; *Matter of American Fibre Chair Seat Corp.*, 265 NY 416; *Diamond v Oreamuno*, 24 NY2d 494; *Greenspun v Lindley*, 36 NY2d 473; *Zion v Kurtz*, 50 NY2d 92; *Davis v Scottish Re Group Ltd.*, 30 NY3d 247; *German-American Coffee Co. v Diehl*, 216 NY 57; *Demarest v Flack*, 128 NY 205; *Ripley v International Rys. of Cent. Am.*, 8 AD2d 310.) II. The First Department properly applied CPLR 4511. (*Matter of Garayua v New York City Police Dept.*, 68 NY2d 970; *Matter of City of New York v New York City Civ. Serv. Commn.*, 6 NY3d 855; *Misicki v Caradonna*, 12 NY3d 511; *Rosman v Trans World Airlines*, 34 NY2d 385; *Pfleuger v Pfleuger*, 304 NY 148; *Lerner v Karageorgis Lines*, 66 NY2d 479; *Feinberg v Feinberg*, 40 NY2d 124; *Caffrey v North Arrow Abstract & Settlement Servs., Inc.*, 160 AD3d 121; *HSBC Guyerzeller Bank AG v Chascona N.V.*, 42 AD3d 381; *Harris S.A. De C.V. v Grupo Sistemas Integrales De Telecomunicacion S.A. De C.V.*, 279 AD2d 263.)

Harris Beach PLLC, Pittsford (Svetlana K. Ivy of counsel), and *The Business Council of New York State, Inc.*, Albany (Heather Briccetti Mulligan of counsel), for The Business Council of New York State Inc. and another, amici curiae. This case presents issues of utmost importance to the New York State business community, and the confusion created by the Appellate Division decision regarding the standard governing choice-of-law analyses must be resolved and clarified. (*Greenspun v Lindley*, 36 NY2d 473; *State of New York by Abrams v General Motors Corp.*, 547 F Supp 703; *W.W.W. Assoc. v Giancontieri*, 77 NY2d 157; *Vermont Teddy Bear Co. v 538 Madison Realty Co.*, 1 NY3d 470; 159 MP Corp. v Redbridge Bedford, LLC, 33 NY3d 353; *Deutsche Bank Natl. Trust Co. v Barclays Bank PLC*, 34 NY3d 327.)

Albany Law School, Albany (Patrick M. Connors of counsel),

and *Whiteman Osterman & Hanna LLP*, Albany (*Robert S. Rosborough IV* and *Alan J. Goldberg* of counsel), for Patrick M. Connors and another, amici curiae. I. For centuries, courts have used judicial notice in legal proceedings to dispense with formal evidentiary proof of matters that are undisputed or indisputable. (*People v Jones*, 73 NY2d 427; *Wood v North W. Ins. Co.*, 46 NY 421; *Pfleuger v Pfleuger*, 304 NY 148; *Ackermann v Union Bank of Switzerland*, 193 Misc 210.) II. It is helpful to consider how New York courts have treated foreign law disputes at common law, under former Civil Practice Act § 344-a, and now under CPLR 4511. (*Croker v Croker*, 252 NY 24; *Hanna v Lichtenhein*, 225 NY 579; *Gevinson v Kirkeby-Natus Corp.*, 26 AD2d 71; *Cohen v Gilbert*, 12 AD2d 301; *Arams v Arams*, 182 Misc 328; *Rubino v Bondi*, 36 Misc 2d 973; *De Sairigne v Gould*, 3 Misc 2d 452, 1 AD2d 820; *Schwartz v Schwartz*, 190 Misc 757; *Chappell v Chappell*, 186 Misc 968; *Tuffarella v Erie R.R. Co.*, 33 Misc 2d 1040.) III. Where a foreign jurisdiction's law is found applicable for the first time on appeal, and a material and substantial dispute exists concerning the substance of foreign law, the proper course is remand to Supreme Court to determine and apply the foreign law in the first instance and to allow amendments to pleadings. (*Squadrito v Griebisch*, 1 NY2d 471; *Doe v Bloomberg L.P.*, 36 NY3d 450; *Bank of N.Y. v Norilsk Nickel*, 14 AD3d 140, 4 NY3d 843; *Paulicopter-Cia. v Bank of Am., N.A.*, 182 AD3d 458; *Minovici v Belkin BV*, 109 AD3d 520; *Andes Petroleum Ecuador Ltd. v Occidental Petroleum Co.*, 213 AD3d 403; *Carlington Sales Co. v Zao Trade House IEC-Intorg*, 265 AD2d 258; *People v Becker*, 210 NY 274; *Matter of Cook v Mohawk Airlines*, 37 AD2d 882; *Chankalian v Powers*, 89 App Div 395.)

John J. Halloran, Jr., P.C., White Plains (*John J. Halloran, Jr.* of counsel), for Patrick J. Borchers and others, amici curiae. I. The Appellate Division erred in failing to conduct the requisite interest analysis. (*Babcock v Jackson*, 12 NY2d 473; *Indosuez Intl. Fin. v National Reserve Bank*, 98 NY2d 238; *Padula v Lilarn Props. Corp.*, 84 NY2d 519; *Intercontinental Planning v Daystrom, Inc.*, 24 NY2d 372; *Travis v Knox Terpezone Co.*, 215 NY 259; *Cohn v Mishkoff Costello Co.*, 256 NY 102; *Broida v Bancroft*, 103 AD2d 88; *Davis v Scottish Re Group Ltd.*, 30 NY3d 247; *Zion v Kurtz*, 50 NY2d 92; *Greenspun v Lindley*, 36 NY2d 473.) II. Justice, fairness and the best practical result are achieved by giving controlling effect to the law of the state of New York. (*Schultz v Boy Scouts of Am.*, 65 NY2d 189; *Leon v Martinez*, 84 NY2d 83; *Greenspun v Lindley*, 36

NY2d 473; *Israel Discount Bank v Rosen*, 59 NY2d 428; *Howell v City of New York*, 39 NY3d 1006; *Bing v Thunig*, 2 NY2d 656; *Meinhard v Salmon*, 249 NY 458; *J. Zeevi & Sons v Grindlays Bank [Uganda]*, 37 NY2d 220; *Pallavicini v International Tel. & Tel. Corp.*, 41 AD2d 66, 34 NY2d 913; *Ehrlich-Bober & Co. v University of Houston*, 49 NY2d 574.)

Wachtell, Lipton, Rosen & Katz, New York City (*Anitha Reddy* and *Alyssa Hunt* of counsel), and *Securities Industry and Financial Markets Association*, Washington, D.C. (*Kevin Carroll* of counsel), for Securities Industry and Financial Markets Association, amicus curiae. I. The internal affairs doctrine is properly applied to determine the law governing claims by shareholders against directors for breach of their duties. (*Zion v Kurtz*, 50 NY2d 92; *Edgar v MITE Corp.*, 457 US 624; *First Nat. City Bank v Banco Para el Comercio Exterior de Cuba*, 462 US 611; *Resolution Trust Corp. v Chapman*, 29 F3d 1120; *Cooney v Osgood Mach.*, 81 NY2d 66; *Zion v Kurtz*, 50 NY2d 92; *Hart v General Motors Corp.*, 129 AD2d 179; *CTS Corp. v Dynamics Corp. of America*, 481 US 69; *In re BP P.L.C. Derivative Litig.*, 507 F Supp 2d 302.) II. Plaintiffs' policy arguments do not justify weakening the strong presumption of the internal affairs doctrine in favor of applying the law of the state of incorporation to intracorporate disputes.

Cooley LLP, San Francisco, California (*Kathleen R. Hartnett* of counsel), Palo Alto, California (*Samantha A. Kirby*, admitted pro hac vice, and *Amie L. Simmons*, admitted pro hac vice, of counsel), New York City (*Patrick Hayden* of counsel) and Washington, D.C. (*Alexander J. Kasner*, admitted pro hac vice, of counsel), for Charles K. Whitehead and others, amici curiae. I. The settled internal affairs doctrine promotes and protects corporate stability. (*Edgar v MITE Corp.*, 457 US 624; *Hart v General Motors Corp.*, 129 AD2d 179; *Nagy v Riblet Prods. Corp.*, 79 F3d 572; *First Nat. City Bank v Banco Para el Comercio Exterior de Cuba*, 462 US 611; *James Sq. Assoc. LP v Mullen*, 21 NY3d 233; *Landgraf v USI Film Products*, 511 US 244; *Babcock v Jackson*, 12 NY2d 473.) II. New York and all other states have uniformly applied the internal affairs doctrine. (*Merrick v Van Santvoord*, 34 NY 208; *City of Aventura Police Officers' Retirement Fund v Arison*, 70 Misc 3d 234; *Potter v Arrington*, 11 Misc 3d 962; *Cohn v Mishkoff Costello Co.*, 256 NY 102; *Matter of American Fibre Chair Seat Corp.*, 265 NY 416; *Diamond v Oreamuno*, 24 NY2d 494; *Greenspun v Lindley*, 36 NY2d 473; *Nothiger v Corroon & Reynolds Corp.*,

266 App Div 299; *Zion v Kurtz*, 50 NY2d 92; *Haussmann v Baumann*, 217 AD3d 569.) III. Failing to apply the internal affairs doctrine will have practical, negative consequences in New York. (*Hausman v Buckley*, 299 F2d 696; *Ehrlich-Bober & Co. v University of Houston*, 49 NY2d 574.)

OPINION OF THE COURT

SINGAS, J.

This case requires us to resolve questions that frequently confront our courts in the course of international business disputes. Consistent with New York's established interest analysis approach to choice-of-law issues, we hold that, with rare exception, the substantive law of the place of incorporation applies to disputes involving the internal affairs of a corporation. Once a court determines that another jurisdiction's law governs, it has significant flexibility and discretion in deciding whether to take notice of that foreign law and apply it to the case at hand. In the present case, the Appellate Division correctly concluded that Scots law applies to plaintiffs' claims and appropriately took judicial notice of its content in resolving defendants' motions to dismiss. We conclude, however, that plaintiffs have sufficiently pleaded causes of action for breach of fiduciary duty under Scots law. Accordingly, we reverse the Appellate Division order.

I.¹

This dispute centers on events surrounding a 2018 merger between FanDuel Ltd. (FanDuel) and the United States assets of nonparty Paddy Power Betfair plc (Paddy Power). In 2007, plaintiffs Nigel Eccles, Lesley Eccles, Thomas Griffiths, Robat Jones, and Chris Stafford founded FanDuel's predecessor, Hubdub Ltd. (Hubdub), in Scotland. Though Hubdub originally allowed users to place bets on current events, the business's focus soon turned to fantasy sports, eventually entering the daily fantasy sports industry through FanDuel. Expanding into the American fantasy sports market in 2009, FanDuel grew rapidly and established its headquarters in New York in 2011.

By 2015, FanDuel's principal competitor was DraftKings, and the two companies were engaged in an expensive market-

1. The facts in part I are recounted accepting—as we must on this motion to dismiss—plaintiffs' factual allegations as true (see *Leon v Martinez*, 84 NY2d 83, 87 [1994]).

ing war. The following year, FanDuel and DraftKings agreed to a “merger of equals,” in which the two companies would combine, and each company’s shareholders would receive half of the equity of the new company. At that time, pursuant to its Articles of Association (Articles), FanDuel had multiple share classes and a “waterfall provision” governing the distribution of the merger proceeds. For purposes of that merger deal, FanDuel’s negotiating committee settled on a fully diluted equity valuation of \$1.2 billion. A majority of FanDuel shareholders agreed to this valuation, but the merger was ultimately abandoned due to antitrust and other regulatory challenges.

On the heels of the failed merger, FanDuel’s shareholders sought to simplify the company’s ownership structure. FanDuel’s board—including some plaintiffs—and its shareholders approved a set of amendments to the Articles. The reforms collapsed the classes of stock into two categories: “A Preference Shares” (preferred shares) and “New Ordinary Shares” (common shares). As relevant here, Article 83 of the Articles maintained the waterfall provision, which provided that in the event of the winding down of the company, preferred shareholders were entitled to be compensated first for the value of their stock. Article 83 limited the extent of the preferred shareholders’ remuneration to the original subscription price of their shares. During the events at issue, the total subscription price of the preferred shares amounted to approximately \$559 million. Any “aggregate consideration” that the company received above this amount would be distributed to the common shareholders on a pro rata basis.

Defendants Shamrock Capital Advisors, LLC, Shamrock Capital Growth Fund III, LP, Shamrock FanDuel Co-Invest LLC, and Shamrock FanDuel Co-Invest II, LP (collectively, Shamrock), and KKR & Co., Inc., Fan Investor Limited, and Fan Investors L.P. (collectively, KKR), held respectively 15% and 21% of the preferred shares. They were also designated “dragging shareholders” by Article 78 of the Articles. As dragging shareholders, Shamrock and KKR held the power to compel the other FanDuel shareholders to submit to a proposed merger offer. The Articles mandated that any such offer be based on “bona fide arm’s length terms.”

In 2018, the board of directors began to explore financing options for the company with the assistance of Moelis & Company (Moelis). Moelis purportedly presented several options to the board, including a potential merger with Paddy Power, a Brit-

ish sports betting company. That presentation did not assign any potential value to FanDuel or the merged entity, but provided an appendix projecting that, if sports betting was legalized in the United States, FanDuel would earn more than \$1.1 billion in annual revenue within five years. FanDuel thereafter entered into merger negotiations with Paddy Power. The negotiations unfolded as the United States Supreme Court considered *Murphy v National Collegiate Athletic Assn.* (584 US 453 [2018]), a case that had the potential impact of allowing states to legalize sports gambling. On April 28, 2018, FanDuel and Paddy Power agreed to a nonbinding set of terms for a merger; the two companies would be compensated for their contributions of capital to the merger with stock in what would become the new company, defendant PandaCo, Inc. (PandaCo).² Under the terms, the FanDuel shareholders would be entitled to an approximate 40% share in the new company compared to Paddy Power's approximate 60% share.³ Notably, the draft term sheet specified that for the purposes of the merger the values of the two companies would remain the same regardless of the outcome of *Murphy*. It noted that the "waterfall of, and allocation of proceeds among, Fan[D]uel stockholders remain[ed] subject to discussion."

On May 14, 2018, the Supreme Court held that Congress could not preclude states from legalizing sports gambling (*see Murphy*, 584 US 483). On May 22, FanDuel's directors, including defendants Michael LaSalle, Edward Oberwager, Andrew Cleland, Matthew King, Carl Vogel, and David Nathanson (collectively, the director defendants),⁴ and Andrin Bachmann held a board meeting in New York. They unanimously voted to

2. Defendants FanDuel Inc. and FanDuel Group, Inc. (collectively, FanDuel Group), together operate as the corporate form of PandaCo.

3. For purposes of this calculation, the draft term sheet assigned FanDuel an equity value of \$514.1 million multiplying its revenue by four and subtracting the company's net debt. It assigned Paddy Power's United States assets an equity value of \$679.1 million multiplying its EBITDA (earnings before interest, taxes, depreciation, and amortization) by 18 and adding the \$145 million in cash Paddy Power had agreed to contribute to the newly formed entity.

4. According to the complaint, LaSalle was appointed to the FanDuel board in 2014 by Shamrock Capital Advisors, LLC, where he was a partner. Oberwager was appointed to the board in 2015 by KKR & Co., Inc., where he was a director. Cleland was appointed to the board by Comcast Ventures, which owned over 14% of the preferred shares. King previously served as a director of KKR & Co., Inc., and owned preferred shares. Vogel was allegedly appointed based on his relationship with KKR & Co., Inc., where he served

(n. cont'd)

proceed with the merger in accordance with the nonbinding terms, resolving that the consideration FanDuel would receive was to be distributed to the shareholders in accordance with Article 83. At the meeting, the chairperson reminded the board of its statutory duties under the UK Companies Act 2006 (Companies Act) to promote the welfare of the corporation. The director defendants voted to proceed with the merger, and resolved that the consideration—i.e., the PandaCo shares—would be distributed through the waterfall provision. It further resolved that

“the value of the consideration to be run through such waterfall would be based on the implied enterprise value of both [FanDuel] and the assets [Paddy Power] was contributing to [PandaCo] as had initially been agreed in the Term Sheet, net of certain mutually agreed deductions for the purposes of establishing an equity value of each such contribution, which, in the aggregate, resulted in the [PandaCo] shares to be run through such waterfall being considered worth an aggregate amount equal to \$465.5 million.”

The board did not seek an independent valuation of that consideration. Bachmann abstained from the vote concerning the valuation of the proceeds. The next day, FanDuel, through its Chief Executive Officer (CEO) King, signed a “Contribution Agreement” with Paddy Power and PandaCo outlining the terms of the merger and setting a “Signing Date Share Price” for a single share of PandaCo.

On June 30, FanDuel received both a formal offer to acquire all of its shares in exchange for approximately 40% of PandaCo’s shares, and a notice that KKR and Shamrock were exercising their drag-along rights and accepting the offer on behalf of all FanDuel shareholders (Drag Along Notice).⁵ Thus, no shareholder vote was held on the merger. Plaintiffs first received notice of the merger on July 3, pursuant to an email from FanDuel’s Chief Legal Officer. The email contained a sum-

as an advisor, and stood to gain a “sizeable management carve-out” upon completion of the merger. Each allegedly held an indirect interest in the merger through private equity funds that held preferred shares. Nathanson was allegedly appointed based on his relationship with Shamrock Capital Advisors, LLC, and also stood to gain from the management carve-out.

5. The Drag Along Notice was signed by Oberwager on behalf of KKR and LaSalle on behalf of Shamrock.

mary of the merger, the Drag Along Notice, and the offer letter. Plaintiffs never received the Contribution Agreement.

The merger closed on July 11, 2018. Because the merger proceeds were valued at \$465.5 million—below the total \$559 million subscription price of the preferred shares—when the preferred shareholders were compensated first in accordance with Article 83, they received the entirety of FanDuel’s approximate 40% share in PandaCo. FanDuel’s common shareholders received nothing, and FanDuel was effectively dissolved. Pursuant to an agreement whereby acceptance of the PandaCo offer would grant defendants Fastball Holdings LLC, Fastball Parent 1 Inc., and Fastball Parent 2 Inc. (Fastball Holdings) a call option for the FanDuel shareholder’s PandaCo shares, Fastball Holdings immediately exercised its call option, and these shares were subsequently conveyed. Fastball Holdings was controlled by three of the defendant directors along with KKR and Shamrock and owned entirely by FanDuel’s former preferred shareholders.

II.

After procedural history in Scotland not directly relevant here, plaintiffs, a group of over 100 common shareholders and founding members of FanDuel who collectively owned around 10% of its common shares,⁶ commenced the instant action pleading causes of action under New York law. Plaintiffs alleged that defendants engaged in a scheme designed to ensure that FanDuel’s preferred shareholders exclusively would benefit from the merger with Paddy Power. To effectuate the scheme, plaintiffs asserted, defendants deliberately undervalued FanDuel’s assets during the merger negotiations to be equivalent to the value of the preferred shares, when in reality FanDuel was worth significantly more in light of the outcome of *Murphy*. The first and second causes of action alleged that the director defendants “owed fiduciary duties” to FanDuel’s shareholders, and that they breached these duties because they were financially interested in the merger and acted in their own self-interest, failing to treat the shareholders with entire fairness. Specifically, plaintiffs alleged that the director defendants breached these duties by failing to obtain a fair

6. Plaintiffs are residents of Scotland, England, New York, California, Florida, Massachusetts, Texas, Pennsylvania, New Jersey, Indiana, Washington, Connecticut, Illinois, Tennessee, Virginia, Utah, Nevada, Minnesota, Arizona, and Delaware.

valuation of the PandaCo shares and impermissibly imposing their own depressed valuation in order to enrich the preferred shareholders at the expense of the common shareholders.⁷ The third cause of action asserted a claim for breach of fiduciary duty against KKR and Shamrock. The fourth cause of action asserted a claim of aiding and abetting a breach of fiduciary duty against KKR, Shamrock, the FanDuel Group, Fastball Holdings, and PandaCo for “substantially assisting” the director defendants in their breaches of fiduciary duties. Lastly, the fifth cause of action asserted a claim of unjust enrichment against KKR, Shamrock, and Fastball Holdings.

The director defendants, FanDuel Group, Fastball Holdings, and PandaCo (collectively, the FanDuel defendants), moved to dismiss the complaint for failure to state a cause of action and based on documentary evidence (*see* CPLR 3211 [a] [1], [7]). The FanDuel defendants argued that under the internal affairs doctrine of choice of law, Scots law applied to plaintiffs’ claims, which arose from the relationships between and among the directors and shareholders of an entity incorporated in Scotland. The FanDuel defendants next asserted that under Scots law, plaintiffs’ claims, which sounded in alleged duties owed by directors to shareholders as well as duties owed among shareholders, were not cognizable. Lastly, they argued that plaintiffs failed to state a claim even if New York law applied. In support of their motion, the FanDuel defendants submitted the affirmation of Lord James Edward Drummond Young, a retired Judge of the Supreme Courts of Scotland, to explain how Scots law would apply to the asserted claims. Lord Drummond Young opined that under Scots law, plaintiffs’ claims against the director defendants were not cognizable because directors owed duties only to the company as a whole rather than to the shareholders specifically.⁸ Acknowledging that in special factual circumstances such a duty could arise, Lord Drummond Young opined that in the instant case no special relationship arose between the director defendants and plaintiffs. KKR and Shamrock separately moved to dismiss the complaint for similar reasons asserted by the FanDuel defendants.

7. The second cause of action alleged that King breached additional duties in his role as CEO.

8. Under New York law, directors of a corporation owe fiduciary duties to the body of shareholders to protect their ownership interests (*see Giblin v Murphy*, 73 NY2d 769, 771 [1988]) and to act in good faith, “treat[ing] all shareholders, majority and minority, fairly” (*Alpert v 28 Williams St. Corp.*, 63 NY2d 557, 569 [1984]).

Plaintiffs opposed the motion, arguing that the internal affairs doctrine was inapplicable and that, even if it did apply, New York law should nonetheless control under choice-of-law principles because New York had a greater interest in the litigation. As relevant here, plaintiffs contended, citing *Greenspun v Lindley* (36 NY2d 473 [1975]), that pursuant to New York's interest analysis for determining the applicable law in tort cases, FanDuel's significant contacts with this state required the application of New York substantive law to their claims. Plaintiffs argued that they adequately stated causes of action under New York law. In support of their fallback argument that their claims could survive the application of Scots law, plaintiffs submitted the affirmation of King's Counsel David Michael Thomson, a Scottish corporate attorney, to contest Lord Drummond Young's interpretation of Scots law. Although Thomson agreed with Lord Drummond Young that directors generally owe duties only to the company as a whole, he asserted that the complaint sufficiently alleged special factual circumstances creating fiduciary obligations between the director defendants and plaintiffs.

Supreme Court granted the FanDuel defendants' motion to the extent of dismissing the fifth cause of action and otherwise denied it, and granted KKR and Shamrock's motion to the extent of dismissing the third and fifth causes of action and otherwise denied it (*see* 2022 NY Slip Op 30187[U] [Sup Ct, NY County 2022]). The court held that New York law applied to plaintiffs' claims because the internal affairs doctrine was inapplicable "where the defendants are not current officers, directors and shareholders" at the time of the lawsuit (*id.* at *16). The court further held that, with respect to plaintiffs' claims against FanDuel Group, PandaCo, and the Fastball defendants, these entities were never directors or shareholders of FanDuel, and the doctrine was accordingly inapplicable to them as well (*id.* at *17). Proceeding to the merits, the court held that under New York law, plaintiffs adequately stated their claims for breach of fiduciary duty as against the director defendants and their claim for aiding and abetting a breach of fiduciary duty as against KKR, Shamrock, FanDuel Group, PandaCo, and Fastball, and that defendants' documentary evidence did not refute these allegations (*id.* at *17-21, *23-26). However, the court held that plaintiffs failed to state a cause of action for breach of fiduciary duty against KKR and Shamrock or for

unjust enrichment. Defendants appealed the order to the extent that it denied their motions to dismiss (*id.* at *21-23, *26).⁹

The Appellate Division reversed the order to the extent appealed from and granted defendants' motions (*see* 209 AD3d 486 [1st Dept 2022]). The Court first held that plaintiffs' claims against the director defendants for breaches of fiduciary duty were governed by Scots law under the internal affairs doctrine (*id.* at 487-488). Noting that FanDuel was incorporated in Scotland, the Court explained that "relationships between a company and its directors and shareholders are generally governed by the substantive law of the jurisdiction of incorporation" (*id.* at 487). The Court rejected plaintiffs' "argument that the internal affairs doctrine applies only to officers and directors at the time of the lawsuit," and instead held that the doctrine applied so long as the defendants were directors "at the time of the events giving rise to the lawsuit" (*id.*).

On the merits, the Court stated that defendants had "submitted ample evidence sufficient to prove the substance of Scots law," and held that under Scots law, directors only owed fiduciary duties to the company rather than the shareholders except in "special circumstances . . . not present here" (*id.* at 487, 488). Accordingly, the Court concluded that plaintiffs failed to state a claim for breach of fiduciary duty under Scots law and further, that plaintiffs' aiding and abetting claim could not be sustained absent this underlying breach of fiduciary duty.¹⁰ We granted plaintiffs leave to appeal (39 NY3d 916 [2023]).

III.

Generally, under New York choice-of-law principles, courts apply the law of the forum to procedural questions (*see Davis v Scottish Re Group Ltd.*, 30 NY3d 247, 252 [2017]) and, to substantive issues, the law of the jurisdiction with the most significant relationship to the dispute (*see Indosuez Intl. Fin. v National Reserve Bank*, 98 NY2d 238, 245 [2002]; *Matter of Allstate Ins. Co. [Stolarz—New Jersey Mfrs. Ins. Co.]*, 81 NY2d 219, 225-226 [1993]). In contract disputes, courts apply a "center of gravity or grouping of contacts" test to determine

9. Plaintiffs did not cross-appeal Supreme Court's order. Thus, whether the third and fifth causes of action were properly dismissed was not before the Appellate Division and is not before us on this appeal.

10. On this appeal, defendants do not challenge the Appellate Division's conclusion that Scots law would not apply to plaintiffs' aiding and abetting claim.

which jurisdiction—New York or a foreign state—has “the most significant relationship to the transaction and the parties” (*Zurich Ins. Co. v Shearson Lehman Hutton*, 84 NY2d 309, 317 [1994] [internal quotations marks and citation omitted]). In cases sounding in tort, the relevant inquiry is which forum has the greatest policy interest in the outcome of the dispute in light of the parties’ contacts with each forum (*see Edwards v Erie Coach Lines Co.*, 17 NY3d 306, 318 [2011]; *Babcock v Jackson*, 12 NY2d 473, 481, 484 [1963]). If the rule of tort law at issue “regulate[s] primary conduct,” the law of the place of the tort’s commission will typically govern (*Cooney v Osgood Mach.*, 81 NY2d 66, 72 [1993]). If, on the other hand, the rule governs the allocation of loss after the occurrence of a tort, courts will consider factors such as the parties’ domiciles and the location of the tort to determine which state has the greater interest in the dispute (*see id.*; *Schultz v Boy Scouts of Am.*, 65 NY2d 189, 197-198 [1985]).

With respect to matters arising from the internal affairs of a corporation, as in this case, including the relationships between directors and shareholders,¹¹ this Court has noted that the “general[]” approach is to apply the law of the state of incorporation (*Zion v Kurtz*, 50 NY2d 92, 100 [1980]; *see Davis*, 30 NY3d at 253; *see also Diamond v Oreamuno*, 24 NY2d 494, 503-504 [1969]; *Russian Reins. Co. v Stoddard*, 240 NY 149, 154 [1925]). The United States Supreme Court has explained the policy underlying the internal affairs doctrine as ensuring that “only one [s]tate should have the authority to regulate a corporation’s internal affairs—matters peculiar to the relationships among or between the corporation and its current officers, directors, and shareholders—because otherwise a corporation could be faced with conflicting demands” (*Edgar v MITE Corp.*, 457 US 624, 645 [1982]). In other words, the doctrine “serves the vital need for a single, constant[,] and equal law to avoid the fragmentation of continuing, interdependent internal relationships” (*McDermott Inc. v Lewis*, 531 A2d 206, 216 [Del 1987], quoting P. John Kozyris, *Corporate Wars and Choice of Law*, 1985 Duke LJ 1, 98 [1985]; *see also Hart v General Motors Corp.*, 129 AD2d 179, 184 [1st Dept 1987] [absent the doctrine, “every (s)tate might seek to judge the same board of

11. Internal affairs also generally “involve a corporation’s organic structure or internal administration,” including “steps taken in the course of the original incorporation, . . . mergers, consolidations, and reorganizations” (Restatement [Second] of Conflict of Laws § 302, Comment *e*).

directors' decision under different public policy standards"])). In addition to providing consistency to legal obligations, the internal affairs doctrine also protects the interests and expectations of shareholders by giving effect to their choice as to what jurisdiction's laws will govern the corporation's affairs (*see Hart*, 129 AD2d at 184; *see also Greenspun*, 36 NY2d at 477).

Although the internal affairs doctrine has been framed as a rule of general application in New York, we have not had occasion to address the situations in which it might not apply to claims involving corporate governance. In *Greenspun*, the Court addressed a choice-of-law problem in a dispute involving a business trust where the plaintiff sought an accounting by the defendant trustees to an investment trust for damages stemming from the trustees allegedly making investment decisions that were in the interest of a third party, rather than the trust (36 NY2d at 476). The Court first noted that the law of the state of the trust's organization, Massachusetts, was "prima facie" applicable because the trust was organized under the laws of Massachusetts, and the declaration provided that the law of Massachusetts would apply to determining the rights of the parties (*id.* at 477). Next, the Court, "continuing [its] inquiry," noted that the record was "barren of proof of a significant association or cluster of significant contacts . . . to support a finding of [a] 'presence' " in New York as "would, irrespective of other considerations, call for the application of New York law" (*id.*). Specifically, the Court explained that it had no information as to where the trust performed its business, where its principal office and records were located, the places where the trustees met, how many of the trust's shareholders lived in New York, or "other facts on which a finding of such 'presence' in New York State might be predicated" (*id.*). The Court

"reject[ed] any automatic application of the so-called 'internal affairs' choice-of-law rule, under which the relationship between shareholders and trustees of a business trust by strict analogy to the relationship between shareholders and directors of a business corporation would be governed by the law of the [s]tate in which the business entity was formed" (*id.* at 478).

Instead, the Court "expressly le[ft] open what law . . . might apply" were there proof of "significant contacts with New York

State [such] that this investment trust, although a Massachusetts business trust, was nonetheless so ‘present’ in our [s]tate as perhaps to call for the application of New York law” (*id.* at 477-478). A few years later, in *Zion*, the Court, citing *Greenspun* without elaboration, applied Delaware law to a dispute between the shareholders and directors of a Delaware corporation as “that is the generally accepted choice-of-law rule with respect to such ‘internal affairs’ ” (50 NY2d at 100).

Many state and federal courts in New York have relied on *Greenspun* and *Zion* for the proposition that New York generally, but not irrebuttably, applies the internal affairs doctrine in cases involving corporations and the actions of their directors (see e.g. *Hau Yin To v HSBC Holdings, PLC*, 700 Fed Appx 66 [2d Cir 2017] [summary order]; *Hart*, 129 AD2d at 184-185; *Norlin Corp. v Rooney, Pace Inc.*, 744 F2d 255, 263 [2d Cir 1984]; *Stephens v National Distillers & Chem. Corp.*, 1996 WL 271789, *4-5, 1996 US Dist LEXIS 6915, *12-13 [SD NY, May 21, 1996, No. 91 CIV 2901 (JSM), 91 CIV 2902 (JSM)]; *Rottenberg v Pfeiffer*, 86 Misc 2d 556, 558-559 [Sup Ct, Nassau County 1976], *affd* 59 AD2d 756 [2d Dept 1977]). However, courts have provided varying descriptions of the degree of interest that would be required to overcome the doctrine. For example, in *Norlin*, the shareholders brought an action to enjoin the board from voting shares owned by plaintiff’s—a Panama corporation—subsidiary. The Second Circuit was “not so certain . . . that a New York court would apply the internal affairs rule and decide this case by reference to Panama law” (*Norlin*, 744 F2d at 263). The court interpreted *Greenspun* as requiring an evaluation of the company’s contacts with New York, which were “far from insubstantial” (*id.*). The court, however, ultimately avoided the issue, because it determined that Panama would not apply its own law to the dispute and, in any event, New York and Panama law mandated the same result (*id.* at 264). More recently, the Second Circuit has refined its interpretation of New York choice-of-law principles implicating the internal affairs doctrine:

“The ‘internal affairs doctrine’—a species of interest analysis—provides that the place of incorporation generally has the greatest interest in having its law apply to questions regarding the internal affairs of a corporation, such as ‘the relationship between shareholders and directors.’ Although New York courts reject a per se application of the

internal affairs doctrine, they generally apply the law of the place of incorporation unless another state has an ‘overriding interest’ in applying its own law and a defendant has ‘little contact, apart from the fact of its incorporation, with the state of incorporation’ ” (*Hau Yin To*, 700 Fed Appx at 68-69 [citations omitted]).

Scores of other state and federal cases have applied the internal affairs doctrine to require the application of the law of the place of incorporation, even after *Greenspun* (see e.g. *Lerner v Prince*, 119 AD3d 122, 128 [1st Dept 2014]; *Kikis v McRoberts Corp.*, 225 AD2d 455, 455 [1st Dept 1996]; *Glaubach v Slifkin*, 171 AD3d 1019, 1022 [2d Dept 2019]; *Graczykowski v Rampen*, 101 AD2d 978, 979 [3d Dept 1984]; *Scottish Air Intl., Inc. v British Caledonian Group, PLC*, 81 F3d 1224, 1234 [2d Cir 1996]; *Mindspirit, LLC v Evalueserve Ltd.*, 346 F Supp 3d 552, 580 [SD NY 2018]; *BBS Norwalk One, Inc. v Raccolta, Inc.*, 60 F Supp 2d 123, 129 [SD NY 1999]).

[1] Consistent with our precedent, we clarify that the substantive law of a company’s place of incorporation presumptively applies to causes of action arising from its internal affairs. Moreover, because of the important interests that the internal affairs doctrine represents, we decline to create any broad exceptions to that presumption. Rather, in order to overcome this presumption and establish the applicability of New York law, a party must demonstrate both that (1) the interest of the place of incorporation is minimal—i.e., that the company has virtually no contact with the place of incorporation other than the fact of its incorporation, and (2) New York has a dominant interest in applying its own substantive law.¹² The simple balancing of contacts that plaintiffs propose would undermine the important interests of consistency and predictability that are critical to the internal affairs of a corporation. This method could result in a company’s directors being subject to conflicting duties, and the law applicable to their actions

12. The Restatement (Second) of Conflicts of Law provides a helpful analytical framework that mirrors how we have treated New York’s choice-of-law analysis in this context. The law of the state of incorporation should generally control corporations’ internal affairs “except in the unusual case where, with respect to the particular issue, some other state has a more significant relationship to the occurrence and the parties” (Restatement [Second] of Conflict of Laws § 302 [2]; see also Comment *g* [explaining that such situations are “extremely rare” and typically require both an “overriding” interest and “little contact with the state of incorporation”]).

changing depending on where suit is brought and who the plaintiffs might be. It could also lead the applicable law to depend on highly variable factors such as where a deal is negotiated, where its records are kept, and where its shareholders live.

Plaintiffs' allegations involve the internal affairs of FanDuel. Their complaint centers around the valuation of merger consideration by the director defendants in the course of approving a merger agreement and their legal duties to certain shareholders as it pertains to those actions. Thus, we begin with the presumption that Scots law, the law of FanDuel's place of incorporation, applies to plaintiffs' claims. Even accepting plaintiffs' allegations as true, neither requirement is met here to overcome this presumption. FanDuel has considerable contacts with Scotland. Five of the plaintiffs founded FanDuel in Scotland and registered the company under the Companies Act. FanDuel's Articles expressly referenced the Companies Act as the governing law, as did the agreement governing the distribution of the merger proceeds. FanDuel maintains offices in Scotland and a plurality of the plaintiffs live in Scotland. Moreover, New York does not have a dominant interest in applying its own law. Though FanDuel has its principal office in New York, held board meetings in this state, and negotiated the merger here, only 10-15% of FanDuel's total revenue was derived from New York customers. This is simply not a situation where New York has an overriding interest in applying its own law to plaintiffs' breach of fiduciary duty claims. Accordingly, the Appellate Division properly held that Scots law applies to these claims.

IV.

Next, the Appellate Division did not err in taking judicial notice of foreign law under these circumstances. At common law, courts did not judicially notice foreign law. Rather, parties were required to plead and prove it as a matter of fact (*see Croker v Croker*, 252 NY 24, 26 [1929]; *Hanna v Lichtenhein*, 225 NY 579, 582 [1919]). In 1943, the legislature enacted former Civil Practice Act § 344-a, which allowed courts discretion to take judicial notice of the law of a sister state or foreign country. It made foreign law determinations questions of law for the judge to decide, rather than fact for the jury, providing that foreign law "shall be determined by the court or referee and included in its findings, or charged to the jury as the case

may be” (former Civ Prac Act § 344-a [B]). In 1963, former Civil Practice Act § 344-a was replaced by CPLR 4511. Subdivision (b) provides that “[e]very court may take judicial notice . . . of . . . the laws of foreign countries or their political subdivisions.” “Judicial notice shall be taken of [such] matters . . . if a party requests it, furnishes the court sufficient information to enable it to comply with the request, and has given each adverse party notice of [their] intention to request it” (CPLR 4511 [b]). “Whether a matter is judicially noticed or proof is taken, every matter specified in [CPLR 4511] shall be determined by the judge . . . [,] included in [their] findings or charged to the jury . . . [,] [and] subject to review on appeal as a finding or charge on a matter of law” (*id.* § 4511 [c]). “In considering whether a matter of law should be judicially noticed and in determining the matter of law to be judicially noticed, the court may consider any testimony, document, information[,], or argument on the subject, whether offered by a party or discovered through its own research” (*id.* § 4511 [d]).

CPLR 4511 gives courts “substantial flexibility in determining whether to take judicial notice of foreign law and ascertaining its content” (Vincent C. Alexander, *Prac Commentaries*, McKinney’s Cons Laws of NY, CPLR 4511). As the statutory language notes, a court must take judicial notice of foreign law upon request and if the court is furnished with sufficient information to do so; otherwise, a court may take judicial notice of foreign law in its discretion (*see Lerner v Karageorgis Lines*, 66 NY2d 479, 487-488 [1985]). However, the actual content of foreign law is treated as a question of law (CPLR 4511 [c]; *Rosman v Trans World Airlines*, 34 NY2d 385, 392 [1974]; *Gevinson v Kirkeby-Natus Corp.*, 26 AD2d 71, 74 [1st Dept 1966]). Indeed, the “construction of foreign law is a legal question that may be appropriate for summary resolution when sufficient information based on documentary and other evidence is presented” (*Sea Trade Mar. Corp. v Coutasodontis*, 111 AD3d 483, 484 [1st Dept 2013] [internal quotation marks omitted]; *see also Rosman*, 34 NY2d at 392).

A court should consider the merits of expert affidavits and other submitted materials, make a determination as to their sufficiency, and take judicial notice of foreign law as it deems appropriate. In making this “sufficiency” determination, a court must consider not just the materials submitted by the party making the request, but those materials provided by the non-requesting party in opposition, including contrary authority or

material which supports their own request. While the court, in its discretion, might defer decision on the motion and choose to hold a hearing so that it may conduct additional inquiry into the foreign law question, we hold that such a hearing is not mandated as a matter of course. Nothing in the text of CPLR 4511 or other CPLR provisions purports to require a hearing when there is a dispute as to the content of foreign law so long as the court has “sufficient information” to determine that law without one. Indeed, the idea that a hearing is required and a motion to dismiss must be denied or deferred every time there is some dispute regarding foreign law contravenes CPLR 4511’s goal of treating foreign law as a legal issue, rather than a factual one. Nonetheless, a court taking judicial notice of foreign law should always endeavor to provide detailed findings as to what the law of the foreign jurisdiction is and how it applies to the case at hand in order to facilitate appellate review (*see* CPLR 4511 [c]).

[2] In this case, the foreign jurisdiction’s laws and cases are written in English, and the applicable principles derive from English common law. Additionally, the parties have provided voluminous materials—including expert affidavits, relevant statutes, and dozens of cases, which cogently explain the relevant principles. The dispute between the experts centers more around the application of Scots law to the facts of this case rather than the substance of Scots law. Under these circumstances, the Appellate Division did not err in determining that it had sufficient information to take judicial notice of Scots law for the purpose of resolving defendants’ motions to dismiss and did not abuse its discretion in doing so without remitting for a hearing.

V.

We finally turn to whether, applying Scots law, plaintiffs’ claims survive defendants’ motions to dismiss for failure to state a cause of action. As noted, although Scots law governs the substantive issues, we apply New York procedural rules (*see Davis*, 30 NY3d at 252). “On a motion to dismiss pursuant to CPLR 3211, the pleading is to be afforded a liberal construction” (*Leon*, 84 NY2d at 87, citing CPLR 3026). Courts must “accept the facts as alleged in the complaint as true, accord plaintiffs the benefit of every possible favorable inference, and determine only whether the facts as alleged fit within any cognizable legal theory” (*id.* at 87-88). “In assessing a motion

under CPLR 3211 (a) (7), . . . the criterion is whether the proponent of the pleading has a cause of action, not whether [they have] stated one” (*id.* at 88 [internal quotation marks and citation omitted]; accord *Maddicks v Big City Props., LLC*, 34 NY3d 116, 123 [2019]). “Whether a plaintiff can ultimately establish its allegations is not part of the calculus in determining a motion to dismiss” (*EBC I, Inc. v Goldman, Sachs & Co.*, 5 NY3d 11, 19 [2005]). Still, “conclusory allegations—claims consisting of bare legal conclusions with no factual specificity—are insufficient to survive a motion to dismiss” (*Godfrey v Spano*, 13 NY3d 358, 373 [2009]). Moreover, as explained above, in analyzing this issue, we must review the relevant requirements of Scots law de novo, in accordance with CPLR 4511. A defendant is entitled to dismissal pursuant to CPLR 3211 (a) (1) only if the documentary evidence “utterly refutes [the] plaintiff’s factual allegations, conclusively establishing a defense as a matter of law” (*Goshen v Mutual Life Ins. Co. of N.Y.*, 98 NY2d 314, 326 [2002]).

Under Scots law, to state a claim for breach of fiduciary duty, a plaintiff must demonstrate (1) that the defendant owes them a fiduciary duty, (2) that the defendant has breached that duty, (3) damages, and (4) causation (22 *The Laws of Scotland: Stair Memorial Encyclopaedia* ¶ 174).¹³ At issue in this case is the first requirement: whether the director defendants owed plaintiffs any fiduciary duty.

Chapter 2 of part 10 of the Companies Act outlines directors’ duties, and sections 171 to 177 specifically govern the duties “owed by a director of a company to the company” (Companies Act 2006, ch 46, § 170). Those include, among others, the duties to “act in accordance with the company’s constitution” and “only exercise powers for the purposes for which they are conferred” (*id.* § 171 [a], [b]). When exercising these duties, a director must “act in the way [they] consider[], in good faith, would be most likely to promote the success of the company for the benefit of its members as a whole,” taking into account “the need to act fairly as between members of the company” (*id.* § 172 [1], [1] [f]) and “exercise independent judgment” (*id.* § 173

13. While Scotland has a hybrid civil and common-law system, the parties agree that fiduciary duties in the corporate context are governed by the Companies Act and common law. The parties agree that the issue of the fiduciary duties owed by directors of Scottish companies to their shareholders is practically identical, and should be evaluated by reference, to English common law.

[1]). Though superseding the common law regarding directors' duties to a company, the duties in the Companies Act are to be "interpreted and applied in the same way as common law rules or equitable principles" (*id.* § 170 [3]-[4]).

As an initial matter, "[n]o action lies at the suit of a shareholder suing in that capacity and no other to make good a diminution in the value of the shareholder's shareholding where that merely reflects the loss suffered by the company" (*Johnson v Gore Wood & Co.* [2000] UKHL 65, [2002] 2 AC 1, 19 [Lord Bingham of Cornhill]). But here, plaintiffs allege that the common shareholders of FanDuel suffered a unique harm because the director defendants' actions prevented them from receiving any consideration based on the merger. Notably, plaintiffs do not allege that the merger harmed the company. Rather, they assert that the valuation of FanDuel was manipulated and depressed in a manner which resulted in KKR and Shamrock receiving a financial windfall of the merger and plaintiffs receiving nothing for their valuable contributions and ownership interests. Thus, the harm alleged was not inflicted on FanDuel as a company, nor on the entire body of shareholders. This is therefore not a case of plaintiffs attempting to impermissibly repackage a derivative claim against the company as a direct one.

Under the relevant English common-law principles, a director does not owe any fiduciary duties directly to the shareholders solely based on his or her relationship to the company (see *Peskin v Anderson* [2000] EWCA [Civ] 326, [28]-[30], [33], [2001] BCC 874 at 879-880 [Mummery LJ] [Eng.], citing *Perceival v Wright* [1902] 2 Ch 421). However, "the precept that directors' duties are not owed to individual shareholders applies only to those duties which directors are subject to simply by virtue of their appointment and actions as directors" (Paul L. Davies et al., *Gower: Principles of Modern Company Law* § 10-006 [11th ed 2021]). Indeed,

"there may be special circumstances in which a fiduciary duty is owed by a director to a shareholder personally and in which breach of such a duty has caused loss to [the shareholder] directly . . . as distinct from loss sustained . . . by a diminution in the value of [the shareholder's] shares . . . for which [the shareholder] . . . would not have a cause of action against the director personally" (*Pe-*

skin v Anderson [2000] EWCA [Civ] 326 [32], [2001] BCC at 880).

These fiduciary duties do not arise “from the legal relationship between the directors and the company,” but are “dependent on establishing a special factual relationship between the directors and the shareholders in the particular case” based on “well established categories of fiduciary relationships” (*Peskin v Anderson* [2000] EWCA [Civ] 326 [33]-[34], [2001] BCC at 880).

“Events may take place which bring the directors of the company into direct and close contact with the shareholders in a manner capable of generating fiduciary obligations, such as a duty of disclosure of material facts to the shareholders, or an obligation to use confidential information and valuable commercial and financial opportunities, which have been acquired by the directors in that office, for the benefit of the shareholders, and not to prefer and promote their own interests at the expense of the shareholders” (*Peskin v Anderson* [2000] EWCA [Civ] 326 [33], [2001] BCC at 880).

Courts have identified several types of cases that fall within the “special circumstances” rubric, such as close familial relationships (see *Coleman v Myers* [1977] 2 NZLR 225 [CA]; *Brunninghausen v Glavanics* [1999] NSWLR 538 [Court of Appeal] [Austl.]) and instances in which the directors are acting, in effect, as the agents of the shareholders (see *Allen v Hyatt* [1914] 30 TLR 444 [PC] [appeal taken from Ont.]). However, given that these cases inherently involve unusual situations that require special treatment, seemingly no court has given an exhaustive account of what would, and would not, constitute a “special circumstance” (*but see Sharp v Blank* [2015] EWHC 3220 [10], [2017] BCC 187 at 193-195 [Ch] [summarizing “special circumstance” case law]). Indeed, the “question is one of fact in each case” (Victor Joffe et al., *Minority Shareholders* § 3.55 [6th ed 2018]).

[3] Plaintiffs’ allegations—viewed in their most favorable light and according them every possible favorable inference—are sufficient to state a claim that the director defendants at least owed limited fiduciary duties to plaintiffs. Most relevant to this conclusion is the interaction between the waterfall provision and KKR and Shamrock’s drag-along rights, which left the common shareholders in an especially vulnerable position. Taken together, this arrangement could give rise to an infer-

ence that the directors, in being vested with the power to negotiate a merger agreement and subsequently value intangible merger consideration, undertook a duty not to undermine the common shareholders' interests in those transactions, much less to do so for their own self-interest (*see Allen v Hyatt* [1914] 30 TLR 444; Principles of Modern Company Law § 10-006 [noting that special circumstances "may arise, for example, where the shareholders authorize the directors to sell their shares on their behalf to a potential takeover bidder"])). In effect, the directors could be deemed entrusted with properly valuing and distributing any merger consideration so as to protect the common shareholders' interest in any corporate value in excess of \$559 million. If no such limited duty existed, and plaintiffs' allegations were true, we would in effect be holding that, by authorizing the FanDuel restructuring, plaintiffs agreed that the directors should be allowed to "prefer and promote their own interests at the expense of the" common shareholders by intentionally undervaluing the merger consideration (*Peskin v Anderson* [2000] EWCA [Civ] 326 [33], [2001] BCC at 880). Based on the foregoing legal principles, we do not think a Scottish court, accepting the factual allegations as true and affording plaintiffs the benefit of every possible inference, would determine that plaintiffs had failed to state a cause of action. Rather we conclude, based on the unique circumstances of this case, that plaintiffs' allegations at least give rise to a possible inference that special circumstances are present, and defendants' documentary evidence does not utterly refute these allegations. However, as we have explained, the existence and extent of any duty will be heavily dependent on plaintiffs proving the factual allegations in their complaint.

VI.

The Appellate Division properly concluded that Scots law applies, and correctly determined that it could take judicial notice of that law and apply it. However, because, under New York's liberal pleading standard, plaintiffs' complaint can be read to allege a "special circumstance" that could give rise to a cognizable fiduciary duty claim under Scots law, the Appellate Division erroneously granted defendants' motions to dismiss the first, second, and fourth causes of action. Accordingly, the order of the Appellate Division should be reversed, with costs, and so much of the order of Supreme Court as denied defendants' motions to dismiss the complaint reinstated.

Chief Judge WILSON and Judges RIVERA, CANNATARO, TROUTMAN, REYNOLDS FITZGERALD* and IANNACCI* concur. Judges GARCIA and HALLIGAN took no part.

Order reversed, with costs, and so much of the order of Supreme Court, New York County, as denied defendants' motions to dismiss the complaint reinstated.

* Designated pursuant to NY Constitution, article VI, § 2.

[245 NE3d 1131, 220 NYS3d 682]

In the Matter of UNITED JEWISH COMMUNITY OF BLOOMING GROVE, INC., et al., Appellants, v WASHINGTONVILLE CENTRAL SCHOOL DISTRICT et al., Respondents.

Argued May 15, 2024; decided June 20, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered June 2, 2022. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Albany County (Peter A. Lynch, J.; op 2021 NY Slip Op 34140[U] [2021]), entered in a combined proceeding pursuant to CPLR article 78 and action for declaratory judgment, which had, among other things, (a) denied respondent/defendant New York State Education Department's (the SED) cross-motion for summary judgment; (b) granted petitioners/plaintiffs' motion for summary judgment; (c) adjudged that Education Law § 3635 (1) requires respondent/defendant Washingtonville Central School District (the District) to provide transportation to all nonpublic school students on all days when their nonpublic schools are open for instruction, regardless of whether the public schools are open; (d) directed the District to provide transportation to all nonpublic school students on all days that the nonpublic schools are open for instruction, as required by Education Law § 3635 (1); (e) adjudged that the District is in violation of Education Law § 3635 (1) by refusing to provide transportation to nonpublic school students on all days when the nonpublic schools are open for instruction; (f) adjudged that the SED's guidance on transportation for nonpublic school students to the extent that it states transportation is required only on those days when public schools are open is null and void on the grounds that it violates Education Law § 3635 (1); and (g) permanently enjoined the District from denying transportation to any nonpublic school students on all days that their nonpublic schools are open for instruction; (2) denied petitioners/plaintiffs' motion; (3) granted the SED's cross-motion; (4) declared that the District is not required to transport nonpublic school students on days when its public schools are closed; and (5) declared that the SED's transportation guidance, to the effect that school districts outside New York City are permitted, but not required, to transport nonpublic school students on days when public schools are closed, is valid.

*Matter of United Jewish Community of Blooming Grove, Inc.
v Washingtonville Cent. Sch. Dist.*, 207 AD3d 9, affirmed.

HEADNOTE

Schools — Transportation of Pupils — Transportation of Nonpublic School Students When Public Schools Closed

Education Law § 3635 (1) (a)'s requirement that school districts provide "[s]ufficient transportation facilities" does not obligate school districts to afford nonpublic students transportation on days their schools are in session, including days when public schools are closed. Prior to passage, the Legislature removed language requiring that non-New York City districts offer a limited number of alternative days of transportation to nonpublic schools. The exclusion of the requirement from the enacted law demonstrates the Legislature's intent not to require central school districts to transport nonpublic school students on days the public schools are closed. Rejection of language that would have required school districts outside New York City to transport students to private schools on days the public schools were not open makes clear that "[s]ufficient transportation facilities" (Education Law § 3635 [1] [a]) does not include this obligation. Where the Legislature provided for transportation for nonpublic school students on days where the public schools were closed, it did so explicitly and with limitations. Moreover, interpreting section 3635 (1) (a) as a simple mandate that school districts provide transportation to nonpublic schools on days those schools choose to open except Saturdays and most legal holidays would significantly increase the financial and administrative burdens on school districts.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Schools § 271.

McKINNEY'S, Education Law § 3635 (1) (a).

NY JUR 2d Schools, Universities, and Colleges § 422.

ANNOTATION REFERENCE

Nature and extent of transportation that must be furnished under statute requiring free transportation of school pupils. 52 ALR3d 1036.

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POINTS OF COUNSEL

Whiteman Osterman & Hanna LLP, Albany (*Robert S. Rosborough IV* and *Anna V. Seitelman* of counsel), for appellants.
I. Education Law § 3635 (1) (a) requires central school districts

outside of New York City to provide transportation to nonpublic school students to and from school on all days during the normal school week and year that their nonpublic schools are open for instruction. (*Bank of Am., N.A. v Kessler*, 39 NY3d 317; *ACE Sec. Corp. v DB Structured Prods., Inc.*, 38 NY3d 643; *Matter of Theroux v Reilly*, 1 NY3d 232; *Jones v Bill*, 10 NY3d 550; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Tompkins v Hunter*, 149 NY 117; *People v Carroll*, 3 NY2d 686; *Matter of Harkenrider v Hochul*, 38 NY3d 494; *Colon v Martin*, 35 NY3d 75; *Matter of Town of Southampton v New York State Dept. of Envtl. Conservation*, 39 NY3d 201.) II. The Appellate Division's interpretation of Education Law § 3635 (1) (a) denies nonpublic school students equal protection of the laws under the New York Constitution. (*Matter of Esler v Walters*, 56 NY2d 306; *Matter of Cook v Griffin*, 47 AD2d 23.) III. The State Education Department exceeded its statutory authority under the Education Law and violated the State Administrative Procedure Act. (*Boreali v Axelrod*, 71 NY2d 1; *Matter of New York Statewide Coalition of Hispanic Chambers of Commerce v New York City Dept. of Health & Mental Hygiene*, 23 NY3d 681; *Matter of Stevens v New York State Div. of Criminal Justice Servs.*, 206 AD3d 88; *Matter of Health Ins. Assn. of Am. v Corcoran*, 154 AD2d 61; *Garcia v New York City Dept. of Health & Mental Hygiene*, 31 NY3d 601; *Matter of Cook v Griffin*, 47 AD2d 23; *Board of Educ. of Lawrence Union Free School Dist. No. 15, Town of Hempstead v McColgan*, 18 Misc 3d 572; *Matter of Cordero v Corbisiero*, 80 NY2d 771; *People v Cull*, 10 NY2d 123; *Cubas v Martinez*, 8 NY3d 611; *Matter of Schwartzfigure v Hartnett*, 83 NY2d 296.)

Shaw, Perelson, May & Lambert, LLP, Poughkeepsie (Mark C. Rushfield of counsel), for Washingtonville Central School District, respondent. The Appellate Division's opinion and order should be affirmed by the Court in all respects. (*Hammelburger v Foursome Inn Corp.*, 54 NY2d 580; *People v Korkala*, 99 AD2d 161; *Matter of Davis v Mills*, 98 NY2d 120; *Matter of Kransdorf v Board of Educ. of Northport-E. Northport Union Free School Dist.*, 81 NY2d 871; *Matter of Ward v Nyquist*, 43 NY2d 57; *Matter of Lezette v Board of Educ., Hudson City School Dist.*, 35 NY2d 272; *Matter of Howard v Wyman*, 28 NY2d 434; *Matter of Hatch v Board of Educ., Ithaca City School Dist.*, 81 AD2d 717; *Matter of New York County Lawyers' Assn. v Bloomberg*, 19 NY3d 712; *People v Mobil Oil Corp.*, 48 NY2d 192.)

Letitia James, Attorney General, Albany (Beezly J. Kiernan,

Barbara D. Underwood and *Jeffrey W. Lang* of counsel), for New York State Education Department, respondent. I. The State Education Department reasonably interprets Education Law § 3635 as requiring that central school districts provide equal transportation services, to public and nonpublic schools children alike, only on days when public schools are open. (*Matter of Walsh v New York State Comptroller*, 34 NY3d 520; *Matter of Shannon*, 25 NY3d 345; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Matter of New York County Lawyers' Assn. v Bloomberg*, 19 NY3d 712; *Commonwealth of the N. Mariana Is. v Canadian Imperial Bank of Commerce*, 21 NY3d 55; *Matter of DCH Auto v Town of Mamaroneck*, 38 NY3d 278; *Roberts v Tishman Speyer Props., L.P.*, 13 NY3d 270; *Judd v Board of Educ.*, 278 NY 200; *Bingham v New York City Tr. Auth.*, 99 NY2d 355; *Matter of Green v Dutchess County BOCES*, 39 NY3d 35.) II. Education Law § 3635, as interpreted by the State Education Department, is consistent with the State Constitution's Equal Protection Clause. (*People v Aviles*, 28 NY3d 497; *Board of Educ., Levittown Union Free School Dist. v Nyquist*, 57 NY2d 27; *New York Civ. Liberties Union v State of New York*, 4 NY3d 175; *Matter of Cook v Griffin*, 47 AD2d 23.) III. The State Education Department neither violated the State Administrative Procedure Act nor exceeded its statutory authority by interpreting Education Law § 3635. (*Cubas v Martinez*, 8 NY3d 611; *Matter of Roman Catholic Diocese of Albany v New York State Dept. of Health*, 66 NY2d 948; *Matter of Suffolk Regional Off-Track Betting Corp. v New York State Racing & Wagering Bd.*, 11 NY3d 559; *Matter of Elcor Health Servs. v Novello*, 100 NY2d 273; *Boreali v Axelrod*, 71 NY2d 1; *Matter of LeadingAge N.Y., Inc. v Shah*, 32 NY3d 249.)

Bienstock PLLC, New York City (*Martin Bienstock* of counsel), for Agudath Israel of America, amicus curiae. I. Education Law § 3635 requires school districts to provide transportation services sufficient for children to attend school on days when they are in lawful attendance. (*Matter of Anonymous v Molik*, 32 NY3d 30; *Matter of County of Niagara v Shaffer*, 201 AD2d 786; *Merkling v Ford Motor Co.*, 251 App Div 89; *Matter of Board of Educ. of Cornwall Cent. School Dist. v Nyquist*, 61 AD2d 132; *Matter of Martin v Brienger*, 49 Misc 2d 130, 26 AD2d 772.) II. The Appellate Division's decision and order should be reversed because it creates grave constitutional doubts under the First Amendment. (*Tauza v Susquehanna Coal Co.*, 220 NY 259; *Matter of Jacob*, 86 NY2d 651; *Carson as next friend of O. C. v Makin*, 596 US 767; *Trinity Lutheran*

Church of Columbia, Inc. v Comer, 582 US 449; *Church of Lukumi Babalu Aye, Inc. v Hialeah*, 508 US 520; *Central Rabbinical Congress of U.S. & Canada v New York City Dept. of Health & Mental Hygiene*, 763 F3d 183; *Midrash Sephardi, Inc. v Town of Surfside*, 366 F3d 1214; *M. L. B. v S. L. J.*, 519 US 102.)

New York State School Boards Association, Inc., Latham (Jay Worona and Pilar Sokol of counsel), for New York State School Boards Association, Inc., amicus curiae. The Appellate Division correctly held that Education Law § 3635 (1) (a) does not require school districts outside New York City to transport nonpublic school students to and from their school on days when public schools are closed. (*Judd v Board of Educ.*, 278 NY 200.)

Catania, Mahon & Rider, PLLC, Newburgh (Richard M. Mahon II of counsel), for Sheri Torah, Inc. and another, amici curiae. I. The State Education Department's transportation guidance goes beyond administrative interpretation and rises to the level of rulemaking without satisfying the State Administrative Procedure Act. (*Matter of SLS Residential, Inc. v New York State Off. of Mental Health*, 67 AD3d 813; *People v Cull*, 10 NY2d 123; *Matter of Roman Catholic Diocese of Albany v New York State Dept. of Health*, 66 NY2d 948; *Matter of Suffolk Regional Off-Track Betting Corp. v New York State Racing & Wagering Bd.*, 11 NY3d 559; *Cubas v Martinez*, 8 NY3d 611; *Matter of Homestead Funding Corp. v State of N.Y. Banking Dept.*, 95 AD3d 1410; *Matter of Alca Indus. v Delaney*, 92 NY2d 775; *Matter of Schwartzfigure v Hartnett*, 83 NY2d 296; *West Virginia v Environmental Protection Agency*, 597 US 697; *Board of Educ. of Cent. School Dist. No. 1 v Allen*, 20 NY2d 109, 392 US 236.) II. Dead bills are neither the law nor good indicators of legislative intent. (*Clark v Cuomo*, 66 NY2d 185; *United States v Price*, 361 US 304; *Brooklyn Union Gas Co. v New York State Human Rights Appeal Bd.*, 41 NY2d 84; *Kimmel v State of New York*, 29 NY3d 386; *Zion v Kurtz*, 50 NY2d 92; *Central Bank of Denver, N. A. v First Interstate Bank of Denver, N. A.*, 511 US 164; *Patterson v McLean Credit Union*, 491 US 164; *Kimmel v State of New York*, 29 NY3d 386; *Matter of Malta Town Ctr. I, Ltd. v Town of Malta Bd. of Assessment Review*, 3 NY3d 563; *Riley v County of Broome*, 95 NY2d 455.) III. The Court should uphold the wording of the Education Law statute and the legislative intent clearly set forth in the State Administrative Procedure Act. (*Matter of Walsh v New York State Comptroller*, 34 NY3d 520; *People v Barnes*, 26 NY3d

986; *Matter of Auerbach v Board of Educ. of City School Dist. of City of N.Y.*, 86 NY2d 198; *Kuzmich v 50 Murray St. Acquisition LLC*, 34 NY3d 84; *Clark v Cuomo*, 66 NY2d 185; *Matter of Oswald N.*, 87 NY2d 98.)

OPINION OF THE COURT

GARCIA, J.

Petitioners, including parents with children in nonpublic schools, seek to compel the local school district to transport children to their private schools on days when the public schools are closed. We hold that Education Law § 3635 (1) (a) does not require school districts to provide such transportation and therefore affirm.

I.

Petitioners United Jewish Community of Blooming Grove, Inc., Joel Stern, and Yitzchok Ekstein requested that respondent Washingtonville Central School District (District) provide transportation for children attending nonpublic schools on days public schools are closed, identifying 20 such days. The District denied those requests based on its policy that “[t]he District is not required to provide transportation to nonpublic schools on days on which the District[']s schools are not in session.” That policy is consistent with guidance published by respondent State Education Department (SED) at least since 1992 and consistently maintained since that time (*see* 1992 SED Transportation Supervisor’s Handbook, ch 11 [B] [11]; New York State Education Department, Transportation for Students Enrolled in Nonpublic Schools, https://www.p12.nysed.gov/nonpub/handbook_onservices/transportation.html [accessed May 22, 2024]). Petitioners then commenced this hybrid CPLR article 78 proceeding and declaratory judgment action, seeking a declaration that the District must transport students to nonpublic schools on all days those schools are open and that SED’s contrary guidance is invalid, as well as a permanent injunction compelling the District to provide such transportation.

Supreme Court concluded that the language of Education Law § 3635 (1) (a) required the District to transport nonpublic school students on all days their schools were open and that the legislative history could not be used to counter the plain meaning of the statute (*see* 2021 NY Slip Op 34140[U] [Sup Ct, Albany County 2021]). Accordingly, the court granted petitioners’ motion for summary judgment on their request for declara-

tory relief, issued a permanent injunction, and denied SED's cross-motion for summary judgment.

The Appellate Division reversed, denying petitioners' request for summary judgment, granting respondent SED's cross-motion for summary judgment, declaring SED's guidance valid, and declaring that the District is not required to provide transportation on days the public schools are closed (*see* 207 AD3d 9, 16-17 [3d Dept 2022]). After determining that the language in Education Law § 3635 (1) (a) was ambiguous, that Court reviewed the provision's legislative history and held that the law "permits, but does not require, school districts outside New York City to transport nonpublic school students to and from school on days when the public schools are closed" (*id.* at 15). This Court granted leave to appeal (*see* 39 NY3d 905 [2022]).

II.

Education Law § 3635 (1) (a) provides:

"Sufficient transportation facilities (including the operation and maintenance of motor vehicles) shall be provided by the school district for all the children residing within the school district to and from the school they legally attend, who are in need of such transportation because of the remoteness of the school to the child or for the promotion of the best interest of such children."

The issue on appeal is whether by requiring that school districts provide "[s]ufficient" transportation, the statute obligates school districts to afford nonpublic students transportation on days their schools are in session, including days when public schools are closed. We conclude it does not.

In interpreting the statute, our " 'primary consideration is to ascertain and give effect to the intention of the Legislature' " (*Matter of Walsh v New York State Comptroller*, 34 NY3d 520, 524 [2019], quoting *Nadkos, Inc. v Preferred Contrs. Ins. Co. Risk Retention Group LLC*, 34 NY3d 1, 7 [2019]). "As the clearest indicator of legislative intent is the statutory text, the starting point in any case of interpretation must always be the language itself" (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]). Here, the phrase "[s]ufficient transportation facilities" is ambiguous and could be interpreted in a number of ways, including requiring transportation on each day nonpublic schools are open or only on days the public

schools are open. Resort to dictionary definitions, while at times helpful (*see People v Holz*, 35 NY3d 55, 59 [2020]), is unavailing here. For example, Black’s Law Dictionary defines “sufficient” as “[a]dequate; of such quality, number, force, or value as is necessary for a given purpose” (Black’s Law Dictionary [11th ed 2019], sufficient). “Adequate” is no less vague than “sufficient.” Therefore, to aid us in ascertaining the Legislature’s intent, we turn first to the history of the statutory language.

The role of public funding for education in New York is a concept that goes back to the early days of statehood, first expressed in a 1795 statute appropriating funds “‘for the purpose of encouraging and maintaining schools in the several cities and towns in this State’” (*Judd v Board of Educ.*, 278 NY 200, 206 [1938], quoting L 1795, ch 75). Subsequent legislation established the “common school system” of the State by authorizing the creation of school districts and vesting control of those districts in various state and local officials (*see id.*, citing L 1812, ch 242; *see also* L 1819, chs 161, 212). In 1821, a provision was added to the State Constitution to establish “a perpetual fund; the interest of which shall be inviolably appropriated and applied to the support of common schools throughout this state” (1821 NY Const, art VII, § 10). The substance of that provision was readopted in 1846 (*see* 1846 NY Const, art IX, § 1 [“The revenues of the said common-school fund shall be applied to the support of common schools”]) and in 1894 (*see* 1894 NY Const, art IX, § 3 [same]). “The State thus organized a secular common school system of education throughout the State and supports it by public funds” (*Judd*, 278 NY at 207; 3 Charles Z. Lincoln, *The Constitutional History of New York* at 555 [1905] [Education Article requires “not simply schools, but a system; not merely that they shall be common, but free, and not only that they shall be numerous, but that they shall be sufficient in number, so that all the children of the state may, unless otherwise provided for, receive in them their education”]). These schools are free for all to attend and are supported by a combination of local taxation and the common fund (*see Judd*, 278 NY at 207; *see also Campaign for Fiscal Equity v State of New York*, 100 NY2d 893, 940 [2003, Smith, J., concurring]).

The Constitution of 1894 added the following provision restricting the use of public funds exclusively to the “common schools”:

“Neither the State nor any subdivision thereof, shall use its property or credit or any public money, or authorize or permit either to be used, directly or indirectly, in aid or maintenance, other than for examination or inspection, of any school or institution of learning wholly or in part under the control or direction of any religious denomination, or in which any denominational tenet or doctrine is taught” (see 1894 NY Const, art IX, § 4; see *Judd*, 278 NY at 207-208).

This provision is a broad mandate proscribing direct or indirect aid to private or parochial schools (see *Judd*, 278 NY at 211-212).

In 1935, despite the constitutional funding restriction, the Legislature passed a bill requiring that “where children who attend any school other than a public school, reside on or along the highway constituting the regular route of a school bus or conveyance provided by a school district for transporting pupils to and from the public schools,” those nonpublic school children shall receive transportation “without extra charge” (1935 NY Senate Bill S1182, § 1). The Governor vetoed the bill, concluding that it constituted “a radical departure from the public policy of the State” and expressing concern that it might violate “the strict language of Section 4 of Article IX of the Constitution” (Governor’s Mem Vetoing 1935 NY Senate Bill S1182 at 1, Veto Jacket, Veto 106 of 1935).

In 1936, a similar law (1936 Law) did pass, which provided in part that “[w]hensoever conveyance of pupils shall be so provided for by vote of the inhabitants, the school district and the school trustees shall provide, if need be, one or more routes so that all children of school age in said district shall equally be afforded transportation facilities” (L 1936, ch 541, § 1). The Commissioner of Education interpreted the 1936 Law to require that “if free transportation should be provided for pupils who attended the free common schools, similar transportation facilities must be provided for all pupils similarly situated who were attending private and parochial schools” (*Judd*, 278 NY at 204-205).

The Governor’s 1935 veto message proved prophetic when, in May of 1938, this Court overturned the 1936 Law on constitutional grounds, holding that

“in so far as it authorizes the use of public funds

for transportation of pupils to and from any school or institution of learning wholly or in part under the control or direction of any religious denomination or in which any denominational tenet or doctrine is taught, [the 1936 Law] is repugnant to our fundamental law, unconstitutional and void” (*id.* at 217).

Proponents of public funding for transporting nonpublic school pupils turned to the ongoing 1938 constitutional convention for relief. Action was quickly taken to propose an amendment to article IX, § 4 which, although retaining the existing language prohibiting aid to denominational schools, now allowed that “the legislature *may provide* for the transportation of children to and from any school or institution of learning” (1938 NY Const, art XI, § 4 [emphasis added]; see 2 Rev Rec, 1938 NY Constitutional Convention at 1056 [Chairman of the Committee of Education at the 1938 convention reported that the added language “meets the ruling of the Court of Appeals in the Judd case and allows the use of public money therein held void”]). The people of the State adopted that amendment in November 1938. The Legislature acted on this authority the following year by passing a law requiring that districts provide sufficient transportation facilities to all students residing within the district, to and from the schools which they legally attend (see L 1939, ch 465, § 5; Education Law § 3635 [1] [a]).

In sum, New York had a long history of prohibiting public funding of nonpublic schools (see *Judd*, 278 NY at 208-210). Rather than mandate any such funding, the 1938 amendment removed a constitutional barrier, so that the Legislature—if it chose—could provide transportation to nonpublic school students. Against this backdrop, we consider the history of the changes made to the 1939 statute after enactment.

The phrase “[s]ufficient transportation facilities” remains unchanged in Education Law § 3635 (1) (a); however, the language of section 3635 as a whole and the legislative history of its amendments provide clear guidance in ascertaining the intended meaning of that phrase (see *Heard v Cuomo*, 80 NY2d 684, 689 [1993] [“Every part of a statute must be given meaning and effect, and the various parts of a statute must be construed so as to harmonize with one another” (citations omitted)]; *Matter of Estate of Youngjohn v Berry Plastics Corp.*, 36 NY3d 595, 604 [2021] [“amendments should typically be construed together with the original act”]).

Certain amendments to section 3635 were aimed at distinguishing the transportation obligations of the various categories of school districts. Public schools in New York are organized as common school districts (Education Law art 33), union free districts (*id.* art 35), central school districts (*id.* art 37 [collectively “central school districts”]) or as city school districts (*id.* arts 51, 52 [divided by population]). In 1960 the Legislature amended Education Law § 3635 (1) (a) to include mileage limits within which transportation must be provided and to authorize districts to vote to provide transportation to children who live outside those mileage limits (L 1960, ch 1074). The proposed amendment was criticized for requiring city school districts to provide transportation for students (*see* Governor’s Approval Mem, Bill Jacket, L 1960, ch 1074 at 224-225) when those districts had not previously been required to do so (*see* Budget Rep on Bills, Bill Jacket, L 1961, ch 959 at 12 [the amended law “would require city school districts to provide transportation, although such districts receive no state aid for transportation and have always been considered exempt from the requirement”]). The following year, the Legislature amended the Education Law to make clear that “[t]he foregoing provisions of this subdivision shall not require transportation to be provided for children residing within a city school district, but if provided by such district pursuant to other provisions of this chapter, such transportation *shall be offered equally to all such children in like circumstances*” (L 1961, ch 959, § 1 [emphasis added]; *see* Education Law § 3635 [1] [c]). As a result of these amendments made in the early 1960s, central school districts were required to provide “[s]ufficient” transportation to public and nonpublic school students and city school districts were not required to do so, but could opt in and incur the obligation to provide such transportation “equally” (*see* New York State Education Department, Religious and Independent School Support: Transportation, <https://www.nysed.gov/nonpublic-schools/transportation> [accessed May 22, 2024] [“If transportation is provided, it must be provided equally to all pupils in like circumstances, those attending both public and religious/independent schools”]).

Twenty years later, the Legislature began to consider amendments that would have required that “[e]ach school district shall provide bus service for children attending non-public schools when such non-public schools are in session and the public schools of the district are not in session” (1981 NY Sen-

ate Bill S68). However, a concern was raised that the 1981 bill contained no express limitations on days for which nonpublic schools could request transportation, and the bill did not pass (*see* NY Senate Debate on 1981 NY Senate Bill S68-A, Jan. 25, 1982 at 134; *see also* 1981 NY Senate Bill S68). Two years later, the Legislature considered another bill which would have required New York City to provide up to five days of transportation to nonpublic schools when public schools were closed (*see* 1983 NY Senate Bill S4989). That bill also failed to pass.

In 1985, the Legislature considered a proposed amendment which would have required New York City to offer five alternative days of transportation to nonpublic school students and non-New York City districts to offer two alternative days of transportation (*see* State Educ Dept Mem in Support, Bill Jacket, L 1985, ch 902 at 6 [“A similar provision is included for other school districts, but is limited to a maximum of two alternative days, because of the necessity of special transportation arrangements in rural school districts”]). Letters in opposition to this proposal maintained that even those two days would be overly burdensome (*see* NY State School Bds Assn Mem in Opp, Bill Jacket, L 1985, ch 902 at 24 [calling attention to Guilderland Central School District which—at the time—transported students to 33 nonpublic schools and arguing that “the potential of 66 (additional) transportation days would result in an excessive fiscal and administrative burden”]).

Prior to passage, the Legislature removed the language requiring that non-New York City districts offer two alternative days of transportation to nonpublic schools and included only the provision that required New York City to provide five alternative days (*see* State Educ Dept Letter, Bill Jacket, L 1985, ch 902 at 18 [“The amended version of the bill deleted a provision for transportation on alternative days in school districts with a population of less than one million”]). As enacted subdivision (2-a) requires:

“Such school district [in a city having a population in excess of one million] which provides transportation to nonpublic schools shall provide such transportation for the same number of days as the public schools are open but shall not provide transportation services for more than one hundred eighty days. Officials of each nonpublic school to

which transportation is provided by a city school district of a city having a population in excess of one million may notify such district, not later than the first day of July of each school year, of a maximum of five days, . . . , on which the public schools are scheduled to be closed, . . . , but such school district will be required to provide for transportation to such nonpublic school” (Education Law § 3635 [2-a]).

Nonpublic schools may designate alternative days of transportation from a list of options, including “the Wednesday, Thursday and Friday after Labor Day, Rosh Hashannah, Yom Kippur and the week between Christmas day and New Year’s day” (L 1985, ch 902, § 1).¹ Before subdivision (2-a) became law, transportation of nonpublic school students was not required on days when the public schools were closed, notwithstanding that the City was required to offer transportation “equally to all such children in like circumstances” (*see* Education Law § 3635 [1] [c]). Clearly, the Legislature was acting to impose an additional requirement on New York City.

The exclusion of the two-day transportation requirement from the enacted law demonstrates the Legislature’s intent not to require central school districts to transport nonpublic school students on days the public schools are closed.² Characterizing this drafting history—as petitioners do—as mere legislative inaction is inaccurate. It is well-established that “[a] court is at liberty, also, to invoke, as an aid in construction, the history of

1. Subsequent amendments to that provision allowed for 10 alternative days of transportation in certain years (*see* L 1997, ch 34) and expanded the possible list of alternative days to include Christmas Eve, the days following the observance of Washington’s birthday, and in Brooklyn and Queens, Anniversary Day (*see* L 2005, ch 424).

2. Years later—in 1999 and again in 2001—the Legislature considered but failed to vote on two bills which would have amended Education Law § 3635 to require school districts outside New York City to transport nonpublic school students on days when public schools were closed—including Saturdays and holidays—if voters in the district authorized such transportation (*see* 1999 NY Assembly Bill A7382C; 2001 NY Assembly Bill A150). This continued inaction in the face of the 1992 SED interpretation of the statute (Assembly Mem in Support, 1999 NY Assembly Bill A7382C [“school districts may—but are not required to—provide transportation for non-public school children on days that the public schools are closed”]) indicates that the Legislature accepted that interpretation (*see Engle v Talarico*, 33 NY2d 237, 242 [1973] [“Where the practical construction of a statute is well known, the Legislature is charged with knowledge and its failure to interfere indicates acquiescence”]).

the passage of a statute, that is, the changes and proposed changes in the original bill” (*Woollcott v Shubert*, 217 NY 212, 221 [1916]; see *Majewski*, 91 NY2d at 587 [“A court may examine changes made in proposed legislation to determine intent”]). Rejection of language that would have required school districts outside New York City to transport students to private schools on days the public schools were not open makes clear that “[s]ufficient transportation facilities” (Education Law § 3635 [1] [a]) does not include this obligation.

Where the Legislature provided for transportation for nonpublic school students on days where the public schools were closed, it did so explicitly and with limitations. Subdivision (2-a) limited nonpublic schools to 180 days of transportation and exempted Sundays, in addition to the preexisting exemptions for Saturdays and legal holidays (see Education Law § 3604 [8] [schools may not operate on Saturdays or most legal holidays]). It also limited the possible alternative transportation days to a preselected list rather than allowing a nonpublic school to request transportation on any day it is legally in session, and provided procedures and timelines for coordination between public and nonpublic schools.

An interpretation by this Court of section 3635 (1) (a) as a simple mandate that school districts provide transportation to nonpublic schools on days those schools choose to open except Saturdays and most legal holidays (see *id.* § 3604 [8]) would significantly increase the financial and administrative burdens on school districts. Even if nonpublic schools were somehow limited to 180 total days of transportation to maintain approximate parity with public schools (see *id.* § 3604 [7] [denying public schools funding unless they can show that they were in session “for not less than one hundred eighty days”]), nothing in the language of the statute would require them to adhere to the summer holiday observed by public schools or prevent them from instituting a calendar that diverges significantly from the public-school calendar. Here, petitioners request transportation on 20 days when public schools are closed. That request far exceeds the 1985 proposal that non-New York City districts provide a maximum of two alternative days—a far more modest proposal that was still criticized as overly burdensome (see NY State School Bds Assn Mem in Opp, Bill Jacket, L 1985, ch 902 at 24). Nor can we introduce limitations unmoored from the text of the statute (see *People v Dietze*, 75 NY2d 47, 53 [1989]). Rather, those policy choices, with

the accompanying financial consequences, must be left to the Legislature. As the law now stands, school districts outside New York City are not required to provide transportation on days that public schools are closed.

III.

Petitioners' remaining arguments are without merit. First, they contend that the District's policy and SED's interpretation of Education Law § 3635 (1) (a) deny nonpublic school students equal protection of the law (*see* NY Const, art I, § 11). Where government action treats groups differently but "a suspect class or fundamental right is not implicated, the government action need only be rationally related to a legitimate governmental purpose" (*People v Aviles*, 28 NY3d 497, 502 [2016]). Here, no suspect class or fundamental right is implicated, and the administrative and financial burdens on the State provide a rational basis for the decision to only transport nonpublic school students on days the public schools are open.

Next, petitioners contend that SED exceeded its statutory authority under Education Law § 3635 (1) (a) and that its guidance runs afoul of the State Administrative Procedure Act because it was not subject to that statute's rulemaking procedures (*see* State Administrative Procedure Act § 202 [1] [a]). However, the rulemaking procedure does not apply to "interpretive statements and statements of general policy which in themselves have no legal effect but are merely explanatory" (State Administrative Procedure Act § 102 [2] [b] [iv]; *see also Cubas v Martinez*, 8 NY3d 611, 621 [2007]). Here, the SED guidance merely interprets Education Law § 3635—it imposes no additional obligations or duties and has no independent legal effect. Similarly, SED's guidance does not run afoul of the separation of powers doctrine.

Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge WILSON and Judges RIVERA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order affirmed, with costs.

[246 NE3d 390, 221 NYS3d 19]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SAM-
UAL NEKTALOV, Appellant.

Argued April 17, 2024; decided May 16, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, Second, Eleventh and Thirteenth Judicial Districts, entered December 23, 2022. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, Queens County (Jerry M. Iannece, J.), which had convicted defendant, upon a plea of guilty, of criminal possession of a controlled substance in the seventh degree. The appeal to the Appellate Term brought up for review an order of that Criminal Court (Toko Serita, J.), which had denied defendant's motion to suppress evidence.

People v Nektalov, 78 Misc 3d 1, reversed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Traffic Stop — Tinted Windows

In a criminal prosecution arising from controlled substances found in defendant's possession during a motor vehicle stop, the People failed to meet their burden in establishing that law enforcement had probable cause to stop the vehicle in which defendant was a passenger based on a window tinting violation. Vehicle and Traffic Law § 375 (12-a) (b) prohibits persons from operating a motor vehicle upon a public road with windows which have a light transmittance of less than 70%. To sufficiently establish that a vehicle stop was lawful, the People must establish the basis for the belief that law enforcement possessed the requisite suspicion in the form of facts, not assurances. Here, the full extent of the testimony of the officer who pulled the vehicle over was that the windows were "excessively tinted." Because window tints are not categorically impermissible under New York law, the officer's testimony was effectively a legal conclusion that the tint violated the Vehicle and Traffic Law, unsupported by any factual basis in the form of a description, measurement or the officer's training and experience.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Automobiles and Highway Traffic § 406; AM
JUR 2d Searches and Seizures §§ 60, 130, 286, 287.
CARMODY-WAIT 2d Search and Seizure §§ 173:326,
173:345; CARMODY-WAIT 2d Pretrial Motions § 189:281.
LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 3.3,
3.7.

McKINNEY'S, Vehicle and Traffic Law § 375 (12-a) (b)
NY JUR 2d Automobiles and Other Vehicles § 168; NY JUR
2d Criminal Law: Procedure § 510.

ANNOTATION REFERENCE

See ALR Index under Automobiles and Highway Traffic;
Exclusion of Evidence; Probable Cause; Search and Seizure.

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Query: vehicle /5 stop! /s "probable cause" & window /2
tint! /s excessive!

POINTS OF COUNSEL

Twyla Carter, The Legal Aid Society, New York City (Rachel L. Pecker of counsel), for appellant. I. The car stop violated appellant's constitutional rights where the arresting officer testified only that he stopped the car because it was "travelling with excessively tinted windows," without any factual allegations establishing the basis for his conclusion that the car's windows were illegal. (*People v Balkman*, 35 NY3d 556; *People v McRay*, 51 NY2d 594; *People v Hinshaw*, 35 NY3d 427; *People v Robinson*, 97 NY2d 341; *People v Garcia*, 20 NY3d 317; *People v Hollman*, 79 NY2d 181; *People v De Bour*, 40 NY2d 210; *People v Vandover*, 20 NY3d 235; *People v Carrasquillo*, 54 NY2d 248; *People v Guthrie*, 25 NY3d 130.) II. Appellant's arrest violated his constitutional rights where the arresting officer concluded that a substance in a closed jar, in the center console of the car, was marijuana without any factual allegations establishing the basis for his conclusion, and the officer failed to put forth any allegations to attribute the marijuana's possession to appellant, a mere passenger in the car. (*People v Brian*, 84 NY2d 887; *People v Manini*, 79 NY2d 561; *People v Rivera*, 82 NY2d 695; *United States v Rodriguez*, 392 F3d 539; *People v Russell*, 34 NY2d 261; *People v Wingate*, 70 AD3d 734, 17 NY3d 469; *People v Dan*, 55 AD3d 1042; *People v Gabbidon*, 40 AD3d 776; *People v Garcia*, 30 AD3d 833; *People v Barkley*, 55 Misc 3d 62.) III. The prosecution could not be ready for trial, for CPL 30.30 purposes, without conducting a lab test proving the identity of the alleged controlled substance (cocaine), an element of the charged offense, and this issue is reviewable on appeal, notwithstanding appellant's guilty plea. (*People v Clarke*, 28 NY3d 48; *People v Swamp*, 84 NY2d 725;

People v Galindo, 38 NY3d 199; *People v Sibblies*, 22 NY3d 1174; *People v Brown*, 28 NY3d 392; *People v England*, 84 NY2d 1; *People v Dean*, 45 NY2d 651; *People v Kendzia*, 64 NY2d 331; *People v Nge*, 67 Misc 3d 650; *People v Beckett*, 44 Misc 3d 560.)

Melinda Katz, District Attorney, Kew Gardens (*Joseph M. DiPietro* and *John M. Castellano* of counsel), for respondent. I. The lower court's determinations that the police lawfully stopped defendant's car and searched him are mixed questions of law and fact and are supported by the record. As such, they are not subject to further review. (*People v Gonzalez*, 99 NY2d 76; *People v Burr*, 70 NY2d 354; *People v Estrella*, 10 NY3d 945; *People v Shabazz*, 99 NY2d 634; *People v Garcia*, 20 NY3d 317; *People v Harrison*, 57 NY2d 470; *People v Balkman*, 35 NY3d 556; *People v Dodt*, 61 NY2d 408; *People v Di Stefano*, 38 NY2d 640; *People v Walls*, 37 NY3d 987.) II. No laboratory analysis was necessary for the People to be ready for trial, and defendant forfeited any claim to the contrary by his guilty plea. (*People v Taylor*, 65 NY2d 1; *People v O'Brien*, 56 NY2d 1009; *People v Howe*, 56 NY2d 622; *People v Suarez*, 55 NY2d 940; *People v Galindo*, 38 NY3d 199; *Jacobus v Colgate*, 217 NY 235; *Matter of Gleason [Michael Vee, Ltd.]*, 96 NY2d 117; *Matter of City of New York [Long Is. Sound Realty Co.]*, 160 AD2d 696; *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332; *Landgraf v USI Film Products*, 511 US 244.)

Milbank, LLP, New York City (*Alexander B. Cogut*, *Daniel M. Perry* and *Alexandra Gray* of counsel), and *Jenay Nurse Guilford*, Center for Appellate Litigation, New York City, for Center for Appellate Litigation, amicus curiae. I. New York law supports the categorical rule that newly enacted rules of appellate procedure apply to cases pending on appeal while the rules became effective. (*People v Lara-Medina*, 195 AD3d 542; *People v Swain*, 217 AD3d 972; *People v Dennis*, 206 AD3d 1369; *People v George*, 199 AD3d 831; *People v Merchant*, 209 AD3d 453, 39 NY3d 987; *People v Duggins*, 192 AD3d 191; *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Matter of City of New York [Long Is. Sound Realty Co.]*, 160 AD2d 696; *Landgraf v USI Film Products*, 511 US 244.) II. Federal law supports the categorical rule that newly enacted rules of appellate procedure apply to cases pending on appeal while the rules became effective. (*Schriro v*

Summerlin, 542 US 348; *Cole v Young*, 351 US 536; *Bradley v School Bd. of Richmond*, 416 US 696; *Thorpe v Housing Authority of Durham*, 393 US 268; *Steven I. v Central Bucks School Dist.*, 618 F3d 411; *Vernon v Cassadaga Val. Cent. School Dist.*, 49 F3d 886.)

OPINION OF THE COURT

SINGAS, J.

Defendant claims that the prosecution failed to meet its burden in establishing that law enforcement had probable cause to stop the vehicle in which he was a passenger. We agree.

I.

In 2018, NYPD Detective Gregory Fortunato and his partner observed a car with “excessively tinted windows” traveling on a public road. Detective Fortunato pulled the car over and, upon approaching, observed marijuana in plain view. The officers arrested and searched defendant, recovering two bags containing cocaine from him. Defendant moved to suppress the drugs, arguing, among other things, that the officers lacked probable cause to stop the vehicle on the basis of a traffic violation.

At the suppression hearing, Detective Fortunato testified that he pulled the vehicle over because he observed that it was traveling with “excessively tinted windows,” but failed to elaborate further. Criminal Court denied defendant’s suppression motion, finding, as relevant here, that “Detective Fortunato properly stopped the vehicle in which defendant was a passenger because the car apparently violated [Vehicle and Traffic Law] § 375 (12-a) (b) (2) for having excessively tinted windows.”

Defendant pleaded guilty to criminal possession of a controlled substance in the seventh degree. The Appellate Term affirmed, with one Justice dissenting (78 Misc 3d 1 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2022]). The court held that Detective Fortunato’s testimony sufficiently established “that the detective had probable cause to lawfully stop the vehicle due to an apparent violation of Vehicle and Traffic Law § 375 (12-a) (b) (2)” (*id.* at 6 [internal quotation marks omitted]). A Judge of this Court granted defendant leave to appeal (39 NY3d 1156 [2023]).

II.

Vehicle and Traffic Law § 375 (12-a) (b) generally provides that “[n]o person shall operate any motor vehicle upon any

public highway, road[,] or street” with windows which have a light transmittance of less than 70%. An automobile stop may be lawfully effectuated where law enforcement has “probable cause that a driver has committed” a traffic violation (see *People v Hinshaw*, 35 NY3d 427, 430 [2020]). The relevant question for a suppression court in determining whether law enforcement had probable cause is whether “the officer who stopped the car reasonably believed the windows to be over-tinted in violation of” the Vehicle and Traffic Law (see *People v Estrella*, 10 NY3d 945, 946 [2008]; *People v Hicks*, 68 NY2d 234, 238 [1986]).

When a defendant challenges “the sufficiency of the factual predicate for the stop,” it is the People’s burden “to come forward with evidence sufficient to establish that the stop was lawful” (*People v Balkman*, 35 NY3d 556, 559 [2020]). “Summary statements that the police had arrived at a conclusion that sufficient cause existed will not do” (*People v Bouton*, 50 NY2d 130, 135 [1980]). Rather, the prosecution must establish “the basis for [the] belief” that law enforcement possessed the requisite suspicion in the form of “facts, not assurances” (*id.* at 135-136). While review of probable cause determinations typically presents a mixed question of law and fact, “when an issue arises as to the standard by which probable cause is measured—the minimum showing necessary to establish probable cause—a question of law is presented for review” (*People v McRay*, 51 NY2d 594, 601 [1980]). Such question is presented here.

The full extent of Detective Fortunato’s testimony regarding the tinted windows was that the windows were “excessively tinted.” Window tints are not categorically impermissible under New York law; they are only prohibited for specified windows to the extent that they allow less than 70% light transmittance (Vehicle and Traffic Law § 375 [12-a] [b]). Detective Fortunato’s testimony that the tint was “excessive” is, thus, effectively a legal conclusion that the tint violated the Vehicle and Traffic Law. Yet, the People failed to elicit any factual basis for this conclusion. The detective did not testify, for example, that the windows were so dark that he could not see into the vehicle (see *People v Biggs*, 208 AD3d 1340, 1343 [2d Dept 2022]; *People v Brown*, 169 AD3d 1258 [3d Dept 2019]; *People v Collins*, 105 AD3d 1378 [4th Dept 2013]) or that he had training and experience in identifying illegally tinted windows or conducting this type of stop (see *People v Jones*, 90 NY2d 835, 837 [1997]; *People*

v Bacquie, 154 AD3d 648, 649 [2d Dept 2017]). Nor did the detective testify that he measured the tint after stopping the vehicle and the results confirmed that the tint level violated the Vehicle and Traffic Law, which could have provided objective, corroborative evidence of the reasonableness of his conclusion (see *Estrella*, 10 NY3d at 946; *People v Swift*, 185 AD3d 1442, 1443 [4th Dept 2020]). Without more, the record is bereft of evidence of its basis to support the detective's conclusory belief that the tinted windows violated the law. Consequently, Criminal Court should have granted defendant's motion to suppress. Given our holding, we do not reach defendant's remaining arguments.

Accordingly, the order of the Appellate Term should be reversed and the accusatory instrument dismissed.

Chief Judge WILSON and Judges RIVERA, GARCIA, CANNATARO, TROUTMAN and HALLIGAN concur.

Order reversed and accusatory instrument dismissed.

[246 NE3d 393, 221 NYS3d 22]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ERIC D.
SHARP, Appellant.

Argued September 12, 2024; decided October 17, 2024

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered March 24, 2023. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Charles A. Schiano, Jr., J.), which had convicted defendant, after a nonjury trial, of criminal possession of weapon in the second degree and criminal possession of a weapon in the third degree.

People v Sharp, 214 AD3d 1428, reversed.

HEADNOTE

Crimes — Right to be Present at Trial — In-Chambers *Sandoval* Hearing in Defendant's Absence Not Cured by Subsequent In-Court Hearing in Defendant's Presence

The trial court violated defendant's right to be present during trial by failing to provide him the opportunity for meaningful participation at an in-chambers *Sandoval* hearing, notwithstanding a subsequent in-court hearing in defendant's presence. Counsel's argumentation and discussion of the facts underlying defendant's prior convictions occurred only in chambers and outside defendant's presence. It is precisely a defendant's knowledge of those facts that underlies the right to be present for a *Sandoval* hearing. Moreover, the subsequent in-court proceeding did not cure the violation. The right to be present during the trial belongs to the defendant personally, not to defense counsel. The court asked defense counsel if defense counsel "want[ed] to be heard," and counsel responded that he would rely on the in-chambers discussion. The court did not, however, ask defendant if he wished to be heard, nor did the court meaningfully explain to defendant the nature of the proceeding. Defense counsel did not bind defendant merely by declining to present new arguments, and defendant's silence, without more, could not have been construed as the knowing and intelligent waiver of defendant's right to participate. The court's recitation of its *Sandoval* rulings in defendant's presence also could not cure its earlier error. The court did not entertain argument on the *Sandoval* motion, did not articulate the arguments that had been made or the reasoning for its various decisions, referred to defendant's prior convictions by number only (as enumerated in the prosecution's application), and did not invite any participation from defendant.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 973, 978–981.

CARMODY-WAIT 2d Conduct of Trial, in General §§ 190:102, 190:108, 190:117.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 24.2.

NY JUR 2d Criminal Law: Procedure §§ 2539, 2544.

ANNOTATION REFERENCE

See ALR Index under Absence or Presence.

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Sandoval

POINTS OF COUNSEL

Julie A. Cianca, Public Defender, Rochester (David R. Jurgens of counsel), for appellant. I. The judge violated Eric Sharp's right to be present at a material stage of his trial by conducting a *Sandoval* proceeding where, in defendant's absence, the judge and the attorneys discussed to what extent the People could cross-examine him about his criminal history if he elected to testify at trial. (*People v Sprowal*, 84 NY2d 113; *People v Morales*, 80 NY2d 450; *People v Anderson*, 16 NY2d 282; *People v Turaine*, 78 NY2d 871; *People v Sandoval*, 34 NY2d 371; *People v Dokes*, 79 NY2d 656; *People v Favor*, 82 NY2d 254; *People v Odiat*, 82 NY2d 872; *People v Maher*, 89 NY2d 318; *People v Garcia*, 198 AD2d 4.) II. The People's loss of trial evidence deprived Eric Sharp of his right to meaningful appellate review. (*People v Harrison*, 85 NY2d 794; *People v Montgomery*, 24 NY2d 130; *People v Rivera*, 39 NY2d 519; *People v Yavru-Sakuk*, 98 NY2d 56; *People v Strollo*, 191 NY 42; *People v Romero*, 7 NY3d 633; *People v Danielson*, 9 NY3d 342; *People v Codina*, 110 AD3d 401.) III. After *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]), Penal Law §§ 265.03 (3) and 265.02 (3) must be viewed as unconstitutional on their face because, as written, these statutes violate the Second Amendment and the Due Process Clause. (*McFarland v American Sugar Refining Co.*, 241 US 79; *Bailey v Alabama*, 219 US 219; *People v Hughes*, 22 NY3d 44; *People v Kohut*, 30 NY2d 183; *People v Psilakis*, 148 AD2d 475; *People v Anonymous*, 187 AD3d 512; *Patterson v New York*, 432 US 197; *Manley v Georgia*, 279 US 1; *Smith v United States*, 568 US 106; *People v Martinez*, 81 NY2d 810.)

Sandra Doorley, District Attorney, Rochester (Lisa Gray and

Nancy Gilligan of counsel), for respondent. I. Defendant was present for a de novo *Sandoval* hearing where the court identified each of the People's requests, afforded defendant an opportunity to be heard, and explained the reasoning for each of the court's rulings. (*People v Dokes*, 79 NY2d 656; *People v Favor*, 82 NY2d 254; *People v Monclavo*, 87 NY2d 1029; *People v Vargas*, 201 AD2d 963; *People v Jones*, 213 AD2d 1049; *People v Reid*, 117 AD3d 1448, 23 NY3d 1041; *People v Smith*, 82 NY2d 254; *People v Ellison*, 124 AD3d 1230; *People v Hoey*, 145 AD3d 118.) II. Ample record support exists for the Appellate Division's finding that the absence of two trial exhibits did not impede effective appellate review. (*People v Yavru-Sakuk*, 98 NY2d 56; *People v Glass*, 43 NY2d 283; *People v Parris*, 4 NY3d 41; *People v Rivera*, 39 NY2d 519; *People v Melendez*, 71 AD3d 530, 16 NY3d 869; *People v Bleakley*, 69 NY2d 490.) III. Defendant's challenges to the criminal possession of a weapon statutes are entirely unpreserved, and review in the interest of justice is unwarranted.

OPINION OF THE COURT

RIVERA, J.

We reverse defendant's conviction and grant him a new trial. The trial court held a conference in defendant's absence on the prosecution's motion to cross-examine him on his prior criminal conduct, in violation of his right to be present (*see* CPL 260.20; *People v Dokes*, 79 NY2d 656, 662 [1992]). The court held a subsequent hearing on the motion in defendant's presence. However, the court did not hear arguments on the merits, did not confirm defendant's understanding of the underlying facts or the merits of the application, and merely announced its decision. Thus, the subsequent proceeding did not provide for defendant's meaningful participation in the determination of the merits of the motion and did not cure the earlier violation.

* * *

Defendant was charged with one count of unlawfully possessing a defaced firearm (Penal Law § 265.02 [3]) and one count of unlawfully possessing a loaded firearm outside of his home or place of business (Penal Law § 265.03 [3]). Before trial, the prosecution filed a *Sandoval* application, served on defense counsel, to cross-examine defendant about seven prior convictions, one pending case, and the criminal conduct underlying each offense. The application enumerated these of-

fenses and provided a date and description for each. The court held an in-camera, off-the-record conference on the motion with the prosecution and defense counsel, for which defendant was not present.

At a subsequent in-court appearance with defendant present, the following exchange occurred:

“THE COURT: . . . I’m going to make a ruling on the Molineux application. Do you want to be heard, [defense counsel], on the Molineux/Sandoval?”

“[DEFENSE COUNSEL]: Your Honor, I would stand by our discussion in chambers.

“THE COURT: All right. I’m going to deny the request to use any Molineux evidence against Mr. Sharp at trial.

“In regards to Sandoval, I reviewed the Sandoval application and if Mr. Sharp testifies I would not allow number 1, as far as moot. Number 2 is a violation. That would not be allowed. Number 3 is moot, not allowed. Number 4 is moot—is—let me see. That’s just a felony conviction only, not the underlying facts. Number 5, I’d allow a misdemeanor, not the underlying facts. Number 6, the same, allow a misdemeanor, underlying facts. Number 7, the same, misdemeanor, underlying facts. Number 8 is currently pending in Monroe County Court sounds like, so that will not be allowed as it’s currently pending, current status.

“[DEFENSE COUNSEL]: It is pending, your Honor.

“[PROSECUTOR]: Yes.

“[DEFENSE COUNSEL]: I do represent him on that.

“THE COURT: I’ll not allow a pending charge to be used against him if he chooses to testify.

“[PROSECUTOR]: Okay.

“THE COURT: Okay. That is my ruling. Both parties have exceptions on that ruling. Mr. Sharp, I’ll see you back here Thursday at 2:00, sir.”

The case proceeded to a bench trial. The prosecution’s evidence included the testimony of an officer involved in defend-

ant's arrest, who stated that he observed defendant holding what appeared to be a handgun in the area where the police recovered the weapon. The prosecution also presented surveillance footage that they argued showed defendant carrying and hiding the handgun. Defense counsel referred to this footage to discredit the officer, asserting that his testimony was inconsistent with the video images and, more generally, to dispute that defendant possessed the weapon in question. The trial court found defendant guilty on both counts and sentenced him to a term of imprisonment and postrelease supervision.

The Appellate Division affirmed with one Justice dissenting (214 AD3d 1428 [4th Dept 2023]). The sole issue dividing the Court was defendant's claim that he was denied his right to be present during consideration of the prosecution's *Sandoval* application. The majority concluded that defendant had not been denied this right. The dissent concluded that defendant, although present for the later *Sandoval* proceeding, was denied an opportunity to meaningfully participate (*see id.* at 1429 [Curran, J., dissenting]). The dissenting Justice granted defendant leave to appeal.

Defendant argues that the court violated his right to be present during a material stage of his prosecution by failing to provide him the opportunity for meaningful participation at the in-chambers *Sandoval* hearing. The prosecution concedes that the defendant was not present for the in-chambers conference but responds, first, that the conference was not a *Sandoval* hearing at which defendant had a right to be present because the court rendered no decisions and, second, that the court cured any error by conducting a de novo hearing in defendant's presence.

Criminal Procedure Law § 260.20 requires that “[a] defendant must be personally present during the trial of an indictment.” This section confers upon a defendant the right to be present at proceedings “where [the] defendant has something valuable to contribute” (*People v Morales*, 80 NY2d 450, 456 [1992]), including “the substantive portion of [a] *Sandoval* hearing” concerning the defendant's prior convictions (*People v Favor*, 82 NY2d 254, 265 [1993]; *see Dokes*, 79 NY2d at 662). As the Court explained in *Dokes*:

“the potential for meaningful participation by the defendant during the determination of the merits of a *Sandoval* motion is apparent. For example, the

defendant is in the best position to point out errors in [their criminal record], to controvert assertions by the prosecutor with respect to uncharged acts and to provide counsel with details about the underlying facts of both charged and uncharged acts. In short, the defendant's presence will help to ensure that the court's determination will not be predicated on the prosecutor's 'unrebutted view of the facts' " (79 NY2d at 661, quoting *People v Ortega*, 78 NY2d 1101, 1103 [1991]).

"[P]rejudice is inherent when a defendant is deprived of the opportunity for meaningful participation" on a *Sandoval* application (*Favor*, 82 NY2d at 267).

Contrary to the prosecution's assertion, defendant had a right to be present at the initial, in-chambers conference on the prosecution's application. We confronted the same issue in *People v Monclavo* (87 NY2d 1029 [1996]). There, the trial court conducted "a preliminary informal *Sandoval* conference" without defendant, during which the court indicated how it would rule on the prosecution's application (*id.* at 1030 [internal quotation marks omitted]). Later, in the defendant's presence, the court reiterated its decision (*see id.* at 1031). We explained that even if the court only "formally" announced its decision in the subsequent proceeding, it nonetheless had erred, because "the facts surrounding defendant's extensive felony and misdemeanor history were not discussed at that time" (*id.* at 1030-1031 [internal quotation marks omitted]). Here, counsel's argumentation and discussion of the facts underlying the defendant's prior convictions occurred only in chambers and outside defendant's presence. It is precisely a defendant's knowledge of those facts that underlies the right to be present for a *Sandoval* hearing (*see Dokes*, 79 NY2d at 661; *id.* at 660 ["In determining whether a defendant has a right to be present during a particular proceeding, a key factor is whether the proceeding involved factual matters about which defendant might have peculiar knowledge that would be useful in advancing the defendant's or countering the People's position"]). Defendant's absence from the in-chambers conference therefore violated that right.

Where a court has violated a defendant's right to attend in-person, the court may, nevertheless, provide "the opportunity for meaningful participation" in a subsequent proceeding (*Favor*, 82 NY2d at 267). Here, however, the subsequent in-court proceeding did not cure the violation.

As a preliminary matter, we reject the prosecution's suggestion that defendant's mere awareness in advance that the prosecution had filed a *Sandoval* application is the equivalent of an opportunity to participate. Notice is a precondition to the effective exercise of the right to participate but is no substitute for the right itself, which requires a defendant's *physical presence* at a time when they can "point out [factual] errors" in the record, "controvert assertions by the prosecutor," and "provide counsel with details about the underlying facts" (*Dokes*, 79 NY2d at 661).

Nor did defense counsel's presence or comments in court satisfy CPL 260.20's mandate. The right to be present during the trial belongs to the defendant personally, not to defense counsel. Here, the court asked defense counsel if defense counsel "want[ed] to be heard," and counsel responded that he would rely on the in-chambers discussion. The court did not, however, ask *defendant* if he wished to be heard. Defendants generally are not permitted to speak directly to the court unless so instructed, but rather must communicate through counsel. Nor did the court meaningfully explain to defendant the nature of the proceeding. Further, the prosecution concedes that the court's statement to counsel alone could not have cured an earlier violation of defendant's rights. Under these circumstances, defense counsel did not bind defendant merely by declining to present new arguments, and defendant's silence, without more, cannot be construed as the knowing and intelligent waiver of defendant's right to participate (*see People v Smith*, 82 NY2d 254, 268 [1993] ["In view of the significant potential for meaningful participation by the defendant, there would seem to be little sound reason, short of an affirmative waiver, for excluding the defendant from any aspect, informal or formal, of the *Sandoval* proceeding"]).

Finally, the court's recitation of its *Sandoval* rulings in defendant's presence could not cure its earlier error. The court did not entertain argument on the *Sandoval* motion, did not articulate the arguments that had been made or the reasoning for its various decisions, referred to defendant's prior convictions by number only (as enumerated in the prosecution's application), and did not invite any participation from the defendant. This is even less than what occurred in *Monclavo*, where this Court held that the trial court's "repetition or recitation in the defendant's presence of what ha[d] already been determined in his absence" was insufficient to cure the earlier

error (87 NY2d at 1031). A defendant has a right to hear the arguments and facts relevant to the determination of the *Sandoval* motion in order to meaningfully participate. The remedy for a violation of this right is reversal and remittal for a new trial (*see Dokes*, 79 NY2d at 662).

As to defendant's remaining claims, given that defendant is entitled to a new trial, we have no occasion to address defendant's claim that he was denied effective appellate review due to the loss of certain trial exhibits. In any event, we note that the prosecution has informed us, and defendant does not dispute, that the exhibits have been located and turned over to appellate defense counsel. Defendant's other claim, that his firearm convictions violate his Second Amendment rights as recognized by the United States Supreme Court in *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]), was raised for the first time before the Appellate Division and is therefore unpreserved (*see People v David*, 41 NY3d 90, 96 [2023]; *People v Cabrera*, 41 NY3d 35, 46 [2023]).

Accordingly, the order of the Appellate Division should be reversed and a new trial ordered.

Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order reversed and a new trial ordered.

[246 NE3d 868, 221 NYS3d 425]

SUZAN RUSSELL, Appellant, v NEW YORK UNIVERSITY et al.,
Respondents.

Argued March 13, 2024; decided April 25, 2024

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 26, 2022. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Bronx County (Howard H. Sherman, J.; op 2020 NY Slip Op 35215[U] [2020]), which had granted defendants' motions to dismiss the complaint as against them.

Russell v New York Univ., 204 AD3d 577, affirmed.

HEADNOTES

Judgments — Collateral Estoppel — Prior Federal Action Alleging Nearly Identical Human Rights Law Violations

1. Plaintiff's discrimination and hostile work environment claims under the New York State and New York City Human Rights Laws (HRL) arising from offensive and demeaning conduct she was subjected to by her colleagues at defendant university were barred by collateral estoppel based upon the findings of the federal district court in dismissing plaintiff's nearly identical federal action. Where a federal court has made an explicit finding that a plaintiff produced no evidence on the relevant specific factual issue in the litigation, the application of the collateral estoppel bar to the plaintiff's identical claims under state statutes is warranted. Here, there were no factual findings to sustain a discrimination or retaliation claim no matter the standard. Application of the requisite liberal construction standard did not change the result, and this case did not implicate the frequent risk that evidence winds up being undervalued for City HRL purposes because it has been filtered through a federal lens. Instead, applying the proper mixed-motive standard under the City HRL, Supreme Court correctly determined that plaintiff could not have proceeded on her claims where the factual findings of the federal courts made clear that no pretext or retaliatory animus existed for the termination of plaintiff's employment.

Civil Rights — Discrimination in Employment — Liability of Coworkers

2. Plaintiff's discrimination and hostile work environment claims under the New York State and New York City Human Rights Laws (HRL) against defendant faculty members who subjected her to offensive and demeaning conduct during her employment by defendant university were properly dismissed, where the district court in plaintiff's nearly identical federal action found that the individual defendants held no supervisory role over plaintiff. The district court noted that it was undisputed that the individual defendants were plaintiff's coworkers, rather than her supervisors. That finding precluded any determination to the contrary in the state litigation,

and so plaintiff's first theory of liability based on any alleged supervisory role was rejected. With respect to aiding and abetting liability, there could be no such liability given that the predicate claims against defendant university were properly dismissed. Moreover, while the City HRL expressly provides for liability at the individual employee level, it does not, as written, permit coworkers to be held liable absent a role in administering the compensation, terms, conditions, or privileges of a plaintiff's employment. The text of the statute does not support unlimited liability for all coworkers, but instead ties that liability to the power to affect specified features of plaintiff's employment.

RESEARCH REFERENCES

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AM JUR 2d Job Discrimination §§ 803, 807, 813, 825, 829;
AM JUR 2d Judgments §§ 466, 492.
CARMODY-WAIT 2d Judgments § 63:511.
NY JUR 2d Civil Rights §§ 39–43, 95, 97, 99, 213, 220.
SIEGEL, NY PRAC (6th ed) § 457.

ANNOTATION REFERENCE

See ALR Index under Civil Rights and Discrimination;
Sexual Harassment.

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POINTS OF COUNSEL

Borstein Turkel, P.C., New York City (*Avram S. Turkel* of counsel), and *Ballon Stoll P.C.*, New York City (*Marshall B. Bellovin* of counsel), for appellant. I. The ruling of the Appellate Division should be reversed as the Appellate Division should have applied a more liberal pleading standard at the motion to dismiss stage. (219 *Broadway Corp. v Alexander's, Inc.*, 46 NY2d 506; *Beneke v Town of Santa Clara*, 28 AD3d 998; *Guggenheimer v Ginzburg*, 43 NY2d 268; *Sokoloff v Harri-man Estates Dev. Corp.*, 96 NY2d 409; *O'Halloran v Metropolitan Transp. Auth.*, 154 AD3d 83; *Vig v New York Hairspray Co., L.P.*, 67 AD3d 140; *Matter of Cahill v Rosa*, 89 NY2d 14; *Matter of United States Power Squadrons v State Human Rights Appeal Bd.*, 59 NY2d 401; *City of Schenectady v State Div. of Human Rights*, 37 NY2d 421; *New York Inst. of Tech. v State Div. of Human Rights*, 40 NY2d 316.) II. The decision of the Appel-

late Division should be reversed as the Appellate Division incorrectly applied the doctrine of collateral estoppel. (*Simmons-Grant v Quinn Emanuel Urquhart & Sullivan, LLP*, 116 AD3d 134; *Schwartz v Public Adm'r of County of Bronx*, 24 NY2d 65; *Ashcroft v Iqbal*, 556 US 662; *Epifani v Johnson*, 65 AD3d 224; *Leon v Martinez*, 84 NY2d 83; *Vig v New York Hairspray Co., L.P.*, 67 AD3d 140; *Wilson v Phoenix House*, 42 Misc 3d 677; *Frank v DaimlerChrysler Corp.*, 292 AD2d 118; *Rovello v Orofino Realty Co.*, 40 NY2d 633; *Phillips v City of New York*, 66 AD3d 170.) III. The decision of the lower court should be reversed as plaintiff has successfully pleaded a prima facie case of discrimination, retaliation and hostile work environment. (*Ferrante v American Lung Assn.*, 90 NY2d 623; *Abrahamson v Board of Educ. of Wappingers Falls Cent. School Dist.*, 374 F3d 66; *Matter of Binghamton GHS Empls. Fed. Credit Union v State Div. of Human Rights*, 77 NY2d 12; *Bennett v Health Mgt. Sys., Inc.*, 92 AD3d 29; *Albunio v City of New York*, 16 NY3d 472; *Vig v New York Hairspray Co., L.P.*, 67 AD3d 140; *Leibowitz v Cornell Univ.*, 584 F3d 487; *Collazo v County of Suffolk*, 163 F Supp 3d 27; *Schindler v Plaza Constr. LLC*, 154 AD3d 495.)

Proskauer Rose LLP, New York City (*Joseph C. O'Keefe* and *Jonathan R. Gartner* of counsel), for New York University and others, respondents. I. The motion court and Appellate Division correctly applied the collateral estoppel doctrine to Suzan Russell's allegations. (*Buechel v Bain*, 97 NY2d 295; *Ryan v New York Tel. Co.*, 62 NY2d 494; *Gramatan Home Invs. Corp. v Lopez*, 46 NY2d 481; *Matter of Khan v New York City Health & Hosps. Corp.*, 144 AD3d 600; *Karimian v Time Equities, Inc.*, 164 AD3d 486; *Clifford v County of Rockland*, 140 AD3d 1108; *Emmons v Broome County*, 180 AD3d 1213; *Vig v New York Hairspray Co., L.P.*, 67 AD3d 140.) II. Suzan Russell's attempt to conflate collateral estoppel and res judicata does not save her claims. (*Corto v Lefrak*, 203 AD2d 94; *Williams v New York City Tr. Auth.*, 171 AD3d 990; *Milione v City Univ. of N.Y.*, 153 AD3d 807; *Johnson v IAC/InterActiveCorp*, 179 AD3d 551; *Sanders v Grenadier Realty, Inc.*, 102 AD3d 460; *Peterkin v Episcopal Social Servs. of N.Y., Inc.*, 24 AD3d 306; *Hudson v Merrill Lynch & Co., Inc.*, 138 AD3d 511.) III. The federal courts' factual findings were dispositive of Suzan Russell's claims against the New York University defendants even under the New York City Human Rights Law's more liberal analysis. (*Milione v City Univ. of N.Y.*, 153 AD3d 807; *Fruchtman v City of New York*, 129 AD3d 500; *Askin v Department of Educ. of the*

City of N.Y., 110 AD3d 621; *Bennett v Health Mgt. Sys., Inc.*, 92 AD3d 29; *Forrest v Jewish Guild for the Blind*, 3 NY3d 295; *Zakrzewska v New School*, 14 NY3d 469; *Croci v Town of Haverstraw*, 146 AD3d 748; *Doe v Bloomberg L.P.*, 178 AD3d 44, 36 NY3d 450; *Ya-Chen Chen v City Univ. of N.Y.*, 805 F3d 59; *Matter of Parris v New York City Dept. of Educ.*, 111 AD3d 528.)

McElroy, Deutsch, Mulvaney & Carpenter, LLP, New York City (*David M. Alberts* of counsel), for Joseph M. Thometz and another, respondents. I. The trial court and Appellate Division properly applied the collateral estoppel doctrine in dismissing plaintiff's discrimination, retaliation, and hostile work environment claims. (*Milione v City Univ. of N.Y.*, 153 AD3d 807, 30 NY3d 907; *Simmons-Grant v Quinn Emanuel Urquhart & Sullivan, LLP*, 116 AD3d 134; *Ji Sun Jennifer Kim v Goldberg, Weprin, Finkel, Goldstein, LLP*, 120 AD3d 18; *Williams v New York City Tr. Auth.*, 171 AD3d 990; *Peterkin v Episcopal Social Servs. of N.Y., Inc.*, 24 AD3d 306; *Singh v Covenant Aviation Sec., LLC*, 131 AD3d 1158.) II. Joseph M. Thometz and Eve Meltzer are not liable under the New York State Human Rights Law and New York City Human Rights Law. (*Patrowich v Chemical Bank*, 63 NY2d 541; *Kaiser v Raoul's Rest. Corp.*, 72 AD3d 539; *Pepler v Coyne*, 33 AD3d 434; *Roberts v Pollack*, 92 AD2d 440; *Island Surgical Supply Co. v Allstate Ins. Co.*, 32 AD3d 824; *Mesiti v Mongiello*, 84 AD3d 1547; *Priore v New York Yankees*, 1 NY3d 504; *Ballard v Children's Aid Socy.*, 781 F Supp 2d 198; *Miloscia v B.R. Guest Holdings LLC*, 33 Misc 3d 466, 94 AD3d 563; *Harrison v Indosuez*, 6 F Supp 2d 224.) III. The Supreme Court and Appellate Division correctly concluded plaintiff failed to state a claim for intentional infliction of emotional distress. (*Murphy v American Home Prods. Corp.*, 58 NY2d 293; *Howell v New York Post Co.*, 81 NY2d 115; *Chanko v American Broadcasting Cos. Inc.*, 27 NY3d 46; *Gerzog v London Fog Corp.*, 907 F Supp 590; *O'Reilly v Executone of Albany*, 121 AD2d 772; *Collins v Willcox Inc.*, 158 Misc 2d 54; *Koster v Chase Manhattan Bank, N.A.*, 609 F Supp 1191; *Shannon v MTA Metro-N. R.R.*, 269 AD2d 218; *Barbato v Giacini*, 188 AD3d 556.)

OPINION OF THE COURT

GARCIA, J.

Plaintiff was subjected to offensive and demeaning conduct by her colleagues and sued them and her employer in federal

court alleging violations of various federal, New York State, and New York City statutes, and intentional infliction of emotional distress. The parties engaged in the full discovery process, including depositions and document production, and defendants moved for summary judgment. A federal judge made detailed factual findings and applied those findings to defendants' federal claims, ultimately granting defendants' summary judgment motions, and the United States Court of Appeals for the Second Circuit affirmed. Plaintiff brought a nearly identical suit in Supreme Court, raising claims over which the federal district court declined to exercise supplemental jurisdiction. Supreme Court dismissed plaintiff's complaint as barred by collateral estoppel and for failing to state a claim, the Appellate Division agreed, and we now affirm.

I.

For several months, plaintiff, an adjunct professor at New York University (NYU), received unsolicited, offensive mail to her NYU mailbox and email account that targeted her based on her age, religion, gender identity, and sexual orientation. She was also the victim of online impersonation, with offensive comments posted in her name on various websites. She reported this conduct to various individuals and employment offices at NYU and the incidents were thoroughly investigated, the offenders sought, and measures taken to limit the harmful impact of the conduct on plaintiff. Dissatisfied with NYU's response, plaintiff elected to file suit in the United States District Court for the Southern District of New York against NYU and certain administrators (collectively, NYU), as well as the individuals she claimed were responsible for the conduct against her (the individual defendants), alleging discrimination, hostile work environment, and retaliation under various federal statutes, the New York State Human Rights Law (the State HRL), and the New York City Human Rights Law (the City HRL), as well as a claim for intentional infliction of emotional distress (IIED).

A court-annexed mediation between the parties was unsuccessful, and the parties proceeded to discovery, entering into a standard confidentiality agreement before exchanging documents and conducting depositions. After receiving discovery materials designated confidential, plaintiff contacted an NYU professor identified by defendants as a potential witness and sent her a series of hostile and threatening emails. Despite

receiving a cease-and-desist letter from NYU's counsel, plaintiff continued to send disturbing emails to the potential witness. Several days later, plaintiff received a letter advising her that her NYU employment was terminated because she "was engaged in harassing, intimidating, and threatening a faculty member" and was "in violation of a court directive."

Plaintiff's union filed a grievance challenging her termination. An arbitrator later determined that plaintiff had engaged in misconduct that justified "some discipline," that it was a "serious issue that required a serious response," but that the conduct "did not rise to the level that would justify immediate termination." The arbitrator awarded plaintiff back pay but did not award reinstatement. Plaintiff amended her complaint to allege retaliation based on her termination, claiming that she was fired for refusing to settle during the mediation.

At the close of discovery, NYU and the individual defendants moved for summary judgment. In a thorough opinion with extensive fact-finding, the district court granted defendants' motions (*Russell v New York Univ.*, 2017 WL 3049534, *31-38, 2017 US Dist LEXIS 111209, *88-110 [SD NY, July 17, 2017, No. 1:15-cv-2185-GHW]). In short, the district court rejected plaintiff's hostile work environment claim because "no reasonable jury could find that NYU responded negligently here," and plaintiff's discrimination and retaliation claims because plaintiff presented no evidence that her termination occurred under circumstances giving rise to an inference of discrimination, no evidence of a causal connection between her termination and any protected activity, no evidence that her termination was a pretext for discrimination, and no evidence of any retaliatory motive for her termination (2017 WL 3049534, *31-36, 2017 US Dist LEXIS *88-106). The district court declined to exercise supplemental jurisdiction over plaintiff's City and State HRL claims and dismissed those claims without prejudice (2017 WL 3049534, *39-40, 2017 US Dist LEXIS *112-114). Plaintiff appealed the dismissal of her hostile work environment and retaliation claims and the Second Circuit affirmed (*Russell v New York Univ.*, 739 Fed Appx 28 [2d Cir 2018]).

While her appeal was pending, plaintiff filed this action in Supreme Court, Bronx County, alleging violations of the State and City HRLs, renewing her IIED claim, adding another NYU administrator as a defendant, and asserting a new protected category of disability. Defendants moved to dismiss the

complaint as barred by collateral estoppel and for failure to state a claim, and Supreme Court granted these motions (2020 NY Slip Op 35215[U], *17 [Sup Ct, Bronx County 2020]). The court dismissed the discrimination claims against the NYU defendants, on the basis that the federal district court found “that the NYU defendants exhaustively investigated the harassment by the individual defendants, that the NYU defendants were not . . . aware of and did not participate in the harassment, [and] that they took reasonable action to address the claims” (*id.* at *11). Next, the court dismissed the retaliation claims against NYU, reasoning that “under the more liberal analysis of the City Human Rights Law,” “no basis exists for a finding that unlawful discrimination was the basis for an adverse employment action” based on the “factual findings of the federal court[] [that] make clear that no pretext or retaliatory animus existed for the termination of plaintiff’s employment” (2020 NY Slip Op 35215[U], *13-15). Plaintiff’s claims against the individual defendants were also dismissed, with the court holding that the district court’s findings that the individual defendants had no supervisory role over plaintiff precluded any claim under the relevant statutes because “co-workers who engage in discriminatory conduct who have no role in supervision or terms of employment are not liable under the NYCHRL or the NYSHRL” (*id.* at *16). Derivative aiding and abetting claims against the individual defendants did not survive because the primary claims against NYU were dismissed (*id.*).

The Appellate Division affirmed, with the full panel agreeing that plaintiff was collaterally estopped from proceeding on her discrimination and hostile work environment claims and that the individual defendants could not be held liable under the City HRL in the absence of any supervisory authority (204 AD3d 577, 579, 593 [1st Dept 2022]). While the majority held that plaintiff was collaterally estopped from proceeding on her retaliation claim by the federal court’s finding “that plaintiff failed to present evidence that NYU’s reason [for plaintiff’s termination] was pretextual” (*id.* at 579-580), the dissent would have held that “[t]he temporal proximity between plaintiff’s refusal to settle her discrimination claims and her termination some five weeks later supports an inference that she was terminated in retaliation for refusing to settle and continuing to prosecute her discrimination claims,” “buttressed by the arbitrator’s finding that her termination was an unduly harsh

remedy for her conduct” (*id.* at 588). Plaintiff’s appeal comes to this Court as of right pursuant to CPLR 5601 (a).

II.

The courts below properly applied our established principles of collateral estoppel in the context of the unique requirements of the City Human Rights Law. Collateral estoppel “bars the relitigation of an issue of fact or law actually litigated and resolved in a valid court determination essential to the prior judgment” and so “the determination of an essential issue is binding in a subsequent action, even if it recurs in the context of a different claim” (*Paramount Pictures Corp. v Allianz Risk Transfer AG*, 31 NY3d 64, 72 [2018] [citations and internal quotation marks omitted]). If there is identity of issues between the prior determination and the instant litigation, and the precluded party had a full and fair opportunity to contest the prior determination, collateral estoppel applies and the prior determination is binding in the subsequent action (*see Kaufman v Eli Lilly & Co.*, 65 NY2d 449, 455 [1985]).

Courts in New York are not infrequently called upon to apply these principles in cases where plaintiffs have initially sought to have their rights vindicated in federal court, particularly in the employment context. After federal courts in those cases have supervised extensive discovery, made findings of fact and liability determinations adverse to plaintiffs, granted summary judgment on the federal claims, and declined to exercise supplemental jurisdiction over claims brought under the City and State HRLs, plaintiffs may opt to pursue these claims in state courts (*see e.g. Johnson v IAC/InterActiveCorp*, 179 AD3d 551, 552 [1st Dept 2020] [collateral estoppel applied to preclude plaintiff’s claims under the “more liberal analysis” of City HRL following district court’s grant of summary judgment to defendants]; *Williams v New York City Tr. Auth.*, 171 AD3d 990, 992-993 [2d Dept 2019] [same]; *Milione v City Univ. of N.Y.*, 153 AD3d 807, 808-809 [2d Dept 2017] [same]; *Simmons-Grant v Quinn Emanuel Urquhart & Sullivan, LLP*, 116 AD3d 134, 138-141 [1st Dept 2014] [same]). Applying the doctrine of collateral estoppel as it was intended, these courts will dismiss complaints where the federal court determinations preclude a second litigation (*see id.*; *cf. Allen v McCurry*, 449 US 90, 95-96 [1980] [“collateral estoppel not only reduce(s) unnecessary litigation and foster(s) reliance on adjudication, but also promote(s) the comity between state and federal courts that has

been recognized as a bulwark of the federal system”]; *Buechel v Bain*, 97 NY2d 295, 303 [2001] [“The policies underlying (collateral estoppel’s) application are avoiding relitigation of a decided issue and the possibility of an inconsistent result”]).

The City HRL must be “construed liberally for the accomplishment of the uniquely broad and remedial purposes thereof, regardless of whether federal or New York state civil and human rights laws . . . have been so construed” (Administrative Code of City of NY § 8-130 [a]; see *Albunio v City of New York*, 16 NY3d 472, 477-478 [2011]). To that end, when considering the collateral estoppel effect of a federal district court ruling, our state courts must be, and have been, cognizant of this distinct analytical framework (see e.g. *Williams*, 171 AD3d at 993 [(E)ven under the broader standard of the NYCHRL, (the federal factual) determinations nonetheless require dismissal of the plaintiff’s causes of action”]; *Karimian v Time Equities, Inc.*, 164 AD3d 486, 488-489 [2d Dept 2018] [(A) cause of action asserted pursuant to NYCHRL must be analyzed independently from similar or identical causes of action asserted pursuant to Title VII and/or NYSHRL”]; *Simmons-Grant*, 116 AD3d at 140 [(T)he resolution of even a strictly factual issue could vary depending on the balancing process that shapes a court’s view of one or more events,” and the “balancing process demanded by title VII as it has been interpreted . . . and the City HRL as it has been amended by the Restoration Act . . . can easily yield different interpretations and, hence, different results”]). Nevertheless, as the Appellate Division correctly noted below,

“it would be illogical to accept as true in the state action a factual allegation rejected by the federal court where the plaintiff had a full and fair opportunity to litigate it in the federal action, as long as the same conclusion would result if the allegation were viewed under the more liberal City Human Rights Law standard” (204 AD3d at 579).

Put another way, even under the City HRL, the “general principle [of liberal construction] does not substitute for evidence” and “once defendant [has] established its nonretaliatory reason in the federal action, plaintiff [is] required to identify an issue of fact” (*Simmons-Grant*, 116 AD3d at 141).

Lower courts have had no trouble applying collateral estoppel within this framework (compare *Ji Sun Jennifer Kim v Goldberg, Weprin, Finkel, Goldstein, LLP*, 120 AD3d 18, 23-24

[1st Dept 2014] [collateral estoppel did not apply to bar claims under City and State HRLs following federal court ruling on federal statutory claims because both the applicable standard and “claimed bases for retaliation” differed between the federal and state actions], and *Domingo v Avis Budget Group, Inc.*, 219 AD3d 964, 966 [2d Dept 2023] [dismissing retaliation claims as barred by collateral estoppel where factual determinations examined under title VII and State HRL by federal court were “determinative of” retaliation claims asserted in state complaint under City HRL, but maintaining hostile work environment claim because plaintiff’s allegations “could constitute ‘more than petty slights and trivial inconveniences’ (as required by the City HRL) without rising to the level of being severe and pervasive (as required by title VII and State HRL)”], with *Johnson*, 179 AD3d at 552 [“In applying collateral estoppel to such purely factual issues, the motion court properly evaluated plaintiff’s claims of discrimination and disparate treatment under the more liberal analysis of the City Human Rights Law . . . and correctly concluded that plaintiff failed to raise a triable issue of discrimination based on the termination of her employment or any disparate treatment”]). The courts below adhered to this approach and correctly concluded that plaintiff’s claims are precluded based on the findings of the district court.

A.

In the federal litigation, the district court found that, because “no reasonable jury could find that NYU responded negligently here,” plaintiff’s hostile work environment claim failed, and that because plaintiff “failed to present any evidence from which a reasonable jury could draw an inference of discrimination,” her discrimination claim failed (2017 WL 3059534, *31, 33, 2017 US Dist LEXIS 111209, *89, 96). With respect to defendant’s retaliation claim, the district court held that plaintiff presented “no evidence that NYU’s stated reason for her termination was merely a pretext for discrimination,” no evidence “that her termination occurred under circumstances giving rise to an inference of discrimination,” no “circumstances giving rise to an inference that she was terminated because of her sex, age, or religion,” and no “evidence of a causal connection between her termination and any protected activity” (2017 WL 3059534, *32-35, 2017 US Dist LEXIS 111209, *91-102). Rejecting plaintiff’s assertion that the arbitrator’s finding that

plaintiff's misconduct did not "rise to the level that would justify immediate termination" supported an inference that her termination was retaliatory, the district court instead held that, because the arbitrator concluded that plaintiff committed serious misconduct requiring a serious response and "did not find that NYU's termination of [plaintiff] was motivated by any discriminatory animus or anything else other than its judgment as to [plaintiff's] misconduct," the arbitrator's conclusion "does not support an inference that [plaintiff] was terminated for discriminatory reasons" (2017 WL 3059534, *33, 2017 US Dist LEXIS 111209, *94-96). The district court also determined, with respect to NYU's assertion that plaintiff's termination was due to her harassing emails to a fellow professor and potential witness, that plaintiff failed "to present evidence from which a reasonable jury could conclude that NYU's explanation was a pretext for impermissible retaliation" (2017 WL 3059534, *36, 2017 US Dist LEXIS 111209, *106). With respect to plaintiff's "reli[ance] . . . on the alleged temporal proximity between the court-ordered mediation held in this lawsuit and her termination," the court explained that, if considered, evidence of such temporal proximity would be insufficient to counter the finding that NYU's explanation for plaintiff's termination was not pretextual (2017 WL 3059534, *37, 2017 US Dist LEXIS, *106-108).

[1] Where a federal court has made an "explicit finding that plaintiff produced *no* evidence on the relevant specific factual issue in the litigation," as was done here, the application of the collateral estoppel bar to plaintiff's identical claims under state statutes is warranted (*Simmons-Grant*, 116 AD3d at 140). With no factual findings to sustain a discrimination or retaliation claim no matter the standard, plaintiff's claims must be dismissed.¹ Application of the requisite liberal construction standard does not change the result, and this case does not implicate "the frequent risk that evidence winds up being undervalued for City HRL purposes because it has been filtered through a [federal] lens" (*id.* at 140-141). Instead, applying the proper mixed-motive standard under the City HRL, Supreme

1. The dissent below suggested that the federal courts determined that "any causal inference would be too weak to rebut the facially nondiscriminatory reason proffered by defendants for plaintiff's termination" (204 AD3d at 591 [González, J., dissenting]). The federal courts instead held that there was *no* evidence upon which any such causal inference could be based (2017 WL 3049534, *32-36, 2017 US Dist LEXIS 111209, *90-106).

Court correctly determined that plaintiff could not proceed on her claims where “[t]he factual findings of the federal courts make clear that *no* pretext or retaliatory animus existed for the termination of plaintiff’s employment” (2020 NY Slip Op 35215[U], *15 [emphasis added]). Plaintiff’s claims against NYU were thus barred by collateral estoppel.

B.

Plaintiff’s claims against the individual defendants were also properly dismissed.² Plaintiff argues that these individuals, both NYU faculty members at the time of the conduct, are liable as supervisors, that they aided and abetted NYU’s violations, and that, even assuming they held no supervisory role, they can be found personally liable for their own harassing conduct under the City HRL. These claims all fail.

[2] The district court noted that it was “undisputed” that the individual defendants were plaintiff’s “co-workers rather than her supervisors” (2017 WL 3049534, *28, 2017 US Dist LEXIS 111209, *77). This finding precludes any determination to the contrary in this litigation, and so plaintiff’s first theory of liability based on any alleged supervisory role must be rejected. With respect to aiding and abetting liability (*see* Administrative Code § 8-107 [6]), there can be no such liability given that the predicate claims against NYU were properly dismissed (*see Abe v Cohen*, 115 AD3d 491, 492 [1st Dept 2014]; *Palmer v Cook*, 65 Misc 3d 374, 392 [Sup Ct, Queens County 2019] [“A precondition to proving aiding and abetting pursuant to NYSHRL and NYCHRL is a finding of discrimination”]).

We also reject plaintiff’s claim that the individual defendants may be liable under the City HRL absent any supervisory role. While that statute goes beyond the State HRL in providing for individual liability, it does not, as written, permit coworkers to be held liable absent a role in administering the compensation, terms, conditions, or privileges of plaintiff’s employment.

Federal, state, and local employment statutes hold employers liable for discriminatory conduct (*see e.g.* 42 USC § 2000e-2 [title VII]; 29 USC § 623 [Age Discrimination in Employment Act (ADEA)]; Executive Law § 296 [1] [State HRL]; Administra-

2. Likewise, plaintiff’s claims against individual NYU administrators and plaintiff’s IIED claim against the individual defendants were properly dismissed for failure to state a claim.

tive Code § 8-107 [1] [City HRL]). Employers are thus required to provide reasonable avenues for discrimination and harassment complaints, to respond appropriately to such complaints, and to take reasonable steps to eliminate the harmful conduct; where they fail to do so, they are subject to liability under these statutes (*see Zakrzewska v New School*, 14 NY3d 469, 479-480 [2010]; *Williams v New York City Hous. Auth.*, 61 AD3d 62, 73-80 [1st Dept 2009]; *see also Rojas v Roman Catholic Diocese of Rochester*, 660 F3d 98, 107 [2d Cir 2011]; *Terry v Ashcroft*, 336 F3d 128, 148 [2d Cir 2003]). Unlike other statutes, however, the City HRL expressly provides for liability at the individual employee level, making it

“an unlawful discriminatory practice . . . [f]or an employer or an employee or agent thereof, because of the actual or perceived age, race, creed, color, national origin, gender, disability, marital status, partnership status, caregiver status, sexual and reproductive health decisions, sexual orientation, uniformed service, height, weight, or immigration or citizenship status of any person . . . [t]o discriminate against such person in compensation or in terms, conditions or privileges of employment” (Administrative Code § 8-107 [1] [a] [3] [emphasis added]; 1991 NY City Legis Ann 145-81).

The language providing for liability of “an employee or agent” was added to the statute in 1991 (Local Law No. 39 [1991] of City of NY § 1).³

We agree with the lower courts that have held that the statutory language, textually limited as it is to discrimination in pay, terms, conditions, and privileges of employment, provides for liability for individual employees for discrimination when those employees have some supervisory role over the victim of their discrimination (*see e.g. Priore v New York Yankees*, 307 AD2d 67, 74 [1st Dept 2003] [City HRL limits liability to fellow employees who “act with or on behalf of the employer in hiring, firing, paying, or in administering the ‘terms, conditions or privileges of employment’—in other words, in some agency or supervisory capacity”]). As required by the statute’s liberal rule

3. In comparison, the State HRL does not expressly address discrimination directly committed by an employee (*see* Executive Law § 296 [1] [prohibiting discrimination only by an “employer”]; § 296 [6] [prohibiting “any person” from aiding and abetting discrimination]; *see also Patrowich v Chemical Bank*, 63 NY2d 541, 542-543 [1984]).

of construction, we construe this language broadly, to include not just those with formal managerial or titular authority over a plaintiff, but as applicable to those who wield any ability to dictate or administer the compensation, terms, conditions, or privileges of the plaintiff's employment (*see e.g. Melendez v New York City Tr. Auth.*, 204 AD3d 542, 543 [1st Dept 2022] [evidence that defendant "had the de facto ability to direct other employees, notwithstanding his official title" precluded summary judgment on City HRL claim]).

Today we simply affirm the First Department's approach that began more than 20 years ago with *Priore* and has been consistently applied through the Restoration Act, after *Williams*, and since the 2016 City HRL amendments.⁴ No support is provided for the dissent's contrary approach. Indeed, in each of the cases cited by the dissent for the undisputed propositions that "state and federal courts have treated section 8-107 (1) (a) as creating individual liability for employees" and that "a person may sue an employee for allegedly creating or participating in a hostile work environment based on the complainant's protected classification" (*see* dissenting op at 398-400, 402-403), with the exception of *Murphy v ERA United Realty* (251 AD2d 469, 471 [2d Dept 1998]), plaintiff either did not bring a claim based on individual liability (*see e.g. Springs v City of N.Y.*, 2019 WL 1429567, *15 n 4, *16, 2019 US Dist LEXIS 55094, *47 n 4, *47-50 [SD NY, Mar. 28, 2019, No. 17-cv-451 (AJN)] ["The Court is cognizant that Plaintiff has not brought a NYCHRL discrimination claim against any of the individual defendants"]; *Baldwin v Bank of Am., N.A.*, 42 Misc 3d 1203[A], 2013 NY Slip Op 52194[U], *8 [Sup Ct, Kings County 2013] ["Plaintiff does not allege that defendant Perez is directly liable under City Human Rights (Law) § 8-107 (1) (a)"]), or brought a claim against an individual with supervisory or managerial control over the plaintiff (*see Quintero v Angels of the World, Inc.*, 2021 WL 4464123, *10, 2021 US Dist LEXIS 172445, *26-29 [ED NY, Sep. 10, 2021, 19-CV-6126 (DG)] [individual defendant "harasser" managed operations of employer

4. While the dissent insists that the First Department "acknowledged" in *Williams* that *Priore* was overruled (dissenting op at 412), the First Department has continued to apply *Priore* (*id.* at 406-407), including the full panel below (204 AD3d at 579, 593). For this reason, as well as the other issues identified herein, we do not find the position advocated by "[a] drafter of both the 1991 and 2005 amendments" persuasive (*see* dissenting op at 405-406, 408-409, 410-411, citing Gurian, *A Return to Eyes on the Prize: Litigating under the Restored New York City Human Rights Law*, 33 Fordham Urb LJ 255 [2006]).

and controlled plaintiff's work schedule]; *Antoine v Brooklyn Maids 26, Inc.*, 489 F Supp 3d 68, 78 [ED NY 2020] [individual defendant "harasser" was the chief executive officer of plaintiff's employer and her supervisor]; *Setty v Synergy Fitness*, 2018 WL 8415414, *1, 2018 US Dist LEXIS 213878, *1-3 [ED NY, Dec. 18, 2018, 17-CV-06504 (NGG) (SMG)] [individual defendant "harasser" was plaintiff's former manager]; *Dillon v Ned Management, Inc.*, 85 F Supp 3d 639, 648 [ED NY 2015] [individual defendants were plaintiff's boss, "immediate supervisor," the "owner of the company," and the "bookkeeper" with authority to dock plaintiff's pay]; *Baldwin*, 2013 NY Slip Op 52194[U], *2 [individual defendant was plaintiff's former supervisor]; *Malena v Victoria's Secret Direct, LLC*, 886 F Supp 2d 349, 365 [SD NY 2012] [individual defendant was plaintiff's direct boss "and hence supervised her schedule and conditions of employment" and "played a part in setting Plaintiff's salary"]; *Nelson v HSBC Bank USA*, 41 AD3d 445, 446 [2d Dept 2007] [individual defendants were plaintiffs' supervisors]). Of course, as explained, we agree with the dissent that section 8-107 (1) (a) creates individual liability for employees—but only those employees who, as in the above-cited cases, have a role in administering plaintiff's compensation, terms, conditions, or privileges of employment.⁵

But that is as far as the language of the statute will permit us to go (*see Makinen v City of New York*, 30 NY3d 81, 88 [2017] ["Even if the NYCHRL was intended to be more protective than the state and federal counterparts, and even if its legislative history contemplates that the Law be independently construed with the aim of making it the most progressive in the nation, the NYCHRL still must be interpreted based on its plain meaning" (internal quotation marks and citations omitted)]). The text of the statute does not support unlimited liability for all co-workers, but instead ties that liability to the power to affect specified features of plaintiff's employment (*see e.g. Eustache v Board of Educ. of the City Sch. Dist. of the City of N.Y.*, 221 AD3d 452, 453 [1st Dept 2023] [claims under City HRL dismissed against coworker where plaintiff "failed to suf-

5. We decline to adopt the dissent's suggestion that the meaning of "conditions of employment" somehow changes when applied to gender-based harassment (*see* dissenting op at 402-403, 405). Sixteen protected characteristics upon which a claim for employee liability may be based are listed in section 8-107 (1) (a) and there is nothing to suggest that gender, the sixth listed category, is to be treated differently.

ficiently allege that (defendant) had any authority over the terms, conditions, or privileges of his employment”]; *Kwong v City of New York*, 204 AD3d 442, 445-446 [1st Dept 2022]; *Priore*, 307 AD2d at 74 [“There is no indication in the local ordinance, explicit or implicit, that it was intended to afford a separate right of action against any and all fellow employees based on their independent and unsanctioned contribution to a hostile environment”]). For that reason, we decline to adopt the approach suggested by the Second Department in *Murphy*, which is unmoored from the text of the City HRL⁶ (251 AD2d at 471 [paraphrasing the City HRL as generally prohibiting “discriminatory employment practices” and failing to consider the scope of employee liability in the context of the statute’s prohibition on discrimination in “compensation, . . . terms, conditions or privileges of employment” (Administrative Code § 8-107 [1] [a] [3])]).

We do not in any way minimize or downplay the offensive conduct attributed to the individual defendants. But avenues are available for holding those who engage in such behavior accountable; plaintiff unsuccessfully pursued those avenues in this litigation. Whether to make the far-reaching change in individual liability sought here—personal liability that would extend to subordinates as well as supervisors—is a question for the City Council, not this Court.

As always, we strive to construe a statute to effectuate legislative intent, using whatever interpretive tools are available, including the liberal construction we all agree is applicable to claims under the City HRL. We respectfully disagree with our dissenting colleague as to the result of that process here. And while the legislative branch is of course free to dis-

6. The dissent’s reliance on dicta in federal cases analyzing the NYCHRL is misplaced and misapprehends the role of federal courts in applying New York law (*see* dissenting op at 398-400, 404 n 4). First, many of the cited cases involved liability claims against individuals with authority to administer plaintiffs’ compensation, terms, conditions, or privileges of employment, and accordingly those holdings are consistent with our opinion today (*see* dissenting op at 404 n 4 [citing exclusively federal cases involving claims against managers, supervisors, or owners]). To the extent some of those cases suggest a different rule, they rely, or follow cases that rely, as federal courts must, on existing state case law (*see United States v Fernandez-Antonia*, 278 F3d 150, 162 [2d Cir 2002] [“It is axiomatic . . . that when interpreting state statutes federal courts defer to state courts’ interpretation of their own statutes”]). As discussed, the case law, particularly the Second Department’s opinion in *Murphy*, has caused some confusion, which we clarify today in rejecting the approach taken by that Court.

agree with us and amend the statute, we do not share our dissenting colleague's view that we need to be "reminded" (dissenting op at 393, 414) of what is, emphatically, the responsibility of this Court to determine what the law says.

Accordingly, the order of the Appellate Division should be affirmed, with costs.

RIVERA, J. (dissenting). The New York City Human Rights Law (NYCHRL) prohibits certain discriminatory conduct by "an employer or an employee or agent thereof" (Administrative Code of City of NY § 8-107 [1] [a] [3]). This language could not be clearer: employees are individually liable for their discriminatory conduct, without reservation. The language furthers the NYCHRL's animating policy to deter and eliminate all forms of discrimination. Despite the statute's clear text and antidiscrimination goals, the majority grafts onto the NYCHRL a non-existent limitation on employee liability requiring the defendant to have a supervisory role, citing case law the City Council legislatively overruled years ago (*see* Local Law No. 35 [2016] of City of NY, 2016 NY City Legis Ann 177, LMA at 18, codified as Administrative Code § 8-130 [c], ratifying *Williams v New York City Hous. Auth.*, 61 AD3d 62 [1st Dept 2009], thereby legislatively overruling *Priore v New York Yankees*, 307 AD2d 67 [1st Dept 2003]). The majority thus ignores the most elementary rule of statutory construction to give meaning to the legislative intent, here, the City Council's repeated mandate that the NYCHRL be "construed liberally for the accomplishment of the uniquely broad and remedial purposes thereof" with "[e]xceptions to and exemptions from" the statute "construed narrowly in order to maximize deterrence of discriminatory conduct" (Administrative Code § 8-130 [a], [b]).

The Council has twice amended the NYCHRL in response to this Court's overly narrow reading of the law. Now it will have to remind the judiciary for a third time that the Council means what it says.

I.

Plaintiff, Suzan Russell, filed a complaint in federal court alleging that, while teaching as an adjunct professor in New York University's (NYU's) Liberal Studies Department, she was subjected to ongoing identity-based harassment via email and hard copy mail from another professor, Joseph M. Thometz, that he impersonated her to further harass her, and that NYU terminated her in retaliation for pursuing these claims. The

federal action alleged discrimination by NYU and the Academic Dean, and individually by Thometz and his wife—NYU Professor Eve Meltzer—based on plaintiff’s gender, age, sexual orientation, and religion. The complaint also included a claim for intentional infliction of emotional distress.

The District Court dismissed plaintiff’s federal claims on the merits and declined to exercise supplemental jurisdiction over the nonfederal claims, and to the extent plaintiff appealed, the Second Circuit affirmed. Plaintiff then filed the underlying action in state court alleging her state and city claims. I agree for the reasons stated by the majority that plaintiff is collaterally estopped from pursuing her claims against NYU and the individual defendants, with one categorical exception (*see* majority op at 388). Plaintiff sufficiently pleads hostile work environment claims under the NYCHRL against Thometz and Meltzer based on their alleged individual conduct as fellow employees and therefore those claims should proceed. Contrary to the majority’s conclusion, the viability of those claims does not depend on whether these defendants acted in a supervisory role.

II.

A.

“It is fundamental that a court, in interpreting a statute, should attempt to effectuate the intent of the Legislature. As the clearest indicator of legislative intent is the statutory text, the starting point in any case of interpretation must always be the language itself, giving effect to the plain meaning thereof.” (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998] [citations and internal quotation marks omitted]). In that vein, “resort must be had to the natural signification of the words” (*id.*). Statutory interpretation is not an invitation to rewrite the law by “discovering” some meaning not intended by the drafters or ignoring words and their clear and obvious import. “It is not for this Court to engraft limitations onto the plain language of the statute. Indeed, ‘[t]his Court should be very cautious in interpreting statutes based on what it views as a better choice of words when confronted with an explicit choice made by the Legislature’” (*Kimmel v State of New York*, 29 NY3d 386, 401 [2017], quoting *Matter of Orens v Novello*, 99 NY2d 180, 190 [2002]). As we have repeatedly stated, we have no power to “legislate under the guise of interpretation” and if

there is “an unintended result of the plain language of the statute, then that is a consequence best left to the Legislature to evaluate and, if necessary, resolve” (*id.* at 401 [internal quotation marks and citation omitted]). In addition to these established rules, we must also consider the City Council’s public policy and its explicit directive to broadly construe the NYCHRL to achieve its remedial purpose.

The NYCHRL opens with a declaration of findings that discrimination in all its forms threatens individual rights and the foundation of our society:

“In the city of New York, with its great cosmopolitan population, there is no greater danger to the health, morals, safety and welfare of the city and its inhabitants than the existence of groups prejudiced against one another and antagonistic to each other because of their actual or perceived differences, including those based on race, color, creed, age, national origin, immigration or citizenship status, gender, sexual orientation, disability, marital status, partnership status, caregiver status, sexual and reproductive health decisions, uniformed service, height, weight, any lawful source of income, status as a victim of domestic violence or as a victim of sex offenses or stalking, whether children are, may be or would be residing with a person, or conviction or arrest record. The council hereby finds and declares that prejudice, intolerance, bigotry, and discrimination, bias-related violence or harassment and disorder occasioned thereby threaten the rights and proper privileges of its inhabitants and menace the institutions and foundation of a free democratic state. The council further finds and declares that gender-based harassment threatens the terms, conditions, and privileges of employment” (Administrative Code § 8-101).

The NYCHRL is ambitious in its goal to deter and eliminate this recognized great evil of discrimination and bias. According to the New York City Commission on Human Rights, the entity charged with enforcing the law and educating the general public on the law’s protections and rights thereunder, the NYCHRL “is one of the most comprehensive civil rights laws in the nation” (*Inside the NYC Commission on Human Rights*, NYC Commission on Human Rights, <https://www.nyc.gov/site/cchr/about/inside-cchr.page> [accessed Mar. 28, 2024]). The NYCHRL:

“prohibits discrimination in employment, housing, and public accommodations based on race, color, religion/creed, age, national origin, immigration or citizenship status, gender (including sexual harassment), gender identity, sexual orientation, disability, pregnancy, marital status, and partnership status. Interns, whether paid or not, are considered employees under the Law.

“In addition, the Law affords protection against discrimination in employment based on unemployment status; arrest or conviction record; credit history; caregiver status; status as a victim of domestic violence, stalking, and sex offenses; and sexual and reproductive health decisions” (*id.*; *see also* Administrative Code § 8-107).

The NYCHRL provides for monetary damages and penalties but also requires affirmative mitigation measures to deter discrimination and encourage enforcement (Administrative Code §§ 8-502, 8-127, 8-107 [13], [29]).

To halt what the City Council has repeatedly found to be an overly narrow judicial construction of the NYCHRL’s public policy and the proscriptions against discriminatory conduct, Administrative Code § 8-130 mandates that “[t]he provisions [of the NYCHRL] shall be construed liberally for the accomplishment of the uniquely broad and remedial purposes thereof, regardless of whether federal or New York state civil and human rights laws, including those laws with provisions worded comparably . . . , have been so construed” and “[e]xceptions to and exemptions from” the NYCHRL “shall be construed narrowly in order to maximize deterrence of discriminatory conduct” (Administrative Code § 8-130 [a], [b]; *see also Syeed v Bloomberg L.P.*, 41 NY3d 446, 451 [Mar. 14, 2024] [acknowledging that courts must broadly construe the NYCHRL]).

The NYCHRL also names *Albunio v City of New York* (16 NY3d 472 [2011]), *Bennett v Health Mgt. Sys., Inc.* (92 AD3d 29 [1st Dept 2011]), and the majority opinion in *Williams v New York City Hous. Auth.* (61 AD3d 62 [1st Dept 2009]) as “cases that have correctly understood and analyzed the liberal construction requirement . . . and that have developed legal doctrines accordingly that reflect the broad and remedial purposes of this title” (Administrative Code § 8-130 [c]). Those cases clearly explain that “broad” means broad, that the NYCHRL tips in favor of plaintiffs in order to eliminate

discrimination and bias throughout our society, and that courts have no discretion to limit the application of the NYCHRL.

In *Albunio*, the Court acknowledged that section 8-130 requires that “we *must* construe” all provisions of the NYCHRL “broadly in favor of discrimination plaintiffs, to the extent that such a construction is reasonably possible” (16 NY3d at 477-478 [emphasis added]). The Appellate Division in *Bennett* declared that “the existence of discrimination—a profound evil that New York City, as a matter of fundamental public policy, seeks to eliminate—demands that the courts’ treatment of such claims maximize the ability to ferret out such discrimination, not create room for discriminators to avoid having to answer for their actions before a jury of their peers” (92 AD3d at 38). *Williams* is even more direct about the Council’s mandate to the judiciary: “[T]he text and legislative history represent a desire that the [NYCHRL] meld the broadest vision of social justice with the strongest law enforcement deterrent. Whether or not that desire is wise as a matter of legislative policy, our judicial function is to give force to legislative decisions” (*Williams*, 61 AD3d at 68-69 [internal quotation marks, citations, and footnotes omitted]). Therefore, similarly-worded federal and state antidiscrimination statutes and corresponding case law demarcating the boundaries of discriminatory actions are merely “a floor below which the [NYCHRL] cannot fall, rather than a ceiling above which the local law cannot rise” (Local Law No. 85 [2005] of City of NY § 1). The NYCHRL is intended to, and does, exceed the protections of other statutes.

B.

Plaintiff alleges that Thometz and Meltzer discriminated against her in violation of section 8-107 (1) (a) of the NYCHRL. That section provides:

“It shall be an unlawful discriminatory practice . . . [f]or an employer *or an employee* or agent thereof, because of the actual or perceived age, . . . creed, . . . disability, . . . [or] sexual orientation . . . of any person . . . [t]o discriminate against such person in compensation or in terms, conditions or privileges of employment” (Administrative Code § 8-107 [1] [a] [3] [emphasis added]).

By its plain text, the only limitation on an employee’s liability is the requirement that the employee’s actions are undertaken

because of a person's actual or perceived protected classification and that the discrimination affects terms or conditions of employment. In contrast, an employer may be liable for its own unlawful discriminatory practice based on an employee's discriminatory conduct in violation of section 8-107 (1) (a), or where the employee "exercised managerial or supervisory responsibility," "the employer knew of the employee's . . . conduct, and acquiesced . . . or failed to take immediate . . . corrective action" or "should have known of the . . . discriminatory conduct and failed to exercise reasonable diligence to prevent such discriminatory conduct" (§ 8-107 [13] [a], [b] [1]-[3]).¹ In other words, the NYCHRL recognizes a private right against the employee and imputes that discriminatory conduct to the employer under certain enumerated circumstances.

Accordingly, several state and federal courts have treated section 8-107 (1) (a) as creating individual liability for employees. In *Malena v Victoria's Secret Direct, LLC*, a federal district court concluded that "the NYCHRL provides for individual liability of an employee regardless of ownership or decisionmaking power" where the individual defendant "actually participate[d] in the conduct giving rise to the plaintiff's discrimination . . . claim," and held that an employee could be liable, in that case, for pregnancy discrimination against their administrative assistant despite not having "authority to hire or fire Plaintiff or to unilaterally set Plaintiff's schedule, hours, or salary" (886 F Supp 2d 349, 366 [SD NY 2012] [internal quotation marks and some brackets omitted]). In *Murphy v ERA United Realty*, the Appellate Division concluded the plaintiff had stated a claim for individual liability under section 8-107 (1) (a) of the NYCHRL against two coworkers and a supervisor for sexual harassment, while only upholding the claim against the supervisor under NYSHRL (251 AD2d 469 [2d Dept 1998]). The *Murphy* court held that coworker liability exists under NYCHRL, noting that that Executive Law § 296 (1) (a) only mentions "employer" but NYCHRL mentions "employer or an employee or an agent" (*id.* at 471).

More recent federal cases have confirmed that a plaintiff may assert a claim under the NYCHRL for direct individual liability against a nonsupervisory employee, even if no such claim was viable under federal or state antidiscrimination laws.

1. An employer may assert its efforts to prevent, detect and correct discrimination at the workplace, in mitigation of civil penalties and punitive damages (Administrative Code § 8-107 [13] [e]; *see also id.* subd [13] [d]).

In *Dikambi v City Univ. of N.Y.* (690 F Supp 3d 293, 302-303 [SD NY 2023]), the court held the individual nonsupervisory employee—in that case a professor—could be liable for alleged sexual harassment under the NYCHRL, but not title VII, because unlike the federal law, the NYCHRL recognizes individual harasser liability of employees, regardless of supervisor status. In *Bonterre v City of New York*, the court upheld claims for individual liability under the NYCHRL against the plaintiff’s alleged sexual harasser—whom the plaintiff described as an employee—but dismissed the individual liability NYSHRL claim as not cognizable under the state laws (2021 WL 4060358, *9, 2021 US Dist LEXIS 169156, *25-27 [SD NY, Sept. 7, 2021, No. 18 Civ. 745 (ER)]). Similarly, in *Eckhart v Fox News Network, LLC*, the court found the sexual harasser was not plaintiff’s supervisor, and therefore could not be liable under the NYSHRL but could be individually liable under the NYCHRL because the City law “provides a broader basis for direct individual liability than does the NYSHRL” (2021 WL 4124616, *16, 2021 US Dist LEXIS 171219, *51 [SD NY, Sept. 9, 2021, No. 20-CV-5593 (RA)], *on reconsideration in part* 2022 WL 4579121, 2022 US Dist LEXIS 178037 [SD NY, Sept. 29, 2022, No. 20-CV-5593 (RA)]). In *Rasmy v Marriott Int’l, Inc.* (2024 WL 456423, *1, 2024 US Dist LEXIS 19416, *1-4 [SD NY, Feb. 5, 2024, No. 16-cv-4865 (JSR)]), the court upheld a jury verdict which rejected liability against all defendants—including the employer—except one of the plaintiff’s former coworker, who the jury found liable for retaliation under the NYCHRL and charged for back pay damages.

Further, courts have not required employer liability as a predicate to individual liability under the NYCHRL (*see e.g. Dikambi*, 690 F Supp 3d at 302-303 [granting employer summary judgment on the plaintiff’s NYCHRL hostile work environment claims while denying summary judgment on individual liability claim against nonsupervisory harasser]). In *Springs v City of New York*, the court noted with respect to a plaintiff’s individual claims against non-supervisory fellow firefighters that, due to NYCHRL’s unique use of “employee” in section 8-107 (1) (a), “individual employees can be held directly liable for discrimination without any requirement that illegal conduct be imputed to their employer” (2019 WL 1429567, *16,

2019 US Dist LEXIS 55094, *48 [SD NY 2019]).² Other courts have also noted that section 8-107 (1) (a) creates a private right of action against individual employees separate from aider-and-abettor liability (see e.g. *Dillon v Ned Mgt., Inc.*, 85 F Supp 3d 639, 648 [ED NY 2015]; *Baldwin v Bank of Am., N.A.*, 42 Misc 3d 1203 [A], 2013 NY Slip Op 52194[U] [Sup Ct, Kings County 2013]).

Turning to the complaint here, plaintiff sufficiently pleads that the alleged conduct of these defendants created a hostile work environment. A hostile work environment claim is based on a theory of discriminatory harassment. It is a well-settled principle of employment discrimination law both federally and locally that coworkers may create a hostile work environment by, for example, using slurs, engaging in sexual harassment, or participating in anonymous identity-based harassment campaigns, as plaintiff alleges here (see 18 NY Jur 2d, Civil Rights § 48 [“A hostile work environment was established where there was testimony that a coemployee had referred to the plaintiff in obscene and sexually demeaning terms in the presence of other employees on numerous occasions, that such comments were persistent and relentless, that the coemployee was also responsible for offensive writings and sexually explicit graffiti prominently displayed in the workplace and also filed baseless complaints against the plaintiff”], citing *Matter of New York State Dept. of Correctional Servs. v New York State Div. of Human Rights*, 53 AD3d 823 [3d Dept 2008]; see also *Legal Enforcement Guidance on Discrimination on the Basis of Immigration Status and National Origin*, NYC Commission on Human Rights at 22 n 121 [Sept. 2019], <https://www.nyc.gov/>

2. The majority notes that the plaintiff in *Springs* “did not bring a claim based on individual liability” (majority op at 390), but then ignores that the court nonetheless acknowledged that such liability may serve as the underlying discriminatory conduct in support of an aiding and abetting claim, even if an employer is not liable: “The Court is cognizant that Plaintiff has not brought a NYCHRL discrimination claim against any of the individual defendants However, Defendants cite no case that suggests that the underlying violation must be pleaded as well as established” (*Springs v City of N.Y.*, 2019 WL 1429567, *15 n 4, *16, 2019 US Dist LEXIS 55094, *47 n 4, *47-50 [SD NY, Mar. 28, 2019, No. 17-cv-451 (AJN)]). In other words, because a nonsupervisory coworker—like the firefighter in *Springs*—may be found individually liable under the NYCHRL, a plaintiff, may base an aiding and abetting claim against individual defendants even without a finding of employer liability, because “a finding of co-worker liability” is a sufficient “predicate for an aiding and abetting discrimination claim” (2019 WL 1429567, *16, 2019 US Dist LEXIS 55094, *48-49).

assets/cchr/downloads/pdf/publications/immigration-guidance.pdf [“Under the NYCHRL, behavior that constitutes a hostile work environment is much broader than the ‘severe or pervasive’ standard at the federal level; it is simply being treated less well because of membership to a protected category”]; *2021 Settlement Highlights*, NYC Commission on Human Rights, <https://www.nyc.gov/site/cchr/enforcement/2021-settlements.page> [accessed Mar. 27, 2024] [settled hostile work environment claim based on gay plaintiff who “endured a hostile work environment and name calling by the restaurant’s kitchen staff”]; *Legal Enforcement Guidance on Employment Discrimination on the Basis of Age*, NYC Commission on Human Rights at 19 [July 2020], <https://www.nyc.gov/assets/cchr/downloads/pdf/AgeDiscriminationGuide-2020.pdf> [accessed Mar. 27, 2024] [for a hostile work environment under the NYCHRL, “conduct must treat plaintiff ‘less well’ because of (a protected characteristic). It is an affirmative defense that the behavior was a petty, slight, or trivial inconvenience” (some internal quotations omitted)]; *Height and Weight Protections in the New York City Human Rights Law*, NYC Commission on Human Rights, <https://www.nyc.gov/site/cchr/media/height-and-weight.page> [accessed Mar. 27, 2024] [“creating or permitting a hostile environment” on the basis of a protected category is illegal]; *Domingo v Avis Budget Group, Inc.*, 219 AD3d 964, 966 [2d Dep’t 2023]; *Williams*, 61 AD3d at 78-80).

A hostile work environment, by definition, affects an employee’s workplace conditions. Thus, to prove a hostile work environment, the burden is on the employee to show that they were treated less well on the basis of a protected classification (*Williams*, 61 AD3d at 78). Where an employee is subject to hostile conduct based on any of the NYCHRL’s protected classifications, they are subject to different workplace conditions than their coworkers—conditions which affect their employment (*Williams*, 61 AD3d 62, 75-77 [ratified by Administrative Code § 8-130 (c), citing Administrative Code § 8-107 (1) (a)]). Thus, if a worker creates a hostile work environment through their independent actions—regardless of whether the employer is vicariously liable or directly liable for creating, sustaining and tolerating a hostile workplace—the worker is liable for their own actions. “In order to hold an individual defendant liable for creating a hostile work environment under NYCHRL, evidence must show that the claim relates directly to the conduct and behavior of the individual” (*Dillon*, 85 F Supp 3d

at 658; *see also Nelson v HSBC Bank USA*, 87 AD3d 995, 999 [2d Dept 2011] [explaining that the rationale of the codified sexual harassment standard from *Williams* “maximizes deterrence, ensures that discrimination plays no role in employment, and recognizes that discrimination violations are, per se, serious injuries”)].

Moreover, in a 2018 amendment to the NYCHRL, the City Council expressly found and declared “that gender-based harassment threatens the terms, conditions, and privileges of employment” (Administrative Code § 8-101).³ Thus, under section 8-107 (1) (a) of the NYCHRL, a person may sue an employee for allegedly creating or participating in a hostile work environment based on the complainant’s protected classification, including harassment based on gender. For example, a female firefighter or police officer can sue male coworkers who, solely because of her gender, call her by sexually derogatory names, make unwanted sexual overtures, commit physical assaults, damage her equipment, or post sexual images such as pornographic images to demean the complainant and other women firefighters (*Springs*, 2019 WL 1429567, *16, 2019 US Dist LEXIS 55094, *47-50). A real estate agent can sue her coworkers for unwanted sexual touches and crude comments (*Murphy*, 251 AD2d 469 [2d Dept 1998]). A Black dancer at a club can sue her harasser for demanding that she have sex with him and calling her and other darker-skinned entertainers racial slurs (*Quintero v Angels of the World, Inc.*, 2021 WL 4464123, *7, 2021 US Dist LEXIS 172445, *18-20 [ED NY, Sept. 10, 2021, No. 19-CV-6126 (DG)]). A gym employee can sue his harasser for groping him and regularly making unwanted comments on the genitalia of staff and patrons (*Setty v Fitness*, 2018 WL 8415414, *9, 2018 US Dist LEXIS 213878, *24-27 [ED NY, Dec. 18, 2018, No. 17-CV-06504 (NGG) (SMG)]). And, a housekeeper can sue her harasser for questioning her about her sexual history, describing his genitalia in detail, locking her in a cleaning assignment, and sexually assaulting her (*Antoine v Brooklyn Maids 26, Inc.*, 489 F Supp 3d 68, 89 [ED NY

3. The majority attempts to recharacterize the statutory text, attempting to trivialize the controlling NYCHRL language as simply my “suggestion” that a coworker may affect “conditions of employment” in gender-based harassment cases (*see majority op at 391 n 5*). Apparently, the majority missed part of the NYCHRL which states, “gender-based harassment threatens the terms, conditions, and privileges of employment” (Administrative Code § 8-101).

2020)). Plaintiff has met her pleading burden; she alleges that defendants Thometz and Meltzer sent her harassing emails and caused her to receive unsolicited mail at her NYU physical mailbox, including pornographic materials—actions she claims evince discrimination based on her gender and sexual orientation.

C.

The majority rejects our rules of construction, the NYCHRL’s plain text, and this supporting case law to conclude that coworkers cannot be individually liable because they cannot affect the “terms, conditions, and privileges of employment.” Therefore, the majority holds, the alleged harassment by Thometz and Meltzer, including gender-based harassment, did not affect the conditions of plaintiff’s employment (*see* majority op at 389). The majority is wrong.

As I have explained, a hostile work environment created or maintained by a coworker necessarily, as a matter of black letter discrimination law, affects the claimant’s “conditions” of employment. To be clear, not all coworker behavior constitutes discrimination “in terms, conditions or privileges of employment” (Administrative Code § 8-107 [a] [3]). But, in the case of a hostile work environment based on a protected classification and gender-based harassment, the harasser’s conduct results in treatment different from other coworkers and renders the harasser liable under the NYCHRL, even if such conduct is not actionable under other federal and state laws.

The majority also goes against the tide of the case law, arguing some cases did not involve a claim of individual liability (*see* majority op 390-391). The majority’s observation is just that, an observation, and one that is irrelevant because those courts’ statements of the applicable law reconfirms that direct individual liability claims are cognizable under the NYCHRL for two reasons. First, NYCHRL claims must be “analyze[d] . . . separately and independently from any federal and state law claims” and also must be interpreted “broadly in favor of discrimination plaintiffs, to the extent that such a construction is reasonably possible” (*Rasmy v Marriott Int’l, Inc.*, 2024 WL 456423, *2, 2024 US Dist LEXIS 19416, *5 [SD NY, Feb. 5, 2024, No. 16-cv-4865 (JSR)], citing *Mihalik v Credit Agricole Cheuvreux N. Am., Inc.*, 715 F3d 102, 112 [2d Cir 2013]; *see also Williams*, 61 AD3d at 67-68; *Albunio*, 16 NY3d at 477-478). Second, the NYCHRL prohibitions apply to “employees”

and thus the NYCHRL provides “‘a broader basis for direct individual liability than’ state or federal law” which does not recognize individual liability (*Rasmy v Marriott Int’l, Inc.*, 2024 WL 456423, *2, 2024 US Dist LEXIS, *6, citing *Malena*, 886 F Supp 2d 349, 366).⁴ Unlike these other courts, the majority fails to apply the mandatory broader reading to the NYCHRL.

More to the point, the majority has no explanation why “employee” does not mean employee, but rather “supervisory employee” and has no explanation for why its construction “is reasonably possible” when no such limitations on liability are anywhere found or suggested by the NYCHRL. If the Council intended “employee” to mean only an employee with a supervisory or managerial role, it could have said so—just as it included this narrowing language in other parts of the statute (*compare* Administrative Code § 8-107 [13] [b] [1] [describing employer liability when an “employee or agent exercised managerial or supervisory responsibility”], *with* § 8-107 [13] [b] [2] [describing employer liability in the alternative when the

4. There are other examples of cases that neither graft a requirement of supervisory authority onto NYCHRL individual liability as the majority does, nor do they analyze whether defendants are supervisors when evaluating liability under the NYCHRL (*see e.g. Milord-Francois v New York State Off. of Medicaid Inspector Gen.*, 635 F Supp 3d 308, 325 [SD NY 2022] [“Even if the State or the state agency which is the employer is not held liable, the disjunctive phrasing of the NYCHRL makes clear that state employees owe duties under the law and can be held personally liable for violation of those duties”]; *Banks v Correctional Servs. Corp.*, 475 F Supp 2d 189, 199 [ED NY 2007] [contrasting individual liability under NYSHRL, which is limited to employers and supervisors, to individual liability under NYCHRL, which applies to all employees]; *Walters v Bronx-Lebanon Hosp. Ctr.*, 2004 WL 770962, *12, 2004 US Dist LEXIS 6183, *32-33 [SD NY, Apr. 9, 2004, No. 01 Civ. 4196 (DFE)] [contrasting individual liability under NYSHRL as limited to those with decision-making power, with individual liability under NYCHRL, which “provides for the individual liability of employees regardless of . . . decision-making power”]; *Erasmus v Deutsche Bank Americas Holding Corp.*, 2015 WL 7736554, *8, 2015 US Dist LEXIS 160351, *21-24 [SD NY, Nov. 30, 2015, No. 15 Civ. 1398 (PAE)] [same]; *Friederick v Passfeed, Inc.*, 2022 WL 992798, *9, 2022 US Dist LEXIS 60743, *23-25 [SD NY, Mar. 31, 2022, No. 21-CV-2066 (RA)] [same]; *Bresilien v City of New York*, 2020 WL 1275470, *11, 2020 US Dist LEXIS 46172, *28-31 [ED NY, Mar. 17, 2020, No. 16-cv-4857 (AMD) (RER)] [same]; *Gurley v David H. Berg & Assoc.*, 2022 WL 309442, *8, 2022 US Dist LEXIS 20546, *22-25 [SD NY, Feb. 2, 2022, No. 20 Civ. 9998 (ER)] [same]; *Thomas v New York City Health & Hosps. Corp.*, 2004 WL 1962074, *9, 2004 US Dist LEXIS 17694, *31 [SD NY, Sept. 2, 2004, No. 02 Civ. 5159 (RJH)] [“While the NYCHRL clearly provides for liability not only of an employer, but also for ‘an employee or agent thereof,’ the NY(S)HRL’s reference only to ‘employer’ has been read to provide for a more limited scope of liability.”]).

“employer knew of the employee’s or agent’s discriminatory conduct,” which includes no supervisory requirement]). Implicitly reading a narrowing modifier into the statute’s plain language of “employee” runs counter to canons of statutory interpretation (see e.g. *Matter of DCH Auto v Town of Mamaroneck*, 38 NY3d 278, 293 [2022] [when “the statutory language is broader” unstated limitations on broad language cannot be read into the text]; *Matter of Diegelman v City of Buffalo*, 28 NY3d 231, 237 [2016] [(W)e cannot by implication supply in a statute a provision which it is reasonable to suppose the Legislature intended intentionally to omit because the failure of the Legislature to include a matter within the scope of an act may be construed as an indication that its exclusion was intended. In other words, we may not create a limitation that the Legislature did not enact” (citations, internal quotation marks and brackets omitted)]; *Commonwealth of the N. Mariana Is. v Canadian Imperial Bank of Commerce*, 21 NY3d 55, 62 [2013] [(a) court cannot by implication supply in a statute a provision which it is reasonable to suppose the Legislature intended intentionally to omit because the failure of the Legislature to include a matter within the scope of an act may be construed as an indication that its exclusion was intended” (internal quotation marks and citation omitted)]).

Perhaps most inexplicable is the majority’s conclusion that plaintiff’s claims that she was subjected to gender-based harassment by nonsupervisory coworkers is not actionable. The NYCHRL states explicitly that gender-based harassment in the workplace affects conditions of employment of the target victim (Administrative Code § 8-101). While an employer’s *liability* hinges on the employer’s knowledge and response to this harassment, employer liability is irrelevant to whether gender-based harassment affects conditions of employment. The City Council has concluded that it always does. We are not at liberty to say otherwise.

III.

The NYCHRL’s plain text and liberal construction mandate are enough for us to find in favor of plaintiff and restore her employee hostile workplace claims. However, there is more. As discussed below, several amendments to the NYCHRL confirm that this is a cognizable claim.

Prior to 1991, harassers could only be sued under an “aiders and abettors” liability theory or when they had an ownership

interest or some authority to do more than follow orders (Administrative Code § 8-107 [6]; Craig Gurian, *A Return to Eyes on the Prize: Litigating under the Restored New York City Human Rights Law*, 33 Fordham Urb LJ 255, 273-274 [2006]). “[I]ndividuals were liable for their own discriminatory acts in the housing and public accommodations contexts, but were not generally liable in the employment context” (*id.* at 272). Instead, the NYCHRL only provided for individual liability against employers, which as interpreted by the City Commission on Human Rights (CCHR)—the agency charged with implementing the NYCHRL—included persons responsible for “disciplining, hiring, firing, and scheduling shifts for employees” (*Matter of the Complaints of Abdalkwy v Douglas Elliman-Gibbons & Ives, Inc.*, 1991 WL 1288827, *17 [NY City Commn Human Rights, June 28, 1991, Nos. EM00106-4/19/88, EM00104-4/19/88, EM00105-4/19/88] [decision & order]). In other words, at the time, “the Code sp[oke] only of employers,” absent those responsibilities, “a co-worker [could not] apparently be charged with discrimination against a co-worker under the Code. Only amendment of the Code by legislation c[ould] remedy this problem” (*id.* at *18 n 4).

That same year, the City Council broadly overhauled the NYCHRL to, among other things, add a private right of action and extend liability for discriminatory conduct by an “employer or employee or agent” (Local Law No. 39 [1991] of City of NY § 1). As noted above (*see supra* at 403-404), the inclusion of “or an employee” made the NYCHRL distinct from its state and federal antidiscrimination counterparts, which did not recognize individual coworker liability (*Livingston v City of New York*, 563 F Supp 3d 201, 256 [SD NY 2021]).

This intended expansion of liability under the NYCHRL was well understood, as evidenced by a 1989 memorandum from the Office of the Mayor to the City Council supporting the 1991 amendments which declared, “[i]f an employee is found to have engaged in discrimination, [they] would be individually liable whether or not the employer could be found liable under these provisions” (Mayor of City of NY, Legal/Statutory Mem on Local Law 39 at 11 [Sept. 26, 1989] [emphasis added]). At the 1991 signing, the Mayor also declared both the need and the intended application of the NYCHRL prescriptions to individual employees:

“[U]nder current local law, an employee who has

been the victim of sexual or racial harassment at the hands of a co-worker can sue her employer but cannot sue the co-worker himself. Without the possibility of legal action, co-worker harassment has continued to poison many of our workplaces. The new law takes the fundamental step of making all people legally responsible for their own discriminatory conduct” (Remarks by Mayor David N. Dinkins at Public Hearing on Local Laws at 3-4 [June 18, 1991], available at <http://www.antibiaslaw.com/sites/default/files/all/LL39LegHist-Mayor.pdf> [accessed Mar. 28, 2024]).

The Local Law Memoranda, Report of the Committee on General Welfare on Local Law 39, on June 18, 1991, graphically represented this change in the law as follows:

<u>Liability of employees and agents for their own biased acts.</u>	
<u>CURRENT LAW</u>	<u>NEW LAW</u>
No explicit coverage in employment context, although New York City Commission on Human Rights case law provides for liability where employee had power to do more than carry out decisions made by others.	Employees and agents are responsible for their own discriminatory acts.

(Rep of the Comm on Gen Welfare, Human Rights Law/“Complete Overhaul,” Local Law 39 at 187 [June 18, 1991], Local Laws of the City of New York for the Year 1991).

After the amendment, the Appellate Division, Second Department correctly interpreted the NYCHRL as providing for an employee’s liability based on the employee’s own discriminatory conduct, where the plaintiff was subjected to severe sexual harassment as a real estate broker, including “unwanted physical advances and crude and insulting remarks” (*Murphy*, 251 AD2d at 470). However, in *Priore*, the First Department misconstrued the amendment and found that coworker harassers were not liable for their conduct (307 AD2d 67, 74-75). The case involved a clubhouse manager for the New York Yankees who sued the club, along with several of the team’s managers and players, alleging sexual orientation harassment from players, as well as retaliatory discharge by the team. The Appellate Division dismissed the claims against the employer and individual members of management on summary judgment, finding the employer was not formerly on notice of the harassment

from the players, and, in effect, there was no evidence of discrimination by the employer or management—only the players (*id.* at 72). The Appellate Division also dismissed the claims against the individual nonsupervisory players for physical and verbal harassment, grafting an artificial limitation onto section 8-107 (1) (a) “employee”-based liability. The entirety of the Appellate Division’s reasoning on this issue is as follows:

“Section 8-107 (1) (a) extends liability to ‘an employer **or an employee or agent thereof** . . . in substitution for the state statute’s ‘employer **or licensing agency**’ The local ordinance thus includes fellow employees under the tent of liability, but only where they act with or on behalf of the employer in hiring, firing, paying, or in administering the ‘terms, conditions or privileges of employment’—in other words, in some agency or supervisory capacity. There is no indication in the local ordinance, explicit or implicit, that it was intended to afford a separate right of action against any and all fellow employees based on their independent and unsanctioned contribution to a hostile environment. The inclusion of the word ‘employee’ in the local ordinance does not automatically open the door of liability to an entirely new category of defendants; the term must be read in context” (*id.* at 74 [additional emphases added]).

That reasoning fails on its own terms. First, the language of the amendment expanding the law’s coverage to include employees and agents does not support the Court’s conception of its impact on liability. Second, the inference drawn by the Court—that “employee or agent” is equivalent to the “licensing agency” reference contained in the *NYSHRL* and thus requires an employee to act in a supervisory role for liability under the more expansive *NYCHRL*—contradicts fundamental rules of construction and the explicit directive of section 8-130.

As a drafter of both the 1991 and 2005 amendments, Craig Gurian, explained:

“How, then, did the court in Priore try to justify its conclusion that there was no individual liability? The court literally had to invent a legislative history. It asserted that, when the City extended liability to ‘an employer or an employee or agent

thereof,' it did so merely 'in substitution for the State statute's "employer or licensing agency".' In fact, however, section 8-107(1)(a) of the City Human Rights Law did not deal with licensing agencies before the 1991 Amendments, and it did not deal with licensing agencies after the 1991 Amendments. There had been a separate provision of the City Human Rights Law that had dealt both with age discrimination by employers and with licensing agencies. The proscription against age discrimination by employers was moved into section 8-107(1)(a); the proscription against age discrimination by licensing agencies was moved into an entirely different section, to join other proscriptions on certain conduct by licensing agencies. Accordingly, the revision to section 8-107(1)(a) did not represent a substitution of language from the State Human Rights Law, it represented an addition of language not found in the State Human Rights Law.

"To go along with its tale of how the language of the law changed, the Priore court provided a theory of Council intent. It speculated that the Council had only wanted to permit individual liability where the individual had been acting with or on behalf of the employer in some agency or supervisory capacity. The problem is, if that were the Council's purpose, it need not have acted at all: section 8-107(6) of the City Human Rights Law already was broader, providing that it 'shall be an unlawful discriminatory act for any person to aid, abet, incite, compel or coerce the doing of any of the acts forbidden under this chapter, or to attempt to do so' " (Craig Gurian, *A Return to Eyes on the Prize: Litigating under the Restored New York City Human Rights Law*, 33 Fordham Urb LJ 255, 273-274 [2006]).

The majority cites to *Priore v New York Yankees*, as well as *Kwong v City of New York* and *Eustache v Board of Educ.*, which merely track back to *Priore* and lack any independent analysis of "employee" liability (*Priore v New York Yankees*, 307 AD2d 67 [1st Dept 2003]; *Kwong v City of New York*, 204 AD3d 442, 446 [1st Dept 2022] [finding supervisory capacity necessary for individual liability by solely citing to *Priore* without

further discussion]; *Eustache v Board of Educ. of the City Sch. Dist. of the City of N.Y.*, 221 AD3d 452, 453 [1st Dept 2023] [citing solely to *Kwong* for the same proposition]). Tellingly, the limited number of post-2016 decisions that decline to find individual coworker liability under NYCHRL rely on string cites that exclusively trace back to *Priore* for the proposition that an implied supervisory requirement can be read into the plain text on individual liability for employees. Similarly, none of these decisions address, let alone apply, the liberal construction requirements of the NYCHRL. From this line of cases, a supervisory limitation on individual liability can only be gleaned from the judicial policymaking ground adopted in the *Priore* decision, as the limitation is unmistakably absent from both statutory and legislative history. None of these cases evaluate whether *Priore* is still good law, which it plainly is not.

Priore's analytical shortcomings are reason enough to reject both its premise and conclusions, but significantly *Priore* has been overruled explicitly by the City Council, rendering it useless in the analysis here.

In the Local Civil Rights Restoration Act of 2005, the City Council again amended the NYCHRL, and expanded the law's liberal construction requirement. As it had in the past, the Council acted in response to judicial misapplications of the NYCHRL, and legislatively overruled those decisions. As relevant here, during a September 15, 2005 hearing on the proposed amendment, Council Member Palma identified *Priore* as one of the cases that should no longer be followed, naming Craig Gurian's testimony as a guide for legislative intent for the 2005 amendments:

"There are many illustrations of cases, like Levin on marital status, *Priore*[,] McGrath and Forrest that have either failed to interpret the City Human Rights Law to fulfill its uniquely broad purposes, ignore the text of specific provisions of law, or both. With [the Restoration Act], these cases and others like them will no longer hinder the vindication of our civil rights. The work of the Anti-Discrimination Center [Craig Gurian] was particularly important to the development and passage of this bill, and its testimony is an excellent guide to the intent and consequences of legislation we pass today" (Annabel Palma, Statement at the Meeting of the NY City

Council, hearing tr at 41-42 [Sept. 15, 2005]
[emphasis added]).

Gail Brewer, the sponsor of the 2005 amendments, also started her testimony by thanking Gurian for his assistance, and Chairperson de Blasio proposed that the first witness panel begin with Gurian, because of his “very leading role in this legislation” (Meeting of the New York City Council, hearing tr at 6-7, 9 [Sept. 22, 2004]).

In Gurian’s testimony, which the hearing transcript indicates was meant to be indicative of legislative intent, Gurian highlighted the problem of *Priore* when testifying in favor of the 2005 amendment to the NYCHRL:

“[Employee liability] wasn’t added because it was thought that the bill was too short and that the Human Rights Law needed to have a few more fluffy words for an employer or an employee or agent, thereof, to discriminate. There could not have been a clearer signal that individuals were now liable And this wasn’t controversial, it was stronger than State law. It was stronger than Title 7. But it wasn’t controversial until last year when a State Appellate Court, a panel of the First Department [in *Priore*], actually said that the City Human Rights Law couldn’t really mean what it said. Because it was broadening liability too much.

“Instead of engaging in what the court was suppose [sic] to do which is liberally interpreting the law to accomplish its purposes, the court literally invented legislative history to justify a narrow result” (Craig Gurian, Statement at the Meeting of the New York City Council, hearing tr at 16-17 [Sept. 22, 2004]).^{5, 6}

5. At a later hearing, Gurian again referenced *Priore* on the issue of individual liability:

“A court has recently ignored the Council’s language in making individual employees liable for their own discriminatory conduct. . . . So, it’s just not going to work with the individual fixes, the broad fix is necessary, and, really, it only brings us back to where we were supposed to be in the first place, having the law liberally construed” (Craig Gurian, Statement at the Meeting of the New York City Council, hearing tr at 67 [Apr. 14, 2005]).

6. The majority rejects Gurian’s interpretation of the 2005 amendment and *Priore*, citing to post-2005 First Department cases that cite to *Priore* (see

(n. cont’d)

At this same hearing, a gay brewery worker testified about the importance of individual liability based on his experiences with discrimination, including an incident during which a bartender punched him and called him a derogatory epithet, concluding, “people [need to be liable] for their own actions . . . as a deterrent . . . If they know, oh, they can only sue the company, nothing is going to change” (Carl Ferrentino, Statement at the Meeting of the New York City Council, hearing tr at 108 [Apr. 14, 2005]). Thus, it was clear to the Council that individual employee discriminatory conduct is harmful to individuals, but also poisons the workplace and undermines the Council’s policy of eliminating discrimination and bias in our communities. And the Council was also fully aware that a victim of employee harassment had no recourse against the employee under existing federal or state law unless the harasser acted pursuant to supervisory authority (*id.*; *Murphy*, 251 AD2d at 471 [only individual liability for supervisors under NYSHRL]; *Tomka v Seiler Corp.*, 66 F3d 1295, 1314 [2d Cir 1995] [no individual liability under title VII]).

In 2009, the Appellate Division, First Department, acknowledged that the 2005 amendments “legislatively overruled” cases that misconstrued the law, citing the section of the 2005 Council debates that mentioned *Priore* by name (*Williams*, 61 AD3d at 67-68). The Court explained that

“the Restoration Act notified courts that (a) they had to be aware that some provisions of the City HRL were textually distinct from its state and federal counterparts, (b) *all* provisions of the City HRL required independent construction to accomplish the law’s uniquely broad purposes, and (c) *cases that had failed to respect these differences*

majority op at 390 n 4). However, those cases do not provide any analysis of the statutory text or an explanation for their reliance on *Priore* in light of the amendment to the NYCHRL. Although the majority suggests that Gurian has no special insight into the NYCHRL, the First Department has cited him approvingly in the past (*Williams*, 61 AD3d at 68, quoting *Ochei v Coler/Goldwater Mem. Hosp.*, 450 F Supp 2d 275, 283 n 1 [SD NY 2006] [noting Gurian’s article was described by SD NY as “an extensive analysis of the purposes of the Local Civil Rights Restoration Act, written by one of the Act’s principal authors”]). And more importantly for our purposes here, there is no evidence in the legislative history that Gurian’s interpretation of the NYCHRL and the Council’s intent was erroneous or a minority view. To the contrary, each hearing on the 2005 amendments favorably referenced Gurian and his interpretation of *Priore*.

were being legislatively overruled” (*id.* at 67-68 [additional emphasis added]).

The New York City Commission on Human Rights has noted that, in its discussion leading up to the 2005 amendments, “the City Council cited several specific judicial decisions as examples of overly narrow judicial construction of the City HRL,” footnoting, “*Priore v. N.Y. Yankees*, 307 A.D.2d 67 (1st Dep’t 2003) (holding individual employees not liable for their discriminatory conduct)” (brief for amicus curiae City of New York at 9, 10 n 3, in *Chauca v Abraham*, 30 NY3d 325 [2017], available at <https://www.nyc.gov/assets/cchr/downloads/pdf/NYSCA-Punitive-Damages-VERONIKA-CHAUCA-v-JAMIL-ABRAHAM-Individually-PARK-MANAGEMENT-SYSTEMS-LLC-aka-Park-Health-Center-and-ANN-MARIE-GARRIQUES-2017.pdf>). Indeed, during hearings, “[t]he [City Council] Committee [on General Welfare] opined that several principles should guide courts in interpreting the City HRL: discrimination should play no role in employment decisions; traditional methods and principles of law enforcement should be applied in the civil rights context; and victims should receive full compensation for injuries” (*id.* at 9-10). As explained in a 2018 Commission on Human Rights Decision and Order comparing the Second Department’s *Murphy* decision and *Priore*:

“The Second Department interprets the NYCHRL to cover discrimination claims against individual co-employees, regardless of ownership interest or the power to make personnel decisions. *Murphy v. ERA United Realty*, 251 A.D.2d 469, 471 (2d Dep’t 1998). While the First Department held to the contrary in 2003, before passage of the Restoration Act, see *Priore v. N.Y. Yankees*, 307 A.D.2d 67, 74 (1st Dep’t 2003), it has subsequently made clear that such restrictive interpretations of the NYCHRL are untenable” (*Matter of Commission on Human Rights ex rel. Dong C. Joo v UBM Bldg. Maintenance Inc.*, 2018 WL 6978286, *5 [NY City Commn on Human Rights, Dec. 20, 2018, OATH index No. 384/16]).

Simply stated, *Priore* is no longer good law.⁷ And the majority’s reliance on *Priore* and case law from the First Department

7. While none of the majority’s cited cases analyze the import of these amendments, whenever courts specifically analyze the impact of the 2005 amendments on individual liability, they find that the as-amended NYCHRL

(n. cont’d)

which the City Council expressly disavowed years ago as wrongly decided (*see* majority op 389-390) is inexplicable.

IV.

The majority once again adopts a narrow interpretation of the NYCHRL to bar individual coworker liability despite the City Council's several admonishments of the judicial branch's counter-textual and ahistoric reading of its legislation. Moreover, the majority disregards the Council's repeated commands that this Court interpret the NYCHRL broadly to achieve its remedial purposes. The Council enacted a law to ensure accountability for all harassers in the workplace—regardless of their status, and regardless of whether their employer is on notice. The majority fails to give meaning to that intent, leaving it again to the Council to correct this Court's mistake.

Order affirmed, with costs.

Chief Judge WILSON and Judges SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur. Judge RIVERA dissents in part in an opinion.

supports individual liability against employees (*see e.g. Caravantes v 53rd St. Partners, LLC*, 2012 WL 3631276, *21, 2012 US Dist LEXIS, *65-69 [SD NY, Aug. 23, 2012, No. 09 Cv. 7821 (RPP)]; *Sanderson v Leg Apparel, LLC*, 2023 WL 8039499, *2, 2023 US Dist LEXIS, *3-5 [SD NY, Nov. 20, 2023, No. 1:19-cv-8423-GHW]).

[246 NE3d 910, 221 NYS3d 467]

K.E. LIGGETT, Appellant, v LEW REALTY LLC, Respondent.

Argued May 15, 2024; decided June 20, 2024

SUMMARY

APPEAL from a judgment of the Supreme Court, New York County (Paul A. Goetz, J.), entered August 15, 2023. The judgment dismissed defendant's counterclaim for attorneys' fees. The appeal brings up for review an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 8, 2022. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of that Supreme Court, which had denied defendant's motion to dismiss the complaint; (2) granted the motion; and (3) dismissed the complaint.

Liggett v Lew Realty LLC, 211 AD3d 473, reversed.

HEADNOTE

Landlord and Tenant — Rent Regulation — Illegal Deregulation — Stipulation Waiving Statutory Protections

The Appellate Division erred in dismissing plaintiff tenant's action seeking a declaration that her apartment was subject to rent stabilization and had been illegally deregulated, where the stipulation between the prior tenant and defendant landlord requiring the tenant to waive his right to file a fair market rent appeal (FMRA) was void and did not provide a path to deregulation of the apartment. New York's Rent Stabilization Code does not allow for waiver of its statutory protections. It expressly provides that "[a]n agreement by the tenant to waive the benefit of any provision of the [Rent Stabilization Law] or [the] Code is void" (9 NYCRR 2520.13). By securing the prior tenant's explicit agreement "not to challenge the rent," the stipulation waived his right to file a FMRA. That bargain circumvented the statutory process, and consequently the stipulation was void in its entirety as a matter of law. Because the stipulation was void, defendant's registration statement based on the stipulation was as well, and therefore neither party was entitled to rely on it and it could not serve as the basis for deregulation. Nor did the statute of limitations require dismissal of the action, as such a bar does not make an agreement that was void at its inception valid by the mere passage of time.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Landlord and Tenant §§ 879, 880.

DOLAN, RASCH'S NEW YORK LANDLORD AND TENANT,
INCLUDING SUMMARY PROCEEDINGS (5th ed) § 2:40.
9 NYCRR 2520.13.

NY JUR 2d Landlord and Tenant §§ 452, 463, 536.

ANNOTATION REFERENCE

See ALR Index under Landlord and Tenant; Rent.

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POINTS OF COUNSEL

Newman Ferrara LLP, New York City (Roger A. Sachar Jr. and Lucas A. Ferrara of counsel), for appellant. I. The illegal decontrol of appellant's apartment led to an improper deregulation. II. It does not matter if Edward McKinney was a tenant. (*Kent v Bedford Apts. Co.*, 237 AD2d 140; *Jazilek v Abart Holdings LLC*, 10 NY3d 943; *Thornton v Baron*, 5 NY3d 175.) III. The statute of limitations is no bar to appellant's claim. (*Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332; *Matter of Kostic v New York State Div. of Hous. & Community Renewal*, 188 AD3d 569; *Gersten v 56 7th Ave. LLC*, 88 AD3d 189, 18 NY3d 954.)

Dorf Nelson & Zauderer LLP, New York City (Mark C. Zauderer, Ira B. Matetsky and Jason T. Cohen of counsel), and *Borah, Goldstein, Altschuler, Nahins & Goidel, P.C.*, New York City (Paul N. Gruber of counsel), for respondent. I. The 2000 stipulation and lease were a proper basis for deregulation of the apartment in 2001. (*Goldfeder v Cenpark Realty LLC*, 187 AD3d 572; *Matter of Park v New York State Div. of Hous. & Community Renewal*, 150 AD3d 105; *3505 BWAY Owner LLC v McNeely*, 72 Misc 3d 1; *Matter of Missionary Sisters of Sacred Heart, Ill. v New York State Div. of Hous. & Community Renewal*, 283 AD2d 284; *Matter of Melendez v New York State Div. of Hous. & Community Renewal*, 304 AD2d 580; *Les Filles Quartre LLC v McNeur*, 9 Misc 3d 179; *Matter of Theroux v Reilly*, 1 NY3d 232; *Matter of Matinzi v Joy*, 60 NY2d 835; *Merwest Realty Corp. v Prager*, 264 AD2d 313; *Kent v Bedford Apts. Co.*, 237 AD2d 140.) II. This action is untimely and procedurally barred. (*Matter of Muller v New York State Div. of Hous. & Community Renewal*, 263 AD2d 296; *Matter of Gilman v New York State Div. of Hous. & Community Renewal*, 99 NY2d 144; *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332; *Matter of*

Kostic v New York State Div. of Hous. & Community Renewal, 188 AD3d 569; *Gersten v 56 7th Ave. LLC*, 88 AD3d 189; *Halllock v State of New York*, 64 NY2d 224; *Mitchell v New York Hosp.*, 61 NY2d 208; *Matter of Frutiger*, 29 NY2d 143; *Matter of Ziegler*, 161 Misc 2d 203, 213 AD2d 280; *Chelsea 19 Assoc. v James*, 67 AD3d 601.)

Rent Stabilization Association of NYC, Inc., New York City (Olga Someras of counsel), for Rent Stabilization Association of NYC, Inc., amicus curiae. I. Appellant's claims, absent an allegation of fraud, are limited to a four-year lookback period, and were therefore properly dismissed as a matter of law. (*Conason v Megan Holding, LLC*, 25 NY3d 1; *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332; *Matter of Grimm v State of N.Y. Div. of Hous. & Community Renewal Off. of Rent Admin.*, 15 NY3d 358; *Matter of Kostic v New York State Div. of Hous. & Community Renewal*, 188 AD3d 569; *Matter of Park v New York State Div. of Hous. & Community Renewal*, 150 AD3d 105; *Riverside Syndicate, Inc. v Munroe*, 10 NY3d 18; *Drucker v Mauro*, 30 AD3d 37; *Jazilek v Abart Holdings, LLC*, 72 AD3d 529; *Matter of IG Second Generation Partners L.P. v New York State Div. of Hous. & Community Renewal, Off. of Rent Admin.*, 10 NY3d 474; *Thornton v Baron*, 5 NY3d 175.) II. Appellant's claim, couched as a declaratory judgment action, is in essence a fair market rent appeal of an initial legal regulated rent established and registered in 2000, and is therefore time-barred as a matter of law. (*Aras v B-U Realty Corp.*, 221 AD3d 5; *3505 BWAY Owner LLC v McNeely*, 72 Misc 3d 1; *ACE Sec. Corp., Home Equity Loan Trust, Series 2006-SL2 v DB Structured Prods., Inc.*, 25 NY3d 581; *John J. Kassner & Co. v City of New York*, 46 NY2d 544.)

OPINION OF THE COURT

HALLIGAN, J.

It is well settled that an agreement waiving a benefit of the rent stabilization laws is void as against public policy. This rule is not altered by the tenant's status. Accordingly, the stipulation at issue here, which required the tenant to waive his right to file a fair market rent appeal (FMRA), is void and did not provide a path to deregulation of the subject apartment.

I.

Defendant Lew Realty owns and operates a Manhattan apartment building where plaintiff K.E. Liggett has resided

since October 2020 pursuant to a market lease. Liggett commenced this action when Lew Realty attempted to raise her rent in 2021, seeking a declaration that the apartment is rent-stabilized and she is entitled to a rent-stabilized lease, overcharges, and attorneys' fees.

Liggett's claim is premised on events that occurred decades earlier. In 1984, an initial rent registration for the apartment was filed with the Division of Housing and Community Renewal (DHCR), identifying Edward Brown as the rent-controlled tenant of record. When Brown died in 1998—the sole recorded tenant of the apartment—he paid \$141.23 in rent per month. Upon Brown's death, Edward McKinney claimed to be Brown's successor to the rent-controlled apartment under *Braschi v Stahl Assoc. Co.* (74 NY2d 201 [1989]). Lew Realty disputed McKinney's status and commenced a holdover proceeding to evict him.

McKinney and Lew Realty settled that proceeding in 2000 through a so-ordered stipulation (stipulation), which provided that McKinney would take tenancy as the first rent-stabilized tenant of the apartment rather than maintaining the apartment as rent-controlled. Rent control and rent stabilization are both statutory mechanisms intended to “put[] a brake upon run-away rent increases” in New York City, though they operate differently (8200 Realty Corp. v Lindsay, 27 NY2d 124, 136 [1970]; see also *Braschi*, 74 NY2d at 208). Rent control, which applies only to housing built before 1947, subjects rental units to “stringent controls,” including strict limits on rent amounts and broad eviction protections (*Sullivan v Brevard Assoc.*, 66 NY2d 489, 492-494 [1985]; 8200 Realty Corp., 27 NY2d at 129; *Braschi*, 74 NY2d at 209). Rent stabilization, by comparison, gives landlords more leeway to “increase rents within reasonable limits” (8200 Realty Corp., 27 NY2d at 136-137). When a rent-controlled unit becomes vacant, it is “automatically . . . subject to the less rigorous provisions of rent stabilization” (*Braschi*, 74 NY2d at 209, citing 9 NYCRR 2520.11 [a]; 2521.1 [a] [1]; see also *Sullivan*, 66 NY2d at 494 [rent control governs an “ever-decreasing number” of units]).

The stipulation between McKinney and the landlord provided that McKinney “agrees to accept and the landlord agrees to offer a rent stabilized lease” in McKinney's name at a rate of “\$650 per month.” It also stated that “\$1,650 per month is a fair rent for [the] apartment being removed from Rent Control,” a proviso apparently intended to set the initial legal regulated

rent under the rent stabilization laws (RSL). The stipulation further provided that “[f]or as long as Ed McKinney is the tenant, his rent shall be \$650 per month plus allowable rental increases.” The effect of that provision, which neither party disputes, was to ensure that McKinney would pay a preferential rate of \$650, with subsequent increases tied to this number for the duration of his tenancy. McKinney also agreed “not to challenge the rent,” thereby waiving his right to challenge the amount of the initial rent through a fair market rent appeal proceeding. Lew Realty filed the lease with DHCR, registered \$1,650 as the “legal regulated rent” and \$650 as the “actual rent paid,” and mailed McKinney notice of his right to file a FMRA as required by statute, notwithstanding that McKinney had already agreed not to avail himself of the process (*see* 9 NYCRR 2522.3 [a]).¹

After McKinney vacated the apartment in 2001, Lew Realty renovated it. Lew Realty then took the \$1,650 that McKinney had agreed to in the stipulation (but did not pay) as the initial legal regulated rent and applied increases tied to the vacancy and renovation, as authorized under the RSL. It calculated that with these increases, the legal rent would exceed \$2,000, and determined that the apartment was thus subject to luxury decontrol. Lew Realty reported the apartment to DHCR as deregulated, and the next tenant took occupancy of the apartment at an open market rate of \$1,650 per month. The apartment has been on the open market since.

In November 2021, Liggett brought a lawsuit alleging that the stipulation is void as against public policy, and that because the stipulation led in short order to the deregulation of the apartment, the deregulation was invalid and the apartment remains rent-stabilized. Lew Realty moved to dismiss, contending that the stipulation is enforceable and the deregulation proper. Supreme Court denied the motion, holding that the stipulation is unenforceable to the extent that it waives the protections of the rent laws.

The Appellate Division reversed and dismissed the complaint (211 AD3d 473 [1st Dept 2022]). Relying on *Kent v Bedford Apts. Co.* (237 AD2d 140 [1st Dept 1997]), the Court concluded that although an agreement by a tenant to waive the benefit of

1. Though Lew Realty filed the initial rent as required, there was no litigated proceeding before DHCR, and Lew Realty does not invoke collateral estoppel here (*cf.* *Gersten v 56 7th Ave. LLC*, 88 AD3d 189, 201 [1st Dept 2011]).

any provision of the rent control law is void, this protection did not apply to McKinney because he was not an established tenant when he signed the stipulation. The Appellate Division also concluded that because Liggett's claim implicates how rents are set, it is akin to an FMRA and therefore barred by the statute of limitations (*see* 9 NYCRR 2522.3 [c]). Two Justices dissented, concluding that the stipulation is void because it undermines the statutory process for setting initial regulated rents by ensuring McKinney would have no incentive to challenge the higher legal rent, and by requiring him to affirmatively waive his right to file an FMRA.

We now reverse.

II.

New York's Rent Stabilization Code provides a specific process for setting the initial rent of an apartment leaving rent control and entering rent stabilization. Under 9 NYCRR 2521.1 (a) (1), the initial regulated rent "shall be the rent agreed to by the owner and the tenant and reserved in a lease or provided for in a rental agreement subject to the provisions of this Code, and subject to a tenant's right to a Fair Market Rent Appeal to adjust such rent pursuant to section 2522.3 of this Title." The right to file an FMRA is held only by the first tenant of a rent-stabilized apartment, so long as that tenant received mailed notice of this right (*see* 9 NYCRR 2522.3 [a]).

The Code does not allow for waiver of its statutory protections. It expressly provides that "[a]n agreement by the tenant to waive the benefit of any provision of the RSL or this Code is void" (9 NYCRR 2520.13; *see also* 2200.15 ["An agreement by the tenant to waive the benefit of any provision of the Rent Law or these regulations is void"]).

The right to file an FMRA is one such "benefit . . . of the RSL." As with all of the RSL's protections, this right is meant "not to protect just a tenant, but to ensure the viability of the rent regulation system which protects tenancies in general, provides predictability to landlords, and significantly enhances the social, economic and demographic stability of New York City" (390 W. End Assoc. v Harel, 298 AD2d 11, 16 [1st Dept 2002]). The availability of an FMRA provides a crucial check on the initial rent for a rent-stabilized apartment. Because that amount serves as the baseline against which subsequent rent increases are calculated, it can affect the apartment's subsequent status and in turn, the overall stock of rent-stabilized apartments in New York City.

By securing McKinney’s explicit agreement “not to challenge the rent,” the stipulation waived his right to file an FMRA. That bargain circumvented the statutory process, and consequently the stipulation is void in its entirety as a matter of law (9 NYCRR 2520.13; *see also Jazilek v Abart Holdings LLC*, 10 NY3d 943, 944 [2008]; *Riverside Syndicate, Inc. v Munroe*, 10 NY3d 18, 22 [2008]). Because the stipulation is void, Lew Realty’s registration statement based on the stipulation is as well, and therefore “neither party is entitled to rely on it” (*id.* at 24) and it cannot serve as the basis for deregulation. It remains to be determined whether the apartment was properly deregulated on some other ground.

In concluding otherwise, the Appellate Division majority relied on *Kent v Bedford Apts. Co.*, which held that the RSL’s prohibition of a waiver of rights did not apply to a plaintiff not yet established as a rent-stabilized tenant (237 AD2d at 140). *Kent*, however, is inconsistent with our subsequent case law. In *Riverside Syndicate*, we examined an agreement whereby tenants “waive[d] all right to challenge the legality of the rent” and agreed to pay more than the allowable amount, in exchange for impermissibly retaining a rent-stabilized apartment under circumstances barred by the RSL (10 NY3d at 21). We held the agreement was “on its face” a pact to “‘waive the benefit’ of rent stabilization,” and “therefore void” (*id.* at 22). Notably, the tenants in *Riverside* were not tenants of record, and their settlement, which was so-ordered by the court, resolved a holdover proceeding (*id.* at 23). We confirmed this point in *Jazilek*, overturning an Appellate Division decision that relied on *Kent* and holding that “[a]lthough tenant was not ‘of-record’ upon entering . . . the so-ordered stipulation violat[ing] the Rent Stabilization Code,” nonetheless the agreement was “void as against public policy” (10 NY3d at 944; *see also 390 W. End Assoc.*, 298 AD2d at 14 [enforcing settlements that contravene the RSL “would essentially allow any landlord to evade rent regulations by the mere expedient of a private agreement”]).

Kent is in direct tension with our holdings in *Jazilek* and *Riverside*, and we clarify that it is no longer authoritative. Contrary to *Kent*’s conclusion, McKinney’s status vis-à-vis the apartment has no bearing on whether the stipulation was void. Rather, the stipulation is void because it purports to waive a benefit of the rent laws. Accordingly, *Kent* provides no basis to dismiss Liggett’s claims here. For the same reasons, the stipu-

lation is not enforceable simply because it resolved a dispute between McKinney and Lew Realty and may have inured to McKinney's benefit (see e.g. *Riverside*, 10 NY3d at 21-22; *Drucker v Mauro*, 30 AD3d 37, 38 [1st Dept 2006] ["an agreement in purported or actual settlement of a landlord-tenant dispute which waives the benefit of a statutory protection is unenforceable as a matter of public policy, even if it benefits the tenant"]²).

Nor does the statute of limitations require dismissal of this action. Such a bar "does not make an agreement that was void at its inception valid by the mere passage of time" (*Riverside*, 10 NY3d at 24; see also *Thornton v Baron*, 5 NY3d 175, 181 [2005] [lease "(r)eflecting an attempt to circumvent the Rent Stabilization Law in violation of the public policy of New York . . . was void at its inception"]).

In sum, despite concerns about the substantial delay between the stipulation's execution and this litigation's commencement, no statute of limitations bars plaintiff's claim that the apartment is subject to rent stabilization. We hold that the Appellate Division erred in concluding otherwise and in deeming Liggett's complaint untimely. On remand, Lew Realty may rely on other reasons, apart from the stipulation, to establish that the apartment was not rent-stabilized when Liggett took tenancy, such as by establishing the fair rent of the apartment when it first entered rent stabilization in 2000 and applying subsequent allowable increases pursuant to the rent history (see e.g. 9 NYCRR 2522.4, 2522.8). We do not address any issue related to Liggett's rent overcharge claims, as those issues are not before us (see *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332, 351 n 4 [2020]).

Accordingly, the judgment appealed from and the Appellate Division order brought up for review should be reversed, with costs, and defendant's motion to dismiss the complaint denied.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and TROUTMAN concur.

2. While the Rent Stabilization Code authorizes a tenant to withdraw a complaint where there is "a negotiated settlement between the parties and with the approval of the DHCR, or a court of competent jurisdiction, or where a tenant is represented by counsel" (9 NYCRR 2520.13), McKinney did not file a complaint with DHCR.

Judgment appealed from and Appellate Division order brought up for review reversed, with costs, and defendant's motion to dismiss the complaint denied.

[247 NE3d 86, 222 NYS3d 16]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ALVIN
KING, Respondent.

Argued May 15, 2024; decided June 18, 2024

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered May 5, 2023. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Onondaga County (Gordon J. Cuffy, J.), which had convicted defendant, upon a jury verdict, of assault in the second degree, criminal possession of a weapon in the third degree, endangering the welfare of a child (two counts), menacing in the second degree (two counts), menacing a police officer or peace officer and resisting arrest; (2) granted that part of defendant's motion to dismiss the indictment pursuant to CPL 30.30; (3) dismissed the indictment; and (4) remitted the matter to that Supreme Court for proceedings pursuant to CPL 470.45.

People v King, 216 AD3d 1400, reversed.

HEADNOTE

Crimes — Right to Speedy Trial — Application of Certificate of Compliance Requirement Where People Had Previously Announced Readiness

The amendments to the Criminal Procedure Law requiring the People to file a certificate of compliance (COC) with new discovery rules before announcing their readiness for trial do not apply where the People had validly declared ready for trial before the effective date of the amendments. There is no evidence, in the plain language of the amendments or the legislative history, that the legislature intended to, or did, revert the People to a state of unreadiness on the amendments' effective date. Rather, the amendments specifically tie the COC requirement to the People's ability to state ready and be deemed ready. Because the legislature established the COC requirement as a condition precedent to declaring ready for trial and did not indicate an intent to undo the People's prior readiness statements, there is no basis to apply that requirement prospectively to a case where the People were in a trial-ready posture when it went into effect.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Constitutional Law §§ 731–732, 734–737, 964;
AM JUR 2d Criminal Law §§ 926–927, 930, 933, 937; AM
JUR 2d Statutes §§ 227–229, 233.

CARMODY-WAIT 2d Timeliness of Prosecution; Speedy Trial §§ 186:42, 186:63, 186:74, 186:76, 186:81, 186:118, 186:122, 186:128; CARMODY-WAIT 2d Discovery § 187:2.50.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 18.1, 18.3.

NY JUR 2d Criminal Law: Procedure §§ 1685.50, 1906, 1921–1922, 1924, 1927; NY JUR 2d Statutes §§ 226–227, 231–232, 236.

ANNOTATION REFERENCE

See ALR Index under Conditions Precedent; Discovery; Retroactive Laws; Speedy Trial.

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POINTS OF COUNSEL

William J. Fitzpatrick, District Attorney, Syracuse (Bradley W. Oastler of counsel), for appellant. Criminal Procedure Law article 245, effective after the indictment in this case, and after the People validly declared ready for trial, should not be applied to retroactively govern the case nor to invalidate the earlier statement of readiness. (*Matter of Anonymous v Molik*, 32 NY3d 30; *People ex rel. Hunter v Patterson*, 55 AD2d 693; *People v Galindo*, 38 NY3d 199; *People v Utsey*, 7 NY3d 398; *People v McFadden*, 189 AD3d 2086, 36 NY3d 1099; *People v Austen*, 197 AD3d 861, 37 NY3d 1095; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577.)

Philip Rothschild, Hiscock Legal Aid Society (Thomas M. Leith of counsel), Syracuse, for respondent. The Appellate Division properly dismissed the indictment for violation of CPL 30.30 (1) (b), as the legislature intended CPL article 245 to apply to all pending cases, even where the People had announced ready for trial. (*People v Brown*, 214 AD3d 823; *People v Robbins*, 206 AD3d 1069; *People v Torres*, 205 AD3d 524; *People v Vasquez*, 75 Misc 3d 49; *People v Galindo*, 38 NY3d 199; *People v Elmore*, 211 AD3d 1536; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Matter of New York County Lawyers’ Assn. v Bloomberg*, 19 NY3d 712; *State of New York v Patricia*

II., 6 NY3d 160; *Matter of State of New York v John S.*, 23 NY3d 326.)

OPINION OF THE COURT

SINGAS, J.

The narrow question before us on this appeal is whether amendments to the CPL imposing additional requirements that the People must fulfill before announcing their readiness for trial apply where the People declared ready for trial before the amendments' effective date. Because the amendments did not vitiate the People's prior readiness statement, we hold that they do not. Thus, we reverse the Appellate Division order.

Defendant was charged with attempted second-degree murder, second-degree assault, and other charges, arising out of an incident where he threatened his children with a knife and stabbed his pregnant wife several times in her hands, feet, and chest. In 2019, defendant was indicted, and the People declared ready for trial with approximately one week remaining on their speedy trial clock.

On January 1, 2020, amendments to New York's discovery (CPL art 245) and statutory speedy trial (CPL 30.30) rules went into effect, and the old discovery rules (CPL former art 240) were repealed (*see* L 2019, ch 59, § 1, parts KKK, LLL; *see generally* *People v Bay*, 41 NY3d 200 [2023]). On January 27, the first day of trial, defendant moved to dismiss the indictment on statutory speedy trial grounds, arguing that the People had become unready for trial when the amendments came into effect and had failed to file a certificate of compliance with the new discovery rules (COC) as required by the amendments and announce their readiness before their statutory speedy trial time expired. Supreme Court denied the motion, holding that the amendments do not apply to cases arraigned before January 1, 2020. The jury acquitted defendant of attempted second-degree murder but convicted him of the remaining counts.

As relevant here, the Appellate Division, with one Justice dissenting, reversed the judgment, granted defendant's CPL 30.30 motion, and dismissed the indictment (*see* 216 AD3d 1400 [4th Dept 2023]). The Court held that the People were placed in a state of unreadiness on January 1, 2020, and were required to file a COC to become ready thereafter (*id.* at 1405-1406). The majority relied on the general rule that newly enacted procedural statutes are applicable to future steps and

stages of a litigation and concluded that its statutory interpretation did not give the amendments any retroactive effect (*id.* at 1406). Even assuming the People were entitled to certain exclusions of time, the Court determined that the People were chargeable with a total of 185 days—over the 181-day limit applicable to this case (*id.* at 1408). The dissent would have held that the majority’s interpretation of the law gave it retroactive effect, and that the legislature did not intend the new discovery laws to be applied in a retroactive manner (*id.* at 1408-1409 [Ogden, J., dissenting]). The dissenting Justice granted the People leave to appeal.¹

Resolution of this appeal depends on whether any delay after January 1, 2020, is chargeable to the People. The answer to that question hinges on whether, in a case where the People had validly declared ready for trial prior to the effective date of the amendments, those amendments reverted the People to a state of unreadiness when they came into effect, requiring them to file a COC to regain their readiness status and stop the speedy trial clock. As this issue involves a question of statutory interpretation, we begin with the statutory text, which is “the clearest indicator of legislative intent” (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]). Before 2020, “[n]othing in the speedy trial statute linked . . . discovery obligations to the People’s readiness for trial under CPL 30.30” (*Bay*, 41 NY3d at 207). The amendments that became effective on January 1, 2020, constituted a sea change in speedy trial and discovery procedure. They “impose[d] new automatic disclosure requirements” (*id.* at 208; see CPL 245.20) and “tie[d] the[se] discovery obligations to trial readiness under CPL 30.30” (*Bay*, 41 NY3d at 208). Though the amendments did not alter the basic concept that the People must declare ready—and actually be ready—for trial in order to stop the speedy trial clock, the amendments linked the People’s discovery and speedy trial obligations by requiring the filing of “a COC attesting to good faith compliance with CPL 245.20’s disclosure requirements” prior to stating ready for trial (*id.* at 210). To that effect, CPL 30.30 (5) provides that “[a]ny statement of trial readiness must be accompanied or preceded by a [COC],” and CPL 245.50 (3) similarly provides that “the prosecution shall not be deemed ready for trial . . . until it has filed a proper [COC].”

1. As limited by the briefs, the People appeal only from the Appellate Division order reversing the judgment and dismissing the indictment.

There is no evidence, in the plain language of the amendments or the legislative history, that the legislature intended to—or did—revert the People to a state of unreadiness on January 1, 2020. Rather, the amendments specifically tie the COC requirement to the People’s ability to state ready and be deemed ready. Because the legislature established the COC requirement as a condition precedent to declaring ready for trial and did not indicate an intent to undo the People’s prior readiness statements, there is no basis to apply that requirement prospectively to a case such as the present one where the People were in a trial-ready posture when it went into effect. In other words, the People are not required to fulfill a prerequisite to declaring trial readiness when they have already validly declared ready for trial. Accordingly, the only way to apply the COC requirement to this case would be to wholesale invalidate the People’s pre-2020 readiness statement—not to render the People unready as of January 1, 2020. Because the language of the amendments does not “expressly or by necessary implication require[]” this plainly retroactive application, we cannot conclude that the legislature intended for the COC requirement to apply in this manner (*Majewski*, 91 NY2d at 584). Consequently, the People are not chargeable for any delay after January 1, 2020, and thus remained within the applicable 181-day statutory speedy trial limit (*see* CPL 30.30 [1][a]).²

Accordingly, the order of the Appellate Division should be reversed, defendant’s motion to dismiss the indictment pursuant to CPL 30.30 denied, and the case remitted to the Appellate Division for consideration of the facts and issues raised but not determined on appeal to that Court.

Chief Judge WILSON (concurring in result). The key to answering the question posed by this case is set out in section I of Judge Rivera’s dissent, with which I largely agree—in particular, the legislative history explaining that the new CPL 245 “*repeal[s]* our current flawed discovery rules (Article 240 of the

2. Because applying the plain language of the COC requirement resolves the issue in this appeal, we have no occasion to address how CPL article 245’s disclosure requirements apply to cases commenced before January 1, 2020, or how the COC requirement applies to such cases where there is no prior readiness statement (*compare* Wilson, Ch. J., concurring op at 431 [arguing that defendants in such cases are not entitled to any mandatory discovery under CPL art 245], *with* Rivera, J., dissenting op at 436-437 [arguing that all such cases are subject to the COC requirement]).

Criminal Procedure Laws) and offers a better, *comprehensive statute*; Article 245” (Assembly Mem in Support of 2017 NY Assembly Bill A4360A [emphasis added]; *see* dissenting op at 432-433; *see also* *People v Bay*, 41 NY3d 200, 208 [2023] [(T)he legislature adopted significant reforms that *repealed* CPL article 240, enacted CPL article 245 in its place, and amended CPL 30.30, the speedy trial provision. . . . To incentivize the People’s compliance with these procedures, the enactments tie their discovery obligations to trial readiness under CPL 30.30” (emphasis added)]. Judge Rivera and I agree that the new discovery rules and the amendments to the speedy trial provision were part of a single, integrated “comprehensive statute” that repealed what came before. That shared conclusion, however, leads us to opposite results.

The enacting legislation for article 245 states: “This act shall take effect January 1, 2020” (L 2019, ch 59, § 1, part LLL, § 14). But what does that mean in practice? All agree that cases filed after January 1, 2020, will be subject to article 245. All would agree that cases in which trial commenced before January 1, 2020, are governed by the repealed article 240. But what happens to cases that, like this one, were trial ready under article 240 before January 1, 2020, but not trial ready on January 1 because either: (a) they were not in compliance with the new discovery obligations, or (b) they were in compliance with the new discovery obligations but not with the new requirement to certify good-faith compliance with those new obligations? The statutory text does not state what to do.

On the one hand, article 245 imposes continuing discovery requirements that, under the new scheme, would normally be applicable throughout the trial process (*see* CPL 245.60). But as the dissent emphasizes (dissenting op at 437-438), those discovery requirements are part of an integrated statutory scheme aimed at ensuring “early and broader disclosure” by “tether[ing] the People’s CPL article 245 discovery obligations to CPL 30.30’s speedy trial requirements” (*Bay*, 41 NY3d at 208, 209). Given the integrated and comprehensive nature of the new enactment, I, like Judge Rivera, do not believe that we may interpret the statute in a way which decouples one from the other—they are part of a single package to be implemented together.

The majority decouples these two interdependent elements of the statute, holding that the speedy trial aspects of article 245 do not apply to cases “deemed ready” prior to the effective date based on the plain language of the provision, regardless of

whether the remainder of the discovery reforms apply (majority op at 428; CPL 245.50 [3]). That interpretation is a pragmatic response to the difficulty of reconciling the new and old readiness regimes, but places a great deal of stress on uncertain text to carve a line between provisions that we and the legislature have said should be understood as one integrated whole. The legislature's intent as to the speedy trial provisions cannot plausibly be isolated from its intent as to the statute as a whole.

Either the legislature realized that there would be cases that were trial ready under the old regime whose trials would not occur until after January 1, or it did not appreciate that (which I find highly unlikely). If the latter is true, then we are dealing with a situation in which legislative intent cannot be determined at all because there is none, and any guess is as good as any other. But if the legislature understood that cases ready under the old regime would not be tried until after January 1, and yet chose to say only that the effective date would be January 1, the majority's interpretation is not very plausible.

The majority's position suggests that the legislature may have thought about cases that were ready for trial under the old regime but were scheduled for trial after January 1, decided that cases ready under the old regime would be exempt from the certificate of compliance requirement of the new statute but subject to its discovery requirements, and decided to implement this position by failing to say explicitly what would happen in such cases, instead relying on the statutory text "deemed ready." If the legislature intended to split the statute in that way, it surely would have said something more. I agree that the legislature did not intend the certificate of compliance requirement to apply to pending cases, but that is simply because it did not intend the statute to apply—not because it hid that intent in a provision aimed at a different issue.

The dissent's approach maintains the integrity of the statutory scheme, but it imposes burdens the majority's approach avoids. Under the dissent's construction, cases that had January trial dates would all be deemed unready unless the People filed a certification stating that they had complied in good faith with the new discovery requirements.* Although district attorneys in those cases could have sought an extension to allow

* Thus, if well in advance of January 1, the People had provided all the discovery that was required under the new regime (whether in anticipation

(n. cont'd)

compliance with (and litigation over compliance with) the new regime, that would have required removing those cases from the calendar and bogging down the progress of cases that were ready for trial had the trial been scheduled a few days earlier, creating voids in the trial calendars of many courts. Nor do I agree that the nine-month lag between enactment and effective date supports the dissent's interpretation of article 245, because the legislature could have intended that delay to afford district attorneys and public defenders time to reorganize and restaff themselves on the assumption that article 245 would apply only to cases filed on or after January 1, 2020. Without a clear textual indication, I am hesitant to hold that the legislature intended to place previously ready cases into unreadiness by operation of law on January 1, 2020.

Instead, I conclude that the plainest interpretation is that the new integrated and interdependent system embodied in article 245 applies to cases commenced on or after the January 1, 2020 effective date. Because the statute creates an integrated scheme aimed at ensuring early discovery via compliance with speedy trial mechanisms, I doubt the legislature intended to apply discovery obligations to cases nearing trial under the old regime while dispensing with the requirement that the People certify good-faith compliance with those new discovery obligations. As we see here, doing so creates significant practical issues. The cleanest and most easily administrable solution is to apply the old scheme to cases filed before January 1, 2020, and the new one to cases filed thereafter. That also best fits with the legislature's expression that it "repealed" the old regime and "replaced" it with "a better, comprehensive statute" (Assembly Mem in Support of 2017 NY Assembly Bill A4360A). Thus, I concur in the majority result, but on the ground that article 245 does not apply at all to Mr. King's case, because it was commenced before January 1, 2020.

RIVERA, J. (dissenting). The issue on this appeal is whether

of that regime or by happenstance) and had declared trial readiness under the old regime without any objection by a defendant, the dissent would dismiss the indictments in all such cases where the People did not thereafter timely file a certificate of good-faith compliance with the new discovery requirements. Although it is possible the legislature meant to require the dismissal of all such cases for a completely nonsubstantive clerical failure, my interpretation avoids that result by imposing clear line of demarcation based on the date of filing: under my approach, there would be no cases straddling January 1.

CPL 245.50 (3) applies to actions pending on its January 1, 2020 effective date, which states that, “[n]otwithstanding the provisions of any other law, . . . the prosecution shall not be deemed ready for trial for purposes of section 30.30 of this chapter until it has filed a proper certificate [of compliance]” (COC) that it has fulfilled its “automatic discovery” obligations under CPL 245.20. The law does not alter or nullify any actions taken before its effective date. Rather, it simply requires that, on and after January 1, 2020, the prosecution take additional steps before it can be considered ready for trial, or risk dismissal on statutory speedy-trial grounds. Here, despite having several months of notice that CPL 245.50 (3) would take effect on January 1, 2020, the prosecution failed to take those steps in a criminal action pending against defendant Alvin King since 2018. Therefore, I would affirm the dismissal of the indictment.

I.

As we explained in *People v Bay*:

“In 2014, the New York State Justice Task Force proposed reforms to the discovery regime in light of concerns that available discovery is ‘highly circumscribed’ and ‘often comes too late to permit both sides to investigate facts fully and make informed decisions before trial’ (Report of the New York State Justice Task Force of its Recommendations Regarding Criminal Discovery Reform at 5 [2014]). Requiring early and broader disclosure, the Task Force concluded, would facilitate expeditious resolution of cases and better enable defense counsel to investigate and prepare for trial (*see id.* at 3; *see also* New York State Bar Association, Report of the Task Force on Criminal Discovery at 2 [2015]). Over the next few years, the legislature considered various discovery reform bills, and in the course of doing so, legislators noted that the existing scheme necessitated extensive exchanges of discovery demands, motions, and responses, and raised concerns about the limits on disclosure and the impact of discovery delays (*see* Assembly Mem in Support of 2019 NY Assembly Bill A1431; Assembly Mem in Support of 2017 NY Assembly Bill A4360A; NY Assembly Debate on 2019 NY Assembly Bill A2009C, Mar.

31, 2019 at 336, 378, 443-444; NY Senate Debate on 2019 NY Senate Bill S1509C, Mar. 31, 2019 at 2688-2690, 2714, 2802).

“In 2019, the legislature adopted significant reforms that repealed CPL article 240, enacted CPL article 245 in its place, and amended CPL 30.30, the speedy trial provision. . . . CPL article 245 imposes new automatic disclosure requirements and compliance mechanisms applicable to both the prosecution and defense (*see generally* CPL art 245; L 2019, ch 59, § 1, part LLL, §§ 1, 2). To incentivize the People’s compliance with these procedures, the enactments tie their discovery obligations to trial readiness under CPL 30.30 (*see* CPL 30.30 [5]; NY Senate Debate on 2019 NY Senate Bill S1509C, Mar. 31, 2019 at 2615; *People v Gaskin*, 214 AD3d 1353, 1353-1354 [4th Dept 2023])” (41 NY3d 200, 208 [2023]).

The discovery reforms were years in the making, hotly debated, and rewritten in response to concerns from prosecutors (*see generally* Assembly Mem in Support of 2019 NY Assembly Bill A1431; Assembly Mem in Support of 2017 NY Assembly Bill A4360A; NY Assembly Debate on 2019 NY Assembly Bill A2009C, Mar. 31, 2019; NY Senate Debate on 2019 NY Senate Bill S1509C, Mar. 31, 2019; L 2019, ch 59, § 1, part LLL, §§ 1, 2; L 2020, ch 56, § 1, part HHH; L 2022, ch 56, § 1, part UU, subpart D). According to the Assembly Memorandum in Support, the law is intended “[t]o modernize and make New York State’s criminal discovery rules fairer” (Assembly Mem in Support of 2017 NY Assembly Bill A4360A). To that end, the law

“calls for the repeal of our current flawed discovery rules (Article 240 of the Criminal Procedure Laws) and offers a better, comprehensive statute; Article 245. This bill eliminates the unfairness and inefficiencies of the present system and, if enacted, would facilitate[] swift, efficient, and just disposition of criminal cases” (*id.*; *see also* Senate Introducer’s Mem in Support of 2019 NY Senate Bill S1716 [observing that the law would “make more fair New York State’s discovery rules in the criminal courts” by providing “for the pre-trial exchange of information and evidence in criminal cases”]).

Although enacted in 2019, the reforms became effective on January 1, 2020, allowing months of preparation time to bring both prosecutor's offices and the defense bar into compliance under the new statutory regime (*see* L 2019, ch 59, § 1, part LLL, § 14). Notably, the reforms did not affect any actions taken by prosecutors or defendants prior to January 1st (*see generally id.*).

Section 245.20 of the CPL—titled “[a]utomatic discovery”—provides that “[t]he prosecution shall disclose to the defendant, and permit the defendant to discover, inspect, copy, photograph and test, all items and information that relate to the subject matter of the case and are in the possession, custody or control of the prosecution or persons under the prosecution's direction or control,” various categories of materials (CPL 245.20 [1]). Among other things, the prosecution must disclose: (1) “written or recorded statements . . . made by the defendant” to law enforcement; (2) grand jury transcripts; (3) “names and adequate contact information for all persons other than law enforcement personnel whom the prosecutor knows to have evidence or information relevant to any offense charged or to any potential defense thereto, including a designation by the prosecutor as to which of those persons may be called as witnesses”; (4) “[a]ll statements . . . by persons who have evidence or information relevant to any offense charged or to any potential defense thereto, including all police reports, notes of police and other investigators, and law enforcement agency reports”; and (5) “[a]ll tapes or other electronic recordings, including all electronic recordings of 911 telephone calls made or received in connection with the alleged criminal incident” (CPL 245.20 [1] [a]-[c], [e], [g]). Further, the prosecution “shall make a diligent, good faith effort to ascertain the existence of material or information” now automatically discoverable (CPL 245.20 [2]). With the exception of statutorily-exempted materials, “[w]hen the prosecution has provided the discovery required by [CPL 245.20 (1)], . . . it shall serve upon the defendant and file with the court a certificate of compliance” (CPL 245.50 [1]).

“To incentivize the People's compliance with these procedures, the enactments tie their discovery obligations to trial readiness under CPL 30.30” (*see Bay*, 41 NY3d at 208, citing CPL 30.30 [5]; NY Senate Debate on 2019 NY Senate Bill S1509C, Mar. 31, 2019 at 2615; *People v Gaskin*, 214 AD3d 1353, 1353-1354 [4th Dept 2023]). Specifically, “[t]he legislature

tethered [these] discovery obligations to CPL 30.30's speedy trial requirements . . . through both the enactment of CPL 245.50 (3) and amendments to CPL 30.30 itself" (*id.* at 209-210, citing CPL 245.50 [3]).

Section 30.30 (5) of the CPL, in turn, provides that "[a]ny statement of trial readiness must be accompanied or preceded by a certification of good faith compliance with the disclosure requirements of section 245.20 of this chapter and the defense shall be afforded an opportunity to be heard on the record as to whether the disclosure requirements have been met" (CPL 30.30 [5]). Thus, if the prosecution fails to file a valid certificate within the period provided in CPL 30.30 (1), the action may be dismissed upon defendant's CPL 30.30 motion, regardless of any prejudice to the defendant (*see Bay*, 41 NY3d at 214, citing *People v Hamilton*, 46 NY2d 932, 933-934 [1979]).

In brief, the discovery regime is intended to ensure the prosecution's timely compliance with broad discovery obligations that levels the playing field. The penalty of a speedy-trial dismissal is critical to achieving that goal.

II.

Defendant was charged with attempted homicide and several assault-related counts in September 2018. A grand jury indicted defendant in March 2019 and he was arraigned on the indictment the following month. Under CPL 30.30 (1), the prosecution had "six months" from commencement of the prosecution to declare readiness for trial (CPL 30.30 [1] [a]). In March and April 2019, the prosecution announced that it was ready for trial. In May 2019, defendant requested disclosure of several items, including "[a]ny 911 tapes." On November 26, 2019, the court set the trial for January 27, 2020, almost one month after the effective date of the discovery reform law.

On the first day of trial, defense counsel informed the court that the prosecution had attempted to serve him earlier that morning with a certificate of compliance in accordance with newly-enacted CPL 245.50, but that he "rejected" the certificate given the prosecution's failure to comply with its discovery obligations. Defense counsel submitted a motion to dismiss pursuant to CPL 30.30. The prosecution countered that defendant was not entitled to dismissal because the time before the new law's January 1, 2020 effectiveness date was governed by the earlier regime. The court denied the motion.

Defendant was convicted on all counts except for attempted homicide, but the Appellate Division reversed, granted defend-

ant's CPL 30.30 motion, and dismissed the indictment. The Court concluded that CPL article 245, as amended, applied to all actions pending as of January 1, 2020, and therefore the prosecution was subject to its discovery requirements within the applicable speedy trial period (*see* 216 AD3d 1400, 1403-1406). One Justice dissented (*see id.* at 1408-1409 [Ogden, J., dissenting]) and subsequently granted the prosecution leave to appeal. The prosecution argues that CPL article 245 and its CPL 30.30-based enforcement mechanism are not retroactive. This argument is both misplaced and meritless.

III.

The issue before us is easily decided based on our well-settled rules of statutory interpretation. “[T]he plain meaning of the statutory text is the best evidence of legislative intent and, in fact, the only authoritative basis for interpretation” (*People v Cahill*, 2 NY3d 14, 117 [2003]). “Indeed, ‘[a]s a general rule, unambiguous language of a statute is alone determinative’ ” (*People v Galindo*, 38 NY3d 199, 203 [2022], quoting *Riley v County of Broome*, 95 NY2d 455, 463 [2000]). Accordingly, “courts should construe unambiguous language to give effect to its plain meaning” (*Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653, 660 [2006]).

Section 245.50 (3) provides that, “[n]otwithstanding the provisions of any other law, . . . the prosecution shall not be deemed ready for trial for purposes of section 30.30 of this chapter until it has filed a proper certificate [of compliance]” with its statutorily mandated discovery obligations (CPL 245.50 [3]). This requirement went into effect on January 1, 2020 (L 2019, ch 59, § 1, part LLL, § 14) and the legislature made no exception for cases previously filed and pending.

The majority notes that the effectiveness of CPL article 245 did not “undo the People’s prior readiness statements” (majority op at 428). I agree, but that observation is irrelevant because the question is not whether the prosecution was ready before January 1, 2020, but whether “notwithstanding the provisions of any other law” the prosecution had complied with its new automatic discovery obligations such that it was in a position to file a valid certificate of readiness and thus was ready for trial by January 15, 2020 (CPL 245.50 [1], [3]).

Although the prosecution’s prior state of readiness is not at issue on this appeal, the majority uses that prior status as a point of departure and then builds on a false premise that the

legislature did not “revert the People to a state of unreadiness on January 1, 2020” (majority op at 428). Again, that is an illogical reading of the statute because, by its terms, the statute prospectively imposes discovery obligations and procedural requirements that only went into effect on January 1st and thus do not change or nullify any prior conduct by the prosecution.

Nor would reading the statute as imposing new discovery reforms, backed by the sanction of dismissal under CPL 30.30 as of January 1, 2020, render CPL 245.50 (3) retroactive, as the majority suggests. For sure, “[i]t is a fundamental canon of statutory construction that retroactive operation is not favored by courts and statutes will not be given such construction unless the language expressly or by necessary implication requires it” (*Galindo*, 38 NY3d at 207, quoting *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 584 [1998]). However, unless they effect a substantive change in rights, newly-enacted procedural rules apply to all pending matters (*Simonson v International Bank*, 14 NY2d 281, 289 [1964]; *Matter of Berkovitz v Arbib & Houlberg, Inc.*, 230 NY 261, 270 [1921, Cardozo, J.]). The CPL discovery reforms are demonstrably procedural in nature. They do not affect the existing rights of the parties or the merits of the prosecution. A straightforward application of the entire package of reforms beginning on its well-publicized effective date would not “reach backward, and nullify by relation the things already done” by, for instance, imposing new obligations pre-January 1, 2020, or leveling sanctions for actions taken or not taken in the past (*Matter of Berkovitz*, 230 NY at 270).

The majority attempts to sidestep these obvious defects in its analysis by disavowing that its decision has any bearing on “how CPL article 245’s disclosure requirements apply to cases commenced before January 1, 2020” (majority op at 428 n 2). At best, this assertion ignores the inextricability of the discovery obligations and COC requirement and, as a corollary, the practical import of the majority’s own holding. Yanking this vital thread from the scheme’s fabric effectively unravels the new substantive duties the legislature imposed and undermines the goals the legislature had in mind when formulating and enacting the scheme.

Effectively, the majority decouples the prosecution’s discovery obligations from the consequences for noncompliance—a reading of the legislative scheme that finds no support in the plain

text or history of the relevant statutory provisions, established canons of construction, our case law, or logic. This contrived dissection of the legislation's components meant to work in tandem with one another defeats its purpose of ensuring timely, complete, and open discovery by artificially severing the connection between automatic disclosure and prosecutorial readiness for speedy trial purposes that we recently acknowledged (*see Bay*, 41 NY3d at 208-209). Because the majority's atomized alternative to the scheme the legislature enacted is contrary to our law and undermines the salutary purpose of the discovery reforms, I dissent.

Judges GARCIA, CANNATARO, TROUTMAN and HALLIGAN concur. Chief Judge WILSON concurs in result in an opinion. Judge RIVERA dissents and votes to affirm in an opinion.

Order reversed, defendant's motion to dismiss the indictment pursuant to CPL 30.30 denied, and case remitted to the Appellate Division, Fourth Department, for consideration of the facts and issues raised but not determined on appeal to that Court.

[248 NE3d 691, 223 NYS3d 531]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HARVEY
WEINSTEIN, Appellant.

Argued February 14, 2024; decided April 25, 2024

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 2, 2022. The Appellate Division affirmed a judgment of the Supreme Court, New York County (James M. Burke, J.), which had convicted defendant, upon a jury verdict, of criminal sexual act in the first degree and rape in the third degree.

People v Weinstein, 207 AD3d 33, reversed.

HEADNOTES

Limitation of Actions — Tolling — Criminal Prosecutions — Periods of Defendant's Continuous Absence from State

1. Defendant's prosecution for third-degree rape, commenced 69 days after expiration of the applicable limitations period, was not time-barred because CPL 30.10 (4) (a), which provides that periods of a defendant's continuous absence from the state following commission of the offense or during which the defendant's whereabouts is unknown are not included in calculating the time limitation for commencing a criminal action, tolled certain periods when defendant was continuously outside the state. Nowhere does CPL 30.10 (4) (a) distinguish between residents and nonresidents, and courts cannot read into the statute a limitation not adopted by the legislature. If the legislature intended this tolling provision to apply only to nonresidents or that courts factor residency into a tolling analysis, it would have said so expressly. Nor does the statute contain any requirement that the tolling period apply once authorities know that a crime has been committed. Moreover, all periods of a day or more during a defendant's absence from the state should be totaled and toll the statute of limitations.

Crimes — Proof of Other Crimes — Criminal Propensity

2. The trial court in defendant's sexual assault prosecution erred in permitting *Molineux* evidence in the form of testimony from three women other than complainants alleging that defendant had also sexually assaulted them, where the prosecution failed to identify an issue, other than mere criminal propensity, to which the evidence was relevant. The complainants' respective testimonies were not equivocal on the issue of consent, as no reasonable person would understand complainants' described behavior as having communicated anything other than their rejection of sexual activity. Moreover, evidence of prior criminal acts to prove intent will often be unnecessary, and therefore should be precluded even though marginally relevant, where intent may be easily inferred from the commission of the act itself. Complainants testified that defendant used force and, thus, his intent to commit the crime would have been established if the jury believed their accounts and concluded

that force was used. But the *Molineux* witnesses' prior experiences with defendant had no bearing on whether defendant used force against complainants. The testimony was therefore unnecessary and served to persuade the jury that, if he had attempted to coerce those three witnesses into nonconsensual sex, then he did the same to the victims on the dates and under the circumstances as charged. The testimony from the *Molineux* witnesses was unnecessary to establish defendant's intent and served only to establish defendant's propensity to commit the crimes charged.

Crimes — Defendant as Witness — Impeachment — *Sandoval* Material

3. The trial court in defendant's prosecution for sexual assault abused its discretion in ruling that defendant could be cross-examined about prior, uncharged alleged bad acts and despicable behavior which was immaterial to his in-court credibility, and which served no purpose other than to display for the jury defendant's loathsome character. The ruling necessarily and impermissibly impacted defendant's decision whether to take the stand in his defense and thus undermined the fact-finding process in the case, which turned on the credibility of the parties. The question for trial courts is whether the evidence shows a defendant's lack of in-court veracity. If so, the evidence may be admitted, if not unduly prejudicial, for the limited purpose of attacking credibility. Here, the trial court's *Sandoval* ruling—to the extent it permitted the prosecution to cross-examine defendant about bullying and fits of anger towards employees, restaurant workers, and business associates—was an abuse of discretion. Defendant had no criminal history, many of the acts approved for cross-examination by the court were not criminal in nature and had little if any probative value as to defendant's lack of in-court veracity, while also prejudicing the jury against defendant. The ruling necessarily undesirably deterred defendant from taking the stand and thereby denied the jury significant material evidence.

Crimes — Fair Trial — Proof of Other Crimes and *Sandoval* Material

4. In a sexual assault prosecution, the trial court's erroneous *Molineux* and *Sandoval* rulings admitting testimony of uncharged, alleged prior sexual acts against three women other than complainants and permitting defendant, who had no criminal history, to be cross-examined about those allegations and other uncharged bad acts deprived defendant of his right to a fair trial. The *Molineux* witnesses' testimony bolstered complainants' testimony, thereby impacting the jury's credibility determination. Although framed as evidence of defendant's intent to use forcible compulsion and his awareness of the victims' lack of consent, the testimony of the three *Molineux* witnesses was, in courtroom reality, evidence of defendant's propensity to commit the crimes charged. Moreover, the erroneous *Sandoval* ruling allowing the prosecution to cross-examine defendant about allegations of charged and uncharged bad acts was inclusive of behavior that was loathsome but not the type of conduct that would assist the jury in measuring his credibility on the stand. The ruling thus served to discourage defendant from exercising his rights to present a defense and testify on his behalf. Even if the errors were subject to a nonconstitutional harmless-error analysis, they would not be deemed harmless. The whole case turned on a close question of credibility. Even if the evidence against defendant was regarded as overwhelming, there remained a significant probability that, absent the trial court's erroneous *Molineux* ruling, the jury would have acquitted defendant, and the erroneous *Sandoval* determination might have affected defendant's decision whether to testify and provide critical information.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 241, 243, 249, 908; AM JUR 2d Evidence §§ 397, 456.
CARMODY-WAIT 2d Timeliness of Prosecution; Speedy Trial §§ 186:21, 186:24; CARMODY-WAIT 2d Fundamentals of Criminal Evidence §§ 193:16, 193:17, 193:21, 193:31; CARMODY-WAIT 2d Testimony of Witnesses §§ 195:138–195:140, 195:152, 195:153, 195:156.
LAFAYETTE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 18.5, 23.3, 24.4.
MCKINNEY'S, CPL 30.10 (4) (a).
NY JUR 2d Criminal Law: Procedure §§ 1892, 2067–2070, 2072, 2402, 2403, 2407, 2408, 2422, 2505.

ANNOTATION REFERENCE

See ALR Index under Cross-Examination; Fair and Impartial Trial; Limitation of Actions; Impeachment of Witnesses.

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POINTS OF COUNSEL

Aidala Bertuna & Kamins, PC, New York City (Arthur L. Aidala, Barry Kamins, John M. Leventhal and Diana Fabi Samson of counsel), for appellant. I. The trial court's *Molineux* and *Sandoval* rulings deprived defendant of his constitutional right to a fair trial upon charges brought by a grand jury and to testify on his own behalf. (US Const Amends V, VI, XIV; NY Const, art I, § 6.) (*People v Cass*, 18 NY3d 553; *People v Resek*, 3 NY3d 385; *People v Vargas*, 88 NY2d 856; *People v Valentin*, 29 NY3d 150; *Matter of Brandon*, 55 NY2d 206; *People v Beam*, 57 NY2d 241; *People v Condon*, 26 NY2d 139; *People v Agina*, 18 NY3d 600; *People v Leonard*, 29 NY3d 1; *People v Alvino*, 71 NY2d 233.) II. The defendant's conviction for third-degree rape should be reversed and the charge dismissed as time-barred because the tolling provisions contained in CPL 30.10 are not applicable to the intermittent travel of a New York resident who is not being sought by law enforcement because no crime

has been reported. (*People v Knobel*, 94 NY2d 226; *People v Seda*, 93 NY2d 307; *People v Jordan*, 43 AD3d 1076; *People v Quinto*, 77 AD3d 76; *People v Cruciani*, 63 Misc 3d 226; *People v Chase*, 299 AD2d 597; *People v Ferrari*, 155 Misc 2d 749; *People v Guariglia*, 187 Misc 843, 272 App Div 784; *People v Yanez*, 128 Misc 2d 716.) III. Mr. Weinstein was denied his constitutional right to be tried by a fair and impartial jury when the court refused to dismiss a juror for cause after his peremptory challenges were exhausted and permitted her to remain on the jury, even after it was well established that she lied about matters material to her fitness to serve (US Const Amends VI, XIV; NY Const, art VI, § 18 [a]). (*Duncan v Louisiana*, 391 US 145; *People v Torpey*, 63 NY2d 361; *People v Branch*, 46 NY2d 645; *Smith v Phillips*, 455 US 209; *Chandler v Florida*, 449 US 560; *Sheppard v Maxwell*, 384 US 333; *Estes v Texas*, 381 US 532; *Levine v United States Dist. Ct. for Cent. Dist. of Cal.*, 764 F2d 590; *United States v Simon*, 664 F Supp 780; *In re Michael*, 326 US 224.)

Alvin L. Bragg, Jr., District Attorney, New York City (Steven C. Wu, Alice Wiseman, Rachel Bond and Stephen J. Kress of counsel), for respondent. I. The trial court properly admitted the *Molineux* evidence adduced at trial. (*People v Agina*, 18 NY3d 600; *People v Beam*, 57 NY2d 241; *People v Frumusa*, 29 NY3d 364; *People v Ingram*, 71 NY2d 474; *People v Williams*, 81 NY2d 303; *People v Cook*, 93 NY2d 840; *People v Tas*, 51 NY2d 915; *People v Alvino*, 71 NY2d 233; *People v Katz*, 209 NY 311; *People v McKinney*, 24 NY2d 180.) II. The trial court's *Sandoval* ruling was a sound exercise of discretion. (*People v Hayes*, 97 NY2d 203; *People v Walker*, 83 NY2d 455; *People v Gray*, 84 NY2d 709; *People v McGee*, 68 NY2d 328; *People v Williams*, 12 NY3d 726; *People v Pollock*, 50 NY2d 547; *People v Kennedy*, 47 NY2d 196; *People v Smith*, 59 NY2d 156; *People v Brown*, 48 NY2d 921; *People v Bennette*, 56 NY2d 142.) III. Defendant's objections to the seating of a single juror are meritless. (*People v Johnson*, 94 NY2d 600; *People v Shulman*, 6 NY3d 1; *People v Batticks*, 35 NY3d 561; *People v Spencer*, 29 NY3d 302; *People v Buford*, 69 NY2d 290; *People v Harris*, 19 NY3d 679; *People v Chambers*, 97 NY2d 417; *People v Scott*, 16 NY3d 589; *People v Ward*, 129 AD3d 492.) IV. Defendant's prosecution for third-degree rape was timely. (*People v Knobel*, 94 NY2d 226; *People v Jackson*, 29 NY3d 18; *People v Kelly*, 5 NY3d 116; *Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653; *People v Talluto*, 39 NY3d 306; *Jones v Bill*, 10 NY3d 550; *Matter of Anonymous v Molik*, 32 NY3d 30; *Myers v Schneider-*

man, 30 NY3d 1; *People v Jackson*, 87 NY2d 782; *People v Seda*, 93 NY2d 307.)

Covington & Burling LLP, New York City (*Nancy Kestenbaum*, *Laura B. Richardson* and *Seema K. Vithlani* of counsel) and Washington, D.C. (*Carolyn F. Corwin*, admitted pro hac vice, and *Mark W. Mosier* of counsel), for Sanctuary for Families Inc. and others, amici curiae. I. *Molineux* evidence is particularly important in sexual assault cases. (*People v Rojas*, 97 NY2d 32; *People v Jackson*, 39 NY2d 64; *People v Dorm*, 12 NY3d 16; *People v Resek*, 3 NY3d 385; *United States v Enjady*, 134 F3d 1427; *United States v Cavallaro*, 553 F2d 300; *People v Denson*, 26 NY3d 179; *People v Cass*, 18 NY3d 553; *Oliphant v Koehler*, 594 F2d 547.) II. The trial court did not abuse its discretion in admitting evidence of Weinstein's similar bad acts as evidence of both his intent and the complainants' non-consent. (*People v Alvino*, 71 NY2d 233; *United States v Schaffer*, 851 F3d 166; *United States v Mound*, 149 F3d 799; *People v Sudler*, 116 AD2d 605.)

Law Office of Stephen N. Preziosi, P.C., New York City (*Stephen N. Preziosi* of counsel), for New York State Association of Criminal Defense Lawyers, amicus curiae. I. Where no crime has been reported and there is no active investigation into criminal conduct, the tolling provisions of CPL 30.10 (4) (a) are not applicable. (*People v Quinto*, 18 NY3d 409; *People v Jordan*, 43 AD3d 1076; *People v Giardala*, 165 AD3d 569; *People v Seda*, 93 NY2d 307; *People v Vega*, 116 AD3d 454; *People v Landy*, 125 AD2d 703; *People v Rolle*, 59 AD3d 169; *People v Anderson*, 188 AD3d 1699; *People v Knobel*, 94 NY2d 226; *Blanco v American Tel. & Tel. Co.*, 90 NY2d 757.) II. The resident versus non-resident distinction: Absence must be continuous and the phrase continuous absence means that temporary periods of absence for residents will exclude short excursions, business trips, vacations, and temporary sojourns. (*People v Knobel*, 94 NY2d 226; *People v Ferrari*, 155 Misc 2d 749; *People v Yanez*, 128 Misc 2d 716; *Childs v Brandon*, 60 NY2d 927; *People v Guariglia*, 187 Misc 843.) III. The 50 states have a variety of statutory schemes for tolling provisions within their statutes of limitations.

OPINION OF THE COURT

RIVERA, J.

Every person accused of a crime is constitutionally presumed

innocent and entitled to a fair trial and the opportunity to present a defense (*see* US Const Amends VI, XIV; NY Const, art I, § 6; *Estelle v Williams*, 425 US 501, 503 [1976] [“The right to a fair trial is a fundamental liberty secured by the Fourteenth Amendment” and “(t)he presumption of innocence, although not articulated in the Constitution, is a basic component of a fair trial under our system of criminal justice”]; *Crane v Kentucky*, 476 US 683, 690 [1986] [“Whether rooted directly in the Due Process Clause of the Fourteenth Amendment . . . or in the Compulsory Process or Confrontation clauses of the Sixth Amendment . . . the Constitution guarantees criminal defendants ‘a meaningful opportunity to present a complete defense’ ”], quoting *California v Trombetta*, 467 US 479, 485 [1984]).

Under our system of justice, the accused has a right to be held to account only for the crime charged and, thus, allegations of prior bad acts may not be admitted against them for the sole purpose of establishing their propensity for criminality (*see People v Molineux*, 168 NY 264 [1901]). Nor may the prosecution use “prior convictions or proof of the prior commission of specific criminal, vicious or immoral acts” other than to impeach the accused’s credibility (*People v Sandoval*, 34 NY2d 371, 374 [1974]). It is our solemn duty to diligently guard these rights regardless of the crime charged, the reputation of the accused, or the pressure to convict (*see Boyd v United States*, 116 US 616, 635 [1886] [“It is the duty of courts to be watchful for the constitutional rights of the citizen, and against any stealthy encroachments thereon”]).

Defendant was convicted by a jury for various sexual crimes against three named complainants and, on appeal, claims that he was judged, not on the conduct for which he was indicted, but on irrelevant, prejudicial, and untested allegations of prior bad acts. We conclude that the trial court erroneously admitted testimony of uncharged, alleged prior sexual acts against persons other than the complainants of the underlying crimes because that testimony served no material non-propensity purpose. The court compounded that error when it ruled that defendant, who had no criminal history, could be cross-examined about those allegations as well as numerous allegations of misconduct that portrayed defendant in a highly prejudicial light. The synergistic effect of these errors was not harmless. The only evidence against defendant was the complainants’ testimony, and the result of the court’s rulings,

on the one hand, was to bolster their credibility and diminish defendant's character before the jury. On the other hand, the threat of a cross-examination highlighting these untested allegations undermined defendant's right to testify. The remedy for these egregious errors is a new trial.

However, we reject defendant's claim that the third-degree rape prosecution was untimely under CPL 30.10 because, as a New York resident, his brief absences from the state before the authorities were aware of the crime did not toll the limitations period. Defendant's argument finds no support in the statutory text. Therefore, the trial court properly discounted the days defendant was continuously outside the state and correctly held that the prosecution was not time-barred. Defendant may be retried on this count.

I.

A.

Defendant Harvey Weinstein was charged with: one count of first-degree criminal sexual act under Penal Law § 130.50 (1), based on allegations that, on July 10, 2006, defendant forcibly performed oral sex on Complainant A in his New York City apartment; one count of first-degree rape under Penal Law § 130.35 (1), and one count of third-degree rape under Penal Law § 130.25 (3), based on allegations that, on March 18, 2013, defendant engaged in forcible intercourse and oral sex with Complainant B; and two counts of predatory sexual assault under Penal Law § 130.95 (2), based on allegations that defendant engaged in the attacks against Complainants A and B after having raped Complainant C—in either 1993 or 1994.¹ The court denied defendant's motion to dismiss the third-degree rape charge as untimely, concluding that under CPL

1. All the counts include a component of intent to commit the act charged without the victim's consent (*see People v Williams*, 81 NY2d 303, 316-317 [1993]; *People v Worden*, 22 NY3d 982, 984 [2013]). To establish first-degree criminal sexual act and first-degree rape the prosecution must prove beyond a reasonable doubt that a defendant used forcible compulsion, to engage in "oral . . . or anal sexual conduct" (Penal Law § 130.50 [1]), or "sexual intercourse" (Penal Law § 130.35 [1]). To establish third-degree rape the prosecution must prove beyond a reasonable doubt that a defendant "engage[d] in sexual intercourse with another person without such person's consent" (Penal Law § 130.25 [3]). Predatory sexual assault requires the prosecution prove beyond a reasonable doubt, as relevant here, that a defendant committed either first-degree rape or first-degree criminal sexual act and first-degree rape, first-degree criminal sexual act, or aggravated first-degree sexual abuse

(n. cont'd)

30.10 (4) (a) (i), the statute of limitations was properly tolled during the time defendant was continuously outside New York State. Defendant was tried before a single jury on all counts.

At the time of the alleged crimes and at the time of the trial, defendant was a well-known, powerful man within the entertainment industry, having produced several award winning and highly profitable films. The prosecution's theory of the case was that defendant abused his power to take advantage of aspiring female actors, like complainants, to coerce them into unwanted sexual encounters. According to the prosecution, the quid pro quo of assisting them with their careers in exchange for sexual favors on demand was both common behavior and a well-known secret throughout the film industry. When his victims resisted his sexual demands, the prosecution argued, defendant used force. Traumatized by defendant's sexual assaults, and fearing retaliation, the complainants never reported the attacks and continued personal and professional relationships with him for years afterwards.

Before trial, the court granted the prosecution's application to admit certain testimony of uncharged crimes and miscellaneous bad acts as an exception to the *Molineux* rule, prohibiting such evidence, to establish defendant's intent and his understanding of the complainants' lack of consent. Thus, Complainant B could testify about defendant's uncharged sexual assaults against her before and after the charged rape and her awareness of defendant's abusive and threatening behavior, and three other women (the *Molineux* witnesses) could testify regarding defendant's sexual misconduct towards them years before and after the charged offenses involving Complainants A and B.

The court also granted, in large part, over defendant's objection, the prosecution's *Sandoval* application to cross-examine defendant on a broad range of uncharged bad acts should he testify. Pursuant to this ruling, the prosecution was permitted to ask about, for example, whether defendant: directed a witness to lie to defendant's wife; filed an application for a passport using a friend's Social Security number; told a woman he "could harm her professionally" but could also offer her a book publishing opportunity; used his entertainment company's budget for personal costs; withdrew from a business deal and

(see Penal Law § 130.70) "against one or more additional persons" (Penal Law § 130.95 [2]).

asked others to cease its funding; hid a woman's clothes; insisted that members of his staff falsify a photo for a movie poster by photoshopping a female actor's head on another woman's nude body; told a private intelligence firm to manipulate or lie to people; scheduled a business meeting in 2012 with a woman under false pretenses; induced executives to lie on his behalf; made threats and committed acts of violence against people who worked for him; abandoned a colleague by the side of the road in a foreign country; physically attacked his brother; threatened to cut off a colleague's genitals with gardening shears; screamed and cursed at hotel restaurant staff after they told him the kitchen was closed; and threw a table of food. The court also permitted the prosecution to cross-examine defendant about the details of the sexual assault allegations described by the *Molineux* witnesses during the prosecution's case-in-chief.

B.

After the court denied defendant's motion to dismiss the third-degree rape charge as time-barred, the case proceeded to trial. Complainant A testified that she had known defendant since 2004 when she met him in a hotel room to discuss a job opportunity she later accepted, during which he made comments about her body and asked her for a massage, which she refused. Sometime later, defendant unsuccessfully propositioned her to travel abroad with him and, at one point, "barged" into her apartment. Two years later, defendant invited Complainant A to a film premiere in Los Angeles and, the day before she was to travel, asked her to his New York hotel room. When she arrived, defendant "lunged" at her to kiss her. She said, "no, no, no" and tried to push him away, but defendant pulled her back towards him and "kiss[ed] and fondl[ed] her." She attempted to flee, but defendant used "his weight and his body" to lead her into the bedroom, where he pushed her "with his body" until she fell backward onto the bed. She recalled that she tried several times to get up, but each time defendant pushed her back. She "kick[ed]" and "push[ed]" to "get away," but defendant held her arms by her wrists and laid on top of her, holding her down. After she gave up struggling, he "forced himself on [her] orally."

After she returned to New York, defendant again asked her to his hotel room where, according to Complainant A, he "grabbed" her by the arm and led her "straight towards the

bed.” She testified that she “laid there” and “didn’t resist physically” as defendant “had intercourse with [her]” while calling her derogatory names. Despite feeling “embarrassed” and unsure of “how to deal with it,” Complainant A maintained a “professional connection” with defendant because she “wanted a job.” Over the next two-and-a-half years, she met defendant in London to “pitch him an idea” and sent him friendly emails thanking him for his “support” and signing off with: “Lots of love, [A].”

Complainant B testified that she wanted to act since childhood and first met defendant at a party in February 2013, where defendant expressed interest in her career. Defendant subsequently took her to exclusive Academy Awards parties and dinners. Later that same month, defendant invited Complainant B to his hotel room in Los Angeles, California and, when she entered, grabbed both of her arms and tried to kiss her “like crazy” and then sexually assaulted her. Afterwards, she decided to initiate a “real relationship” with defendant and saw him regularly, engaging in consensual oral sex with him. Complainant B testified that, during their relationship, defendant attempted to persuade her to have a sexual interaction with himself and another actress but both women were uncomfortable, and Complainant B left the room. During the defense’s cross-examination of Complainant B, the prosecution successfully moved to present the other woman’s testimony about this incident and her testimony corroborated Complainant B’s description.

Complainant B also testified that, in March 2013, she and some friends met defendant for breakfast in a Manhattan hotel. Defendant arrived early and booked a room. Once in the room, Complainant B argued with defendant, saying that they did not “have time” for anything sexual. She stated that she twice tried to leave, but defendant “blocked” her by putting his hand on the door above her head and “slam[ming]” it shut. Defendant told her to undress in a “sharp and angry” tone and when she hesitated, defendant “grab[bed] her hand” and held it to “force” her to undress. When Complainant B was completely naked, defendant told her to lie down on the bed and, after disrobing in the bathroom, he got on top and had intercourse with her.

Complainant B explained that she maintained a friendly relationship with defendant afterwards out of fear for her personal safety and professional prospects. When defendant

discovered she was dating another actor, he told her: “[Y]ou owe me one more time” and “dragg[ed]” her into his Los Angeles hotel room. Complainant B pleaded “no, please, no,” but defendant “lunged” at her and “ripped” her pants off, leaving scratches on both legs. He then forcibly performed oral sex on her, forced her to reciprocate, and forcibly had intercourse with her. She maintained a friendly relationship with defendant during the years that followed, which included consensual sexual relations and emails telling defendant that she loved him.

Complainant C, an established Hollywood actor, testified that she met defendant during the early 1990s and that he played a role in her becoming addicted to drugs at that time. Sometime during the 1993-1994 winter, they had dinner together and he left her at her Manhattan apartment. A half hour later, he returned, pushed his way inside, grabbed her near the collar, “led [her] into” the bedroom, and “shoved [her] on the bed.” Complainant C explained that she was “[p]unching him” and “kicking him,” but defendant restrained her hands above her head and “raped” her “while [she] was trying to fight, but [she] could not fight anymore because he had [her] [h]ands locked.” Complainant C also testified that, later in 1994, defendant repeatedly called her and sent cars to her hotel room while the two were in London and, the following year, “tricked” her into agreeing to make another film that she did not know his company was producing.

C.

The three *Molineux* witnesses testified about defendant’s individual unwanted sexual advances towards them. Witness 1 stated that she met defendant in 2004 at a Manhattan nightclub while she was working as an actor and defendant said he could help her career. Sometime in 2004 or 2005, she met defendant in a hotel room for a networking event. Defendant led her to the bedroom, where he suddenly put his hand up her skirt and tried to put his hand inside her vagina and apologized when she pulled away. A few weeks later, she agreed to meet defendant at another hotel where, clothed in a bathrobe, he told her that he would sign contracts for her to work only if she had sex with him and his assistant, but then told her he was joking and that she would “never make it in this business” unless she changed her attitude.

Witness 2 testified that she met defendant during the summer of 2005 while she was an aspiring actor working as a

cocktail server at a Manhattan lounge. Defendant gave her his contact information and then, minutes later, “grabbed” her by the arm and led her upstairs to a deserted terrace, where he “pulled” her so that she was facing him and masturbated. A week or two later, Witness 2 was invited to read for a part at defendant’s production company but, while in the waiting room, was told that defendant wanted to see her at his apartment. When she arrived, defendant grabbed her arms and threw her on his bed before removing her clothes and having intercourse with her as she “just froze” and “looked off.” Witness 2 explained that defendant was “a heavy man” who “weighed [her] down.” Defendant then drove Witness 2 back to the studio, but she was not allowed to audition and did not get the part.

Witness 3 testified that she met defendant in February 2013 in Los Angeles, where she was working as an actor. Another actor friend of hers invited her to a Beverly Hills hotel to discuss a film script. Defendant invited the two to continue the conversation inside his room and, once inside, led Witness 3 into a bathroom as the friend closed the door behind them. She then testified in detail about how defendant undressed as she nervously laughed before he pulled down her dress and masturbated, despite her protests, while grasping her breast and asking her how else he could know whether she could act. The prosecution admitted photographs of the dress she had been wearing into evidence.²

Following the testimonies of these three *Molineux* witnesses, the trial court instructed the jury that this evidence “must not be considered for the purpose of proving that the defendant had a propensity or predisposition to commit the crimes charged.” The court further explained that the prosecution introduced the *Molineux* witnesses to the jurors “for [their] consideration on the question of whether the defendant intended to engage in the sexual acts, and whether each of the complaining witnesses consented.” During the final charge to the jury, the court reiterated that the testimonies of the *Molineux* witnesses “was offered for [its] consideration on the issues of forcible compulsion and lack of consent.”

The prosecution also presented testimony from a forensic psychiatrist and an expert on rape trauma syndrome. She described how sexual assault victims may behave in ways

2. Defendant was tried in California for this conduct against Witness 3, but the jury failed to reach a verdict.

towards their attackers that persons unfamiliar with the syndrome might consider counterintuitive. She attempted to dispel certain rape myths, including that most rapes are committed by strangers and that “credible” victims promptly report attacks and discontinue relationships with their attackers. She further testified that traumatic events narrow the brain’s ability to focus on specific details, yielding clearer memories of such events.

Defendant did not testify on his behalf but, during cross-examination of the complainants and during closing argument, defense counsel questioned the credibility of the complainants by highlighting their continued personal and professional relationships with defendant and Complainant B’s admission that she continued a consensual sexual relationship with defendant after her alleged March 2013 rape. Defendant also presented testimony, as limited by the court, from a psychologist specializing in human memory who testified that exposure to falsehoods regarding a traumatic incident leads to the formation of false memories, which themselves could fade with time. She also testified that asking a traumatized person to remember the trauma could cause additional stress that further impairs their memory of the event.³

The jury acquitted defendant of both counts of predatory sexual assault and the first-degree rape count, and convicted him of first-degree criminal sexual act for the July 10, 2006 Complainant A charge and third-degree rape for the March 18, 2013 Complainant B charge. The court sentenced defendant to consecutive terms on each count, an aggregate 23 years in prison, followed by five years’ postrelease supervision.

The Appellate Division affirmed (207 AD3d 33 [1st Dept 2022]). The Court concluded, as relevant here, that the tolling provisions of CPL 30.10 (4) applied and the third-degree rape prosecution was timely commenced. The Court also concluded that the trial court properly admitted the *Molineux* testimonies to show that defendant’s sole interest in the complainants was sexual and their consent was irrelevant to him because, during his prior experiences with the *Molineux* witnesses, he had, as he had done with complainants, expressed an interest in helping them and yet they “reacted negatively to defendant’s ad-

3. Defendant also proffered testimony of an expert on human memory but did not call them to the stand after the court limited both proposed experts’ testimonies to memory flaws in recovering traumatic events and precluded specific testimony about sexual assault memories.

vances” (*id.* at 65). This “demonstrate[d] to the jury that defendant knew that a woman would not consent to having sex with him merely as a quid pro quo for the assistance he could provide them in their professional career” (*id.*). The Court observed that the amount of *Sandoval* material on which the trial court permitted the prosecution to cross-examine defendant had he testified was “unquestionably large” but that “all of the material allowed by the court was unquestionably relevant” because “[a]llegations that defendant solicited lies or deception went directly to his credibility” and “[h]is abusive or violent behavior in business settings ‘reflected a willingness to place [his] self-interest above the interests of another person’ ” (*id.* at 68-69, quoting *People v Wells*, 51 AD3d 403, 403 [1st Dept 2008]). A Judge of this Court granted defendant leave to appeal (38 NY3d 1154 [2022]).

II.

Defendant claims that his third-degree rape conviction should be reversed because the prosecution was commenced beyond CPL 30.10 (2) (b)’s then-applicable five-year statute of limitations (*see* CPL former 30.10 [2] [b]).⁴ The prosecution of this count was undisputedly commenced 69 days after expiration of that limitations period, but the prosecution argued that CPL 30.10 (4) (a) tolled certain periods when defendant was not in New York. Defendant claims the tolling provision does not apply here because it applies only to nonresidents, he was not continuously outside the state within the meaning of the statute, and, in any case, CPL 30.10 (4) does not apply to those periods when law enforcement is unaware of the crime.

“The plain text of a statute is the best indicator of legislative intent and thus the proper starting place in discerning its meaning” (*Matter of Town of Irondequoit v County of Monroe*, 36 NY3d 177, 182 [2020]); *see also* *People v Cahill*, 2 NY3d 14, 117 [2003] [(“T)he plain meaning of the statutory text is the best evidence of legislative intent and, in fact, the only authoritative basis for interpretation”). The Court has “eschewed efforts to rewrite the statute to achieve what a court or advocate perceives to be a better outcome” (*People v Anonymous*, 34 NY3d 631, 643 [2020]) and has cautioned that “[w]here a statute describes the particular situations in which it is to apply

4. The statute was subsequently amended to its current version, which sets a 10-year limitations period (CPL 30.10 [2] [a-2]; L 2019, ch 315, § 2).

and no qualifying exception is added, an irrefutable inference must be drawn that what is omitted or not included was intended to be omitted or excluded” (*Matter of Alonzo M. v New York City Dept. of Probation*, 72 NY2d 662, 665 [1988] [internal quotation marks omitted]; see also McKinney’s Cons Laws of NY, Book 1, Statutes § 363, Comment, and the cases cited therein [(“A) court cannot amend a statute by inserting words that are not there, nor will a court read into a statute a provision which the Legislature did not see fit to enact. . . . (A) court cannot, by implication, read or supply in a statute a provision which it is reasonable to suppose the Legislature intentionally omitted”)]).

[1] Section 30.10 (4) (a) provides, in pertinent part, that, “[i]n calculating the time limitation applicable to commencement of a criminal action,” the time period “shall not” include “[a]ny period following the commission of the offense during which (i) the defendant was continuously outside this state or (ii) the whereabouts of the defendant were continuously unknown and continuously unascertainable by the exercise of reasonable diligence” (CPL 30.10 [4] [a]). Nowhere does this provision distinguish between residents and nonresidents and we cannot read into the statute a limitation not adopted by the legislature (see *Matter of Alonzo M.*, 72 NY2d at 665). If the legislature intended this tolling provision to apply only to nonresidents or that courts should factor residency into a tolling analysis, it would have said so expressly, as have several other jurisdictions.⁵

Defendant argues that CPL 30.10 (4) (a) has only been applied to cases involving nonresidents, relying principally on *People v Knobel*, where a nonresident defendant remained continually outside of New York, which this Court concluded thereby tolled the limitations period, adding that “all periods of a day or more that a nonresident defendant is out-of-State should be totaled and toll the Statute of Limitations” (94 NY2d 226, 230 [1999]). However, the *Knobel* Court did not hold that CPL 30.10 (4) (a) is limited to nonresidents, and the fact that

5. See e.g. Alaska Stat § 12.10.040 (a); Ariz Rev Stat § 13-107 (D); Conn Gen Stat § 54-193 (e); Idaho Code Ann § 19-404; 720 Ill Comp Stat 5/3-7 (a) (1); Ind Code § 35-41-4-2 (h) (1); Iowa Code § 802.6 (1); Mass Gen Laws ch 277, § 63; Mich Comp Laws § 767.24 (11); Minn State § 628.26 (1); Mont Code Ann § 45-1-206 (1); NM Stat Ann § 30-1-9; ND Cent Code § 29-04-04; Okla Stat tit 22, § 153; Or Rev Stat § 131.145 (2), (3); SD Codified Laws § 23A-42-5; Tenn Code Ann § 40-2-103; Wash Rev Code § 9A.04.080 (1), (2); Wis Stat § 939.74 (3).

Knobel and other courts have had occasion to apply the statute to nonresidents is simply a consequence of the particular facts of those cases. Nor does the statute contain any requirement that the tolling period apply once authorities know that a crime has been committed and, as with defendant's proposed exclusion for New York residents, we reject defendant's invitation to rewrite the statute to provide such limitation.

We also reject defendant's contention that he was not "continuously outside this state" during his brief absences from New York. This argument is based, in part, on his erroneous and now squarely rejected interpretation that CPL 30.10 (4) (a) should not apply to residents. To the extent defendant advocates for a lengthy temporal floor, *Knobel* instructs to the contrary, as the Court there held that "all periods of a day or more" during a defendant's absence from the state "should be totaled and toll the Statute of Limitations" (*id.*). Logically, then, even a day's absence counts. Moreover, defendant's absences would count even under his reading: he was outside of New York for a total of 200 days, including periods lasting up to two weeks. Defendant's policy arguments in support of his interpretation of the tolling provision are properly left to the legislature, the only body constitutionally authorized to enact and amend the statute.⁶

As the courts below properly concluded, defendant was outside of New York within the meaning of CPL 30.10 (4) (a) for a period of time that tolled the statute of limitations, and, therefore, the third-degree rape prosecution was timely commenced.

III.

A.

Defendant argues that admission of the *Molineux* witnesses' testimonies detailing sexual assaults he allegedly committed against them before and after the alleged offense conduct ran

6. Relying on *People v Quinto* (77 AD3d 76 [2d Dept 2010]) and quoting from *People v Jordan*, defendant claims, as he did before Supreme Court, that CPL 30.10 (4) (a) "cannot be read to exclude the period of time during which the police are unaware of the commission of the offense itself" (43 AD3d 1076, 1077 [2d Dept 2007]). Although this claim is preserved, the record contains no evidence regarding when the police became aware of the allegations that gave rise to the charged counts, leaving us without "a factual record sufficient to permit appellate review" of the question underlying his claim (see *People v Kinchen*, 60 NY2d 772, 774 [1983]).

afoul of *Molineux* and its progeny. We agree that this challenge has merit. Indeed, we reject the prosecution's theory, accepted by the Appellate Division and the dissenters here, that this testimony showed defendant's state of mind to use forcible compulsion against complainants and his understanding of their lack of consent. That analysis, if adopted, would eviscerate the time-tested rule against propensity evidence, which, in criminal cases, serves as a judicial bulwark against a guilty verdict based on supposition rather than proof, on "collateral matters or . . . because of [a defendant's] past" or on the defendant's "bad character" alone (*People v Alvino*, 71 NY2d 233, 241 [1987]).

In *Molineux*, the Court reaffirmed that the "general rule of evidence applicable to criminal trials is that the state cannot prove against a defendant any crime not alleged in the indictment, either as a foundation for a separate punishment, or as aiding the proofs that [they are] guilty of the crime charged" (168 NY at 291). The rule is simple: "[E]vidence of a defendant's uncharged crimes or prior misconduct is not admissible if it cannot logically be connected to some specific material issue in the case, and tends only to demonstrate the defendant's propensity to commit the crime charged" (*People v Denson*, 26 NY3d 179, 185 [2015] [internal quotation marks omitted]). The rule "is the product of that same humane and enlightened public spirit which, speaking through our common law, has decreed that every person charged with the commission of a crime shall be protected by the presumption of innocence until [they have] been proven guilty beyond a reasonable doubt" (*Molineux*, 168 NY at 291).

To illustrate the universal acceptance of the rule and "the reasons upon which it rests," *Molineux* quoted its earlier decisions and those of other state courts (168 NY at 291). For example, the *Molineux* Court noted, as far back as *Coleman v People*, the Court had explained:

"The general rule is against receiving evidence of another offense. A person cannot be convicted of one offense upon proof that [they] committed another, however persuasive in a moral point of view such evidence may be. It would be easier to believe a person guilty of one crime if it was known that [they] had committed another of a similar character, or, indeed, of any character; but the injustice of

such a rule in courts of justice is apparent. It would lead to convictions, upon the particular charge made, by proof of other acts in no way connected with it, and to uniting evidence of several offenses to produce conviction for a single one'” (*id.* at 292, quoting *Coleman v People*, 55 NY 81, 90 [1873]).

The Court also observed that, the following decade in *People v Sharp*, Judge Peckham observed in a separate opinion that

“‘[t]he general rule is that when a [person] is put upon trial for one offense [they are] to be convicted, if at all, by evidence which shows that [they are] guilty of that offense alone, and that, under ordinary circumstances, proof of [their] guilt of one or a score of other offenses in [their] lifetime is wholly excluded’” (*id.* at 291-292, quoting *People v Sharp*, 107 NY 427, 467 [1887, Peckham, J.]).

The *Molineux* Court recalled that, a few years later, Judge Peckham authored the majority opinion in *People v Shea* explaining:

“The impropriety of giving evidence showing that the accused had been guilty of other crimes merely for the purpose of thereby inferring [their] guilt of the crime for which [they are] on trial may be said to have been assumed and consistently maintained by the English courts ever since the common law has itself been in existence. Two antagonistic methods for the judicial investigation of crime and the conduct of criminal trials have existed for many years. One of these methods favors this kind of evidence in order that the tribunal which is engaged in the trial of the accused may have the benefit of the light to be derived from a record of [their] whole past life, [their] tendencies, [their] nature, [their] associates, [their] practices, and, in fine, all the facts which go to make up the life of a human being. This is the method which is pursued in France, and it is claimed that entire justice is more apt to be done where such course is pursued than where it is omitted. The common law of England, however, has adopted another and, so far as the party accused is concerned, a much more merciful doctrine. By that law the criminal is to be presumed innocent until [their] guilt is made to appear, beyond a rea-

sonable doubt, to a jury of 12 In order to prove [their] guilt it is not permitted to show [their] former character or to prove [their] guilt of other crimes, merely for the purpose of raising a presumption that [they] who would commit them would be more apt to commit the crime in question” (147 NY 78, 99 [1895], citing *Sharp*, 107 NY at 427).

The *Molineux* Court also cited cases from Massachusetts and Pennsylvania that were to a similar effect (see 168 NY at 293, citing *Commonwealth v Jackson*, 132 Mass 16, 19 [1882] [noting “the general rule that limits the trial to the immediate act for which the defendant is indicted”]; *Shaffner v Commonwealth*, 72 Pa 60, 65 [1872] [“It is a general rule that a distinct crime, unconnected with that laid in the indictment, cannot be given in evidence against a prisoner. It is not proper to raise a presumption of guilt, on the ground, that having committed one crime, the depravity it exhibits makes it likely (they) would commit another”])).

Molineux recognized exceptions by which evidence of other crimes could be used to prove the charged crime when such evidence

“tends to establish (1) motive; (2) intent; (3) the absence of mistake or accident; (4) a common scheme or plan embracing the commission of two or more crimes so related to each other that proof of one tends to establish the others; [and] (5) the identity of the person charged with the commission of the crime on trial” (168 NY at 293).

Although this list is not exhaustive (see *Denson*, 26 NY3d at 185), the Court’s *Molineux* jurisprudence “begin[s] with the premise that uncharged crimes are inadmissible and, from there, carve[s] out exceptions” (*People v Resek*, 3 NY3d 385, 390 [2004]).

In order to be admissible, *Molineux* evidence must “logically be connected to some specific material issue in the case” and be “directly relevant” to it (*Cass*, 18 NY3d at 559-560). The prosecution has the burden of showing this direct relevance (see *Denson*, 26 NY3d at 185, citing *Cass*, 18 NY3d at 560). In other words, “evidence of a defendant’s uncharged crimes or prior misconduct is not admissible if it cannot logically be connected to some specific material issue in the case, and tends only to demonstrate the defendant’s propensity to commit the crime charged” (*Denson*, 26 NY3d at 185 [internal quotation marks

omitted]). When “the proffered *Molineux* evidence is relevant to some material fact in the case, other than the defendant’s propensity to commit the crime charged, it is not to be excluded merely because it shows that the defendant had committed other crimes” (*id.* [internal quotation marks omitted]).

In reviewing a *Molineux* ruling, the Court engages in a two-step process. First, it evaluates whether the prosecution has “identif[ied] some issue, *other than mere criminal propensity*, to which the evidence is relevant” (*People v Hudy*, 73 NY2d 40, 55 [1988]). This “is a question of law, not discretion” and we review it de novo (*People v Telfair*, 41 NY3d 107, 114 [2023]). Second, if the evidence is relevant to an issue aside from propensity, the Court determines whether its “probative value exceeds the potential for prejudice resulting to the defendant” (*Alvino*, 71 NY2d at 242). At this step, “the trial court’s decision to admit the evidence may not be disturbed simply because a contrary determination could have been made or would have been reasonable. Rather, it must constitute an abuse of discretion as a matter of law” (*People v Morris*, 21 NY3d 588, 597 [2013]). However, “any substantial doubt” regarding how “to strike a neat balance between possible prejudice to the defendant, and the indispensability of the challenged evidence to the [prosecution’s] case . . . should weight the scales in favor of the defendant” (*People v Stanard*, 32 NY2d 143, 147 [1973]). If the Court concludes that the trial court abused its discretion by admitting *Molineux* evidence, the Court must determine whether the error was harmless or requires a new trial (*see e.g. People v Leonard*, 29 NY3d 1, 8 [2017]).

The *Molineux* ruling here fails at step one. The trial court admitted the evidence to show defendant’s forcible intent when he had sexual relations with complainants, rebut his claim of consent, and explain why complainants were “hesitant to report these assaults.” The prosecution argues that “the unusual nature of the entertainment industry . . . and defendant’s then-outsized role in [it],” popular “‘misconceptions’ about the behavior of sexual assault victims,” and the complainants’ acceptance of favors from him and, in one case, their continued consensual sexual relations with defendant following the assaults rendered their testimonies “equivocal” on the issue of defendant’s intent. Thus, the prosecution contends, the trial court properly admitted the three *Molineux* witnesses’ testimonies to show his unlawful intent.

[2] We disagree and conclude that, as a matter of law, the trial court erroneously held that the prosecution showed that

the *Molineux* witnesses' testimonies were necessary for a non-propensity purpose (see *Hudy*, 73 NY2d at 55). First, the complainants' respective testimonies were not "equivocal" on the issue of consent. Complainant A described a violent, forcible sexual assault as well as her efforts to resist by kicking and pushing defendant. Complainant B testified that defendant physically blocked her attempt to leave the hotel room in March 2013 and that, when she did not comply with his demand that she undress, he grabbed her hand to force compliance. Complainant C testified that defendant lunged at her and that, when she tried to walk away, defendant used his weight to lead her to the bedroom where she fell backward onto the bed. She tried to leave but he pushed her back. She kicked and pushed to get away, but defendant used physical force to hold her down with her hands above her head and then forced himself on her as she cried and continued to say "no."

There is no equivocality regarding consent when a person says "no" to a sexual encounter, tries to leave, and attempts to physically resist their attacker before succumbing to the attacker's brute physical force. No reasonable person would understand such behavior as having communicated anything other than their rejection of sexual activity. Indeed, a contrary proposition perversely turns the concept of consent on its head. Simply put, there is nothing consensual about the conduct complainants described. Thus, even though the prosecution contends (and the Appellate Division agreed) that the jury could believe complainants' recollections of the sexual attacks yet still believe that defendant thought they were consenting to the sex, we conclude that such is inconceivable. Complainants' descriptions of events belie any such equivocation in the moment.⁷

Nor did the fact that complainants maintained relationships with defendant—some sexual—before and after the alleged as-

7. Even the treatise that Judge Singas quotes comments that "it is possible, *albeit unlikely*, for a complainant to testify truthfully that she did not consent to sexual intercourse and that the defendant raped her, and the defendant to raise an honest defense of mistake" (Singas, J., dissenting op at 474 [emphasis added], quoting Richard A. Greenberg, Martin Marcus & Lynn W.L. Fahey, *New York Criminal Law* § 7:2 [4th ed, 6 West's NY Prac Series, Dec. 2023 update]). Based on complainants' accounts here, any claim by defendant that he made a mistake in the moment would have been implausible and, perhaps for this reason, that was not his defense. In that respect, Judge Singas's reference to this class of cases is irrelevant.

saults giving rise to the instant charges necessitate introduction of the *Molineux* witnesses' testimonies to show defendant's forcible intent. As the Court has explained, where the crime requires the prosecution to prove forcible compulsion, "[t]he intent required is the intent to perform the prohibited act—i.e., the intent to forcibly compel another to engage" in the sexual act (*People v Williams*, 81 NY2d 303, 316-317 [1993]). And, when it comes to *Molineux*, "evidence sought to be introduced to prove a defendant's *intention* in the crime charged, the probative balance has generally warranted admission of this evidence only where the acts involved in the crimes charged are equivocal so that intention is not easily inferred from the acts alone" (*People v McKinney*, 24 NY2d 180, 184 [1969] [internal quotation marks omitted]). In other words, "[e]vidence of prior criminal acts to prove intent will often be unnecessary, and therefore should be precluded even though marginally relevant, where intent may be easily inferred from the commission of the act itself" (*Alvino*, 71 NY2d 233, 242 [1987]). Here, this proposed basis for admitting the *Molineux* witnesses' testimonies is a candid acknowledgement that the true purpose of this evidence was to bolster complainants' credibilities by showing that others behaved similarly towards defendant even after he made unwanted sexual demands. Of course, this is an impermissible propensity purpose and the trial court therefore should not have admitted the evidence (*see Molineux*, 168 NY at 291).

In reaching this legal conclusion, we take no "step backwards from recent advances in our understanding of how sex crimes are perpetrated and why victims sometimes respond in seemingly counterintuitive ways" (Cannataro, J., dissenting op at 488) and we do not "shut[] [our] eyes to the enduring effect of rape culture on notions of consent, and intent" (Singas, J., dissenting op at 477-478), as the respective dissents assert.⁸ On the contrary, consistent with our judicial role, our analysis is

8. Judge Singas discusses various academic theories redefining consent. They are not the law. Moreover, as two law journal student notes Judge Singas references observe (*see Singas, J., dissenting op at 481 n 8*), as part of an effort to combat campus sexual assault, the legislature in 2015 imposed on institutions of higher learning a uniform definition of "affirmative consent" which "is a knowing, voluntary, and mutual decision among all participants to engage in sexual activity" that "can be given by words or actions, as long as those words or actions create clear permission regarding willingness to engage in the sexual activity" but under which "[s]ilence or lack of resistance, in and of itself" is insufficient (Education Law § 6441 [1]). This definition is

(n. cont'd)

grounded on bedrock principles of evidence and the defendant's constitutional right to the presumption of innocence and a fair trial. Judge Singas would ignore these principles because, in her view, they fail to account for how rape myths distort jurors' perceptions of victims, and corrupt the deliberative process (*see id.* at 477-484).⁹ But justice for sexual assault victims is not incompatible with well-established rules of evidence designed to ensure that criminal convictions result only from the illegal conduct charged. Indeed, just as rape myths may impact the trier of fact's deliberative process, propensity evidence has a bias-inducing effect on jurors and tends to undermine the truth-seeking function of trials. Thus, “[w]hen we limit *Molineux* or other propensity evidence, we do so for policy reasons, due to fear of the jury’s ‘human tendency’ to more readily ‘believe in the guilt of an accused person when it is known or suspected that [they have] previously committed a similar crime’ ” (*People v Brewer*, 28 NY3d 271, 276 [2016], quoting

not part of the Penal Law and, indeed, some commentators have highlighted potential constitutional problems that might arise from its importation into the criminal law (*see e.g.* Aya Gruber, *Consent Confusion*, 38 Cardozo L Rev 415, 449-451 & n 176 [2016] [contending that, when integrated into the criminal law, “strict affirmative consent standards criminalize a significant amount of wanted, consensual sex” that might violate substantive due process under *Lawrence v Texas* (539 US 558, 578 [2003])]).

9. Judge Singas correctly acknowledges that “[v]ictims of color are especially disadvantaged, through the intersection of rape and racial mythology, by harmful stereotypes that ascribe heightened sexuality to these victims” (Singas, J., dissenting op at 480). However, racial and ethnic stereotypes and express and implicit bias also play a significant role in the failures of our criminal legal system, as “men of color . . . are still more likely than white men to be falsely accused, falsely arrested[,] [a]nd, yes, even falsely convicted” (Hon. Barbara Madsen, *Racial Bias in the Criminal Justice System*, 47 Gonz L Rev 243, 245 [2011-2012]). Erosion of our precedents that limit the introduction of uncharged conduct in the manner our dissenting colleagues suggest would only amplify the risk that biased jurors would justify a vote to convict defendants of color on such uncharged conduct in cases where the evidence supporting the charged conduct is weak—an all too real phenomenon (*see* Brandon L. Garrett, *Judging Innocence*, 108 Colum L Rev 55, 66-67 [2008] [observing that a study of the first 200 defendants exonerated by DNA evidence, “73% of innocent rape convicts were Black or Hispanic, while one study indicates that only approximately 37% of all rape convicts are minorities”]; *see also* Death Penalty Information Center, *DPIC Special Report: The Innocence Epidemic* at 19 [Feb. 18, 2021], available at <https://dpic-cdn.org/production/documents/pdf/The-Innocence-Epidemic.pdf?dm=1683576587> [last accessed Mar. 28, 2024] [study concluding that “63.8% of wrongfully convicted death-row exonerees are people of color, 53.5% of whom are Black”]). Hollowing out the *Molineux* rule will not end systemic racism, but it may very well exacerbate societal injustices replicated within our courts.

People v Ventimiglia, 52 NY2d 350, 359 [1981], citing *Molineux*, 168 NY at 313).

And while the *Molineux* rule addresses jurors' reliance on propensity evidence, contrary to the dissenters' suggestion, we have a means to address jurors' possible disinclination to believe sexual assault victims who act in ways that appear contrary to the jurors' experiences or views (see Cannataro, J., dissenting op at 491-493; Singas, J., dissenting op at 485-486). The proper method for dispelling rape myths in "nuanced and complex" cases (Singas, J., dissenting op at 488) is the one deployed by the prosecution here: educating jurors about rape myths and social misperceptions about sexual assault with expert testimony explaining rape trauma and survivor responses (see *Taylor*, 75 NY2d at 288-289).¹⁰ Specifically, testimony from the prosecution's expert provided non-propensity evidence that addressed what some jurors might have seen as counter-intuitive acts by complainants when they continued to interact with defendant, and contextualized conduct associated with rape trauma. As the expert explained to the jury, her professional work with sexual assault victims led her to conclude that many victims often maintain contact with their attackers out of fear the attacker will retaliate. That testimony was particularly crucial here.

Judge Singas asserts that this Court's decision will have adverse effects on other prosecutions. She claims, for example, that "instances in which a trafficker repeatedly leverages workers' undocumented status to coerce them into sex, or a restaurant manager withholds tips from his employees unless they perform sexual acts" will become "a series of individual 'credibility contests' and unrelated 'misunderstandings'" (Singas, J., dissenting op at 487). However, cases involving such "repeated" conduct likely would feature—much like this case did—direct evidence in the form of testimony from multiple complainants. Judge Singas assumes, with no empirical data, that few such cases involve evidence aside from victim

10. Judge Singas misconstrues our acknowledgment of this *Molineux*-compliant technique for combating rape myths as a "conclusion that the *Molineux* evidence was not necessary" and that it was "cumulative" in light of this "other evidence to dispel rape mythology" (Singas, J., dissenting op at 486-487). At no point does our analysis turn the admissibility of the *Molineux* witnesses' testimonies on the availability of other evidence to accomplish this same end. Rather, we hold that their testimonies served no non-propensity purpose as a matter of law. Incidentally, the *Molineux* witnesses did not dispel rape myths anyway, given that they *rejected* defendant's advances.

testimony. In fact, many trafficking cases feature much more than that (see e.g. *People v Lamb*, 37 NY3d 1174, 1175-1177, 1187-1188 [2021, Singas, J., concurring] [summarizing sex trafficking case featuring evidence of online advertisements, phone records, emails, and photographs of unconscious victims, in addition to victim testimony]). The *Molineux* rule has not and will not, based on its application to this appeal, present an obstacle to prosecution of such cases, notwithstanding Judge Singas' exaggerated claims to the contrary.

Moreover, this was not a single-victim prosecution where there arguably is a heightened risk that rape myths could impair the jury's fact-finding and credibility determinations. Instead, three complainants testified to defendant's violent actions on different occasions, years apart, and how they behaved toward him long afterwards. There also were significant differences between complainants and the *Molineux* witnesses. All three complainants had long-term relationships with defendant, whereas the *Molineux* witnesses each interacted with defendant for brief periods. And Complainant B explained that she maintained a consensual sexual relationship with defendant following the alleged criminal conduct, whereas none of the *Molineux* witnesses testified about consensual sex with defendant at all.

Nor, as the prosecution contends, did "the unusual nature of the entertainment industry" and defendant's stature within it require admission of the *Molineux* witnesses' testimonies to show defendant's forcible intent or awareness of complainants' lack of consent during the alleged crimes. According to this argument, defendant might have thought complainants consented in order to advance their careers. The argument has a historical basis:

"The casting couch—where, as the story goes, aspiring actresses had to trade sexual favors in order to win roles—has been a familiar image in Hollywood since the advent of the studio system in the 1920s and '30s. Over time, the phrase has become emblematic of the way that sexual aggression has been normalized in an industry dominated by powerful men" (Ben Zimmer, 'Casting Couch': *The Origins of a Pernicious Hollywood Cliché*, *The Atlantic* [Oct. 16, 2017], available at <https://www.theatlantic.com/entertainment/archive/2017/10/casting-couch-the-origins-of-a-pernicious-hollywood-cliche/543000/> [last accessed Apr. 4, 2024]).

This perverse quid pro quo—i.e., “unwanted sexual relations imposed by superiors on subordinates at work”—however, is not unique to the entertainment industry and “is centuries old” (Reva B. Siegel, *Introduction: A Short History of Sexual Harassment* in Catherine A. MacKinnon & Reva B. Siegel, *Directions in Sexual Harassment Law* at 3 [2004]). Within such a dynamic, an employer, supervisor, executive, or coworker with some power either offers to help—or agrees not to hinder—a victim’s career—a historical reality especially for women because of the historical subjugation of women and their exclusion from positions of influence and power (see Marion Crain & Ken Matheny, *Sexual Harassment and Solidarity*, 87 Geo Wash L Rev 56, 71 [2019] [(Q)uid pro quo harassment . . . occurs when a supervisor with the power to grant job-related rewards or impose discipline conditions the receipt of the reward or threatens discipline contingent on the victim’s willingness to confer sexual favors (e.g., ‘sleep with me and I’ll promote you’ or ‘sleep with me or I’ll fire you’)]; *id.* at 74 [(M)uch gender-based harassment, especially hostile work environment harassment, is not driven by sexual desire and may not even be sexual in content. Instead, it takes the form of undermining women’s competence to perform their jobs” (footnote omitted)]; *Sexual Harassment Claims of Abusive Work Environment Under Title VII*, 97 Harv L Rev 1449, 1454 [1984] [(Q)uid pro quo sexual harassment, is harassment that forces an employee to choose between acceding to sexual demands or forfeiting job benefits, continued employment, or promotion” (footnote omitted)]). But this is all irrelevant to whether defendant intended to use force during the course of the alleged offense conduct (see *Williams*, 81 NY2d at 317-318). Here, complainants testified that defendant used force and, thus, his intent to commit the crime would have been established if the jury believed their accounts and concluded that force was used. But the *Molineux* witnesses’ prior experiences with defendant had no bearing on whether defendant used force against complainants.

Testimonies from three individuals about their own unwanted sexual encounters with defendant were therefore “unnecessary” (*Alvino*, 71 NY2d at 242). Instead, the testimony served to persuade the jury that, if he had attempted to coerce those three witnesses into nonconsensual sex, then he did the same to the victims on the dates and under the circumstances as charged. That is pure propensity evidence and it is inadmissible against a criminal defendant under *Molineux* and its century-old progeny (see *Hudy*, 73 NY2d at 55).

This case bears some noteworthy similarities to *People v Vargas* (88 NY2d 856 [1996]). There, the complainant told the police that the defendant followed her into her apartment building and dragged her to the rooftop where he raped and sodomized her (*id.* at 857). She testified that, thinking it would later facilitate his apprehension, she exchanged phone numbers with the defendant and agreed to meet him the next day at his apartment, where she had consensual sex with him (*id.*). The defendant told police that he met the victim in the neighborhood and that she took him to the rooftop of her apartment building, where they had consensual sex (*id.*). The trial court ruled that, given the defendant's consent defense, the prosecution could, under *Molineux*, present testimony from four other women that the defendant had committed sexual misconduct against them, and, in response, the defendant abandoned his consent defense and a jury later convicted him on a host of counts, including first-degree rape (*id.* at 857-858; *see also People v Vargas*, 215 AD2d 415, 416 [2d Dept 1995] [listing the convicted counts]). This Court reversed his conviction on various sexual offenses, holding that the trial court wrongly admitted the testimonies of the other women to show the defendant's intent (*id.* at 858). The Court's analysis there applies with equal force here:

“[T]wo starkly contrasting scenarios were presented, with only credibility in issue. If the trier of fact believed defendant's version of events, complainant consented to a sexual encounter with him on the night of February 22, 1992. If the trier of fact found complainant more credible, defendant used force and threats to rape her, with intent readily inferable from the acts alleged. As in *Hudy* (73 NY2d at 56), the prior misconduct evidence was relevant only to lend credibility to complainant by suggesting that, because defendant had engaged in sexual misconduct with others, he was likely to have committed the acts charged. The evidence therefore was improperly ruled admissible” (*id.*).

Judge Singas attempts to distinguish *Vargas* because that case involved a “stranger rape” and chides us for not doing the same (Singas, J., dissenting op at 475-476, 481-482). Here, of course, we engage in a straightforward analysis that applies *Vargas*'s animating legal principles. Thus, it is Judge Singas—not this Court—who “misses” the relevant point (*id.* at 481) that here,

as in *Vargas*, defendant's intent was "easily inferred from the commission of the act[s] [themselves]" as recounted by complainants in a case that boiled down to a credibility contest for the jury to evaluate (88 NY2d at 858).

In sum, we conclude that the testimony from the *Molineux* witnesses was unnecessary to establish defendant's intent and served only to establish defendant's propensity to commit the crimes charged. Neither the prosecution nor the trial court "identif[ied] some issue, *other than mere criminal propensity*, to which the evidence is relevant" (*Hudy*, 73 NY2d at 55), and therefore its admission during the prosecution's case-in-chief was error.

B.

Defendant also claims that the trial court's *Sandoval* ruling violated his right to testify. For the reasons we discuss below, the trial court abused its discretion when it ruled that defendant, who had no criminal history, could be cross-examined about prior, uncharged alleged bad acts and despicable behavior which was immaterial to his in-court credibility, and which served no purpose other than to display for the jury defendant's loathsome character. The ruling necessarily and impermissibly impacted defendant's decision whether to take the stand in his defense and thus undermined the fact-finding process in this case, which turned on the credibility of the parties.

Under *Sandoval*, a trial court may "make an advance ruling as to the use by the prosecut[ion] of prior convictions or proof of the prior commission of specific criminal, vicious or immoral acts for the purpose of impeaching a defendant's credibility" (34 NY2d at 374 [citations omitted]). "When evidence of other crimes has no purpose other than to show that a defendant is of a criminal bent or character and thus likely to have committed the crime charged, it should be excluded" (*People v Schwartzman*, 24 NY2d 241, 247 [1969]). The trial court must strike a balance

"between the probative worth of evidence of prior specific criminal, vicious or immoral acts on the issue of the defendant's credibility on the one hand, and on the other the risk of unfair prejudice to the defendant, measured both by the impact of such evidence if it is admitted after [their] testimony

and by the effect its probable introduction may have in discouraging [them] from taking the stand on [their] own behalf” (*Sandoval*, 34 NY2d at 375).

This category of evidence “will always be detrimental to the defendant” and “will have a propensity to influence the jury or the court” (*id.* at 376). Thus, to ensure that the defendant is not deprived of a fair trial the court must consider whether the evidence will “have a disproportionate and improper impact on the triers of fact,” and “undesirably deter the defendant from taking the stand and thereby deny the jury or court significant material evidence” (*id.*).

“In weighing prejudice to the defendant’s right to a fair trial, an important consideration may be the effect on the validity of the fact-finding process if the defendant does not testify out of fear of the impact of the impeachment testimony for reasons other than its direct effect on [their] credibility—as where the defendant would be the only available source of material testimony in support of [their] defense” (*id.* at 378).

We review *Sandoval* determinations for abuse of discretion (see *People v Walker*, 83 NY2d 455, 459 [1994]).

Prior crimes and vicious and immoral conduct evidence includes that which shows “a willingness or disposition on the part of the particular defendant voluntarily to place the advancement of [their] individual self-interest ahead of principle or of the interests of society,” because such proof “may be relevant to suggest [the defendant’s] readiness to do so again on the witness stand” (*Sandoval*, 34 NY2d at 377). In other words, even if the evidence did not “necessarily involve[] an act of dishonesty—like perjury, fraud, bribery and similar offenses,” evidence that the defendant committed a “ruthless” act “voluntarily and deliberately” supports the notion, that the defendant “may well disregard an oath and resort to perjury if [they] perceive[] that to be in [their] self-interest” (*People v Bennette*, 56 NY2d 142, 148 [1982]). This basis for admitting *Sandoval* evidence is, by its terms, broad and vague. Accordingly, courts must be judicious in resting *Sandoval* rulings upon it, lest acts of common selfishness lead to mini-trials on the defendant’s character that distract the jury from the crimes charged. The question for trial courts at all times is whether the evidence shows a defendant’s “lack of in-court veracity” (*Sandoval*, 34 NY2d at 377). If so, the evidence may be admit-

ted—but only if not unduly prejudicial—for the “limited purpose of attacking credibility” (*id.* at 373 n 1).

[3] Here, the trial court’s *Sandoval* ruling—to the extent it permitted the prosecution to cross-examine defendant about bullying and fits of anger towards employees, restaurant workers, and business associates—was an abuse of discretion.¹¹ Defendant had no criminal history, many of the acts approved for cross-examination by the court were not criminal in nature and had little if any “probative value as to [defendant’s] lack of in-court veracity,” while also prejudicing the jury against defendant (*id.* at 377). Far in excess of what *Sandoval* and its progeny allow, the court ruled that the prosecution could ask defendant details about whether he allegedly: verbally abused an employee and also threw food at another worker; bullied, overworked and verbally abused his personal assistant; pulled out of business deals; threw staplers and other objects at people; punched his brother at a business meeting; threatened executives in his office; and photoshopped the head of an actress onto the nude body of another without consent.

Without question, this is appalling, shameful, repulsive conduct that could only diminish defendant’s character before the jury. But *Sandoval* does not legitimize destroying a defendant’s character under the guise of prosecutorial need. Quite to the contrary, because trial courts have a responsibility to carefully balance the prosecution’s interest in attacking the defendant’s credibility against the defendant’s constitutional rights to a fair trial and to testify on their own behalf (*see id.* at 376-378).

Judge Cannataro attempts to cast our correction of this piece of the *Sandoval* ruling as a byproduct of a general “‘disagreement with the ultimate outcome of the trial court’s discretionary balancing determination’” (Cannataro, J., dissenting op at 495, quoting *Walker*, 83 NY2d at 459). The nuance of our holding, which actually leaves much of the trial court’s *Sandoval* determination intact, is more than enough to show that he is mistaken. This is not a case where “the trial court might have been more discriminating” but was nonetheless within its discretion (*Walker*, 83 NY2d at 458). Rather, the trial court here abused its discretion as a matter of law when it ruled that the prosecution could cross-examine defendant on a broad

11. The remainder of the *Sandoval* ruling was a proper exercise of the court’s discretion.

swath of uncharged misconduct that did not bear on his credibility. Far from “invert[ing] *Sandoval*,” as Judge Cannataro charges (Cannataro, J., dissenting op at 496), we heed it in its original form and apply it straightforwardly to rectify a branch of a ruling that necessarily “undesirably deter[red] the defendant from taking the stand” and thereby “den[ied] the jury . . . significant material evidence” (*Sandoval*, 34 NY2d at 376).

C.

[4] The *Molineux* and *Sandoval* rulings had a synergistic effect that deprived defendant of his right to a fair trial. This was a case—like many other sexual assault prosecutions—where the complainant and the defendant are the only ones who know for certain what happened. Here, the *Molineux* witnesses’ testimony bolstered complainants’ testimony, thereby impacting the jury’s credibility determination. As the Appellate Division observed, the evidence of uncharged acts would show that defendant demanded sexual favors from aspiring female actors, in return for promises of help with their careers, regardless of their agreement to this quid pro quo. The testimony of the three *Molineux* witnesses—although framed as evidence of defendant’s intent to use forcible compulsion and his awareness of the victims’ lack of consent—was, in courtroom reality, evidence of his propensity to commit the crimes charged. This was not the sole error of constitutional dimension. The erroneous *Sandoval* ruling allowing the prosecution to cross-examine defendant about allegations of charged and uncharged bad acts was breathtakingly inclusive of behavior that was loathsome but not the type of conduct that would assist the jury in measuring his credibility on the stand. The ruling thus served to discourage defendant from exercising his rights to present a defense and testify on his behalf. Together these errors deprived defendant of the “self-standing” constitutional right to a fair trial, “and proof of guilt, however overwhelming, can never be permitted to negate this right” (*People v Crimmins*, 36 NY2d 230, 238 [1975]; see also *Estelle*, 425 US at 503).

Even if that were not the case, and if we assumed that these errors were subject to our nonconstitutional harmless-error analysis, we would not deem them harmless.¹² A *Molineux* error “may be found harmless where ‘the proof of the defendant’s

12. Because we are ordering a new trial, we do not address defendant’s claim that the trial court violated the Federal and State Constitutions when

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guilt, without reference to the error, is overwhelming' and where there is no 'significant probability . . . that the jury would have acquitted the defendant had it not been for the error' " (*People v Arafet*, 13 NY3d 460, 467 [2009], quoting *Crimmins*, 36 NY2d at 241-242). The standard applied to nonconstitutional *Sandoval* errors is substantively the same (see *People v Grant*, 7 NY3d 421, 424 [2006] [citation omitted]). Finally, in assessing harmless error, the Court considers all trial errors "cumulatively" (*People v Wing*, 63 NY2d 754, 756 [1984]).

Here, "the whole case turned on a very close question of credibility"—the core choice the jury had to make was whether to believe the complainants' respective versions of events (*People v Williamson*, 40 NY2d 1073, 1074 [1976]; cf. *Benn v Greiner*, 402 F3d 100, 106 [2d Cir 2005] [reversing habeas grant because the "case did not present a 'he said, she said' scenario of two persons, one of whom claimed a sexual encounter was consensual and the other of whom claimed it was not—a scenario in which the exclusion of cross-examination regarding past unverified accusations might well have contributed to the jury verdict in a substantial and injurious way"])). Moreover, the jury had to consider evidence that, both before and after the alleged offense conduct, complainants were outwardly friendly with defendant and maintained personal contacts—and in the case of Complainant B, a years-long relationship that included consensual sex. The jury then had to weigh this evidence against defendant's expert evidence about the effects of trauma on memory and the prosecution's expert's testimony that, contrary to public misperceptions about how "credible" victims respond, sexual assault survivors often exhibit this same behavior.

Even if we were to regard the evidence against defendant as "overwhelming," there remains a " 'significant probability' " that, absent the trial court's erroneous *Molineux* ruling, "the jury would have acquitted the defendant" (*Arafet*, 13 NY3d at 467, quoting *Crimmins*, 36 NY2d at 241-242). And, though "harmless-error analysis in the context of *Sandoval* 'does not involve speculation as to whether a defendant would have testified if the legal error had not occurred' " (*Grant*, 7 NY3d at 425, quoting *People v Williams*, 56 NY2d 236, 240 [1982]), the erroneous *Sandoval* determination here "might have affected

it declined, first, to discharge a prospective juror and then again once the juror was seated.

defendant's decision whether to testify and provide critical information" (*Williams*, 56 NY2d at 241). Thus, neither error was harmless.

IV.

"How different is our own common law, which is the product of all the wisdom and humanity of all the ages. Under it the accused comes into a court of justice, panoplied in the presumption of innocence, which shields [them] until [their] guilt is established beyond a reasonable doubt. [Their] character can be thrown into the balance by no one but [themselves]. The incidents of [their] life, not connected with the crime charged, are [their] sacred possession. [They] face[] [their] accuser in the light of a distinct charge, with the assurance that no other will be, or can be, proved against [them]" (*Molineux*, 168 NY at 310).

These words are no less true and vital today as they were when first written by this Court in 1901. Over a century later, we reaffirm that no person accused of illegality may be judged on proof of uncharged crimes that serve only to establish the accused's propensity for criminal behavior. At trial, a defendant stands to account for the crimes as charged. Proof of prior crimes and uncharged bad acts are the rare exception to this fundamental rule of criminal law.

Similarly, under *Sandoval*, cross-examination of the defendant with allegations concerning prior convictions or proof of prior "specific criminal, vicious or immoral acts" is impermissible except to the extent it bears on the defendant's credibility. Thus, it is an abuse of judicial discretion to permit untested allegations of nothing more than bad behavior that destroys a defendant's character but sheds no light on their credibility as related to the criminal charges lodged against them.

The trial court's rulings ran afoul of these time-honored rules of evidence. Accordingly, the order of the Appellate Division should be reversed, and a new trial ordered.

SINGAS, J. (dissenting). Fundamental misunderstandings of sexual violence perpetrated by men known to, and with significant power over, the women they victimize are on full display in the majority's opinion. By whitewashing the facts to conform to a he-said/she-said narrative, by ignoring evidence of defendant's manipulation and premeditation, which clouded issues of intent, and by failing to recognize that the jury was entitled to

consider defendant's previous assaults, this Court has continued a disturbing trend of overturning juries' guilty verdicts in cases involving sexual violence. The *Molineux* rule—created by this Court—has never been static. Instead, its use has evolved over time to meet the challenges of complex criminal prosecutions. Unfortunately, in the context of sexual assault, that evolution lapses today with a decision that has all but ended the use of *Molineux* evidence in such cases. I fully join Judge Cannataro's dissent but write separately to highlight how the majority's determination perpetuates outdated notions of sexual violence and allows predators to escape accountability.

The overarching issue presented by this case is whether the trial court properly admitted evidence of defendant's prior sexual assaults. Whether such *Molineux* evidence—i.e., evidence of a defendant's prior crimes and other bad acts—is admissible is guided by a two-step analysis. First, a court must consider whether the evidence is relevant to a material issue other than defendant's criminal propensity (e.g., intent). If the evidence is relevant for an appropriate purpose, the court must then determine whether it should be excluded for other reasons, such as its lack of probative value or risk of undue prejudice (see *People v Denson*, 26 NY3d 179, 185-186 [2015]). Remarkably, the majority holds that the proffered evidence fails at “step one,” concluding that evidence of defendant's past sexual assaults was irrelevant to this case (majority op at 458). The majority does not hold, under “step two,” that this evidence was too overwhelming, too dissimilar from the charged crimes, too remote in time, or too prejudicial. Rather, it concludes that additional evidence of defendant's intent is not relevant to the issues the jury needed to decide, as a matter of law, because no rational person could accept the victims' testimony recounting the violence committed against them and have any lingering doubts as to defendant's state of mind.

While the majority's holding may, at first glance, appear to endorse a utopic vision of sexual assault prosecution in which a victim's word is paramount, the reality is far bleaker. Critically missing from the majority's analysis is any awareness that sexual assault cases are not monolithic and that the issue of consent has historically been a complicated one, subject to vigorous debate, study, and ever-evolving legal standards (see *People v Regan*, 39 NY3d 459, 475-482 [2023, Singas, J., dissenting]). By ignoring the legal and practical realities of proving a lack of consent, the majority has crafted a naïve narrative: that within the most fraught and intimate settings, intent

is readily apparent, and issues of consent easily ascertained. This conclusion deprives juries of the context necessary to do their work, forecloses the prosecution from using an essential tool to prove intent, ignores the nuances of how sexual violence is perpetrated and perceived, and demonstrates the majority's utter lack of understanding of the dynamics of sexual assault. Because New York's women deserve better, I dissent.

I.

Defendant was charged with one count of criminal sexual act in the first degree, one count of rape in the first degree, one count of rape in the third degree, and two counts of predatory sexual assault. An element of each is “that the sexual act was committed without consent of the victim” (Penal Law § 130.05 [1]). Defendant's theory throughout the case was that the victims consented to the sexual acts, and that he had ongoing, quid pro quo relationships with them. His position was that his victims were using him, a Hollywood producer of immense stature and influence, to further their careers—that his victims willingly exchanged sexual favors for professional ones—and the parties shared this understanding. The defense drew the jury's attention to the jobs defendant secured for his victims, the roles they auditioned for, the scripts they sent him, the parties and movie premieres they asked to attend, and the things he bought for them. In the world the defense painted for the jury, “[s]he was going to do anything she needed to do to have the career that she wanted to have.” Simply put, “this is not a sexual assault. This is someone who agrees to do what has then been discussed.” The manner in which the case was defended made this point clear—in defendant's mind, these were consensual transactions and she “made him believe that [she] wanted to be there.”

A.

Because consent was at the heart of this case, the People necessarily had to demonstrate a lack of it. The People may prove “that the sexual act was committed without consent of the victim” through evidence of forcible compulsion (Penal Law § 130.05 [1]).¹ “The intent required is the intent to perform the prohibited act—i.e., the intent to forcibly compel another to

1. As to third-degree rape, in addition to forcible compulsion, the People may prove a lack of consent under a different subsection by demonstrating that “the victim clearly expressed that he or she did not consent to engage in

(n. cont'd)

engage” in the sexual act (*People v Williams*, 81 NY2d 303, 316-317 [1993]).² A finding of intent to forcibly compel “necessarily” involves a finding “that [a] defendant[] *believed* the victim did not consent to the sexual activity” (*id.* at 317 [emphasis added]).

Accordingly, in order to prove forcible compulsion, the People were required to demonstrate not only that defendant used force, but that defendant used force believing that the victim did not consent. Indeed,

“it is possible, albeit unlikely, for a complainant to testify truthfully that she did not consent to sexual intercourse and that the defendant raped her, and the defendant to raise an honest defense of mistake in that he believed she was consenting and, therefore, that he lacked the intent required for rape. Under New York law, a good faith mistake that negates the mens rea necessary to commit a crime is a defense. In such a situation, if the jury believes both parties, it must acquit the defendant” (Richard A. Greenberg, Martin Marcus & Lynn W.L. Fahey, New York Criminal Law § 7:2 [4th ed, 6 West’s NY Prac Series, Dec. 2023 update] [emphasis omitted]).

The People therefore sought to prove defendant’s “intent to forcibly compel” his victims (*Williams*, 81 NY2d at 317)—and necessarily the absence of any mistake as to consent—through the testimony of witnesses regarding their experiences of non-consensual encounters with defendant under similar circumstances. After interviewing “over 100 people,” the prosecution limited their application to five witnesses. The trial court further winnowed this evidence to three witnesses and granted the People’s application.

B.

This Court decided *People v Molineux* (168 NY 264 [1901]) more than a century ago, “but its foundation remains unchanged: a criminal case should be tried on the facts and not

such act, and a reasonable person in the actor’s situation would have understood such person’s words and acts as an expression of lack of consent to such act under all the circumstances” (Penal Law § 130.05 [2] [d]).

2. “‘Forcible compulsion’ means to compel by either” the “use of physical force” or “a threat, express or implied, which places a person in fear of immediate death or physical injury to [themselves] or another person, or in fear that [they] or another person will immediately be kidnapped” (Penal Law § 130.00 [8] [a], [b]).

on the basis of a defendant's propensity to commit the crime charged" (*People v Rojas*, 97 NY2d 32, 36 [2001]; see *People v Cass*, 18 NY3d 553, 559 [2012]). " '[T]he familiar *Molineux* rule states that evidence of a defendant's uncharged crimes or prior misconduct is not admissible if it cannot logically be connected to some specific material issue in the case, and tends only to demonstrate the defendant's propensity to commit the crime charged' " (*Denson*, 26 NY3d at 185, quoting *Cass*, 18 NY3d at 559; see *People v Frumusa*, 29 NY3d 364, 369 [2017]). But "evidence of uncharged crimes and prior bad acts may be admitted to prove the specific crime charged when it tends to establish" a defendant's "intent" (*Cass*, 18 NY3d at 560; see *Denson*, 26 NY3d at 185) or "state of mind" (*People v Ingram*, 71 NY2d 474, 476 [1988]). "Admission of such proof—where intent cannot be inferred from the act or where [the] defendant claims [they] acted innocently—is founded on the law of probabilities. The theory is that the more often the act constituting the crime has been done, the less the likelihood that it could have been done innocently, as if by chance" (*id.* at 479). "It is the duplication of the inculpatory conduct which makes the innocent explanation improbable" (*id.* at 480; cf. *People v Caban*, 14 NY3d 369, 375 [2010] ["a defendant who is repeatedly negligent in the same way may be found to be unable or unwilling to learn from (their) mistakes"]). When "the proffered *Molineux* evidence is relevant to" intent, "it is not to be excluded merely because it shows that the defendant ha[s] committed other crimes" (*Cass*, 18 NY3d at 560).

Whether *Molineux* evidence is admissible to prove a defendant's intent depends on whether "intent may be easily inferred from the commission of the act itself" (*People v Alvino*, 71 NY2d 233, 242 [1987]). Where a defendant's intent is obvious from the action itself, evidence that the defendant engaged in similar conduct on prior occasions is not necessary to shed light on defendant's state of mind. But "where the act itself is equivocal and, unless accompanied by some guilty knowledge, the transaction would not be criminal," a culpable mental state is not readily inferable from the commission of the act (*id.* at 242-243). When "evidence that [the] defendant did the act may allow no ready inference of [the] defendant's guilty state of mind" (*id.* at 243), *Molineux* evidence may be admitted as additional proof.

A guilty mens rea may be easily inferred where, for example, a defendant puts a gun to a victim's head and pulls the trigger

(see *People v Katz*, 209 NY 311, 328 [1913]) or in the context of a violent stranger rape, like that in *People v Vargas* (88 NY2d 856 [1996]). In *Vargas*, the defendant followed his victim, a woman he had never met before, into her apartment building, “pinned her in the corner, threatened to kill her, blindfolded her[,] and dragged her to the roof landing where he raped and sodomized her” (*id.* at 857). Under those circumstances, it is difficult, if not impossible, to ascribe any intention to the perpetrator other than a guilty one (see *People v Leonard*, 29 NY3d 1, 8 [2017] [“defendant’s alleged action of touching the victim’s vagina” while the victim was unconscious was “not an ‘equivocal’ act capable of being understood” as innocently committed]).

Intent is not so clear from a defendant’s actions alone, however, when they are subject to an “innocent explanation” (see *Ingram*, 71 NY2d at 480). For example, in *Ingram*, the defendant was present at a gas station during a robbery and drove the getaway car. Because the defendant asserted that he was only there to buy gas and had no idea that his passenger was going to commit a robbery, we held that *Molineux* evidence of his involvement in a similar robbery was properly admitted as relevant “to refute [his] claim of an innocent state of mind” (*id.*). Rather than limiting the jury to viewing the defendant’s actions in a siloed context, the jury was permitted to consider his prior criminal behavior when evaluating whether his presence at the gas station was indeed innocent.

Perhaps the area of criminal prosecution with the most inscrutable mens rea determination is that of acquaintance sexual assault.³ As our understanding of acquaintance assault has grown, the need for *Molineux* evidence to aid the jury has become more apparent. These cases require exacting consideration of each party’s mental state at each stage of the relevant encounters: What did each intend and what did each know of

3. The difficulties posed to prosecutions of acquaintance sexual assault are reflected in the lower conviction rates of these crimes as compared to conviction rates of stranger sexual assault (see Kristen McCowan et al., *A Rape Myth in Court: The Impact of Victim-Defendant Relationship on Sexual Assault Case Outcomes*, 26 Berkeley J Crim L 155, 174 [2021] [“ample research suggests that jurors are far more likely to convict in stranger rape cases than in acquaintance rape cases” (emphasis omitted)]; Claire R. Gravelin et al., *Blaming the Victim of Acquaintance Rape: Individual, Situational, and Sociocultural Factors*, 9 Frontiers Psych, No. 2422 at 2 [2019] [“acquaintance rape cases have a lower probability of conviction in the courts than those (that) fit with a stranger rape script”]).

the other's intentions? It is within this context that the trial court allowed the jury to hear instances of defendant's prior sexual assaults to aid them in determining if defendant perpetrated sexual violence or if he indeed thought that he had his victims' consent to behave as he did.

II.

"[R]ape is a crime that is permeated by misconceptions" (*People v Taylor*, 75 NY2d 277, 288 [1990]). Indeed, sexual assault cases are mired in complex relationship and power dynamics and shadowed by archaic social and cultural attitudes about sexual violence (see Meagen M. Hildebrand & Cynthia J. Najdowski, *The Potential Impact of Rape Culture on Juror Decision Making: Implications for Wrongful Acquittals in Sexual Assault Trials*, 78 Alb L Rev 1059, 1078 [2014-2015] [citing studies which find that jurors with higher levels of rape myth acceptance are more likely to acquit in sexual assault trials]). The defense sought to capitalize on these pervasive rape myths,⁴ and rape culture at large, asking the jury to believe that, despite their words and actions, the victims were consenting. Failing to confront this difficult reality, the majority instead characterizes this case as "boil[ing] down" to a simple "credibility contest" (majority op at 465-466).⁵ The majority does this despite the fact that defendant himself, by orchestrating how these encounters played out, created the very ambiguity concerning his state of mind that the majority will not allow the People to negate (see *People v Valentin*, 29 NY3d 150, 157 [2017]; *Cass*, 18 NY3d at 561; *Ingram*, 71 NY2d at 479). Consequently, the majority not only ignores how this case was

4. Rape myths are the "prescriptive beliefs about the scope, causes, context and consequences of sexual aggression that serve to deny, downplay[,] or justify sexually aggressive [behavior] of (usually) men against (usually) women" (see Joseph Briggs & Russ Scott, 'Rape myths' and a 'reasonable belief' of consent *R v Lazarus* [2017] NSWCCA 279, 27 Psychiatry Psych & L 750, 765 [2020]; see also Alexa Sardina & Alissa R. Ackerman, *Restorative Justice in Cases of Sexual Harm*, 25 CUNY L Rev 1, 7-8 [2022]).

5. Even that credibility determination hinges on factors beyond whether the victim has demonstrated herself to be a truthful witness, for the perception of a victim's credibility is influenced by antiquated expectations of how victims should act, both during the crime and at trial (see generally Deborah Epstein & Lisa A. Goodman, *Discounting Women: Doubting Domestic Violence Survivors' Credibility and Dismissing Their Experiences*, 167 U Pa L Rev 399 [2019]; Louise Ellison & Vanessa E. Munro, *Reacting to Rape: Exploring Mock Jurors' Assessments of Complainant Credibility*, 49 Brit J Criminology [Issue 2] 202, 211 [2009]).

litigated but shuts its eyes to the enduring effect of rape culture on notions of consent and intent.

A.

“[R]esearch across law, sociology[,] and psychology has suggested that jurors may be influenced in their deliberations by a number of extra-legal stereotypes about ‘appropriate’ socio-sexual [behavior],” including the victim’s conduct “in the lead-up to the incident” and “the existence of any previous flirtation or intimacy with the defendant” (*Reacting to Rape* at 202-203; see Dan M. Kahan, *Culture, Cognition, and Consent: Who Perceives What, and Why, in Acquaintance-Rape Cases*, 158 U Pa L Rev 729, 761 [2010]).⁶ Consequently, what one juror perceives as a “lack of consent” another may not. And when one juror concludes that a reasonable person in the defendant’s position would have understood the complainant’s actions as indicating a lack of consent, another may not. Indeed, defense strategy in sexual assault cases may take advantage, as the defense sought to do here, of societal misconceptions about sexual violence and enlarge or create ambiguity around a defendant’s state of mind and what actions a defendant may have perceived as indicating consent (see ‘*Rape myths*’ and a ‘*reasonable belief*’ of consent at 766; Dominic Willmott et al., *Jury Decision Making in Rape Trials: An Attitude Problem?* in David A. Crighton & Graham J. Towl, *Forensic Psychology* at 94, 105-106 [3d ed 2021]).⁷

Antiquated notions of sexual violence persist, consciously and unconsciously, throughout our population and within jury pools. This Court has already recognized the disconnect between our social norms and our professed social values and acknowledged the influence of toxic rape mythology on jurors’ conceptions of consent (see *Taylor*, 75 NY2d at 288-289 [holding that expert testimony regarding “rape trauma syndrome” is

6. Rape myth usage is a problem that extends beyond jurors, as one recent study found that “[r]ape myths do appear to be a common and widely used discourse in sexual assault cases” among American state appellate judges (see Holly Boux, “*If You Wouldn’t Have Been There That Night, None of This Would Have Happened to You*”: *Rape Myth Usage in the American Judiciary*, 40 Women’s Rts L Rep 237, 259 [2019]).

7. Notably, “the impact of prejudicial attitudes and misconceptions surrounding rape have been so well documented within past research, that judges in England and Wales now routinely instruct jurors in rape trials to avoid drawing upon such myths and extra-legal influence [while] judging the case” (*Jury Decision-Making in Rape Trials* at 102).

admissible under certain circumstances]). Considering the intricacies of the victims' testimony here, it is clear that there were numerous opportunities for rape myths to insidiously work their way into the jury's analysis of defendant's state of mind and importantly, into their analysis of whether he reasonably understood that his victims were conveying a lack of consent.

Ostensibly, we live in a culture where "no means no" and that is the end of the conversation. In practice, when a woman says "no," some hear "yes," "not yet," or "convince me" (see Douglas N. Husak & George C. Thomas III, *Rapes Without Rapists: Consent and Reasonable Mistake*, 11 Phil Issues 86, 95-96 [2001]; Charlene L. Muehlenhard & Lisa C. Hollabaugh, *Do women sometimes say no when they mean yes? The prevalence and correlates of women's token resistance to sex*, 54 J Personality & Soc Psych 872, 872 [1988]). Pursuant to the myth that a "no" may actually be an invitation, some believe that "[a]ggressive or violent tactics are part of the ordinary seduction" (see Sarah Gill, Note, *Dismantling Gender and Race Stereotypes: Using Education to Prevent Date Rape*, 7 UCLA Women's LJ 27, 46 [1996]). As a result, many view consent as something to be negotiated, bargained for, or coerced. In one mock jury study evaluating conceptions of sexual assault and their impact on criminal prosecutions, jurors,

"[f]ocusing on the degree of verbal resistance offered by the complainant, . . . also often questioned whether the complainant had 'done enough to say no' in simply telling the defendant to 'stop' and 'get off' her . . . Such comments were often accompanied by conjecture that the defendant may have believed—reasonably, in the opinion of many jurors—that the complainant was a willing sexual partner" (see Louise Ellison & Vanessa E. Munro, *A Stranger in the Bushes, or an Elephant in the Room? Critical Reflections upon Received Rape Myth Wisdom in the Context of a Mock Jury Study*, 13 New Crim L Rev 781, 791 [2010]).

Jurors consider more than verbal and physical expressions of resistance: they consider their form and degree, and whether other actions by the victim may have negated any resistance. Even where a victim "may communicate that he or she does not consent, the jury may still look for objective signs of non-consent, such as resistance and use of force" (see Becky Farley,

Comment, *A Perpetrator's Paradise: Outdated Sexual Assault Statutes Provide Minimal Protection to Survivors Who are Victimized in Common Sexual Assault Scenarios*, 17 Wyo L Rev 315, 338 [2017]). This very Court once required a victim to exert “the greatest effort of which she is capable therein, to foil the pursuer” for such rape to qualify as a legal offense (*People v Dohring*, 59 NY 374, 383 [1874]). Though New York has “eliminated resistance as an element of rape, . . . the requirement of resistance, and the corresponding presumption of consent if resistance is absent, persists” (see Lisa Avalos, *Seeking Consent and the Law of Sexual Assault*, 2023 U Ill L Rev 731, 735 [2023]). Even where a victim asserts physical resistance, “jurors continue to be skeptical” where the victim “did not resist to their satisfaction” (I. Bennett Capers, *Real Women, Real Rape*, 60 UCLA L Rev 826, 863 [2013]). And even where a victim asserts physical and verbal resistance, jurors will consider whether the victim ceased resistance at some point. While decades of research informs us that this is an entirely normal response to the trauma of sexual violence (see Sunda Friedman TeBockhorst et al., *Tonic immobility among survivors of sexual assault*, 7 Psych Trauma: Theory Rsch Prac & Poly 171 [2015]), the problematic belief persists that a victim’s “freezing up” during the encounter is indicative of consent (Jen Percy, *What People Misunderstand About Rape*, NY Times, Aug 22, 2023, available at <https://www.nytimes.com/2023/08/22/magazine/immobility-rape-trauma-freeze.html> [last accessed Apr. 15, 2024]).

Jurors also consider whether the victim’s other actions “sen[t] coded signals of sexual interest,” including whether the victim willingly met her attacker and, if so, whether it was in a private, intimate setting (see *Reacting to Rape* at 207). Victims of color are especially disadvantaged, through the intersection of rape and racial mythology, by harmful stereotypes that ascribe heightened sexuality to these victims (see *Real Women, Real Rape* at 863-865; Darren Lenard Hutchinson, *Ignoring the Sexualization of Race: Heteronormativity, Critical Race Theory and Anti-Racist Politics*, 47 Buff L Rev 1, 84-86, 89, 93-96 [1999]) and characterize them as “‘less harmed by an assault’” (*Real Women, Real Rape* at 867, quoting Gary D. LaFree et al., *Jurors’ Responses to Victims’ Behavior and Legal Issues in Sexual Assault Trials*, 32 Soc Probs 389, 401-402 [1985]). Additionally, jurors will look to the nature of the parties’ relationship and, specifically, whether they had consensual sexual

encounters in the past which “provides an opening through which judgments about the (mis)communication of signals of sexual interest are introduced” (*A Stranger in the Bushes* at 789). The “generalized consent” concept postulates that “consent to prior sexual intercourse either indicates consent to subsequent intercourse or suggests a greater likelihood that the defendant reasonably believed the victim consented to the later encounter. This notion effectively creates a presumption of consent to sexual intercourse on any specific occasion that the victim must somehow negate” (Note, *Acquaintance Rape and Degrees of Consent: “No” Means “No,” But What Does “Yes” Mean?*, 117 Harv L Rev 2341, 2342 [2004] [footnote omitted]).⁸

The majority misses this point entirely when it draws exaggerated, and frankly confounding, parallels between the facts of this case and those in *Vargas*. The sexual violence in *Vargas*, as described earlier, fits within the prototypical construct of “real” rape—“a sudden, surprise attack by an unknown, often armed, sexual deviant [which] occurs in an isolated, but public, location, and the victim sustains serious physical injury, either as a result of the violence of the perpetrator or as a consequence of her efforts to resist the attack” (*A Stranger in the Bushes* at 783). “Real” rape does not implicate the same issues as acquaintance assaults. Indeed, here, because the victims know defendant, they are forced to contend with heightened scrutiny of their actions that draws on the problematic rape myths delineated above (see Nicholas J. Little, Note, *From No Means No to Only Yes Means Yes: The Rational Results of an Affirmative Consent Standard in Rape Law*, 58 Vand L Rev 1321, 1332-1333 [2005] [explaining why jurors are more likely

8. The growing movement toward an affirmative consent standard, or a “yes means yes” standard, reflects the shortcomings of a system which requires a victim to proactively express a lack of consent (see generally Eric Sandoval, *The Case for an Affirmative Consent Provision in Rape Law*, 94 ND L Rev 455 [2019]; Michelle Lewis, Note & Comment, *University Adjudication of Sexual Assault: How Affirmative Consent Can Help Close the Gap*, 23 Sw J Intl L 351 [2017]; Chandler Delamater, Note, *What “Yes Means Yes” Means for New York Schools: The Positive Effects of New York’s Efforts to Combat Campus Sexual Assault Through Affirmative Consent*, 79 Alb L Rev 591 [2016]). Recognizing that the public’s varied opinions regarding the method and manner in which victims must express their lack of consent clouds these issues, the legislature enacted a requirement that New York colleges and universities adopt an affirmative consent standard in their codes of conduct (Education Law § 6441 [1]). If the majority’s unrealistic view of how consent plays out in intimate settings were true, this legislative action and other ongoing conversations around consent standards would be largely unnecessary.

to believe claims of non-consent in cases of “real” rape)).⁹ Casting this case and *Vargas* in the same light allows the majority to conclude that it is as easy for this jury to find that the victims were raped as it was for the jury in *Vargas* to draw that same conclusion.

B.

This discussion of rape myths is not merely theoretical. Beyond being deeply rooted societal attitudes that jurors have to grapple with, the defense encouraged the jurors to apply these attitudes to the facts of this case. Defense counsel emphasized to the jury that Victim B, according to her own testimony, did not exert physical resistance in that she did not “tr[y] to push [defendant] off of her in any way.” Defense counsel further implored the jury to adopt the mindset that Victim B’s initial verbal resistance was disingenuous or fleeting. Victim B testified that she initially told defendant, “We don’t have time,” consistent with her testimony that “[o]ftentimes before we would engage in something sexual, there was a negotiation and me trying not to do something.” But defense counsel emphasized that Victim B stopped saying no quickly after the encounter began and then, according to her testimony, “[W]hat does she do? Gets naked and lays on the bed.” The prosecution further had to contend with the fact that Victim A also ceased resistance at some point; that, according to her testimony, she “checked out” and “endure[d] it.”

Defense counsel also argued that the victims’ actions demonstrated their sexual interest. Playing on the myth of generalized consent, the defense hinted or outright asserted that the victims had prior, consensual sexual encounters with defendant. Defense counsel stated that Victim A had been “to Harvey’s apartment alone to spend time with him” one night and “[t]hey ha[d] a nighttime meeting in a bar [on another]. . . . I want you to think about what that meeting was really about.” With respect to Victim B, the defense posed, “[W]hy does [defendant] get a room at the Doubletree? . . . [B]ecause he was going to

9. The impact of these rape myths on whether a victim receives justice goes beyond what happens in the courtroom and affects a victim’s decision of whether to report the crime in the first instance (see Jessica Woodhams et al., *Behavior Displayed by Female Victims During Rapes Committed by Lone and Multiple Perpetrators*, 18 Psych Pub Poly & L [No. 3] 415, 418 [2012]; Kathleen Daly & Brigitte Bouhours, *Rape and Attrition in the Legal Process: A Comparative Analysis of Five Countries*, 39 Crime & Just [No. 1] 565, 572-573 [2010]).

see the woman he was having a sexual relationship with.” The defense noted their past sexual encounters, asking Victim B about a time that she had “put lotion in [her] hand and put it on [defendant’s] back . . . [w]hile he is laying on the bed” on one occasion. The defense further asked Victim B whether she “never wanted to have sex with” defendant and was “lying to [defendant] every single time [she] engaged in sexual activity with him that [she] didn’t want to have” and whether she was lying when she had previously told defendant that one encounter was “the best [she] ever had.” Counsel concluded, “Well, you made him believe that you wanted to be there, isn’t that right?” “You are allowing all this to happen Manipulating him to make him think that you wanted to see him by sending him e-mails, by going to meet with him and by engaging in consensual sexual acts?” “As manipulated as you felt, you manipulated Harvey Weinstein every time you continued to see him after each individual sexual encounter.” The defense asked her, “You decided to go out with a married man, correct? . . . You decided to have sexual relations with [him]?” Defense counsel also emphasized that both victims willingly met defendant in the intimate settings of his apartment or hotel. Indeed, when asking Victim A “about [her] decision to go over to the Soho apartment,” the defense confirmed, “Well, you did go there, correct?” “[Y]ou decide[d] to go?” With regard to Victim B, defense counsel asked, “[Y]ou didn’t make the choice to walk out the door? . . . You made the choice to go up to the hotel room?”

Defendant’s quid pro quo theory inserted another innocent explanation of defendant’s conduct for the jury to consider and put the professional favors that defendant granted his victims at the forefront of the case. Regarding Victim A, the defense asserted that “[s]he cared [about her relationship with defendant] because she was using him for jobs. She cared because she wanted him to fly her places.” Defense counsel reiterated that defendant secured a production position for Victim A on his company’s television show; that the day after the incident, Victim A flew to Los Angeles on a ticket paid for by defendant’s company; and that she traveled back to New York two weeks later, again on defendant’s company’s dime. Regarding Victim B, the defense asserted that she was using defendant for her career and “we know that’s exactly what she was doing.” “[S]he made a choice that she wanted to be in his world. She made a choice she wanted the life that he could potentially provide for

her.” Defense counsel told the jury that on the day of the incident with Victim B, she did a reading for the opportunity to be cast in one of defendant’s movies. Additionally, defendant came to the hotel the morning of the rape at the request of Victim B, to do her a favor and meet her friend who was an agent in the industry. The defense asked Victim B, “[Y]ou didn’t want that stigma” of “sleeping with Harvey Weinstein . . . [b]ut you wanted the benefit of what the action got you?” This line of questioning suggested to the jury that because defendant offered professional rewards, the sex was necessarily consensual.

Confronted with the defense’s arguments, it was entirely possible for the jury to believe the victims’ accounts of defendant’s actions while at the same time accepting defendant’s assertion that he believed this was a consensual transaction. In this circumstance, even if the jury believed the victims when they said that they resisted, it would have to acquit defendant. Nonetheless, the majority holds that the facts here were simple to parse, and that defendant’s prior sexual assaults (where his quid pro quo understanding failed) were irrelevant to the issues of intent and consent.

III.

Viewed in proper context, in light of our contemporary understanding of acquaintance sexual violence, the proffered *Molineux* testimony unquestionably had a “natural tendency to disprove defendant’s specific claim as to h[is] state of mind” (*People v Bradley*, 20 NY3d 128, 134 [2012] [internal quotation marks and some brackets omitted]) and “make[] the innocent explanation improbable” (*Ingram*, 71 NY2d at 480). As the unanimous Appellate Division aptly explained, the *Molineux* witnesses

“described an arc of events where defendant met her, flattered her by expressing his willingness to help her advance her career in Hollywood, and then put in motion a plan where he could be alone with her. As soon as it was opportune, he made an overt sexual advance for which there was no indication that there was consent” (207 AD3d 33, 65 [1st Dept 2022]).

The evidence thus demonstrated “that defendant did not see the women as romantic partners or friends, and that his inter-

est in them and their talents was feigned” (*id.*). Further, “defendant’s goal at all times was to position the women in such a way that he could have sex with them, and that whether the women consented or not was irrelevant to him” (*id.*).

These *Molineux* witnesses’ negative reactions to defendant’s sexual advances elucidated for the jury that defendant was fully aware that he could not assume consent simply because women crossed the threshold to his apartment or hotel room. Their testimony explained the idiosyncrasies of the entertainment industry that allow assaults to be perpetrated by influential and powerful men against young and relatively powerless aspiring actresses, such that the jury could better assess how defendant would have perceived the victims’ actions. The evidence showcased a “repetition, duplication[,] and similarity of defendant’s acts” which has “a direct bearing on the question of premeditated intent” (*Cass*, 18 NY3d at 563).

“[T]he reason defendant invited the victim[s] to his apartment” or hotel room necessarily informed the jury’s analysis of “whether he had the requisite intent, i.e.,” the intent to forcibly compel his victims to engage in sexual acts (*see Denson*, 26 NY3d at 186). The People’s theory was that defendant orchestrated these moments to be alone with women in an intimate setting, “lured in on false promises of professional help” to a private location commonly used for business meetings in the entertainment industry, in order to sexually assault them. But defendant posited the innocent explanation that he was simply following through on a mutually agreed upon rendezvous for a consensual quid pro quo exchange and they came to his hotel room or apartment fully aware it was to have sex with him. Indeed, referencing one such meeting, defense counsel skeptically asked Victim A, “You wanted to pitch a project to [defendant]? . . . You wanted to meet with him in a hotel room and pitch a project to him?” The *Molineux* witnesses’ testimony went to the heart of this issue and, notably, explained for the jury the unique facet of the entertainment industry in which screen tests and meetings would often occur in these intimate settings. Moreover, because they rejected his sexual advances in similar situations, the People could use this testimony to undermine defendant’s quid pro quo theory.

In sum, the facts of this case are equivocal, and defendant’s state of mind subject to numerous interpretations—layer after layer of nuance, opportunity after opportunity for rape culture to rear its ugly head. Properly considering the realities against

which sexual assault cases are presented to a jury, and the myriad of experiences, beliefs, and attitudes that jurors bring with them into the courtroom, it is clear that a jury could fully accept the victims' recounting of events and still find defendant did not possess the requisite mens rea. As such, defendant's culpable state of mind was not so easily inferred, and the *Molineux* evidence was admissible to aid the jury's understanding of his intent. The fact that the jury convicted defendant of third-degree rape against Victim B but acquitted him of first-degree rape lays bare the majority's error, and refutes its theory that, if it accepted Victim B's testimony, the jury would have to find forcible compulsion and convict defendant of first-degree rape. Ultimately, it is the rejection of any subtlety in this case which leads the majority to its erroneous conclusion that resolving defendant's intent merely involved a binary choice—believe the victims' testimony and convict defendant or disbelieve it and acquit—and that any other evidence on that topic was “irrelevant” to anything but defendant's criminal propensity (see majority op at 444, 464). But how can this issue be “irrelevant” when defendant's very theory rests on the perceived consent flowing from the quid pro quo nature of these sexual encounters?

The majority references the testimony of the People's expert witness which offered the jury critical information to dispel some of the rape myths identified above, including misconceptions about victims exerting verbal and physical resistance to an attacker. But the majority falls on the sword it claims to wield against rape myths when it claims that the expert's testimony negates the need for *Molineux* evidence here. The majority acknowledges that the expert provided testimony relevant to explain “what some jurors might have seen,” as a result of misconceptions about sexual violence, “as counterintuitive acts by complainants” and thus acknowledges that the victims' actions could be perceived as unclear (majority op at 462). This inevitably raises the question: if it was appropriate to introduce this testimony to address the equivocality of the victim's actions, why was it not appropriate to introduce evidence to address how the defendant may or may not have perceived the equivocality of the victim's actions?

Moreover, the majority's conclusion that the *Molineux* evidence was not necessary because the People had other evidence to dispel rape mythology—specifically, the expert testimony and the “testimony from multiple complainants”—

further demonstrates its misunderstanding of *Molineux* (see majority op at 462-463). Whether *Molineux* evidence is cumulative is patently not an appropriate consideration under “step one,” because it has no bearing on whether defendant’s state of mind was open to multiple interpretations and thus, on whether the evidence was relevant (see *People v Hudy*, 73 NY2d 40, 55 [1988]). Given that the majority disposes of the trial court’s *Molineux* ruling on “step one,” the majority renders its own discussion of “step two” considerations, such as the probative value of the *Molineux* evidence or its prejudicial impact, academic. Additionally, “it is immaterial that the People could establish a prima facie case without the disputed [*Molineux*] evidence. They were not bound to stop after presenting minimum evidence but could go on and present all the admissible evidence available to them” (*Alvino*, 71 NY2d at 245).

Sexual assault cases necessarily require a jury to understand a defendant’s awareness of a victim’s lack of consent. Proof of this intent falls within the core class of evidence that *Molineux* took great care to distinguish from evidence simply demonstrating a defendant’s criminal propensity. But today, this Court elides these two categories, effectively foreclosing the introduction of *Molineux* evidence in sexual assault cases and denying juries relevant evidence. Demonstration of a defendant’s culpable state of mind is often a difficult task in any prosecution (see *Ingram*, 71 NY2d at 479). But where jurors enter a courtroom to adjudicate a sexual assault case, carrying with them deeply entrenched attitudes toward sexual violence, this can be a most daunting task. The *Molineux* intent exception was designed to combat such evidentiary challenges.

The majority appears oblivious to, or unconcerned with, the distressing implications of its holding. Men who serially sexually exploit their power over women—especially the most vulnerable groups in society—will reap the benefit of today’s decision. Under the majority’s logic, instances in which a trafficker repeatedly leverages workers’ undocumented status to coerce them into sex, or a restaurant manager withholds tips from his employees unless they perform sexual acts becomes a series of individual “credibility contests” and unrelated “misunderstandings.” After today’s holding, juries will remain in the dark about, and defendants will be insulated from, past criminal acts, even after putting intent at issue by claiming consent. Ultimately, the road to holding defendants accountable for sexual assault has become significantly more difficult.

IV.

With today's decision, this Court continues to thwart the steady gains survivors of sexual violence have fought for in our criminal justice system (*see People v Cerda*, 40 NY3d 369 [2023] [reversing a first-degree sexual abuse conviction against a child victim by rejecting the trial court's application of the Rape Shield Law]; *Regan*, 39 NY3d 459 [reversing a first-degree rape conviction on an expanded application of pre-indictment delay doctrine and dismissing the indictment]). Forgotten are the women who bear the psychological trauma of sexual violence and the scars of testifying again, and again. This erosion of precedent, born from a refusal to accept that crimes of sexual violence are far more nuanced and complex than other crimes, comes at the expense and safety of women. Until we recognize and account for these differences, we cannot claim to dispense fairness and justice for all.

CANNATARO, J. (dissenting). The adjudication of sex crimes occupies a challenging space in the evolution of American criminal law. Rooted in centuries of deeply patriarchal and misogynistic legal tradition, progress toward a more enlightened and evidence-based approach to the prosecution of rape and related crimes perpetrated predominantly against women has been both challenging and sporadic, with most meaningful progress achieved only over the past 50 years (*see People v Regan*, 39 NY3d 459, 475-482 [2023, Singas, J. dissenting]). Today's majority decision represents an unfortunate step backwards from recent advances in our understanding of how sex crimes are perpetrated and why victims sometimes respond in seemingly counterintuitive ways, endangering decades of progress in this incredibly complex and nuanced area of law. I must therefore dissent.

As the jury heard in this case through the testimony of the People's expert witness in the area of rape trauma, a commonly held misconception is that the majority of sex offenses involve an assault perpetrated against a woman by an unknown male—the stereotypical stranger in a dark alley who isolates his victim or waits for her to be alone before launching a violent assault. But, as the jury also heard in this case, we now know that most sex crimes are perpetrated by acquaintances—sometimes intimate acquaintances—of the victims. These crimes present a host of difficulties in terms of producing competent proof of guilt, as the victims frequently delay

reporting, especially to the authorities, and often maintain relationships with their abusers out of fear, manipulation or the prospect of societal opprobrium.

These complex psychological and sociological dynamics were at play here. The trial court permitted the People to introduce the testimony of three additional women who had been subjected to the same kind of manipulation and intimidation by defendant, so that the jury could gain a better understanding of his intent and his knowledge of their lack of consent. This evidence, which, as the verdict demonstrates, was carefully parsed by the jury, is the type of evidence that our well-developed *Molineux* jurisprudence permits. The trial court also ruled that if defendant chose to testify, the People could cross-examine defendant on three categories of prior bad acts that established defendant's willingness to advance his own interests at the expense of others, and was therefore directly relevant to the jury's assessment of defendant's credibility. The trial court's *Molineux* and *Sandoval* rulings reflect sensitivity to the nature of the charges, the circumstances of the case, and potential prejudice from admission of the proffered evidence. There was no abuse of discretion in either ruling. The Appellate Division order should be affirmed.

I.

Under our well-settled *Molineux* rule (*People v Molineux*, 168 NY 264 [1901]), "[e]vidence of a defendant's prior bad acts may be admissible when it is relevant to a material issue in the case other than defendant's criminal propensity" (*People v Dorm*, 12 NY3d 16, 19 [2009]). We have set forth an illustrative list of permissible uses for such evidence, including to prove a defendant's motive or intent (*see id.*). Where there is a proper nonpropensity purpose for the evidence at issue, "it is not to be excluded merely because it shows that the defendant had committed other crimes" (*People v Cass*, 18 NY3d 553, 560 [2012]). Rather, its admissibility "rests upon the trial court's discretionary balancing of probative value and unfair prejudice" (*Dorm*, 12 NY3d at 19). "[U]nder our *Molineux* jurisprudence, we begin with the premise that uncharged crimes are inadmissible and, from there, carve out exceptions" (*People v Resek*, 3 NY3d 385, 390 [2004]). This rule of exclusion, however, "is not an absolute . . . [and] gives way when evidence of prior crime is probative of the crime now charged" (*People v Ventimiglia*, 52 NY2d 350, 359 [1981]; *People v Allweiss*, 48 NY2d 40, 46-47 [1979]).

We have recognized that

“[e]vidence of prior criminal acts to prove intent will often be unnecessary, and therefore should be precluded even though marginally relevant, where intent may be easily inferred from the commission of the act itself. It may be admitted to prove intent, however, when proof of the act falls short of demonstrating that the defendant acted with a particular state of mind and where proof of a prior act is relevant to that issue” (*People v Alvino*, 71 NY2d 233, 242 [1987] [citations omitted]).

Stated otherwise, proof of other crimes may be admissible “[w]hen defendant’s criminal intent cannot be inferred from the commission of the act or when defendant’s intent or mental state in doing the act is placed in issue” (*People v Ingram*, 71 NY2d 474, 479 [1988]).

Here, prior to trial, the court granted the People’s application to introduce three categories of *Molineux* evidence. The first category permitted complaining witness B to testify that defendant committed two uncharged instances of sexual assault against her—one before and one after the charged offense. The second category permitted three additional witnesses to testify that defendant committed sex offenses against them under similar circumstances to the charged offenses. Under the third category, complaining witnesses A and B were permitted to testify about their observations of defendant’s threatening, abusive and manipulative conduct toward others.

The evidence in the first and third categories was properly admissible in the exercise of the trial court’s discretion under our settled *Molineux* jurisprudence. As to the first category, a prior assault by a defendant that is observed or experienced by the victim can be admissible on the issue of the victim’s state of mind—consent and use of force—and to explain a delay in reporting (*see People v Tas*, 51 NY2d 915, 916 [1980]). Moreover, “when appropriate—as here, in light of the [intimate] relationship between defendant and complainant—evidence of a defendant’s prior abusive behavior toward a complainant may be admissible to prove the element of forcible compulsion in a rape case” (*People v Cook*, 93 NY2d 840, 841 [1999]). With respect to the third category, testimony by the complaining witnesses about their observations of other bad acts by defendant was relevant to explain their delayed disclosure (*see People v Nicholson*, 26 NY3d 813, 829-830 [2016]). There was no error

or abuse of discretion in the trial court's admission of either of these categories of *Molineux*. The majority does not contend otherwise.

The category of evidence subject to dispute is the admission of the testimony from the three additional *Molineux* witnesses. In their *Molineux* application, the People initially sought to call five additional witnesses in their case-in-chief, arguing that their testimony was relevant to the contested issues of lack of consent and forcible compulsion. The court precluded the People from introducing testimony from two of the proposed witnesses but otherwise granted the application. The trial court permitted these additional witnesses to testify to rebut defendant's claim of consent and to demonstrate his intent to forcibly compel the complaining witnesses to engage in sexual acts with him—specifically, by engineering situations in which he could be alone with women, through an offer of professional assistance, giving the encounters the ostensible appearance of being consensual. Consistent with this ruling, the court gave the jury limiting instructions as to the purpose of the *Molineux* witnesses' testimony—that these witnesses were not the complaining witnesses in the case and that their testimony “was not offered and must not be considered for the purpose of proving that the defendant had a propensity or predisposition to commit the crimes charged in this case. It was offered as evidence for your consideration on the issues of forcible compulsion and lack of consent.”

When a defendant's intent in a sexual assault case is unequivocal, it is improper to introduce evidence that he has previously committed other similar acts (see *People v Leonard*, 29 NY3d 1, 8 [2017]). The majority views this as one of those cases, pointing out that there was testimony from complaining witness B that would have allowed the jury to conclude—as it did—that she did not consent to sexual contact with defendant with respect to the charged offense. However, there was also testimony that allowed defendant to argue that he reasonably believed she consented—specifically, that she undressed, lay down on the bed and waited for him to come out of the bathroom. Although the majority finds it “inconceivable” that the jury could believe the complaining witness and still find that defendant reasonably believed she consented (majority op at 459), that is the precise argument defendant made to the

jury and it is the argument the People had to rebut.¹ The majority's approach fails to account for the nuances present in a relationship of this type. Given the witness's description of the encounter and their consensual sexual activity both before and after the charged offense, the lines simply were not that clear.

Thus it follows that *People v Vargas* (88 NY2d 856, 858 [1996]), involving a sexual encounter between strangers where "two starkly contrasting scenarios were presented, with only credibility in issue," is not controlling. In that case, the jury could have either believed the victim's testimony that the interaction was a violent sexual assault by a stranger, or credited the defense that it was a consensual sexual encounter. There was no ambiguity stemming from the context of an ongoing relationship (see e.g. *Cook*, 93 NY2d at 841) and the defendant's intent could easily be inferred from the act itself. We therefore held that the evidence of the defendant's prior sexual misconduct was inadmissible because it "was relevant only to lend credibility to complainant by suggesting that, because defendant had engaged in sexual misconduct with others, he was likely to have committed the acts charged" (88 NY2d at 858; see also *People v Hudy*, 73 NY2d 40, 56 [1988], *abrogated on other grounds by Carmell v Texas*, 529 US 513 [2000]).

Here, particularly with respect to complaining witness B, with whom defendant had an intimate relationship, those stark contrasts were not presented.² With complaining witness B, defendant's intent was squarely in issue and, given the context of their ongoing relationship, the nature of defendant's actions was "subject to varying interpretations" (*People v Bagarozy*, 132 AD2d 225, 236 [1st Dept 1987]). That is, there is no doubt that he intended to have sexual contact with both victims, but there was considerable ambiguity as to whether he intended to force himself on complaining witness B against her will, a conclusion that the jury ultimately rejected. In these circum-

1. Defense counsel argued in summation that "even if we look at her testimony and her testimony alone about what happened there that night or that day. Even if you believe every word she says about what happened in that hotel room, it does not rise to the level of a rape."

2. Even if the testimony could be deemed inadmissible on the issue of forcible compulsion as to complaining witness A, it was still admissible as to complaining witness B, as well as to defendant's knowledge of complaining witness A's lack of consent. Defendant failed to preserve any argument with respect to the "imprecision of the court's limiting instructions" as to complaining witness A (see *Ingram*, 71 NY2d at 478 n 1; *People v Cohen*, 5 NY2d 282, 290 [1959]).

stances, the People were permitted to introduce evidence that these were not transactional “quid pro quo” interactions made in exchange for defendant’s professional assistance, but were situations devised by defendant to engage in sexual activity regardless of whether the victims consented.

“Because there [was] a proper nonpropensity purpose, the decision whether to admit evidence of defendant’s prior . . . acts rests upon the trial court’s discretionary balancing of probative value and unfair prejudice” (*People v Brewer*, 28 NY3d 271, 276 [2016] [internal quotation marks omitted]). Evidence that is probative of a defendant’s guilt will always be prejudicial to some degree, “[b]ut the probative value of a piece of evidence is not automatically outweighed by prejudice merely because the evidence is compelling” (*id.* at 277). It is also important to note that the jury acquitted defendant of the top three counts—two counts of predatory sexual assault and one count of first-degree rape—all of which required proof of forcible compulsion, one of the permissible uses of the testimony from the *Molineux* witnesses. This at least suggests that the *Molineux* evidence did not overwhelm the jury or poison the panel against defendant. There was no abuse of discretion as a matter of law in the trial court’s determination with respect to the balancing of probative value against prejudicial effect.

II.

Under *People v Sandoval*, the trial court may permit the People to cross-examine a defendant who chooses to testify with evidence of the defendant’s “prior convictions” and any “vicious or immoral acts” that bear on the defendant’s credibility (34 NY2d 371, 374 [1974]). The trial court makes this determination by balancing “the probative worth of [the] evidence” with respect to defendant’s credibility against “the risk of unfair prejudice to the defendant, measured both by the impact of such evidence if it is admitted after his testimony and by the effect its probable introduction may have in discouraging him from taking the stand on his own behalf” (*id.* at 375). Prejudice to the defendant must also be considered against “the potential prejudice to the prosecution and the fact-finding process of denying the jury access to probative, perhaps even crucial, evidence of the defendant’s credibility” (*People v Bennette*, 56 NY2d 142, 147 [1982]). While such proof should be excluded where its sole purpose is to demonstrate that a defendant’s generally bad or criminal character makes it more

likely that they committed the charged offense, it “should be admitted if the nature of such conduct or the circumstances in which it occurred bear logically and reasonably on the issue of credibility” (*Sandoval*, 34 NY2d at 376). Bad acts that show “[a] demonstrated determination deliberately to further self-interest at the expense of society or in derogation of the interests of others go[] to the heart of honesty and integrity” and are “relevant to suggest [a] readiness to do so again on the witness stand” (*id.* at 377).

The quantum of evidence admitted under *Sandoval* will depend on the nature of the charged conduct and the history of the individual defendant. There was much to work with here: The volume of evidence in the People’s *Sandoval* application encompassed three categories of prior bad acts relevant to defendant’s credibility, including general “bad acts,” uncharged sexual assaults (some similar to the charged offenses), and defendant’s abusive behavior towards others. Asserting that the credibility of the respective parties was the “critical and ultimate issue” in the case, the People argued that these proffered acts demonstrated, as *Sandoval* material must, that defendant would put his own interests above those of society.

The trial court, best positioned to assess the admissibility of such proof based on “the facts and circumstances of the particular case before it” (*People v Hayes*, 97 NY2d 203, 207 [2002]), was cognizant of the effect this type of evidence could have upon a jury (*see People v Walker*, 83 NY2d 455, 459 [1994]). The trial court carefully considered each proffered act and its potential for prejudice, excluding the most prejudicial portions—allegations by nontestifying witnesses relating to sexual misconduct—as “too prejudicial,” as well as other acts deemed too remote in time, too general, or too similar to the charged offenses. The court also limited questioning on certain acts, permitting the People to question defendant about instances demonstrating a willingness to further his own interests at the expense of others while at the same time precluding the People from asking defendant about portions of those acts that had to do with sexual misconduct. Applying our well-settled jurisprudence, the Appellate Division concluded that the trial court’s ruling was a provident exercise of its discretion (*see* 207 AD3d 33, 69 [1st Dept 2022]).

In our prior cases, our inquiry would end there. Until today, we considered the *Sandoval* ruling a “largely, if not completely . . . discretionary determination for the trial courts and fact-

reviewing intermediate appellate courts,” and would only intervene where “the trial court ha[s] either abused its discretion or exercised none at all” (*Walker*, 83 NY2d at 458-459 [internal quotation marks and citations omitted]). And until this case, claims which present “nothing more than a disagreement with the ultimate outcome of the trial court’s discretionary balancing determination . . . d[id] not furnish a cognizable ground for intervention by this Court” (*id.* at 459).

Today, the majority intervenes for this defendant, reassessing the proof, making its own unwarranted balancing of interests, and essentially exercising the discretion heretofore reserved for the trial court.³ Purporting to follow *Sandoval* “and its progeny” (majority op at 468), the majority ignores that we have consistently “declined to prescribe fixed rules prohibiting or allowing the use for credibility purposes of prior offenses based solely upon the potentially inflammatory impact of the crime or the victim involved” (*Bennette*, 56 NY2d at 147) and have never approved “per se rules requiring preclusion because of the age, nature and number of a defendant’s prior crimes” (*Walker*, 83 NY2d at 459). Even where “the trial court might have been more discriminating” (*People v Williams*, 12 NY3d 726, 727 [2009] [internal quotation marks and citation omitted]), the sheer number of prior bad acts and the fact that some were remote in time “are matters of substance that may properly be considered by the trial court but are not appropriate bases for this Court to second-guess the trial court’s conclusion” (*Walker*, 83 NY2d at 459).

The majority concludes that proffered evidence—acts the majority describes as “appalling, shameful, repulsive conduct”—would “only diminish defendant’s character before the jury” and the trial court’s ruling would “legitimize destroying a defendant’s character under the guise of prosecutorial need” (majority op at 468). But “a criminal defendant who chooses to testify, like any other civil or criminal witness, may be cross-

3. The majority also appears to quietly endorse a new requirement that material admitted under *Sandoval* be limited to acts that amount to criminal conduct, arguing that “[d]efendant had no criminal history” and that the admitted acts included those “not criminal in nature” (majority op at 468). This would amount to a significant and novel limitation on *Sandoval*, one which the language of *Sandoval* itself prohibits (see *Sandoval*, 34 NY2d at 373; see also *People v Kennedy*, 47 NY2d 196, 205 [1979] [*Sandoval* considerations “are to be applied to cross-examination into alleged immoral, vicious, or criminal acts, regardless of whether those acts resulted in convictions”]).

examined regarding prior crimes and bad acts that bear on credibility, veracity or honesty[,] . . . even in the sensitive area of sex offenses” (*Hayes*, 97 NY2d at 207-208; *see also Bennette*, 56 NY2d at 147-148 [rejecting lower court’s “inflexible rule prohibiting the prosecutor from impeaching the defendant’s credibility by cross-examination on prior sexual offenses” and explaining that “(a) person ruthless enough to sexually exploit a child may well disregard an oath and resort to perjury if he perceives that to be in his self-interest”]). Despite this long-standing approach, the majority instead inverts *Sandoval* (*see* 34 NY2d at 376 [“specific criminal, vicious or immoral conduct *should* be admitted if the nature of such conduct or the circumstances in which it occurred bear logically and reasonably on the issue of credibility” (emphasis added)]), rolling back the People’s ability to present relevant evidence that bears directly on defendant’s credibility in the name of preserving defendant’s “character before the jury” (majority op at 468). Much like the majority’s grave error with respect to the *Molineux* testimony, the majority fails to understand the importance of this particular form of credibility evidence in a case where defendant seeks to convince the jury that he had consent and that his accusers are simply lying.⁴

Chief Judge WILSON and Judges BARROS* and CLARK* concur. Judge SINGAS dissents in an opinion, in which Judges GARCIA and CANNATARO concur. Judge CANNATARO dissents in a separate dissenting opinion, in which Judges GARCIA and SINGAS concur. Judges TROUTMAN and HALLIGAN took no part.

Order reversed and a new trial ordered.

4. I agree that defendant’s remaining arguments are without merit for the reasons stated by the Appellate Division.

* Designated pursuant to NY Constitution, article VI, § 2.

[248 NE3d 735, 223 NYS3d 575]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN
SIDBURY, Appellant.

Argued May 16, 2024; decided June 18, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 2, 2022. The Appellate Division modified, as a matter of discretion in the interest of justice, a judgment of the Supreme Court, Bronx County (Steven L. Barrett, J.), which had convicted defendant, upon a jury trial, of arson in the second degree. The modification consisted of reducing the sentence from a term of 25 years to a term of 10 years. The Appellate Division affirmed the judgment as modified.

People v Sidbury, 206 AD3d 413, reversed.

HEADNOTES

Crimes — Disclosure — Notice of Intention to Offer Psychiatric Evidence

1. The trial court abused its discretion as a matter of law and impinged defendant's constitutional right to present a defense and call witnesses by improperly precluding his psychiatric defense under CPL 250.10 as untimely. To sanction a defendant for failure to comply with the statutory notice requirement, the court must weigh the defendant's constitutional right to a defense against prejudice to the People from late notice. The People never asserted that the late notice would prejudice them, and the trial court did not consider potential prejudice to the People or alternatives that might cure any prejudice. Moreover, the court based its preclusion of the proffered expert testimony in part on its own diagnosis that defendant was competent and manipulating the system. Evaluating a defendant's competency is a present-tense determination, related to a defendant's capacity to understand legal proceedings. By contrast, the psychiatric evidence defendant intended to present focused on his capacity to form the requisite mens rea at the time of the crime. The court also impermissibly based its decision to preclude the expert's testimony on its view that the psychiatric defense would have failed. The court could not have made any preliminary threshold determination about the defense without, for example, reviewing the expert's report that had not yet been written. Also, the court's view that a psychiatric defense supported by a qualified expert would fail should not figure into the calculus in deciding whether to allow a late notice, especially where prejudice had not been implicated.

Crimes — Arson — Legal Sufficiency of Evidence

2. In defendant's prosecution for starting a fire inside the cuffing port of his cell while incarcerated, the evidence presented at trial was legally suf-

ficient to sustain defendant's conviction of arson in the second degree. Appellate counsel expressly stated that for the purposes of his legal insufficiency claim, defendant was making no argument based on lack of intent. He also explained that although the metal cell door should not be deemed to be a "building" for the purposes of the arson statutes, he could not advance that argument on appeal because defendant's trial counsel had taken the position that the metal door was a "building" within the meaning of Penal Law § 150.15. With those two concessions, the argument pressed by defendant on appeal was that the cuffing port was not part of the door. However, the Appellate Division's finding that the cuffing port "was a built-in, integral part of the door" was supported by the record. The cuffing port is bolted into an iron cell door for the purpose of handcuffing and/or delivering food or other items to incarcerated people in solitary confinement. Because it is a necessary part of that door's functionality, and because defendant's counsel conceded the door to his cell was a "building," the evidence that the cuffing port was burned was legally sufficient to sustain his conviction.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Arson and Related Offenses §§ 1–2, 5, 11, 15, 25; AM JUR 2d Criminal Law §§ 43, 54, 57–58, 83, 86; AM JUR 2d Trial §§ 242–243.

CARMODY-WAIT 2d Arraignment, Preliminary Hearing, and Fitness to Proceed §§ 179:55–179:57, 179:62, 179:83; CARMODY-WAIT 2d Pretrial Notice §§ 188:9–188:13, 188:15, 188:20; CARMODY-WAIT 2d Testimony of Witnesses § 195:1.

McKINNEY'S, CPL 250.10; Penal Law § 150.15.

NY JUR 2d Criminal Law: Substantive Principles and Offenses §§ 62, 73–74, 84–86, 93–95, 840, 844, 848, 857, 1777–1778, 1781, 1820, 2295–2296.

ANNOTATION REFERENCE

See ALR Index under Arson; Buildings; Expert and Opinion Evidence; Harmless and Prejudicial Error; Incompetent or Insane Persons; Intent or Motive; Mens Rea.

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Query: "psychiatric defense" & ((arson) OR ((untimely OR late OR "improper notice") /s "psychiatric defense"))

POINTS OF COUNSEL

Caprice R. Jenerson, Office of the Appellate Defender, New York City (Stephen R. Strother and Stephen Chu of counsel), for appellant. I. Steven Sidbury's conviction must be vacated

because he caused damage only to a cuffing port—a small metal box that does not fall within the definition of “building” set forth in the Penal Law. (*People v McDonald*, 68 NY2d 1; *Jackson v Virginia*, 443 US 307; *People v Delamota*, 18 NY3d 107; *People v Taylor*, 94 NY2d 910; *People v Acevedo*, 153 AD3d 1184; *Patrolmen’s Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *People v Roberts*, 31 NY3d 406; *People v Hedgeman*, 70 NY2d 533.) II. The trial court’s rejection of counsel’s NY CPL 250.10 notice and preclusion of Steven Sidbury’s psychiatric defense deprived him of his rights to present a defense and call witnesses under the Federal and State Constitutions. (*People v Almonor*, 93 NY2d 571; *People v Berk*, 88 NY2d 257; *Ronson v Commissioner of Correction of State of New York*, 463 F Supp 97; *People v Diaz*, 15 NY3d 40; *Taylor v Illinois*, 484 US 400; *Michigan v Lucas*, 500 US 145; *People v Jenkins*, 98 NY2d 280; *Noble v Kelly*, 246 F3d 93; *People v Gracius*, 6 AD3d 222; *People v Hartman*, 64 AD3d 1002.) III. Trial counsel’s failure to request submission of the lesser-included count of arson in the fourth degree was ineffective. (*People v Rice*, 162 AD3d 1244; *Strickland v Washington*, 466 US 668; *People v Turner*, 5 NY3d 476; *People v Caban*, 5 NY3d 143; *People v Nesbitt*, 20 NY3d 1080; *People v Camacho*, 178 AD3d 515; *People v Orama*, 157 AD3d 967; *People v Glover*, 57 NY2d 61; *People v Martin*, 59 NY2d 704; *People v Henderson*, 41 NY2d 233.)

Darcel D. Clark, District Attorney, Bronx (*Lori Ann Farrington* and *Yael V. Levy* of counsel), for respondent. I. The cuffing port of defendant’s Rikers Island cell door was an integral part of the jail’s structure; setting it ablaze, which jeopardized the safety of inmates and correction officers, was punishable as a second-degree arson. (*Matter of 1605 Book Ctr. v Tax Appeals Trib. of State of N.Y.*, 83 NY2d 240; *Matter of Metromedia, Inc. [Foster & Kleiser Div.] v Tax Commn. of City of N.Y.*, 60 NY2d 85; *Posson v Przestrzelski*, 111 AD3d 1235; *South Seas Yacht Club v Board of Assessors & Bd. of Assessment Review of County of Nassau*, 136 AD2d 537; *East N.Y. Elec. Co. v Petmaland Realty Co.*, 243 NY 477; *Ford v Cobb*, 20 NY 344; *People v Fanshawe*, 137 NY 68; *Hamilton v Miller*, 23 NY3d 592; *City of Rochester v Macauley-Fien Milling Co.*, 199 NY 207; *People v McDonald*, 68 NY2d 1.) II. The trial court properly denied defendant’s untimely and inadequate CPL 250.10 notice where defendant failed to show good cause for the four-year delay or that the interest of justice was served by

accepting late notice. (*Crane v Kentucky*, 476 US 683; *Chambers v Mississippi*, 410 US 284; *Taylor v Illinois*, 484 US 400; *People v Rizzo*, 267 AD2d 1041; *Ronson v Commissioner of Corr. of State of N.Y.*, 604 F2d 176; *People v Berk*, 88 NY2d 257; *People v Stone*, 22 NY3d 520; *People v Gensler*, 72 NY2d 239; *People v Hanifin*, 77 AD3d 1181; *Noble v Kelly*, 246 F3d 93.) III. Counsel's request for submission of fifth instead of fourth-degree arson as a lesser included offense was reasonable and strategic where it dovetailed with the defense strategy and reduced defendant's sentencing exposure. (*People v Nesbitt*, 20 NY3d 1080; *Strickland v Washington*, 466 US 668; *People v Baldi*, 54 NY2d 137; *People v Rivera*, 71 NY2d 705; *People v Benevento*, 91 NY2d 708; *People v Barboni*, 21 NY3d 393; *People v Caban*, 5 NY3d 143; *People v Stultz*, 2 NY3d 277; *People v McGee*, 20 NY3d 513; *People v Santiago*, 38 AD3d 303.)

OPINION OF THE COURT

Chief Judge WILSON.

Defendant Steven Sidbury has been evaluated and treated for various mental illnesses since childhood. He has been incarcerated since 2013, first in pretrial detention while awaiting trial for a homicide and related charges, and subsequently upon conviction of those charges. While awaiting trial, Mr. Sidbury was placed in solitary confinement at Rikers Island. In 2014, he set fire to a stack of papers inside the "cuffing port" of his solitary cell door. He was charged with arson in the second degree, a B violent felony offense.

Mr. Sidbury was subsequently convicted, after a jury trial, of arson in the second degree and sentenced to 25 years in prison. The Appellate Division unanimously modified the judgment, in the interest of justice, by reducing the sentence term to 10 years, but otherwise affirmed.

On appeal, Mr. Sidbury raises three issues. First, he contends that the trial court erroneously precluded him from presenting psychiatric evidence in his defense. Second, he contends that the evidence was legally insufficient to convict him of arson in the second degree. Third, he contends that his trial counsel was ineffective for requesting a charge on fourth-degree arson instead of fifth. We now reverse and remit for a new trial solely on the preclusion of the psychiatric testimony.

I.

Steven Sidbury first showed symptoms of mental illness when he was in daycare and was first prescribed psychiatric

medication at the age of 10, while he was in foster care. His medical records show that he has attempted suicide and has been psychiatrically hospitalized multiple times—diagnosed with borderline personality disorder, post-traumatic stress disorder, and bipolar disorder.

In 2013, when he was 20 years old, Mr. Sidbury was arrested and indicted for murder in Brooklyn. He was incarcerated on Rikers Island following his arrest and remained there for the next several years awaiting trial on that indictment.¹ Over the course of the several years he was held on Rikers Island and elsewhere, Mr. Sidbury was charged with multiple other offenses. One such charge came as a result of Mr. Sidbury setting fire to papers inside the “cuffing port” of his cell door while in solitary confinement in Rikers Island.

A “cuffing port,” also known as a “food box,” is a metal box built into each cell door to pass items into the cell or to handcuff an individual inside the cell from the outside of it. The port has two plexiglass lids—one facing outside the cell and one facing inside the cell. The dimension of the cuffing port is 18 by 12 inches.

After a correction officer smelled a burning odor, he walked over to Mr. Sidbury’s cell. He saw a fire in Mr. Sidbury’s cuffing port, which he reported to another officer, who looked through the plexiglass lid and saw smoking debris and papers but no flames. The officer then concluded that Mr. Sidbury had set fire to some papers inside the port, retrieved a spray can of water, and extinguished the debris. The fire damaged the interior plexiglass lid, which was bubbled and discolored; there were also some burn marks on the metal. He was charged with arson in the second degree, a B violent felony offense.

Mr. Sidbury was evaluated multiple times for competency to stand trial pursuant to CPL 730.30.² The examiners had no access to and thus did not review any records of his mental health

1. Mr. Sidbury was convicted of manslaughter and weapons possession in 2017 for the Brooklyn indictment. He received an aggregate sentence of 40 years in prison. His appeal of that judgment remains pending in the Appellate Division.

2. In 2015, the Bronx Supreme Court ordered an article 730 examination to determine Mr. Sidbury’s fitness to stand trial on the arson charge and a separate charge of assaulting a correction officer. He was found fit on June 30, 2015. In 2016, he was found mentally unfit to stand trial for the charges pending against him in Queens County and was transferred to the Mid-Hudson Forensic Psychiatric Center, from which he was discharged to Rikers Island in November 2016. He was tried and convicted on the homicide and

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treatment prior to his incarceration at Rikers Island, but instead were limited to records created by Rikers Island staff. The staff—believing he was “malingering” symptoms to “control some of the things that happened to him while incarcerated”—diagnosed him with antisocial personality disorder and adjustment disorder with mood and conduct disturbances. After three years of these evaluations, the examiners concluded that he did not presently have a “major mental illness,” and he was therefore declared fit to proceed to trial.

Throughout this time, Mr. Sidbury was represented by the Legal Aid Society. Following the section 730.30 competency evaluations, however, Mr. Sidbury’s representation within the Legal Aid Society changed. On July 18, 2018, about 45 days after becoming his attorney of record, Mr. Sidbury’s new counsel served notice, pursuant to CPL 250.10, of his intent to offer psychiatric evidence in support of “the affirmative defense of lack of criminal responsibility by reason of mental disease or defect . . . and/or . . . in connection with any other defense” (*see* CPL 250.10 [1] [a], [c]). The evidence included testimony from Dr. Eric Goldsmith, a board-certified forensic psychiatrist and professor at New York University’s School of Medicine, who planned to testify that Mr. Sidbury lacked the capacity to commit arson in the second degree on the date of the cuffing-port fire.

The trial court rejected Mr. Sidbury’s request to accept his late notice of intent to provide a psychiatric defense based on lack of capacity. The court noted that CPL 250.10 provides such notice should be served within 30 days of arraignment and that Mr. Sidbury’s notice was more than 1,400 days late. Mr. Sidbury’s counsel responded that, at that point, he had only been on the case for 60 days, and the court responded that this was “an ongoing and pointless exercise in dilatory tactics” as Mr. Sidbury had prior “competent counsel” and there had been no finding of incompetence. Counsel noted the records and reports the court was relying on regarding competency had been written pursuant to CPL 730.30 rather than 250.10—two

related charges in 2017. He was again referred by Bronx Supreme Court for an article 730 examination later in 2017, and on October 16, 2017, he was found fit to proceed to trial. When, in July 2018, the court set the trial date for Mr. Sidbury’s arson charge, it noted that “for I’d say six months . . . [t]his case has been sitting on the edge of readiness for that whole period of time while they played around in Queens with the competency claim and finally resolved it correctly and rationally.”

separate statutes requiring different psychiatric evaluations directed at different legal issues. Despite recognizing that CPL 250.10 would require admission of the late psychiatric evidence if needed to afford a defendant “substantial justice,” the court refused to entertain the possible admission of the testimony, stating:

“What’s missing in this case is your claim is invalid. There’s no substantial justice in recognizing this claim. There’s no substantial justice related to any claim that your client is incompetent. This is all a history of dilatory tactics. I’m not putting up with it anymore. The case is going to trial now.”

Mr. Sidbury’s counsel asserted that because they were still in the pretrial stage of this case, with 52 days before the start of jury selection, there was enough time for Mr. Sidbury to be examined by the People’s expert without delaying the trial. Counsel also stated that precluding Dr. Goldsmith from testifying would interfere with Mr. Sidbury’s constitutional right to present a defense. Counsel reiterated that the legal standard for CPL 250.10 was different from whether Mr. Sidbury was competent to stand trial pursuant to section 730.30. At that point, the court rejected Mr. Sidbury’s application because there was “nothing that establishe[d] a basis for believing that [he] lacked capacity. You’re putting in a claim saying that [you’re] going to speak to a doctor, [and] maybe he’s going to find this.”

Because of the court’s refusal to allow Mr. Sidbury to call Dr. Goldsmith as a witness pursuant to CPL 250.10, Mr. Sidbury’s counsel made an application for Legal Aid to be relieved from representing him, which the court denied. Counsel’s supervisor from the Legal Aid Society subsequently made an application in front of the court in response to that denial. She conceded that the untimeliness of the CPL 250.10 notice was a “malfeasance” by the Legal Aid Society. She acknowledged that because the court was denying Mr. Sidbury his right to present a defense due to counsel’s malfeasance, another attorney from a different office might be in a more advantageous position. In response, the court replied:

“I take issue with what you’re saying that there’s malfeasance. I don’t think there’s malfeasance. I think that there was a rational and reasonable decision made by the attorneys in this case that there

was no psychiatric defense . . . there is no psychiatric issue. There is a malingering issue. There is a wonderful act that he puts on. There is this calculated effort to interrupt and defeat a trial . . . On the one occasion he was found unfit. They sent him back within 30 days . . . your client does not possess a psychiatric defense. Your client does not possess a psychiatric issue. He's a pain in the neck; I have to agree. He's annoying. He's obnoxious. He's offensive. He's interrupting. But everything is calculated on his part to impede a trial and to defeat everybody's interest. He is basically a person who has determined that he has nothing to lose so why not throw it all out there and be as impossible and difficult as you wish. Now, I think that's psychiatric."

Counsel's supervisor detailed Mr. Sidbury's psychiatric history and replied that it was not "mutually inconsistent to be a pain in the ass, to be manipulative[,] and to suffer from serious psychiatric problems," to which the court replied, "we fundamentally disagree." It said:

"I'm sorry; there has to be a line drawn between the possible existence that he is not completely free of psychiatric issues and the finding that he is, on the basis of his psychiatric issues so flawed . . . I mean, I appreciate the fact that he may have some issues, but are those issues such as to [re]quire a 250.10 notice and a defense based on that kind of circumstance? And I say no . . . because I've observed this defendant for four years and his conduct over the last three to four years. And I say that the kind of conduct that he has demonstrated, both today and every other day that he's appeared here, is calculated conduct. His conduct is always to one objective and that is to interfere with the trial, to interfere and defeat and impede the proceedings that we have here. He does not manifest these other issues as a person who is, in fact, psychiatrically flawed in other respects. He doesn't, as far as I can tell, satisfy the diagnosis criteria."

The court once again denied the request for counsel to be relieved and ruled the CPL 250.10 notice was untimely, and the case proceeded to trial.

At the close of testimony, Mr. Sidbury's counsel moved to dismiss the charge of arson in the second degree, arguing instead that the jury should be presented with the lesser included charge of arson in the fifth degree. Counsel argued that the prosecution had not presented evidence that Mr. Sidbury burned a "building" as required by Penal Law § 150.15, but that the cuffing port, which was akin to a garbage can, was "property of another," consistent with arson in the fifth degree. The court denied the motion and charged the jury as to arson in the second and third degrees. On September 26, 2018, the jury found Mr. Sidbury guilty of arson in the second degree. Despite acknowledging that he had already been sentenced to 40 years' incarceration on the Brooklyn manslaughter and weapons possession charges, and that his total sentence would be statutorily capped at 50 years, the court sentenced him to the maximum term of 25 years in prison because it was "symbolic," and the court wanted to "punish him."

Mr. Sidbury appealed, arguing: (1) his conviction was not supported by legally sufficient evidence because the damage was limited to the cuffing port, which was not a "building" as defined in the statute; (2) the trial court's misapplication of CPL 250.10 deprived him of his right to present a defense and call witnesses under the State and Federal Constitutions; and (3) his trial counsel was ineffective for failing to request a charge on the lesser included offense of arson in the fourth degree.

The Appellate Division unanimously modified the judgment, in the interest of justice, by reducing the sentence term to 10 years rather than 25 years, and otherwise affirmed (206 AD3d 413, 413-414 [1st Dept 2022]). The Court held that the evidence was legally sufficient to support his conviction for second-degree arson; that the preclusion of Dr. Goldsmith's testimony was permissible; and that Mr. Sidbury's ineffective assistance of counsel claim was unreviewable in the absence of a motion under CPL 440.10 (*id.* at 414-415). Notably, the Court reasoned that counsel's CPL 250.10 notice was both "grossly untimely and lacking any showing that the proffered psychiatric expert testimony would be relevant to a particular defense" with "no excuse offered except law office failure" (*id.*). The Court determined that because Mr. Sidbury had been represented by the same "institutional provider" throughout the proceedings and had undergone two CPL article 730 examinations, counsel would have been alerted to "potential psychiatric issues" (*id.* at

415). The Appellate Division further concluded that counsel's notice did not meet the standard set out in *People v Almonor* (93 NY2d 571 [1999]) as it "did not 'contain enough information to enable the prosecution and the court to discern the general nature of the alleged psychiatric malady and its relationship to a particular, proffered defense'" (206 AD3d at 415, quoting *Almonor*, 93 NY2d at 581). In sum, the Court found the result of Mr. Sidbury's "730 examinations, his behavior in the courtroom, and his history of dilatory tactics supported the court's conclusion that defendant was malingering and had no valid psychiatric defense" (*id.*). In the alternative, the Court found no error—constitutional or otherwise—contributed to his verdict (*id.*).

A Judge of this Court granted Mr. Sidbury leave to appeal (39 NY3d 942 [2022]). We now reverse and hold that the trial court's application of CPL 250.10 precluding Mr. Sidbury's psychiatric defense was an abuse of discretion.

II.

A.

We have been clear that the governing principle animating CPL 250.10 is "procedural fairness and orderliness" with the intention of "eliminating the element of surprise" for the prosecution (*see Almonor*, 93 NY2d at 577-578, 581-582; *see also People v Gonzalez*, 22 NY3d 539, 548 [2014]; *People v Diaz*, 15 NY3d 40, 46 [2010]; *People v Berk*, 88 NY2d 257, 263-265 [1996]; *People v Segal*, 54 NY2d 58, 64 [1981]; *Ronson v Commissioner of Corr. of State of N.Y.*, 604 F2d 176, 178, 179 [2d Cir 1979]). The statute formulates a procedure for defendants to serve notice of their intent to present psychiatric evidence that is "prepared and presented manageably and efficiently," such that it allows for "proper notification, adversarial examination, and preclusion when appropriate" (*Almonor*, 93 NY2d at 578).³

Under the statute, "psychiatric evidence" is defined as "[e]vidence of mental disease or defect" to be offered by the defendant in connection with the defense of lack of criminal responsibility by reason of mental disease or defect, extreme emotional disturbance, or any other defense (CPL 250.10 [1] [a], [b], [c];

3. By contrast, CPL article 730 sets forth the procedure for assessing whether a defendant is incapacitated and therefore not fit for a criminal action to proceed (*see* CPL 730.30).

see also Diaz, 15 NY3d at 45). Such evidence is “not admissible upon a trial unless the defendant serves upon the [P]eople and files with the court a written notice of his intention to present psychiatric evidence” (CPL 250.10 [2]). The statute “contemplates that the notice contain enough information to enable the prosecution and the court to discern the general nature of the alleged psychiatric malady and its relationship to a particular, proffered defense” (*Almonor*, 93 NY2d at 581). In cases where the defense is not yet able to make a determination as to the “viability of a particular psychiatric defense and its psychiatric basis,” the statute permits making amendments to the notice and does not prescribe a time within which such amendments must be made (*id.* at 582).

Although the statute provides for service of the notice within 30 days of the defendant’s not-guilty plea, the court has discretion to permit service of a late notice “[i]n the interest of justice and for good cause shown” (CPL 250.10 [2]). Late notice is permissible “at any later time prior to the close of the evidence”—including after trial has commenced (*id.*).

The decision to permit late notice is within the discretion of the trial court (*see Berk*, 88 NY2d at 265-266). That discretion, however, is “not absolute,” because “[e]xclusion of relevant and probative testimony as a sanction for a defendant’s failure to comply with a statutory notice requirement implicates a defendant’s constitutional right to present witnesses in [their] own defense” (*id.* at 266). Instead, the trial court must “weigh [the defendant’s constitutional] right against the resultant prejudice to the People from the belated notice” (*id.*).

The Sixth Amendment to the United States Constitution, applicable to the States under the Fourteenth Amendment, guarantees a criminal defendant the right of “compulsory process to call witnesses in [their] favor” (*Ronson*, 604 F2d at 178). “While a defendant’s right to call witnesses on [their] behalf is not absolute, a state’s interest in restricting who may be called will be scrutinized closely” where “maximum ‘truth gathering,’ rather than arbitrary limitation, is the favored goal” (*id.*). The Supreme Court of the United States has determined that the preclusion of an entire defense for violating a notice statute to be generally inappropriate, where “alternative sanctions” are likely to be “adequate and appropriate in most cases” (*Michigan v Lucas*, 500 US 145, 152 [1991], citing *Taylor v Illinois*, 484 US 400, 413 [1988]). Recognizing the legitimate state interests that notice requirements serve—“protecting against

surprise, harassment, and undue delay”—the Supreme Court has also observed that the severest sanction of preclusion is justified only when the violation amounts to “willful misconduct” and was designed to obtain a “tactical advantage,” or where a less severe penalty would “perpetuate rather than limit the prejudice to the State and the harm to the adversary process” (*Lucas*, 500 US at 152-153, citing *Taylor*, 484 US at 413, 417).

B.

[1] The trial court abused its discretion as a matter of law and impinged Mr. Sidbury’s constitutional right to present a defense and call witnesses when it improperly precluded his psychiatric defense under CPL 250.10. To sanction a defendant for failure to comply with the statutory notice requirement, the court must weigh the defendant’s constitutional right to a defense against prejudice to the People from late notice (*see Berk*, 88 NY2d at 266; *see also Almonor*, 93 NY2d at 582). The court did not conduct that balancing. Instead, the court substituted competency examinations (one of which had determined that at a prior point Mr. Sidbury was not competent to stand trial) and its own lay analysis of Mr. Sidbury’s mental health to incorrectly and prematurely impose the severest sanction for counsel’s violation of the notice statute.

Counsel presented written notice that identified the categories of psychiatric evidence set forth in CPL 250.10 he wished to bring. The notice stated that Mr. Sidbury intended to present “[p]sychiatric evidence in connection with the affirmative defense of lack of criminal responsibility by reason of mental disease or defect” and “[e]vidence of mental disease or defect in connection with any other defense, pursuant to CPL § 250.10(1)(c).” Attached to the notice was a curriculum vitae for counsel’s proposed psychiatric expert, Dr. Eric Goldsmith.⁴

On the record, counsel identified Mr. Sidbury’s history of mental illness and diagnoses, delineated what the expert’s report would indicate, and explained the reason for the delayed notice multiple times to the court. Counsel explained that Dr.

4. Dr. Goldsmith’s attached curriculum vitae showed that he is a board-certified forensic psychiatrist, professor of psychiatry at New York University (NYU), and Residency Supervisor at NYU School of Medicine, and has extensively trained in the intersection of psychiatry and law, spending years as a practicing forensic psychiatrist in both courts and clinics devoted to forensic psychology.

Goldsmith had tentatively concluded that Mr. Sidbury was unable to understand the nature and consequences of his actions at the time of the crime and therefore should not be found culpable. When asked on what basis Dr. Goldsmith would reach that conclusion, counsel stated that the expert would need to examine Mr. Sidbury first. Although Dr. Goldsmith had evaluated Mr. Sidbury's competency to stand trial several times since May 2016, because those conclusions were based only on records from Rikers Island staff, rather than on Mr. Sidbury's entire psychiatric history, and because those conclusions concerned Mr. Sidbury's competency to stand trial at a given point in time rather than whether he had the requisite mental capacity to commit arson in January of 2014, counsel stated that Dr. Goldsmith needed a short amount of time to examine Mr. Sidbury and write up a report with his new conclusions. Counsel requested that the court adjourn so that Dr. Goldsmith could do so and suggested that in two weeks he could provide further detail, which would still have been nearly a month before the scheduled start of trial.

Even if the court believed the written notice should have been more detailed, the remedy should have been a brief adjournment to allow counsel to amend the notice, not the premature preclusion of the defense. As we highlighted in *Almonor*, in some cases, amending a notice may be warranted, "owing to circumstances and developments that vary from case to case," but it is subject to the court's determination as to "good cause, timeliness, prejudice, and other appropriate considerations" (*id.* at 582). Here, the trial court considered timeliness, but did not consider prejudice or any other appropriate considerations, before precluding Mr. Sidbury from presenting a defense.

Turning to the timeliness of the notice, the trial court's failure to balance prejudice to the People resulting from the delayed notice against Mr. Sidbury's constitutional right to present a defense was an error of law. Although the dissent alleges we "misunderstand[] the CPL 250.10 and Sixth Amendment standards and mandate[] a showing of prejudice where none is required" (dissenting op at 522), the "consideration of whether excusing the procedural requirements would prejudice the prosecution" (*id.* at 520) is embedded in New York State decisional law (see e.g. *Almonor*, 93 NY2d at 582; *Diaz*, 15 NY3d at 47; *Berk*, 88 NY2d at 266; *Gonzalez*, 22 NY3d at 548). Indeed, just as our dissenting colleagues note that CPL 250.10

was enacted to “eliminat[e] the element of surprise” (dissenting op at 517-518, citing *Almonor*, 93 NY2d at 578), our case law carefully acknowledges that this very “rule further protects the People from the *prejudice* caused by ‘surprise’ mental health evidence” (*Gonzalez*, 22 NY3d at 548 [emphasis added]).

Here, the People never asserted that the late notice would prejudice them. Even when defense counsel asserted in open court that the People would suffer no prejudice, the People did not dispute that statement in any way. Although the People now contend that they would have been prejudiced because the long untimeliness of the notice prevented them from examining Mr. Sidbury close in time to the arson, that argument is unpreserved for our review because the People did not state it—or make any claim of prejudice—in the trial court (see *People v Baumann & Sons Buses, Inc.*, 6 NY3d 404, 407, 408 [2006]).⁵

The trial court did not consider potential prejudice to the People or alternatives that might cure any prejudice, such as a delay of the trial, a sanction short of preclusion, or a limitation on the scope of Dr. Goldsmith’s testimony. The court never once mentioned prejudice in its analysis, relying instead on the length of delay and the court’s own conclusion that Mr. Sidbury’s “malingering” demonstrated that he possessed the legally requisite mens rea at the time of the arson.⁶ Moreover, Mr. Sidbury’s counsel explicitly stated that he would have a

5. CPL 250.10 (2) provides that the court may allow a defendant to introduce a psychiatric defense and related expert testimony even if the first notice is given mid-trial. This necessarily contemplates some situations where a mid-trial delay to permit the introduction of new psychiatric evidence may be required as a matter of due process. Additionally, the People’s case consisted solely of testimony from three correction officers. The People do not suggest that extending the trial date a few weeks further would have caused the loss of witnesses, documents, or memory. Finally, as we noted in *People v Berk*, the fact that the defense expert “never examined defendant minimized the prejudice to the People” (88 NY2d at 261, 266). That is also the case here. Although Dr. Goldsmith had evaluated Mr. Sidbury during his CPL 730.30 competency exams, he had not examined him for the specific purpose of proffering psychiatric evidence pursuant to CPL 250.10—whether Mr. Sidbury had the requisite mental capacity to commit arson at the time of the incident.

6. Faced with a record in which the People did not assert any prejudice even when affirmatively challenged to do so by defense counsel, the dissent simultaneously sidesteps our case law and assumes the role of inventing arguments for the People (see dissenting op at 524-525). As noted above, our case law firmly establishes that prejudice to the People is an essential consideration. Where the People failed to assert any prejudice, the dissent

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more detailed report in two weeks—an adjournment period that would still afford the People a month before the start of jury selection. Where there is no prejudice to the People, and where the result of preclusion is to deprive a defendant of due process, a decision to deny such an adjournment must consider whether doing so has the “disproportionate effect of punishing [a] defendant for . . . counsel’s dereliction by depriving [the defendant] of a defense” (*People v Hartman*, 64 AD3d 1002, 1005 [3d Dept 2009]). Both our case law and the United States Supreme Court case law emphasize the predominance of the right to a fair trial over purely procedural requirements, especially where no prejudice would result from waiver of a deadline (see *Diaz*, 15 NY3d at 47; *Washington v Texas*, 388 US 14, 22-23 [1967]; *Wardius v Oregon*, 412 US 470, 475-476 [1973]; *Chambers v Mississippi*, 410 US 284, 295 [1973]).

Beyond failing to consider prejudice, the trial court also did not explicitly consider whether the delay was in good faith. The only cause offered here was law office failure. That representation should be understood, however, in the context of a defendant who was waiting for several years to be tried on several different matters, pending in different courts within New York City, and who was sometimes held in facilities outside of New York City—including one near the Canadian border—and whose fitness to stand trial was fluctuating and uncertain.⁷ In

now recasts the court’s armchair diagnosis of Mr. Sidbury as “malingering” and its repeated emphasis on the lateness of counsel’s notice as prejudice to the People. But timeliness and prejudice are two distinct legal concepts, and both CPL 250.10 and our case law sharply draw that distinction (see William C. Donnino, *Prac Commentaries*, McKinney’s Cons Laws of NY, CPL 250.10 [even when notice is untimely, a court may allow the assertion of a defense based on psychiatric testimony when prejudice is absent]; *Almonor*, 93 NY2d at 582 [expressing “timeliness” as distinct from “good cause, . . . prejudice, and other appropriate considerations”]).

7. As the dissent notes, “law office failure may, in certain circumstances, support a showing of good cause” (dissenting op at 524 n 8), but found it did not do so here because of either “some tactical reason or because defendant sat on his rights” (*id.* at 523). *People v Hill* (4 NY3d 876, 877 [2005]), on which the dissent heavily relies, cuts against their argument. In upholding the preclusion of psychiatric evidence in *Hill*, the Appellate Division distinguished the case from *People v Gracius* (6 AD3d 222 [1st Dept 2004]) (see *People v Hill*, 10 AD3d 310, 311-312 [1st Dept 2004]). The Appellate Division explained that in *Gracius*, preclusion was improper because the delay was “occasioned by law office failure,” the “defendant was originally found unfit to stand trial,” and there was no question that “defendant’s sanity” would be significant at trial (10 AD3d at 311-312 [internal quotation marks and citation omitted]). As is the case here, in *Gracius* “the trial court, in its

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any event, the record does not support a finding that the delay was intentional or provided any sort of advantage to Mr. Sidbury.

The court based its preclusion of the proffered expert testimony in part on its own diagnosis that Mr. Sidbury was competent and manipulating the system. It reached that conclusion in part by equating two distinct determinations that are not equivalent—whether Mr. Sidbury had the mental capacity to stand trial pursuant to a CPL 730.30 evaluation, and whether Mr. Sidbury had the requisite mens rea to commit the crimes charged pursuant to CPL 250.10.⁸ Our dissenting colleagues also erroneously equate the two disparate standards (*see* dissenting op at 523, 524). As the Supreme Court has noted, evaluating a defendant's competency is a present-tense determination, related to a defendant's capacity to understand legal proceedings (*see Dusky v United States*, 362 US 402, 402 [1960]). By contrast, the psychiatric evidence Mr. Sidbury intended to present focused on his capacity to form the requisite mens rea at the time of the crime.⁹

The court also impermissibly based its decision to preclude Dr. Goldsmith's testimony on its view that the psychiatric defense would have failed. First, the court could not have made any preliminary threshold determination about the defense

self-designated role of a 'legal gatekeeper,' effectively became an advocate for the People at the expense of defendant's constitutional rights" (6 AD3d at 225). *Gracius*, thus, aligns with Mr. Sidbury's circumstances. In stark contrast, the facts of *Hill* clearly demonstrated "vacillating trial tactics" on behalf of defendant's counsel (10 AD3d at 311). We affirmed preclusion because "[d]efendant did not request the examination or announce his intention to pursue an insanity defense until the start of jury selection, *having previously stated that, for tactical reasons, he would not do so*" (4 NY3d at 877 [emphasis added]). There simply is no record evidence here to point to "vacillating trial tactics" or any "tactical reason" for the delay—much less an affirmative statement that counsel would not present a psychiatric defense for tactical reasons.

8. For example, the court stated:

"nobody has seen fit to make any claim whatsoever about a prior, about a section . . . 250.10 claim, nobody's ever made that claim, although there have been claims of incompetence . . . I have repeatedly said myself there's no basis. I said there's no basis and the judge in Queens held there's no basis. It's not 250.10."

9. It is inherent in the text and structure of the CPL that an individual may be competent to stand trial and still advance the defense of lack of mens rea at the time of the crime (*e.g.*, temporary insanity, extreme emotional distress, or other psychiatric disturbances). This is because of the difference in legal standards.

without, for example, reviewing the expert's report that had not yet been written. Second, the court's view that a psychiatric defense supported by a qualified expert would fail should not figure into the calculus in deciding whether to allow a late notice, especially where prejudice had not been implicated. Absent some other reason to preclude an expert's testimony (*e.g.*, lack of qualification as an expert), the severe penalty of precluding Mr. Sidbury's defense on the court's own determination about the viability of the defense is not consistent with the proper considerations of a defendant's Sixth Amendment constitutional right.¹⁰ Accordingly, the trial court's application of CPL 250.10 was an abuse of discretion.

III.

Mr. Sidbury argues that the evidence was not legally sufficient to sustain a conviction of arson in the second degree. Under Penal Law § 150.15, "[a] person is guilty of arson in the second degree when he intentionally damages a building or motor vehicle by starting a fire."

[2] Two concessions by Mr. Sidbury make it impossible for him to prevail on that claim. First, counsel expressly stated that for the purposes of his legal insufficiency claim, Mr. Sidbury was making no argument based on lack of intent. Second, he explained that although the metal cell door should not be deemed to be a "building" for the purposes of the arson statutes, he could not advance that argument on appeal because Mr. Sidbury's trial counsel had taken the position that the metal door was a "building" within the meaning of Penal Law § 150.15.

With those two concessions, the argument pressed by Mr. Sidbury on appeal is that the cuffing port is not part of the door. The Appellate Division found that "rather than being a separate container, [the cuffing port] was a built-in, integral part of the door" (206 AD3d at 414). That conclusion finds support in the record: the cuffing port is bolted into an iron cell

10. Despite the dissent's mischaracterization of our precedent as saying otherwise (*see* dissenting op at 518 ["In order to establish good cause, a defendant must provide an explanation for the delay and demonstrate that the defense has merit" (internal quotation marks and citations omitted)]), we have never held that a court may refuse to allow a psychiatric defense because the court believes the defense lacks merit (subject, of course, to the usual *Frye* and expert qualification requirements, neither of which is at issue here).

door for the purpose of handcuffing and/or delivering food or other items to incarcerated people in solitary confinement. Because it is a necessary part of that door's functionality, and because Mr. Sidbury's counsel conceded the door to his cell is a "building," the evidence that the cuffing port was burned is legally sufficient to sustain his conviction.

Because we have granted Mr. Sidbury a new trial, we have no occasion to address his claim that his trial counsel was ineffective for requesting a charge of fourth-degree arson instead of fifth.

IV.

Accordingly, the order of the Appellate Division should be reversed, and a new trial ordered.

SINGAS, J. (dissenting in part). While awaiting trial on murder charges, defendant set a fire in the port of his cell door. Nearly four years, three lawyers, and four CPL 730.30 examinations after he was arraigned on an arson charge, defendant for the first time filed a conclusory notice of intent to introduce psychiatric evidence in his defense. The majority holds that the trial court abused its discretion in excluding this evidence because it impeded the defendant's Sixth Amendment right to present a defense. This simply ignores controlling Supreme Court precedent holding otherwise. Because defendant patently failed to satisfy the substance or procedures necessary to introduce psychiatric evidence, and because the Supreme Court has consistently, and recently, held that the Federal Constitution does not require courts to weigh prejudice to the prosecution against the defendant's right to present a defense before precluding evidence pursuant to a valid state notice statute, I dissent.¹

I.

In 2013, defendant was arrested for murder and detained while awaiting trial. During his incarceration, in 2014 defendant lit fire to the cuffing port of his jail cell leading to the charges that are the subject of this appeal. Defendant was as-

1. I agree with the majority that defendant's challenge to the sufficiency of the evidence concerning the arson charge lacks merit.

signed an attorney,² who entered a not guilty plea on defendant's behalf at his arraignment in October 2014.³

At the request of his counsel, defendant underwent multiple CPL 730.30 examinations to determine whether he was fit to proceed to trial, the first occurring in June 2015. The two examining psychiatrists opined that defendant was fit to proceed. Though defendant had psychiatric hospitalizations as a child, the psychiatrists individually concluded that defendant's current actions were manipulative. He met the diagnostic criteria for adjustment and antisocial personality disorders, "marked by repeated violation of laws and social norms, disregard for the rights and well-being of others," and similar traits. Ultimately, however, the psychiatrists believed that defendant did not suffer from a major mental illness and accordingly found defendant fit to proceed to trial. The defense did not raise the possibility of a psychiatric defense.

More than two years later, in October 2017, defendant underwent another round of CPL 730.30 examinations. Both resulting reports again noted defendant's manipulative behaviors and the failure to display any signs or symptoms of a mental illness.⁴ One psychiatrist concluded that as "a result of his personality issues, [defendant] is likely to be a difficult, uncooperative defendant, who will engage in manipulative gestures and reports to serve his own interests. However, it is clear that he does not suffer from a major mental illness." The other psychiatrist concluded that defendant's uncooperative "behavior is volitional and an attempt to manipulate the legal

2. The first of three attorneys from the same institutional provider. Multiple attorneys were assigned to handle his case, apparently because of the challenging nature of the representation.

3. While detained, defendant engaged in other misbehavior for which he was charged. The trial judge estimated that, at one point, defendant had 12 cases proceeding against him based on conduct within jail. This included an assault on a correction officer with a piece of metal, which caused injury, and for which he was criminally charged separate from this indictment. In addition, defendant set at least one other fire besides the one giving rise to this appeal.

4. In a separate Queens County criminal proceeding, defendant was briefly found unfit to proceed. He was admitted to a forensic center before quickly being discharged approximately two weeks later. The center's discharge summary concluded that defendant did not meet the criteria for any anxiety, mood, or psychotic mental illness. Instead, defendant was diagnosed with an antisocial personality disorder because he "demonstrate[d] a lack of regard for the rules and a sense of entitlement which manifests itself in [a] lack of cooperation with the criminal process in an effort to avoid prosecution."

process to angle for leniency and non-culpability,” and that his “act[ing] out in maladaptive aggressive manner in both Court and during the course of his incarceration on Rikers Island” was “not due to a primary mental illness but rather attributed to his character pathology (personality disorder) and sociopathy.” Though perhaps “a challenging client,” both psychiatrists determined that defendant was fit to proceed. This second examination again did not prompt defendant’s attorney to raise the possibility of a psychiatric defense or serve CPL 250.10 notice.

Throughout the litigation, defendant repeatedly acted out and disrupted the court proceedings. At a January 2018 appearance, defendant insisted that he had been found unfit to proceed to trial, despite the two findings to the contrary. Defendant continuously interrupted the judge, accused his lawyer of “do[ing] coke,” and twice told the court to “[s]uck my dick.” Such conduct was not isolated: at one appearance, he shouted the same vulgarity over 20 times before being removed from the courtroom. When the court warned defendant that he could forfeit his right to be present due to his repeated outbursts, defendant repeatedly told the court to “shut the fuck up.” The court then decided to proceed with the trial in defendant’s absence, noting that he had “mastered the art of trying to impede this trial from going forward.”

Defendant’s third and final trial attorney entered the case in mid-2018. Forty-five days later, and nearly four years after the arraignment, defendant filed for the first time a notice of intent to offer psychiatric evidence in support of “the affirmative defense of lack of criminal responsibility by reason of mental disease or defect . . . and/or . . . in connection with any other defense, pursuant to CPL . . . 250.10(1)(c)” and attached the curriculum vitae of psychiatrist Dr. Eric Goldsmith. At a subsequent hearing, defense counsel requested time to have Dr. Goldsmith, who had previously assessed defendant for CPL 730.30 purposes in a different case, examine defendant’s state of mind at the time of the crime and prepare a report. In asking for more time, counsel acknowledged that the case was on “the eve of trial but we’re not on trial.”

The trial court precluded the introduction of such evidence because it was close to four years late, the claim was “invalid,” defendant failed to establish good cause for the delay, and the interest of justice did not warrant the late notice. The court concluded that defendant’s motion was “dilatory,” “manipula-

tion,” and “game playing,” and noted that defendant’s previous lawyers did not demonstrate any intent to bring this defense. As the court explained, the case had been “sitting on the edge of readiness” for six months awaiting the result of a CPL 730.30 report in a separate proceeding. The court then set a trial date in September, accommodating defense counsel’s prior vacation plans. Following the trial, the jury convicted defendant of arson in the second degree.

At sentencing, defendant again began screaming and speaking inappropriately, and twice spat on his attorney. The court removed defendant and sentenced him in his absence. On appeal, the Appellate Division modified the sentence but otherwise affirmed defendant’s conviction (*see* 206 AD3d 413 [1st Dept 2022]). The majority now reverses the Court’s unanimous order.

II.

A.

To introduce psychiatric evidence at trial, a defendant must give written notice of such intent to the People and the court (*see* CPL 250.10 [2]). “[P]sychiatric evidence” is “[e]vidence of mental disease or defect to be offered by the defendant in connection with the affirmative defense of lack of criminal responsibility by reason of mental disease or defect” or “any other defense” (*id.* § 250.10 [1] [a], [c]). “Such notice must be served and filed before trial and not more than thirty days after entry of the plea of not guilty to the indictment” (*id.* § 250.10 [2]). CPL 250.10 notice should “contain enough information to enable the prosecution and the court to discern the general nature of the alleged psychiatric malady and its relationship to a particular, proffered defense” (*People v Almonor*, 93 NY2d 571, 581 [1999]). Thus, we have held that a defendant’s notice was inadequate when it stated only that he was diagnosed as suffering from an “acute stress disorder” at the time of the alleged crime but did not connect the disorder to a CPL 250.10 (1) category (*id.* at 579-580; *see also id.* at 580 [“A notice that names a disorder untied to a CPL 250.10 (1) category is an abstraction”]).

CPL 250.10 was enacted “to promote procedural fairness and orderliness” and “designed to create a format by which psychiatric evidence may be prepared and presented manageably and efficiently, eliminating the element of surprise” (*Almonor*, 93

NY2d at 577-578). Its functioning “depends upon proper notification, adversarial examination, and preclusion when appropriate” (*id.* at 577-578). “CPL 250.10 contemplates timely disclosure so that the trier of fact may benefit, after psychiatric issues are sharpened and engaged to the fullest extent possible” (*id.* at 581-582). “At the other extreme, and to be avoided, lies the prospect of psychiatric hide and seek” (*id.* at 582). The 30-day notice provision also “enables the People to have [a] defendant examined by their own experts within close temporal proximity to the offense” (*People v Berk*, 88 NY2d 257, 265 [1996]; *see* CPL 250.10 [3]). In short, “untimely notice thwarts CPL 250.10’s intended promotion of procedural order, proper notification[,] and adversarial examination” (*People v Hill*, 4 NY3d 876, 877 [2005]).

But CPL 250.10 does not bar late notice completely: “[i]n the interest of justice and for good cause shown, . . . the court may permit such service and filing to be made at any later time prior to the close of the evidence” (CPL 250.10 [2]). “In order to establish good cause, a defendant must provide an explanation for the delay and demonstrate that the defense has merit” (*People v Rizzo*, 267 AD2d 1041, 1042 [4th Dept 1999], *lv denied* 95 NY2d 838 [2000]; *accord People v Taglianetti*, 183 AD3d 1233, 1233-1234 [4th Dept 2020], *lv denied* 35 NY3d 1049 [2020]; *see also United States v Duggan*, 743 F2d 59, 80 [2d Cir 1984] [“cause” “consists not only of explanation for the belatedness of the party’s action, but also of a showing of some merit in the position belatedly to be advanced”]). Late notice is not excusable when “counsel was fully aware that [the] defendant had a long-standing history of mental health problems, including diagnoses of bipolar disorder and schizophrenia, as evidenced by the record of the CPL article 730 hearing, which took place a year before the trial” (*People v Silburn*, 31 NY3d 144, 160 [2018]).

Moreover, the passage of significant time counsels against permitting a psychiatric defense because it becomes more and more difficult for any psychiatrist to determine a defendant’s past mental state (*see Berk*, 88 NY2d at 265 [noting importance of examination “within close temporal proximity to the offense”]; *People v Hill*, 10 AD3d 310, 312 [1st Dept 2004] [“examination of defendant three years after the incident at issue would be of questionable value in establishing his state of mind at the time of the incident”], *affd* 4 NY3d 876 [2005]). We will not disturb a trial court’s exclusion of psychiatric evidence absent an abuse of discretion (*see Almonor*, 93 NY2d at 583).

B.

CPL 250.10 cannot be considered in isolation. As we have recognized, “[e]xclusion of relevant and probative testimony as a sanction for a defendant’s failure to comply with a statutory notice requirement implicates a defendant’s constitutional right to present witnesses in [their] own defense” (*Berk*, 88 NY2d at 266, citing US Const 6th Amend). However, just because exclusion implicates those rights does not mean that every exclusion violates the Sixth Amendment’s Compulsory Process Clause; “[t]he Sixth Amendment does not confer the right to present testimony free from the legitimate demands of the adversarial system” (*United States v Nobles*, 422 US 225, 241 [1975]; see also *Washington v Texas*, 388 US 14, 23 n 21 [1967]). Rather, a criminal defendant’s rights to confront adverse witnesses and to present evidence “may, in appropriate cases, bow to accommodate other legitimate interests in the criminal trial process,” so long as the restrictions are not “arbitrary or disproportionate to the purposes they are designed to serve” (*Rock v Arkansas*, 483 US 44, 55-56 [1987]). As such, courts “have long rejected the notion that a statutory pretrial notice requirement somehow . . . is a constitutional violation of the right to present a defense” (*Silburn*, 31 NY3d at 159).

Indeed, the Supreme Court has “described notice requirements as ‘a salutary development which, by increasing the evidence available to both parties, enhances the fairness of the adversary system’ ” (*Michigan v Lucas*, 500 US 145, 150-151 [1991], quoting *Wardius v Oregon*, 412 US 470 [1973]), and which prevent trials from becoming a “poker game” (*id.* at 150 [internal quotation marks omitted]). “The adversary process could not function effectively without adherence to rules of procedure that govern the orderly presentation of facts and arguments to provide each party with a fair opportunity to assemble and submit evidence to contradict or explain the opponent’s case” (*Taylor v Illinois*, 484 US 400, 410-411 [1988]). As such, the “interest in the orderly conduct of a criminal trial is sufficient to justify the imposition and enforcement of firm, though not always inflexible, rules relating to the identification and presentation of evidence” (*id.* at 411). A state’s “interest in protecting itself against an eleventh-hour defense is merely one component of the broader public interest in a full and truthful disclosure of critical facts” (*id.* at 412 [internal quotation marks and footnote omitted]).

The Supreme Court has accordingly upheld a wide variety of notice requirements in analogous situations. In *Taylor*, the Court upheld the preclusion of testimony from a proposed defense witness who was not disclosed in response to a pretrial discovery request as a sanction for failure to disclose the witness (see 484 US at 416-418). In *Lucas*, it held that preclusion of evidence of the defendant's own past sexual conduct with the victim because of the defendant's failure to comply with the notice-and-hearing requirements of Michigan's rape-shield statute was not a per se violation of the Sixth Amendment (see 500 US at 149-153). The Supreme Court reaffirmed these principles in 2013 when it confirmed that the defendant was not denied a right to present a complete defense when he was barred from presenting extrinsic evidence of the victim's prior accusations of sexual assault because he failed to file a notice of intent to do so as required under Nevada law (see *Nevada v Jackson*, 569 US 505, 510-511 [2013]; see also *Williams v Curtin*, 613 Fed Appx 461, 468 [6th Cir 2015] [citing *Jackson* in upholding the preclusion of alibi evidence pursuant to a state notice statute, and noting that *Taylor* "does not prescribe a comprehensive standard, and it does not mandate interest-balancing"]; *Matthews v Carl*, 2023 WL 8519807, *9, 2023 US Dist LEXIS 218687, *25 [WD Mich, Dec. 8, 2023, No. 1:22-cv-566] [upholding preclusion of alibi evidence pursuant to a state notice statute and concluding that "the *Taylor* Court did not hold that the availability of alternative sanctions would preclude suppression of alibi witness testimony"]⁵).

Notably absent from any of these Supreme Court cases is a consideration of whether excusing the procedural requirements would prejudice the prosecution in a specific case. Rather, the *Jackson* Court stated that no "case[] clearly establish[es] that the Constitution requires a case-by-case balancing of interests

5. The majority cites three cases for the proposition that "the right to a fair trial [predominates] over purely procedural requirements, especially where no prejudice would result from waiver of a deadline," but these cases are inapposite (majority op at 511, citing *Wardius*, 412 US at 475-476, *Chambers v Mississippi*, 410 US 284, 295 [1973], and *Washington*, 388 US at 23). *Wardius* and *Chambers* involve Fourteenth Amendment due process challenges, not Sixth Amendment compulsory process challenges. Defendant makes no such challenge here. The rules at issue were invalidated because they were "arbitrary" and "excluded important defense evidence but . . . did not serve any legitimate interests" (*Holmes v South Carolina*, 547 US 319, 325-326 [2006]). The rules here are far from arbitrary. *Washington* is a Sixth Amendment case but involves a challenge to an archaic rule which prevented defendant from calling his alleged accomplice as a witness.

before such a rule can be enforced” (*Jackson*, 569 US at 510). Though, relying on a Second Circuit case, we have previously referenced the consideration of prejudice in this context (see *Berk*, 88 NY2d at 266, citing *Ronson v Commissioner of Corr. of State of N.Y.*, 604 F2d 176 [2d Cir 1979]), the Second Circuit later upheld preclusion pursuant to CPL 250.10 without explicit reference to prejudice, distinguishing its earlier decision in *Ronson* on the grounds that there the prosecution was already on notice of the defendant’s intent to rely on an insanity defense and the defendant substantially complied with the notice requirement (see *United States v Toner*, 728 F2d 115, 123 [2d Cir 1984]). *Berk* addressed prejudice in a single sentence, in an opinion otherwise concerned with the scope of the evidence encompassed by CPL 250.10 (see 88 NY2d at 266). It cited only the Federal Constitution and *Ronson*, a since-curtailed Second Circuit opinion (see *id.*).⁶ The Supreme Court has since addressed the interaction between state notice statutes and the Sixth Amendment and clarified that “[t]he Court did not even suggest, much less hold, that it is unconstitutional to enforce such a rule unless a case-by-case balancing of interests weighs in favor of enforcement” (*Jackson*, 569 US at 511). Ignoring *Jackson*, and citing only *Lucas* and older Supreme Court precedent (see majority op at 507-508, 511), the majority grafts that precise case-by-case analysis disavowed by the Supreme Court onto all cases that implicate a defendant’s right to present a defense. That holding is entirely unmoored from Sixth Amendment case law.

III.

Here, the trial court did not err in precluding defendant’s psychiatric defense. Initially, CPL 250.10 clearly serves “legiti-

6. Two of the cases the majority cites as establishing that a prejudice analysis “is embedded in New York” law (majority op at 509) did not even conduct a prejudice analysis and therefore had no reason to assess the issue (see *People v Gonzalez*, 22 NY3d 539, 541 [2014] [holding as a matter of statutory interpretation that notice is not required when “the defendant offers no evidence at trial but requests an (extreme emotional disturbance) jury charge based solely upon evidence presented by the People”]; *People v Diaz*, 15 NY3d 40, 47 [2010] [holding that notice is required under CPL 250.10 to raise an extreme emotional disturbance defense based on the defendant’s own testimony]). In *Almonor*, the defendant did argue that preclusion violated the Sixth Amendment, but, without any discussion of prejudice to the People, we held that the trial court providently exercised its discretion to exclude psychiatric witnesses for failing to comply with CPL 250.10 (93 NY2d at 581).

mate interests” and is not “arbitrary or disproportionate” (*Rock*, 483 US at 55-56; see *Ronson*, 604 F2d at 178 [CPL 250.10 “serves a legitimate purpose”]; *Silburn*, 31 NY3d at 173 [Wilson, J., dissenting] [not disputing “that CPL 250.10 furthers a ‘compelling’ purpose”]). Among other things, the notice rule avoids “psychiatric hide and seek” (*Almonor*, 93 NY2d at 582) and enables examination in “close temporal proximity to the offense” (*Berk*, 88 NY2d at 265). These interests are analogous to the “legitimate state interests support[ing] the notice-and-hearing requirement” in the rape shield law challenged in *Lucas*, including “protect[ing] against surprise to the prosecution” and “permit[ing] a prosecutor to . . . investigate whether such a prior relationship actually existed” and consider its materiality and prejudicial nature (500 US at 149-150).

Though the majority posits that preclusion is inappropriate unless the failure to comply is “designed to obtain a ‘tactical advantage’ ” (majority op at 508, quoting *Lucas*, 500 US at 152-153, citing *Taylor*, 484 US at 413, 417), its conclusion relies on a misreading of the Supreme Court’s case law, which holds that willful misconduct is sufficient, but not necessary to preclude a defendant from presenting certain evidence (see *Taylor*, 484 US at 415 [it “would be entirely consistent with the purposes of the Compulsory Process Clause simply to exclude the witness’ testimony” if the defendant engaged in such misconduct (emphasis added)]; *United States v Johnson*, 970 F2d 907, 911 [DC Cir 1992] [explaining that *Taylor* did not state that findings of misconduct were essential for exclusion]). Thus, CPL 250.10’s requirements may constitutionally be applied to preclude a defendant from interposing a psychiatric defense.

Here, the majority misunderstands the CPL 250.10 and Sixth Amendment standards and mandates a showing of prejudice where none is required. Initially, defendant’s notice clearly fails to satisfy the substantive or procedural requirements of CPL 250.10. Most obviously, the notice is extraordinarily late: it is dated nearly four years after arraignment, far beyond the 30-day statutory deadline. Besides being woefully past due, the purported notice is also substantively deficient. Defendant’s notice merely parrots the statutory language, without providing any particularization. Nowhere does the notice contain any information as to the “alleged psychiatric malady” nor its relationship to any defense. Listing CPL 250.10 (1) categories without identifying any disorder is really no notice at all as it

withholds from the People information necessary to assess the proffered defense (*see Rizzo*, 267 AD2d at 1042 [preclusion proper where defendant failed to identify any alleged psychiatric malady or its relationship to a particular defense]). I fail to see how a trial court abuses its discretion by rejecting years late notice that provides essentially zero information.

The majority's attempts to salvage the notice are misguided and ignore our standard of review. The majority points to the record at a July 2018 hearing on the notice as purportedly providing the required information (majority op at 508-509). But the statute requires "written notice" (CPL 250.10 [2]).⁷

The majority further concludes that even if notice was deficient, the court should have provided an adjournment to permit counsel to amend the notice (majority op at 509). Certainly, we have recognized that in certain circumstances an adjournment may be warranted, but that power is left to the trial court's discretion (*see Almonor*, 93 NY2d at 582). Here, given the four-year delay to file notice, the fact that the same institutional provider defended the action for the entire pendency of the proceeding, and the extensive history of psychiatric examinations, the court did not abuse its discretion by concluding that the bare bones notice could not be remedied.

Moreover, defendant failed to demonstrate that late notice should have been excused for good cause and in the interest of justice. There was no good cause for the delay because defense counsel had significant advance warning that psychiatric evidence could be relevant. Defendant had multiple CPL article 730 examinations—well before he belatedly gave notice—and the reports noted that defendant had previous psychiatric hospitalizations. Defendant's abhorrent behavior throughout the court proceedings also should have put counsel on notice that a psychiatric defense might have been warranted. Nevertheless, original counsel decided not to pursue a psychiatric defense, either for some tactical reason or because defendant sat on his rights. In either event, it was not an abuse of discre-

7. Even if it were proper to look at the hearing record, it does not cure the notice's deficiencies (*see* majority op at 508-509). Defense counsel simply stated that he believed defendant was not culpable by reason of a mental defect or disease, but this conclusory statement was no different than what was included in the inadequate notice. As the court rightfully stated, this was a conclusion. When questioned for the basis of the claim, defense counsel conceded that he did not know, and that defendant needed to be examined first.

tion to conclude that defendant could not demonstrate good cause (*see Silburn*, 31 NY3d at 160).⁸

Besides giving defense counsel notice, the examinations also cast doubt on the merit and sincerity of defendant's psychiatric defense. None found defendant to be suffering from a major mental illness. Rather, each psychiatrist found defendant to have a pattern of manipulative behavior. As one psychiatrist explained, defendant lashed out "not due to a primary mental illness," but because of "his character pathology." Further, the court noted that Dr. Goldsmith had testified in a separate proceeding that he believed defendant to be unfit for trial, but his conclusions were rejected. Similarly, the court also appropriately considered defendant's dilatory tactics throughout the trial, as they tended to cast doubt on defendant's claim that the extreme delay in interposing his psychiatric defense was excusable. Contrary to the majority's assertion that the trial court "impermissibly based its decision" on its own views (majority op at 512), the trial court relied on the professional opinions of the doctors as manifested in the CPL 730.30 examination reports to reach conclusions about the defendant's manipulative behavior and the merits of the defense.

CPL 250.10's notice requirement serves legitimate interests and defendant failed to comply with it either procedurally or substantively. The trial court therefore did not abuse its discretion in declining to permit late notice and precluding the evidence here, even absent prejudice to the People.

However, even if the trial court needed to consider prejudice to the People, the record presents ample evidence of it. The court repeated over and over that notice was extraordinarily late. Indeed, defense counsel conceded that his request was on "the eve of trial." Further, the court best understood the dynamics of the trial, and concluded that defendant was "malinger-ing," attempting to "manipulat[e]" the trial, "playing" games, and engaging in "dilatory tactics." The passage of four years would obviously hamper the prosecution's ability to collect evidence relevant to defendant's mental state at the time of the

8. To get around this, defendant claims that prior counsel rendered ineffective assistance and that the last counsel of record served notice as soon as possible. While so-called law office failure may, in certain circumstances, support a showing of good cause, it does not do so here. Despite defense counsel's contention that the defense was obvious to him, he did not file notice until 45 days after becoming defendant's counsel, beyond the 30-day period set forth in the statute.

crime because it could lead to faded memories or unavailable witnesses. So too would allowing defendant to interpose the defense at the last minute, which would either limit the People's ability to respond or further delay the trial. The majority faults the trial court for not using the word "prejudice," but ignores that prejudice is plainly evident in this record.

Defendant repeatedly acted out in an apparent attempt to derail the process. The trial judge endured years of defendant's abusive conduct and nevertheless was able to ensure he received a fair trial. Rather than acknowledge those efforts, the majority selectively quotes from particularly strained exchanges in the record to suggest that the judge was intemperate and failed to adequately protect defendant's rights (*see* majority op at 503-504). Not only is that an injustice here, but today's decision will serve as an incentive for others to employ this same successful trial strategy. As the trial court is in the best position to assess the case and prevent manipulation by a defendant engaging in dilatory conduct, we have repeatedly stated that the "trial court is granted broad discretion in making evidentiary rulings in connection with the preclusion or admission of testimony and such rulings should not be disturbed absent an abuse of discretion" (*Almonor*, 93 NY2d at 583). No such abuse of discretion is evident here. I dissent.

Judges RIVERA, TROUTMAN and HALLIGAN concur. Judge SINGAS dissents in part and votes to affirm in an opinion, in which Judges GARCIA and CANNATARO concur.

Order reversed and a new trial ordered.

[249 NE3d 27, 224 NYS3d 1]

ANA ORELLANA, Appellant, v TOWN OF CARMEL et al., Respondents.

Argued September 11, 2024; decided October 17, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered January 25, 2023. The Appellate Division affirmed an order of the Supreme Court, Putnam County (Victor G. Grossman, J.; op 2020 NY Slip Op 35029[U] [2020]), which had granted defendants' motion for summary judgment dismissing the complaint, and denied, as academic, plaintiff's cross-motion, among other things, for summary judgment on the issue of liability.

Orellana v Town of Carmel, 212 AD3d 834, reversed.

HEADNOTE**Motor Vehicles — Collision — Engaged in Work on Highway Exemption from Liability for Ordinary Negligence**

Defendant town highway superintendent was not “actually engaged in work on a highway” within the meaning of Vehicle and Traffic Law § 1103 (b) when, as he was driving back to his office after assessing snow accumulation and radioing his team, he entered an intersection without the right-of-way and collided with plaintiff's vehicle. Accordingly, the superintendent and his municipal codefendants were not exempt from liability for ordinary negligence and entitled to be held to a recklessness standard. Although the section 1103 (b) exemption is broad and does not require that a vehicle be located in a designated “work area” in order to receive the protection, it applies only when such work is in fact being performed at the time of the accident. According to the superintendent's own deposition testimony, he had fully completed his assessment of roadway conditions at his bellwether location and mobilized his entire team to salt the town's roads. At the time of the accident, he was merely using the road to return to work. Although the superintendent testified that he saw a slushy accumulation of snow to his left shortly before the collision occurred, he took no action in response to observing that condition. Indeed, he testified that as he pulled into the intersection where the collision occurred, there was nothing keeping his attention drawn to his left and he was no longer looking at the condition.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Automobiles and Highway Traffic §§ 225, 226.
NY JUR 2d Automobiles and Other Vehicles § 684.
NEW YORK LAW OF TORTS §§ 7:15, 12:74.

ANNOTATION REFERENCE

See ALR Index under Automobiles and Highway Traffic.

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POINTS OF COUNSEL

Enoch Brady & Associates, Port Chester (*Enoch C. Brady* of counsel), and *Marie R. Hodukavich*, Peekskill, for appellant. I. This Court should reverse the Appellate Division and deny defendants' motion for summary judgment because Vehicle and Traffic Law § 1103 (b) does not apply to the facts presented here; Michael Simone was not actually working on a highway at the time of the accident. (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Patrolmen's Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205; *Riley v County of Broome*, 95 NY2d 455; *Primeau v Town of Amherst*, 5 NY3d 844; *Bicchetti v County of Nassau*, 49 AD3d 788; *Chase v Marsh*, 162 AD3d 1589; *Ferrand v Town of N. Harmony*, 147 AD3d 1517; *Howell v State of New York*, 169 AD3d 1208; *Lobello v Town of Brookhaven*, 66 AD3d 646; *Ryan v Town of Smithtown*, 49 AD3d 853.) II. This Court should grant plaintiff summary judgment against defendants, based on Michael Simone's unexcused violation of the Vehicle and Traffic Law, when he ran a stop sign and entered the intersection without looking for traffic coming from plaintiff's direction of travel. (*Alvarez v Prospect Hosp.*, 68 NY2d 320; *Winegrad v New York Univ. Med. Ctr.*, 64 NY2d 851; *Sillman v Twentieth Century-Fox Film Corp.*, 3 NY2d 395; *Belle-Fleur v Desriviere*, 178 AD3d 993; *Watson v Narayanan*, 149 AD3d 1012; *Enriquez v Joseph*, 169 AD3d 1008; *Ming-Fai Jon v Wager*, 165 AD3d 1253; *Giannone v Urdahl*, 165 AD3d 1062; *Lebron v Mensah*, 161 AD3d 972; *Aponte v Vani*, 155 AD3d 929.) III. Alternatively, this Court should find that there are triable questions of fact for a jury to resolve as to whether Michael Simone was operating a vehicle that was actually performing work on a highway or whether he was merely returning to his office. (*Vega v Restani Constr. Corp.*, 18 NY3d 499; *Sillman v Twentieth Century-Fox Film Corp.*, 3 NY2d 395; *O'Keeffe v State of New York*, 40 AD3d 607; *Ibarra v Town of Huntington*, 6 AD3d 391; *Bicchetti v County of Nassau*,

49 AD3d 788.) IV. Alternatively, there is a triable issue of fact as whether Michael Simone's conduct constituted reckless disregard for the safety of others. (*Riley v County of Broome*, 95 NY2d 455; *Deleon v New York City Sanitation Dept.*, 25 NY3d 1102; *Freitag v Village of Potsdam*, 155 AD3d 1227; *Joya v Baratta*, 164 AD3d 772; *Chase v Marsh*, 162 AD3d 1589; *Ryan v Town of Smithtown*, 49 AD3d 853; *Bliss v State of New York*, 95 NY2d 911; *Campbell v City of Elmira*, 84 NY2d 505.)

Gerber Ciano Kelly Brady LLP, Garden City (Brendan T. Fitzpatrick, Brian W. McElhenny and Matthew S. Lerner of counsel), and Brett Goldman and Lydecker Diaz, Melville, for respondents. I. The Supreme Court and unanimous Appellate Division, Second Department correctly applied Vehicle and Traffic Law § 1103 (b) to dismiss the complaint as Michael Simone was engaged in highway work at the time of the incident. (*Farley v Mayor of City of N.Y.*, 152 NY 222; *Primeau v Town of Amherst*, 5 NY3d 844; *Riley v County of Broome*, 95 NY2d 455; *Saarinén v Kerr*, 84 NY2d 494; *Deleon v New York City Sanitation Dept.*, 25 NY3d 1102; *Matsch v Chemung County Dept. of Pub. Works*, 128 AD3d 1259; *Sullivan v Town of Vestal*, 301 AD2d 824; *Ibarra v Town of Huntington*, 6 AD3d 391; *Davis v Incorporated Vil. of Babylon, N.Y.*, 13 AD3d 331; *Zanghi v Doerfler*, 158 AD3d 1275.) II. Michael Simone did not act in reckless disregard with respect to the operation of his vehicle, and this Court should affirm the dismissal of Ana Orellana's complaint. (*Bliss v State of New York*, 95 NY2d 911; *Rockland Coaches, Inc. v Town of Clarkstown*, 49 AD3d 705; *Yousef v Verizon Inc.*, 33 AD3d 315; *Rascelles v State of New York*, 187 AD3d 953; *Joya v Baratta*, 164 AD3d 772; *Ryan v Town of Smithtown*, 49 AD3d 853; *Chase v Marsh*, 162 AD3d 1589; *Freitag v Village of Potsdam*, 155 AD3d 1227.)

OPINION OF THE COURT

CANNATARO, J.

On a snowy day in December 2018, the Superintendent of Highways for the Town of Carmel drove into an intersection without right-of-way and collided with plaintiff's vehicle. The sole question on this appeal is whether the record establishes that the superintendent was "actually engaged in work on a highway" at the time of the collision, which would exempt the municipal defendants from liability for ordinary negligence under Vehicle and Traffic Law § 1103 (b). Based on the record before us, we hold that the superintendent was not engaged in

the type of work covered by section 1103 (b) at the time of the accident.

* * *

The facts relevant to this appeal are largely undisputed. On the morning of the accident, defendant Michael J. Simone, Superintendent of Highways for the Town of Carmel, left his office to inspect the condition of the roads during a snowstorm. As was his practice, he drove to a bellwether location at the highest elevation in town, where snow accumulates first, to make an assessment of the conditions. After observing a quarter inch of snow accumulation, Simone radioed his team and directed all 35 employees to salt the town's roads, a task which he anticipated would be completed within an hour. Simone then began to drive back to his office. He testified at his deposition that, at this point, he did not believe there was any emergency, was not in a rush to return to the office, and had no intention of conducting any further road inspection while en route. When he came to the intersection of Lakeview Drive and Highridge Road, Simone brought his vehicle to a complete stop at a stop sign and looked to his left whereupon, he testified, he observed another quarter inch accumulation of snow on the road. Simone took no action in response to that observation but resolved to inform his team about it upon returning to the office. He then proceeded on his journey. Without looking to his right, he entered the intersection and collided with plaintiff Ana Orellana's vehicle.

Plaintiff commenced this action against defendants to recover for personal injuries sustained as a result of the accident, alleging that Simone was negligent in failing to look both ways before entering the intersection and causing the collision. Following discovery, defendants moved for summary judgment dismissing plaintiff's negligence claim and plaintiff cross-moved for summary judgment as to liability on that claim. The sole disputed issue on the motions was whether Vehicle and Traffic Law § 1103 (b) exempts defendants from liability for ordinary negligence and entitles them instead to be held to a recklessness standard. Supreme Court granted defendants' motion, holding as a matter of law that Simone's conduct was protected by section 1103 (b), and denied plaintiff's cross-motion as academic (2020 NY Slip Op 35029[U] [Sup Ct, Putnam County 2020]). The Appellate Division affirmed (212 AD3d 834 [2d Dept 2023]). This Court granted plaintiff leave to appeal (39 NY3d 916 [2023]) and we now reverse.

As this Court has previously explained, title VII of the Vehicle and Traffic Law sets out a uniform set of traffic regulations, or “rules of the road,” which generally “apply to drivers of all vehicles owned or operated by the United States, this state, or any county, city, town, district, or any other political subdivision of the state” (*see* Vehicle and Traffic Law §§ 1100, 1103 [a]; *Riley v County of Broome*, 95 NY2d 455, 462 [2000]). Vehicle and Traffic Law § 1103 (b), however, provides that those rules “shall not apply to persons, teams, motor vehicles, and other equipment *while actually engaged in work on a highway*” (Vehicle and Traffic Law § 1103 [b] [emphasis added]). Although such parties remain liable for “the consequences of their reckless disregard for the safety of others,” they bear no liability for ordinary negligence (*see id.*; *Riley*, 95 NY2d at 465-467). In drafting Vehicle and Traffic Law § 1103 (b), the legislature aimed to support the work of “keeping the roadways clean and safe for everyone,” while accounting for the fact that vehicles performing those functions “may themselves cause risks to ordinary motorists with whom they share the road” (*Riley*, 95 NY2d at 461).

In *Riley*, we explained that the applicability of section 1103 (b) “turns on the nature of the work being performed (construction, repair, maintenance or similar work)—not on the nature of the vehicle performing the work” (95 NY2d at 464). Additionally, although the exemption is “broad” and “does not require that a vehicle be located in a designated ‘work area’ in order to receive the protection” (*id.* at 464, 468), it “applies only when such work is in fact being performed at the time of the accident” (*Hofmann v Town of Ashford*, 60 AD3d 1498, 1499 [4th Dept 2009], quoting Vehicle and Traffic Law § 1103 [b] [exempting individuals only “while” actually engaged in protected work]).

In line with these principles, the Appellate Division has consistently held that drivers are not “actually engaged in work on a highway” when they are merely traveling between work-sites and not actively performing any protected task on the road itself (*see Zanghi v Doerfler*, 158 AD3d 1275 [4th Dept 2018]). In *Perez v City of Yonkers*, for example, a snowplow operator was not actually engaged in work on a highway when he was simply “traveling from complaint site to complaint site to salt or plow those roads as needed” and at the time of the accident “the plow was raised on a tilt” (204 AD3d 711, 712-713 [2d Dept 2022]).

Here, according to Simone's own deposition testimony, the accident occurred after he had fully completed his assessment of roadway conditions at his bellwether location and mobilized his entire team to salt the town's roads. At the time of the accident, Simone was merely using the road to return to work. Although he testified that he saw a slushy accumulation of snow to his left shortly before the collision occurred, he took no action in response to observing that condition. Indeed, he testified that as he pulled into the intersection where the collision occurred, there was nothing keeping his attention drawn to his left and he was no longer looking at the condition.

Because the uncontested evidence demonstrates that Simone was not actually engaged in work on a highway at the time the accident occurred, defendants are not entitled to the protections of section 1103 (b). Defendants did not otherwise oppose plaintiff's motion for summary judgment as to liability on her claim.

Accordingly, the order of the Appellate Division should be reversed, with costs, defendants' motion for summary judgment denied, and plaintiff's cross-motion for summary judgment on the issue of liability granted.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, TROUTMAN and HALLIGAN concur.

Order reversed, with costs, defendants' motion for summary judgment denied and plaintiff's cross-motion for summary judgment on the issue of liability granted.

[249 NE3d 732, 224 NYS3d 382]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAN-
DALL K. MCGOVERN, Appellant.

Argued September 11, 2024; decided October 24, 2024

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 17, 2023. The Appellate Division order, insofar as appealed from, affirmed so much of a judgment of the Erie County Court (Suzanne Maxwell Barnes, J.) as had imposed consecutive sentences on defendant's grand larceny in the third degree conviction and forgery in the second degree conviction.

People v McGovern, 214 AD3d 1339, affirmed.

HEADNOTE

Crimes — Sentence — Concurrent and Consecutive Terms — Larceny and Forgery

The trial court did not violate Penal Law § 70.25 (2) when it imposed consecutive sentences on defendant's third-degree grand larceny and second-degree forgery convictions, which arose from his scheme to steal tires by false representation. Section 70.25 (2) provides that sentences imposed for two or more offenses may not run consecutively where a single act constitutes two offenses, or where a single act constitutes one of the offenses and a material element of the other. The singular-act prong of section 70.25 (2) was not satisfied because, as charged to the jury, defendant accomplished the taking once the delivery driver loaded the tires onto defendant's trailer, which preceded defendant falsely signing the invoice presented by the driver. As to the material-elements prong of section 70.25 (2), forgery is not a necessary element of larceny by false pretenses, the class of larceny which the court charged to the jury. Because forgery is not the exclusive means to accomplish a larceny by false pretenses, forgery is not a necessary component of the larceny count in the legislative classification and definitional sense.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 806, 808.

CARMODY-WAIT 2d Sentencing Procedures § 203:7.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 26.3.

MCKINNEY'S, Penal Law § 70.25 (2).

NY JUR 2d Criminal Law: Procedure §§ 3241, 3251.

ANNOTATION REFERENCE

See ALR Index under Concurrent and Consecutive Sentences.

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POINTS OF COUNSEL

Jeremy D. Schwartz, Lackawanna, for appellant. The consecutive sentences on counts one and two are illegal. (*People v Parks*, 95 NY2d 811; *People v Laureano*, 87 NY2d 640; *People v Grace*, 145 AD3d 1462; *People v Tripp*, 177 AD3d 1409; *People v Garcia*, 129 AD3d 1383; *People v Wright*, 19 NY3d 359; *People v Hamilton*, 4 NY3d 654; *People v Scotti*, 232 AD2d 775.)

John J. Flynn, District Attorney, Buffalo (*Michael J. Hillery* and *Paul J. Williams III* of counsel), for respondent. The consecutive sentences of imprisonment on counts one and two were permissible. (*People v Laureano*, 87 NY2d 640; *People v Catone*, 65 NY2d 1003; *People v Day*, 73 NY2d 208; *Morgan v Devine*, 237 US 632; *People v Brown*, 80 NY2d 361; *People v Di Lapo*, 14 NY2d 170; *People v Esrig*, 240 App Div 300; *People v Farrar*, 52 NY2d 302.)

OPINION OF THE COURT

RIVERA, J.

Defendant challenges the legality of the consecutive sentences imposed on his larceny and forgery convictions. We conclude that consecutive sentences were wholly permissible on the facts here because the larceny and forgery were not “committed through a single act or omission, or through an act or omission which in itself constituted one of the offenses and also was a material element of the other” as Penal Law § 70.25 (2) requires for concurrent sentences to be mandatory.

* * *

Defendant was convicted after a jury trial of, among other counts, third-degree grand larceny under Penal Law § 155.35 (1) and second-degree forgery under Penal Law § 170.10 (1), based on a scheme to steal tires by false representation.* According to the trial evidence, the Exxxpress Tire Delivery

* The jury also convicted defendant on two other counts—attempted third-degree grand larceny under Penal Law §§ 110.00 and 155.35 (1) and petit larceny under Penal Law § 155.25 based on his theft of other property in con-

(n. cont'd)

Company received a telephone order from Basil Ford Truck Center by someone identifying themselves as Joe Basil Jr., for next-day delivery. The following day, on July 6, 2017, while en route to deliver the tires, and as per the instructions on the invoice, the driver called a number listed therein for “Joe Junior” for additional delivery instructions. The man who answered the call told the driver to take the tires to a business adjacent to the Basil Ford Truck Center. When the driver arrived at the location he saw “a truck with a trailer” parked “on the side of the building” with a man standing next to it. He asked the man—who he identified in court as defendant—“if he was taking the tires for delivery,” to which the man responded “yes.” Defendant also told the driver that he was an employee of the Basil family. The two loaded the tires onto the trailer and the driver then presented defendant with the tire invoice, which defendant falsely signed: “Joe Basil.” Joe Basil Chevrolet—a business affiliated with the Basil Ford Truck Center—was thereafter billed for the tires. Joe Basil Chevrolet contested the bill, explaining that it never received the tires. The real Joe Basil Jr. testified that it was not his voice on the phone order, that he never authorized a purchase of tires, and that the signature on the invoice was not his.

As relates to the two offenses at issue on this appeal, the court charged the jury as follows:

“[A] person is guilty of grand larceny in the third degree when that person steals property and when the value of the property exceeds three thousand dollars. A person steals property and commits larceny when, with the intent to deprive another of property or to appropriate the same to himself, such person wrongfully takes, obtains or withholds such property from an owner of that property.”

The court also instructed that “[s]ome of the terms used in this definition, steals property, have their own special meaning” and as to larceny by false pretenses,

“[a] person wrongfully takes, obtains or withholds property from an owner when that person makes a false representation of a past and existing fact

nection with a similar false representation scheme, as well as on one count of first-degree scheme to defraud under Penal Law § 190.65 (1) (b), based on his orchestration of both schemes. Nothing related to the second scheme is at issue in this appeal.

while aware that such representation is false and obtains possession to the property as a result of the owner's reliance upon such representation."

"[A] person is guilty of forgery in the second degree when, with intent to defraud, deceive or injure another, he falsely makes, completes or alters a written instrument, which is or purports to be or which is calculated to become or to represent, if completed, an instrument which evidenced and created a legal right."

The jury convicted defendant on all charged counts and the court sentenced defendant as a second felony offender to 3½ to 7 years' incarceration on the third-degree grand larceny and second-degree forgery counts, to run consecutively, and imposed restitution for the value of the tires. As to the consecutive prison terms, the court explained:

"[T]he consecutive sentencing is both warranted and lawful because these crimes constitute separate and distinct acts, even if some of them occurred on the same date and were part of a single transaction. Specifically, the act of forgery under count two is distinct from the act of larceny under count one. Although these two crimes took place on the same day and although the forgery occurred during the larceny, these two crimes were successive, separate acts. Furthermore, the statutory elements of each crime are categorically discrete. One is not a legal component of the other, nor do the material elements of these offenses overlap."

The Appellate Division affirmed the judgment of conviction (214 AD3d 1339 [4th Dept 2023]), and a Judge of this Court granted defendant leave to appeal (40 NY3d 951 [2023]). We now affirm.

Defendant's sole contention on this appeal is that the consecutive sentences are unlawful because the larceny and forgery counts at issue are based on the same transaction and arose from a singular act. As the prosecution correctly argues, on the facts and law, and based on the charge to the jury, defendant's argument lacks merit.

Section 70.25 (2) provides that, "[w]hen more than one sentence of imprisonment is imposed on a person for two or more offenses committed through a single act or omission, or

through an act or omission which in itself constituted one of the offenses and also was a material element of the other, the sentences . . . must run concurrently” (Penal Law § 70.25 [2]). Thus, in accordance with section 70.25 (2), “sentences imposed for two or more offenses may not run consecutively: (1) where a single act constitutes two offenses, or (2) where a single act constitutes one of the offenses and a material element of the other” (*People v Laureano*, 87 NY2d 640, 643 [1996]).

Under the first prong, “where the actus reus is a single inseparable act that violates more than one statute, [a] single punishment must be imposed” (*People v Rodriguez*, 25 NY3d 238, 244 [2015] [internal quotation marks and citation omitted]), meaning that, if the prosecution is “unable to point to any testimony or evidence which would support the view that the offenses of which defendant stands convicted involved disparate or separate acts, the sentences must run concurrently” (*People v Underwood*, 52 NY2d 882, 883 [1981]). “To constitute the offence of larceny, there must be a taking or severance of the goods from the possession of the owner’ ” (*People v Alamo*, 34 NY2d 453, 457 [1974], quoting *Harrison v People*, 50 NY 518, 523 [1872]). Here, as charged to the jury, defendant accomplished the taking once the driver loaded the tires onto defendant’s trailer, which preceded defendant falsely signing the invoice as “Joe Basil Jr.” Therefore, the singular-act prong of Penal Law § 70.25 (2) is not satisfied here.

As to the second prong, courts “first look to the statutory definitions of the crimes at issue to discern whether the actus reus elements overlap” (*Rodriguez*, 25 NY3d at 244 [internal quotation marks and citation omitted]). “[T]he commission of one offense is a material element of a second for restrictive sentencing purposes if, by comparative examination, the statutory definition of the second crime provides that the first crime is also a necessary component in the legislative classification and definitional sense” (*People v Day*, 73 NY2d 208, 211 [1989]; see e.g. *Laureano* at 644 [holding that, under their Penal Law definitions, “(t)he ‘act or omission’ that constitutes manslaughter in the first degree”—“‘caus(ing) the death of (a) person or of a third person’”—in all cases is a material element of first-degree robbery, which requires infliction of “serious physical injury”]).

Forgery is not a necessary element of larceny by false pretenses because this class of larceny may be accomplished by any number of other false representations that induce the

owner to part with their property. Put another way, because forgery is not the exclusive means to accomplish a larceny by false pretenses, forgery is not “a necessary component” of the larceny count “in the legislative classification and definitional sense” (*Day* at 211). Therefore, the offenses do not satisfy this material-elements prong because, under this prong, we do not consider “the fact-specific circumstances and proof of a crime” (*id.*). Of course here, the comparison between the statutory definitions tracks the convicted acts. Several false statements advancing the scheme eventually induced the driver to release the tires to defendant’s possession. For example, defendant made an in-person, false statement to the delivery driver while they were loading the tires into defendant’s truck that he was an employee of the Basil family.

For the reasons discussed, the trial court did not violate Penal Law § 70.25 (2) when it sentenced defendant to consecutive sentences on the third-degree grand larceny and second-degree forgery counts. Accordingly, the order of the Appellate Division, insofar as appealed from, should be affirmed.

Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order insofar as appealed from affirmed.

[249 NE3d 1174, 225 NYS3d 154]

In the Matter of WALT DISNEY COMPANY AND CONSOLIDATED
SUBSIDIARIES, Appellant, v TAX APPEALS TRIBUNAL OF THE
STATE OF NEW YORK et al., Respondents.

In the Matter of INTERNATIONAL BUSINESS MACHINES CORPORA-
TION AND COMBINED AFFILIATES, Appellant, v TAX APPEALS
TRIBUNAL OF THE STATE OF NEW YORK et al., Respondents.

Argued March 13, 2024; decided April 23, 2024

SUMMARY

APPEAL, in the first above-entitled proceeding, on constitutional grounds, from a judgment of the Appellate Division of the Supreme Court in the Third Judicial Department, entered October 20, 2022, in a proceeding pursuant to CPLR article 78 (initiated in the Appellate Division pursuant to Tax Law § 2016). The Appellate Division (1) confirmed a determination of respondent Tax Appeals Tribunal of the State of New York which had (a) denied petitioner's exception to the Administrative Law Judge's determination (i) denying the petition for a redetermination of a deficiency or for a refund of a corporate franchise tax under article 9-A of the Tax Law for tax periods ending in September 2008, October 2009 and October 2010, and (ii) sustaining the notice of deficiency; (b) affirmed the Administrative Law Judge's determination; (c) denied the petition; and (d) sustained the notice of deficiency; and (2) dismissed the petition.

APPEAL, in the second above-entitled proceeding, on constitutional grounds, from a judgment of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 16, 2023, in a proceeding pursuant to CPLR article 78 (initiated in the Appellate Division pursuant to Tax Law § 2016). The Appellate Division (1) confirmed a determination of respondent Tax Appeals Tribunal of the State of New York which had (a) denied petitioner's exception to the Administrative Law Judge's determination (i) denying the petitions; (ii) sustaining the October 2015 and September 2016 notices of disallowance; and (iii) sustaining a notice of deficiency; (b) affirmed the Administrative Law Judge's determination; (c) denied the petitions; (d) sustained the notices of disallowance; and (e) sustained the notice of deficiency; and (2) dismissed the petition.

Matter of Walt Disney Co. & Consol. Subsidiaries v Tax Appeals Trib. of the State of N.Y., 210 AD3d 86, affirmed.

Matter of International Bus. Machs. Corp. & Combined Affiliates v Tax Appeals Trib. of the State of N.Y., 214 AD3d 1125, affirmed.

HEADNOTES

Taxation — Franchise Tax on Business Corporations — Royalty Payments Received from Nontaxpayer Foreign Affiliates

1. In CPLR article 78 proceedings challenging determinations by respondent Tax Appeals Tribunal of the State of New York that petitioner parent corporations improperly deducted royalty payments received from affiliates in foreign countries that were not subject to New York franchise tax and therefore not required to add those payments back on a New York tax return, respondent properly interpreted former Tax Law § 208 (9) (o) (3) as permitting a tax deduction only where a related subsidiary was subject to the add back requirement. By its plain terms, the statute allows parent taxpayers to deduct royalty income only if that money had already been included on a New York tax return through an add back to the subsidiary's income. Although the statute provides that a deduction will not be granted if one of the statutory exceptions to the add back requirement applies, it goes on to state that the deduction will not be permitted if an add back is not required under a "similar provision" in the chapter. Given that the operative language applies only to corporations subject to tax in New York, the deduction was clearly only available to corporations receiving royalties from related entities who were subject to the add back, not those that would be subject to the add back if they were subject to New York taxes. In enacting the deduction and add back scheme, the legislature was attempting to close a loophole by which international corporate groups avoided paying state taxes on royalty payments between related members of the corporate group. Both the plain language and the explicit legislative purpose behind the statute supported respondent's interpretation.

Constitutional Law — Commerce Clause — Dormant Commerce Clause — Corporate Franchise Tax Deductions for Royalty Payments Received from Nontaxpayer Foreign Affiliates

2. Tax Law former § 208 (9) (o), which permits corporations that paid franchise taxes in New York to deduct income received as royalty payments from members of the same corporate group only where the related subsidiary had already paid a New York tax on the same income and was therefore required to add those payments back on a New York tax return, does not violate the dormant Commerce Clause. Under the dormant Commerce Clause, states may not tax a transaction or incident more heavily when it crosses state lines than when it occurs entirely within the state or impose a tax which provides a direct commercial advantage to local business, or subjects interstate commerce to the burden of multiple taxation. At the corporate group level, Tax Law former § 208 (9) (o) treated groups with related members who did not pay taxes in New York the same as those with related members who did. The income only had to be included on a New York tax return once, resulting in a neutral economic impact on the corporate group as a whole. Regardless of what tax may be applied to royalty payments in a foreign jurisdiction, the mere inclusion of such payments to a parent company's total taxable income does not result in an unconstitutional burden on interstate commerce as with each additional foreign dollar added, the portion of that company's income attributable to New York State will decrease.

As the tax scheme would not result in duplicative taxation in all, or even in most, situations, it is not inherently discriminatory. To the extent that duplicative taxation may sometimes occur, it is the incidental result of the interaction of two different but nondiscriminatory and internally consistent schemes.

RESEARCH REFERENCES

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AM JUR 2d Commerce §§ 40, 95, 99, 101; AM JUR 2d State and Local Taxation §§ 146, 164–166, 169, 179, 183.

McKINNEY'S, CPLR art 78; Tax Law § 208 (9) (o) (3).

NY JUR 2d Constitutional Law §§ 138–140; NY JUR 2d Taxation and Assessment §§ 1179, 1320, 1327, 1350, 1359.

US Const, art I, § 8, cl 3.

ANNOTATION REFERENCES

Constitutionality of discrimination, as regards taxation, between domestic corporations based on fact whether their business is wholly within state, or wholly out of state, or partly within and partly without. 122 ALR 983.

State excise, privilege, or franchise tax upon foreign corporations as affected by commerce clause. 139 ALR 950.

What constitutes doing business, business done, or the like, outside the state for purposes of allocation of income under tax laws. 167 ALR 943.

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POINTS OF COUNSEL

State Tax Law LLC, New York City (Marc A. Simonetti and Saad Admani of counsel), and *Pillsbury Winthrop Shaw Pittman LLP*, New York City (Aruna Chittiappa of counsel), for appellant in the first above-entitled proceeding. I. Facial discrimination violates the Commerce Clause. (*Matter of Moran Towing Corp. v Urbach*, 99 NY2d 443; *Elmwood-Utica Houses v Buffalo Sewer Auth.*, 65 NY2d 489; *Oregon Waste Systems, Inc. v Department of Environmental Quality of Ore.*, 511 US 93; *Armco Inc. v Hardesty*, 467 US 638; *Hughes v Oklahoma*, 441 US 322; *Boston Stock Exchange v State Tax Comm'n*, 429 US 318; *Oklahoma Tax Comm'n v Jefferson Lines, Inc.*,

514 US 175; *Prudential Ins. Co. v Benjamin*, 328 US 408; *Complete Auto Transit, Inc. v Brady*, 430 US 274; *Kraft Gen. Foods, Inc. v Iowa Dept. of Revenue and Finance*, 505 US 71.) II. The Appellate Division's construction of the law is facially discriminatory. (*Boston Stock Exchange*, 429 US 318; *Westinghouse Elec. Corp. v Tully*, 466 US 388; *Kraft Gen. Foods, Inc. v Iowa Dept. of Revenue and Finance*, 505 US 71; *Armco Inc. v Hardesty*, 467 US 638; *Oregon Waste Systems, Inc. v Department of Environmental Quality of Ore.*, 511 US 93.) III. The Appellate Division's facially discriminatory construction of the law is not justified. (*Maine v Taylor*, 477 US 131; *Westinghouse Elec. Corp. v Tully*, 466 US 388; *Kraft Gen. Foods, Inc. v Iowa Dept. of Revenue and Finance*, 505 US 71; *Hughes v Oklahoma*, 441 US 322; *Oregon Waste Systems, Inc. v Department of Environmental Quality of Ore.*, 511 US 93; *Armco Inc. v Hardesty*, 467 US 638.)

Letitia James, Attorney General, Albany (Frederick A. Brodie, Barbara D. Underwood and Jeffrey W. Lang of counsel), for respondents in the first above-entitled proceeding. I. The Appellate Division correctly interpreted former Tax Law § 208 (9) (o) to authorize deductions of royalty payments only when they were required to be added back. II. The Walt Disney Company has not proved beyond a reasonable doubt that former Tax Law § 208 (9) (o) violated the Dormant Commerce Clause. (*White v Cuomo*, 38 NY3d 209; *Matter of New York Charter Schools Assn., Inc. v DiNapoli*, 13 NY3d 120; *Matter of Moran Towing Corp. v Urbach*, 99 NY2d 443; *Matter of Tammagni v Tax Appeals Trib. of State of N.Y.*, 91 NY2d 530; *Halliburton Oil Well Cementing Co. v Reily*, 373 US 64; *Kraft Gen. Foods, Inc. v Iowa Dept. of Revenue and Finance*, 505 US 71; *Westinghouse Elec. Corp. v Tully*, 466 US 388; *Oregon Waste Systems, Inc. v Department of Environmental Quality of Ore.*, 511 US 93; *Chemical Waste Management, Inc. v Hunt*, 504 US 334; *Armco Inc. v Hardesty*, 467 US 638.) III. Even if the Court were to find a Dormant Commerce Clause violation, the Walt Disney Company still would not be entitled to royalty deductions. (*Lebamoff Enters. Inc. v Whitmer*, 956 F3d 863; *Matter of Huckaby v New York State Div. of Tax Appeals, Tax Appeals Trib.*, 4 NY3d 427.)

Reed Smith LLP, New York City (George I. Tsoflias of counsel), and *Institute for Professionals in Taxation, Atlanta, Georgia*, for Institute for Professionals in Taxation, amicus curiae in the first above-entitled proceeding. The doctrine of

constitutional avoidance demands that the royalty payments are deducted from the tax base. (*Ashwander v TVA*, 297 US 288; *Crowell v Benson*, 285 US 22; *Almendarez-Torres v United States*, 523 US 224; *United States ex rel. Attorney General v Delaware & Hudson Co.*, 213 US 366; *Matter of Charter Dev. Co., L.L.C. v City of Buffalo*, 6 NY3d 578; *Matter of Tall Trees Constr. Corp. v Zoning Bd. of Appeals of Town of Huntington*, 97 NY2d 86; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Tompkins v Hunter*, 149 NY 117.)

Eversheds Sutherland (US) LLP, Washington, D.C. (*Jeffrey A. Friedman*, admitted pro hac vice, of counsel) and New York City (*Ted W. Friedman* and *Jeremy P. Gove* of counsel), for appellant in the second above-entitled proceeding. I. The interpretation of the royalty income exclusion upheld by the Appellate Division violates the internal consistency test and unconstitutionally discriminates against interstate and foreign commerce. (*Department of Revenue of Ky. v Davis*, 553 US 328; *Fulton Corp. v Faulkner*, 516 US 325; *Complete Auto Transit, Inc. v Brady*, 430 US 274; *Japan Line, Ltd. v County of Los Angeles*, 441 US 434; *Kraft Gen. Foods, Inc. v Iowa Dept. of Revenue and Finance*, 505 US 71; *Oklahoma Tax Comm'n v Jefferson Lines, Inc.*, 514 US 175; *Armco Inc. v Hardesty*, 467 US 638; *Container Corp. of America v Franchise Tax Bd.*, 463 US 159; *Tyler Pipe Industries, Inc. v Washington State Dept. of Revenue*, 483 US 232; *American Trucking Assns., Inc. v Scheiner*, 483 US 266.) II. The Appellate Division ignored other U.S. Supreme Court precedent that establishes a constitutional violation. (*Amerada Hess Corp. v Director, Div. of Taxation, N. J. Dept. of Treasury*, 490 US 66; *Boston Stock Exchange v State Tax Comm'n*, 429 US 318; *Fulton Corp. v Faulkner*, 516 US 325; *Westinghouse Elec. Corp. v Tully*, 466 US 388; *Maryland v Louisiana*, 451 US 725; *R.J. Reynolds Tobacco Co. v City of N.Y. Dept. of Fin.*, 237 AD2d 6; *American Trucking Assns., Inc. v Scheiner*, 483 US 266.) III. Penalties should be abated.

Letitia James, Attorney General, Albany (*Frederick A. Brodie*, *Barbara D. Underwood* and *Jeffrey W. Lang* of counsel), for respondents in the second above-entitled proceeding. I. International Business Machines Corporation has not proved that former Tax Law § 208 (9) (o) violated the Dormant Commerce Clause. (*Matter of Tamagni v Tax Appeals Trib. of State of N.Y.*, 91 NY2d 530; *White v Cuomo*, 38 NY3d 209; *Matter of*

Owner Operator Ind. Drivers Assn., Inc. v New York State Dept. of Transp., 40 NY3d 55; *American Economy Ins. Co. v State of New York*, 30 NY3d 136; *Matter of Moran Towing Corp. v Urbach*, 99 NY2d 443; *People v Ford*, 69 NY2d 775; *Matter of Peyton v New York City Bd. of Stds. & Appeals*, 36 NY3d 271; *Matter of Plato's Cave Corp. v State Liq. Auth.*, 68 NY2d 791; *American Trucking Assns., Inc. v Scheiner*, 483 US 266.) II. Even if the Court were to find a Dormant Commerce Clause violation, International Business Machines Corporation still would not be entitled to royalty deductions. (*Lebamoff Enters. Inc. v Whitmer*, 956 F3d 863; *People v Viviani*, 36 NY3d 564.) III. The statutory penalties should be sustained. (*Matter of Henry v Wetzler*, 82 NY2d 859; *Matter of Franklin Mint Corp. v Tully*, 94 AD2d 877, 61 NY2d 980; *Matter of John Paterno, Inc. v Curiale*, 88 NY2d 328.)

OPINION OF THE COURT

CANNATARO, J.

Under a taxation scheme in effect from 2003 through 2013, New York allowed corporations that paid franchise taxes in New York to deduct income received as royalty payments from members of the same corporate group, or family, in calculating their taxable income. The deduction was allowed only if the royalty payment came from a related entity that had already paid a New York tax on the same income through operation of another provision in the Tax Law that required companies to add back royalty payments made to related entities for the purposes of calculating their own taxable income.

In these cases, the state Department of Taxation and Finance determined that appellants improperly deducted royalty payments they received from affiliates in foreign countries that were not subject to New York franchise taxes and, so, were not required to add those payments back on a New York tax return. Appellants challenge the Tribunal's denial of the deduction as being contrary to the clear language of the statute and as violating the Commerce Clause's prohibition on discrimination against foreign commerce. Because the Appellate Division correctly interpreted the statutes as permitting a tax deduction only where a related subsidiary was subject to the add back requirement, and because any burden on interstate or foreign

commerce created by this tax scheme was incidental and did not violate the dormant Commerce Clause, we affirm.¹

I.

Corporations that do business in New York must pay an annual franchise tax (Tax Law art 9-A). During the years in question, corporations reported their article 9-A tax liability based on the greatest of four alternative bases, the most common of which was “entire net income” (ENI) allocated to New York (former Tax Law § 210 [1] [a]). At that time, ENI generally consisted of the taxpayer’s entire federal taxable income (FTI) with statutorily enumerated modifications that either added to or subtracted from the federal taxable income (*see id.* § 208 [9]). The portion of a company’s ENI that was taxable in New York was determined using the business allocation percentage (BAP) (*id.* § 210 [3] [a], [b]). The BAP was determined by, among other things, comparing a taxpayer’s business receipts from New York to its total business receipts from all sources (including related-member royalties) (*id.* § 210 [3] [a] [2]). For the purposes of BAP calculation, receipts from intangibles such as royalties on intellectual property (IP) were allocated to the jurisdiction in which the IP was used (*see id.* § 210 [3] [a] [2] [C]; *see also* former 20 NYCRR 4-4.6).

Prior to passage of the subject tax scheme in 2003, royalty receipts were included in all taxpayers’ ENI. Large multinational conglomerates regularly avoided state taxes on income derived from intellectual property. For example, a parent corporation² would transfer its IP assets to a subsidiary holding company located in a jurisdiction that had little or no tax on income from intangible assets. The subsidiary would, in turn, license the IP back to the parent in exchange for royalty payments, which were typically excluded from the parent company’s FTI as deductible business expenses. The foreign subsidiary would not file a tax return in New York, and the

1. We note that the subject tax scheme was repealed over a decade ago and so our holding today has no direct applicability to the current scheme for taxing royalty payments between related entities.

2. The terms “parent” and “subsidiary” are used throughout to describe related corporate entities for clarity and ease of description, however, for purposes of the Tax Law it is sufficient that the payor and payee entities are related through common ownership (*see* former Tax Law § 208 [9] [o] [1] [A], [B]). The parent/subsidiary distinction is not essential to the statutory or constitutional analysis.

royalty income would therefore not be included on any New York return.

Seeking to capture taxes on IP income, New York enacted former Tax Law § 208 (9) (o) which, among other things, created a process for taxing royalty payments between related entities. The express purpose of that process was to “eliminate tax loopholes concerning royalty payments” (Senate Introducer’s Mem in Support, Bill Jacket, L 2003, ch 686 at 9). In furtherance of that purpose, subparagraph (2) provided that “for the purpose of computing [ENI] or other applicable taxable basis, a taxpayer must add back royalty payments to a related member during the taxable year to the extent deductible in calculating federal taxable income” (former Tax Law § 208 [9] [o] [2] [A]).

Subparagraph (3) provided:

“For the purpose of computing entire net income or other taxable basis, a taxpayer shall be allowed to deduct royalty payments directly or indirectly received from a related member during the taxable year to the extent included in the taxpayer’s federal taxable income unless such royalty payments would not be required to be added back under subparagraph two of this paragraph or other similar provision in this chapter” (former Tax Law § 208 [9] [o] [3]).

These two provisions, working in concert, imposed a state tax on income used for royalty payments made to a related entity that might otherwise be tax deductible under the former taxing regime, but allowed the receiving entity to deduct those payments when calculating their New York State tax burden, thus avoiding companies including the same income on two different New York corporate tax returns.

The statute was further amended in 2007 to provide three exceptions to the add back requirement (L 2007, ch 60, § 1, part J, § 4). First, no add back was required if the two companies were included in the same combined tax report³ filed with New York State, as there was no risk of evasion (for-

3. Under the then-existing law, any company that “own[ed] or control[led] either directly or indirectly substantially all the capital stock of one or more other corporations, or substantially all the capital stock of which is owned or controlled either directly or indirectly by one or more other corporations or by interests which own[ed] or control[led] either directly

(n. cont’d)

mer Tax Law § 208 [9] [o] [2] [A]). Similarly, no add back was required if the royalty was ultimately paid to a non-related company for a valid business purpose, as again there was no risk that such payments would be used to avoid taxation (*see id.* § 208 [9] [o] [2] [B] [i]). Finally, an add back was not required if the related member making the royalty payment was organized under the laws of a foreign country with which the United States had a tax treaty ensuring that the royalty payments would be taxed “at a tax rate at least equal to that imposed by” New York (*id.* § 208 [9] [2] [B] [ii]). If a company was exempted from the add back requirement due to an enumerated statutory exclusion “or other similar provision,” it could not take advantage of the royalty tax exclusion contained in subparagraph (3) (former Tax Law § 208 [9] [o] [3]).

II.

A. Walt Disney Company v Tax Appeals Tribunal

The Walt Disney Company (Disney) is a multinational, diversified entertainment conglomerate organized under the laws of Delaware. Part of Disney’s business includes the development, ownership, and exploitation of IP assets through licensing to subsidiaries both domestically and internationally. Within the United States, Disney and its related entities filed a combined tax return in New York which, as laid out above, is an enumerated exception to the “add back” requirements of former Tax Law § 208 (9) (o) (2). Internationally, Disney’s foreign subsidiaries were each party to licensing agreements under which they were permitted to exploit Disney’s IP in exchange for royalty payments. The record contains no indication as to whether Disney or its subsidiaries paid any taxes on this income in these foreign jurisdictions.

From 2008 to 2010, Disney paid taxes on the portion of its income allocatable to New York business activity, which represented between 5% and 6% of its total taxable income for the

or indirectly substantially all the capital stock of one or more other corporations” were required to file a combined report covering those corporations if “there are substantial intercorporate transactions among the related corporations” (former Tax Law § 211 [4] [a]).

It did not require a “corporation organized under the laws of a country other than the United States” to be included in a combined report (*id.* § 211 [4] [a] [5]).

years at issue.⁴ During those years Disney received royalty payments totaling \$5,440,787,188 from foreign affiliates. For the 2009 and 2010 tax years, Disney deducted royalty payments received from all its foreign subsidiaries from its taxable income. Thereafter it filed an amended tax return for 2008 seeking a refund for foreign royalty income. Disney was audited by the Tax Department, which denied its refund request and issued a notice of deficiency in the amount of \$3,995,551.

B. IBM v Tax Appeals Tribunal

International Business Machines Corporation (IBM) is a multinational technology and consulting company organized under the laws of New York. IBM operates in more than 170 countries worldwide, primarily through locally incorporated subsidiaries. The subsidiary responsible for international operations is IBM World Trade Corporation (WTC), a Delaware corporation headquartered in New York. IBM transferred the entirety of its foreign assets to WTC and granted it a nonexclusive license to use certain IP. The various foreign subsidiaries paid royalties to either IBM or WTC for use and distribution rights to IBM's software, hardware, and for the right to provide services related to IBM products.

From 2007 to 2012, IBM and its US subsidiaries filed combined returns in New York, avoiding the need to add back any royalty payments. IBM paid the franchise tax on its New York-portion of its taxable income, which was about 5% of its total income for the years at issue. During that time, IBM received a total of \$50,682,369,689 in royalty payments from its foreign subsidiaries. As with Disney, there is no indication in the record that any foreign taxing authority required any of IBM's foreign subsidiaries to add back the royalty payments made to either IBM or WTC, or any evidence as to any tax liabilities imposed on its subsidiaries. IBM took deductions for royalty payments received from its subsidiaries for the 2011 and 2012 tax years, and subsequently requested refunds for taxes paid on that income for the years 2007 through 2010. In response the Tax Department audited IBM, denied its refund requests, and issued a notice of deficiency for the 2010 to 2012 tax years, as well as interest charges and penalties.

4. Both Disney and IBM's corporate tax in New York were determined via an allocation formula. Effectively, a corporation's total receipts in New York were divided by their total receipts globally to determine how much business was fairly attributable to New York. A tax was then assessed on only that portion of the corporation's taxable income.

C. Administrative Proceedings

After deficiencies were assessed, both corporations challenged the denial of their royalty tax deductions and the notices of deficiency with the New York State Division of Tax Appeals. In each case, following a hearing, an administrative law judge (ALJ) determined that, under the plain meaning of the statute, the deduction authorized under former Tax Law § 208 (9) (o) (3) only applied where the royalty came from a subsidiary that had been subjected to the add back requirement contained in subparagraph (2). The ALJs opined that the deduction did not discriminate against out-of-state interests as it was only permitted after a related company had already paid an in-state tax. Thus, the ALJs denied the petitions and sustained the notices of deficiency. The Tax Appeals Tribunal (Tribunal) subsequently affirmed both decisions.

Appellants challenged these determinations by commencing CPLR article 78 proceedings in the Appellate Division. The Appellate Division affirmed the determinations and dismissed the petitions, holding in separate decisions that the plain meaning of the statute supported the Tribunal's decision and that there was no differential treatment between in-state and out-of-state commerce (*see Matter of Walt Disney Co. & Consol. Subsidiaries v Tax Appeals Trib. of the State of N.Y.*, 210 AD3d 86, 89-92 [3d Dept 2022]; *Matter of International Bus. Machs. Corp. & Combined Affiliates v Tax Appeals Trib. of the State of N.Y.*, 214 AD3d 1125, 1126 [3d Dept 2023]). Appellants appealed to this Court as of right pursuant to CPLR 5601 (b) (1).

III.

[1] Contrary to appellants' contentions, the Tribunal properly interpreted the statute. This Court's "cardinal function in interpreting any statute should be to attempt to effectuate the intent of the Legislature, and where the statutory language is clear and unambiguous, the court should construe it so as to give effect to the plain meaning of the words used" (*Matter of 1605 Book Ctr. v Tax Appeals Trib. of State of N.Y.*, 83 NY2d 240, 244 [1994] [internal quotation marks omitted], quoting *Doctors Council v New York City Employees' Retirement Sys.*, 71 NY2d 669, 674-675 [1988]). The plain meaning of the statutory language is clear: "[A] taxpayer shall be allowed to deduct royalty payments directly or indirectly received from a related

member during the taxable year to the extent included in the taxpayer's federal taxable income unless such royalty payments would not be required to be added back under subparagraph two of this *paragraph or other similar provision in this chapter*" (former Tax Law § 208 [9] [o] [3] [emphasis added]). By its plain terms, the statute allows parent taxpayers to deduct royalty income only if that money had already been included on a New York tax return through an add back to the subsidiary's income.

Although the statute provides that a deduction will not be granted if one of the statutory exceptions to the add back requirement applies, it goes on to state that the deduction will not be permitted if an add back is not required under a "similar provision" in the chapter. Given that the operative language applies only to "corporation[s] subject to tax under this article," (former Tax Law § 208 [1-A], [2]), i.e., corporations subject to tax in New York, the deduction was clearly only available to corporations receiving royalties from related entities who were subject to the add back, not those that would be subject to the add back if they were subject to New York taxes, as appellants suggest.

Even if the statute were not clear on its face, which it is, we consider the objectives sought to be achieved by the legislature (*see Matter of Petterson v Daystrom Corp.*, 17 NY2d 32, 38 [1966]). Notwithstanding that ambiguities in tax statutes should "be construed . . . in favor of the taxpayer and against the [taxing authority]" (*Quotron Sys. v Gallman*, 39 NY2d 428, 431 [1976]), our main goal is to "give a correct, fair and practical construction that properly accords with the discernible intention and expression of the Legislature" (*1605 Book Ctr.* 83 NY2d at 244-245). In enacting the deduction and add back scheme at issue here, the legislature was attempting to close a loophole by which international corporate groups avoided paying state taxes on royalty payments between related members of the corporate group (*see Senate Introducer's Mem in Support* at 5, Bill Jacket, L 2003, ch 686 at 9).

Appellants' proposed interpretation of the law would not accomplish this goal, and in fact would result in the opposite outcome. Corporate families with subsidiaries out of state would be permitted to take a tax deduction without first paying a New York tax on the royalty money. By simply domiciling their subsidiaries outside New York, corporate groups would be able to perpetuate the very same tax loophole the challenged

legislation seeks to avoid. Although counsel for Disney suggests that the legislature actually intended this incongruous result, neither appellant points to any authority supporting this interpretation. As both the plain language and the explicit legislative purpose behind the statute support the Tribunal's interpretation, we see no reason to disturb that determination.

IV.

Appellants argue that this construction of former Tax Law § 208 (9) (o) facially violates the dormant Commerce Clause. They must therefore “surmount the presumption of constitutionality accorded to legislative enactments by proof beyond a reasonable doubt” (*Matter of Moran Towing Corp. v Urbach*, 99 NY2d 443, 448 [2003] [internal quotation marks omitted]). To do so, they bear “the substantial burden of demonstrating that in any degree and in every conceivable application, the law suffers wholesale constitutional impairment. In other words, [appellants] must establish that no set of circumstances exists under which the [law] would be valid” (*id.* [internal quotation marks and citation omitted]). The Commerce Clause of the United States Constitution provides that “Congress shall have Power . . . [t]o regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes” (US Const, art I, § 8 [3]). Although “phrased as a grant of regulatory power to Congress,” the Commerce Clause “has also been interpreted as effecting a ‘negative aspect that denies the States the power unjustifiably to discriminate against or burden the interstate flow of articles of commerce’” (*American Tel. & Tel. Co. v New York State Dept. of Taxation & Fin.*, 84 NY2d 31, 34 [1994] [some internal quotation marks omitted], quoting *Oregon Waste Systems, Inc. v Department of Environmental Quality of Ore.*, 511 US 93, 98 [1994]), including “prohibiting certain state taxation even when Congress has failed to legislate on the subject” (*Oklahoma Tax Comm’n v Jefferson Lines, Inc.*, 514 US 175, 179 [1995]). Indeed, the dormant Commerce Clause precludes states from “discriminat[ing] between transactions on the basis of some interstate element” (*Boston Stock Exchange v State Tax Comm’n*, 429 US 318, 332 n 12 [1977]), meaning that states “may not tax a transaction or incident more heavily when it crosses state lines than when it occurs entirely within the State” (*Armco Inc. v Hardesty*, 467 US 638, 642 [1984]) or “impose a tax which . . . provid[es] a direct commercial advantage to local business, or

. . . subject[s] interstate commerce to the burden of ‘multiple taxation’ ” (*Northwestern States Portland Cement Co. v Minnesota*, 358 US 450, 458 [1959] [citations omitted]).

Generally, to withstand a challenge under the so-called dormant Commerce Clause, a state tax (1) must be “applied to an activity with a substantial nexus with the taxing State,” (2) must be “fairly apportioned,” meaning internally and externally consistent, (3) may not discriminate against cross-border commerce and (4) must be “fairly related to the services provided by the State” (*Complete Auto Transit, Inc. v Brady*, 430 US 274, 279 [1977]; see e.g. *Westinghouse Elec. Corp. v Tully*, 466 US 388, 402 [1984]; *Matter of Zelinsky v Tax Appeals Trib. of State of N.Y.*, 1 NY3d 85, 90 [2003], *cert denied* 541 US 1009 [2004]). With regard to foreign commerce, the United States Supreme Court has identified two additional prongs: “first, whether the tax, notwithstanding apportionment, creates a substantial risk of international multiple taxation, and, second, whether the tax prevents the Federal Government from speaking with one voice when regulating commercial relations with foreign governments” (*Japan Line, Ltd. v County of Los Angeles*, 441 US 434, 451 [1979] [internal quotation marks omitted]). “[A] proper [dormant Commerce Clause] analysis must take the whole scheme of taxation into account” (*Halliburton Oil Well Cementing Co. v Reily*, 373 US 64, 69 [1963] [internal quotation marks omitted]). Appellants’ narrow argument is that former Tax Law § 208 (9) (o) fails the discrimination prong, because it facially discriminates against out-of-state commerce, and does not pass the internal consistency test. Appellants have failed to meet their high burden to demonstrate such discrimination.

A.

[2] With respect to the discrimination prong appellants have failed to show that the subject tax scheme is facially discriminatory against out-of-state commerce, that it in any way mandated “economic protectionism,” or that it was a “regulatory measure[] designed to benefit in-state economic interests by burdening out-of-state competitors” (*National Pork Producers Council v Ross*, 598 US 356, 369 [2023]). At the corporate group level, Tax Law former § 208 (9) (o) treated groups with related members who did not pay taxes in New York the same as those with related members who did. The scheme (1) required payors of dividends to add back to their taxable

income royalty payments to related corporate members that were deductible under federal law and (2) allowed recipients of royalty payments to deduct them from their taxable income unless the payor was not required to add them back to their taxable income. The result was a scheme where, if the payor was a New York taxpayer and no exceptions applied, the income used to make royalty payments only had to be included in the payor's taxable income. When a non-New York taxpayer made royalty payments to a New York taxpayer, that income had to be included in the payee's taxable income. In each case, the income only had to be included on a New York tax return once, resulting in a neutral economic impact on the corporate group as a whole. As is astutely noted by the concurrence, Tax Law former § 208 (9) (o) is not discriminatory inasmuch as it "is not a measure that imposes benefits or burdens depending upon where a business is located, where goods are produced, or where payments are made" (concurring op at 556). Rather, "it is fundamentally a tax filing provision" (*id.*).

This case is distinguishable from cases in which the United States Supreme Court has found facial discrimination in a taxation scheme. In *Kraft*, the Court invalidated a tax scheme that allowed Iowa corporations to take a deduction from taxable income for dividends received from subsidiaries incorporated in Iowa, but not those incorporated elsewhere (*see Kraft Gen. Foods, Inc. v Iowa Dept. of Revenue and Finance*, 505 US 71, 77 [1992]). Unlike here, the Iowa scheme contained no add back requirement. This meant that if the subsidiary paying the dividend was in Iowa, the corporate group faced no tax liability for the dividend, whereas if the subsidiary was incorporated abroad, the entire dividend was treated as income and taxable (*see id.* at 77-78). Similarly, in *Westinghouse*, the Supreme Court found a violation where a tax credit for a corporate parent increased when its subsidiary shipped goods from within New York and decreased when the subsidiary shipped goods outside the state (*see* 466 US at 400-401). By predicated the tax credit on the extent of a subsidiary's in-state export activities, it created a direct incentive to move business into New York, and therefore violated the dormant Commerce Clause by imposing a discriminatory burden on other states' commerce.

Helpful to our analysis is the New Hampshire Supreme Court's consideration of a virtually identical taxing scheme in *General Elec. Co., Inc. v Commissioner, N.H. Dept. of Revenue Admin.* (154 NH 457, 914 A2d 246 [2006], *cert denied* 552 US

989 [2007]). That court rejected a constitutional challenge to New Hampshire's similar tax scheme because, viewed as a whole, the tax did not discriminate against commerce but rather sought to tax each corporate group one time. This "taxing symmetry" ensured that corporations were only paying state tax on subsidiary income once and, as such, there was no differential treatment between companies that received the deduction and those that did not. So too here, there is no differential treatment on the corporate group level and the challenged taxing scheme is thus not facially discriminatory.

B.

Nor does the challenged scheme violate the United States Supreme Court's internal consistency test, which instructs courts to assume the challenged tax scheme applies in every jurisdiction in order to determine if such application would inherently result in impermissible interference with the flow of commerce (*see Container Corp. of America v Franchise Tax Bd.*, 463 US 159, 169 [1983]).

"By hypothetically assuming that every State has the same tax structure, the internal consistency test allows courts to isolate the effect of a defendant State's tax scheme. This is a virtue of the test because it allows courts to distinguish between (1) tax schemes that inherently discriminate against interstate commerce without regard to the tax policies of other States, and (2) tax schemes that create disparate incentives to engage in interstate commerce (and sometimes result in double taxation) only as a result of the interaction of two different but nondiscriminatory and internally consistent schemes. The first category of taxes is typically unconstitutional; the second is not" (*Comptroller of Treasury of Md. v Wynne*, 575 US 542, 562 [2015] [citations omitted]).

The tax here falls within the latter *Wynne* category. Even if every other jurisdiction applied the same tax scheme found in former Tax Law § 208 (9) (o), there would be no impermissible burden on interstate commerce. Subsidiaries that did not pay taxes in New York would be subject to a hypothetical foreign add back requirement when making royalty payments and their New York taxpayer corporate parents would be entitled to a hypothetical deduction for the portion of taxes apportioned to

that jurisdiction, but not a deduction in New York. In this scenario, because the intellectual property is being used in the foreign country, that income would not constitute New York business receipts, and therefore would not be allocated to New York for purposes of calculating the parent company's BAP. In other words, although the income would be added to the parent's total taxable income, it would result in a lower percentage of that total income subject to New York corporate tax.⁵

Indeed, it appears that appellants' true objection is to the system of income apportionment itself, and that their objection to "double taxation" here is more properly viewed as a repackaged challenge to that method of taxation. They argue that because royalty payments from foreign subsidiaries were taxed by New York (in that they were added to the total taxable income for the corporate parent), the corporate group would suffer a "double tax" if a foreign jurisdiction also taxed the payment through an add back. But the central premise of this argument is flawed. Because the internal consistency test requires us to evaluate the "tax scheme as a whole," we must also take into account New York's aforementioned system of calculating the portion of total income taxable in New York. Under that system, the addition of foreign income to a corporate parent's total income is not equivalent to subjecting it to corporate taxation in New York.

In the realm of internal consistency, because of the system of allocation, relocating intellectual property to New York could increase, decrease, or have no effect on a company's total taxable income depending on factors entirely independent of the add back scheme. Rather, whether a corporate group faces a greater or lesser tax burden as a result of receiving foreign royalty payments will depend on the amount of such payments received as well as the percentage of their total income attributable to such receipts. "[T]he appropriate measure of discrimination is comparison of similar circumstances, and the circumstances chosen to illustrate [the discrimination] seem ordinary rather than extraordinary and likely rather than unlikely" (*Ap-*

5. The reverse, of course, would be true for calculating a parent's franchise tax in a foreign jurisdiction. Any royalty payments received from New York subsidiaries would not be deductible from total income when calculating the foreign tax burden as the subsidiary would not have added back its income in the foreign jurisdiction. However, the addition of such income from IP used in New York would also necessarily reduce the corporation's income attributable to that jurisdiction.

peal of Morton Thiokol, Inc., 254 Kan 23, 37, 864 P2d1175, 1185 [1993]). Appellants have failed to show that, under the internal consistency test, the challenged tax necessarily discriminates against interstate commerce in its ordinary application. It is simply not sufficient to show that sometimes, in some situations, the conflicting laws may result in a greater tax (see *Moran Towing Corp.*, 99 NY2d at 448).

On the contrary, it is well settled that, while not perfect, the apportionment of taxes does not violate the Commerce Clause (see *Shell Oil Co. v Iowa Dept. of Revenue*, 488 US 19, 30 [1988]; *Matter of Disney Enters., Inc. v Tax Appeals Trib. of State of N.Y.*, 10 NY3d 392, 400-401 [2008]; *Brady v State of New York*, 80 NY2d 596, 603 [1992]).

“[W]hen apportioning a [corporate] group’s in-state taxable income, a state may look beyond its borders and take into account income of companies not subject to its jurisdiction. In doing so, the state is not deemed to have taxed that income but instead to have used it to determine the tax base fairly attributable to the group as a whole” (*Matter of Disney Enters.*, 10 NY3d at 400 [citations omitted]).

Regardless of what tax may be applied to royalty payments in a foreign jurisdiction, the mere inclusion of such payments to a parent company’s total taxable income does not result in an unconstitutional burden on interstate commerce as with each additional foreign dollar added, the portion of that company’s income attributable to New York State will decrease. And “[a]lthough the total tax assessed in the end may not be exactly equal, . . . the state’s taxation methods need not apportion income perfectly; the Federal Constitution does not require mathematical exactitude, only a rough approximation” (*General Electric Co.*, 154 NH at 470, 914 A2d at 258 [internal quotation marks and brackets omitted]; accord *Illinois Central R. Co. v Minnesota*, 309 US 157, 161 [1940]).

As New York’s tax scheme would not result in duplicative taxation in all (or even most) situations, it is not inherently discriminatory. To the extent that duplicative taxation may sometimes occur, it is the incidental result of “the interaction of two different but nondiscriminatory and internally consistent schemes” (*Wynne*, 575 US at 562).

Accordingly, in each case, the judgment of the Appellate Division should be affirmed, with costs.

Chief Judge WILSON (concurring). Disney and IBM, petitioners here, have advanced two arguments: first, that former Tax

Law § 208 (9) (o) (3) should not be interpreted as the Department of Taxation and Finance has interpreted it; and second, that under the Department's interpretation, the statute violated the Commerce Clause of the United States Constitution. I agree with the majority's (and the Department's) reading of the statute. I also agree that the statute does not violate the Commerce Clause, though for different reasons than those relied on by the majority.

The key to explaining why former Tax Law § 208 (9) (o) (3) does not offend the dormant Commerce Clause is to understand it for what it is and what it is not. It is not a measure that imposes benefits or burdens depending upon where a business is located, where goods are produced, or where payments are made. Instead, it is fundamentally a tax filing provision. The availability of the deduction depends on whether the subsidiary is a "New York taxpayer," not on whether the royalty payment or any aspect of the corporate group's business crosses jurisdictional lines (*Matter of Walt Disney Co. & Consol. Subsidiaries v Tax Appeals Trib. of the State of N.Y.*, 210 AD3d 86, 90 [3d Dept 2022]). A transaction between two New York taxpayers, which petitioners label an "intrastate" transaction, may be between a French corporation and a Chinese subsidiary, so long as both related members file taxes in New York. A transaction between a New York taxpayer and a non-New York taxpayer, which petitioners label an "interstate" transaction, may be between two Delaware entities, only one of which files taxes in New York.

As these examples illustrate, because former Tax Law § 208 (9) (o) (3) is purely a tax filing provision, it does not necessarily tax "a transaction or incident more heavily when it crosses state lines than when it occurs entirely within the State" (*Armco Inc. v Hardesty*, 467 US 638, 642 [1984]). Rather, it creates complex second-order incentives that sometimes favor and sometimes disfavor interstate business operations. By conflating the requirement that the subsidiary file tax in New York with a requirement that the subsidiary be incorporated in New York or make royalty payments here, petitioners fail to properly account for those incentives. When the statute is understood for what it is, "[n]either record evidence nor abstract logic makes clear whether the overall effect . . . would be to increase or to reduce existing financial disincentives to interstate travel" (*Comptroller of Treasury of Md. v Wynne*, 575 US 542, 563 n 7 [2015] [citation omitted]). Therefore, petitioners have not shown that the statute violates the dormant Commerce Clause.

I.

Former Tax Law § 208 (9) (o) (3) states:

“For the purpose of computing entire net income or other taxable basis, a taxpayer shall be allowed to deduct royalty payments directly or indirectly received from a related member during the taxable year to the extent included in the taxpayer’s federal taxable income unless such royalty payments would not be required to be added back under subparagraph two of this paragraph or other similar provision in this chapter.”

A royalty payment is “required to be added back under subparagraph two of this paragraph or other similar provision in this chapter” only if the payor is a New York taxpayer. If a payor corporation does not file a New York corporation franchise tax return, it is not required to do anything under subparagraph (2) or any provision of the chapter governing New York corporation franchise tax. And because such a payor would not be required to take the add-back, the recipient may not take the deduction.

Setting constitutional concerns aside, I agree with the majority that this is the most straightforward interpretation of the statute. The statutory scheme was enacted to address a tax loophole when royalties were paid by a NY-taxpaying parent to a subsidiary¹ in another jurisdiction which did not tax royalty income, thereby insulating the income from taxation. However, the reading advanced by petitioners would create a concomitant loophole when royalties are paid by a non-NY taxpaying subsidiary in a jurisdiction with no add-back to a NY-taxpaying parent. This is not what the legislature intended. Indeed, petitioners do not claim that the legislature intended to create the exemption conferred by the reading they offer.

Instead, they argue that the Tax Department’s interpretation would facially discriminate against interstate commerce in violation of the dormant Commerce Clause of the United States Constitution (US Const, art I, § 8, cl 3). Therefore, petitioners contend that we should construe former Tax Law § 208 (9) (o) (3) as they propose, to avoid the proffered constitutional infir-

1. Although I use “parent” and “subsidiary” because the parties here fit these labels, nothing turns on them. The scheme of deductions and add-backs in former Tax Law § 208 (9) (o) covered all “related members” without regard to parent or subsidiary status.

mity (see *Overstock.com, Inc. v New York State Dept. of Taxation & Fin.*, 20 NY3d 586, 593 [2013]; *H. Kauffman & Sons Saddlery Co. v Miller*, 298 NY 38, 44 [1948]). As explained below, I conclude that former Tax Law § 208 (9) (o) (3) does not violate the dormant Commerce Clause, and therefore I have no basis to construe the statute other than the way in which it plainly reads, just as the majority and the Department have read it.

II.

At issue in these appeals are royalty payments made by affiliates to their ultimate corporate parents for use of intellectual property owned by the parent. As the Tax Department has consistently maintained and the Third Department reaffirmed, the availability of the deduction for such payments turns on whether the royalty payor (affiliate) is a “New York taxpayer[]” (*Walt Disney Co.*, 210 AD3d at 90). If the royalty payor files a New York corporation franchise tax return (regardless of where the payor is located), it is required to take the add-back and therefore the deduction becomes available to the recipient (parent). If the royalty payor does not file such a return, it is not required to take the add-back and therefore no deduction is available to the recipient.

Although that rule is quite clear, petitioners have misapprehended it. A “New York taxpayer” is not the same as a corporation domiciled in New York, nor is it the same as a company that receives royalty payments in New York or does business in New York. It is merely a corporation that files a tax return in New York.

Thus, for a parent corporation to receive the deduction, the subsidiary need only file a New York tax return. Because petitioners have brought a facial challenge, they bear the burden to “establish that no set of circumstances exists under which the Act would be valid” (*United States v Salerno*, 481 US 739, 745 [1987]). However, the record here fails to show that IBM and Disney could not have obtained the deduction they seek, because the record does not contain any indication of whether their foreign payor subsidiaries filed or attempted to file New York tax returns. Petitioners have never even asserted that their foreign payor subsidiaries could not have filed tax returns in New York, or that some untoward consequence would befall them if they had done so. If their subsidiaries had taken the add-back on New York tax returns, each parent could

have claimed the deduction without changing anything about the corporate group's business operations. Although almost all would agree that filing tax returns is burdensome, it is not the sort of burden that violates the Commerce Clause—and no party contends that it would.

The statutory provisions discussed by petitioners do not suggest that the payor subsidiaries were barred from filing their own New York tax returns. Even were we to examine provisions never mentioned by petitioners, the issue is not obviously resolved. The statute governing corporate taxation does not speak in terms of which corporations are permitted to file tax returns, but rather in terms of which corporations are required to do so (*see* former Tax Law § 209). In the most general possible terms, a corporation is required to pay franchise tax if it is “doing business” in New York state (*see id.* subd [1] [requiring a corporation to file a tax return “(f)or the privilege of exercising its corporate franchise, or of doing business, or of employing capital, or of owning or leasing property in this state in a corporate or organized capacity, or of maintaining an office in this state”]; *Matter of Wurlitzer Co. v State Tax Commn.*, 35 NY2d 100, 104 [1974]). The record at least implies that Disney and IBM's foreign payor subsidiaries did not do business in New York during the relevant period, and therefore were not required to file a corporate tax return.

However, that does not mean that they were not *allowed* to file such a return. Whether a company that does no business in New York could file a corporate franchise tax return in order to achieve a tax deduction for a related member is a novel question, but nothing in the record suggests that any payor affiliate of Disney or IBM ever sought to do so or even inquired about doing so as a way to permit the corporate parent to take the deduction. Although we can imagine arguments against a subsidiary's ability to claim the add-back on a New York franchise tax return,² petitioners have not raised any such arguments or shown on this record that former Tax Law § 208 (9) (o) (3) created anything more than an administrative burden.

2. Former Tax Law § 208 (2) defines “taxpayer” as “any corporation subject to tax under this article.” Tax Law § 209 at some points uses “subject to tax” as a synonym for “required to pay tax” (*see* former Tax Law § 209 [4] [certain corporations liable to tax under other sections are not “subject to tax under this article”]). It is possible that a corporation that is not “subject to tax” would not be a “New York taxpayer” able to claim the royalty add-back under former Tax Law § 208 (9) (o) (3).

For that reason, both appeals fail. If the payor subsidiaries could have filed New York corporate tax returns, which would have required those subsidiaries to “add back royalty payments to a related member” (former Tax Law § 208 [9] [o] [2]), petitioners have no case, because the parents could have then taken the deduction on their tax returns and would have been treated exactly the same as a New York parent corporation with a New York subsidiary. Because petitioners have not even attempted to demonstrate that they could not have obtained the deduction they seek by merely having their affiliated foreign payors file a New York tax return, there is no basis on which to hold former Tax Law § 208 (9) (o) unconstitutional.

III.

For the sake of argument, though, let us assume that the Department would not have allowed Disney and IBM’s foreign payor subsidiaries to file New York tax returns even if they had tried, presumably because they do not do business here. On that assumption, Disney and IBM’s Commerce Clause arguments still fail.

Disney and IBM have often conflated the “New York taxpayer” requirement with a requirement that the subsidiary be domiciled here or receive royalty payments here. However, there is plainly no requirement that a corporation must be domiciled in New York or make or receive royalty payments from or in New York to be required to file a New York corporate tax return. A corporation that transacts business in New York is required to file a New York tax return, even if it is not incorporated in New York and its business has nothing to do with royalty payments.

Notably, a corporation may file a franchise tax return in many jurisdictions, even if it is incorporated in or allocates royalty payments to relatively few of those jurisdictions.³ When a corporation is taxed in multiple jurisdictions, its net income is allocated to each jurisdiction for tax purposes depending on the portion of taxable value created in that state (*see* former Tax Law § 210 [3]; *see generally Oklahoma Tax Comm’n v Jefferson Lines, Inc.*, 514 US 175, 186 [1995] [describing the constitutional requirement that no state tax more than its fair

3. The parties agree that at the relevant time, receipts from royalty payments for intellectual property were allocated to the jurisdiction in which the intellectual property was used.

share of interstate commerce and discussing possible methods of apportionment]).

When we remember that the deduction at issue is based on the location of tax filings, not the location of incorporation or royalty payment, Disney and IBM's characterization of "intra-state" and "interstate" transactions falls apart. Disney and IBM often refer to New York related members as if they operate solely in New York and receive royalty payments in New York.⁴ But a "New York taxpayer" for purposes of this deduction is simply a corporation, wherever located and receiving payments, that does sufficient business in New York to require it to file a franchise tax return. A payment from a "New York" subsidiary to a "New York" parent, which the petitioners describe as "in-state" or "intrastate," is simply a royalty payment between two companies that both file returns in New York, regardless of where the companies are based and where the intellectual property and royalty payments are used. Although petitioners' definition of "intrastate" does cover payments between New York related members (as long as they both pay New York tax), it also covers a royalty payment from France to China as long as it is between two New York taxpayers. Conversely, a payment from a "foreign" payor to a "New York" recipient, which petitioners describe as "interstate," is a payment from a company that does not pay tax in New York to a company that does, regardless of the location of the companies and where the payments are made. Petitioners' definition of "interstate" covers a transaction between a Delaware payor and a Delaware recipient, so long as only the former pays corporate franchise tax in New York.

An example makes the error in petitioners' definition transparent. Petitioners suggest that the availability of the deduction turns on whether the corporate group participates in interstate or intrastate commerce. But consider a situation in which Disney, a Delaware corporation, receives a royalty payment from Magical Cruise Co. Ltd., which is incorporated in the United Kingdom. Disney files a corporate franchise tax

4. At certain points, Disney acknowledges that the tax is not related to the transaction but to the subsidiary's presence in the state. However, Disney also conflates this understanding with understandings of the tax based on the location of payments or of incorporation, and significant portions of its argument rely on that conflation. To the extent that Disney argues that merely distinguishing between New York taxpayers and other subsidiaries violates the dormant Commerce Clause, I address that argument in part V *infra*.

return in New York, but Magical Cruise does not. For Disney to take the royalty deduction, Magical Cruise must file a tax return in New York. That is the only requirement. If Magical Cruise begins doing business, totally unrelated to any royalties, that requires it to file a corporate franchise tax return in New York, Disney may take the deduction. But if Magical Cruise reincorporates in Delaware and moves all its business there, Disney still may not take the deduction, because Magical Cruise still does not file a New York tax return. It is irrelevant that the entire royalty transaction is now intrastate (Delaware to Delaware). Conversely, if Magical Cruise files a New York tax return, it is irrelevant to Disney's deduction status that the royalty payment is still transmitted from the United Kingdom to Delaware. The issue is only whether the payor is a "New York taxpayer."

This is not a mistake or even an unintended consequence of the Department's position, but the straightforward result of the Department's view of the statutory policy. The Department's view is that the legislative intent of the deduction was to counteract double taxation that the legislature had caused via the add-back requirement in Tax Law former § 208 (9) (o) (2), and that it was not intended to be available in other situations. As to that proposition, the majority and I are completely in agreement. This is entirely consistent with the view that the deduction would be available when the add-back provision is invoked and unavailable when it is not, regardless of the location of the payments or corporations. There is no reason the Department should object to Delaware-based Disney taking a deduction on a royalty payment from a United Kingdom subsidiary, so long as that subsidiary adds back the payment under section 208 (9) (o) (2).

To summarize, the Department's interpretation of former Tax Law § 208 (9) (o) (3) does not disallow the deduction when a royalty payment is interstate. Rather (still holding to the untested assumption that a corporation that does no business in New York could not file a New York tax return), it disallows a deduction for royalty payments from a corporation that does not do business in New York, regardless of the locations of the payor or recipient. The question is whether that violates the dormant Commerce Clause.

IV.

Petitioners allege that the Department's interpretation facially violates the dormant Commerce Clause, meaning that

it “inherently” discriminates against interstate commerce (*Wynne*, 575 US at 562) and is “unconstitutional in all applications” (*Los Angeles v Patel*, 576 US 409, 417 [2015]).

Under the *Complete Auto* test, a tax is constitutional if it:

1. “is applied to an activity with a substantial nexus with the taxing State”;
2. “is fairly apportioned”;
3. “does not discriminate against interstate commerce”;
4. “is fairly related to the services provided by the State” (*Complete Auto Transit, Inc. v Brady*, 430 US 274, 279 [1977]).

Here, the issue is whether the scheme of royalty deductions and add-backs set out in former Tax Law § 208 (9) (o) discriminates against interstate commerce. *Comptroller of Treasury of Md. v Wynne*, the most recent Supreme Court case to address this issue, suggests that whether a scheme of taxation discriminates against interstate commerce depends on application of the internal consistency test (*see* 575 US at 562).

The internal consistency test “looks to the structure of the tax at issue to see whether its identical application by every State in the Union would place interstate commerce at a disadvantage as compared with commerce intrastate” (*id.*, quoting *Jefferson Lines*, 514 US at 185). A tax that fails the test is “typically unconstitutional”; a tax that passes is typically not (*Wynne*, 575 US at 562-563). A primary contention of petitioners, especially petitioner IBM, is that former Tax Law § 208 (9) (o) is unconstitutional because it violates the internal consistency test.

The internal consistency test requires the hypothetical application of New York’s tax scheme to every jurisdiction.⁵ In that hypothetical, every jurisdiction would follow the related member add-back provision in former section 208 (9) (o) (2). Thus the royalty-paying subsidiary would have the payment added back to its income no matter where it files tax,⁶ and will

5. Although *Wynne* refers to the test in the context of interstate commerce, it also traces the use of test to *Container Corp. of America v Franchise Tax Bd.* (463 US 159, 169 [1983]), which dealt with foreign commerce. Petitioners contend that the internal consistency test applies to international commerce and the Tax Department does not dispute that proposition. Therefore, we assume that the internal consistency test applies here.

6. The payor would not receive the add-back if the transaction implicated the exclusions in former Tax Law § 208 (9) (o) (2), but the parties agree that these exclusions are not relevant here.

always be taxed on that money. Therefore, whenever the royalty recipient does not receive the deduction and is required to pay tax on the same money, there would be some level of multiple taxation. The multiple taxation would be avoided when the payor files in the same jurisdiction as the recipient. Just as New York permits an income deduction when the royalty payor files in New York, Delaware would permit an income deduction when the payor files in Delaware, and the United Kingdom would permit an income deduction which the payor files in the United Kingdom. Under that regime, the incentive is for the royalty payor to file a corporate franchise return in every jurisdiction where the recipient does so.

The internal consistency text asks whether application of that regime “would place interstate commerce at a disadvantage as compared with commerce intrastate” (*Wynne* 575 US at 562, quoting *Jefferson Lines, Inc.*, 514 US at 185). Disney and IBM argue that it would. If a New York company receives a royalty payment from a New York subsidiary, both taxpayers will file in the same jurisdiction and the money will only be taxed once. However, if a New York company receives a royalty payment from a foreign subsidiary, the foreign subsidiary will be required to add the money back, the New York company will not receive the deduction, and the money will be taxed twice.

In analyzing that argument, we must first remember that what petitioners describe as a “New York” company is merely a company that does business in New York. For example, petitioner Disney is a Delaware corporation—even if the tax regime incentivizes Disney to do business in New York, this seems to favor interstate commerce, not intrastate commerce. Similarly, it is not true that Disney is necessarily disincentivized to receive royalty payments from foreign corporations—if the foreign corporation pays New York tax, such a payment is favored.

More directly, because the tax is not on interstate transactions but rather relates to the location of filing, it is not difficult to find situations where a corporation would benefit from receiving a foreign royalty payment rather than an intrastate one. For example, consider a New York corporation that does business in both New York and the United Kingdom, with 90%

of its receipts in the United Kingdom and 10% in New York.⁷ The corporation has a subsidiary solely operating in New York and a subsidiary solely operating in the United Kingdom. If the corporation receives a royalty payment from the subsidiary in New York, it will be able to take the royalty deduction in New York but will not be able to take the deduction in the United Kingdom. If the corporation receives a royalty payment from the subsidiary in the United Kingdom, it will be able to take the deduction in the United Kingdom but not New York.

Faced with that choice, the corporation is better off receiving the royalty payment from (and taking the deduction in) the United Kingdom, because it has a higher allocation percentage in that jurisdiction. After the deduction is taken, the net income of the corporation is multiplied by the allocation percentage (which at the time in New York was based on receipts) to determine taxable income in that jurisdiction. In this example, the allocation percentage would be 90% in the United Kingdom and 10% in New York. Therefore, if the deduction is taken in the United Kingdom it will be multiplied by 90%, but if it is taken in New York it will only be multiplied by 10%.⁸ In general, whenever a business has a higher allocation percentage in a foreign jurisdiction than in New York, it will be preferable for the taxpayer to deal with a corporation that pays tax in that jurisdiction. Therefore, under the internal consistency test, the taxation scheme will tend to favor payments from a subsidiary located in a jurisdiction where the recipient's allocation percentage is the greatest—which could either be an interstate or an intrastate trans-

7. The allocation of net income to different jurisdictions in which a corporation does business is based on receipts, not profit (*see* former Tax Law § 210 [3] [a]).

8. For a numerical example, we can imagine that both jurisdictions calculate the net income of the corporation to be \$500. The United Kingdom will tax \$450 and New York will tax \$50.

If the corporation is receiving a royalty of \$100 from a subsidiary, it can get a deduction of \$100 in the jurisdiction where that subsidiary files tax. If it receives the royalty from a subsidiary filing in the United Kingdom, the United Kingdom will calculate the corporation's net income at \$400 and tax \$360. New York will still calculate net income at \$500 and tax \$50. The total taxable income in both jurisdictions is \$360 + \$50, or \$410.

If it instead receives the royalty from a subsidiary filing in New York, New York will calculate the corporation's net income at \$400 and tax \$40. The United Kingdom will still calculate the corporation's net income at \$500 and tax \$450. The total taxable income in both jurisdictions is \$450 + \$40, or \$490.

action. Because under some circumstances the tax favors foreign commerce, petitioners cannot show that it facially discriminates against foreign commerce (*see Patel*, 576 US at 418; *Wynne*, 575 US at 563 n 7).

Petitioners fail to address that issue, which is especially concerning because the scheme of taxation plausibly favors foreign commerce even as applied to them. IBM urged at argument that the correct application of the internal consistency test holds the plaintiffs constant and changes only the taxation schemes of the relevant jurisdictions (*see Hellerstein and Hellerstein*, State Taxation § 4.16 [1] [c] [3d ed, Dec. 2023]; *In re Alternative Minimum Tax Refund Cases*, 546 NW2d 285, 290 [Minn 1996]). But it appears that if we do so, Disney and IBM would benefit from engaging in additional foreign or interstate commerce, not additional intrastate commerce.

IBM is a New York corporation with numerous subsidiaries throughout the United States and foreign jurisdictions. During the years in question, about 5% of IBM's net income was allocated to New York. That means that 95% of IBM's net income was allocated to other jurisdictions. Essentially the same facts are true of Disney.⁹

If there is any jurisdiction where IBM has a higher allocation percentage than in New York, IBM would benefit from receiving the royalty payment from that jurisdiction rather than from New York. Given that IBM's income is only allocated 5% to New York, this could plausibly be the case. For example, if 10% of IBM's income is allocated to Canada, under internal consistency IBM would be tax-advantaged by receiving a royalty payment from a Canadian taxpayer, in which case its deduction is multiplied by 10%, rather than receiving a payment from an in-state New York taxpayer and having the deduction multiplied by 5%. Therefore, for a corporation like IBM for which New York is only one of many relevant tax jurisdictions, it is not at all clear that intrastate royalty payments are tax-advantaged.

Taking this line of reasoning further, the internal consistency test does not require that we assume each subsidiary does business in only a single jurisdiction. IBM would be best

9. Disney is a Delaware corporation, but assuming internal consistency the exact same analysis can be repeated with regard to Delaware. Disney's allocation percentage in New York during the years in question was also approximately 5%.

off if it received the payment from a subsidiary that did business not only in Canada, but also in New York and all other jurisdictions where it does business, because then it would benefit from a deduction in every place it is subject to an add-back. That even higher level of interstate business would advantage the corporation even further.

In short, although it is theoretically possible (again, assuming under internal consistency that every jurisdiction requires an add-back) that the former tax regime could create double taxation despite the clear legislative intent to avoid this, for petitioners and those similarly situated any double taxation would operate as a penalty for corporate groups that do not conduct sufficient interstate business, rather than a penalty for those who conduct too much. This is demonstrated by the fact that the action which petitioners portray as tax-advantaged, receiving all royalties from related members within New York, would not in fact eliminate double taxation for them assuming internal consistency. Rather, petitioners would need to ensure that the related members file franchise tax returns in each of the numerous jurisdictions in which petitioners do business. I do not read any of the Supreme Court's Commerce Clause jurisprudence to suggest that a state may not enact a law that tends to favor interstate or foreign commerce over intrastate.

I do not suggest that the short-lived scheme of taxation created by former Tax Law § 208 (9) (o) (3) is necessarily fair or sensible—the risk of double taxation in jurisdictions where payors (for whatever reason) do not file is unnecessary and could have been easily eliminated, for example by a credit for taxes paid in the foreign jurisdiction. However, given that “[n]either record evidence nor abstract logic makes clear whether the overall effect of such a system would be to increase or to reduce existing financial disincentives to interstate” business transactions, it does not violate the internal consistency test (*Wynne*, 575 US at 563 n 7 [citation omitted]).

V.

Disney also argues, independently of the internal consistency test, that former Tax Law § 208 (9) (o) is unconstitutional because it premises a tax deduction on a geographic determinant. However, the presence of a geographic determinant is not sufficient to show that a tax facially discriminates against interstate commerce. For example, a tax that explicitly

states that intrastate activity will be taxed more heavily than interstate activity is premised on a geographic determinant. However, it does not “place burdens on the flow of commerce across . . . borders that commerce wholly within those borders would not bear”—rather, it does the reverse (*Jefferson Lines*, 514 US at 180; see *American Trucking Assns., Inc. v Michigan Pub. Serv. Comm’n*, 545 US 429, 434 [2005] [upholding such a tax]).

Here, the tax deduction does depend on a geographic distinction between New York and non-New York taxpayers. However, this does not violate the dormant Commerce Clause unless by operation of that geographic distinction there is “incentive to engage in intrastate rather than interstate economic activity” (*Wynne*, 575 US at 561). Although it is possible to construct situations where the geographic distinction in former Tax Law § 208 (9) (o) (3) incentivizes intrastate commerce, in other situations, including quite plausibly petitioners’ actual situations, the geographic distinction incentivizes interstate commerce. Therefore, we cannot say that the tax discriminates against interstate commerce merely because it speaks in geographic terms (see *Kraft*, 505 US at 80 n 23 [noting the need to evaluate comparators who are “most similarly situated” (citation omitted)]; *Wynne*, 575 US at 563 n 7 [stating that where the effects of a tax may cut in either direction, an “empirical showing” is needed to determine whether interstate commerce would be at a disadvantage]).

VI.

Understanding that the deduction in former Tax Law § 208 (9) (o) turns solely on tax filing status highlights several fatal flaws in petitioners’ argument. First, petitioners have not contended, much less shown, that their payor subsidiaries could not have filed New York tax returns, which would have obtained the exact deduction petitioners seek. Second, the tax burden has nothing to do with whether a royalty transaction is intrastate—an “intrastate” corporate group is simply one where the payor and recipient do some business in the same jurisdiction generally. Third, a corporate group may have the lowest possible tax burden if it operates in 1, 100, or 1,000 jurisdictions, so long as there is operational symmetry between the payor and recipient. Fourth, if we assume internal consistency, the drive towards symmetry would tend to encourage petitioners and those similarly situated to increase the jurisdictions in

which their subsidiaries do business rather than decreasing the jurisdictions in which the parent does business, favoring interstate commerce. For these reasons, petitioners have not shown that former Tax Law § 208 (9) (o) discriminates against interstate or foreign commerce in violation of the dormant Commerce Clause. I would therefore affirm the holding of the Appellate Division, though on these different grounds.

In *Matter of Walt Disney Co. & Consol. Subsidiaries v Tax Appeals Trib. of the State of N.Y.*: Judgment affirmed, with costs.

Opinion by Judge CANNATARO. Judges RIVERA, GARCIA, SINGAS and TROUTMAN concur. Chief Judge WILSON concurs in result in an opinion, in which Judge HALLIGAN concurs.

In *Matter of International Bus. Machs. Corp. & Combined Affiliates v Tax Appeals Trib. of the State of N.Y.*: Judgment affirmed, with costs.

Opinion by Judge CANNATARO. Judges RIVERA, GARCIA, SINGAS and TROUTMAN concur. Chief Judge WILSON concurs in result in an opinion, in which Judge HALLIGAN concurs.

[249 NE3d 1194, 225 NYS3d 174]

**MAK TECHNOLOGY HOLDINGS INC., Respondent, v ANYVISION
INTERACTIVE TECHNOLOGIES LTD., Appellant.**

Argued May 15, 2024; decided June 20, 2024

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 29, 2022. The Appellate Division affirmed an order of the Supreme Court, New York County (Melissa A. Crane, J.), which had denied defendant's motion to dismiss the first cause of action for breach of contract to the extent it sought a \$1,250,000 referral fee. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the order of Supreme Court, properly made?"

MAK Tech. Holdings Inc. v Anyvision Interactive Tech. Ltd., 213 AD3d 28, reversed.

HEADNOTE**Contracts — Ambiguous Contracts — Effective Date Clause — One Reasonable Interpretation**

In a breach of contract action where the parties disputed whether an amendment to a referral agreement modified the agreement's effective date, the provision that "[e]ach of the undersigned hereby agrees that *the with affect as of the date hereof* and notwithstanding anything to the contrary in the Agreement" (emphasis added) did not create a factual issue with respect to the length of the term, because that language was susceptible to only one reasonable interpretation. "[T]he with affect as of the date hereof" could easily be understood to mean "with effect as of the date hereof" by setting aside a plainly extraneous article ("the") and correcting a common, one-letter spelling error ("effect" versus "affect"). Employing this commonsense reading, that section of the agreement had no impact on the length of the term. As written, it neither referenced the effective date nor purported to amend the term of the agreement. There were no extraneous capital letters in the clause or anything else that reasonably suggested an intent to amend the effective date of the original agreement rather than simply to use the word "effect" or "affect." Given the amendment's emphasized language that "*[u]nless otherwise defined, capitalized terms used herein shall have the meaning ascribed to them under the Agreement,*" and its further warning that the original agreement would be "unchanged" except as "specifically provided above," no reasonable person could have read the minor typographical errors in the section as amending the effective date, much less as extending the duration of the term.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Contracts §§ 323–324, 326, 328, 330–333, 338, 344–346, 349, 358–359, 369, 489.
NEW YORK CONTRACT LAW (2d ed) §§ 9:17–9:18, 9:20–9:23, 9:25, 9:37, 10:1, 10:4–10:5, 10:10.
NY JUR 2d Contracts §§ 24, 203–204, 206, 213, 220–221, 231, 236, 250, 271, 475–477.
WILLISTON ON CONTRACTS (4th ed) §§ 30:4–30:5, 30:7, 30:10, 31:1–31:2, 31:5, 32:1–32:3, 32:5–32:6, 32:11.

ANNOTATION REFERENCE

See ALR Index under Certainty and Definiteness; Contracts; Correction; Effective Date; Termination and Expiration; Time and Date.

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Query:contract & ambig! & “effective date” & (typo! OR spell! OR misspell! OR ((minor OR small OR clerical OR insignificant) /3 (error OR mistake)))

POINTS OF COUNSEL

Simon Lesser PC, New York City (*Leonard F. Lesser* and *Nathaniel Levy* of counsel), for appellant. I. Under the Court’s cardinal principles of contract interpretation, MAK Technology Holdings Inc.’s claim for referral fees on equity investments made on July 8, 2021, eight months after the expiration of the parties’ referral agreement, should have been dismissed. (*Matter of Marcus v Wright*, 225 AD2d 447; *Quadrant Structured Prods. Co., Ltd. v Vertin*, 23 NY3d 549; *Ashwood Capital, Inc. v OTG Mgt., Inc.*, 99 AD3d 1; *Eighth Ave. Coach Corp. v City of New York*, 286 NY 84; *Bailey v Fish & Neave*, 8 NY3d 523; *Riverside S. Planning Corp. v CRP/Extell Riverside, L.P.*, 60 AD3d 61, 13 NY3d 398; *International Tech. Mktg., Inc. v Verint Sys., Ltd.*, 157 F Supp 3d 352; *P.S. Fin., LLC v Eureka Woodworks, Inc.*, 214 AD3d 1; *Rosenthal v Quadriga Art, Inc.*, 69 AD3d 504; *Brad H. v City of New York*, 17 NY3d 180.) II. The phrase “paid or payable” in the 2nd Amendment expressly refers to the discrete financing amounts due at the closing of each independent investment transaction, not any and all future transactions as the complaint erroneously alleges. (*Mat-*

ter of Proper [Sterling Ins. Co.], 252 AD2d 802; *Madison Equities, LLC v Serbian Orthodox Cathedral of St. Sava*, 144 AD3d 431; *RM 14 FK Corp. v Bank One Trust Co., N.A.*, 37 AD3d 272.)

Hinckley & Heisenberg LLP, White Plains (*Christoph C. Heisenberg* of counsel), for respondent. I. Anyvision Interactive Technologies Ltd. failed to establish that the amendment's term expired in November 2020. (*Greenfield v Philles Records*, 98 NY2d 562; *Breed v Insurance Co. of N. Am.*, 46 NY2d 351; *Telerep, LLC v U.S. Intl. Media, LLC*, 74 AD3d 401; *Gizara v New York Times Co.*, 80 AD3d 1026; *Colello v Colello*, 9 AD3d 855; *Northville Indus. Corp. v Fort Neck Oil Terms. Corp.*, 100 AD2d 865; *Moulton Paving, LLC v Town of Poughkeepsie*, 98 AD3d 1009; *Sotheby's, Inc. v Stone*, 388 F Supp 3d 265; *Cappelli v State Farm Mut. Auto. Ins. Co.*, 259 AD2d 581; *International Tech. Mktg., Inc. v Verint Sys., Ltd.*, 157 F Supp 3d 352.) II. Anyvision Interactive Technologies Ltd.'s express admission confirms that the term did not expire in November 2020. (*Federal Ins. Co. v Americas Ins. Co.*, 258 AD2d 39; *Webster's Red Seal Publs. v Gilberton World-Wide Publs.*, 67 AD2d 339, 53 NY2d 643; *Waverly Corp. v City of New York*, 48 AD3d 261.) III. MAK Technology Holdings Inc. is entitled to compensation on Eldridge Industries LLC's investments beyond the agreement's term. (*Bingham v New York City Tr. Auth.*, 99 NY2d 355; *LaSalle Bank N.A. v Nomura Asset Capital Corp.*, 424 F3d 195; *Mazzola v County of Suffolk*, 143 AD2d 734; *Matter of Marcus v Wright*, 225 AD2d 447; *Oliveri v First Rehabilitation Ins. Co. of Am.*, 76 AD2d 858.)

OPINION OF THE COURT

CANNATARO, J.

Whether or not a contract is ambiguous is a question of law to be resolved by the courts (see *Matter of Banos v Rhea*, 25 NY3d 266, 276 [2015]; *Kass v Kass*, 91 NY2d 554, 566 [1998]; *W.W.W. Assoc. v Giancontieri*, 77 NY2d 157, 162 [1990]). In deciding that question, judges must compare the competing interpretations advanced by the parties to the contractual language, which represents "[t]he best evidence" of the parties' intent (*Greenfield v Philles Records*, 98 NY2d 562, 569 [2002] [internal quotation marks omitted]). The ultimate inquiry is an objective one: Is the language "written so imperfectly that it is susceptible to more than one reasonable interpretation"? (*Brad H. v City of New York*, 17 NY3d 180, 186 [2011]; see *Law Deb.*

Trust Co. of N.Y. v Maverick Tube Corp., 595 F3d 458, 466 [2d Cir 2010]). The purpose of these rules is to protect the parties' reasonable expectations, avoid fraud, and promote stability in commercial transactions (see *Matter of Wallace v 600 Partners Co.*, 86 NY2d 543, 548 [1995]; *Sutton v East Riv. Sav. Bank*, 55 NY2d 550, 555 [1982]).

Applying these cardinal principles of contractual interpretation to the instant appeal, we hold that plaintiff is not entitled to a \$1.25 million fee for a transaction consummated eight months after the “Term” of the parties’ agreement expired. Contrary to the Appellate Division’s conclusion, minor syntactic and spelling errors in the preamble of an amendment to the contract cannot reasonably be read as modifying the length of the Term. We also reject plaintiff’s argument that the amendment is a separate agreement with a distinct term.

* * *

Defendant Anyvision Interactive Technologies Ltd. is an Israeli company that sells facial-recognition software to businesses and governments. In 2017, defendant engaged plaintiff MAK Technology Holdings Inc. to arrange introductions with potential customers in exchange for referral payments based on the revenues generated from any resulting product-license agreements. The parties formalized their agreement in a written Referral Agreement containing a defined “Effective Date” of November 23, 2017. Section 8.1 of the agreement provides that “[t]his Agreement shall commence on the Effective Date and shall remain in force for a period of three (3) years unless earlier terminated . . . (**Term**)”. The Term may be extended by the written agreement of both parties.”

The parties amended the Referral Agreement in January 2018 and again in August 2018 to include a compensation arrangement for equity investments in defendant, separate from their arrangement with respect to product licenses. Section 2 of each amendment begins with a preambulatory clause that no one would dispute is written in less-than-perfect English: “Each of the undersigned hereby agrees that *the with affect as of the date hereof* [sic] and notwithstanding anything to the contrary in the [Referral] Agreement, the Agreement shall be amended as follows” (emphasis added). Following this introductory section in the August 2018 amendment (the Second Amend-

ment)¹ is a list of supplemental provisions that were to be appended to the Referral Agreement as Exhibit B, including a requirement that defendant pay a referral fee to plaintiff in the event an approved investor consummated an equity investment in defendant “during the Term.”

The Second Amendment is bookended by provisions emphasizing its limits and the continued effectiveness of most of the original agreement’s terms. The first paragraph provides, in italicized language, “[u]nless otherwise defined, capitalized terms used herein shall have the meaning ascribed to them under the [Referral] Agreement.” In a similar vein, the last paragraph provides: “Except as specifically provided above, the [Referral] Agreement as amended hereby, shall remain unchanged as originally constituted.” The parties also “agree[d] that the [Referral] Agreement and this Exhibit [B] hereto constitute the full and entire understanding and agreement between the Parties with regard to the subject matters hereof and thereof and any other written or oral agreement relating to the subject matter hereof existing between the parties is expressly canceled.”

Plaintiff commenced this action to recover compensation allegedly owed under the amended Referral Agreement. As relevant here, the first cause of action alleges that nonparty Eldridge Industries Inc. (Eldridge) made an investment in defendant in July 2021 for which plaintiff is owed a \$1.25 million fee under the Second Amendment. Defendant moved to dismiss this claim pursuant to CPLR 3211 (a) (1) and (7) on the ground that the transaction occurred eight months after the Term of the Referral Agreement expired in November 2020. Supreme Court denied the motion and a divided Appellate Division affirmed, both concluding that the error-infected language in section 2 of the Second Amendment creates an ambiguity with respect to the length of the Term (213 AD3d 28, 33 [1st Dept 2022]). The Appellate Division granted defendant leave to appeal, certifying the following question: “Was the order of this Court, which affirmed the order of Supreme Court, properly made?” (2023 NY Slip Op 66323[U] [1st Dept 2023]). We now reverse and answer that question in the negative.

Under the plain language of the Second Amendment, plaintiff is entitled to a fee for the July 2021 transaction only if that

1. The Second Amendment “replace[d]” and “canceled” the earlier January 2018 amendment, which contained largely similar provisions.

transaction was consummated “during the Term.” Because the word “Term” is not defined in the Second Amendment, it must—in accordance with the parties’ express directive—be given the meaning specifically ascribed to it in the Referral Agreement, which is a three-year period commencing on the Effective Date of November 23, 2017, and expiring in November 2020.

The muddled phrase “the with affect as of the date hereof” in section 2 of the amendment does not create a factual issue with respect to the length of the Term, because that language is susceptible to only one reasonable interpretation (*see Brad H.*, 17 NY3d at 186). As defendant contends, and both the majority and dissent at the Appellate Division agreed, “the with affect as of the date hereof” can easily be understood to mean “with effect as of the date hereof.” To reach that interpretation, one need only set aside a plainly extraneous article, the word “the,” and correct a common, one-letter spelling error (“effect” versus “affect”)² (*see Merriam-Webster’s Collegiate Dictionary* 397 [11th ed 2012] [*Effect* and *affect* are often confused because of their similar spelling and pronunciation”]; *see also Banco Espírito Santo, S.A. v Concessionária Do Rodoanel Oeste S.A.*, 100 AD3d 100, 109 [1st Dept 2012] [“mistakes in grammar, spelling or punctuation should not be permitted to alter, contravene or vitiate manifest intention of the parties as gathered from the language employed”]). Employing this commonsense reading, section 2 has no impact on the length of the Term. The basic and essential function of the provision is to clarify when Exhibit B became effective, not alter the agreed-upon Term.

The Appellate Division held that an ambiguity exists because, in its view, “‘the with affect as of the date hereof’ . . . could also be corrected to state ‘with the *Effective Date* as the date hereof’ ” (213 AD3d at 34 [emphasis added]). The dissent similarly posits that the errors could be corrected to state “with the Effective Date hereof.” These strained readings treat section 2 as designed to amend the Effective Date of the original agreement, the primary but unstated effect of which would be to restart its three-year Term.

2. Using underlining to show additions and striking out to show deletions, the edits required to conform section 2 to defendant’s interpretation are as follows: “Each of the undersigned hereby agrees that ~~the~~ with ~~affect~~ effect as of the date hereof and notwithstanding anything to the contrary in the Agreement, the Agreement shall be amended as follows.”

We disagree that the problematic language is reasonably susceptible to such an interpretation. As written, section 2 neither references the Effective Date nor purports to amend the Term. There are no extraneous capital letters in the clause or anything else that reasonably suggests an intent to amend the Effective Date of the original agreement rather than simply to use the word “effect” or “affect.” Nor does the defined phrase fit grammatically into the section unless additional words are added and subtracted on both sides.³ Courts must give meaning to every word whenever possible (*see IKB Intl., S.A. v Wells Fargo Bank, N.A.*, 40 NY3d 277, 298 [2023]). We may “transpose[, reject[, or supply[] words to make the meaning of the contract more clear . . . only in those limited instances where some absurdity has been identified or the contract would otherwise be unenforceable either in whole or in part” (*see Jade Realty LLC v Citigroup Commercial Mtge. Trust 2005-EMG*, 20 NY3d 881, 883-884 [2012] [internal quotation marks omitted]). Defendant’s interpretation comports with these principles by changing only those words in section 2 that cannot grammatically be reconciled with the remainder of the sentence. The alternative interpretations go much farther—they read into section 2 a redefinition of multiple unreferenced and material terms, based on nothing more than speculation as to what the parties might hypothetically have agreed to outside the four corners of their writing. Well-settled principles of contract interpretation prohibit us from entertaining an interpretation that would rewrite the parties’ agreement in this manner (*see Reiss v Financial Performance Corp.*, 97 NY2d 195, 199 [2001]; *Rowe v Great Atl. & Pac. Tea Co.*, 46 NY2d 62, 72 [1978]).

We must also be mindful to read a contract “as a whole to ensure that undue emphasis is not placed upon particular words and phrases” (*Consedine v Portville Cent. School Dist.*, 12 NY3d 286, 293 [2009]). Particularly given the Second Amendment’s emphasized language that “[u]nless otherwise defined, capitalized terms used herein shall have the meaning

3. Using underlining to show additions and striking out to show deletions, the edits required to conform section 2 to the Appellate Division’s interpretation are as follows: “Each of the undersigned hereby agrees that ~~the~~ with the Effective Date as ~~of~~ the date hereof and notwithstanding anything to the contrary in the Agreement, the Agreement shall be amended as follows.” The dissent’s interpretation deletes as extraneous the entire phrase “as of the date” before “hereof.”

ascribed to them under the [Referral] Agreement,” and its further warning that the original agreement would be “unchanged” except as “specifically provided above,” no reasonable person could read the minor typographical errors in section 2 as amending the Effective Date, much less as extending the duration of the Term.⁴

Even putting aside the language in question, the suggestion that the parties chose to extend the Term through an elliptical reference to the Effective Date is implausible. No party has argued that it was necessary, or even important, to modify the Effective Date of the Referral Agreement in order to extend the Term or advance any other purpose of the Second Amendment. Although the *commencement* of the Term is tied to the Effective Date, the Referral Agreement authorizes it to be “*extended* by the written agreement of both parties” (emphasis added). Moreover, because the duration of the Term was a matter of multimillion-dollar importance, the parties presumably would have wanted to clearly document any agreed-upon extension.⁵ It is not sensible to think they would have chosen to effectuate that change indirectly, using the oblique phrase “with the Effective Date as the date hereof” in a preambulatory clause, rather than by straightforwardly expressing it in Exhibit B alongside the other substantive changes listed after the words “the Agreement shall be amended as follows.” It is even less conceivable, given the increased importance of section 2 under this reading, that the typographical errors and glaring omission of the critical phrase “Effective Date” would have gone unnoticed not once, but twice, in separate amendments executed seven months apart. The parties’ longstanding failure to identify the error-infected language strongly suggests that nei-

4. Even if plaintiff understood from the parties’ prior negotiations that the Term would be extended, section 2 plainly did not do so; it therefore became incumbent upon plaintiff to demand clearer language (*see Greenfield*, 98 NY2d at 571 [“If the contract is more reasonably read to convey one meaning, the party benefitted by that reading should be able to rely on it; the party seeking exception or deviation from the meaning reasonably conveyed by the words of the contract should bear the burden of negotiating for language that would express the limitation or deviation” (internal quotation marks omitted)]; *Rodolitz v Neptune Paper Prods.*, 22 NY2d 383, 387 [1968] [“we concern ourselves with what the parties intended, but only to the extent that they evidenced what they intended by what they wrote” (internal quotation marks omitted)]).

5. According to plaintiff, the Second Amendment was entered to resolve a dispute over referral fees under the prior amendment, which defendant considered too expensive.

ther party understood section 2 to have any impact on the duration of defendant's financial obligations.

Finally, plaintiff does not claim that it understood section 2 to amend the Effective Date at the time the amendment was executed. Indeed, the sole theory advanced in plaintiff's briefing to this Court is that the Term of the Referral Agreement is *unconnected* to the Effective Date, and that the Second Amendment is a wholly separate agreement with its own three-year term. Only when questioned at oral argument did plaintiff's counsel tepidly state that "the analysis by the Appellate Division was also correct." The plain language of the Referral Agreement categorically refutes plaintiff's arguments, but even beyond that, the parties' contentions suggest there is no genuine factual question to be resolved with respect to the intended meaning of section 2.

We reject plaintiff's alternative argument that it is owed a fee for the July 2021 transaction because the proceeds were "payable to [defendant]" pursuant to an earlier Eldridge investment for the reasons stated in the dissenting opinion below (*see* 213 AD3d at 44 [Friedman, J., dissenting]).

Accordingly, the order of the Appellate Division should be reversed, with costs, defendant's motion insofar as it sought to dismiss the first cause of action for breach of contract to the extent based on the July 2021 transaction granted, and the certified question answered in the negative.

TROUTMAN, J. (dissenting). I agree with the majority on the fundamental legal principles relevant to this appeal. Ambiguity is a question of law to be resolved by the courts, and a contract

"is unambiguous if the language it uses has a definite and precise meaning, . . . concerning which there is no reasonable basis for a difference of opinion. Thus, if the agreement on its face is reasonably susceptible of only one meaning, a court is not free to alter the contract to reflect its personal notions of fairness and equity" (*Greenfield v Philles Records*, 98 NY2d 562, 569-570 [2002] [internal quotation marks and citations omitted]).

By contrast, "[a]mbiguity is present if language was written so imperfectly that it is susceptible to more than one reasonable interpretation" (*Brad H. v City of New York*, 17 NY3d 180, 186 [2011]).

I further agree with the majority that not all typographical errors, grammatical mistakes, or other obvious errors in a contract render that contract ambiguous (*see* majority op at 575). Rather, the question is whether such errors render the contractual language “written so imperfectly that it is susceptible to more than one reasonable interpretation” (*Brad H.*, 17 NY3d at 186). Under the circumstances of this case, I disagree with the majority that there is only one reasonable way to resolve the obvious errors in this contract.

As the majority explains, the original Referral Agreement (Agreement) set an “Effective Date” of November 23, 2017. In a separate provision, the Agreement defined the “Term” as commencing on the Effective Date and continuing for three years. The parties subsequently amended the Agreement twice, once in January 2018 (the January amendment) and again in August 2018 (the August amendment). Both amendments contained the following nonsensical language: “Each of the undersigned hereby agrees that the with affect as of the date hereof and notwithstanding anything to the contrary in the Agreement, the Agreement shall be amended as follows.” The parties dispute whether there is more than one reasonable way to correct the obvious errors in this sentence.

The majority recognizes, as it must, that neither party’s interpretation could prevail without deleting extraneous verbiage and correcting erroneous spelling. I agree with the majority that one reasonable way to correct those errors is to remove the word “the” and change “affect” to “effect,” such that the phrase would read “with effect as of the date hereof” (*see* majority op at 575). Altered in this manner, the corrected language would mean that the August amendment became effective as of the date that it was executed, and that it did not impact the Effective Date and therefore the Term of the Agreement.

But there are other possible, and reasonable, ways to resolve the errors. The Appellate Division concluded that the errors could be corrected to state “with the Effective Date as of the date hereof” (213 AD3d 28, 34 [1st Dept 2022]). Alternatively, the errors could be corrected to state “with the Effective Date hereof.” Either of these corrections would change the capitalized Effective Date, and therefore the Term, of the original Agreement.

Notably, neither defendant nor the majority disputes that the parties could have changed the Effective Date in this manner, i.e., that doing so would render the original Agreement or

the August amendment absurd or commercially unreasonable. To the contrary, there would be a logical purpose to amending the Effective Date in the subsequent amendments. The parties expressly provided in the original Agreement that the Term could be extended by the written agreement of the parties. And the January and August amendments contemplated a different financial arrangement than the original Agreement. The original Agreement pertained to fees to be paid to plaintiff for referring customers to defendant who would purchase defendant's products. The January and August amendments, by contrast, pertained to fees to be paid to plaintiff for referring equity investors to defendant. It is not absurd that the parties would wish to extend the Term of the original Agreement to allow plaintiff additional time to earn fees for referring equity investors to defendant, an arrangement that would benefit both parties.

The majority points out that the disputed language “neither references the Effective Date nor purports to amend the Term” (majority op at 576). Of course, if the language clearly referenced the Effective Date, we would not be debating the ambiguity of the language. Moreover, if the August amendment had clearly amended the Effective Date, doing so would amend the Term, because the Term of the original Agreement is expressly tied to the Effective Date. It is true that there are “no extraneous capital letters in the clause” (*id.*), but one of the errors may have been a lack of capitalization in the clause even though capitalization was intended, particularly if the drafter¹ was using a talk-to-text technology like dictation. That, of course, would be extraneous evidence that could not be considered unless we determine that the contract is ambiguous (*see Greenfield*, 98 NY2d at 569). But it is no less plausible than the proposition that these sophisticated, counseled parties clearly meant to say “with effect as of the date hereof” but simply failed to read or correct the erroneous language, twice.

It is true that the majority's proposed revision of the errors would involve fewer alterations to the erroneous language than the alternatives (*see* majority op at 576 n 3). But counting how many characters would have to be changed is an arbitrary procedure for determining the true intent of contracting parties where the language the parties used is obviously erroneous. As

1. Plaintiff's counsel asserted that defendant's general counsel drafted the January and August amendments.

the Appellate Division stated, this language “cannot be rendered grammatically correct without possibly altering the parties’ intent” (213 AD3d at 34), regardless of how many characters the Court changes.

The majority further makes a series of presumptions about why it is “implausible” that the parties would have intended to change the Effective Date in this manner: (1) it was not necessary to modify the Effective Date in order to extend the Term of the original Agreement; (2) “because the duration of the Term was a matter of multimillion-dollar importance, the parties presumably would have wanted to clearly document any agreed-upon extension”; and (3) the errors went “unnoticed not once, but twice,” suggesting that neither party understood that language “to have any impact on the duration of defendant’s financial obligations” (majority op at 577-578).

It is not our role in determining whether a contract is ambiguous to make assumptions about the parties’ underlying intent. Ambiguity must be “determined within the four corners of the document,” and although the contract “must be considered as a whole,” we should not presume how the parties would have made their intent clear if they had written different language (*Brad H.*, 17 NY3d at 185-186). Furthermore, the repetition of the errors in both the January and the August amendments is just as consistent with incompetence as it is with indifference.

The majority observes that plaintiff offered an alternative reading of the original Agreement and amendments that would not require the conclusion that the language was ambiguous (majority op at 578). Plaintiff’s position before this Court was not a model of clarity. Nevertheless, plaintiff’s counsel clearly and repeatedly stated that if we did not agree with that alternative argument,² we should adopt the holding of Supreme Court and the Appellate Division that the language was ambiguous and may have been intended to amend the Effective Date.

Finally, the standard of review for a CPLR 3211 motion to dismiss does not appear in the majority’s analysis. On a CPLR 3211 motion, “the pleading is to be afforded a liberal construc-

2. Neither lower court adopted plaintiff’s alternative argument, and I agree with the majority that the plain language of the original Agreement refutes plaintiff’s contention that the Term was not connected to the Effective Date (*see* majority op at 578).

tion,” and we must “accept the facts as alleged in the complaint as true, accord plaintiffs the benefit of every possible favorable inference, and determine only whether the facts as alleged fit within any cognizable legal theory” (*Leon v Martinez*, 84 NY2d 83, 87-88 [1994]). “Under CPLR 3211 (a) (1), a dismissal is warranted only if the documentary evidence submitted conclusively establishes a defense to the asserted claims as a matter of law” (*id.* at 88). The documentary evidence relied upon by the defendant must “utterly refute[] plaintiff’s factual allegations” (*Goshen v Mutual Life Ins. Co. of N.Y.*, 98 NY2d 314, 326 [2002]). “A motion to dismiss based on a written agreement that contains a material ambiguity must be denied because such an agreement does not conclusively establish the asserted defense as a matter of law” (*Mulacek v ExxonMobil Corp.*, 42 NY3d 931, 933 [May 16, 2024]).

Here, we cannot give effect to the language of the contract as written because that language is nonsensical. The obvious errors require correction, as both parties and all members of this Court agree. I do not suggest that the majority’s proposed revision is incorrect, or that the alternative proposed revisions are correct or even superior. Rather, I merely conclude that the language is written so imperfectly that it is susceptible to more than one reasonable interpretation (*see Brad H.*, 17 NY3d at 186), and that we should allow discovery to ascertain the parties’ true intent. Because even the majority’s analysis requires changing the written words in the parties’ agreement, several reasonable jurists have disagreed about whether there is only one way to correct the errors, and this case comes before us in a motion to dismiss posture, I would deny defendant’s partial motion to dismiss.³

Despite our disagreement on the correct resolution, this case will likely have little to no impact beyond these parties, this litigation, and this contract. I merely disagree with the majority about how the well-settled principles regarding contractual ambiguity should be applied to the obvious errors in this contract. One would expect that sophisticated parties such as these rarely make repeated and glaring errors in their contractual provisions that cast doubt upon their intent.

3. In light of that conclusion, like the Appellate Division below, I would not reach plaintiff’s alternative argument that it was owed a fee for a July 2021 transaction because the proceeds of that transaction were “payable” pursuant to an earlier investment.

Judges RIVERA, GARCIA and SINGAS concur. Judge TROUTMAN dissents in an opinion, in which Chief Judge WILSON and Judge HALLIGAN concur.

Order reversed, with costs, defendant's motion insofar as sought to dismiss the first cause of action for breach of contract to the extent based on the July 2021 transaction granted, and certified question answered in the negative.

[250 NE3d 632, 225 NYS3d 622]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY BLUE, Appellant.

Argued September 10, 2024; decided October 22, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 15, 2022. The Appellate Division affirmed (1) a judgment of the Supreme Court, New York County (Bruce Allen, J., at suppression hearing and CPL 30.30 motion; Gregory Carro, J., at suppression and pro se inquiry; Ellen N. Biben, J., at jury trial and sentencing), which had convicted defendant, upon a jury verdict, of burglary in the second degree (five counts); and (2) an order of that Supreme Court (Ellen N. Biben, J.), which had denied defendant's CPL 440.10 motion to vacate the judgment.

People v Blue, 202 AD3d 546, affirmed.

HEADNOTES

Crimes — Right to Counsel — Waiver — Knowledge of Potential Sentencing Exposure

1. In a criminal prosecution in which the trial court, in its colloquy addressing defendant's request to proceed pro se, did not specifically apprise defendant of his maximum sentencing exposure in years, defendant's waiver of his constitutional right to counsel was valid, where defendant was adequately warned of the dangers of proceeding pro se and had an understanding of the extent of his potential sentencing exposure at the time he elected to waive his right to counsel. A waiver colloquy must adequately warn a defendant of the risks inherent in proceeding pro se, and apprise a defendant of the singular importance of the lawyer in the adversarial system of adjudication. When a defendant challenges the validity of their waiver on appeal, the critical consideration is defendant's knowledge at the point in time when they first waived their right to counsel. The proceedings prior to the colloquy established that defendant was aware that he likely would serve a lengthy prison sentence if convicted. Then, during the colloquy, defendant informed the court that he had been through a trial before and that he understood the charges against him. He also told the court that he had discussed a potential plea bargain and the strength of the People's evidence with his court-appointed attorney, indicating that he understood he faced an even longer sentence than what the People sought. Moreover, nothing in the post-colloquy proceedings suggested defendant did not apprehend the extent of his potential sentencing exposure.

Crimes — Right to Speedy Trial — Period of Delay Chargeable to Codefendant

2. In a criminal prosecution in which defendant failed to appear at the scheduled time for arraignment on a single indictment charging him and a

codefendant with burglary and the codefendant, after the scheduled arraignment, requested an adjournment for motion practice, the 57 days between indictment and arraignment chargeable to the codefendant were also chargeable to defendant, even though he had not yet been arraigned. CPL 30.30 (4) (d) excludes from the speedy-trial clock “a reasonable period of delay when the defendant is joined for trial with a co-defendant as to whom the time for trial . . . has not run.” CPL 200.40 sets forth the three basic situations in which two or more defendants may be joined for trial. CPL 200.40 (1) (a) states that “[t]wo or more defendants may be jointly charged in a single indictment provided that . . . all such defendants are jointly charged with every offense alleged therein.” Defendant and his codefendant were jointly charged in a single indictment with every offense alleged therein, and so defendant was joined for trial with his codefendant at the time of indictment, prior to his arraignment, for purposes of CPL 30.30 (4) (d). Therefore, the Appellate Division properly excluded from the speedy trial calculation the period between the codefendant’s request to adjourn and defendant’s arraignment.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Criminal Law §§ 939, 940, 1126–1130.
CARMODY-WAIT 2d Right to Counsel §§ 184:84, 184:85;
CARMODY-WAIT 2d Timeliness of Prosecution; Speedy
Trial §§ 186:91, 186:103.
LAFAYE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 11.3,
18.3.
MCKINNEY’S, CPL 30.30 (4) (d).
NY JUR 2d Criminal Law: Procedure §§ 831, 833, 837,
1899, 1903, 1939.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Continuances and
Adjournment; Speedy Trial.

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POINTS OF COUNSEL

Holwell Shuster & Goldberg LLP, New York City (*Scott M. Danner* and *Patrick J. Woods* of counsel), and *Caprice R. Jener-son*, *Office of the Appellate Defender*, New York City (*David Bernstein* of counsel), for appellant. I. The indictment should be dismissed because any delay caused by Carnona Puello’s April 17 motion was not excludable as to Anthony Blue, who

had not been arraigned. (*People v Berkowitz*, 50 NY2d 333; *People v Cortes*, 80 NY2d 201; *People v Price*, 14 NY3d 61; *People v England*, 84 NY2d 1; *People v Goggans*, 150 Misc 2d 79; *People v Chrysler*, 152 AD3d 825; *People v Schneider*, 37 NY3d 187; *People v Garson*, 6 NY3d 604; *People v Madera*, 184 Misc 2d 52; *People v Williams*, 163 Misc 2d 212.) II. Anthony Blue's constitutional right to counsel was violated because the trial court failed to warn him of the "dangers" of proceeding pro se. (*People v Baines*, 39 NY3d 1; *People v McIntyre*, 36 NY2d 10; *People v Crampe*, 17 NY3d 469; *People v Arroyo*, 98 NY2d 101; *People v Jin Cheng Lin*, 26 NY3d 701; *People v Corley*, 67 NY2d 105; *People v Gajadhar*, 9 NY3d 438; *Johnson v Zerbst*, 304 US 458; *Faretta v California*, 422 US 806; *Arrendondo v Neven*, 763 F3d 1122.) III. Evidence from Anthony Blue's cell phone was improperly admitted in violation of CPL 690.30 (1)'s 10-day limit on the execution of search warrants. (*Sgro v United States*, 287 US 206; *People v De Jesus*, 125 Misc 2d 963; *People v Kiah*, 156 AD3d 1054; *Ferreira v City of Binghamton*, 38 NY3d 298; *People v Gordon*, 36 NY3d 420; *People v Reid*, 24 NY3d 615; *People v Mothersell*, 14 NY3d 358; *People v DeProspero*, 20 NY3d 527; *People v Galindo*, 38 NY3d 199.)

Alvin L. Bragg, Jr., District Attorney, New York City (*Philip V. Tisne*, *Steven C. Wu* and *Alan Gadlin* of counsel), for respondent. I. Defendant validly waived his right to counsel. (*People v Garcia*, 92 NY2d 869; *People v Arroyo*, 98 NY2d 101; *People v Crampe*, 17 NY3d 469; *Matter of Lawrence S.*, 29 NY2d 206; *People v Whitfield*, 198 AD3d 446; *People v Baines*, 39 NY3d 1; *People v Rogers*, 186 AD3d 1046; *Iowa v Tovar*, 541 US 77; *Johnson v Zerbst*, 304 US 458; *People v Rodriguez*, 158 AD3d 143.) II. Text messages recovered from defendant's cellphone were properly admitted. (*People v Ruffin*, 178 AD3d 455; *People v Britt*, 34 NY3d 607; *People v Fernandez*, 210 AD3d 693; *People v Laboriel*, 146 AD3d 631; *People v Martin*, 50 NY2d 1029; *People v Giles*, 73 NY2d 666; *United States v Syphers*, 426 F3d 461; *United States v Gerber*, 994 F2d 1556; *People v Golo*, 26 NY3d 358; *People v Schneider*, 37 NY3d 187.) III. The People were ready for trial within statutory limits. (*People v Beasley*, 16 NY3d 289; *People v Luperon*, 85 NY2d 71; *People v Jamison*, 87 NY2d 1048; *People v Goode*, 87 NY2d 1045; *People v Sinistaj*, 67 NY2d 236; *People v Anderson*, 66 NY2d 529; *People v LaFontaine*, 92 NY2d 470; *People v Chrysler*, 152 AD3d 825; *People v Mizell*, 72 NY2d 651; *People v Wiggins*, 31 NY3d 1.)

Carter Ledyard & Milburn LLP, New York City (*Alan S.*

Lewis of counsel), for New York State Association of Criminal Defense Lawyers, amicus curiae. Anthony Blue was deprived of his right to counsel by the trial court's acceptance of his constitutionally inadequate waiver; under settled law, a criminal defendant's waiver of his right to counsel is not knowing and intelligent unless the record demonstrates, unambiguously, that at the time of waiver the defendant was aware of the sentence he risked upon conviction. (*Von Moltke v Gillies*, 332 US 708; *Matter of Lawrence S.*, 29 NY2d 206; *Iowa v Tovar*, 541 US 77; *People v Davis*, 75 NY2d 517; *Brewer v Williams*, 430 US 387; *Johnson v Zerbst*, 304 US 458; *Patterson v Illinois*, 487 US 285; *Penson v Ohio*, 488 US 75; *Schneckloth v Bustamonte*, 412 US 218; *United States v Hamett*, 961 F3d 1249.)

The Legal Aid Society, New York City (*Sungso Lee* and *Philip Desgranges* of counsel), for The Legal Aid Society, amicus curiae. I. The plain text of the Criminal Procedure Law precludes courts from deeming a search warrant executed at the time of the warrant's issuance. (*Riley v County of Broome*, 95 NY2d 455; *Matter of Washington Post Co. v New York State Ins. Dept.*, 61 NY2d 557; *People v De Bour*, 40 NY2d 210; *People v Ruffin*, 178 AD3d 455; *People v Laing*, 79 NY2d 166; *People v Gallina*, 66 NY2d 52; *Riley v California*, 573 US 373.) II. The police executed appellant's search warrant after 10 days in violation of CPL 690.30. (*People v Vara*, 117 AD2d 1013; *People v DeProspero*, 20 NY3d 527; *Ferreira v City of Binghamton*, 38 NY3d 298; *People v Arnold*, 98 NY2d 63.) III. New York law requires that the fruits from an unlawful search be suppressed. (*People v Jacobowitz*, 89 AD2d 625; *People v Nurse*, 80 Misc 3d 286; *People v Tonner*, 74 Misc 3d 1218; *People v Bigelow*, 66 NY2d 417; *People v Jennings*, 54 NY2d 518; *People v Gallina*, 95 AD2d 336.)

OPINION OF THE COURT

HALLIGAN, J.

Defendant Anthony Blue challenges his criminal conviction for five counts of second-degree burglary. Blue argues that a criminal defendant cannot make a knowing, voluntary, and intelligent waiver of the right to counsel unless the trial judge specifically apprises the defendant of his maximum sentencing exposure in years. Rather than imposing a bright-line rule such as this, we have said that a court must ensure a defendant is adequately warned of the dangers and disadvantages of

self-representation before allowing him to proceed pro se. A review of the record here confirms that Blue had such an understanding at the time he waived his right to counsel.

Blue also argues that his indictment should have been dismissed on statutory speedy-trial grounds. CPL 30.30 (4) (d), broadly speaking, excludes from the time chargeable to the People a reasonable period of delay when a defendant is joined for trial with a codefendant. Blue contends this provision does not apply to prearrest time, but the Appellate Division correctly concluded that it does. Thus the 57 days between indictment and arraignment chargeable to Blue's codefendant were also chargeable to Blue, even though he had not yet been arraigned. For these reasons, we affirm the order of the Appellate Division.

I.

We recount only the facts essential to the issues before us. On March 25, 2013, a grand jury returned a single indictment charging Blue and his codefendant Carnona Puello with six counts of second-degree burglary (*see* Penal Law § 140.25 [2]) arising from a series of burglaries in the Washington Heights area of Manhattan. Blue and Puello previously had been arrested on August 27, 2012, but that case was dismissed and Blue was released.

At some point between his release and the arraignment on the indictment that was scheduled for March 28, 2013, Blue traveled from New York to Florida. He did not appear for arraignment at the scheduled time, but Puello did. On April 17, 2013, Puello requested a motion schedule, and the court, after an extension, set June 26, 2013 as its date of decision.¹ After law enforcement located and apprehended Blue in Florida, he appeared for arraignment on June 13, 2013—80 days after his indictment and 57 days after Puello's request for an adjournment.

Blue was represented by court-appointed counsel when he appeared for arraignment, but by early 2014 he asked the trial court to proceed pro se. The court first addressed Blue's motion at an appearance on January 8, 2014. It advised Blue that waiving his right to counsel would be "a big mistake" because he "face[d] a lot of jail time." Blue persisted in his request, and

1. Puello eventually pleaded guilty to the charges and is not a party to this appeal.

the court reiterated that he was making “a mistake,” asked him to think more about his decision, and decided to hold the motion over until Blue’s next appearance.

When Blue next appeared on February 3, 2014, he insisted that he still wanted to waive his right to counsel. The trial court engaged Blue in a colloquy to determine whether his waiver was knowing, voluntary, and intelligent. It explained, among other things, the nature of the charges against Blue and the dangers and disadvantages of representing oneself in a criminal proceeding. Blue stated that he understood the consequences of his decision. Specifically, he confirmed that he understood that “many pro se representations are not successful”; that he would “be held to the same legal standards” as an attorney; that he would be “foregoing the benefits of courtroom experience and legal training possessed” by his court-appointed attorney; and that he believed he was “capable of representing [himself] in this case.” On the last point, Blue informed the court that he had “been involved in the criminal justice system before,” and that he had “read [a] criminal advocacy law book” and “been in debate classes.” The court also explained to Blue that he was entitled to standby counsel, but Blue waived that right too, stating, “I’m positive. I waive standby counsel also.” Following this colloquy, the court was satisfied that Blue’s “request [was] unequivocal” and that his decision “to give up [his] right to be represented by a lawyer [was] knowingly and intelligently made.” It then granted Blue’s request to proceed pro se.

Over the course of the proceedings, Blue filed several motions to dismiss the indictment on statutory speedy-trial grounds. Relevant here is Blue’s first motion, filed on April 8, 2014, in which he argued that “[a]ll the time between March 25, 2013, to June 13, 2013, is chargeable to the People” because he “was never notified of the proceedings” and “could not have voluntarily absented himself from a hearing for which he was not informed.” The People responded that the entire period should be excluded from the speedy-trial calculation under CPL 30.30 (4) (c) (i) because Blue fled to Florida after learning he had been indicted. Blue denied this allegation, insisting that he had no knowledge of the indictment when he left New York.

Supreme Court denied Blue’s motion. It acknowledged the factual dispute over whether Blue left the state to avoid apprehension, but concluded that there was no need to resolve it.

Instead, relying on CPL 30.30 (4) (d), the court found that Blue's speedy-trial clock stopped on April 17, 2013, when Puello asked for an adjournment to file pretrial motions. Because Puello had not requested motion practice until 23 days after the indictment was filed, the court concluded that "at most 23 days of [the 80-day period between Blue's indictment and arraignment] would be" chargeable to the People. In that order, Supreme Court also determined that an additional 70 days were chargeable to the People on other grounds. That brought the speedy-trial clock up only to 93 days—far short of the six-month limit that would require dismissal.

A year later, Blue filed another motion to dismiss pursuant to CPL 30.30. He argued that certain periods subsequent to his earlier motions were chargeable and reiterated his position that the period from March 25, 2013 to June 13, 2013 was chargeable as well. Supreme Court agreed that some additional periods of time postdating its earlier order were chargeable to the People, and further found that, even assuming the entire 80-day period between Blue's indictment and arraignment was chargeable, "no more than 174 days are chargeable to the People." The court therefore denied that motion as well.

The case proceeded to trial, and a jury found Blue guilty on five of the six counts. Supreme Court sentenced Blue to consecutive terms amounting to 25 years in prison followed by five years of postrelease supervision. Blue appealed the judgment as well as the subsequent denial of his CPL 440.10 motion, which was based, among other things, on the alleged CPL 30.30 violation. On the speedy-trial issue, the Appellate Division rejected Blue's contention that the entire period between his indictment and arraignment was chargeable to the People, but agreed that the period from March 25, 2013, to April 17, 2013, was chargeable (*see* 202 AD3d 546, 547 [1st Dept 2022]).² The Court also found that the trial court had improperly excluded an unrelated 12-day period in November 2014 (*see id.*). Those determinations, taken together, brought the amount of time

2. Blue also argued that the entire 33-day period from May 11, 2015, to June 13, 2015, was chargeable to the People. The trial court charged part of that time to the People but found that the speedy-trial clock stopped on June 7, when Blue filed a motion to dismiss. Blue contended that the clock should not have stopped until June 13, 2015, apparently because he had mailed his motion from out of state. The Appellate Division did not expressly address this contested period.

chargeable to the People to only 180 days,³ and accordingly the Appellate Division agreed that Blue’s motion to dismiss the indictment should be denied (*see id.*).

The Appellate Division also rejected Blue’s argument, made for the first time on appeal, that the trial court should have suppressed text messages obtained pursuant to a warrant to search his cell phone because the warrant was executed “more than ten days after the date of issuance,” and, according to Blue, thus violated CPL 690.30 (1). The Appellate Division determined there was no statutory violation and affirmed the conviction (*see* 202 AD3d at 547).

A Judge of this Court granted Blue leave to appeal (39 NY3d 984 [2022]).

II.

We begin with Blue’s challenge to the validity of his waiver of his constitutional right to counsel. It is well-established that a defendant may choose to proceed *pro se* (*see People v McIntyre*, 36 NY2d 10, 14-15 [1974]; *Faretta v California*, 422 US 806, 827-830 [1975]). Because this decision requires a disavowal of the constitutional right to counsel and the many benefits associated with legal representation, “a defendant must make a knowing, voluntary and intelligent waiver of” that right (*People v Arroyo*, 98 NY2d 101, 103 [2002]).

A trial court must undertake a “searching inquiry” in assessing whether a defendant’s waiver meets this standard (*People v Providence*, 2 NY3d 579, 582 [2004] [internal quotation marks omitted]). That “inquiry encompasses consideration of a defendant’s pedigree since such factors as age, level of education, occupation and previous exposure to the legal system may bear on a waiver’s validity” (*People v Crampe*, 17 NY3d 469, 482 [2011]). Furthermore, it must be “aimed at insuring that the defendant [is] aware of the dangers and disadvantages of proceeding without counsel” (*Providence*, 2 NY3d at 582 [internal quotation marks omitted]; *see also People v Vivenzio*, 62 NY2d 775, 776 [1984]). As the U.S. Supreme Court put it, a trial court must assure itself that the defendant “knows what he is doing and his choice is made with eyes open” (*Faretta*, 422 US at 835, quoting *Adams v United States ex rel. McCann*, 317 US 269, 279 [1942]).

3. Although the Appellate Division did not elaborate on this point, the parties agree that at least 180 days are chargeable to the People.

Mindful that “there is simply no one-size-fits-all format for a searching inquiry” (*Crampe*, 17 NY3d at 483), “we have eschewed application of any rigid formula and endorsed the use of a nonformalistic, flexible inquiry” (*Arroyo*, 98 NY2d at 104). We have required that the colloquy “adequately warn[] a defendant of the risks inherent in proceeding *pro se*, and appr[is]e a defendant of the singular importance of the lawyer in the adversarial system of adjudication” (*People v Smith*, 92 NY2d 516, 520 [1998]).

When a defendant challenges the validity of their waiver on appeal, “a reviewing court may look to the whole record, not simply to the questions asked and answers given during a waiver colloquy,” to determine whether the defendant effectively waived counsel (*Providence*, 2 NY3d at 581). In reviewing the record, “[t]he critical consideration is defendant’s knowledge at the point in time when he first waived his right to counsel” (*Crampe*, 17 NY3d at 483). Although post-colloquy proceedings cannot “retrospectively ‘cur[e]’ an invalid waiver, ‘the record as a whole may . . . be considered when a court assesses whether the accused [was] aware of the dangers of self-representation’ at the time of the waiver colloquy (*id.*).”).

Blue argues that his waiver was deficient in only one respect: the trial court did not expressly lay out during the waiver colloquy the range of allowable punishments—including the maximum number of years of potential imprisonment—that Blue might face if convicted. That position finds support in at least one decision from the First Department, which held that the trial court was required to inform a defendant during the colloquy of their “actual sentencing exposure” (*see People v Rodriguez*, 158 AD3d 143, 152-153 [1st Dept 2018]; *but see People v Rogers*, 186 AD3d 1046, 1048 [4th Dept 2020] [declining to follow *Rodriguez*]). But neither this Court nor the U.S. Supreme Court have required a specific recitation of maximum potential years of imprisonment as part of a valid waiver colloquy. To the contrary, we have declined to impose particularized requirements of this sort upon a trial court, instead instructing that the inquiry is flexible and should be aimed at achieving the goals outlined above (*see e.g. Providence*, 2 NY3d at 583; *Arroyo*, 98 NY2d at 104; *Smith*, 92 NY2d at 520-521; *see also Fareta*, 422 US at 835).

None of the cases Blue and the dissent marshal hold otherwise. In *Von Moltke v Gillies* (332 US 708 [1948]), a plurality of the U.S. Supreme Court emphasized that the validity of

a waiver turns on the “circumstances” surrounding it (*id.* at 723, 724). There, the defendant—the wife of an alleged German spy who was told only that she was being held indefinitely “as a dangerous enemy alien”—was briefly assigned an attorney who agreed to represent her for “only two or three minutes” at arraignment, but she otherwise had “no legal counsel upon whom to rely except the government lawyer-agents” who would prosecute her case (*id.* at 711, 722, 716-717). Throughout the proceedings, the defendant gave no indication that she was aware “a sentence of death could be imposed under the charges” (*id.* at 718); witness testimony revealed the defendant’s “perplexity,” “doubt,” and “uncertainty” leading up to her decision to plead guilty; and the record revealed no “explanation of the implications of the indictment or of the consequences of her plea” (*id.* at 725, 717). On those facts, the plurality found her waiver of counsel invalid and noted that information “essential to a [defendant’s] broad understanding of the whole matter” included “an apprehension of the nature of the charges, the statutory offenses included within them, the range of allowable punishments thereunder, [and] possible defenses to the charges and circumstances in mitigation thereof” (*id.* at 724).

Our analysis in *Matter of Lawrence S.* (29 NY2d 206 [1971]) was along similar lines. We noted that the case involved a “13-year-old respondent,” and that “with respect to a juvenile charged as a delinquent, the courts have imposed particularly strict requirements before permitting a waiver of his right to counsel” (*id.* at 209, 208). We found the waiver invalid not because the court failed to make any particular statement during the colloquy regarding the potential years of imprisonment faced by the defendant, but because the court’s inquiry did not sufficiently account for the youth and inexperience of the defendant (*see id.* at 208-209).

Nor does *Iowa v Tovar* (541 US 77 [2004]) mandate that a colloquy include any specific, formulaic statements regarding the precise number of years of incarceration a defendant might face. In *Tovar*, the U.S. Supreme Court unanimously reversed a state court decision requiring trial courts to give specific warnings to a defendant during a waiver colloquy (*see id.* at 81). The Court found the colloquy at issue sufficient even without these warnings because the defendant was informed of the charges against him, his right to counsel, and the range of allowable punishments (*see id.*). While finding those factors

relevant, the Court did not hold it constitutionally necessary to provide each of those three specific items of information during a colloquy. Indeed, the Court stressed that it has never “prescribed any formula or script to be read to a defendant” during a colloquy, and that its “decisions indicate” that “[t]he information a defendant must possess in order to make an intelligent election . . . will depend on a range of case-specific factors” (*id.* at 88; *see also id.* at 92). Thus, as we previously have explained, *Tovar* reaffirms that “the scope of a searching inquiry turns on the context in which the right to counsel is waived,” rather than declaring a new rule for assessing the validity of a waiver (*Crampe*, 17 NY3d at 483; *see also id.* at 484, citing & discussing *Tovar*, 541 US at 89).⁴

[1] The question before us, then, is whether Blue was adequately warned of the dangers of proceeding pro se when he waived his right to counsel. Our review of the whole record satisfies us that he was.

The proceedings prior to the colloquy establish that Blue was aware that he likely would serve a lengthy prison sentence if convicted. At arraignment, the People informed the court in Blue’s presence that “the defendant is charged with six C violent felonies and faces substantial time.” Then, while conversing with the defense counsel, the court explained that “[t]he defendant faces a mandatory state prison sentence and could get consecutive sentences. He is clearly facing a lot of time.” That remark prompted the People to clarify the sentence they would seek: “The People in this case are recommending 12 years jail with five years post release supervision.” Later, on

4. The dissent’s reliance on *People v Kaltenbach* (60 NY2d 797 [1983]) and *People v Sawyer* (57 NY2d 12 [1982]) is misplaced (*see* dissenting op at 603-604). Those decisions turned not on the absence of any particular statement from a waiver colloquy, but on the absence of a meaningful colloquy altogether. In *Kaltenbach*, the trial court undertook merely a “precautionary inquiry” consisting of statements “that defendant was entitled to be represented by a lawyer,” “that he was facing a serious charge,” “and that, if convicted, he could receive a year’s imprisonment” (60 NY2d at 799). We held that absent “further colloquy regarding defendant’s decision” to proceed pro se, these “declarations . . . failed to adequately warn defendant of the risks inherent in representing himself or apprise him of the value of counsel” (*id.* at 798, 799 [internal quotation marks omitted]). We found the waiver in *Sawyer* invalid for the same reason: the trial court’s “precautionary inquiry” consisted only of “declarations” to the defendant, rather than a “colloquy on the record between the judge and defendant [to] test the defendant’s understanding” of his decision (57 NY2d at 21 [internal quotations marks omitted]). There is no question here that the trial court engaged in a colloquy with Blue to test his understanding of his request to proceed pro se.

January 8, 2014, when the court first addressed Blue's motion to proceed pro se, Blue explicitly stated that he understood he might serve a significant sentence:

"THE DEFENDANT: I still would like to waive counsel and proceed pro se.

"THE COURT: That's a big mistake. You face a lot of jail time.

"THE DEFENDANT: I understand, your Honor, but I am making my decision. . . .

"THE COURT: It's a big mistake. . . .

"THE DEFENDANT: So what is the decision for the pro se?

"THE COURT: I want you to think about that. That's a mistake. I am going to ask you a lot of questions on February 3rd.

"THE DEFENDANT: I understand."

In light of these exchanges during pre-colloquy proceedings, it is clear that Blue had an understanding of the extent of his potential sentencing exposure by the time the trial court conducted its waiver inquiry on February 3, 2014. Then, during the colloquy, Blue informed the court that he had been through a trial before and that he understood he was charged with "[b]urglary [in] the second degree." He also told the court that he had discussed a potential plea bargain—what he called a "cop out"—and the strength of the People's evidence with his court-appointed attorney, indicating that he understood he faced an even longer sentence than the 12 years of imprisonment and five years of postrelease supervision that the People sought.

Nothing in the post-colloquy proceedings suggests Blue did not apprehend the extent of his potential sentencing exposure. During an appearance on September 29, 2014, the court noted that Blue's "exposure in this case is huge" and that he could "go to jail for 25, 30, [or] 40 years," to which Blue replied that he was "aware" and understood. The court later informed Blue, during discussion of a possible plea, that his exposure was "way, way beyond five years" and Blue said, "I'm fully aware of it. I'm fully aware." These proceedings confirm what was apparent from the pre-colloquy proceedings: Blue had an understanding of the extent of his potential sentencing

exposure at the time he elected to waive his right to counsel.⁵ We thus find his waiver valid.⁶

III.

[2] We turn now to Blue’s statutory speedy-trial claim. “CPL 30.30 require[s] that the People be ready for trial within specific time periods that vary according to the level of offense charged” (*People v Bay*, 41 NY3d 200, 207 [2023]). “The failure to declare readiness within the statutory time limit will result in dismissal of the prosecution, unless the People can demonstrate that certain time periods should be excluded” (*People v Price*, 14 NY3d 61, 63 [2010]). When, as here, a defendant is charged with a felony, CPL 30.30 (1) (a) requires the People to be ready for trial within six months of the commencement of the criminal action. The parties agree that the People were required to declare readiness within 184 days, and that the Appellate Division properly charged 180 days to the People. They dispute whether the 57-day period from April 17, 2013, when Puello adjourned for motion practice, and June 13, 2013, when Blue was arraigned, should be excluded pursuant to CPL 30.30 (4) (d). The Appellate Division concluded that the period is not chargeable to the People. We agree.

“When resolving a question of statutory interpretation, the primary consideration is to ascertain and give effect to the legislature’s intent” (*People v Schneider*, 37 NY3d 187, 196 [2021]). As the clearest indicator of legislative intent, “the starting point in any case of interpretation must always be the language itself, giving effect to the plain meaning thereof” (*People v Golo*, 26 NY3d 358, 361 [2015] [internal quotation marks omitted]). CPL 30.30 (4) (d) provides that “the following period[] must be excluded” from the speedy-trial clock: “a rea-

5. The dissent dismisses the requirement that a defendant apprehend the extent of his potential sentencing exposure as “unclear” (dissenting op at 601), but it is difficult to ascertain exactly what obligation the dissent would impose (*see id.* at 600, 603, 604, 605). If the dissent means to suggest that a trial court must inform a defendant of “the statutory maximum allowable under the Penal Law for each offense charged, that sentences on the offenses may run consecutively or be subject to enhancement, and the application of the statutory cap” (*id.* at 604), there is, as we have explained, no precedent from the U.S. Supreme Court or this Court mandating such specificity.

6. After Blue’s trial, the Model Colloquy was revised to include a statement of the defendant’s potential sentencing exposure. As we have “emphasized, the model charges contain the ‘preferred phrasing’ of legal instructions” (*People v J.L.*, 36 NY3d 112, 122 [2020], quoting *People v Cubino*, 88 NY2d 998, 1000 [1996]).

sonable period of delay when the defendant is joined for trial with a co-defendant as to whom the time for trial pursuant to this section has not run and good cause is not shown for granting a severance.” The question before us is when a defendant is “joined for trial” with a codefendant: prior to arraignment, or, in cases where the defendant is not arraigned at the same time as his codefendants, only afterwards. The answer to that question is supplied by CPL 200.40, which sets forth “[t]he three basic situations in which two or more defendants may be joined for trial” (Peter Preiser, *Prac Commentaries*, McKinney’s Cons Laws of NY, CPL 200.40). As relevant here, CPL 200.40 (1) (a) states that “[t]wo or more defendants may be jointly charged in a single indictment provided that . . . all such defendants are jointly charged with every offense alleged therein.” Blue and Puello were jointly charged in a single indictment with every offense alleged therein, and so Blue was joined for trial with his codefendant at the time of indictment, prior to his arraignment, for purposes of CPL 30.30 (4) (d).

This interpretation is consistent with the purposes underlying the exclusion. We long have recognized that in the State of New York, “a strong public policy favors joinder, because it expedites the judicial process, reduces court congestion, and avoids the necessity of recalling witnesses” (*People v Mahboubian*, 74 NY2d 174, 183 [1989]). CPL 30.30 (4) (d) furthers that policy by facilitating joint proceedings, easing the administration of multidefendant cases, and preventing defendants from benefitting from delays caused by codefendants who might, for example, make successive requests for adjournments (*see People v Chrysler*, 152 AD3d 825, 827 [3d Dept 2017], *lv denied* 30 NY3d 948 [2017]). We note that the federal courts have inferred the same purposes from near-identical statutory language (*see e.g. United States v Pena*, 793 F2d 486, 489-490 [2d Cir 1986]).

Blue argues that a defendant nonetheless cannot be joined for trial for purposes of CPL 30.30 (4) (d) until they have been arraigned. Arraignment confers jurisdiction over a defendant (*see People v England*, 84 NY2d 1, 4-5 [1994]) and triggers various rights under the Criminal Procedure Law (*see* CPL 210.15 [1], [2]). But these points do not necessarily compel the reading of CPL 30.30 (4) (d) that Blue advances. As an initial matter, the text of the provision does not differentiate between pre- and post-arraignment time. And we previously have

recognized that the People may declare readiness before a defendant is arraigned and that certain prearraignment delays not attributable to the People may be excluded from the speedy-trial clock (*see e.g. People v Carter*, 91 NY2d 795, 799 [1998]), confirming that time is not chargeable to the People simply because no court has jurisdiction over the criminal action and the defendant's rights have not yet attached under the Criminal Procedure Law.

In the same vein, Blue argues that if the legislature had intended for the exclusion to apply before arraignment, then it would have expressly said as much. He suggests that we should infer from the absence of a clear statement applying the exclusion to prearraignment time that it applies only to post-arraignment time. The statutory scheme refutes the premise of this argument. Looking to the rest of CPL 30.30, we note that another provision distinguishes between pre- and post-arraignment time (*see* CPL 30.30 [4] [i]). That express textual distinction shows that the legislature knew how to draft an exclusion that applies only to pre- or post-arraignment time, but did not do so in CPL 30.30 (4) (d).

Blue also argues that the provision's reference to severance implicitly limits CPL 30.30 (4) (d) to post-arraignment time. The provision does not apply unless "good cause is not shown for granting a severance" (CPL 30.30 [4] [d]). Blue notes that severance is a remedy ordinarily available to a defendant only after they have been arraigned (*see* CPL 255.20 [1]), and argues that it would not make sense for CPL 30.30 (4) (d) to apply before arraignment, when a defendant cannot sever their proceedings. We disagree. When the People seek to exclude time pursuant to CPL 30.30 (4) (d), a defendant may make a showing of good-cause severance not necessarily to sever the joint proceedings, but instead to charge that period of time to the People. Some defendants might wish only to charge additional time to the People, without actually severing the joint proceedings. And as at least one Appellate Division has recognized, the exclusion allows a defendant to show that he would have had good cause to sever at some earlier time (*see People v Vidal*, 180 AD2d 447, 448-449 [1st Dept 1992]).

Next, Blue argues that his interpretation of CPL 30.30 (4) (d) better reflects the purposes of the exclusion. He concedes that the exclusion is intended to prevent defendants from causing delays that inure to the benefit of codefendants, but says that a defendant cannot engage in this kind of gamesmanship

until after they have been arraigned, precisely because they cannot file pretrial motions until that point (*see* CPL 255.20 [1]). That may be so, but a codefendant, if arraigned, can still participate in that kind of gamesmanship. Further, Blue cannot square his interpretation with the other purposes of the provision, namely, to facilitate joint proceedings and ease administration of multidefendant cases. His interpretation would force the People to undertake the difficult task of maintaining a separate speedy-trial clock for each defendant in a joint proceeding, which might in turn necessitate separate trials—an outcome that would undermine a key purpose of the exclusion.

Finally, Blue argues that even if a defendant can be “joined for trial” with a codefendant before he is arraigned, charging prearraignment time to the defendant would conflict with the statutory language that restricts exclusions to a “reasonable period of delay” (CPL 30.30 [4] [d]). According to Blue, it would be unreasonable to charge time to a defendant before a court has jurisdiction and before their rights under the Criminal Procedure Law have attached. But, as we have said, prearraignment delays not caused by the People may be charged to a defendant (*see Carter*, 91 NY2d at 799), and Blue has not shown that charging Puello’s prearraignment delay to him is unreasonable.

In sum, we conclude that the Appellate Division properly excluded from the speedy-trial calculation the 57-day period between Puello’s request to adjourn and Blue’s arraignment. That leaves the speedy-trial clock at 180 days, four fewer than the maximum number of days to which the People are statutorily entitled.

IV.

Blue’s remaining challenges are unpreserved or meritless. He argues that he is entitled to a new trial because text messages taken from his cell phone were improperly admitted into evidence in violation of CPL 690.30 (1), which governs the execution of search warrants. This argument is unpreserved. In supplemental pro se briefing, Blue also presents two additional statutory speedy-trial claims. The first of these remaining arguments is not sufficiently developed to establish a basis for reversal and the second is belied by the record.

The order of the Appellate Division should be affirmed.

RIVERA, J. (dissenting). I would reverse and hold that the

Constitution requires the trial court to explore whether a criminal defendant is aware of their sentencing exposure as part of its “searching inquiry” before they may proceed pro se (*People v White*, 56 NY2d 110, 117 [1982]).¹ Here, the court failed to ensure that defendant was aware of the range of punishments allowable for the crimes as charged and a new trial is required.

A defendant may waive their right to counsel and proceed pro se but only once the court has confirmed for itself that the defendant is aware of the risks of foregoing assistance of counsel (*Matter of Lawrence S.*, 29 NY2d 206, 208 [1971], quoting *Von Moltke v Gillies*, 332 US 708, 724 [1948]; *Iowa v Tovar*, 541 US 77, 81 [2004]). The court’s duty is not solely to inform defendants lacking the legal training and skills necessary to meaningfully defend against the prosecution of the dangers of self-representation. As the United States Supreme Court and this Court have explained, the duty entails much more. Before they may proceed pro se, a defendant must apprehend “the nature of the charges, the statutory offenses included within them, [and] the range of allowable punishments thereunder,” in addition to any other “facts essential to a broad understanding of the whole matter” (*Matter of Lawrence S.*, 29 NY2d at 208, quoting *Von Moltke*, 332 US at 724). When assessing if the prosecution has met its burden of “proving a knowing, intelligent and voluntary waiver,” “the courts must indulge every reasonable presumption against waiver” (*People v Davis*, 75 NY2d 517, 523 [1990], citing *Brewer v Williams*, 430 US 387, 404 [1977]).

As the Supreme Court stated in *Von Moltke v Gillies*:

“The constitutional right of an accused to be represented by counsel invokes, of itself, the protection of a trial court, in which the accused—whose life or liberty is at stake—is without counsel. This protecting duty imposes the serious and weighty responsibility upon the trial judge of determining whether there is an intelligent and competent waiver by the accused. To discharge this duty properly in light of the strong presumption against waiver of the constitutional right to counsel, a judge must investigate as long and as thoroughly as the circumstances of the case before [them] demand” (332

1. I agree with the majority’s disposition of defendant’s other claims.

US 708, 723-724 [internal quotation marks omitted]).²

A constitutionally valid waiver

“must be made with an apprehension of the nature of the charges, the statutory offenses included within them, the range of allowable punishments thereunder, possible defenses to the charges and circumstances in mitigation thereof, and all other facts essential to a broad understanding of the whole matter. A judge can make certain that an accused’s professed waiver of counsel is understandingly and wisely made *only* from a penetrating and comprehensive examination of all the circumstances” (*id.* at 724 [emphasis added]).

In other words, judicial confirmation that the defendant appreciates each of these circumstances is a necessary component of the court’s protective duty. It is not enough for the court to assume that, under the circumstances, the defendant *probably* appreciates the risks of going pro se—for the waiver to be valid, the court must create a record that establishes defendant’s knowledge of those risks, including the defendant’s sentencing exposure.

The majority holding on the matter is unclear. Perhaps the majority means to say one of the following: (1) its flexible, case-by-case inquiry results in *no* actual requirement that the trial court ensure that a defendant have *any* comprehension of the range of punishments that they face; (2) there is some requirement that a defendant understand if they face prison time; (3) as long as the defendant is charged with a serious crime, they *should* know they face significant time; or (4) no constitutional problem arises if the defendant has some ballpark understanding of the amount of time they face, even if that is off by almost a decade. Whatever the majority intends, its analysis disregards the import of Supreme Court and Court of Appeals precedent establishing a more straightforward, workable requirement that a court ascertain whether a defendant has an understanding of the range of allowable punishments they face before they may validly waive counsel.

2. *Von Moltke v Gillies* (332 US 708) is a plurality opinion, but its “range of allowable punishments” requirement was adopted by a unanimous United States Supreme Court in *Tovar* (541 US at 81, 88-89) and by this Court in *Matter of Lawrence S.* (29 NY2d at 208).

The majority misconstrues how this Court previously characterized the holding of *Von Moltke*. As explained in *Matter of Lawrence S*:

“‘To be valid’, the Supreme Court declared in the *Von Moltke* case (332 U. S. 708, 724, *supra*), ‘such waiver must be made *with an apprehension* of the nature of the charges, the statutory offenses included within them, *the range of allowable punishments thereunder*, possible defenses to the charges and circumstances in mitigation thereof, *and* all other facts essential to a broad understanding of the whole matter’” (29 NY2d at 208-209 [emphases added]).

While the *Matter of Lawrence S*. Court noted that the government must meet a particularly “heavy burden” to permit a juvenile to waive counsel, this did not—and, of course, could not—either raise or lower *Von Moltke*’s federal constitutional floor (see *Matter of Lawrence S.*, 29 NY2d at 208). *Matter of Lawrence S*. merely confirmed the settled proposition that, as with waivers of constitutional rights generally, age is a factor that courts must consider when evaluating whether the record supports “‘an intentional relinquishment or abandonment of a known right’” to counsel (*United States ex rel. B. v Shelly*, 430 F2d 215, 218 [2d Cir 1970], quoting *Johnson v Zerbst*, 304 US 458, 464 [1938], cited in *Matter of Lawrence S.*, 29 NY2d at 208). Accordingly, for juveniles, the last clause of the *Von Moltke* rule, “*and* all other facts essential to a broad understanding of the whole matter,” necessarily may include more (332 US at 724 [emphasis added]). Contrary to the majority’s suggestion, nothing in *Matter of Lawrence* transforms the requirement for understanding the “range of allowable punishments” as optional.

Here, defendant argues that the court’s inquiry was deficient because it failed to confirm defendant’s understanding of the range of allowable punishments. Defendant was charged with six counts of second-degree burglary (see Penal Law § 140.25 [2]), and, according to the prosecution, faced a maximum sentencing exposure of 90 years, subject to a statutory 20 year cap (Penal Law § 70.30 [1] [e] [i]).³ Defendant asserts that the court should have conducted the required “searching inquiry” about his awareness of the “range of allowable punishments,”

3. This sentence would be deemed to be 20 years after applying the limitation on consecutive determinate sentences set forth in Penal Law § 70.30 (1) (e) (i). In *People v Moore* (61 NY2d 575, 578 [1984]), this Court explained that

(n. cont’d)

including his maximum sentencing exposure. The court's failure to do so rendered his waiver of his right to counsel invalid. To the extent the majority describes how the court complied with its duty in other respects—informing defendant of the risks of self-representation—defendant does not challenge this aspect of the court's inquiry. The fact that the court's inquiry may have been adequate in other ways is beside the point, as it is irrelevant to the specific question before us of whether defendant understood the range of punishments. The majority clouds the issue by stating that there is no “mandate that a colloquy include any specific, formulaic statements” (majority op at 593). I agree that the Court has never imposed a catechism for ensuring a knowing, voluntary, and intelligent waiver. Nor has the Supreme Court, which has explained that a colloquy does not require “any formula or script to be read to a defendant” to be valid (*Tovar*, 541 US at 88). But allowing courts flexibility in *how* they carry out their duty and *how* they communicate with a defendant has no bearing on *what* they must convey in order to comply with that duty and does not diminish a court's responsibility to make sure whatever is said and done complies with the Constitution. While a colloquy need not “include any specific, formulaic statements regarding the precise number of years of incarceration a defendant might face,” it still must address the *range* of allowable punishments (majority op at 593). Otherwise, a court cannot be certain that the defendant is making an informed decision to waive their constitutional right.

The most obvious way a court may ensure that a defendant understands the range of punishments is to discuss the defendant's sentencing exposure with them while discussing the inherent risks of self-representation. But merely stating that a defendant faces incarceration, or “a lot of time”—as the court did here—is constitutionally inadequate. We have rejected sim-

“[w]here the aggregate maximum term of consecutive sentences imposed . . . exceeds the applicable limitation set forth in section 70.30 (subd 1, par [c]) of the Penal Law, the term shall be ‘deemed’ to be equal to that limitation and ‘reduced’ accordingly. The statute does not restrict the number or length of the individual consecutive sentences that may be imposed . . . it merely requires that the Department of Correctional Services calculate the aggregate maximum length of imprisonment consistent with the applicable limitation.”

Accordingly, as conceded by the prosecution, defendant's maximum sentencing exposure—the incarceratory term the court could impose—was 90 years.

ilar language (see e.g. *People v Kaltenbach*, 60 NY2d 797, 798-799 [1983] [“The court’s declarations—that defendant was entitled to be represented by a lawyer; that he was facing a serious charge; and that, if convicted, he could receive a year’s imprisonment—did not satisfy the duty to make a searching inquiry”];⁴ *People v Sawyer*, 57 NY2d 12, 21 [1982] [“The court’s declarations that defendant was ‘facing a very serious charge’ and that ‘your own best interests are probably served by having a lawyer represent you’ simply did not satisfy the duty to make a ‘searching inquiry’ ”]).

The word “range” means “the limits of a series : the distance or extent between possible extremes” or “the difference between the least and greatest values of an attribute” (Merriam-Webster.com Dictionary, range [<https://www.merriam-webster.com/dictionary/range>]). A defendant understands “the range of allowable punishments” if that includes knowledge of the length of a possible confinement (*Von Moltke*, 332 US at 724). The court may easily dispense with its duty by ensuring that a defendant knows the statutory maximum allowable under the Penal Law for each offense charged, that sentences on the offenses may run consecutively or be subject to enhancement, and the application of the statutory cap. The court may also rely on a clear record that defendant is aware of the potential years of confinement. Here, prior to accepting defendant’s waiver of the right to counsel, the court did not inform him of the potential span of confinement or the maximum time he faced if convicted on all charges. Though the majority claims otherwise (majority op at 594), the record does not clearly support defendant’s understanding of his sentencing exposure at that time. Defendant does not state his understanding of the potential sentence he faced, and his attorney provided no such information in defendant’s presence on the record as to the time he would potentially serve.

4. The majority incorrectly characterizes *Kaltenbach* as turning “not on the absence of any particular statement from a waiver colloquy, but on the absence of a meaningful colloquy altogether” (majority op at 594 n 4; 60 NY2d 797, 798-799). *Kaltenbach* states that “[t]here was no further colloquy regarding defendant’s decision” (*id.* at 798 [emphasis added]), and “[t]he court’s declarations—that defendant was entitled to be represented by a lawyer; that he was facing a serious charge; and that, if convicted, he could receive a year’s imprisonment—did not satisfy the duty to make a searching inquiry” (*id.* at 799). The Court continued that “[t]he precautionary inquiry in this case” was insufficient—in other words, it existed, but was not enough (*id.*). Here, too, there was a colloquy that was insufficiently searching to determine whether defendant comprehended the range of allowable punishments.

As the majority correctly recognizes, “post-colloquy proceedings cannot ‘retrospectively “cure” an invalid waiver’ ” (majority op at 592 [brackets omitted], quoting *People v Crampe*, 17 NY3d 469, 483 [2011]). To the extent the majority asserts that defendant’s post-waiver statements only confirm his pre-waiver understanding, the majority’s assertion is no argument at all since it depends on a pre-waiver basis for concluding defendant had the requisite knowledge (*see Crampe* at 483). So, we must look to the record before and at the time of the waiver.

The majority claims that defendant “was aware that he likely would serve a lengthy prison sentence if convicted” (majority op at 594). The majority relies on the prosecution’s in-court statement in defendant’s presence that he was “charged with six C violent felonies and faces substantial time” (*id.*). This statement says nothing about the number of years in prison defendant faced. Reliance on such would also lead to the absurd result that mere knowledge of the crimes charged is sufficient to establish knowing, intelligent waiver of the right to counsel. The majority also points to the court’s statement to defense counsel that “defendant face[d] a mandatory state prison sentence and could get consecutive sentences. He is clearly facing a lot of time” (*id.*). Statements to defense counsel are not the same as judicial inquiry of the defendant ensuring they understand those statements. They provide no basis for inferring that the defendant possesses a constitutionally-sufficient “apprehension” of the consequences of firing their lawyer and representing themselves (*Von Moltke*, 332 US at 724). Moreover, the court’s statement, like the prosecutor’s, failed to put a numerical range to defendant’s potential “time” in prison.

There is no way around the Supreme Court’s mandate that a constitutionally effective waiver requires that a defendant understand the range of punishments (*Tovar*, 541 US at 81). “Substantial” means “large” and “a lot” means “very much” or “a large number.” The use of either or both these terms fails to convey the enormity of the potential sentence. Indeed, a person facing five years of incarceration would reasonably consider this to be substantial and a lot of time. Here, if found guilty, defendant faced decades in prison (Penal Law §§ 140.25 [2]; 70.00 [2] [c]). The expanse of that range of incarceration was certainly relevant to defendant’s assessment of the risk of self-representation. The majority further notes that, in reaction to the court’s statement, the prosecution represented that it was “recommending 12 years jail with five years post release

supervision.” But that was a recommendation, and, in any case, not close to defendant’s maximum sentencing exposure, even after applying the statutory cap.

Lastly, the majority quotes defendant’s statement during the court’s first colloquy on January 8, 2014, as establishing that defendant understood he faced “a significant sentence” (majority op at 594-595). But that is not what defendant said. Rather, in response to the court’s statement that defendant’s request to waive counsel and proceed pro se would be “a big mistake. You face a lot of jail time,” defendant replied, “I understand your Honor, but I am making my decision.” The majority places undue weight on this one sentence; defendant’s response in no way clarifies his understanding of what the court meant by a lot of time, and, more significantly, what defendant would consider to be a lot of time. That is why the Supreme Court has wisely interpreted the Constitution to require the court to confirm defendant understands the range of punishments, rather than an abstract reference to a “substantial” or “a lot” of time.

Similarly, the majority states that defendant’s description of the plea bargain as a “cop out” indicated that “he understood he faced an even longer sentence than the 12 years of imprisonment and five years of post-release supervision” (majority op at 595). This misrepresents the record by omitting crucial context:

“THE COURT: You’ve never discussed this case with your attorney at all?

“THE DEFENDANT: No.

“THE COURT: The strength of the People’s case, none of that?

“THE DEFENDANT: Nothing. The only thing we’ve discussed is a cop out. We haven’t discussed trial strategy, nothing.

“THE COURT: Well, when you discussed what you call ‘a cop out,’ is that a plea?

“THE DEFENDANT: Plea bargain, yes, sir.

“THE COURT: Didn’t your attorney discuss with you the strength of the People’s case, what their evidence is going to be?

“THE DEFENDANT: There is no evidence.

“THE COURT: That’s not what I’m asking you. I’m asking you didn’t your attorney tell you what the People say their evidence is going to be. You went over that?”

“THE DEFENDANT: Yes. She told me something about some text messages. I haven’t seen anything.”

There is nothing in this exchange that indicates defendant understood the upper and lower limit of the range of sentences he faced. To the extent that he did understand that the plea bargain offer meant he faced at least 12 years’ incarceration, that figure was off by 40% since defendant actually faced 20 years in prison. It appears the majority has decided that 12 years is “close enough” to 20. Putting aside that the majority provides no normative basis for determining what is close enough to an actual range to satisfy the requirement—or to guide courts in the future—the difference between 12 and 20 years—almost a decade—is certainly not close enough by any rational metric.

The majority confuses the method of informing the defendant of the range of punishments during the colloquy with whether the court needs develop a record indicating that the defendant knows about the range of punishments *at all*. By stretching beyond any permissible bounds of what a “flexible inquiry” may require, the majority concludes that this inquiry may be so flexible as to be functionally no inquiry at all that defendant comprehends the range of sentences they face (*People v Arroyo*, 98 NY2d 101, 104 [2002]). Permitting “a lot” to satisfy the court’s duty to inform defendant about the range of sentences they face makes the requirements of this inquiry so flexible as to be meaningless.

Numbers matter. As I have stated previously, a defendant’s sentencing exposure is perhaps the most important information necessary for a defendant to chart their course. It affects their decision whether to plead guilty, testify on their own behalf, and represent themselves without the assistance of a trained legal advocate (*Tovar*, 541 US at 81; *People v Bush*, 38 NY3d 66, 80 [2022, Rivera, J., dissenting]; *People v Williams*, 27 NY3d 212, 226 [2016, Rivera, J., dissenting]). It is neither impossible nor a significant burden on the court to ensure defendant understands the range of punishments with some numerical reference. The Penal Law sets the potential sentence. To the extent the majority believes it is simply too much to expect and somehow too complex a calculus for a court to

provide a range, then how can we expect a defendant to be more adept at determining their sentencing exposure?

Courts can provide a defendant information about the range of their sentencing exposure and do so all the time. Since the Constitution tolerates nothing less, I dissent.

Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO and TROUTMAN concur. Judge RIVERA dissents in an opinion.

Order affirmed.

[250 NE3d 625, 225 NYS3d 615]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KERBET
DIXON, Appellant.

Argued September 10, 2024; decided October 22, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 28, 2022. The Appellate Division affirmed (1) a judgment of the Supreme Court, Queens County (Richard L. Buchter, J.), which had convicted defendant, under indictment No. 498/12, (a) upon a jury verdict, of course of sexual conduct against a child in the first degree, sexual abuse in the third degree, endangering the welfare of a child, promoting sexual performance by a child (150 counts), and possessing a sexual performance by a child (150 counts); and (b) upon an *Alford* plea after trial, of course of sexual conduct against a child in the first degree, endangering the welfare of a child, and rape in the third degree (two counts); and (2) a judgment of that Supreme Court which had convicted defendant, under indictment No. 54/13, upon a jury verdict, of possessing a sexual performance by a child (334 counts).

People v Dixon, 211 AD3d 1030, affirmed.

HEADNOTES

Crimes — Fair Trial — Right to Present Defense — Prosecution Monitoring Telephone Calls Made to Trial Witnesses from Jail

1. In a sexual assault prosecution in which the pro se defendant was remanded mid-trial for his actions related to a sexually disparaging blog about one of the complainants posted the evening before she was scheduled to testify, defendant's constitutional right to present a defense was not impaired by the People's monitoring of the telephone calls he made to his trial witnesses from jail. Defendant was out on bail for nearly the entire two years between indictment and his mid-trial remand, including more than six months while representing himself, giving him ample time to prepare his witnesses. Even after remand, there was no dispute that defendant had means other than the recorded phone lines to prepare his witnesses. The court was proactive in protecting defendant's rights, permitting him time in the courtroom to speak to each of his witnesses in private before their testimony. The court also noted that defendant had been assigned a legal advisor and an investigator, both of whom had the expertise and wherewithal to assist in the preparation of the defense. Defendant became aware that the People were listening to his phone conversations only after he had presented the direct testimony of his daughter and an expert. Aside from himself, the only remaining defense witnesses provided character testimony and little

else that could be considered relevant to the case. Thus, any chilling effect here was negligible.

Crimes — Right to Representation Pro Se — Unequivocal Request

2. In a criminal prosecution, the trial court did not err in granting defendant's request to proceed pro se, where defendant's request was unequivocal inasmuch as he explicitly declined the opportunity to argue for a new attorney. A request to go pro se is equivocal when it does not reflect an affirmative desire for self-representation and instead shows that self-representation was reserved as a final, conditional resort. Conditioning a request for a new attorney with a request for self-representation does not necessarily make the latter request equivocal, but it can become equivocal where a defendant raised the argument for self-representation as a way of obtaining the dismissal of their assigned counsel. Although defendant initially made his request to proceed pro se as an alternative to his request for substitute counsel, defendant later told the court that he had spoken to his family and decided that self-representation was "the best way to go." Before conducting the requisite searching inquiry, the court invited defendant to make another argument for substitute counsel, but defendant declined to do so, explaining that he was "satisfied to go pro se." Even after granting defendant's request, the court left the door open for defendant to make an argument for the appointment of a new attorney, and thereafter defendant never said a word about wanting one.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 908, 1126, 1129–1131, 1134.

CARMODY-WAIT 2d Right to Counsel §§ 184:78, 184:84, 184:85.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 11.3, 23.3.

NY JUR 2d Criminal Law: Procedure §§ 831–833, 2505, 2507.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Fair and Impartial Trial; Prisons and Prisoners; Pro Se.

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POINTS OF COUNSEL

Patricia Pazner, Appellate Advocates, New York City (David Fitzmaurice of counsel), for appellant. I. The court erroneously permitted the prosecution to join hundreds of child pornography charges to the unrelated child sexual assault charges for a

single trial. (*People v Lane*, 56 NY2d 1; *People v Bongarzone*, 69 NY2d 892; *People v Molineux*, 168 NY 264; *People v Hudy*, 73 NY2d 40; *People v Katz*, 209 NY 311; *People v Crandall*, 67 NY2d 111; *People v McKinney*, 24 NY2d 180; *People v Vargas*, 88 NY2d 856; *People v Lewis*, 69 NY2d 321; *People v Ely*, 68 NY2d 520.) II. The court erroneously permitted appellant to proceed pro se since (1) his request to do so was, by the court's own admission, "equivocal" and had been conditioned upon the refusal to assign him new counsel, and (2) he was not warned of the "dangers" of proceeding pro se. (*People v Arroyo*, 98 NY2d 101; *People v McIntyre*, 36 NY2d 10; *People v Crampe*, 17 NY3d 469; *People v Duarte*, 37 NY3d 1218; *People v LaValle*, 3 NY3d 88; *Matter of Kathleen K. [Steven K.]*, 17 NY3d 380; *People v Gillian*, 8 NY3d 85; *People v Colon*, 90 NY2d 824; *Johnson v Zerbst*, 304 US 458; *People v Smith*, 92 NY2d 516.) III. The prosecutor violated appellant's Sixth Amendment right to present a defense by monitoring his pro se witness preparation calls and repeatedly using them throughout trial to gain a tactical advantage. (*Washington v Texas*, 388 US 14; *McKaskle v Wiggins*, 465 US 168; *United States v Sarno*, 73 F3d 1470; *Maine v Moulton*, 474 US 159; *Katz v United States*, 389 US 347; *People v Johnson*, 27 NY3d 199; *People v Diaz*, 33 NY3d 92; *People v Cisse*, 32 NY3d 1198; *People v Vining*, 28 NY3d 686; *Simmons v United States*, 390 US 377.) IV. The court erroneously permitted the prosecutor to disregard its prior ruling and introduce an inflammatory bestiality video into evidence, elicit testimony about the video, play the video to the jury, and refer to the video in summation. (*People v Huston*, 88 NY2d 400; *People v Calabria*, 94 NY2d 519; *People v Gorghan*, 13 AD3d 908; *People v Williams*, 212 AD2d 388; *People v Grice*, 100 AD2d 419; *People v Alicea*, 37 NY2d 601; *People v Ashwal*, 39 NY2d 105; *United States v Cunningham*, 694 F3d 372; *United States v Loughry*, 660 F3d 965; *United States v Miller*, 527 F3d 54.)

Melinda Katz, District Attorney, Kew Gardens (*Danielle S. Fenn* and *John M. Castellano* of counsel), for respondent. I. The child pornography charges were properly joined under CPL 200.20 (2) (b) with the sexual assault and endangering charges. As the Appellate Division correctly held, the court lacked the statutory authority to sever them. (*People v Bongarzone*, 69 NY2d 892; *People v Lane*, 56 NY2d 1; *People v Hitchcock*, 98 NY2d 586; *People v Molineux*, 168 NY 264; *People v Alvino*, 71 NY2d 233; *People v Garing*, 37 AD3d 849.) II. After conducting a searching inquiry warning defendant of the

dangers of self-representation and importance of an attorney, the trial court properly granted defendant's request to proceed pro se as his waiver was knowing, voluntary, and intelligent. (*Faretta v California*, 422 US 806; *People v McIntyre*, 36 NY2d 10; *People v Silburn*, 31 NY3d 144; *Matter of Kathleen K. [Steven K.]*, 17 NY3d 380; *People v Baines*, 39 NY3d 1; *People v Slaughter*, 78 NY2d 485; *People v Holmes*, 40 NY3d 947; *People v Crampe*, 17 NY3d 469; *People v Providence*, 2 NY3d 579.) III. The trial court properly permitted the prosecutor's limited use of defendant's prison phone calls to rebut misleading testimony offered by a defense witness. (*People v Prescott*, 66 NY2d 216; *People v Johnson*, 27 NY3d 199; *People v Diaz*, 33 NY3d 92; *People v Cisse*, 32 NY3d 1198; *People v Osorio*, 75 NY2d 80; *McKaskle v Wiggins*, 465 US 168; *People v Felder*, 47 NY2d 287; *Crane v Kentucky*, 476 US 683; *People v Crimmins*, 36 NY2d 230.) IV. The court did not preclude the challenged recording, which was admitted into evidence without objection. Defendant's claims are unpreserved and meritless, and any possible error was harmless. (*People v Lane*, 7 NY3d 888; *People v Williams*, 8 NY3d 854; *People v Gray*, 86 NY2d 10; *People v Gajadhar*, 9 NY3d 438; *People v Giles*, 11 NY3d 495; *People v Scarola*, 71 NY2d 769; *People v Patterson*, 93 NY2d 80; *People v Almonor*, 93 NY2d 571; *People v Aska*, 91 NY2d 979; *People v Ashwal*, 39 NY2d 105.)

OPINION OF THE COURT

TROUTMAN, J.

The primary issue before us is whether this pro se defendant was denied his constitutional right to present a defense by the People's monitoring of the telephone calls that he made to his trial witnesses from jail. Under the unique circumstances of this case, we hold that defendant's constitutional right to present a defense was not violated. Because that contention and defendant's remaining contentions do not require reversal or modification, we affirm.

I.

In 2011, "A.M." and "J.H.," two children under 11 years old, accused defendant of repeatedly sexually assaulting them between 2007 and 2009, and a third complainant, "D.M.," accused defendant of raping her during that same period when she was under the age of 17. After one of the complainants disclosed that defendant had video-recorded the assaults and shown her child pornography during the course of the assaults,

the police obtained a search warrant and seized defendant's home computers. Forensic examination of the computers revealed hundreds of images of child pornography and an encrypted, 10-gigabyte "TrueCrypt" container that the police were unable to access, even with the assistance of the Secret Service, FBI, and Department of Homeland Security.¹ The examination further revealed that Google alerts on one of the computers had been set for specific search terms eerily similar to aspects of the assaults.

Proceedings commenced in March 2012 by the filing of an indictment charging defendant with, inter alia, one count of course of sexual conduct against a child in the first degree (Penal Law § 130.75 [1] [a]) pertaining to the conduct against A.M., another count of course of sexual conduct against a child in the first degree (*see id.*) pertaining to the conduct against J.H., two counts of rape in the third degree (*id.* § 130.25) pertaining to the conduct against D.M., and 150 counts each of promoting and possessing a sexual performance by a child (*id.* §§ 263.15, 263.16). Defendant posted bail and was released. After defendant unsuccessfully sought to sever the child pornography counts from the sexual assault counts pursuant to CPL 200.20, a second indictment charged him with an additional 334 counts of possessing a sexual performance by a child (Penal Law § 263.16). Upon the People's unopposed application, Supreme Court joined the second indictment for trial with the first.

The court assigned counsel, as well as a computer expert and an investigator to assist the defense. Defendant eventually became dissatisfied with his assigned counsel, as he had with two prior attorneys, and, in July 2013, the court granted defendant's request to proceed pro se and continued defense counsel's assignment in the role of a "legal advisor."

The trial commenced in late January 2014. The People's first few witnesses included A.M. and J.H., who were ages 11 and 13 at the time of trial. At one point during trial, on a Thursday, the court decided to take an extended lunch recess to give the People's next witness time to arrive from out of state. Defendant asked who that witness would be. The court asked the

1. According to the trial testimony of the detective and computer crimes specialist who conducted the forensic examination, TrueCrypt is software that allows users to encrypt files and create containers, like folders, where encrypted files can be stored and accessed only by a person who knows the password.

prosecutor if there were any concerns about witness intimidation. The prosecutor said that there were no such concerns and disclosed that the next witness would be D.M. After the recess, the court stated that D.M.'s arrival had been delayed and adjourned for the day.

On Friday morning, the prosecutor brought the court's attention to a blog posted to the Internet Thursday evening from an IP address associated with the residence of defendant's sister, where defendant was living during trial. The blog made sexually disparaging comments about D.M., identified her by name as a complainant in a sex crime case, and included a picture of her in underwear. The prosecutor said that the picture was one that defendant had previously disclosed to the People. Defendant stated that he did not post the blog but knew who did. The prosecutor asked the court to remand defendant to jail, stating that the complainant was "devastated" and "in tears . . . waiting to be called to testify." The prosecutor added that defendant's actions "had the chilling effect" that defendant intended. The court concluded that defendant either posted the blog himself, or assisted the person who posted it, in violation of Civil Rights Law § 50-b. As a result, the court ordered defendant to be remanded.

On Monday morning, defendant protested that it was difficult to prepare his witnesses for trial because he was in jail with no access to his files or witnesses, and he moved for a mistrial. The court stated that defendant had the assistance of his family and his legal advisor. The prosecutor added that defendant had been afforded not only a legal advisor but an investigator and a computer expert to assist him with preparation of his defense, at public expense. The People later called as a witness the detective and computer crimes specialist who conducted the forensic examination of defendant's computers, and he testified to the existence of the encrypted, 10-gigabyte TrueCrypt container that was installed on one of the computers, among other findings. After the testimony of two more witnesses, the People rested.

Defendant's first witness was his daughter; the court gave defendant the opportunity to speak to her alone in the courtroom before she testified. It became apparent during the testimony that defendant intended to introduce in evidence a recorded conversation between his daughter and A.M., in which A.M. allegedly recanted her accusations. Although the daughter recorded the conversation two years earlier, the defense

never disclosed the recording to the People, with the defendant insisting that he had just become aware of the recording himself. During voir dire, the daughter testified that she simply asked A.M. questions and told her to be honest. The daughter admitted, however, that she “had to record it a couple of times” and delete portions of it because A.M. was not answering the questions out loud at first. Though the court was “sure” that defendant was aware of the existence of the recording and that defendant’s tactic was an “ambush,” the court permitted the recording to be played for the jury.

On cross-examination, the People asked the daughter about a phone conversation she had with the incarcerated defendant the week before. The daughter admitted, based on the contents of that conversation, that defendant was not only familiar with TrueCrypt but also that he gave her the password for it over the phone. The daughter further testified that defendant told her to come visit him in jail so that he could “grill” her before she testified. When the People sought to refresh the daughter’s recollection about further details of the call, defendant agreed to allow the call to be played outside of the jury’s presence and stipulated to the contents of the call.

The People were permitted to call A.M. out of order to testify in rebuttal about the circumstances of her alleged recantation. She testified that, two years earlier (when she was nine years old) defendant’s daughter drove her to Toys “R” Us to pick out toys for her Christmas list. While parked outside the store, the daughter questioned A.M. about her accusations against defendant. When A.M. gave the “[w]rong” answers, the daughter instructed A.M. to say “no” when the daughter shook her head and “yes” when the daughter nodded. A.M. testified that her statements on the recording were false and that her trial testimony was true.

The defense case proceeded, with defendant at one point protesting that it was difficult to prepare his witness with the prosecutor listening to his calls. The court stated that when defendant wanted to speak to his witnesses, the court made the prosecutors leave the courtroom. Defendant protested that he still did not have enough time to prepare. The court responded that the case had “gone on for years”: “You’ve had years to prepare the case.” Defendant asked to adjourn for the weekend so he could have more time to prepare his witnesses. The court denied the request but noted that there was only one more day of scheduled testimony before the weekend and stated that it

would revisit the matter the next morning. The next day, it was agreed that defendant would testify in his own defense. Defendant called one character witness to provide brief testimony and spent the rest of the day testifying in narrative fashion.

On the morning of the last day of testimony, defendant objected to the People listening to his calls, arguing that it gave the People an “unfair advantage.” The court rejected defendant’s argument.

The jury found defendant guilty of only one felony sexual assault count—course of sexual conduct against a child pertaining to conduct against J.H.—but also found him guilty of all 634 child pornography counts. The jury deadlocked on the count of course of sexual conduct against a child pertaining to A.M. and the counts of rape pertaining to D.M. At sentencing, defendant entered an *Alford* plea to the deadlocked counts in exchange for concurrent time and the court’s promise that it would vacate the plea if the judgment were reversed on appeal.

The Appellate Division affirmed the judgments (211 AD3d 1030 [2d Dept 2022]), and a Judge of this Court granted leave to appeal (40 NY3d 933 [2023]).

II.

“Criminal defendants must be afforded ‘a meaningful opportunity to present a complete defense’” (*People v Deverow*, 38 NY3d 157, 164 [2022], quoting *Crane v Kentucky*, 476 US 683, 690 [1986]). That right, which encompasses the right to offer the testimony of witnesses, is “a fundamental element of due process of law” (*Washington v Texas*, 388 US 14, 19 [1967]; see *Deverow*, 38 NY3d at 164; US Const Sixth, Fourteenth Amends). Criminal defendants also have a constitutional right to self-representation (see *McKaskle v Wiggins*, 465 US 168, 174 [1984]). The right to self-representation exists not only “to affirm the dignity and autonomy of the accused,” but also “to allow the presentation of what may, at least occasionally, be the accused’s best possible defense” (*id.* at 176-177; see *People v Rosen*, 81 NY2d 237, 245 [1993]). To that end, pro se defendants “must be allowed to control the organization and content of [their] own defense” and “must be accorded ‘compulsory process for obtaining witnesses in [their] favor’” (*McKaskle*, 465 US at 174, quoting US Const Sixth Amend; see *Rosen*, 81 NY2d at 244). Thus, an incarcerated pro se defendant has a right to prepare and present a defense no less than any other defendant.

In contending that the right to present a defense was violated in this case, defendant posits that the People’s “unfettered access” to recordings of jail phone calls has the potential to prejudice a pro se defendant and impair his ability to prepare and present a defense, undermining the fairness of the process (*People v Johnson*, 27 NY3d 199, 211 [2016, Pigott, J., concurring]). The opportunity for a lawyer to communicate confidentially with potential witnesses is essential to preparation of a defense, and the same is true for an incarcerated defendant exercising the right to self-representation. Pro se defendants who use jail telephones to prepare their witnesses and discuss trial strategies may not fully appreciate that their conversations may be divulged to the prosecution, which risks placing them at an unfair disadvantage. Even where that possibility is understood, the limited alternative options place many incarcerated pro se defendants in a difficult position: prepare over a recorded phone line or do not prepare at all (*see id.* at 211 [Pigott, J., concurring]).

[1] Under the particular facts of this case, however, we conclude that defendant’s right to present a defense was not impaired by the monitoring of his jail phone calls. Defendant was out on bail for nearly the entire two years between indictment and his mid-trial remand, including more than six months while representing himself, giving him ample time to prepare his witnesses. Even after remand, there is no dispute that defendant had means other than the recorded phone lines to prepare his witnesses. Indeed, the record establishes that defendant’s daughter visited him in jail at his request before he called her to testify so that they could continue their trial preparations in person. The court was proactive in protecting defendant’s rights,² permitting him time in the courtroom to speak to each of his witnesses in private before their testimony. In addition, when defendant asked to adjourn for the weekend

2. Though unrelated to the monitoring of the calls, we note that another of the court’s rulings demonstrates that the court was mindful of defendant’s right to present a defense. When defendant sought to introduce a previously undisclosed, years-old, edited recording of a complainant’s ostensible recantation, the court permitted the recording to be played for the jury, a ruling consistent with the goal of protecting defendant’s right to present a defense (*see People v Cerda*, 40 NY3d 369, 378 [2023] [concluding that exclusion of exculpatory forensic evidence violated right to present defense]; *People v Spencer*, 20 NY3d 954, 956 [2012] [concluding that court should have permitted defendant to present evidence in his defense of officer’s motive to frame him for the crime]).

to prepare his witnesses, the court stated that it would take the matter up in the morning, at which time it was agreed that defendant would testify for most of the remainder of the week. The court also noted that defendant had been assigned a legal advisor and an investigator, both of whom had the expertise and wherewithal to assist in the preparation of the defense.

Although the People's monitoring of an incarcerated pro se defendant's jail phone calls may have a chilling effect on the defendant's trial preparation that threatens the right to present a defense—particularly if the People are able to make use of the information in the calls in the pending trial—the facts here are otherwise. Defendant became aware that the People were listening to his phone conversations only after he had presented the direct testimony of his daughter and an expert. Aside from himself, the only remaining defense witnesses provided character testimony and little else that could be considered relevant to the case. Thus, any chilling effect here was negligible.

Under the circumstances of this case, we conclude that there was no violation of defendant's right to present a defense.

III.

Defendant's remaining contentions are meritless, waived, or unpreserved. Contrary to defendant's contention, the court properly denied his motion to sever the counts in the first indictment charging child pornography offenses from the counts charging sexual assault offenses. Because the offenses were properly joined pursuant to CPL 200.20 (2) (b), "the court lacked statutory authority to sever" them (*People v Bongarzone*, 69 NY2d 892, 895 [1987]; see CPL 200.20 [3]).

[2] We reject defendant's further contention that the court should have denied his request to proceed pro se as equivocal. A request to go pro se is equivocal when it "does not reflect an affirmative desire for self-representation" and instead shows that "self-representation was reserved as a final, conditional resort" (*Matter of Kathleen K. [Steven K.]*, 17 NY3d 380, 387 [2011]). To be sure, "conditioning a request for new attorneys with a request for self-representation does not necessarily make the latter request equivocal" (*People v LaValle*, 3 NY3d 88, 107 [2004]), but it can become equivocal where a "defendant raised the argument for self-representation as a way of obtaining the dismissal of his . . . assigned counsel" (*People v Gillian*, 8 NY3d 85, 88 [2006]). Here, although defendant

initially made his request to proceed pro se as an alternative to his request for substitute counsel, defendant later told the court that he had spoken to his family and decided that self-representation was “the best way to go.” Before conducting the requisite searching inquiry, the court invited defendant to make another argument for substitute counsel, but defendant declined to do so, explaining that he was “satisfied to go pro se.” Moreover, even after granting defendant’s request to proceed pro se, the court left the door open for defendant to make an argument for the appointment of a new attorney, and thereafter defendant “never said a word about wanting” one (*LaValle*, 3 NY3d at 107). Under these circumstances, where defendant explicitly declined the opportunity to argue for a new attorney, defendant’s request was unequivocal.

Defendant next contends that the court failed to conduct a “searching inquiry” as required to apprise him of the dangers and pitfalls of self-representation inasmuch as the court failed to ensure that he was aware of the nature of the charges and range of possible sentences that may result from conviction. We reject that contention as well (*see People v Blue*, 42 NY3d 584 [2024]). The record and defendant’s own statements indicate that he worked as a court officer for 21 years, had been involved in prior sexual abuse cases, and was aware that he risked serving the rest of his natural life in prison if convicted. Indeed, defendant mentioned twice during the searching inquiry that his “life” was at stake.

Defendant waived any challenge to the use of a recorded jail telephone call during cross-examination of his daughter because he agreed to allow the recording to be played and stipulated to its contents (*see People v Santos-Sosa*, 233 AD2d 833, 833 [4th Dept 1996], *lv denied* 89 NY2d 988 [1997]).

Defendant’s remaining contentions, including his challenge to the People’s introduction of an inflammatory bestiality video, are unpreserved.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and HALLIGAN concur.

Order affirmed.

[250 NE3d 620, 225 NYS3d 610]

MEREDITH SZYPULA, Appellant, v JOHN SZYPULA, Respondent.

Argued September 10, 2024; decided October 22, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an amended judgment of the Supreme Court, Tompkins County (Joseph A. McBride, J.), entered March 28, 2023. The appeal brings up for review so much of an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered November 23, 2022, as had (1) modified, on the law, a divorce judgment of that Supreme Court; and (2) remitted the matter to the Supreme Court for further proceedings not inconsistent with that Appellate Division's decision. The modification consisted of reversing so much of the judgment as had determined that defendant's military pension credits earned prior to the marriage were marital property and directed equitable distribution thereof equally to the parties based on *Majauskas v Majauskas* (61 NY2d 481 [1984]).

Szypula v Szypula, 211 AD3d 156, reversed.

HEADNOTE**Husband and Wife and Other Domestic Relationships — Equitable Distribution — Marital or Separate Property — Pension Benefits Earned Prior to Marriage But Acquired during Marriage**

In a matrimonial action, the portion of defendant husband's pension related to credit for his pre-marriage Navy service was marital property because the parties used marital funds to "buy back" those credits and transform them into pension rights. When defendant left the Navy, the nine years of pension credits he accrued before marriage were his separate property, but they did not entitle him to any pension benefits. He had, instead, an opportunity to make a payment to acquire up to 11 years of pension rights, provided that he later took a job whose pension plan allowed for the credits to be used to augment its value. The parties used marital funds to convert those 11 years of Navy service, including the nine years he worked prior to marriage, into additional value to defendant's pension. The pension rights were therefore the product of both defendant's pre-marriage service and the parties' contribution of marital assets. By combining defendant's pre-marriage military service with marital funds the parties transformed the pension credits from separate property into marital property. Defendant acquired the 11 years of pension rights only by entering qualifying federal employment and paying to incorporate his Navy pension credits into his new pension. The use of marital funds to "buy back" defendant's naval service created, at least in part, his pension entitlement.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Divorce and Separation §§ 475–477, 504–506.

CARMODY-WAIT 2d Spousal Support, Counsel Fees, Child Support, and Property Distribution in Matrimonial Actions §§ 118:191, 118:250.

NY JUR 2d Domestic Relations §§ 2713–2715, 2723.

NEW YORK MATRIMONIAL LAW AND PRACTICE (2022-2023 ed) §§ 3:5, 3:6, 5:8.

ANNOTATION REFERENCE

Pension or retirement benefits as subject to award or division by court in settlement of property rights between spouses. 94 ALR3d 176.

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POINTS OF COUNSEL

Miller Mayer, LLP, Ithaca (*R. James Miller* of counsel), for appellant. I. Pension credits that are purchased during a marriage with marital funds should be considered acquired during a marriage and therefore must be classified as marital property under the law. (*O’Brien v O’Brien*, 66 NY2d 576; *Valachovic v Valachovic*, 9 AD3d 659; *Olivo v Olivo*, 82 NY2d 202; *Majauskas v Majauskas*, 61 NY2d 481; *Burns v Burns*, 84 NY2d 369; *DeJesus v DeJesus*, 90 NY2d 643; *DeLuca v DeLuca*, 97 NY2d 139; *Dolan v Dolan*, 78 NY2d 463; *Burke v Burke*, 175 AD3d 458.) II. If the defendant and Third Department are correct that the pension benefits attributable to defendant’s Navy service before the marriage are separate property, the value of the pension increased entirely during the marriage, with the use of marital funds, and the wife directly and indirectly contributed to the appreciation, making her entitled to her *Majauskas* portion of the entire pension. (*DeLuca v DeLuca*, 97 NY2d 139; *DeJesus v DeJesus*, 90 NY2d 643; *Bailey v Bailey*, 48 AD3d 1123.)

Wilmer Cutler Pickering Hale and Door LLP, New York City (*Emily Barnett* of counsel), and *John Szypula*, pro se, for John Szypula, respondent. I. A pension benefit that is earned prior to a marriage but subsequently transferred to a different pension system during the marriage remains separate property under the law, even if marital funds are used to effect that

transfer. (*Valachovic v Valachovic*, 9 AD3d 659; *DeLuca v DeLuca*, 97 NY2d 139; *Olivo v Olivo*, 82 NY2d 202; *Majauskas v Majauskas*, 61 NY2d 481.) II. The value of any earned portion of a fixed-benefit pension is determined solely by the employee beneficiary's time in service and salary, so to the extent marital funds were used to transfer the defendant's Navy service pension credits to the Foreign Service pension system, those funds did not increase the value of the portion of the defendant's pension attributable to his years of Navy service prior to the marriage, nor did any other action taken by the plaintiff increase the value of the pension credits that the defendant earned prior to the marriage. Because the marital funds used to transfer pension credits to a new pension system benefit both parties, the Third Department created reversible error by ordering the defendant to pay the plaintiff a share of the transfer fee, and the Court of Appeals should correct that error by ordering the plaintiff to reimburse that payment to the defendant. (*DeLuca v DeLuca*, 97 NY2d 139; *Olivo v Olivo*, 82 NY2d 202; *DeJesus v DeJesus*, 90 NY2d 643.) III. The Tompkins County Supreme Court committed reversible error in its February 16, 2023 supplemental decision issuing a court order acceptable for processing (COAP), by acting inconsistently with the court's own instructions at the time, relying on a misunderstanding created by the plaintiff's counsel that both parties agreed to the plaintiff's draft COAP, unfairly excluding consideration of the defendant's objections, and including in the COAP erroneous and ambiguous clauses that will impact the administration of the equitable distribution of assets among parties. The COAP has not yet been executed due to the plaintiff's current appeal to the New York State Court of Appeals; thus, the New York State Court of Appeals should remit to the Supreme Court the matter of correcting this reversible error by revising the COAP to address the objections and errors raised by the defendant in his February 12, 2023 letter to the Supreme Court.

OPINION OF THE COURT

Chief Judge WILSON.

In this case, a couple used marital funds to augment the husband's Foreign Service pension so that it included credit for his pre-marriage military service. The issue is whether the portion of the pension related to the pre-marriage military service is separate or marital property. We hold that the portion of the Foreign Service pension related to credit for that service is

entirely marital property because marital funds were used to transform the credits into pension rights. We therefore reverse and remit to Supreme Court for further proceedings.

I.

John Szypula joined the Navy in 1987, when he was 22. He and Meredith Szypula were married nine years later. Two years later, in 1998, Mr. Szypula left the Navy. In general, members of the armed services become entitled to retirement pay only after they complete 20 years of service. When Mr. Szypula left the Navy, he was not entitled to military retirement benefits.

From 1998 to 2012, Mr. Szypula worked in the private sector. In 2012, he joined the Foreign Service and enrolled in the Foreign Service Pension System (FSPS). Veterans who join the Foreign Service—like Mr. Szypula—may add their years of military service to their FSPS pensions by making additional contributions for the years they served in the military. Mr. and Ms. Szypula took advantage of this benefit. From 2012 to 2018, a portion of Mr. Szypula’s earnings was withheld to enhance his Foreign Service pension by “buying back” his 11 years of Navy service, at a total cost of \$9,158.00.¹ As a result of those payments and his 11 years of Navy service, Mr. Szypula’s FSPS pension will vest sooner and be worth more.

In 2019, the Szypulas filed for divorce. The parties settled some issues but could not resolve whether the portion of the FSPS pension attributable to Mr. Szypula’s nine years of pre-marriage Navy service was separate or marital property.²

Supreme Court held that the value of the FSPS pension related to Mr. Szypula’s nine years of premarital Navy service was marital property subject to equitable distribution because the couple “used marital funds to buy back” the Navy credits during the course of their marriage. The Appellate Division reversed, holding that the Navy pension credits were Mr. Szypula’s separate property because they were the product of his “sole labors” and were “not due in any way to [Ms. Szypula’s]

1. Mr. Szypula does not dispute that the portion of the pension attributable to his Navy service during the marriage (approximately 2½ years) is marital property. Supreme Court calculated that the total of the payments to “buy back” Mr. Szypula’s premarital Navy service (approximately nine years) was \$7,049.46.

2. The parties have not raised any issue relating to valuation of the portion of Mr. Szypula’s pension based on his Foreign Service employment that postdated the commencement of divorce proceedings, and we express no opinion thereon.

indirect contributions” (211 AD3d 156, 159 [3d Dept 2022]). The Appellate Division held, however, that the marital funds used to purchase the credits were subject to equitable distribution and remitted to Supreme Court to make the appropriate calculations (*id.*). On remittal, Supreme Court adjusted the award accordingly. Ms. Szypula now appeals.

II.

Under Domestic Relations Law § 236, marital property includes “all property acquired by either or both spouses during the marriage” except separate property (*id.* § 236 [B] [1] [c]). As relevant here, separate property includes “property acquired before marriage” (*id.* § 236 [B] [1] [d] [1]) and “property acquired in exchange for or the increase in value of separate property, except to the extent that such appreciation is due in part to the contributions or efforts of the other spouse” (*id.* § 236 [B] [1] [d] [3]).

Marital property “should be ‘construed broadly,’ ” and separate property “should be construed ‘narrowly’ ” (*Fields v Fields*, 15 NY3d 158, 162-163 [2010], quoting *Price v Price*, 69 NY2d 8, 15 [1986]). The Domestic Relations Law “creates a statutory presumption that ‘all property, unless clearly separate, is deemed marital property’ and the burden rests with the titled spouse to rebut that presumption” (*id.* at 163, quoting *DeJesus v DeJesus*, 90 NY2d 643, 652 [1997]). That presumption reflects the legislature’s “unmistakable intent to provide each spouse with a fair share of things of value that each helped to create and expects to enjoy at a future date” (*DeLuca v DeLuca*, 97 NY2d 139, 144 [2001], citing *DeJesus*, 90 NY2d 643).

In *Majauskas v Majauskas*, we held that vested pension rights “are marital property to the extent that they were acquired between the date of the marriage and the commencement of a matrimonial action” (61 NY2d 481, 485-486 [1984]). We reasoned that a pension right is marital property because it is received “in lieu of higher compensation which would otherwise have enhanced either marital assets or the marital standard of living” (*id.* at 491-492), in other words, that a pension “is a form of deferred compensation” (*Olivo v Olivo*, 82 NY2d 202, 207 [1993], citing *Majauskas*, 61 NY2d at 491-492). In the years since *Majauskas*, we have consistently held that pension rights attributable to work during marriage are marital property (*id.* at 210; *Burns v Burns*, 84 NY2d 369, 376 [1994]; *DeLuca*, 97 NY2d at 145).

The pension rights at issue in this case differ from the benefits addressed in our prior case law. As we recognized in *Majauskas*, an employee's pension rights generally accrue incrementally over time (61 NY2d at 490). The accrual of those rights is tied to the employee's service but may also require a financial contribution from the employee. Usually, where that is the case, the employee works and pays into the plan at the same time.

Here, however, the parties made a financial contribution during the marriage to transform premarital service into pension rights. When Mr. Szypula left the Navy, the nine years of pension credits he accrued before marriage were his separate property, but they did not entitle him to any pension benefits. He had, instead, an opportunity to make a payment to acquire up to 11 years of pension rights, provided that he later took a job whose pension plan allowed for the credits to be used to augment its value.³

Mr. and Ms. Szypula used marital funds to convert those 11 years of Navy service, including the nine years he worked prior to marriage, into additional value to Mr. Szypula's Foreign Service pension. The pension rights at issue in this case are therefore the product of both his pre-marriage service and the Szypulas' contribution of marital assets.

Separate property that is commingled with marital property presumptively becomes marital property (*see Fields*, 15 NY3d at 167; *see also Weiss v Nelson*, 196 AD3d 722, 725 [2d Dept 2021] ["Separate property that is commingled with marital property loses its separate character, and here, the plaintiff failed to overcome the presumption that her commingled separate property was converted to marital property"]; *Bailey v Bailey*, 48 AD3d 1123, 1124 [4th Dept 2008] [holding that the defendant failed "to rebut the presumption that (commingled funds) were marital property"]; *Judson v Judson*, 255 AD2d 656, 657 [3d Dept 1998] ["(O)nce separate property is commingled with marital funds it becomes marital property"]; *Pullman v Pullman*, 176 AD2d 113, 114 [1st Dept 1991] ["(T)here is a presumption that assets commingled with other property acquired during the course of the marriage are marital property"]).

Although Mr. Szypula's pre-marriage military service may have had some appreciable though contingent value as sepa-

3. Mr. Szypula might also have become entitled to a Navy pension based on his service had he returned to the Navy, but he did not do so.

rate property, by combining it with marital funds the Szypulas transformed the pension credits from separate property into marital property. Mr. Szypula acquired the 11 years of pension rights only by entering qualifying federal employment and paying to incorporate his Navy pension credits into his new pension. Those credits are thus distinct from unvested pension credits that vest so long as an employee continues to work for the same employer (*cf. Burns*, 84 NY2d at 377). The use of marital funds to “buy back” Mr. Szypula’s naval service created the pension entitlement he has today, at least in part. The pension rights at issue here are therefore marital property.

Our decision recognizes that marriage is an economic partnership in which each spouse is entitled to share in “things of value arising out of the marital relationship” (*O’Brien v O’Brien*, 66 NY2d 576, 583 [1985]). Had the Szypulas chosen to use their marital funds to invest in a home or a financial investment rather than to purchase pension rights, Ms. Szypula would be entitled to share in the asset, not just to recover half the purchase price. That Mr. and Ms. Szypula were entitled to invest in Mr. Szypula’s pension only because of his prior military service does not change the outcome: the investment was an investment of marital property, and the resulting asset is marital.

III.

Although courts may award a spouse credit for the value of separate property used to create a marital asset, the entirety of the asset is deemed marital (*Fields*, 15 NY3d at 166). In situations where a marital asset was acquired in part with separate property funds, “courts have usually given the spouse who made the separate property contribution a credit for such payment before determining how to equitably distribute the remaining value of the asset” (*id.* at 167-168; *see also Traut v Traut*, 181 AD2d 671, 671-672 [2d Dept 1992]; *Lolli-Ghetti v Lolli-Ghetti*, 165 AD2d 426, 432 [1st Dept 1991]). The burden is on the spouse claiming recapture of a separate property contribution to prove that contribution’s value (*see Kaufman v Kaufman*, 189 AD3d 31, 64 [2d Dept 2020]). The Foreign Service pension rights attributable to Mr. Szypula’s nine years of premarital service are marital property in their entirety. Here, the record is not sufficient to determine the value of Mr. Szypula’s inchoate Navy pension credits at the time he contributed them to create a marital asset. On remittal, Mr. Szypula may make a claim for the value of that separate property.

It also bears note that marital property need not be distributed 50/50 (see *Fields*, 15 NY3d at 170; see also *Valitutto v Valitutto*, 137 AD3d 1526, 1528 [3d Dept 2016] [affirming a 70/30 distribution of a pension]; *Auriemmo v Auriemmo*, 87 AD3d 1090, 1091 [2d Dept 2011] [affirming a 55/45 distribution of a pension]). In making an equitable distribution of marital property, the court must consider a wide range of factors (Domestic Relations Law § 236 [B] [5] [d]). As we explained in *DeLuca*, “under the broad interpretation given marital property, formalized concepts such as ‘vesting’ and ‘maturity’ are not determinative,” but “they do affect valuation and distribution” (97 NY2d at 144, 146).

It is the responsibility of the trial court to equitably distribute marital property in the first instance (*Majauskas*, 61 NY2d at 493). That fact intensive determination requires a detailed and wide-ranging understanding of the marriage and the situation of each individual spouse. Our decision, in contrast, is limited to addressing the legal question of whether the pension rights at issue here are marital property and therefore subject to equitable distribution on remittal, based on “the circumstances of the case and of the respective parties” (Domestic Relations Law § 236 [B] [5] [c]).

IV.

The pension credits at issue here became marital property when Mr. and Ms. Szypula used marital funds to transform them into pension rights, commingling separate property with marital property. Accordingly, the amended judgment appealed from and Appellate Division order brought up for review should be reversed, with costs, and the case remitted to Supreme Court for further proceedings in accordance with this opinion.

Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Amended judgment appealed from and Appellate Division order brought up for review reversed, with costs, and case remitted to Supreme Court, Tompkins County, for further proceedings in accordance with the opinion herein.

[250 NE3d 650, 225 NYS3d 639]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAIRO CASTILLO, Appellant.

Argued October 17, 2024; decided November 21, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 1, 2022. The Appellate Division affirmed a judgment, as amended, of the Supreme Court, Bronx County (April A. Newbauer, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree and criminal possession of a weapon in the second degree.

People v Castillo, 210 AD3d 414, reversed.

HEADNOTES

Crimes — Justification — Use of Deadly Physical Force — Continuing Threat of Initial Aggressor Victim

1. Defendant, who shot six times and killed the victim who had stood in a shop doorway, told defendant he could not leave, and held a razor blade against defendant's face, threatening to cut him from ear to ear, was entitled to a justification instruction on his second-degree murder charge. A person may use physical force to defend himself against an assailant's "imminent use of unlawful physical force," but may not use deadly physical force unless "[t]he [person] reasonably believes that [the assailant] is using or about to use deadly physical force" (Penal Law § 35.15 [1], [2] [a]). A court considering a request for a justification charge examines the evidence in the light most favorable to the defendant, and must provide the instruction if there is any reasonable view of the evidence that the defendant was justified in their actions. Here, it was undisputed that the victim was the initial aggressor and defendant faced an imminent threat of deadly force at the time the victim held the blade to his face. While defendant stepped back before drawing his gun and four of the bullets entered the victim's back because he apparently turned his body at some point, the entire altercation was over in approximately 30 seconds and the victim remained standing close to defendant. Under the circumstances it would not have been unreasonable for defendant to believe the victim continued to pose a threat.

Crimes — Justification — Failure to Give Instruction on Murder Charge — Effect on Possession of Weapon Charge

2. In a prosecution arising from an incident in which defendant shot six times and killed the victim who had stood in a shop doorway, told defendant he could not leave, and held a razor blade against defendant's face, threatening to cut him from ear to ear, reversal of defendant's conviction for second-degree criminal possession of a weapon was required where the trial court's error in failing to provide the jury with a justification instruction on the charge of second-degree murder may have affected the verdict on the posses-

sion count. Justification is not available as a defense to a possessory offense, including possession of a weapon with intent to use it unlawfully against another person. However, if the jury was properly instructed on justification on the murder charge, it might have concluded that defendant acted lawfully when he shot and killed the victim in self-defense and that defendant lacked the requisite intent for the possession charge. Thus, with respect to the possessory offense, the jury must be instructed that, while justification is not a defense to that crime, in the event the jury finds that the shooting was justified, that lawful use of the weapon cannot be considered as proof of the unlawful intent element of the possession charge.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Homicide §§ 481, 486; AM JUR 2d Weapons and Firearms § 23.

CARMODY-WAIT 2d Charge and Instructions to Jury §§ 200:71, 200:72.

McKINNEY'S, Penal Law § 35.15 (1), (2) (a).

NY JUR 2d Criminal Law: Substantive Principles and Offenses §§ 166, 167, 173, 1835, 1839, 1849.

ANNOTATION REFERENCE

See ALR Index under Instructions to Jury; Justification or Excuse.

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Query: justification /3 charge /s failure /s error & reverse

POINTS OF COUNSEL

Jenay Nurse Guilford, Center for Appellate Litigation, New York City (*Matthew Bova* of counsel), for appellant. The lower courts committed reversible error in finding no reasonable view of justification. (*People v McManus*, 67 NY2d 541; *People v J.L.*, 36 NY3d 112; *People v Brown*, 33 NY3d 316; *People v Petty*, 7 NY3d 277; *People v Wesley*, 76 NY2d 555; *People v Ortiz*, 76 NY2d 446; *People v Padgett*, 60 NY2d 142; *People v Butts*, 72 NY2d 746; *People v Williams*, 35 NY3d 24; *People v Del-Debbio*, 244 AD2d 195.)

Darcel D. Clark, District Attorney, Bronx (*Cynthia A. Carlson* and *Yael V. Levy* of counsel), for respondent. Where defendant repeatedly fatally shot a fleeing man in the side and back from a safe distance knowing the man had a small razor blade

but no gun, the trial court providently concluded that a justification charge was unwarranted. (*People v McManus*, 67 NY2d 541; *People v Kennedy*, 159 NY 346; *People v Sullivan*, 7 NY 396; *People v Constantino*, 153 NY 24; *Matter of Y.K.*, 87 NY2d 430; *People v Goetz*, 68 NY2d 96; *People v Brown*, 33 NY3d 316; *People v Aska*, 91 NY2d 979; *People v Magliato*, 68 NY2d 24; *People v Jones*, 3 NY3d 491.)

OPINION OF THE COURT

GARCIA, J.

The shooting at issue here occurred during a dispute over a drug transaction between the owner of a barbershop in the Bronx and the victim. After the owner and the victim had a series of confrontations in and around the shop, including a fistfight and threats of violence by the victim against the owner and his family earlier that same day, the victim returned to the shop. The owner called defendant, a friend, and shortly thereafter when defendant arrived at the scene, the victim confronted him with a razor blade, and defendant shot and killed him. Defendant was convicted of second-degree murder and second-degree criminal weapon possession. On appeal, he argues that his convictions must be reversed because of the trial court's failure to instruct the jury on the defense of justification (Penal Law § 35.15). We agree that the failure to charge the jury on that defense as to the murder count was error and, because that failure may have affected the jury's verdict on the possession count, both convictions must be reversed.

During defendant's trial, after hearing testimony from, among others, an eyewitness to the shooting and the medical examiner, the trial court declined defendant's request that the jury be charged with the justification defense. The trial court concluded that justification is not "an appropriate charge," noting that she had "reviewed the testimony, including the photographs, including the razor blade and reviewing the relative sizes and ages, descriptions of the two parties involved." The jury convicted on both counts. The Appellate Division affirmed, holding because "defendant stepped back, and the victim did not cut him," and that, even if the two shots to the victim's front were justified, "there was no reasonable view of the evidence . . . that defendant . . . was justified in firing four additional shots into the victim's back" (210 AD3d 414, 415 [1st Dept 2022]). A Judge of this Court granted defendant leave to appeal (39 NY3d 1109 [2023]), and we now reverse.

[1] The defense of justification provides that a person may use physical force to defend himself against an assailant's "imminent use of unlawful physical force," but does not authorize the use of "deadly physical force . . . unless . . . [t]he [person] reasonably believes that [the assailant] is using or about to use deadly physical force" (Penal Law § 35.15 [1], [2] [a]). When considering a request for a justification charge, courts examine the evidence in the light most favorable to the defendant, and must provide the instruction if there is any reasonable view of the evidence that defendant was justified in his actions (see *People v Heiserman*, 39 NY3d 988, 990 [2022]). Justification has both a subjective requirement, that "defendant . . . actually believed . . . he [was] threatened with the imminent use of deadly physical force," and an objective requirement, that defendant's "reactions were . . . those of a reasonable man acting in self-defense" (*People v Collice*, 41 NY2d 906, 907 [1977]). The defense does not automatically apply throughout the entirety of an encounter—a defendant who may be justified in using deadly physical force at the start of an encounter loses the right to use such force "‘at the point he can no longer reasonably believe the assailant still poses a threat to him’" (*People v Williams*, 35 NY3d 24, 45 [2020], quoting *People v Del-Debbio*, 244 AD2d 195, 195 [1st Dept 1997]). Applying this standard to the evidence here, we conclude defendant was entitled to a justification instruction on the second-degree murder charge.

At trial, an eyewitness testified that the victim confronted defendant in the barbershop's doorway, told him he could not leave, and held a razor blade against defendant's face, threatening to cut him from ear to ear. Defendant then took a step back, drew his gun, and shot the victim six times. The eyewitness testified that defendant and the victim were facing each other when defendant first fired, but that the victim was facing away from defendant as he continued to fire. Although his body turned, the victim did not move from where he was standing. The altercation lasted approximately 30 seconds, and the shooting itself only approximately five seconds from the first to the last shot.

The medical examiner testified that, because the victim's wounds lacked distinctive markings, or "stippling," the two men must have been at least two feet apart. According to the medical examiner, the autopsy showed that one bullet entered the victim's side, while another entered his arm, and four entered his back. The medical examiner also testified that three

of the six shots would have been fatal: the one to the victim's side, and two to the victim's back.

When viewed under the appropriate standard, there is a reasonable view of this evidence that defendant was justified in his actions (see *Heiserman*, 39 NY3d at 990). It is undisputed that the victim was the initial aggressor and, as the People concede, defendant faced an imminent threat of deadly force at the time the victim held the blade to his face. Despite the Appellate Division's reasoning to the contrary, that defendant stepped back does not mean he could no longer have reasonably believed the victim still posed a threat to him. Given the rapid unfolding of events—there was testimony that the entire confrontation was over in 30 seconds—jurors could also conclude that the shots to the victim's back were justified; that is, that defendant “‘reasonably believe[d] the assailant still pose[d] a threat to him’” (*Williams*, 35 NY3d at 45, quoting *Del-Debbio*, 244 AD2d at 195). While the victim appears to have turned his body at some point, he remained standing close to defendant, and under the circumstances it would not be unreasonable for defendant to believe the victim continued to pose a threat. In other words, a jury could conclude that defendant still subjectively feared an imminent deadly threat, and that such a fear and defendant's response were reasonable (see *Heiserman*, 39 NY3d at 990). Finally, on this record, there is a reasonable view of the evidence that defendant could not safely retreat into the back of the barbershop at the time he used deadly physical force (see *People v Sanchez*, 31 NY3d 949, 950 [2018]). Accordingly, the failure to provide the jury with a justification charge was error, and defendant's murder conviction must be reversed.¹

The People are correct that the trial court did not err in failing to give a justification charge on the possession count. Justification is not available as a defense to a possessory offense, including possession of a weapon with intent to use it unlawfully against another person (see *People v Pons*, 68 NY2d 264, 265 [1986]; *People v Almodovar*, 62 NY2d 126, 129-131 [1984]). That does not end our inquiry, however, as we must examine whether the failure to provide the instruction on the murder count affected the jury's verdict on the possession count.

1. We of course do not decide whether, based on the evidence introduced in any retrial, the People would be entitled to a charge that each shot must be justified.

[2] Defendant was charged with criminal possession of a weapon in the second degree, requiring the People to prove that he possessed the gun with the intent to use it unlawfully against another person (*see* Penal Law § 265.03 [1]). The model Criminal Jury Instruction provides that “a person acts with intent to use a loaded firearm unlawfully . . . when his . . . conscious . . . purpose is to use that loaded firearm unlawfully against another, and, that intent *need only exist* at the very moment that a person engages in an unlawful use of the firearm against another” (CJI2d[NY] Penal Law § 265.03 [1] [b] [crime committed on or after Nov. 1, 1998], [https://www.nycourts.gov/judges/cji/2-PenalLaw/265/265-03\(1\)\(b\).pdf](https://www.nycourts.gov/judges/cji/2-PenalLaw/265/265-03(1)(b).pdf) [emphasis added]).² But if the jury in this case was properly instructed on justification, it might have concluded that defendant acted lawfully when he shot and killed the victim in self-defense. If so, then the jury might have also concluded that defendant lacked the requisite intent (to use unlawfully) for the possession charge (*see Jackson v Edwards*, 404 F3d 612, 627 [2d Cir 2005] [in deciding a habeas petition, the court held that “if a properly instructed jury were to have concluded that (the defendant) was not guilty of any homicide offense, then it might have also concluded that he lacked the requisite intent to be guilty of the weapons charge”]; *see also Davis v Strack*, 270 F3d 111, 134-135 [2d Cir 2001]). In other words, it is possible the jury here relied solely on evidence of the potentially justified shooting in finding defendant guilty of possession of the weapon with the intent to use it unlawfully.

To be clear, a jury finding of justification as to the use of a firearm does not preclude that jury from finding that the defendant nevertheless possessed the weapon with intent to use it unlawfully (*see People v Muhammad*, 17 NY3d 532, 545 [2011] [(“T)he intent element is satisfied if the defendant intended to use the weapon unlawfully against another *at any time* during the period of possession” (emphasis added)]). But with respect to the possessory offense, the jury must be instructed that, while justification is not a defense to that crime, in the event the jury finds that the shooting was justified, that lawful use of the weapon cannot be considered as

2. Here, the jury appears to have been instructed that unlawful “intent *only exists* at the very moment that a person engages in the unlawful use of the firearm against another” (emphasis added). That instruction would serve only to aggravate the problem described above. For simplicity, the writing assumes the standard instruction was given.

proof of the unlawful intent element of the possession charge. For example, the jury's intent determination may rest on defendant's conduct "during the continuum of time that he possessed it prior to the shooting" (*Pons*, 68 NY2d at 268).

Accordingly, the order of the Appellate Division should be reversed and a new trial ordered.

Chief Judge WILSON and Judges RIVERA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order reversed and a new trial ordered.

[250 NE3d 1172, 226 NYS3d 140]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARK
WATKINS, Appellant.

Argued April 18, 2024; decided May 23, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 9, 2022. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Neil E. Ross, J.), which had convicted defendant, upon a jury verdict, of attempted assault in the first degree, assault in the second degree, and criminal possession of a weapon in the third degree.

People v Watkins, 206 AD3d 452, affirmed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation — Failure to Request Cross-Racial Eyewitness Identification Jury Instruction

Defense counsel was not constitutionally ineffective for failing to request a cross-racial eyewitness identification jury instruction in defendant's prosecution for attempted assault of the non-Black Hispanic victim who identified defendant, a Black man, as his attacker, where no clear entitlement to such a charge existed at the time of defendant's trial and counsel's failure to request it therefore did not give rise to a single-error ineffective assistance of counsel claim. A cross-racial identification instruction is now mandatory upon request when identification is an issue in a criminal case and the identifying witness and defendant appear to be of different races. Entitlement to an identification charge had previously been always a matter for the trial judge's discretion, provided that the trial court conveyed to the jury that the People had to establish the perpetrator's identity beyond a reasonable doubt. Court of Appeals precedent had long vested the trial court with discretion over the content of an eyewitness identification charge. The Appellate Division had relied upon that precedent to consistently uphold the trial courts' exercise of discretion to omit the cross-racial portion of the identification charge, where the defendant neither introduced expert testimony regarding the cross-race effect nor cross-examined the People's witnesses about their ability to identify people of the defendant's race. Therefore, a legal argument in support of the cross-racial identification charge did not have clear prospects at the time of the representation or was otherwise so compelling that a failure to make it amounted to ineffective assistance of counsel. Given the state of the law at the time, the decision to forgo a request for the cross-racial identification charge was not the kind of egregious single error that rises to the level of ineffective assistance.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 1111, 1113–1114, 1116; AM

JUR 2d Evidence §§ 556–557; AM JUR 2d Trial §§ 1006, 1008.

CARMODY-WAIT 2d Right to Counsel §§ 184:161–184:164, 184:271; CARMODY-WAIT 2d Particular Types of Evidence § 194:214; CARMODY-WAIT 2d Charge and Instruction to Jury §§ 200:34–200:35.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 7.5, 11.1, 11.7, 11.10.

NY JUR 2d Criminal Law: Procedure §§ 867, 869–872, 943, 2817.

ANNOTATION REFERENCE

Necessity of, and prejudicial effect of omitting, cautionary instruction to jury as to reliability of, or factors to be considered in evaluating, eyewitness identification testimony—state cases. 23 ALR4th 1089.

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Query: “cross-racial” & (jury /3 (instruction OR charge)) & (eyewitness /5 identification)

POINTS OF COUNSEL

Jenay Nurse Guilford, Center for Appellate Litigation, New York City (*Elizabeth Vasily* of counsel), for appellant. In this single-witness stranger cross-racial identification case with no forensic or probative video evidence, trial counsel—who argued an honest-but-mistaken misidentification defense—was ineffective for failing to request a cross-racial identification charge where the New York Criminal Jury Instructions had incorporated a cross-race charge six years earlier. (*People v Boone*, 30 NY3d 521; *Martinez v Ryan*, 566 US 1; *Hinton v Alabama*, 571 US 263; *People v Turner*, 5 NY3d 476; *Strickland v Washington*, 466 US 668; *People v Caban*, 5 NY3d 143; *People v Benevento*, 91 NY2d 708; *Kimmelman v Morrison*, 477 US 365; *Rosario v Ercole*, 601 F3d 118; *People v Jones*, 167 AD3d 443.)

Alvin L. Bragg, Jr., District Attorney, New York City (*Michael J. Yetter*, *Steven C. Wu* and *Stephen J. Kress* of counsel), for respondent. Defense counsel was not ineffective for declining to request a cross-racial identification charge in this case. (*People v Henry*, 95 NY2d 563; *People v McGee*, 20 NY3d 513; *People v Lopez-Mendoza*, 33 NY3d 565; *People v Brown*, 45 NY2d 852; *People v Oliveras*, 21 NY3d 339; *People v Clark*, 28

NY3d 556; *People v Boone*, 129 AD3d 1099, 30 NY3d 521; *People v Washington*, 56 AD3d 258; *People v Applewhite*, 298 AD2d 136; *People v Jenkins*, 166 AD2d 237.)

OPINION OF THE COURT

HALLIGAN, J.

Defendant Mark Watkins contends that his trial counsel was ineffective for failing to request a cross-racial identification instruction at the close of his July 2017 trial. Under our decision in *People v Boone*—decided after Watkins’ trial—such an instruction is now mandatory upon request “when identification is an issue in a criminal case and the identifying witness and defendant appear to be of different races,” in light of the higher “likelihood of misidentification” and the “significant disparity between what the psychological research shows and what uninstructed jurors believe” regarding the impact of this cross-race effect (30 NY3d 521, 526, 528-529, 535-536 [2017]). At the time of Watkins’ pre-*Boone* trial, however, a defendant was not entitled to a cross-racial identification instruction upon request; rather, the charge was discretionary. Thus, counsel’s failure to request such a charge did not give rise to a single-error ineffective assistance of counsel claim. Accordingly, we affirm the order below.

I.

In July 2017, a jury found Watkins guilty of attempted assault in the first degree, assault in the second degree, and criminal possession of a weapon in the third degree. The charges stemmed from an October 2016 incident in which 65-year-old David Pena was approached by a stranger on the street and struck in the left cheek with a hard object, fracturing his orbital bone. Pena was not looking at the assailant at the time of the attack, and when he was hit, he immediately retreated to a nearby basement to retrieve a wooden stick to protect himself. Upon returning to the street, Pena observed the assailant’s face for a period of a few seconds before the assailant turned and walked in the other direction.

When Pena reported the attack three days later, he described the assailant as a Black man who was not much taller than him and wearing black or brown pants, a white T-shirt, tennis shoes, and a hoodie. The police showed Pena 462 mugshots, none of which depicted Watkins, and Pena indicated that he did not recognize his attacker among them. Two days later,

Pena called 911 and reported that he had spotted his attacker on the street. The police detained a man matching the description Pena gave, but Pena later informed the police that they had detained the wrong person. The next day, Pena again contacted the police and reported that he had seen his attacker on the street. When the police arrived, Pena pointed across the street to Mark Watkins. Watkins was then arrested.

At trial, the only identification evidence was the testimony of Pena, who identified Watkins as his attacker. Pena also testified that Watkins was the man he pointed out to the police on the day of Watkins' arrest and the person depicted in surveillance footage of the attack. The surveillance video introduced at trial confirmed Pena's account of how the assault happened, but the parties and the trial court agreed it was too blurry to depict the assailant's face. Defense counsel argued honest-but-mistaken misidentification.

During the charge conference, the People requested the "Witness Plus" identification charge, which is to be given where "identification is in issue" but "is not premised solely on the testimony of one witness" (CJI2d[NY] Identification—Witness Plus). That charge was appropriate, the People contended, in light of surveillance footage allegedly indicating that Watkins was the perpetrator. Defense counsel instead sought the "One Witness" identification charge, an expanded charge that includes two additional paragraphs directed at cases in which the identification rests entirely on the testimony of a single witness (CJI2d[NY] Identification—One Witness). The trial court agreed that the surveillance footage was not sufficiently probative as to identity and accordingly instructed the jury pursuant to the "One Witness" charge.

Before us, the parties agree that Watkins' identification was cross-racial in nature; they characterize Watkins as Black and Pena as non-Black Hispanic.¹ But at trial, there was no questioning on this topic or expert testimony on cross-racial identification. Defense counsel did not request inclusion of the cross-racial portion of the "One Witness" identification charge, and the court did not include it.

On appeal, Watkins argued, as relevant here, that he was deprived of the effective assistance of counsel because his trial

1. The issues raised in Judge Rivera's dissent therefore have no bearing on our resolution of this appeal (*see* Rivera, J., dissenting op at 666-667 ["(O)n appeal, the parties have identified the victim and defendant as of different races. Therefore, I assume the same"]).

attorney did not request a cross-racial identification charge. The Appellate Division affirmed, holding that Watkins' "ineffective assistance of counsel claim is unreviewable on direct appeal because it involves matters not fully explained by the record" (206 AD3d 452, 453 [1st Dept 2022]). Alternatively, the panel concluded that, "to the extent the existing record permits review," Watkins "received effective assistance under the state and federal standards" because he "has not shown that it was objectively unreasonable for counsel to refrain from requesting a jury charge on cross-racial identification" (*id.*). Noting that *Boone* had not yet been decided at the time of Watkins' trial, the panel stated that he had "not shown that such a request would have been granted at the time of the trial, or that the absence of such a charge affected the outcome of the case" (*id.*).

II.

The sole claim before us is that defense counsel was constitutionally ineffective for failing to request the cross-racial portion of the expanded eyewitness identification charge. To prevail on a claim of ineffective assistance of counsel under our State Constitution, "a defendant must establish that counsel failed to provide meaningful representation and thus deprived defendant of a fair trial" (*People v Clark*, 28 NY3d 556, 562 [2016]). The "meaningful representation" standard requires an assessment of "the evidence, the law, and the circumstances of a particular case, viewed in totality and as of the time of the representation" (*People v Baldi*, 54 NY2d 137, 147 [1981]). "Counsel's performance should be objectively evaluated to determine whether it was consistent with strategic decisions of a reasonably competent attorney" (*People v Benevento*, 91 NY2d 708, 712 [1998] [internal quotation marks and citation omitted]). The defendant bears the burden of showing both that "counsel's performance [was] constitutionally deficient" (*People v Wragg*, 26 NY3d 403, 409 [2015]), and "the absence of strategic or other legitimate explanations" for counsel's challenged actions (*People v Rivera*, 71 NY2d 705, 709 [1988]).

Unlike the federal constitutional standard, which requires a defendant to show "that there is a reasonable probability that, but for counsel's unprofessional errors, the result of the proceeding would have been different" (*Strickland v Washington*, 466 US 668, 694 [1984]), the "focus" of our state standard "is on the fairness of the proceedings as a whole" (*People v Stultz*, 2 NY3d 277, 284 [2004]). Thus, we treat prejudice as "a

significant but not indispensable element in assessing meaningful representation” (*People v Caban*, 5 NY3d 143, 155-156 [2005] [internal quotation marks omitted]). In that respect, our standard is more protective than its federal counterpart because “under our State Constitution, even in the absence of a reasonable probability of a different outcome, inadequacy of counsel will still warrant reversal whenever a defendant is deprived of fair process” (*People v Alvarez*, 33 NY3d 286, 290 [2019] [internal quotation marks and brackets omitted]).

This appeal presents an ineffective assistance of counsel claim based on a single alleged error. “A single error may qualify as ineffective assistance, but only when the error is sufficiently egregious and prejudicial as to compromise a defendant’s right to a fair trial” (*Caban*, 5 NY3d at 152; *see also People v Turner*, 5 NY3d 476, 480 [2005] [“there may be cases in which a single failing in an otherwise competent performance is so egregious and prejudicial as to deprive a defendant of his constitutional right” (internal quotation marks omitted)]). “Such cases are rare” (*Turner*, 5 NY3d at 480) and typically involve the failure to raise a defense “so clear-cut and dispositive that no reasonable defense counsel would have failed to assert it, and it must be evident that the decision to forgo the contention could not have been grounded in a legitimate trial strategy” (*People v McGee*, 20 NY3d 513, 518 [2013]; *see also Turner*, 5 NY3d at 481 [omitted defense was “clear-cut and completely dispositive”]; *People v Harris*, 26 NY3d 321, 327 [2015] [same]).

We have held that an omitted argument does not constitute a “clear-cut and completely dispositive” defense for purposes of a single-error ineffective assistance claim where its success depended on the resolution of novel questions (*People v Brunner*, 16 NY3d 820, 821 [2011]), where there was a question that remained open in this Court but a similar contention had been rejected by the Appellate Division prior to the defendant’s trial (*id.*), and where the argument did not have “clear prospects” at the time of the representation (*People v Borrell*, 12 NY3d 365, 369 [2009]). Of particular relevance here, in *People v Keschner*, we concluded that although the court’s flawed charge on accomplice liability may have constituted reversible error if preserved, the omitted argument was “not so compelling that a failure to make it amounted to ineffective assistance of counsel” (25 NY3d 704, 723-724 [2015] [internal quotation marks omitted], quoting *People v Carter*, 7 NY3d 875, 877 [2006]).

Similarly, in *People v Blake*, we concluded that, although it might have been “a mistake” not to request an adverse inference charge regarding missing evidence before such an instruction was mandatory upon request, “it was not one so obvious and unmitigated by the balance of the representational effort as singly to support a claim for ineffective assistance” (24 NY3d 78, 82 [2014]).

By contrast, in the few cases where we have granted relief on a single-error ineffective assistance of counsel claim, counsel failed to raise an argument that would have conclusively entitled the defendant to a specific action by the trial court. For example, in *People v Turner*, appellate counsel failed to raise an ineffective assistance of counsel claim that trial counsel, in turn, had omitted a meritorious statute of limitations defense. We noted that the defense, a “clear-cut and completely dispositive” one, “would have prevented the charge [against the defendant] from being submitted” to the jury (5 NY3d at 481, 484). Similarly, in *People v Harris*, trial counsel failed to seek dismissal of a time-barred charge, though doing so would have been a “certainly efficacious means of . . . avoid[ing] conviction” on that offense (26 NY3d at 325-326). Most recently, in *People v Debellis*, trial counsel failed to request a charge on the only defense supported by the trial testimony where the defendant “would have been entitled to [the] instruction” upon request and, without it, the jury was effectively precluded from “decid[ing] the case with proper consideration of the sole defense . . . advanced throughout the trial” (40 NY3d 431, 438 [2023]).

No clear entitlement to a cross-racial identification charge existed at the time of Watkins’ trial in July 2017. We had provided general guidance on identification charges in *People v Whalen*, which upheld a trial court’s decision to give a minimal identification charge instead of the more expansive one requested by defense counsel (59 NY2d 273, 278-279 [1983]). We noted there the potential for inaccuracy in visual identification evidence and cautioned that the “better practice is to grant a defendant’s request and give the expanded charge” (*id.* at 279). Nonetheless, we held that the failure to do so was not reversible error, provided that the court “gives a general instruction on weighing witnesses’ credibility and . . . states that identification must be proven beyond a reasonable doubt” (*id.*). We reached the same conclusion in *People v Knight*, again noting that the better practice is to grant a request for an

expanded identification charge but reaffirming that the refusal to do so is not reversible error where the charge given “was a correct statement of the law which sufficiently apprised the jury that the reasonable doubt standard applied to identification” (87 NY2d 873, 874 [1995]; *see also id.* at 876 [Titone, J., dissenting] [similarly describing an expanded identification charge as “a discretionary matter rather than a legal requirement” under *Whalen*]; *accord People v Lopez*, 1 AD3d 168 [1st Dept 2003]). Thus, as we explained in *Boone*, entitlement to an identification charge had previously been “always a matter for the Trial Judge’s discretion, provided that the trial court convey[ed] to the jury that the People have to establish the perpetrator’s identity beyond a reasonable doubt” (*Boone*, 30 NY3d at 536 [citations and internal quotation marks omitted]).

That brings us to the cross-racial identification charge. Prior to 2011, the expanded identification charge included in the pattern Criminal Jury Instructions (CJI), which trial courts had the discretion to modify or refuse to provide, did not include the cross-race effect among the list of factors for the jury to consider in evaluating the accuracy of an identification (CJI2d[NY] Identification—One Witness [as rev Jan. 2008]). In February 2011, the New York State Justice Task Force² recommended an instruction regarding the cross-race effect (New York State Justice Task Force, Recommendations for Improving Eyewitness Identifications at 5 [2011]). That same year, a model charge on cross-racial identification was added to the pattern identification charges in the CJI, with a notation that both the American Bar Association and the New York State Justice Task Force had recommended such a charge be given if a cross-racial identification was in issue, regardless of whether there was expert testimony on the topic of cross-racial identification (CJI2d[NY] Identification—One Witness n 7 [as rev Jan. 2011]; CJI2d[NY] Identification—Witness Plus n 6 [as rev Jan. 2011]).

In December 2015, a Judge of this Court granted leave to appeal in *Boone*, which presented the question of whether the trial court committed reversible error in denying a request for the cross-racial portion of the expanded identification charge (*see* 26 NY3d 1086 [2015]). Prior to this point in time, the Ap-

2. The Justice Task Force was created in 2009 to identify patterns and practices that may contribute to wrongful convictions and recommend measures aimed at preventing such convictions.

pellate Division had repeatedly upheld the denial of a request for the cross-racial identification charge, sometimes noting that the defense “never placed the issue in evidence during the trial” (*People v Boone*, 129 AD3d 1099, 1099 [2d Dept 2015] [upholding trial court’s denial of request for cross-racial identification charge where there had been no expert testimony or cross-examination concerning a lack of reliability of cross-racial identification]; see also *People v Best*, 120 AD3d 707, 708 [2d Dept 2014]; *People v Washington*, 56 AD3d 258, 259 [1st Dept 2008]; *People v German*, 45 AD3d 861, 861 [2d Dept 2007]; *People v Ellison*, 8 AD3d 400, 401 [2d Dept 2004]; *People v Applewhite*, 298 AD2d 136, 137 [1st Dept 2002]; *People v Jenkins*, 166 AD2d 237, 238 [1st Dept 1990]). That practice continued after leave to appeal was granted in *Boone*, including in the months shortly before Watkins’ July 2017 trial (see e.g. *People v Lee*, 151 AD3d 982, 983 [2d Dept, June 2017]; *People v Dingle*, 147 AD3d 1080, 1081 [2d Dept, Feb. 2017]). Indeed, the parties point us to no New York appellate precedent that existed at the time of Watkins’ trial holding that a trial court abused its discretion in denying a request for the cross-racial portion of the expanded identification charge.

In December 2017, approximately five months after Watkins’ trial, this Court reversed in *Boone*. We “le[ft] in place . . . the approach set out in *Whalen* and *Knight*” for “eyewitness identification charges *in general*,” reiterating that “whether to give the [expanded] charge is discretionary, but it is better practice to grant defendant’s request for such a charge” (30 NY3d at 537). Yet we concluded that “recent developments in the understanding of wrongful convictions and cross-racial eyewitness identifications . . . demand a new approach” to instructing jurors on the accuracy of cross-racial identifications in particular (*id.*). We recognized that there is now a “near consensus among cognitive and social psychologists that people have significantly greater difficulty in accurately identifying members of a different race than in accurately identifying members of their own race,” which heightens “the risk of wrongful convictions” in cases “involving cross-racial identifications” (*id.* at 526). For that reason, we held that a cross-racial identification instruction would be mandatory upon request “in a case in which a witness’s identification of the defendant is at

issue, and the identifying witness and defendant appear to be of different races” (*id.* at 535).³

Our characterization of this rule as a “new approach” to the specific challenges of cross-racial identifications is notable (*Boone*, 30 NY3d at 537). Though a cross-racial identification charge had been recommended by both the American Bar Association and the New York State Justice Task Force and added to the CJI, as Judge Troutman’s dissent notes (*see* Troutman, J., dissenting op at 656-657), this Court’s precedent had long vested the trial court with discretion over the content of an eyewitness identification charge (*see Whalen*, 59 NY2d at 279; *Knight*, 87 NY2d at 874). The Appellate Division had relied upon that precedent to consistently uphold the trial courts’ exercise of discretion to omit the cross-racial portion of the identification charge, where the defendant neither introduced expert testimony regarding the cross-race effect nor cross-examined the People’s witnesses about their ability to identify people of the defendant’s race (*see e.g. People v Boone*, 129 AD3d 1099 [2d Dept 2015]). Therefore, we cannot say that a legal argument in support of the cross-racial identification charge had “clear prospects” at the time of the representation (*Borrell*, 12 NY3d at 369) or was otherwise “so compelling that a failure to make it amounted to ineffective assistance of counsel” (*Keschner*, 25 NY3d at 723-724). Given the state of the law at the time, the decision to forgo a request for the cross-racial identification charge was not the kind of “egregious” single error that rises to the level of ineffective assistance (*Caban*, 5 NY3d at 152; *see also Clark*, 28 NY3d at 565 [trial counsel not ineffective for failing to object to practice that lower courts had sanctioned based on precedent from this Court]).⁴

3. In light of this Court’s decision in *Boone*, the CJI was amended to reflect that the jury “*should* consider,” rather than “*may* consider,” cross-racial differences (*compare* CJI2d[NY] Identification—One Witness [as rev Jan. 2011] [emphasis added], *with* CJI2d[NY] Identification—One Witness [as rev Jan. 2018] [emphasis added]).

4. Judge Troutman’s dissent notes several aspects of the identification testimony here that may raise questions about its accuracy (*see* Troutman, J., dissenting op at 660-661), and points out that in *Boone*, this Court held that refusal to give a cross-racial identification instruction when requested was an abuse of discretion, given the facts of that case (*id.* at 657-658 & n 2). That does not resolve the question before us here: whether defense counsel was ineffective for the sole reason that he did not request a similar instruction, in the face of Appellate Division precedent affirming denial of the charge under similar circumstances. Much of the dissent’s argument simply fails to grapple

(n. cont’d)

* * *

Today, as in *Boone*, we reiterate the importance of instructing jurors “to examine and evaluate the various factors upon which the accuracy of identification depends,” including the cross-racial nature, if applicable (*Boone*, 30 NY3d at 537). We continue to view the cross-racial identification charge as a powerful tool for assisting juries in determining whether there has been a mistaken identification, thereby reducing the risk of wrongful convictions caused by the cross-race effect. Still, Watkins has not shown that, as of July 2017, the failure to request a cross-racial instruction rendered his counsel’s performance constitutionally deficient; for that reason, we must affirm the decision below. We have no occasion today to opine on the viability of a similar ineffective assistance of counsel claim premised on the failure to request a cross-racial identification instruction after our decision in *Boone* made such a charge mandatory upon request.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge WILSON (concurring). I concur in the majority opinion because I believe the representation here was constitutionally sufficient. In that regard, it is important to remember that the rule we set out in *People v Boone* (30 NY3d 521 [2017]) was a rule of evidence we adopted to help improve the fairness of trials, and not a determination that the failure to give such an instruction where a cross-racial identification occurred would always violate due process. Mr. Watkins’ counsel did request and obtain the pattern expanded jury charge instructing the jury of the potential unreliability of eyewitness identifications generally, and counsel used facts in the record concerning the victim’s delay, condition and opportunity for

with this distinction, or the different legal standards applicable to each inquiry. Moreover, our holding is consistent with *Debellis*, in which the defendant was “entitled” to an instruction that defense counsel failed to request, such that “the jury was deprived” of a “charge on the only defense supported by the evidence” (40 NY3d at 438; *see* Troutman, J., dissenting op at 659-660). Here, by contrast, this Court expressly stated in *Boone* that the requirement to give an instruction upon request was “new” (30 NY3d at 537), and Watkins thus could not have been entitled to it prior to our decision. Additionally, the trial court here gave the expanded identification instruction to account for the honest-but-mistaken misidentification defense. Finally, our rejection of defendant’s single-error ineffective assistance claim rests on application of our precedent, not any concern with shielding attorneys from civil liability (*see* Troutman, J., dissenting op at 660 n 5).

observation to attack the victim's identification as erroneous. Other than counsel's failure to request the cross-racial identification charge in addition to the expanded unreliability charge, there is no claim that counsel's representation was ineffective. For these reasons, I agree with the majority that counsel's representation did not fall below the constitutional floor.

All defendants deserve better than bare constitutional sufficiency. They deserve high-quality representation—thorough, informed advocacy that fully vindicates their rights and minimizes the chance of wrongful conviction. We should want indigent defense to be funded so that counsel can routinely take the types of steps my dissenting colleagues highlight—rereading the model cross-racial charge in the pattern instructions, researching the ABA and New York State Justice Task Force recommendations contained in a footnote, and noting that our Court had heard argument on the issue and set the case for reargument—and therefore conclude that Mr. Watkins could benefit from a request for the charge in his trial, whether that meant obtaining the charge or preserving the issue for direct appeal if his request was denied.

New York's system of indigent defense is not set up to provide high-quality representation. For decades we have been walking a due process tightrope, providing such minimal support for indigent defense that the question is not whether defense counsel has put on the best possible case for a client, but whether the representation was so deficient as to require the trial to be redone. From the criminal leave applications and cases I have considered, my impression is that the larger criminal defense providers have navigated their constitutional responsibilities through a system of triage, and the smaller or independent providers have simply struggled. Though some progress has been made in recent years, in too many cases we straddle the constitutional minimum. We can and should do better.

I.

In 1963, the U.S. Supreme Court held that indigent criminal defendants in state courts possess the constitutional right to the assistance of counsel (*Gideon v Wainwright*, 372 US 335, 339-340 [1963]). However, until recently New York provided no state funding or oversight for indigent defense. Under County Law article 18-B, the provision of counsel for indigent defend-

ants was (and still is) the responsibility of each individual county. A county may choose to utilize a public defender's office or other institutional defender, or may assign counsel from a roster of private attorneys, colloquially referred to as 18-B attorneys (*see* County Law § 722). Although it was almost immediately apparent that this resulted in a fractured and unequal system with serious concerns about the quality of representation, the system persisted largely unchanged for over 40 years (*see* Final Report to the Chief Judge of the State of New York, Commission on the Future of Indigent Defense Services at 8-10 [2006] [hereinafter Kaye Commission Report]).

In response to decades of complaints, in 2003 the legislature established the Indigent Legal Services Fund (ILSF), which created for the first time a state revenue stream for assigned counsel (State Finance Law § 98-b, as added by L 2003, ch 62, § 1, part J, § 12). However, counties continued to provide the bulk of indigent defense funding, and ILSF funding was sourced largely from court-related fees rather than the general fund (*see* Kaye Commission Report at 20). That limited resource stream made little dent in the scope of what was uniformly described as an indigent defense “crisis” (*id.* at 4).

Addressing the crisis, Chief Judge Kaye commissioned a landmark report in 2006 that comprehensively chronicled the deficiencies of the indigent defense system. Due to an “acute and chronic lack of funding,” a total absence of quality control, and overwhelming caseloads, in many areas “substandard practice ha[d] become the acceptable norm” (*id.* at 16, 17, 20). The result was a “patchwork,” “severely dysfunctional” system “structurally incapable of providing each poor defendant with the effective legal representation that he or she is guaranteed by the Constitution of the United States and the Constitution and laws of the State of New York” (*id.* at 1, 3). The report recommended the haphazard 18-B system be scrapped entirely and replaced with a system in which the State would both adequately fund indigent defense and enforce performance standards (*id.* at 27-34).

Shortly thereafter, several criminal defendants filed a class-action lawsuit, *Hurrell-Harring v State*, alleging that certain New York counties commonly arraigned indigent defendants without counsel and left them unrepresented, or only nominally represented, in crucially important legal proceedings (*see Hurrell-Harring v State of New York*, 15 NY3d 8, 19-20 [2010]). While that lawsuit was pending, and partially in response to

the 2006 report, the legislature created the Office of Indigent Legal Services (ILS) with the mission of improving the quality of defense under article 18-B (Executive Law § 832, as added by L 2010, ch 56, § 1 part E, § 1). When the *Hurrell-Harring* lawsuit settled in 2014, ILS also took charge of overseeing reforms pursuant to that settlement, which included ensuring counsel at arraignment, lowering caseloads, and improving the overall quality of representation.

Although the *Hurrell-Harring* reforms were initially limited to the counties named in the lawsuit, in 2016 the legislature unanimously passed a bill that would have extended the reforms statewide and made indigent defense fully state-funded along the lines of the Kaye Commission Report (2016 NY Senate Bill S8114, 2016 NY Assembly Bill A10706). However, the Governor vetoed the legislation, citing cost concerns (Governor's Veto Message, Veto Jacket, Veto 306 of 2016). Instead, the state took on only the costs of implementing the *Hurrell-Harring* reforms statewide, leaving the baseline system of county funding in place (*see* Office of Indigent Legal Services, Statewide Plan for Implementing Quality Improvement at 3-4 [2017]; Executive Law § 832 [4], as added by L 2017, ch 59, § 1, part VVV, § 12). Although that legislation fell short of the original proposal, it was nevertheless a significant recognition of the need for state intervention to address the indigent defense crisis, and a significant step forward in improving indigent defense in New York. The legislation charged ILS with developing plans, distributing funding, and overseeing statewide implementation of the *Hurrell-Harring* reforms.

Those reforms have made a difference. ILS funding has been used by institutional defenders to hire additional attorneys and non-attorney staff, resulting in an increase in compliance with caseload standards (Office of Indigent Legal Services, Statewide Plan for Implementing Quality Improvement and Caseload Relief: Year Five Report at 6 [2023]). Several counties used state funding to create institutional public defender offices, which provide stronger and better-organized representation than rotating assigned attorneys (*id.*). Providers are increasingly able to participate in ongoing training, consult with more experienced practitioners, and purchase legal research materials—opportunities which, shockingly, cannot be taken for granted in this area (Office of Indigent Legal Services, Performance Measures Annual Report at 10 [2023]).

At the same time, many aspects of the system remain in crisis. Until 2023, pay rates for assigned counsel had stagnated

for decades at rates less than half of what lawyers could receive for other comparable work, resulting in a situation where few attorneys would take such cases and those who did were overwhelmed by crushing caseloads (see Testimony of the Office of Indigent Legal Services, Joint Legislative Hearing on the FY 2023-2024 Public Protection Budget at 3 [2023]; Douglass Dowty, *Syracuse's ability to provide Constitutionally mandated lawyers in crisis; 'symbolic boycott' planned over low pay*, Syracuse.com, Apr. 15, 2022, <https://www.syracuse.com/crime/2022/04/syracuses-ability-to-provide-constitutionally-mandated-lawyers-in-crisis-symbolic-boycott-planned-over-low-pay.html>). In 2021-2022, the New York County Lawyers Association and New York State Bar Association filed class-action lawsuits alleging that because of the low rates, individuals who were represented by 18-B lawyers consistently received constitutionally inadequate legal representation (see *New York County Lawyers Assn. v State of New York*, 2022 NY Slip Op 32476[U], *2 [Sup Ct, NY County 2022]; *New York State Bar Assn. v State of New York*, Sup Ct, NY County, index No. 160191/2022). The legislature addressed the issue last year by over doubling the pay rate for 18-B attorneys, but it may take time to see the effect of this change on the 18-B attorney pool (see County Law § 722-b, as amended by L 2023, ch 56, § 1, part GG, § 1). In addition, New York City institutional defenders face their own compensation and staffing crisis unrelated to the 18-B issue, with the resulting strain on defense attorneys leading to concerns about the “fundamental fairness” of criminal proceedings (Jonah E. Bromwich, *Hundreds Have Left N.Y. Public Defender Offices Over Low Pay*, NY Times, June 9, 2022, available at <https://www.nytimes.com/2022/06/09/nyregion/nyc-public-defenders-pay.html>). Finally, as is well-documented elsewhere, the family defense system, which has never received the same infusion of funding as criminal defense, remains in acute crisis (e.g. Franklin H. Williams Judicial Commission of the New York State Courts, Report on New York City Family Courts at 7-13 [2022]; Testimony of Lawyers for Children to the New York State Senate Committees on Judiciary and Children & Families [2023], available at <https://www.nysenate.gov/sites/default/files/admin/structure/media/manage/filefile/a/2023-11/testimony-of-lawyers-for-children.pdf>).

Even focusing solely on criminal defense, the modest gains achieved since 2017 are threatened by the failure of funding to keep pace with costs. State fiscal support for indigent defense

has remained flat in recent years despite high inflation rates. Therefore, organizations and counties that have hired staff and implemented new programs may be forced to cut back on these reforms without a cost-of-living increase (*see* Testimony of the New York State Defenders Association, Joint Legislative Public Hearings on the 2024-2025 Executive Budget Proposal at 8 [2024]). Similarly, because the recent increase in the 18-B pay rate is only 50% funded by the state, counties faced with the cost of this increase have threatened to cut back on other areas of public defense to compensate (Richard Lewis, *NYSBA Supports Funding of the Indigent Legal Services Fund*, Mar. 12, 2024, available at <https://nysba.org/nysba-supports-funding-of-the-indigent-legal-services-fund>). As noted as far back as the Kaye Commission Report, even the best-intentioned mandates will flounder if forced to compete for scarce and unpredictable county resources.

In 2006, our indigent defense system was “structurally incapable” of ensuring that each defendant would receive the constitutional minimum of “meaningful representation” (Kaye Commission Report at 3; *People v Baldi*, 54 NY2d 137, 147 [1981]). Though the system has improved, we continue to tread water above that line. Increased state funding and accountability has resulted in working conditions more often reaching what should be the baseline minimum—manageable caseloads, consistent client contact, access to research materials, and ongoing training. However, even those baselines are inconsistent and constantly under threat, with many attorneys still facing overwhelming workloads with little to no support. There is a constant threat that ineffective representation will prevent defendants from receiving a constitutionally fair trial.

Because criminal proceedings often deprive defendants of years of liberty, we can and should expect not only representation that meets the constitutional minimum, but high-quality representation—the type of representation we would hope for if the accused were a family member or friend.* Defense attorneys should have the time and resources to fully investigate cases; consult with clients, supervisors, and non-legal staff;

* The ABA has described “high quality” representation as an appropriate goal for representation in serious criminal cases, emphasizing that individuals facing deprivations of liberty deserve more than minimally effective or competent representation (ABA Ad Hoc Innocence Committee to Ensure the Integrity of the Criminal Process, *Achieving Justice: Freeing the Innocent, Convicting the Guilty* at xxv [2006]).

participate in ongoing training; and access up-to-date research materials. There should be no question of whether the lawyer will meet the constitutional minimum—only whether the lawyer can put on the best possible case for her client.

Moving from our current constitutional limbo to a system of high-quality representation would require a significantly greater commitment to fulfilling the promise of “justice for all,” recited first by schoolchildren in 1892 and set out in *Gideon* over 60 years ago. The case before us illustrates the risks of falling back on our commitment to indigent defendants, and the need to instead redouble our efforts to ensure high-quality representation.

II.

Mr. Watkins was tried in New York City in 2016-2017, before the statewide implementation of the *Hurrell-Harring* reforms. His attorney was not an institutional public defender, but an independent attorney assigned pursuant to County Law article 18-B. As noted above, due to the fact that pay for 18-B attorneys remained fixed at the 2004 rate, Mr. Watkins’ attorney likely received about half as much compensation for work on this case as he would in federal court or private practice. On that level of pay, many 18-B attorneys were unable to afford support staff, online research services, or private office space (aff of Kim Taylor-Thompson in *New York County Lawyers Assn. v State of New York*, Sup Ct, NY County, index No. 156916/2021, available at 2022 WL 22310112). Because very few attorneys were willing to work under such conditions, attorneys like Mr. Watkins’ suffered from an overwhelming caseload—panel attorneys in nearby courts report having over 100 concurrent cases (Jacob Kaye, *Assigned counsel scores pay increase—for now*, Queens Daily Eagle, Aug. 2, 2022, available at <https://queenseagle.com/all/2022/8/2/assigned-counsel-scores-pay-increase-for-now>).

Putting aside constitutional sufficiency, is it right for someone facing decades in prison to be represented by a grossly underpaid attorney with a crushing caseload? Mr. Watkins was charged with attempted first-degree assault, a class C felony, in a case that turned entirely on a single-witness, cross-racial identification. Counsel faced with a situation like this should have time to reread the CJI and carefully investigate the footnote stating that the charge was recommended by the New York State Justice Task Force and American Bar Association,

even in the absence of expert testimony. Counsel should have the bandwidth to discuss the instruction with fellow practitioners, and listen to oral argument in our pending decision in *Boone* addressing the issue. Counsel should have the resources to consider whether, even if trial courts and the Appellate Division often denied the charge without such testimony or similar foundation (*see* majority op at 642-643 [collecting cases]), the law might soon change, and to immerse himself in the research drawing a connection between mistaken cross-racial identification and wrongful conviction (*see generally Boone*, 30 NY3d at 527-530 [collecting sources]). We have failed to resource indigent criminal defense to allow that level of representation across the board.

I agree with the majority that Mr. Watkins was not denied the constitutional minimum of “meaningful representation” (*Baldi*, 54 NY2d at 147). But all defendants, including those who cannot pay for high-quality representation, deserve better than the constitutional minimum. Adjudicating ineffective-assistance cases may help to establish the floor, but cannot move us higher.

TROUTMAN, J. (dissenting). Our precedent favors a reversal on this appeal, but the majority declines to follow it despite acknowledging the heightened risk that defendant Mark Watkins was wrongly convicted for these crimes. I cannot acquiesce. We should not hesitate to rectify the injustice caused by the failure of Watkins’s trial counsel to request a cross-racial identification charge of the sort contained in New York’s Criminal Jury Instructions at the time of trial. Because the importance of instructing juries as to the dangers of cross-racial identifications was widely understood at the time of Watkins’s trial, his counsel was ineffective in failing to request such an instruction here, where the victim was a different race than the assailant, a stranger to the assailant, and the only witness in a case where there was no corroborating evidence. I therefore dissent.

I.

In October 2016, a stranger on the street struck 65-year-old David Pena on his left cheek with a hard object, which was “like a piece of cement,” fracturing Pena’s orbital bone. Pena did not see the assailant when he was attacked. Immediately after being struck, Pena retreated to a nearby basement and

retrieved a wooden stick for protection. Upon returning to the street, Pena had a few seconds to observe the assailant's face before the assailant turned and walked away in the opposite direction.

Pena reported the attack to the police three days later, describing the assailant as a Black man who was a little taller than him and wore black or brown pants, a white T-shirt, tennis shoes, and a hoodie. The police showed Pena 462 mugshots, none of which depicted Watkins. Pena stated that he did not recognize his assailant among them. Pena called 911 two days later reporting that he had spotted his assailant on the street, whom Pena described as a tall Black man wearing a hat and a blue hoodie. But after an officer detained the man matching that description, Pena told the officer that the man was not the right person, because the man was shorter and heavier than the assailant.

The next day, Pena contacted the police to again report that he had seen his assailant on the street. When the police arrived, Pena pointed out defendant Mark Watkins, who was across the street. The police then arrested Watkins.

Pena's testimony identifying Watkins as his assailant was the only evidence at trial tying Watkins to the crime. Additionally, Pena testified that Watkins was the man he pointed out to the police on the day of Watkins' arrest. Pena also identified Watkins as the person depicted in surveillance footage of the assault, even though the video was too blurry to depict the assailant's face. No other witness made an identification, and the People did not present any corroborating evidence. The sole defense offered by Watkins's counsel was Pena's honest-but-mistaken identification.

Because the surveillance footage was not probative of the assailant's identity, the trial court instructed the jury pursuant to the "One Witness" charge used in cases where the identification at issue rests entirely on the testimony of a single witness (*see* CJI2d[NY] Identification—One Witness). However, defense counsel failed to request that the court include the cross-racial portion of the "One Witness" identification charge, even though Watkins and Pena were of different races.

Watkins was subsequently convicted, upon a jury verdict, of attempted assault in the first degree, assault in the second degree, and criminal possession of a weapon in the third degree. Watkins appealed, arguing, among other things, that

he was denied effective assistance of counsel because his trial counsel failed to request a jury charge regarding cross-racial identification.

In affirming Watkins’s conviction, the Appellate Division held that Watkins’s “ineffective assistance of counsel claim is unreviewable on direct appeal because it involves matters not fully explained by the record” and, furthermore, that Watkins “received effective assistance under the state and federal standards,” because he “has not shown that it was objectively unreasonable for counsel to refrain from requesting a jury charge on cross-racial identification” (206 AD3d 452, 453 [1st Dept 2022]). The Court additionally reasoned that Watkins had “not shown that such a request would have been granted at the time of the trial, or that the absence of such a charge affected the outcome of the case” (*id.*).

II.

“Under the federal standard ineffective assistance of counsel requires both that counsel’s performance was deficient and that the deficient performance prejudiced the [defendant]” (*People v Nicholson*, 26 NY3d 813, 830 [2016] [internal quotation marks omitted], quoting *Strickland v Washington*, 466 US 668, 687 [1984]). Under our State Constitution, however, “‘[t]he core of the inquiry is whether defendant received meaningful representation’” (*id.*, quoting *People v Benevento*, 91 NY2d 708, 712 [1998]). “Our standard is more protective than the federal standard because ‘even in the absence of a reasonable probability of a different outcome, inadequacy of counsel will still warrant reversal whenever a defendant is deprived of a fair trial’” (*People v Debellis*, 40 NY3d 431, 436 [2023], quoting *People v Caban*, 5 NY3d 143, 156 [2005]). However, because defendant “bears the burden of establishing his claim that counsel’s performance is constitutionally deficient,” he “must demonstrate the absence of strategic or other legitimate explanations for counsel’s alleged failure” (*Nicholson*, 26 NY3d at 831).

“Even under the more demanding federal standard, ‘[a]n attorney’s ignorance of a point of law that is fundamental to his case combined with his failure to perform basic research on that point is a quintessential example of unreasonable performance’” (*Debellis*, 40 NY3d at 436, quoting *Hinton v Alabama*, 571 US 263, 274 [2014]). We have repeatedly held that “a failure to present a crucial defense supported by the evi-

dence constitutes ineffective assistance” (*id.*; see e.g. *People v Nesbitt*, 20 NY3d 1080 [2013]). Recently, in *Debellis* we held that a defendant was denied effective assistance of counsel where his counsel’s error in failing to request a particular jury charge deprived the defendant of “a jury charge on the only defense supported by the evidence” (40 NY3d at 438).

Here, trial counsel’s failure to request a cross-racial identification charge deprived Watkins of effective assistance of counsel. Despite the majority’s recognition of the importance of cross-racial identification charges, the majority refuses to find trial counsel ineffective because it does not view the “legal argument in support of the cross-racial identification charge” as having been “so compelling that a failure to make it amounted to ineffective assistance of counsel” (majority op at 644 [internal quotation marks omitted]). The majority tries to distinguish this case from cases like *Debellis* because, at the time of trial, this Court was a few months away from issuing its decision in *People v Boone* holding that whenever “identification is an issue in a criminal case and the identifying witness and defendant appear to be of different races, upon request, a party is entitled to a charge on cross-racial identification” (30 NY3d 521, 526 [2017]). In reaching its conclusion, however, the majority pays short shrift to the generally understood importance and prevalence of cross-racial identification charges at the time of Watkins’s trial, before *Boone* was decided.

As we explained in *Boone*, even prior to our decision in that case

“[o]ur trial level courts have recognized the general scientific acceptance of the cross-race effect (see e.g. *People v Norstrand*, 35 Misc 3d 367 [Sup Ct, Monroe County 2011]; *People v Williams*, 14 Misc 3d 571 [Sup Ct, Kings County 2006]; *People v Radcliffe*, 196 Misc 2d 381 [Sup Ct, Bronx County 2003], *affd* 23 AD3d 301 [1st Dept 2005]). This Court too has had occasion to observe the significance of the effect. In *People v Abney* (13 NY3d 251 [2009]), we held that a trial court erred in refusing, without the benefit of a *Frye* hearing, to allow an expert witness to testify on cross-racial identification and other factors affecting accuracy of identification (see *id.* at 268; see also *People v LeGrand*, 8 NY3d 449, 454 [2007])” (*Boone*, 30 NY3d at 528-529 [Fahey, J.]).

Consequently, prior to this Court's decision in *Boone* the importance of a cross-racial identification charge was evident in cases involving eyewitness identifications of people of different races. Notably, the importance of such a charge was not at issue in *Boone*, rather the issue was simply whether a court had discretion to deny a request for the charge in certain circumstances. As the *Boone* Court pointed out, for many years before *Boone* was decided, courts and scholars recognized the general scientific acceptance of the cross-race effect and the benefit of jury charges on cross-racial identifications. This is information that Watkins's counsel should have known at the time of trial in order to provide effective representation.¹

Indeed, as early as 2008, the ABA recommended that courts administer cross-racial identification charges in any applicable case, even without testimony from an expert, due to the widespread acceptance of the science. Then, in 2011, for the same reasons, the New York State Justice Task Force recommended the charge, also irrespective of whether an expert testified. Additionally, in 2011, six years before Watkins's trial, New York's model Criminal Jury Instructions (CJI) added a new subsection into the One Witness charge—a cross-race identification instruction, which read as follows:

“You may consider whether there is a difference in race between the defendant and the witness who identified the defendant, and if so, whether that difference affected the accuracy of the witness's identification. Ordinary human experience indicates that some people have greater difficulty in accurately identifying members of a different race than they do in identifying members of their own race. With respect to this issue, you may consider the nature and extent of the witness's contacts with members of the defendant's race and whether such contacts, or lack thereof, affected the accuracy of the witness's identification. You may also consider the various factors I have detailed which relate to the circumstances surrounding the identification (and you may consider whether there is other evidence which supports the accuracy of the identifica-

1. The fact that Watkins's trial took place while the appeal in *Boone* was pending in this Court is relevant, if at all, only to further demonstrate why trial counsel should have been aware of the importance of requesting a cross-racial identification charge in these circumstances.

tion)” (CJI2d[NY] Identification—One Witness [as rev Jan. 2011]).

Given that at the time of Watkins’s trial the importance and availability of cross-racial identification charges was well documented in New York, even if

“[a] reasonable defense lawyer at the time of [Watkins’s] trial might have doubted that [the court would always grant a cross-racial identification charge] . . . [,] no reasonable defense lawyer could have found [the likelihood of the charge being granted to be] so weak as to be not worth raising[;] [y]et [Watkins’s] trial counsel did not raise it” (*People v Turner*, 5 NY3d 476, 482-483 [2005]).

Of course, it is true that at the time of Watkins’s trial we had long vested trial courts with discretion over the content of eyewitness identification charges (*see People v Knight*, 87 NY2d 873 [1995]; *People v Whalen*, 59 NY2d 273, 279 [1983]), while noting that “the better practice is to grant a defendant’s request and give the expanded charge” (*Whalen*, 59 NY2d at 279). Indeed, the Appellate Division had at times relied upon that precedent to uphold a trial court’s exercise of discretion to omit the cross-racial portion of the identification charge where the defendant neither introduced expert testimony regarding the cross-race effect nor cross-examined the People’s witnesses about their ability to identify people of the defendant’s race (*see e.g. People v Boone*, 129 AD3d 1099 [2d Dept 2015]).

But that does not mean that at the time of Watkins’s trial a court could not abuse its discretion as a matter of law by failing to grant a cross-racial identification charge under facts similar to this case, or that counsel reasonably should have been unaware of the availability of the charge. Indeed, on similarly concerning facts, the concurrence in *Boone* would have held “that the trial court abused its discretion in denying defendant’s request for a cross-racial identification charge” (30 NY3d at 538 [Garcia, J., concurring]).²

2. Notably, the concurrence’s disagreement with the majority in *Boone* was not over the generally understood importance of requesting cross-racial identification charges when relevant. Rather the concurrence disagreed with the majority’s creation of what the concurrence denominated “a new rule that purports to ‘require[]’ a cross-racial identification charge upon request” (30 NY3d at 538). Additionally, the majority in *Boone* did not disagree with the concurrence that, under already existing precedent, the trial court abused

(n. cont’d)

Thus, even under the discretionary approach applied pre-*Boone* and at the time of Watkins's trial, Watkins was entitled to a cross racial identification charge, if it had been requested, and it would have been an abuse of discretion for the court to deny it. This is apparent because the facts of this case are even more concerning than those in *Boone*, given that in *Boone* there were two eyewitnesses (*see id.*), and here there was only one.³

Consequently, despite what the majority contends, this case is far more like *Debellis* than any of the cases relied on by the majority.⁴ Like the defendant in *Debellis*, Watkins "would have been entitled to [the] jury charge" that his counsel failed to request (40 NY3d at 437), inasmuch as the court would have abused its discretion as a matter of law by denying the request. Furthermore, here "attorney error deprive[d] . . . defendant of a jury charge on the only defense supported by the evidence" (*id.* at 438), in this case the defense of honest-but-mistaken identification. Thus, "it cannot be said that the defendant received a fair trial" (*id.* at 438-439). And this unfairness cannot be contested by contending that Watkins is "confus[ing] 'true ineffectiveness with mere losing tactics and accord[ing] undue significance to retrospective analysis' " (*id.* at 439). "No reasonable strategy could have supported counsel's failure to request a jury charge on [the cross-race effect]" due to the tremendous risk of misidentification here (*id.*).

its discretion as a matter of law. Rather, the majority decided to make a broader holding because "the recent developments in the understanding of wrongful convictions and cross-racial eyewitness identifications described above demand a new approach" (*id.* at 537).

3. The irony of the majority's position is that they are using the greater protections against mistaken identifications afforded by *Boone* as the ground for providing Watkins with less protection from ineffective assistance of counsel (*see* majority op at 644-645 n 4). This is the result of the majority's misunderstanding of the state of the law at the time of *Boone*. Although requiring a cross-racial identification charge whenever requested was a "new" approach created by the *Boone* majority, the *Boone* concurrence recognized that, even under existing law, the defendant in that case was entitled to the charge. The difference between the *Boone* majority and the *Boone* concurrence, therefore, was that the majority determined that cross-racial identification charges are a blanket entitlement, whereas the concurrence thought that entitlement to the charge should be determined on a case-by-case basis (*see e.g.* 30 NY3d at 545 [Garcia, J., concurring]).

4. Contrary to the cases relied upon by the majority, at the time of Watkins's trial the existence of the cross-race phenomena and the availability of a cross-racial identification charge was not a "novel question[]," and there is no question that the use of the instruction would have been compelling given the facts here (majority op at 640).

However, the majority claims that the reasonableness of defense counsel's failure to request a cross-racial identification charge should be judged by particular instances in which the Appellate Division found a court's denial of a cross-racial identification instruction did not amount to an abuse of discretion (*see* majority op at 644 n 4). But even assuming for the sake of argument that this is correct, the focus should be on the precedent of the Appellate Division, First Department, because that was the appellate court with direct jurisdiction over Watkins's trial.

However, the First Department cases relied upon by the majority for that claim were outdated at the time of Watkins's trial in 2017, and thus they have no bearing on this dispute. Two of those cases were decided 6 to 18 years prior to the ABA's 2008 recommendation that courts administer cross-racial identification charges even without expert testimony on the cross-race effect (*see* majority op at 642-643, citing *People v Applewhite*, 298 AD2d 136, 137 [1st Dept 2002], and *People v Jenkins*, 166 AD2d 237, 238 [1st Dept 1990]). And all of the First Department cases cited by the majority were decided years to decades before the New York State Justice Task Force's and the CJI's recommendations in 2011 (*see id.*). In fact, the most recent First Department case cited by the majority was a 2008 case where, unlike here, corroborating evidence supported the victim's identification of the defendant, and the First Department concluded that the trial court did not abuse its discretion in denying the charge (*see id.*; *People v Washington*, 56 AD3d 258, 259 [1st Dept 2008]).

Even putting aside the irrelevance of the First Department cases cited by the majority, an erroneous determination by the Appellate Division does not make ineffective assistance of counsel somehow effective (*compare Debellis*, 40 NY3d at 438 [holding that, just because "a court believed that (defendant's) testimony was far-fetched, that cannot justify his lawyer's (failure to) request . . . an instruction that fit the very theory of the case"], *with People v Debellis*, 205 AD3d 555, 555 [1st Dept 2022] ["There was no reasonable view of the evidence that defendant's conduct satisfied the requirements of that statute, and as a result counsel's failure to request such an instruction did not constitute ineffective assistance"]). And without a record of counsel's request for a jury instruction, a court's error in

denying the instruction or in upholding that denial will not be preserved.⁵

Even the majority must acknowledge “the cross-racial identification charge as a powerful tool for assisting juries in determining whether there has been a mistaken identification, thereby reducing the risk of wrongful convictions caused by the cross-race effect” (majority op at 645). Here, the sole evidence linking Watkins to the assault was the victim’s cross-racial identification; the sole defense theory was honest-but-mistaken identification; and the identification testimony came exclusively from Pena, who had no prior familiarity with the assailant, was of a different race than the assailant, and had only a few seconds under the stress of a violent assault to observe the assailant. Furthermore, the cross-racial identification charge may well have been the dispositive factor providing the jury with a reasonable doubt that Pena accurately identified Watkins as the assailant, given the various other factors undercutting Pena’s identification in this case:

- The identification took place across the street six days after the incident;
- Watkins did not confess or make any statements to the police;
- There was no video footage showing the assailant’s face;
- Pena had been struck around the eye socket before he initially viewed the assailant at a distance of 15-20 feet away;

5. I agree with the concurrence that “[w]e should want indigent defense to be funded” to ensure that defendants are supplied with competent counsel that is not overworked and underfunded (Wilson, Ch. J., concurring op at 646). In writing this dissent, I do not mean to disparage underfunded counsel for indigent defendants. Like all people, attorneys sometimes make mistakes and fail to take reasonable action, especially when they are overworked and underfunded. Those failures certainly should not subject defense counsel to draconian sanctions, which “could have a chilling effect on the willingness of the already strapped defense bar to represent indigent accused” (*Dombrowski v Bulson*, 19 NY3d 347, 352 [2012]). For that reason, we held in *Dombrowski* that a “plaintiff [did] not have a viable claim for damages” against defense counsel for malpractice, even though the attorney provided ineffective assistance of counsel (*id.* at 352). Given such protections against liability, there is no need in this State to lower the bar of effective representation as a means of artificially decreasing attorneys’ fallibility, especially when it leads to defendants being deprived of fair trials. When a defendant is denied a fair trial due to ineffective representation, we should correct the error, even if that error has its roots in a broader systemic problem.

- During Pena's confirmatory identification, his orbital bone injury caused him dizziness, headaches, and facial swelling, along with his "forgetting things."

These concerns are compounded by the fact that, as understood by courts and scholars even before Watkins's trial,

"[M]ost eyewitnesses think they are telling the truth even when their testimony is inaccurate, and because the eyewitness is testifying honestly (i.e., sincerely), he or she will not display the demeanor of the dishonest or biased witness. Instead, some mistaken eyewitnesses, at least by the time they testify at trial, exude supreme confidence in their identifications" (*Boone*, 30 NY3d at 531, quoting *State v Henderson*, 208 NJ 208, 236, 27 A3d 872, 889 [2011]; see Jules Epstein, *The Great Engine That Couldn't: Science, Mistaken Identifications, and the Limits of Cross-Examination*, 36 Stetson L Rev 727, 772 [2007]).

Accordingly, trial counsel's neglecting to request a cross-racial identification charge was "a failure to present a crucial defense supported by the evidence[, which] constitute[d] ineffective assistance" (*Debellis*, 40 NY3d at 436). I would therefore reverse the Appellate Division and order a new trial.

RIVERA, J. (dissenting). Race is a social construct.

Science does not support the popularly-held idea that race is a fixed human characteristic immune from societal reinterpretation and manipulation. Geneticists agree the "differences that we see in skin color do not translate into widespread biological differences that are unique to groups" (see Natalie Angier, *Do Races Differ? Not Really, Genes Show*, NY Times, Aug. 22, 2000 [discussing geneticists' findings]; see also Ian F. Haney Lopez, *The Social Construction of Race: Some Observations on Illusion, Fabrication, and Choice*, 29 Harv Civ Rts-Civ Liberties L Rev 1 [1994]). In other words, under the skin we are more alike than different. But while human classifications based on race have limited biological significance, racial taxonomies bear heavy legal weight. The most obvious example is the use of "whiteness" and "the precept of black inferiority and white superiority" to legitimize the enslavement of Africans and people of African descent (see A. Leon Higginbotham, Jr., *The Precept of Inferiority*, in *Shades of Freedom, Racial Politics and Presumptions of the American Legal Process* at 9 [1996];

see also Nancy DiTomaso, *The invention of race and the persistence of racial hierarchy: White privilege, White supremacy, and White colorblindness*, 18 Soc & Personality Psych Compass [Apr. 2024] [explaining that there was no “meaningful concept” of race until “slavery was racialized and codified into law”]; Melanie E.L. Bush, *Race, Ethnicity, and Whiteness*, 29 Inst of Race Relations 1, 9 [framing “(r)acial domination” as a tool in “the process of nation-state building”]. Racial classifications retained their legal significance, even after the end of slavery, with the rise of Jim Crow and de jure and de facto racial discrimination (see James Beeby & Donald G. Nieman, *The Rise of Jim Crow, 1880-1920*, in *A Companion to the American South* at 336 [John B. Boles ed 2002] [citing “the emergence of white demagogues and their exploitation of race” and “the growth of pseudo-scientific racism” as factors contributing to the “development of segregation”]). As such, racial identity has been contested and reframed within our legal system (Cheryl I. Harris, *Equal Treatment and the Reproduction of Inequality*, 69 Fordham L Rev 1753, 1762-1763 [2001]). Indeed, “the law has always been deeply implicated in assigning, negotiating and defining race,” and legal conceptualizations of race have changed over time (*id.*).

At one time, certain national origin groups were treated as nonwhites. For example, “the Irish were first categorized as a sort of racial other, neither white nor black,” and were “racialized” according to cultural stereotypes (David A. Gerber & Alan M. Kraut, *Becoming White: Irish Immigrants in the Nineteenth Century*, in *American Immigration and Ethnicity* at 161, 162 [2005]). “Gradually . . . through a distribution of political power and economic power,” the Irish began to be “admitted into the ranks of American white people” (*id.*). Italian immigrants were similarly considered a racial “other,” often working in jobs “coded as ‘black’ by local customs” and “mobiliz[ing] alongside people of color” (Jennifer Guglielmo, *Introduction: White Lies, Dark Truths*, in *Are Italians White? How Race is Made in America* at 11 [Jennifer Guglielmo & Salvatore Salerno eds 2003]). Decades of “state-sanctioned white supremacy” gave “Italians, eastern European Jews, and other southern and eastern Europeans, who may not have identified as white, a powerful reason to assert such an identity” (*id.* at 12).

Spanish-speaking persons from the Caribbean and Latin America and their generational descendants residing in the United States have a similar history of racialization. Mexicans

were classified and discriminated against as a non-white population, subject to segregation in school and excluded from juries (see Judith Pérez-Soria, *Mexican immigrants in the United States: A review of the literature on integration, segregation and discrimination*, 18 Estudios Fronterizos 1 [2017]; *Hernandez v Texas*, 347 US 475, 480-481 [1954] [finding that “systematic exclusion” from jury service of “persons of Mexican descent” violated equal protection]; Clare Sheridan, “Another White Race:” *Mexican Americans and the Paradox of Whiteness in Jury Selection*, 21 L & Hist Rev 109 [2003] [discussing *Hernandez*]; *Westminster School Dist. of Orange County v Mendez*, 161 F2d 774, 781 [9th Cir 1947] [holding that “segregation of school children of Mexican descent” violated equal protection and due process]). And Puerto Ricans have been racialized as a justification for continuing the colonial status of Puerto Rico (see *De Lima v Bidwell*, 182 US 1 [1901]; *Downes v Bidwell*, 182 US 244 [1901]). In the Insular Cases, the United States Supreme Court “describe[d] inhabitants of Puerto Rico and other unincorporated territories as ‘savage tribes’ and ‘alien races’” in order to deny their “equal humanity” (Natalie Gomez-Velez, *What U.S. v. Vaello-Madero and the Insular Cases Can Teach About Anti-CRT Campaigns*, 94 NY St BJ 20, 21 [Mar./Apr. 2022]). Recently, in *United States v Vaello-Madero*, Justice Gorsuch criticized the Court for “leav[ing] the Insular Cases on the books,” observing that the cases “are shameful” and “claim support in academic work of the period, ugly racial stereotypes, and the theories of Social Darwinists” (596 US 159, 184-186 [Gorsuch, J., concurring]). Justice Sotomayor agreed that “it ‘is past time to acknowledge the gravity’ of the error of the Insular Cases,” which “were premised on beliefs both odious and wrong” (*id.* at 194 n 4 [Sotomayor, J., dissenting]).

The terms “Hispanic,” “Latino,” “Latina,” Mexican American, Dominican American and similar formulations have been deployed to emphasize ethnicity and national origin as a political and social organizing category. Those terms have acquired legal meaning (see Office of Management and Budget, Revisions to OMB’s Statistical Policy Directive No. 15: Standards for Maintaining, Collecting, and Presenting Federal Data on Race and Ethnicity, 89 Fed Reg 22182-01 [Mar. 29, 2024] [setting standard definitions of races and ethnicities]; U.S. Equal Employment Opportunity Commission, EEOC Enforcement Guidance on National Origin Discrimination, [Nov. 2016] [defining “Hispanic” as an “ethnic or national origin group()”

for purposes of employment discrimination claims]; *Figueroa v Pompeo*, 923 F3d 1078, 1083 [DC Cir 2019] [stating that “(u)nder established law, Title VII covers discrimination based on Hispanic or Latino ethnicity”]). This has complicated official racial categorization of what is ostensibly an ethnic population—the federal government has adopted a position that Hispanics can be of any race (United States Census Bureau, *U.S. Census Bureau Guidance on the Presentation and Comparison of Race and Hispanic Origin Data* [Dec. 2021], available at <https://www.census.gov/topics/population/hispanic-origin/about/comparing-race-and-hispanic-origin.html>).

“Since the United States legislatures and agencies decided to classify people who trace their national origin to . . . any . . . country that was once ruled by Spain as ‘Hispanic,’ courts have been struggling to determine exactly who belongs in the classification” and have been unable “to define [the term] consistently or accurately” (Lisette E. Simon, *Hispanics: Not a Cognizable Ethnic Group*, 63 Univ of Cincinnati L Rev 497, 506 [1994]). For example, some legislatures and agencies include persons from Portuguese-speaking countries, while others limit the term to apply only to persons of “Mexican, Puerto Rican, Cuban, Central or South American” descent (*id.* at 508-509). Until recently, the Census Bureau—as required by the Office of Management and Budget (OMB)—“define[d] ‘Hispanic or Latino’ as a person of Cuban, Mexican, Puerto Rican, South or Central American, or other Spanish culture or origin *regardless of race*” (United States Census Bureau, *About the Hispanic Population and its Origin* [Apr. 15, 2022] [emphasis added], available at <https://www.census.gov/topics/population/hispanic-origin/about.html> [last accessed Apr. 29, 2024]). That definition is still evolving. Earlier this year, the OMB revised it to “individuals of Mexican, Puerto Rican, Salvadoran, Cuban, Dominican, Guatemalan, and other Central or South American or Spanish culture or origin” (Revisions to OMB’s Statistical Policy Directive No. 15, 89 Fed Reg at 22188).

In *Village of Freeport v Barrella*, the Second Circuit attempted to “unravel[] the legal definitions of ‘race’ and ‘Hispanic’ ” under title VII, citing the government’s “less-than-straightforward use of those terms” (814 F3d 594, 602 [2d Cir 2016]). The Court also observed that mainstream media “sometimes identifies ‘Latinos’ with ‘blacks,’ and at other times rounds ‘Hispanic’ to ‘white’ ” (*id.* at 602-603). “As a result, courts and litigants alike have struggled with the proper

characterization” of discrimination claims by “Hispanic” people, with some courts treating “Hispanic” as a “protected class . . . without saying whether that protection derives from race or national origin” (*id.* at 606, citing *de la Cruz v New York City Human Resources Admin. Dept. of Social Servs.*, 82 F3d 16, 20 [2d Cir 1996]). The *Barrella* court held that, for the purposes of title VII claims, it would treat “Hispanic” as an ethnic group (*id.* at 607). The court reasoned that, although it may not “resonate with Hispanics themselves,” the Census Bureau refers to “Hispanic or Latino” as an ethnicity, and the Supreme Court has long defined “racial discrimination” within the section 1981 context to include discrimination based on “ancestry or ethnic characteristics” (*id.* at 602, 605-606). The court acknowledged the issue is “complicated [and] vexed,” and thus held “only that for purposes of Title VII, ‘race’ encompasses ethnicity” (*id.* at 606-607).

In *People v Hernandez*, this Court affirmed the denial of a *Batson* challenge regarding two Latino jurors who indicated they were fluent in Spanish (75 NY2d 350 [1990], *affd* 500 US 352 [1991]). The prosecutor claimed he was “not certain as to whether [the jurors were] Hispanics,” but felt that their Spanish fluency “might create difficulties in their accepting the official court interpreter’s translation of the testimony of Spanish-speaking witnesses” (*id.* at 354). The Court accepted that explanation as a “legitimate neutral ground” for a peremptory strike (*id.* at 356). Amici in that case, the Mexican American Legal Defense and Educational Fund and the Commonwealth of Puerto Rico, argued that “disparate treatment based upon the linguistic identity of Hispanics equals national origin discrimination” because “Hispanics . . . retain their sociolinguistic identity” and “English-Spanish bilingualism” is so common as to be an “identifying characteristic” (brief of amici curiae in support of petitioner at 4-5). Amici framed proficiency in Spanish as a “common attribute” of people with a shared Hispanic social or cultural identity, not the language of a single race (*id.* at 16).

Why does any of this matter to this appeal? First, because defendant claims he was denied meaningful legal representation because his trial counsel did not request a cross-racial jury charge. Resolution of that claim is difficult because the record is unclear as to the victim’s demographic identity. The victim testified that he was born in the Dominican Republic and lived there until 1989, when he relocated to Puerto Rico and later

New York City. When the investigating officer took the stand, defense counsel asked him the race of the complainant, and the officer responded “Hispanic.” But, as already discussed, “Hispanic” is not a racial category.

Second, to the extent defendant relies on *People v Boone*, we made clear that our holding there was limited to “cross-racial identification[s]” (30 NY3d 521, 526 [2017] [emphasis added]). *Boone* involved a black defendant and “a single white witness” (*id.* at 529). Citing studies on cross-race effect, we held that “when identification is an issue in a criminal case and the identifying witness and defendant *appear* to be of different *rac*es, upon request, a party is entitled to a charge on cross-racial identification” (*id.* at 526 [emphasis added]). Those studies conclude that the cross-race effect has its genesis during a person’s early development and affects their perceptions in adulthood (S.G. Young et al., *Perception and Motivation in Face Recognition: A Critical Review of Theories of the Cross-Race Effect*, 16 *Personality & Soc Psych Rev* 116, 121-124 [2011] [reviewing “developmental evidence” showing that “early experience ‘tunes’ face processing” to same-race faces, and cross-race effect may actually “be reversed by extensive childhood experience” with cross-race faces]). We expressly left open the question whether the same rule applies where the witness and defendant are from different ethnic or national origin groups, and to what extent racial self-identification matters for purposes of the analysis.

Against this backdrop, the investigating officer’s description of the victim as “Hispanic” cannot be dispositive as to whether the victim was of a different race than defendant for cross-racial identification purposes. As for the victim’s description, racial and ethnic identity are nuanced throughout the Caribbean and Latin America. Latinos, and those who identify as Afro-Latinos, reference a diasporic history. In the Dominican Republic, where the victim was born, “[e]stimates of Afro-descent . . . range from about a quarter to nearly 90% of the population depending on whether the estimates include those who identify as ‘indio,’ a group that includes many nonwhites and mixed-race individuals with African ancestry” (Gustavo López & Ana Gonzalez-Barrera, *Afro-Latino: A deeply rooted identity among U.S. Hispanics*, Pew Research Center [Mar. 1, 2016, updated May 2, 2022]). One survey placed the percentage of white Dominicans—people of predominant or full European descent—at less than 18% (Fondo de Población de

las Naciones Unidas, *Breve Encuesta Nacional de Autopercepción Racial y Étnica en la República Dominicana* [Sept. 2021]). Thus, describing the victim as “Hispanic” tells us nothing about his self-identification or his socially constructed race or appearance. How and why the victim may or may not identify as a member of a different racial group from defendant are unknown. However, on appeal, the parties have identified the victim and defendant as of different races. Therefore, I assume the same, and the question left open in *Boone* must be answered another day.

The majority concludes that, at the time of defendant’s trial, “a legal argument in support of the cross-racial identification charge” was not “so compelling that a failure to make it amounted to ineffective assistance of counsel” (majority op at 644). I disagree and join in full Judge Troutman’s well-reasoned dissent. As my colleague explains, courts and scholars recognized the cross-race effect long before we decided *Boone*, and since 2011, the Criminal Jury Instructions has recommended, where applicable, a cross-racial identification instruction. Therefore, “the importance of instructing juries as to the dangers of cross-racial identifications was widely understood” at the time of defendant’s trial (Troutman, J., dissenting op at 652). Accordingly, defense counsel had a basis to request that the jury be given a cross-racial identification charge (*id.* at 658).

Chief Judge WILSON and Judges GARCIA, SINGAS and CANNATARO concur, Chief Judge WILSON in a concurring opinion. Judge TROUTMAN dissents in an opinion, in which Judge RIVERA concurs in a separate dissenting opinion.

Order affirmed.

[251 NE3d 1226, 227 NYS3d 226]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MATTHEW CORR, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BRYAN McDONALD, Appellant.

Argued May 16, 2024; decided June 20, 2024

SUMMARY

APPEAL, in the first above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 29, 2022. The Appellate Division affirmed an order of the Supreme Court, Kings County (Guy J. Mangano, Jr., J.), which had, after a hearing, designated defendant a level one sex offender pursuant to Correction Law article 6-C.

APPEAL, in the second above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered July 20, 2022. The Appellate Division affirmed an order of the Supreme Court, Kings County (Guy J. Mangano, Jr., J.), which had, after a hearing, designated defendant a level one sex offender pursuant to Correction Law article 6-C.

People v Corr, 208 AD3d 136, affirmed.

People v McDonald, 207 AD3d 669, affirmed.

HEADNOTE

Crimes — Sex Offenders — Sex Offender Registration Act — No Credit for Time Registered as Sex Offender in Another State

The phrase “initial date of registration” in Correction Law § 168-h (1), which requires sex offenders classified in the lowest risk category under the Sex Offender Registration Act (SORA)—a level one risk not designated a sexual predator, sexually violent offender, or predicate sex offender—to register for a term of 20 years “from the initial date of registration,” refers to the date when an offender first registers under SORA, not the date an offender is required to register under the laws of another state. Accordingly, the statute does not entitle sex offenders who are classified in the lowest risk category upon relocating to New York to credit for their time registered as sex offenders under the laws of other states. The meaning of the phrase “initial date of registration” cannot be discerned by reading Correction Law § 168-h (1) in isolation. In Correction Law § 168-f (2), which sets forth a registrant’s annual verification requirements, the phrase “initial registration date” expressly references the offender’s registration under SORA. Construing the statute as a whole, the statute’s subsequent use of the materially identical phrase “initial date of registration” is understood to have the same meaning. In ad-

dition, because “registration,” as the term is used in Correction Law § 168-i, requires interaction with a New York agency, the “initial date of registration” must refer to the date the offender first registers in New York. Nothing in SORA provides or even arguably suggests that the legislature intended for an offender’s registration in another state to have any effect on the conditions of registration in New York. If credit is to be awarded for time spent on sex offender registries in other states, it is for the legislature to make those policy determinations, pass the relevant law, and delegate any rulemaking authority.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Mentally Impaired Persons §§ 131, 133–135.
McKINNEY’S, Correction Law §§ 168-f (2); 168-h (1); 168-i.
NY JUR 2d Penal and Correctional Institutions §§ 386,
387, 391.

ANNOTATION REFERENCE

See ALR Index under Sex Offender Registration and Notification.

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POINTS OF COUNSEL

Patricia Pazner, Appellate Advocates, New York City (Ava C. Page of counsel), for appellant in the first above-entitled action. Failing to credit Mr. Corr with the three-year, four-month period he was lawfully registered as a low risk in Massachusetts towards New York’s 20-year registration period for low-risk individuals contravenes well-established principles of statutory interpretation, contradicts common New York court practice explicitly authorized by the federal law that engendered the Sex Offender Registration Act (SORA) (Correction Law art 6-C), and raises grave constitutional concerns under the Equal Protection, Due Process, and Privileges and Immunities Clauses. (People v McGarghan, 83 AD3d 422; People ex rel. Negron v Superintendent, Woodbourne Corr. Facility, 36 NY3d 32; People ex rel. McCurdy v Warden, Westchester County Corr. Facility, 36 NY3d 251; People v Anonymous, 34 NY3d 631; People v Roberts, 31 NY3d 406; People v Robinson, 95 NY2d 179; Majewski v Broadalbin-Perth Cent. School Dist., 91 NY2d

577; *Myers v Schneiderman*, 30 NY3d 1; *People v Ocasio*, 28 NY3d 178; *People v Brown*, 33 NY3d 316.)

Eric Gonzalez, District Attorney, Brooklyn (Anthea H. Bruffee and Leonard Joblove of counsel), for respondent in the first above-entitled action. Both lower courts correctly held that defendant was not entitled to an order subtracting from his required duration of sex offender registration in New York the period of time during which defendant apparently had been registered under another state's sex offender registration statute. (*Matter of Avella v City of New York*, 29 NY3d 425; *People v Talluto*, 39 NY3d 306; *People v Jones*, 25 NY3d 57; *Matter of Doe v O'Donnell*, 86 AD3d 238; *People v Thomas*, 33 NY3d 1; *Patrolmen's Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205; *Matter of Albany Law School v New York State Off. of Mental Retardation & Dev. Disabilities*, 19 NY3d 106; *Doe v Pataki*, 120 F3d 1263; *People v Alemany*, 13 NY3d 424; *People v Arotin*, 19 AD3d 845.)

New York City Bar Association, New York City (Nicole P. Geoglis, Alexander Lesman, Zachary Margulis-Ohnuma, Alan Rosenthal and Stephanie Holmes of counsel), for New York City Bar Association, amicus curiae in the first above-entitled action. I. In evaluating whether the statutory interpretation that prevailed in the courts below is reasonable and comports with sound public policy, it is appropriate to consider the expressed purpose of the Sex Offender Registration Act (SORA) (Correction Law art 6-C) and whether extended registration would serve it. (*Matter of Albany Law School v New York State Off. of Mental Retardation & Dev. Disabilities*, 19 NY3d 106.) II. The interpretation of Correction Law § 168-h that prevailed in the courts below irrationally and unfairly subjects people who have moved to New York after time on another registry to the burden of additional years of registration, in contravention of the 20-year period prescribed by the legislature. (*People v Mingo*, 12 NY3d 563; *McKune v Lile*, 536 US 24; *Smith v Doe*, 538 US 84; *People v Diaz*, 150 AD3d 60; *Doe v Pataki*, 120 F3d 1263.)

Restorative Action Alliance, Inc., Katonah (Christiana Prater-Lee and Jill K. Sanders of counsel), for Restorative Action Alliance, amicus curiae in the first above-entitled action. I. The Second Department's interpretation runs counter to the Sex Offender Registration Act's (SORA's) (Correction Law art 6-C) stated purpose of ensuring public safety. (*People v Alemany*, 13 NY3d 424; *Doe v Pataki*, 120 F3d 1263; *Matter of North v Board*

of *Examiners of Sex Offenders of State of N.Y.*, 8 NY3d 745; *People v Diack*, 24 NY3d 674; *People v Windham*, 10 NY3d 801; *People v Williams*, 148 AD3d 540; *People v Diaz*, 150 AD3d 60, 32 NY3d 538.) II. The Second Department's interpretation violates registered persons' equal protection guarantees. (*Myers v Schneiderman*, 30 NY3d 1; *Matter of State of New York v Myron P.*, 20 NY3d 206; *Saenz v Roe*, 526 US 489; *Matter of Dewine v State of N.Y. Bd. of Examiners of Sex Offenders*, 89 AD3d 88; *People v McGarghan*, 83 AD3d 422; *People v Hoyos-Sanchez*, 147 AD3d 701.) III. The personal harms individuals now face from the Second Department's inequitable rule.

New York City Bar Association, New York City (Nicole P. Geoglis, Alexander Lesman, Zachary Margulis-Ohnuma, Alan Rosenthal and Stephanie Holmes of counsel), for New York City Bar Association, amicus curiae in the first and second above-entitled actions. I. In evaluating whether the statutory interpretation that prevailed in the courts below is reasonable and comports with sound public policy, it is appropriate to consider the expressed purpose of the Sex Offender Registration Act (SORA) (Correction Law art 6-C) and whether extended registration would serve it. (*Matter of Albany Law School v New York State Off. of Mental Retardation & Dev. Disabilities*, 19 NY3d 106.) II. The interpretation of Correction Law § 168-h that prevailed in the courts below irrationally and unfairly subjects people who have moved to New York after time on another registry to the burden of additional years of registration, in contravention of the 20-year period prescribed by the legislature. (*People v Mingo*, 12 NY3d 563; *McKune v Lile*, 536 US 24; *Smith v Doe*, 538 US 84; *People v Diaz*, 150 AD3d 60; *Doe v Pataki*, 120 F3d 1263.)

Patricia Pazner, Appellate Advocates, New York City (Ava C. Page of counsel), for appellant in the second above-entitled action. Failing to credit Mr. McDonald with the nearly four years he was lawfully registered as a low risk in Delaware towards New York's 20-year registration period for low-risk individuals contravenes well-established principles of statutory interpretation, contradicts common New York court practice explicitly authorized by the federal law that engendered the Sex Offender Registration Act (SORA) (Correction Law art 6-C), and raises grave constitutional concerns under the Equal Protection, Due Process, and Privileges and Immunities Clauses. (*People ex rel. Negron v Superintendent, Woodbourne Corr. Facility*, 36 NY3d 32; *People ex rel. McCurdy v Warden, Westchester County Corr.*

Facility, 36 NY3d 251; *People v Anonymous*, 34 NY3d 631; *People v Roberts*, 31 NY3d 406; *People v Robinson*, 95 NY2d 179; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Myers v Schneiderman*, 30 NY3d 1; *People v Ocasio*, 28 NY3d 178; *People v Brown*, 33 NY3d 316; *People v Mingo*, 12 NY3d 563.)

Eric Gonzalez, District Attorney, Brooklyn (*Anthea H. Bruffee* and *Leonard Joblove* of counsel), for respondent in the second above-entitled action. Both lower courts correctly held that defendant was not entitled to an order subtracting from his required duration of sex offender registration in New York the period of time during which defendant had been registered under another state's sex offender registration statute. (*Matter of Avella v City of New York*, 29 NY3d 425; *People v Talluto*, 39 NY3d 306; *People v Jones*, 25 NY3d 57; *Matter of Doe v O'Donnell*, 86 AD3d 238; *People v Thomas*, 33 NY3d 1; *Patrolmen's Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205; *Matter of Albany Law School v New York State Off. of Mental Retardation & Dev. Disabilities*, 19 NY3d 106; *Doe v Pataki*, 120 F3d 1263; *People v Alemany*, 13 NY3d 424; *People v Arotin*, 19 AD3d 845.)

OPINION OF THE COURT

TROUTMAN, J.

Generally, those convicted of sex offenses in other states must register under the Sex Offender Registration Act ([SORA] Correction Law § 168 *et seq.*) upon relocating to New York (*see People v Talluto*, 39 NY3d 306, 309 [2022]). While the statute requires some sex offenders to register for life (*see* Correction Law § 168-h [2]), those in the lowest risk category register for a term of 20 years (*see id.* § 168-h [1]). The issue here is whether the statute entitles sex offenders who are classified in that lowest risk category upon relocating to New York to credit for their time registered as sex offenders under the laws of other states. We hold that it does not and affirm.

Defendant in each of these appeals was convicted in another state of an offense that required him to register as a sex offender under the laws of that state. Some years later, each defendant relocated to New York and was required to register as a level one risk under SORA. Neither is designated a sexual predator, sexually violent offender, or predicate sex offender. During the risk level determination hearings under Correction Law § 168-k (2), each defendant requested that Supreme Court

order him registered nunc pro tunc to the date when he registered as a sex offender in the state where he was convicted of his sex offense, in effect giving him credit for the time registered in the foreign jurisdiction against the 20-year registration period. The courts denied the requests, and the Appellate Division affirmed (*People v Corr*, 208 AD3d 136 [2d Dept 2022]; *People v McDonald*, 207 AD3d 669 [2d Dept 2022]).

The “duration of registration and verification” for sex offenders classified under SORA as level one risks—other than those designated a sexual predator, sexually violent offender, or predicate sex offender—is “annually for a period of [20] years from the initial date of registration” (Correction Law § 168-h [1]). Defendants contend that, in the case of an out-of-state sex offender, the phrase “initial date of registration” plainly refers to the date the offender “initially” registered in the state of conviction, as opposed to the date of “subsequent” registration in New York. The People respond that SORA’s use of the phrase “initial date of registration” refers to the date when an offender first registers under SORA. Although defendants also raise constitutional challenges, those challenges are not preserved for our review (*see Talluto*, 39 NY3d at 310), and we therefore lack jurisdiction to entertain them.

The issue before us is purely one of statutory interpretation, and we apply our well-established rules to determine legislative intent. “‘Where the language of a statute is clear and unambiguous, courts must give effect to its plain meaning’” (*id.* at 311; *see People v Galindo*, 38 NY3d 199, 203 [2022]). We thus start with the statutory text, “guided by the principles that a statute . . . must be construed as a whole and that its various sections must be considered together and with reference to each other” (*People ex rel. McCurdy v Warden, Westchester County Corr. Facility*, 36 NY3d 251, 257 [2020] [internal quotation marks omitted]). Relatedly, absent any indication of an intention to the contrary, “where the same word or phrase is used in different parts of a statute, it will be presumed to be used in the same sense throughout, and the same meaning will be attached to similar expressions in the same or a related statute” (McKinney’s Cons Laws of NY, Book 1, Statutes § 236 at 401 [1971 ed]; *see People v Bolden*, 81 NY2d 146, 151 [1993]). Courts “‘cannot amend a statute by inserting words that are not there, nor will a court read into a statute a provision which the [l]egislature did not see fit to enact’” (*People v Hardy*, 35 NY3d 466, 474 [2020]).

The meaning of the phrase “initial date of registration” cannot be discerned by reading Correction Law § 168-h (1) in isolation, and therefore we look to its use in other sections of SORA for guidance. Construing the statute as a whole, as we must, we conclude that the phrase “initial date of registration” refers to the date when an offender first registers under SORA. The durational requirements in Correction Law § 168-h (1) are explicitly tied to the annual verification requirements, which are set forth in a preceding section of SORA. Specifically, Correction Law § 168-f (2) sets forth the obligations that a registrant is required to fulfill by reference to the “initial registration date”:

“For a sex offender required to register under this article[,] on each anniversary of the sex offender’s initial registration date during the period in which he is required to register under this section[,] the following applies:

“(a) The sex offender shall mail the verification form to the division within [10] calendar days after receipt of the form,” etc.

The phrase “initial registration date” expressly references the offender’s registration under SORA. Our dissenting colleagues appear to agree that the phrase “initial registration date” in section 168-f (2) refers to the first time an offender registers “after the offender is subject to New York’s SORA” (Rivera, J., dissenting op at 682-683). We understand the statute’s subsequent use of the materially identical phrase “initial date of registration” to have the same meaning. Considering the two interconnected provisions together, we conclude that the “initial date of registration” refers to the date when an offender first registers under SORA, not the date an offender is required to register under the laws of another jurisdiction.

Our construction finds further support in the section that immediately follows Correction Law § 168-h, which states that “[r]egistration and verification as required by this article shall consist of a statement in writing signed by the sex offender giving the information that is required by the [D]ivision [of Criminal Justice Services,] and the division shall enter the information into an appropriate electronic data base or file” (Correction Law § 168-i). Because “registration,” as the term is used in SORA, requires interaction with a New York agency,

the “initial date of registration” must refer to the date the offender first registers in New York.¹

In reaching their conclusion that the “initial date of registration” refers to the date an offender registers in the state of conviction, our dissenting colleagues read Correction Law § 168-h (1) in isolation. But our well-established rules of statutory construction do not require or permit us to read disputed statutory provisions in isolation. To the contrary, a statutory provision that appears plain on its face may yet be ambiguous when read within the whole of the statute in which it appears (see *New York State Psychiatric Assn., Inc. v New York State Dept. of Health*, 19 NY3d 17, 25 [2012]; McKinney’s Cons Laws of NY, Book 1, Statutes § 76, Comment at 172 [1971 ed]).

Setting aside our dissenting colleagues’ context-free interpretation of “initial date of registration,” nothing in SORA provides or even arguably suggests that the legislature intended for an offender’s registration in another state to have any effect on the conditions of registration in New York.² Nowhere is this absence more glaring than in Correction Law § 168-k (“Registration for change of address from another state”), which contains detailed procedures for the registration, classification, and designation of a sex offender who relocates to New York from another state or jurisdiction, all without reference to the offender’s registration, if any, in the jurisdiction where the offender previously resided. Section 168-k does not create procedures for the SORA court to establish the offender’s date of registration in the state of conviction, to order the offender registered nunc pro tunc to that date, nor to afford the offender credit for time spent on registries in other jurisdictions. Surely, if the legislature intended for the phrase “initial date of

1. There is also support in the legislative history. The bill jacket for the legislation that amended Correction Law § 168-h (1) to increase level one registration from 10 to 20 years stated that the “[p]urpose” of the bill was to “require[] most level one sex offenders to register with the Division of Criminal Justice Services for [20] years” (Senate Introducer’s Mem in Support, Bill Jacket, L 2006, ch 1 at 3). The stated purpose was to require level one offenders, with some exceptions, to register with a New York agency for 20 years, and the only exceptions expressly mentioned in the statute are those level one offenders who have been designated a sexual predator, sexually violent offender, or predicate sex offender (see Correction Law § 168-h [1]), who must register with the agency for life (see *id.* § 168-h [2]).

2. The absence of such intent necessarily follows from Judge Halligan’s conclusion that the legislature likely “did not consider the question at all” (Halligan, J., dissenting op at 689).

registration” to require the SORA court to do any of these things, there would be some indication of it in this section.

Such credit, defendants correctly observe, is permitted under federal law. But this observation undermines defendants’ position. The guidance of the United States Department of Justice for the states’ implementation of Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act (the Jacob Wetterling Act) (Pub L 103-322, title XVII, 108 US Stat 1796), which first sought to create guidelines for the states’ establishment of sex offender registries, explained:

“The [federal] durational requirements for registration of offenders convicted in other states are the same as those for in-state offenders—registration for at least 10 years or for life as provided in subsection (b)(6) of the Act. If a portion of the applicable registration period has run while the registrant was residing in another state, a new state of residence may give the registrant credit for that period. For example, if a person required to register for 10 years under the Act’s standards has lived for six years following release in the state of conviction, another state to which the registrant moves at that point does not have to require registration for more than the four remaining years” (Atty Gen Order No. 2196-98, 64 Fed Reg 578 [Jan. 5, 1999]).

The guidance notes that states are free to choose to give the registrant credit for a portion of the registration period that has run in another state; it does not mandate that they do so. SORA simply does not contain such a provision for assessing whether to award credit, and we have no authority to amend SORA to create one.

Defendants’ reliance on the Adam Walsh Child Protection and Safety Act of 2006 (the Adam Walsh Act) (34 USC § 20901 *et seq.*), which replaced the Jacob Wetterling Act, is also unavailing. Although defendants correctly note that the phrase “initial registration” as used in the Adam Walsh Act refers to the offender’s registration in the state of conviction prior to release from prison or, if the offender was not sentenced to prison, upon sentencing (*see id.* § 20913 [a], [b]), the operative language in SORA predates the Adam Walsh Act by over a decade (*see* L 1995, ch 192, § 2). The use of the phrase “initial registration” as it appears in the Adam Walsh Act thus has no bearing on the intent of the legislature that enacted SORA.

We recognize that the statute, as written, may lead to unfair results in some circumstances. For example, an offender with a minimal risk of reoffense who has spent substantial time compliant with an effectively administered out-of-state registry scheme without having reoffended would seem to deserve credit for that time as a matter of policy. Moreover, the diversion of public resources and attention towards offenders such as these arguably undermines the state's effort to protect the public against genuinely dangerous offenders. On the other hand, not all state registry schemes are necessarily created equal, for example, in terms of supervision and registration requirements, and there is no specific mechanism under SORA for a court to determine whether a foreign state's administration of its registry is as exacting as New York's or the extent to which a particular offender complied with his obligations under that state's statute and remained free of reoffense.

Defendants' interpretation of the statute, adopted by our dissenting colleagues, goes even further than to award sex offenders credit for time spent registered under the laws of another state. An offender who completes a required 10-year registration period in another state and then, after a period of several more years, moves to New York would receive "credit" for those several unregistered years.³ This is because SORA requires offenders to register for 20 years measured from a certain date. We and our dissenting colleagues disagree only about that date from which the registration period is measured. If the operative date is the date of registration in the state of conviction, as defendants contend, then our state has no statutory authority after 20 years have elapsed from that date to require registration even of an offender who did not consistently register during the required 20-year period.

Notably, other states opting to provide credit have set forth guidelines for when credit should be awarded and have delegated rulemaking authority to the relevant agency. Under the law of Maine, for example, offenders subject to a 10-year registration period may apply to the State Bureau of Identification for "day-for-day credit for the time actually registered pursuant to" the sex offender registration statute of another juris-

3. States that require sex offenders to register for a minimum of 10 years include Pennsylvania (42 Pa Cons Stat § 9799.55 [a]), California (Cal Penal Code § 290 [d]), Texas (Tex Code Crim Proc Ann art 62.101 [b]), Illinois (730 Ill Comp Stat 150/7), Indiana (Ind Code § 11-8-8-19 [a]), Arizona (Ariz Rev Stat § 13-3821 [M]), and Utah (Utah Code Ann § 77-41-105 [3] [a]).

diction, and “[t]he bureau may grant credit if the registrant provides sufficient documentation in accordance with any rules adopted by the bureau” (Me Rev Stat Ann title 34-A, § 11225-A [2] [A]). The Board of Examiners of Sex Offenders does not currently have this authority among its expressly delegated powers (*see generally Matter of Beer Garden v New York State Liq. Auth.*, 79 NY2d 266, 276 [1992] [“It is of course a fundamental principle of administrative law that agencies are possessed of only those powers expressly delegated by the (l)egislature, together with those powers required by necessary implication”]). Even in a state such as Maine, where the risk level is assigned “automatically” (Rivera, J., dissenting op at 685-686 n 3), the legislature provided for the promulgation of guidance on the issue of credit for time spent under another jurisdiction’s registration regime. In New York, by comparison, the legislature opted to create a Board and provide it with the authority to issue binding guidelines and recommendations to the sentencing court regarding a sex offender’s risk level (*see* Correction Law § 168-l [1], [5], [6]). It would be wholly inconsistent with the New York Legislature’s comprehensive approach to sex offender registration to leave unaddressed the mechanism for awarding credit for out-of-state supervision.⁴ No mechanism is provided because no credit is due. If such credit is to be awarded, it is for the legislature to make those policy determinations, pass the relevant law, and delegate any rulemaking authority.

Finally, this is not the only provision in SORA that treats out-of-state sex offenders differently than it treats in-state sex

4. On the one hand, some of our dissenting colleagues reject our comparison of SORA to a system as alien as that found in the Maine statute (Rivera, J., dissenting op at 685-686 n 3), while at the same time claiming there is no evidence of any significant disparity between New York’s approach to registration and that taken by other states (*id.* at 686-687). Our colleagues also assume that the relevant laws, here and elsewhere, will remain static, a notion firmly rebutted by New York’s experience (*see generally People v Parilla*, 109 AD3d 20, 21-29 [1st Dept 2013] [discussing post-1996 amendments to SORA “impos(ing) more stringent registration and notice requirements for convicted sex offenders”]). Furthermore, our colleagues claim that because federal legislation sets minimum standards, “registration requirements for low-level offenders are the same” in all states (Rivera, J., dissenting op at 685-686 n 3). The flaws in this reasoning are obvious. First, New York is free to go above the floor, for example, by making “low-level offenders” (*id.*) register for 20 years rather than the federal minimum (*see* Atty Gen Order No. 2196-98, 64 Fed Reg 576 [Jan. 5, 1999]). Second, states are free to ignore the federal minimum standards as long as they are willing to forgo certain categories of federal funding (*see* 34 USC § 20927 [a]).

offenders (*see Talluto*, 39 NY3d at 314 n 4). In *Talluto*, we recognized that Correction Law § 168-a (3) (b) “requires any person subject to SORA’s foreign registration requirements to be designated a sexually violent offender regardless of whether the underlying offense is violent in nature” (*id.* at 309). The result for the defendant in that case was no less “absurd” than the hypothetical circumstances outlined in Judge Rivera’s dissent (Rivera, J., dissenting op at 687-688). While recognizing that this requirement, based on SORA’s plain text, “may well” have resulted from a “legislative drafting error,” we unanimously concluded that we were without the power to rewrite the statute (*Talluto*, 39 NY3d at 314-315). The same rule applies here.

Accordingly, in each case, the order of the Appellate Division should be affirmed, without costs.

RIVERA, J. (dissenting). The common question in these appeals is the meaning of four words in New York’s Sex Offender Registration Act (SORA), Correction Law § 168-h: “initial date of registration.” Under first principles of statutory interpretation, we give the words their plain meaning, treat words not included by the Legislature as intentionally omitted, and avoid an interpretation that leads to absurd and unjust results. Applying those principles here, the language refers to the date that a sex offender registers for the first time, whether in New York or another jurisdiction. Because the words are unambiguously temporal, and contain no geographic limitation, New York courts may credit offenders that they designate the lowest risk to reoffend the time from an initial out-of-state registration towards SORA’s 20-year registration period.

The majority adopts a strained reading of SORA to reject the commonly understood, longstanding meaning of “initial” as “the first,” and thereby justify its conclusion that section 168-h means “initial registration *in New York*.” The majority ignores our rules of statutory interpretation to artificially restrict the SORA court’s legislatively mandated authority and create a statutory bar for an entire class of low-risk offenders. Had the Legislature intended a reading with such significant consequences, it would have said so expressly. I dissent.

I.

Defendants are sex offenders who registered for the first time in other jurisdictions and who, upon relocating to New York, were required to register here. They were sentenced to

five-year and one-year terms of probation, respectively, and were each registered out-of-state for a period between three and four years. As the majority notes, one defendant was convicted of an offense that is not SORA-registrable if committed in New York, but which required registration here because of his registration out of state (Correction Law § 168-k [1], [2]).

In accordance with SORA, the Board of Examiners of Sex Offenders (the Board) reviewed the defendants' records and, in both cases, recommended adjudication as a level one risk with no designation—the lowest risk to reoffend (Correction Law § 168-l [6] [a]). The prosecution supported these designations. During their separate SORA hearings before the same court and judge, the court adopted the recommendations and designated defendants as level one sex offenders, requiring 20 years of registration. The court denied each defendant's request to credit the time they spent registered in other jurisdictions.

The Appellate Division affirmed in both cases (*People v Corr*, 208 AD3d 136 [2d Dept 2022]; *People v McDonald*, 207 AD3d 669 [2d Dept 2022]). In *Corr*, the Court reasoned that the Legislature's failure to expressly provide "that the duration of registration in New York should be pro forma reduced by the amount of time" registered elsewhere "compels the conclusion" that it intended the time be calculated from the date of the offender's registration in New York (208 AD3d at 139-140). Citing to *Corr*, the Appellate Division summarily affirmed in *McDonald* (207 AD3d at 669). We granted defendants leave to appeal (*People v Corr*, 39 NY3d 905 [2023]; *People v McDonald*, 39 NY3d 906 [2023]).

II.

Defendants contend they may be granted credit from their initial date of registration in another jurisdiction based on the plain language of Correction Law § 168-h, SORA's overall purpose, and common judicial practice in the lower courts.¹ The prosecution responds that SORA requires all offenders to register for 20 years from the date of their registration in New York, and that by denying defendants the credit they seek,

1. Defendants assert federal and state constitutional challenges based on equal protection and due process, the right to travel, and the Privileges and Immunities Clause. Defendants also contend that, although they failed to preserve these challenges below, the Court must consider them under the principle of constitutional avoidance. I have no occasion to consider these arguments because I would reverse on statutory grounds.

Supreme Court treated defendants the same as New York residents who must likewise register for 20 years from the date of their New York registration. I conclude that the plain language controls and that the majority, like the lower courts, erroneously concludes that New York courts are statutorily barred from granting credit in appropriate cases to level one offenders who first registered in another jurisdiction.

A.

Section 168-h (1) of the Correction Law provides that the duration of registration for a level one sex offender with no designation of sexual predator, sexually violent, or predicate sex offender “shall be annually for a period of twenty years from the initial date of registration.” The rules for statutory interpretation are settled and not at issue. The “starting point” is “the language itself” (*Commonwealth of the N. Mariana Is. v Canadian Imperial Bank of Commerce*, 21 NY3d 55, 60 [2013]). Our task is to “effectuate the intent of the Legislature, and when the statutory language is clear and unambiguous, it should be construed so as to give effect to the plain meaning of the words used” (*People v Williams*, 19 NY3d 100, 103 [2012], citing *People v Finnegan*, 85 NY2d 53, 58 [1995]). Where the words have a “definite meaning, which involves no absurdity or contradiction, then there is no room for construction and courts have no right to add or take away from that meaning” (*People v Roberts*, 31 NY3d 406, 418 [2018], citing *People v Robinson*, 95 NY2d 179, 182 [2000]; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]; see also *People v Tal-luto*, 39 NY3d 306, 312 [2022], citing *Riley v County of Broome*, 95 NY2d 455, 463 [2000] [“As a general rule, unambiguous language of a statute is alone determinative”]; McKinney’s Cons Laws of NY, Book 1, Statutes § 76).

The commonly understood meaning of “initial” is “first.” By definition, it cannot refer to a subsequent, later registration. Therefore, when an offender relocates to New York from another jurisdiction where they were lawfully registered as a sex offender, they do not register for the first time. Rather, the offender registers a subsequent time, now in New York. The majority contravenes our rules of statutory interpretation by rewriting the statutory language to read “initial date of registration in New York” (see *American Tr. Ins. Co. v Sartor*, 3 NY3d 71, 76 [2004] [“A court cannot amend a statute by adding words that are not there”]). The majority ignores that sec-

tion 168-h does not specify the location of the initial registration and thus unambiguously refers to the first time that an offender registers for an underlying offense, regardless of where they do so. Put another way, because the provision is temporal, not geographic, what matters is when—not where—an offender first registers.

This ends the analysis, and I would therefore reverse the Appellate Division in each appeal. The majority holds otherwise, so I now turn to the atextual reasons the majority has offered for its conclusion.

B.

The majority's analysis is grounded in the erroneous premise that other SORA sections are indispensable to the interpretive task at hand. That approach turns statutory interpretation on its head by creating ambiguity where none exists and reading dispositive meaning into language both outside and in contravention of the words actually found in section 168-h (*see* McKinney's Cons Laws of NY, Book 1, Statutes § 76 ["Where words of a statute are free from ambiguity and express plainly, clearly and distinctly the legislative intent, resort may not be had to other means of interpretation"]). But even if looking beyond section 168-h were warranted, the other SORA sections on which the majority relies do not support its reading of section 168-h. My reading of section 168-h is by no means "context-free" (majority op at 675); I simply decline to search for its meaning in provisions that are irrelevant to the statutory duration of registration for low-risk offenders.

To support reading into section 168-h a legislative ban on credit in appropriate cases, the majority first turns to section 168-f (2) (a), which requires that a sex offender register on each anniversary of their initial registration. The majority adopts the prosecution's position that this section can only be read to refer to an initial registration in New York because "[t]he phrase 'initial registration date' " is preceded there by an explicit reference to registration under SORA and we must consider "the two interconnected provisions together" (majority op at 674). The majority's interconnected-provisions argument falls flat because it takes the language out of context and emphasizes only part of section 168-f (2), ignoring that section 168-f (2) applies "*during the period in which* [the offender] is required to register under this section" (emphasis added). Giving proper consideration to this prefatory mandatory language

makes clear that section 168-f (2) applies only after the offender is subject to New York's SORA, and not before. I do not agree, as the majority claims, that "initial registration date" as it appears in an entirely separate section can only reference registration in New York (*see* majority op at 674).

Next, the majority cites section 168-i, which provides that registration and verification under SORA "shall consist of a statement in writing signed by the sex offender giving the information that is required by the [D]ivision [of Criminal Justice Services]" and instructs the Division to "enter the information into an appropriate electronic data base or file." The majority suggests that this reference to "interaction with a New York agency" means that "initial date of registration" "must refer to the date the offender first registers in New York" (majority op at 674-675). This suggestion ignores that section 168-h makes no such reference to the Division. Moreover, section 168-i is irrelevant to the interpretive task at hand because it simply sets out the process by which an offender registers in New York; it does not follow that only registration in New York can begin the 20-year period set out in section 168-h.

The majority lastly cites section 168-k, which addresses registration for offenders relocating to New York. The majority posits that because this section does not mention the offender's registration and does not provide procedures for a SORA court "to order the offender registered nunc pro tunc" to the date they register in the state of conviction, the Legislature did not intend for a SORA court to grant credit (majority op at 675). This does not indicate legislative silence, as the majority suggests. Section 168-h already sets the 20-year New York registration period to run from the initial date of registration—without geographic limitation. There is no need to repeat what the Legislature has made plain elsewhere. Legislative drafting does not require redundancy when the meaning is clear.²

2. The legislative history of section 168-h does not compel a different conclusion. The majority points to a statement in the bill jacket that the bill's purpose was to "require[] most level one sex offenders to register with the Division of Criminal Justice Services for [20] years" (majority op at 675 n 1 [emphasis added], citing Senate Introducer's Mem in Support, Bill Jacket, L 2006, ch 1 at 3). Of course, the statement is not inconsistent with defendant's interpretation of the statute because it demonstrates that the Legislature contemplated exceptions to the general rule: most—but not all—offenders will register with the Division for 20 years. The majority does not explain why the exceptions do not encompass individuals relocating to New York.

III.

Even if, as the majority appears to suggest, “initial date of registration” is ambiguous, SORA’s history and purpose support interpreting the phrase to apply to out-of-state registration. First, the purpose of SORA is to protect the public from “the danger of recidivism posed by sex offenders” (*Brown*, 41 NY3d at 296; *People v Mingo*, 12 NY3d 563, 574 [2009]). The Legislature has expressly determined that this purpose is served in the case of a level one offender by a 20-year period of registration. That purpose is served regardless of whether the registration is continuous in New York or commences in another state and is subsequently completed in New York. Regardless of the location of the first registration, the offender is tracked for compliance with registration requirements.

Second, SORA was enacted to comply with the Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act (the JWA). The DOJ guidelines for implementation of the JWA recognized in 1999 that states “may” grant a registrant credit for time registered in another state (64 Fed Reg [No. 2] 578 [1999]). Title I of the Adam Walsh Child Protection and Safety Act of 2006 (34 USC § 20901)—or “SORNA” (Sex Offender Registration and Notification Act)—later created a “‘comprehensive national system’ for the registration of individuals convicted of sexual offenses” which was expressly intended to remedy “a perceived need for more effective inter-jurisdictional consistency and coordination” (Andrew J. Harris et al., *States’ SORNA Implementation Journeys: Lessons Learned and Policy Implications*, 23 New Crim L Rev 315, 316 [2020]). While the legislation did not remove sex offender registries from the purview of states’ police power, it “establish[ed] . . . detailed federal requirements guiding the management and operation of [registries] within states and other covered jurisdictions,” including by mandating certain registrable offenses, setting minimum conditions of registration and minimum penalties for registry noncompliance, and requiring “timely transmittal of information when registrants indicate an intent to travel and/or relocate to other jurisdictions” (*id.* at 323-324). There can be no question that SORNA was intended to increase interstate uniformity and cooperation, and interpreting section 168-h to apply to an out-of-state registration is consistent with that objective. Indeed, when defendants moved to New York, authorities in our state had access to their registration histories in other jurisdictions (*see* 34 USC § 20921

[creating the National Sex Offender Registry “for each sex offender and any other person required to register in a jurisdiction’s sex offender registry” and requiring transmission of updated information about an offender to “all relevant jurisdictions”)].

Notably, SORNA also expressly differentiates between an “initial registration” date, which occurs in “the jurisdiction in which [the offender is] convicted,” and subsequent registration in any “other jurisdictions in which the offender is required to register” (34 USC § 20913 [a], [c]).

Third, at no point throughout the history of amendments to SORA has the Legislature specified in section 168-h that a level one offender must register for a period of 20 years from their date of registration in New York, despite that courts have been granting the credit that defendants here seek since as early as 2007, and the Appellate Division acknowledged the practice in 2011 (*see People v McGarghan*, 18 Misc 3d 811 [Sup Ct, NY County 2007], *affd* 83 AD3d 422 [1st Dept 2011]). We assume the Legislature is “aware of the state of the law” when it enacts or amends a statute (*People v Galindo*, 38 NY3d 199, 205 [2022]). Given the Legislature’s concerns about public safety and law enforcement regarding sex offenders, we would expect that the Legislature would act expeditiously to correct any misinterpretation that placed the public in danger.

As evidenced by this common judicial practice, New York SORA courts are fully capable of and charged with fact-finding to determine an offender’s risk level, which necessarily includes setting the start date for a level one registration.³ SORA provides that an offender relocating to New York must receive

3. The majority’s observation that other states delegate the authority to award credit to an agency is as curious as it is irrelevant (*see* majority op at 677). The majority’s discussion of Maine is particularly inapt; Maine’s registration statute does not provide for an individualized risk assessment hearing and instead assigns risk levels automatically (*see* Me Stat title 34-A, §§ 11273 [14]-[19]; 11285). In contrast, SORA mandates an individualized judicial determination and vests courts with broad fact-finding authority. This distinguishing procedural feature of Maine’s statute sheds no light on substantive registration requirements across jurisdictions. On that relevant point, all states have substantially similar registration requirements for low-level offenders. Contrary to the majority’s assertion, I do not mean that all jurisdictions have *identical* SORA laws (*see* majority op at 678 n 4). Rather, their substantive registration requirements for low-level offenders are the same because the federal legislation sets out national minimum standards and the prosecution has offered no evidence of any state that deviates from those standards. That states are free to set longer registration periods than

(n. cont’d)

a SORA hearing in which the court is “tasked with the individual assessment of a defendant’s risk, based on the available information and upon findings of fact” (*People v Brown*, 41 NY3d 279, 296 [2023], citing Correction Law § 168-1). This requirement applies whether an offender committed their crime in New York or elsewhere. An offender seeking credit for time registered elsewhere must meet their burden of proof by demonstrating that they lawfully registered in another jurisdiction on a particular date. If the court concludes that the offender failed to meet their burden, it need not grant credit for that time. Moreover, to the extent that the offender has failed to comply with their registration requirements in the other jurisdiction or has reoffended, the court may determine that an upward departure to level two or three is appropriate. That designation requires the offender to register in New York for life. The offender may appeal that decision, allowing an appellate court to take necessary corrective action to ensure an offender’s accurate risk level designation.

The majority also makes the baseless assertion that allowing SORA courts to grant credit for time spent *lawfully registered* in another state would allow offenders to receive credit for “unregistered years” in another state (majority op at 677). Taking the majority’s example, “[a]n offender who completes a required 10-year registration period in another state and then, after a period of several more years, moves to New York” would receive 10 years of credit—the amount of time they were registered in another state, measured from their initial date of registration in that state (*id.*). No competent judge would rule otherwise.

Finally, the majority adopts the prosecution’s purely speculative claim that New York courts cannot be certain that other states have comparable registration schemes for low-level offenders, or that authorities in other states take their enforcement duties as seriously as New York authorities (majority op at 677). Significantly, the prosecution has identified no state in which the reporting requirements for low-level offenders is materially different from New York’s scheme. That is unsurprising, given that the federal law sets out uniform conditions of registration and minimum penalties for noncompliance (*see* 34 USC § 209). Surely, as defendants argue, if the jurisdictions

the federal minimum—as New York has done—is immaterial because SORA courts are empowered to determine the amount of time that should be credited.

where defendants were registered—or for that matter any jurisdiction in the United States and its territories—had a subpar registration regime for level one offenders as compared to New York, the prosecution would have presented evidence of such before the SORA court and the Appellate Division, and relied upon that record before this Court. Nor did the prosecution establish that defendants’ conduct was unsatisfactory before they relocated to New York. In fact, the prosecution agreed with the Board’s recommendation that each defendant be classified as a level one without designation based on defendants’ respective records (Correction Law § 168-l [6] [a]). The SORA court classified defendants as such. The court denied credit for the out-of-state registration based solely on its reading of the statute, not on any factual determination that the jurisdictions where the defendants were previously registered had more lenient registration schemes, were unable to document misconduct by defendants, or any of the other reasons the majority hypothesizes.

The federal government does not share these concerns. As the majority acknowledges (majority op at 676), the federal government has contemplated since 1999 that states may grant credit for prior registration in another state (Pub L 103-322, title XVII, 108 US Stat 1796; formerly 42 USC § 14071).

IV.

If the text, rules of interpretation, SORA’s purpose and history, and the federal SORNA framework are not enough to drive the analysis here, the majority’s interpretation cannot control because it leads to absurd and unjust results. Several examples illustrate the point.

Assume that two sex offenders with similar criminal and SORA-compliance histories commence registration on the same day, June 1, 2024, one in New York, one in another state. The New Yorker is classified a level one offender without designation and must register for 20 years, until June 1, 2044. The other offender moves to New York on June 1, 2034, having already registered for 10 years, and is also classified by the SORA court as a level one offender without designation. Under the majority’s interpretation, this offender must register until 2054, a full 10 years longer than the other similarly situated offender simply because one committed their offense outside of New York.

By way of another example, assume a level one offender without designation registers in New York on June 1, 2024,

then five years later, on June 1, 2029, moves to another jurisdiction where they register. Although it is an open question in our Court whether the offender must continue to register in New York, the offender does so to comply with the Appellate Division’s interpretation of SORA as imposing such requirement (see *Matter of Doe v O’Donnell*, 86 AD3d 238 [3d Dept 2011], *lv denied* 17 NY3d 713 [2011]). After another five years, the offender returns to New York on June 1, 2034, and is required to register for another 10 years to June 1, 2044, to reach the aggregate mandatory 20 years registration period. If that offender instead had initially registered on the same date but in another state on June 1, 2024, then moved to New York five years later, on June 1, 2029, and also was classified a level one offender without designation, they would have to register for another 20 years, until June 1, 2049, despite that in each case the offender would have been registered for the exact same period of time in another state.

As a last example, assume two out-of-state offenders, one of whom has registered for 19 years and 11 months and one of whom has registered for one month, move to New York where the SORA court classifies them both as level one without designation. According to the majority’s view, both offenders must newly register for 20 years, with the result that the first offender registers for a total of one month shy of 40 years and the other registers for 20 years and one month, even though they have received the same lowest risk to reoffend designation.⁴ The majority fails to identify what public policy furthers such disparity.

The majority acknowledges that “the statute, as written may lead to unfair results in some circumstances” (majority op at 677). Unfair results are not inevitable unless, like the majority,

4. The majority suggests these examples are no more “absurd” than the outcome in *People v Talluto* (39 NY3d 306 [2022]). In that case, the defendant’s “proposed construction” of section 168-a (3) (b) would have required the Court to “read the foreign registration clause out of the statute entirely and fail to give effect to that portion of the statute” (*id.* at 310). We held that, although section 168-a (3) (b) may contain “a legislative drafting error” (*id.* at 315), “the plain language of the statute [was] not ambiguous” and so we were “bound to follow it” (*id.* at 314). The majority does the opposite today, disregarding the plain meaning of “initial date of registration” in search of support elsewhere for its preferred construction of the statute. As we recognized in *Talluto*, “[c]ourts must not ‘legislate under the guise of interpretation’” (*id.* at 315, citing *People v Finnegan*, 85 NY2d 53, 58 [1995]). The majority does not explain why the Court was bound by the plain language in *Talluto*—drafting error and all—but can deviate from it here.

one adopts an interpretation that bars credit solely if the offender first registers in another jurisdiction. For years, New York courts have rejected that assumption as contrary to the plain meaning of section 168-h and SORA’s animating policy. To the extent the majority recognizes that the Legislature may correct its misreading of the statute, at least we agree on that point.

HALLIGAN, J. (dissenting). I agree with Judge Rivera’s conclusion that the phrase “initial date of registration” as used in Correction Law § 168-h means the first time that a sex offender registers for the underlying offense, without any geographic qualification (Rivera, J., dissenting op at 681-682). I also agree that use of a similar phrase, “initial registration date,” in other sections of the statute does not compel a different interpretation (Rivera, J., dissenting op at 682-683). I therefore join parts I, II, and IV of Judge Rivera’s dissenting opinion.

Had the Legislature meant what the majority says it did—“initial date of registration in New York”—it presumably would have used those terms in drafting the statute. And that policy choice should be left to the Legislature, not this Court (*see People v Talluto*, 39 NY3d 306, 315 [2022] [“we are constrained to construe” SORA “according to its plain language”]; *Tompkins v Hunter*, 149 NY 117, 122-123 [1896] [“In construing statutes, it is a well-established rule that resort must be had to the natural signification of the words employed, and if they have a definite meaning . . . courts have no right to add to or take away from that meaning”]).

Nor does legislative intent support the majority’s reading of section 168-h. As the majority notes, Correction Law § 168-k, titled “Registration for change of address from another state,” sets forth highly detailed procedures for sex offenders who establish residence in New York State (*see* majority op at 675-676). The majority concludes that the omission of any procedures for crediting time on another state’s registry, in the face of this specificity, shows that the Legislature intended to preclude credit (*id.*). But it appears more likely the Legislature did not consider the question at all. Most of section 168-k’s detailed provisions, along with other provisions of SORA, were enacted in response to a federal district court decision enjoining SORA’s enforcement on due process grounds (*see Doe v Pa-*

taki, 3 F Supp 2d 456, 471, 478-479 [SD NY 1998]).¹ *Doe* specified various procedural protections that must be accorded sex offenders facing a risk level classification (see *Doe*, 3 F Supp 2d at 471-472). The Legislature then put those protections in place for all offenders—those convicted in New York State and those convicted out of state. Although set forth in different subsections of the statute, the procedures for these two groups of offenders are substantively identical (compare Correction Law § 168-k [2], with §§ 168-d [2], 168-n [3]), and both closely track the requirements mandated by the district court (compare *Doe*, 3 F Supp 2d at 471-472, with Correction Law § 168-k [2]). *Doe* itself did not address out-of-state convictions, and neither of the two classes of sex offenders who brought the action appears to include individuals convicted outside of New York State (see *Doe*, 3 F Supp 2d at 459). Likewise, there is no indication the Legislature considered this population in enacting section 168-l (cf. majority op at 678), or in amending section 168-h in 2006 (cf. majority op at 674-675).²

All of this suggests that the Legislature gave no particular consideration to how to treat offenders convicted out of state as a distinct group, and certainly not to whether time spent on another state's registry should be credited by a New York SORA court. Absent any indication that the Legislature considered this question, its silence cannot shed light on what the Legislature intended on this point (see *Tafflin v Levitt*, 493 US

1. See also Mem to Governor from Chief of Legis Bur, Bill Jacket, L 1999, ch 453 at 6 ("The amendments made in this bill address the concerns set forth in the Federal District Court decision by explicitly providing the procedures for the risk assessment determinations conducted in state court"); Letter from Div of Crim Just Servs, Bill Jacket, L 1999, ch 453 at 7-8 (noting that the State is currently enjoined from enforcing certain aspects of SORA on due process grounds and that "[t]his bill cures those deficiencies"); Senate Introducer's Mem in Support of 1999 NY Senate Bill S6100, enacted as L 1999, ch 453 (referencing the *Doe v Pataki* injunction and stating that "[t]he primary purpose of the bill is to incorporate in the Act additional due process standards" in response to that opinion).

2. The legislative history for the 2006 amendment of section 168-h explains that "[u]pon the ten year anniversary of the effective date of New York State's sex offender registry, January 21, 2006, hundreds of registered sex offenders will no longer be required to register by the end of that month" (Senate Introducer's Mem in Support, Bill Jacket, L 2006, ch 1 at 3). This reference to offenders who first registered on SORA's 1996 effective date—namely, those then on probation or parole in New York (see *Doe v Pataki*, 120 F3d 1263, 1266 [2d Cir 1997] [explaining to whom SORA applied upon its effective date])—indicates the Legislature was focused on those who were convicted in New York.

455, 461-462 [1990] [rejecting argument premised on legislative intent where statute was silent on the issue and legislative history “reveal(ed) no evidence that Congress even considered the question”]). Thus, we are left—as always—with the text alone as our best guide (*see Talluto*, 39 NY3d at 314; *cf.* majority op at 675 n 2).

New York’s statute is almost singularly ambiguous as to when the clock for registration starts, and whether it must restart when a sex offender moves to our state. A significant number of states count registration years from a date that remains constant (and certain) under any reading, regardless of whether an offender moves across state lines, such as the date of an offender’s release from incarceration, probation, parole, or other supervision, or the date of conviction or sentencing (*see e.g.* Cal Penal Code § 290 [e]; 730 Ill Comp Stat Ann 150/7; NJ Stat Ann § 2C:7-2 [f]).

Several of these states provide further instructions for out-of-state offenders who establish in-state residency, such as by designating what court they should apply to for relief from registration requirements if their court of conviction is elsewhere (*see e.g.* Idaho Code Ann § 18-8310 [1]; Mich Comp Laws Ann § 28.728c [4]; NH Rev Stat Ann § 651-B:6 [II], [V]), or clarifying that a sex offender must register for the longer of the time required in their state of residence or in their state of conviction (*see e.g.* Ind Code Ann § 11-8-8-19 [f]; Iowa Code Ann § 692A.106 [8]; Minn Stat Ann § 243.166 Subd. 1b [b] [3]). Other states provide that a sex offender living within their borders must register for as long as they would be required to register in the convicting jurisdiction (*see e.g.* Conn Gen Stat Ann § 54-253 [c]; 42 Pa Stat and Cons Stat Ann § 9799.15 [a] [7]; SC Code Ann § 23-3-462 [A] [1] [c]). Still other states expressly provide in their statutes that the relevant authority may credit time when the sex offender is absent from that state but registered and compliant elsewhere (*see e.g.* Alaska Stat Ann § 12.63.020 [a] [1] [B] [ii] [registration period “may include the time a sex offender . . . was absent from this state if the sex offender . . . has complied with any . . . registration requirements of the jurisdiction” and “provides the department with proof of the compliance”]; DC Code Ann § 22-4002 [a] [1] [“The Agency may give a sex offender credit for the time the sex offender was registered in another jurisdiction”]; Me Rev Stat Ann title 34-A § 11285 [2] [A] [“registrant may receive day-for-day credit for the time actually registered pursuant to

the other jurisdiction's sex offender registration statute prior to registering in this State upon applying to the bureau for credit . . . if the registrant provides sufficient documentation in accordance with any rules adopted by the bureau"]; Nev Rev Stat Ann § 179D.490 [3] [b] ["registration begins on the date that the Central Repository or appropriate agency of another jurisdiction establishes a record of registration for the offender or sex offender or the date that the offender or sex offender is released, whichever occurs later"]; Ohio Rev Code Ann § 2950.07 [E] [sheriff shall grant "credit against the duty to register for time for which the offender . . . provides adequate proof that the offender . . . has complied with the . . . registration requirements of another jurisdiction"]).

A few states have adopted statutes that specifically provide for the result imposed by the majority here: Irrespective of how long a sex offender has been registered elsewhere, the duration of their registration within that state runs from the initial date of registration there, with no credit for registration in another jurisdiction (*see e.g.* Ark Code Ann § 12-12-919 [b] [1] [A] [ii] [a sex offender sentenced in another state but permanently residing in Arkansas may apply for an order terminating the obligation to register "(a)fter fifteen (15) years of having been registered as a sex offender in Arkansas"]; La Stat Ann § 15:544 [D] [2] [a person required to register pursuant to Louisiana Law "shall receive credit only for the period of time in which he resides in this state and is in compliance with all registration and notification requirements of this state"]; *see also* Tenn Code Ann § 40-39-207 [i] [4] [a person may apply for removal from the registry the later of 10 years from "date of termination of active supervision or probation, parole or any other alternative to incarceration, or after discharge from incarceration without supervision," or "(f)ive (5) years after being added to the Tennessee sexual offender registry"])). Unlike New York's SORA statute, however, these statutes address the question in clear terms.

Should the Legislature decide to clarify that it is appropriate to credit time on another state's registry, it could provide important guidance as to how a SORA court should evaluate such requests. Although SORA courts are charged with fact-finding sufficient to determine an offender's risk level and can require proof that an offender had registered in another jurisdiction on a certain date and complied with that jurisdiction's requirements going forward, questions about whether and how

to take into account any differences between New York's administration of its registry scheme and that of another state (majority op at 676-677) are policy choices best left to the Legislature.

Though their approaches differ, virtually every other state legislature has clearly established how time spent registered in another state is to be counted. On one point, this Court is unanimous: Regardless of the policy choice it ultimately makes, it would be helpful for New York's Legislature to do the same.

Judges GARCIA, SINGAS and CANNATARO concur. Judge RIVERA dissents in an opinion, in which Chief Judge WILSON concurs. Judge HALLIGAN dissents in a separate dissenting opinion.

In each case: Order affirmed, without costs.

[251 NE3d 1242, 227 NYS3d 242]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDDIE ROBLES, Appellant.

Argued October 16, 2024; decided November 21, 2024

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered December 23, 2022. The Appellate Division affirmed a judgment of the Supreme Court, Onondaga County (Gordon J. Cuffy, J.), which had convicted defendant, upon a plea of guilty, to attempted criminal possession of a weapon in the second degree.

People v Robles, 211 AD3d 1516, reversed.

HEADNOTE**Crimes — Harmless and Prejudicial Error — Plea of Guilty — Improper Denial of Motion to Suppress Statement**

Defendant, who pleaded guilty to attempted second-degree criminal possession of a weapon after a trial court ruling denying his motion to suppress the weapon and a statement made to police, which ruling was partially reversed on appeal with respect to the statement, was entitled to vacatur of his plea as it could not be said with certainty that the erroneous ruling played no part in his decision to plead guilty. While guilty pleas are generally not amenable to harmless error review, where the error is of constitutional dimension, courts must evaluate whether the People's remaining proof in the case constitutes overwhelming proof of defendant's guilt, and whether there is a reasonable possibility that the error contributed to the defendant's decision to plead guilty. Here, notwithstanding that the weapon would still have been admissible at trial, the record was ambiguous as to defendant's motivation in pleading guilty. Defendant asserted during the plea colloquy that he was "pleading guilty because it's a good deal," but he may only have believed that in the face of all the evidence admissible at the time, including his highly incriminating post-arrest statement "you saw what I had on me." Moreover, when entering his plea, defendant affirmatively sought assurances from the court that he could appeal the suppression determination, indicating the importance he placed on that adverse ruling.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 657, 658; AM JUR 2d Evidence § 648.

CARMODY-WAIT 2d Pleas and Plea Bargaining §§ 182:70, 182:80, 182:81, 182:84; CARMODY-WAIT 2d Pretrial Motions §§ 189:281, 189:282.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 10.1, 10.6, 21.5.

NY JUR 2d Criminal Law: Procedure §§ 1539, 1566, 1583, 1656.

ANNOTATION REFERENCE

See ALR Index under Exclusion of Evidence; Guilty Pleas.

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POINTS OF COUNSEL

Cambareri & Brenneck, Syracuse (*Melissa K. Swartz* of counsel), for appellant. The record is void of any information to substantiate the application of the harmless error doctrine to Robles' guilty plea. (*People v Wells*, 21 NY3d 716; *People v Lloyd*, 66 NY2d 964; *People v Rolston*, 50 NY2d 1048; *People v Burrows*, 46 NY2d 957; *People v Grant*, 45 NY2d 366.)

William J. Fitzpatrick, District Attorney, Syracuse (*Bradley W. Oastler* of counsel), for respondent. Harmless error doctrine can apply to review of a conviction upon a guilty plea, and was properly applied in this case because it is evident that there is no reasonable possibility that the decision to plead guilty was impacted by an erroneous suppression decision. (*People v Crimmins*, 36 NY2d 230; *People v Williams*, 25 NY3d 185; *People v Clanton*, 151 AD3d 1576; *People v Teixeira-Ingram*, 199 AD3d 1240; *People v Beckwith*, 303 AD2d 594.)

OPINION OF THE COURT

GARCIA, J.

Defendant was charged with criminal possession of a weapon. The trial court denied his motion to suppress the gun and a post-arrest admission he made to police, and defendant pleaded guilty. On appeal, the Appellate Division held that defendant's statement should have been suppressed, but that, because the gun would still have been admissible at trial, the error was harmless as there was no reasonable possibility that it contributed to defendant's decision to plead guilty. On this record, however, we cannot say with certainty that the erroneous ruling played no part in that decision, and therefore we reverse.

In response to a report of shots fired, two officers approached defendant and, after a struggle, recovered a handgun from him. Prior to any *Miranda* warnings being administered, an officer asked defendant, “Hey, Eddie, man, what’s going on? Are you all right? Are you okay?” Defendant responded, “Bro, you saw what I had on me. I was going to do what I had to do.” Defendant was indicted on various charges, including second-degree criminal possession of weapon (Penal Law § 265.03 [3]).

After Supreme Court denied defendant’s motion to suppress both the handgun and his statement, defendant accepted the People’s offer of a plea to attempted second-degree criminal possession of a weapon. During the plea colloquy, defendant, who was proceeding pro se, stated, “I just want to make sure that I can appeal my suppression hearing.” In response to the court’s question of whether he was pleading guilty because he was guilty and was doing so freely and voluntarily, defendant answered, “I’m pleading guilty because it’s a good deal.” The court accepted the plea and imposed the agreed-upon sentence.

The Appellate Division, with one Justice dissenting, agreed with defendant that his statement should have been suppressed,* but held that the error was harmless (211 AD3d 1516 [4th Dept 2022]). The Court concluded that “[b]ecause [the gun] would have been admissible at trial . . . there is no reasonable possibility that the [trial] court’s error in failing to suppress defendant’s statement admitting possession of the firearm contributed to his decision to plead guilty” (*id.* at 1518). The dissenting Justice, who would have held the record insufficient to support a determination that defendant “would have pleaded guilty without regard to the error” (*id.* at 1520 [Lindley, J., dissenting]), granted leave to appeal, and we now reverse.

Applying a harmless error analysis to guilty pleas is a challenging exercise because a guilty plea “simply reflects the fact that for some reason, sufficient to the defendant,” that defendant decided to waive his or her trial rights (*People v Grant*, 45 NY2d 366, 379 [1978]). As a result, convictions based on guilty pleas “generally are not amenable to harmless error review” (*People v Wells*, 21 NY3d 716, 719 [2013]). This “general” rule, however, is not absolute (*id.*). Where, as here, the error is of constitutional dimension, we have held that, in addition to evaluating whether the People’s remaining proof in the case

* The outcome of the suppression decision is not before us.

constitutes “overwhelming proof of defendant’s guilt” (*People v Crimmins*, 36 NY2d 230, 237 [1975]), harmless error review must also analyze “whether there is a reasonable possibility that the error contributed to the” defendant’s decision to plead guilty (*Grant*, 45 NY2d at 378-379). Where there is any “‘reasonable possibility that the error contributed to the plea,’” the conviction must be reversed (*Wells*, 21 NY3d at 719, quoting *Grant*, 45 NY2d at 379).

With the framework for assessing harmlessness in mind, we conclude that this is not one of the rare situations where the record “leave[s] no question regarding [the defendant’s] independent motivation to plead guilty” (*People v Lloyd*, 66 NY2d 964, 965 [1985] [defendant pleaded guilty before the suppression hearing, was permitted to withdraw his plea when the court determined that, because of his criminal record, it could not keep its sentencing promise, and later pleaded guilty following the denial of suppression, with the understanding that he would not be sentenced as a persistent or violent felony offender]). A plea before trial leaves “little if any evidence in the record” to support a court’s evaluation of the quantum and nature of the prosecution’s remaining proof (*Grant*, 45 NY2d at 378). Here, in determining that the error was harmless, the Appellate Division was able to point to the gun recovered from defendant. But even when there are facts in the record that make possible that part of the analysis, a court must still determine that there is no reasonable possibility that the error contributed to the defendant’s decision to plead guilty for harmless error to apply (*see id.* at 378-379). That latter inquiry is especially important when, as in the present case, a defendant unsuccessfully sought to suppress a confession and that ruling is reversed on appeal (*id.* at 380).

The record here is ambiguous at best as to defendant’s motivation in pleading guilty. Although defendant asserted during the plea colloquy that he was “pleading guilty because it’s a good deal,” he may only have believed that “in the face of all the evidence” admissible at the time, including his highly incriminating post-arrest statement “you saw what I had on me” (*id.* at 379). Moreover, when entering his plea, defendant affirmatively sought assurances from the court that he could appeal the suppression determination, indicating the importance he placed on that adverse ruling (*see id.* [“Notably, at the time of plea (the defendant) did not waive his right to appeal”]). The People’s argument that defendant may only have been

concerned with the court's suppression of the physical evidence is speculative and insufficient to overcome the high bar for establishing defendant's independent motivation for the plea. On this record, we cannot say that defendant's decision to plead guilty was unaffected by the court's erroneous suppression ruling, and therefore his guilty plea must be vacated.

Finally, we reject defendant's request to dismiss the felony indictment (*see People v Bush*, 38 NY3d 66, 72 n 2 [2022]). Accordingly, the order of the Appellate Division should be reversed, defendant's guilty plea vacated and the case remitted to Supreme Court for further proceedings on the indictment.

Chief Judge WILSON and Judges RIVERA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order reversed, defendant's guilty plea vacated and case remitted to Supreme Court, Onondaga County, for further proceedings on the indictment.

[252 NE3d 496, 227 NYS3d 557]

JAMES KNIGHT, as Administrator of the Estate of PAMELA J. KNIGHT, Deceased, Respondent, v THE NEW YORK AND PRESBYTERIAN HOSPITAL et al., Defendants, and DEWITT REHABILITATION AND NURSING CENTER, INC., Doing Business as UPPER EAST SIDE REHABILITATION AND NURSING CENTER, Appellant.

Argued October 15, 2024; decided November 25, 2024

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 10, 2023. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (John J. Kelley, J.; op 2022 NY Slip Op 31048[U] [2022]), which had granted the motion by defendant Dewitt Rehabilitation and Nursing Center, Inc., doing business as Upper East Side Rehabilitation and Nursing Center, to change venue and transferred the entire matter to Supreme Court, Nassau County; and (2) denied the motion. The following question was certified by the Appellate Division: “Was the order of this Court, which reversed the order of the Supreme Court, properly made?”

Knight v New York & Presbyt. Hosp., 219 AD3d 75, reversed.

HEADNOTES

Trial — Place of Trial — Demand for Change of Venue — Contractual Forum Selection Clause — Circumstantial Evidence of Authenticity

1. When put in issue, the proponent of a motion for a change of venue pursuant to CPLR article 5 bears the initial burden to establish the authenticity of a writing for purposes of a motion to enforce a contractual venue provision, which may be done through circumstantial evidence. Accordingly, in plaintiff’s negligence, medical malpractice, and wrongful death action in which defendant skilled nursing facility and rehabilitation center sought an order transferring venue pursuant to the forum selection clause in two admission agreements electronically signed by decedent, the affidavit of defendant’s director of admissions with attached agreements bearing decedent’s signature and initials was sufficient circumstantial evidence of authenticity. The director stated that she searched defendant’s records for decedent’s admission agreements, affirmed that they were kept and maintained in the ordinary course of defendant’s business, and, while she had no personal recollection of decedent, she confirmed that a representative of defendant was present when decedent signed each agreement. The director then described the custom and practice of defendant’s representatives during the admission process, which involved meeting with the resident to review paperwork and

determining whether the resident was oriented, responsive and conversing appropriately. Decedent's signature appeared on the last page of each agreement as well as on the attached Medicare and HIPAA forms, and her initials appeared on each page of the agreements and attachments. The first paragraph of each agreement advised the resident that admission was conditioned upon review and execution of the agreement and related documents.

Trial — Place of Trial — Demand for Change of Venue — Contractual Forum Selection Clause — Burden to Raise Issue of Fact Regarding Authenticity of Signatures

2. In plaintiff's negligence, medical malpractice, and wrongful death action in which defendant skilled nursing facility and rehabilitation center sought an order transferring venue pursuant to the forum selection clause in two admission agreements electronically signed by decedent, plaintiff failed to establish a triable issue of fact as to whether the signatures were forged. Defendant came forward with sufficient circumstantial evidence of authenticity, and once that showing was made, plaintiff was then required to produce evidence sufficient to establish a genuine issue of fact regarding the authenticity of decedent's signatures. Plaintiff offered only an affidavit in which he claimed to be familiar with decedent's handwriting. Based on a summary of certain perceived inconsistencies in the signatures and initials on the agreements, plaintiff asserted that "whoever the person or people who signed and initialed these pages may have been, it was not my mother." Attached to the affidavit was an undated "exemplar" of what was purportedly decedent's signature, but no effort was made to establish that the exemplar represented decedent's signature at the relevant time. Furthermore, the exemplar was purportedly decedent's handwritten signature, and electronic signatures may naturally differ from handwritten ones.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Contracts §§ 253, 254; AM JUR 2d Venue §§ 10, 13, 48, 51, 69.

CARMODY-WAIT 2d Place of Trial or Venue §§ 48:4, 48:28.

NY JUR 2d Contracts §§ 15, 163–165; NY JUR 2d Courts and Judges §§ 938, 1005, 1037.

SIEGEL, NY PRAC (6th ed) § 123.

WILLISTON ON CONTRACTS (4th ed) § 15:15.

ANNOTATION REFERENCE

See ALR Index under Change of Venue; Forum Selection Clauses; Venue.

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POINTS OF COUNSEL

Goldberg Segalla, LLP, White Plains (*William T. O'Connell* of counsel), for appellant. I. On a motion to change venue under CPLR 501, 510 and 511, a contractual forum selection clause is prima facie valid and enforceable unless the party opposing the change meets its burden of showing that the selected forum is unreasonable, unjust or otherwise objectionable. (*Brooke Group v JCH Syndicate* 488, 87 NY2d 530; *The Bremen v Zapata Off-Shore Co.*, 407 US 1; *Ying Jun Chen v Lei Shi*, 19 AD3d 407; *KMK Safety Consulting, LLC v Jeffrey M. Brown Assoc., Inc.*, 72 AD3d 650; *LSPA Enter., Inc. v Jani-King of N.Y., Inc.*, 31 AD3d 394.) II. After Dewitt Rehabilitation and Nursing Center made its initial showing that the decedent executed an agreement with a forum selection clause that was applicable and enforceable, plaintiff failed to raise any factual issues as to the genuineness of the decedent's signature. (*Al-Kabyalle v Ali*, 159 AD3d 477; *Kanterakis v Minos Realty I, LLC*, 151 AD3d 950; *Banco Popular N. Am. v Victory Taxi Mgt.*, 1 NY3d 381.) III. The Appellate Division majority erred in concluding that Dewitt Rehabilitation and Nursing Center was required to provide proof that DocuSign had a protocol to prevent fraud. (*People v Kangas*, 28 NY3d 984.)

Nguyen Leftt P.C., New York City (*Andrew D. Leftt, H.Q. Nguyen* and *Stephen D. Chakwin* of counsel), for respondent. I. Dewitt Rehabilitation and Nursing Center has not proved that its agreements were signed/initialed by Pamela J. Knight or that it can enforce its claimed contract in the absence of that proof. (*Young v Crescent Coffee, Inc.*, 222 AD3d 704; *Sherrod v Mount Sinai St. Luke's*, 204 AD3d 1053; *O'Donnell v A.R. Fuels, Inc.*, 155 AD3d 644; *Fairlane Fin. Corp. v Greater Metro Agency, Inc.*, 109 AD3d 868; *NYCTL 1998-2 Trust v Santiago*, 30 AD3d 572.) II. Dewitt Rehabilitation and Nursing Center's argument that Pamela J. Knight's signature was an electronic signature and therefore presumed authentic is baseless. (*People v Kangas*, 28 NY3d 984.) III. The *Caio v Throgs Neck Rehabilitation & Nursing Ctr.* (197 AD3d 1030 [1st Dept 2021]) case has no bearing on this case. (*Long v State of New York*, 7 NY3d 269; *People v Petgen*, 55 NY2d 529; *Allen v Morningside Acquisition I, LLC*, 205 AD3d 861.)

OPINION OF THE COURT

GARCIA, J.

Defendant Dewitt Rehabilitation and Nursing Center (Dew-

itt) moved to enforce a contractual venue provision pursuant to article 5 of the CPLR. In response, plaintiff contested the authenticity of the agreements containing the provision, claiming the signatures were forged. We agree that, when put in issue, Dewitt was required to establish the authenticity of the agreements but hold that Dewitt met its initial burden to do so, and that plaintiff failed to meet his corresponding burden to demonstrate forgery. We therefore reverse.

Plaintiff, decedent's son and administrator of her estate, brought this negligence, medical malpractice, and wrongful death action in Supreme Court, New York County, against Dewitt and others not relevant to this appeal. Plaintiff alleged that decedent was a resident at Dewitt, a skilled nursing facility and rehabilitation center, in both February and March of 2019. Dewitt timely moved for an order transferring venue to Nassau County pursuant to a forum selection clause in two admission agreements electronically signed by decedent. In support of the motion, Dewitt submitted the agreements and an affidavit from Dewitt's director of admissions, Francesca Trimarchi. Plaintiff opposed with his own affidavit, asserting that Dewitt failed to meet its authentication burden because Trimarchi did not personally witness decedent sign the agreements and because Dewitt did not otherwise lay a proper foundation for the admission of the agreements as business records. Plaintiff claimed that the signatures on the admission agreements were not genuine and included an exemplar of decedent's purported handwritten signature for comparison.

Supreme Court granted Dewitt's motion, holding that "the party seeking to enforce a forum selection clause has the initial burden" to "show[] that the choice of venue provision is applicable and enforceable," but that "once it has satisfied that burden, the party opposing enforcement of the clause must establish that its enforcement would be unreasonable, unjust, or unconscionable" (2022 NY Slip Op 31048[U], *2-3 [Sup Ct, NY County 2022] [citations omitted]). The court concluded that Dewitt satisfied this "initial burden" and that plaintiff failed to raise a triable issue of fact as to the alleged forgery and ordered the case transferred to Supreme Court, Nassau County (*id.*).

The Appellate Division reversed (219 AD3d 75 [1st Dept 2023]), holding that the party seeking to enforce the provision must, "in the first instance," establish that the purported writing is authentic, which "may be effected by various means, including . . . by certificate of acknowledgment, by comparison

of handwriting, or by the testimony of a person who witnessed the signing of the document” (*id.* at 78 [citations omitted], citing Jerome Prince, Richardson on Evidence § 9-101 [Farrell 11th ed 1995, 2008 Supp], and *Andreyeva v Haym Solomon Home for the Aged, LLC*, 190 AD3d 801, 802 [2d Dept 2021]). According to the majority, Dewitt failed to adequately authenticate the admission agreements because Trimarchi “had no actual knowledge of how the agreements bearing decedent’s name came to be signed,” and the majority therefore held that the forum selection clause was unenforceable (*id.* at 79, citing *Andreyeva*, 190 AD3d at 802). The dissent would have placed the burden on plaintiff as the party challenging the venue provision to establish why it should not be enforced and, under that standard, concluded that plaintiff failed to meet this burden with respect to its forgery allegation (*id.* at 83-84 [Weber, J.P., dissenting]). The Appellate Division granted Dewitt leave to appeal and certified a question. We now reverse.

A contractual clause fixing venue, “made before an action is commenced, shall be enforced upon a motion for change of place of trial,” subject to limited exceptions not relevant here (CPLR 501; *see* 510 [2]; 514). Although forum selection clauses were “once disfavored by the courts,” it has long been “recognized that parties to a contract may freely select a forum which will resolve any disputes over the interpretation or performance of the contract . . . [and] [s]uch clauses are prima facie valid and enforceable unless shown by the resisting party to be unreasonable” (*Brooke Group v JCH Syndicate* 488, 87 NY2d 530, 534 [1996] [citations omitted]). Forum selection clauses may designate a jurisdiction, such as the federal or state court system, or the clause may designate a venue within the state, as was done here by specifying Nassau County as the proper venue (*compare Hunt v Landers*, 309 AD2d 900 [2d Dept 2003] [forum selection clause designating venue in a specific county in New York], *with Boss v American Express Fin. Advisors, Inc.*, 6 NY3d 242 [2006] [dismissal was appropriate where the parties agreed to litigate their claim in Minnesota]; *see also Lowenbraun v McKeon*, 98 AD3d 655, 656 [2d Dept 2012] [holding that a forum selection clause may warrant dismissal where it provides that disputes arising under the agreement be litigated in a different state or federal court]). “Venue presupposes that the court already has both subject matter and personal jurisdiction”; otherwise, dismissal on jurisdictional grounds would make the issue “academic” (David D. Siegel &

Patrick M. Connors, New York Practice § 116 [6th ed, June 2024 update]). New York State supreme courts enjoy statewide jurisdiction, so if any county possesses jurisdiction over a case, “every [s]upreme [c]ourt in the state possesses such jurisdiction irrespective of county” (Vincent C. Alexander, Prac Commentaries, McKinney’s Cons Laws of NY, CPLR C501:1, citing *Matter of Grune v Grenis*, 171 AD2d 1070 [4th Dept 1991]; see also *Benson v Eastern Bldg. & Loan Assn.*, 174 NY 83, 86 [1903] [in New York “there is but one (s)upreme (c)ourt; the court when it sits in Onondaga county and when it sits in Oswego county is exactly the same court”]). As a result, while defects in jurisdiction or on forum non conveniens grounds may result in dismissal of an action, “[a] mere defect of venue . . . is not a dismissal ground in New York practice” but results only in a transfer to the correct venue (Siegel & Connors, New York Practice §§ 116, 117; *Benson*, 174 NY at 86-87; see also *Lowenbraun*, 98 AD3d at 656-657 [recognizing that “(i)mproper venue is not a jurisdictional defect requiring dismissal of the action” (internal quotation marks and citations omitted)]).

[1] That said, the party moving for a change of venue under CPLR 501 is in effect seeking to enforce a contractual provision. For that reason, we agree with the majority below that, when put in issue, the proponent of the motion bears the initial burden to establish the authenticity of the writing for purposes of a motion to enforce a contractual venue provision (see *Martens v Martens*, 284 NY 363, 365 [1940]). This may be done through any of the recognized methods of authentication, including, but not limited to, the testimony of a witness who was present at the time of the signing, an admission of authenticity, proof of handwriting, and, as particularly relevant here, through circumstantial evidence (see Jerome Prince, Richardson on Evidence § 9-103; see also *Young v Crescent Coffee, Inc.*, 222 AD3d 704, 705 [2d Dept 2023]).*

Dewitt met its burden by submitting the Trimarchi affidavit with the attached documents. Trimarchi stated that in February and March of 2019, she was employed as the director of

* We note that because the admission agreements are not hearsay evidence, the business records exception is not relevant here (see *Kepner-Tregoe, Inc. v Leadership Software, Inc.*, 12 F3d 527, 540 [5th Cir 1994] [“A contract is a verbal act (and) has legal reality independent of the truth of any statement contained in it”]; see also *Service Alliance, Inc. v Betesh*, 52 Misc 3d 131[A], 2016 NY Slip Op 50966[U], *1 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2016] [“Contracts, or other documents having independent legal significance, are not hearsay”]).

admissions at Dewitt, and that she searched Dewitt's records for decedent's admission agreements. She affirmed that the agreements were kept and maintained in the ordinary course of Dewitt's business and, while Trimarchi had no personal recollection of decedent, she confirmed that "based upon the signature" of a Dewitt representative, the representative "was present when [decedent] signed" each agreement. Trimarchi then described the custom and practice of Dewitt representatives during the admission process, which involves the representative meeting "with each resident to review the admission paperwork," and determining whether the resident is "oriented," "responsive and conversing appropriately." If the representative determines that the resident is oriented, the representative reviews "every page of the [a]dmission [a]greement with the resident" and then "personally witnesses the resident execute all signature pages," either by hand or electronically. According to the affidavit, the representative's signature establishes that he or she "reviewed every page of the [agreement] with [decedent]."

The agreements that Dewitt submitted are dated February 12, 2019, and March 25, 2019. Decedent's signature appears on the last page of each, as well as on the attached "Medicare Assignment of Benefits Form Signature on File," an "Assignment of Benefits" form, and a "HIPAA Authorization Form." Decedent's initials appear on each page of the agreements and the various attachments. The first paragraph of each attached admission agreement contains bold text advising that "[t]he Resident . . . hereby understand[s] and agree[s] that Admission to the Facility is conditioned upon the review and execution of this Agreement and related documents." Plaintiff's complaint confirms that decedent was indeed a resident at Dewitt in both February and March of 2019, when some of the allegedly negligent care occurred.

[2] On this record, Dewitt came forward with sufficient circumstantial evidence of authenticity. Once that showing was made, the burden shifted to plaintiff to show why the venue selection provision should not be enforced (*see Brooke Group*, 87 NY2d at 534; *see also Puleo v Shore View Ctr. for Rehabilitation & Health Care*, 132 AD3d 651, 652 [2d Dept 2015]). To do so here, plaintiff was then required to produce "evidence sufficient to establish a genuine issue of fact regarding the authenticity" of decedent's signatures (*Banco Popular N. Am. v Victory Taxi Mgt.*, 1 NY3d 381, 383 [2004]). Although an expert

opinion is not required to raise an issue of fact as to forgery (see *id.* at 384), the movant must nevertheless offer “[s]omething more than a bald assertion,” and in this regard conclusory or self-serving affidavits are inadequate (*id.*; see also *Peyton v State of Newburgh, Inc.*, 14 AD3d 51, 54 [1st Dept 2004]). Plaintiff offered only an affidavit in which he claimed to be “familiar” with decedent’s handwriting. Based on a summary of certain perceived inconsistencies in the signatures and initials on the agreements, plaintiff asserted that “whoever the person or people who signed and initialed these pages may have been, it was not my mother.” Attached to the affidavit is an undated “exemplar” of what is purportedly decedent’s signature, but no effort is made to establish that the exemplar represents decedent’s signature at the relevant time. Furthermore, the exemplar is purportedly decedent’s handwritten signature, and, as the Appellate Division majority noted, electronic signatures may naturally differ from handwritten ones (219 AD3d at 81). We therefore agree with Supreme Court that plaintiff’s submission was insufficient to raise a question of fact.

In sum, when the authenticity of a document is put in issue on a motion to change venue pursuant to CPLR article 5, the party relying on the document has the initial burden of establishing its authenticity. Here, Dewitt met that burden. Plaintiff in turn failed to establish a triable issue of fact as to whether the signatures were forged.

Lastly, we note that the Appellate Division majority erred in relying on CPLR 4539 (b), titled “Reproductions of original,” when it suggested that Dewitt should have submitted proof that the electronic signature software used by Dewitt had a protocol to prevent fraud (219 AD3d at 81). Even if this provision, found in CPLR article 45 governing admission of evidence, could be said to apply to the authentication of a contract submitted with a change of venue motion, it would be inapplicable here. CPLR 4539 (b) requires “authenticat[ion] by competent testimony or affidavit which shall include the manner or method by which tampering or degradation of the *reproduction* is prevented” (*id.* [emphasis added]), but it does not apply where, as with the admission agreements, the documents at issue “were originally created in electronic form” (*People v Kangas*, 28 NY3d 984, 985-986 [2016] [in considering whether a record was admissible in a criminal trial, the Court held that “CPLR 4539 (b) applies only when a document that originally

existed in hard copy form is scanned to store a digital ‘image’ of the hard copy document, and then a ‘reproduction’ of the digital image is printed in the ordinary course of business”]). That the relevant agreements were signed electronically likewise has no bearing on authenticity, as such signatures are statutorily entitled to “the same validity and effect as . . . a signature affixed by hand” (State Technology Law § 304 [2]).

Accordingly, the order of the Appellate Division should be reversed, with costs, the order of Supreme Court, New York County, reinstated and the certified question answered in the negative.

Chief Judge WILSON and Judges RIVERA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order reversed, with costs, order of Supreme Court, New York County, reinstated and certified question answered in the negative.

[252 NE3d 1093, 228 NYS3d 96]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FRED-
DIE T. WRIGHT, Appellant.

Argued April 18, 2024; decided June 18, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 16, 2022. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Stephen W. Paynter, J., at suppression; Charles S. Lopresto, J., at trial), which had convicted defendant, upon a jury verdict, of robbery in the second degree and criminal trespass in the second degree.

People v Wright, 203 AD3d 965, affirmed.

HEADNOTES

**Crimes — Jurors — Selection of Jury — Batson Chal-
lenges — Race-Neutral Reasons for Exercising Peremptory
Strikes**

1. In the criminal prosecution of defendant, a Black man, there was record support for the determinations of the courts below that the People had valid, race-neutral reasons for exercising peremptory strikes on two Black prospective jurors. Overall, the first juror's responses during voir dire gave rise to reasonable inferences that he viewed an arrest of his cousin for marijuana possession as a crime against his cousin, he viewed the arrest of his cousin as a "raid" by police, and that his negative feelings towards police could have affected his view of police witnesses in the case, regardless of any contradictory assurances he might have given. Those inferences were patently reasonable and the trial court's determination that the nondiscriminatory reasons offered by the People in support of their peremptory strike were credible and nonpretextual was supported in the record. Although there were other prospective jurors whose family members had also been arrested, the record did not indicate that those jurors shared the feelings of the juror in question about the police or felt as strongly as he did about their respective incidents. None of the other jurors made comments indicating that they felt the arrest in question was wrong, or that they had lingering negative feelings about it. Additionally, the People expressed concern that the second juror's job duties would cause her to be inappropriately sympathetic to defendant. A party may permissibly strike a juror who works in a certain field because that party believes, for reasons unrelated to the facts of the case, that such individual may have a more sympathetic attitude or view toward the opposing party.

**Crimes — Identification of Defendant — Showup — Procedures
Conducted Immediately after Arrest in Close Proximity to Crime
Scene**

2. In defendant's robbery prosecution, the courts below did not err in holding that the showup identification procedures used immediately after defend-

ant's arrest were not unduly suggestive. A showup procedure in which a suspect is handcuffed and in the presence of police is reasonable under the circumstances when it is conducted in close geographic and temporal proximity to the crime. When a showup is done as part of one unbroken chain of events—crime, escape, pursuit, apprehension and identifications—such a procedure is acceptable. The showups here were conducted within a few blocks of the crime scene and took place immediately after the robbery and defendant's apprehension. That defendant was handcuffed and in the presence of police officers was not unusual for a crime-scene showup justified by exigency, particularly where a weapon may have been used in the crime. Given that the police were looking for armed robbers, they logically would have wanted to move as quickly as possible to find out whether they had apprehended the perpetrator, and a showup is not improper merely because the police already have probable cause to detain a suspect. That the police may have had cause to arrest defendant for trespass did little to mitigate the concern that, if he was not identified by the victims as one of the robbers, the perpetrators of that crime might have remained at large in the community. Moreover, defendant was not shown handcuffed in the back of a police car, he was not shown to the witnesses with any evidence of the stolen property, and the showups were conducted separately—reducing any risk of the witnesses inadvertently influencing each other.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law § 907; AM JUR 2d Evidence §§ 620, 623; AM JUR 2d Jury § 206.

CARMODY-WAIT 2d Jury Selection and Supervision §§ 191:63–191:74; CARMODY-WAIT 2d Particular Types of Evidence §§ 194:222–194:224, 194:228.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 7.4, 22.3.

NY JUR 2d Criminal Law: Procedure §§ 2108, 2626–2631.

ANNOTATION REFERENCE

Admissibility of evidence of showup identification as affected by allegedly suggestive showup procedures. 39 ALR3d 791.

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Query: peremptory /s race-neutral /2 reason & pretextual
/s deference /3 appeal

POINTS OF COUNSEL

Patricia Pazner, Appellate Advocates, New York City (Chelsea F. Lopez of counsel), for appellant. I. The prosecutor's proffered

reasons for striking two African American panelists were pretextual when those reasons were unevenly applied, lacked record support, and bore no relation to the facts and circumstances of the case. (*Batson v Kentucky*, 476 US 79; *People v Allen*, 86 NY2d 101; *Strauder v West Virginia*, 100 US 303; *People v Bridgeforth*, 28 NY3d 567; *Hernandez v New York*, 500 US 352; *Purkett v Elem*, 514 US 765; *People v Hecker*, 15 NY3d 625; *People v Payne*, 88 NY2d 172; *Miller-El v Dretke*, 545 US 231; *People v Bell*, 126 AD3d 718.) II. The showup identifications were unduly suggestive when appellant was displayed handcuffed, guarded by “a lot” of police officers, near at least four marked police cars, wearing a red hoodie, and the key feature in both witnesses’ descriptions of the masked robber, and one witness overheard a radio communication that “they stopped a guy” followed by a police officer saying that they “think it is the guy.” (*United States v Wade*, 388 US 218; *People v Duuvon*, 77 NY2d 541; *People v Adams*, 53 NY2d 241; *Neil v Biggers*, 409 US 188; *People v Marshall*, 26 NY3d 495; *Young v Conway*, 698 F3d 69; *People v Chipp*, 75 NY2d 327; *People v Ortiz*, 90 NY2d 533; *People v Riley*, 70 NY2d 523; *People v McNeil*, 39 AD3d 206.)

Melinda Katz, District Attorney, Kew Gardens (Danielle M. O’Boyle and John M. Castellano of counsel), for respondent. I. The trial court’s findings that the prosecutor did not discriminate in challenging two prospective jurors, which were affirmed by the Appellate Division, are fully supported by the record. (*People v James*, 99 NY2d 264; *People v Allen*, 86 NY2d 101; *People v Hecker*, 15 NY3d 625; *People v Narayan*, 54 NY2d 106; *People v Cona*, 49 NY2d 26; *People v Martin*, 50 NY2d 1029; *People v McLean*, 15 NY3d 117; *Snyder v Louisiana*, 552 US 472; *People v Ross*, 83 AD3d 741.) II. The hearing court properly denied defendant’s motion to suppress the showups as defendant was identified minutes after the crime and a block away. (*People v Montgomery*, 88 NY2d 1041; *People v Prochilo*, 41 NY2d 759; *People v Howard*, 22 NY3d 388; *People v Duuvon*, 77 NY2d 541; *People v Bartlett*, 137 AD3d 806; *People v McClennon*, 188 AD3d 918; *People v Smith*, 185 AD3d 1203; *People v Santiago*, 83 AD3d 1471; *People v Grant*, 77 AD3d 558.)

Center on Race, Inequality and the Law, New York University Law School, New York City (Tasleemah Tolulope Lawal, Jason D. Williamson and Vincent M. Southerland of counsel), and *New York Civil Liberties Union Foundation, New York City (Ifeyinwa Chikezie, Daniel R. Lambright and Molly K. Biklen of*

counsel), for Center on Race, Inequality and the Law and another, amici curiae. I. New York's current *Batson* test employs a subjective analysis that allows for discriminatory peremptory strikes (*Batson v Kentucky*, 476 US 79 [1986]). (*People v Bridgeforth*, 28 NY3d 567; *People v Allen*, 86 NY2d 101; *Purkett v Elem*, 514 US 765; *Hernandez v New York*, 500 US 352; *People v Smocum*, 99 NY2d 418; *Miller-El v Cockrell*, 537 US 322; *People v Payne*, 88 NY2d 172; *People v Luciano*, 10 NY3d 499; *Wainwright v Witt*, 469 US 412; *Patton v Yount*, 467 US 1025.) II. New York courts should adopt an objective standard at step III of the *Batson* test (*Batson v Kentucky*, 476 US 79 [1986]). (*People v Goetz*, 68 NY2d 96.) III. This Court's history of advancing the law to promote equity supports the adoption of an objective *Batson* standard (*Batson v Kentucky*, 476 US 79 [1986]). (*People v Hameed*, 88 NY2d 232; *Georgia v McCollum*, 505 US 42; *People v Blunt*, 162 AD2d 86; *J. E. B. v Alabama ex rel. T. B.*, 511 US 127; *People v Bennett*, 206 AD2d 382.)

OPINION OF THE COURT

CANNATARO, J.

Defendant appeals from an order of the Appellate Division upholding the denial of his *Batson* challenge to the People's exercise of peremptory strikes on two prospective jurors (*see Batson v Kentucky*, 476 US 79 [1986]), and denying his motion to suppress the identification testimony of two witnesses. Applying our well settled and limited standard of review, there is record support for the determinations below that the People had valid, race-neutral reasons for striking the two prospective jurors. There is likewise record support for the conclusions of the courts below that the showup procedure used by police was not unduly suggestive. We therefore affirm.

I.

On the morning of March 26, 2017, two men robbed a restaurant located on Atlantic Avenue in Queens. Upon entering the restaurant, one of the robbers, a Black man wearing a red "hoodie," black jacket, and a bandana over his face, approached Assistant Manager Sumintra Ramsahoye, took something wrapped in a plastic bag out of his pocket, pressed it to her neck, and told her to open the safe in the restaurant's office. Ramsahoye responded that she could not open the safe and, on the robber's demand, instead opened the drive-through cash register drawers and handed over their contents. While these events were taking place, the other perpetrator was

standing next to another employee, Jordan Guzman. After the robbers ran out of the restaurant, Guzman called the police.

Police Officer Bryce Blake and his partner were on duty in a marked patrol car about a block away when they received a radio call of a robbery in progress. The officers arrived at the restaurant within two or three minutes and Officer Blake observed defendant standing in the parking lot dressed in a black jacket and red hoodie. Upon seeing the patrol car, defendant fled. Officer Blake pursued defendant on foot for several minutes, eventually observing defendant enter a home through its back entrance. The homeowner advised Blake that the individual who entered the house was in the living room. The officers entered the home, found defendant sitting on a couch in the living room, and placed him under arrest.

Simultaneously, other officers were driving Guzman around the neighborhood to see if he could identify the robbers. The canvassing yielded no positive results, but twice, Guzman indicated that individuals stopped by the police were not the perpetrator. Several minutes into the ride, Guzman overheard a radio call indicating that police had apprehended someone and heard one of the officers in the car say, "I think it is the guy." Police then brought Guzman to the house where he identified defendant from his red hoodie and from the way his eyes and forehead looked above the bandana. Police also brought Ramsahoye to the house to make an identification. Upon arriving Ramsahoye saw defendant step out of a police vehicle with his hands behind his back and identified him as the man who robbed her based on his clothing, height, and body weight. At the suppression hearing, which took place over a year later, Guzman was able to identify defendant but Ramsahoye was not.

Defendant moved to suppress the identification testimony, arguing that the identification procedures were unduly suggestive. The court denied the motion, finding that the identifications were not "overly suggestive and improper" because they were made in a "very short spatial and temporal time between the incident and arrest." Additionally, the court found that the radio communication and comment overheard by Guzman while riding with police were not so suggestive as to warrant suppression of his identification.

During jury selection, defendant raised a *Batson* challenge, as relevant here, to the People's use of peremptory strikes on two prospective jurors—C.C. and K.C. C.C., who was a member

of the first voir dire panel, was an unmarried Black man with no children who rented his home. When the court inquired of the panel if they knew anyone who had been the victim of a crime, C.C. responded by relating an event 15 years prior in which his cousin was arrested by police for marijuana possession at a family gathering. C.C. recounted that police

“came to the house. They just arrested [my cousin] and took him out and took the other cousins. I had two or three cousins in the house at the time. So they took all three of them and actually, my aunt, which is their mother, with them to the precinct. So they just raided the house and took them all out.”

Notably, when asked whether “they were all arrested in that incident,” C.C. answered, “Yeah.” C.C. gave assurances that he could be fair notwithstanding this incident but, later, when the People inquired whether he harbored any negative feelings about the police as a result of this incident, C.C. responded, “Well, yeah, the way—just the fact that they took everybody. I didn’t know that they had to take everybody. But that was it.”

Defendant challenged the People’s strike of C.C. on the ground that it was an attempt to improperly exclude Black jurors. The court found that defendant had made a *prima facie* showing that the People sought to exclude C.C. on the basis of race and asked them to provide a nondiscriminatory reason for the use of the strike. The People responded that C.C. “had cousins who had been arrested . . . had other friends that had been involved in multiple arrests . . . that he rents, and he has no children . . . [and] is not married.” Defendant countered that “there were jurors that are on this panel that are not African American who meet every one of those criteria that was just annunciated.” Supreme Court found that the reasons proffered by the People for their strike of C.C. were not pretextual.

K.C., a Black woman, was another prospective juror who was interviewed during the third round of jury selection. K.C. answered affirmatively when the court asked if any of the jurors worked in law enforcement and explained that she worked for the Department of Probation in Family Court. Specifically, K.C. stated that her job entailed interviewing juveniles who had been charged with a crime to determine if they should receive “intake diversion, which is, like, a short-term probation or if they go to see the judge.” The People struck K.C. from the panel with a peremptory strike.

Defendant challenged the use of this peremptory strike on the ground that the People were improperly excluding K.C. based on race. The court found that defendant made a prima facie showing of discrimination and required the People to give a race-neutral explanation for their strike. In response, the People noted that K.C. “works for the Department of Probation in the family court which is obviously within the legal field. And on top of it, she works for probation with juveniles” and that, because of her job, “sympathy might come into play.” Defendant countered that K.C. had made clear that “[s]he wouldn’t allow sympathy to interfere in her deliberations” and that “[t]here have been other people with law enforcement backgrounds that have not been challenged by the Prosecution.” Supreme Court found that the reasons proffered by the prosecution were non-pretextual and denied defendant’s *Batson* challenge.

A jury ultimately convicted defendant of second-degree robbery and second-degree criminal trespass. The Appellate Division affirmed, holding that defendant had “failed to satisfy his burden of demonstrating, under the third prong of the *Batson* test, that the facially race-neutral explanation given by the prosecutor was a pretext for racial discrimination” (203 AD3d 965, 966 [2d Dept 2022]).

A Judge of this Court granted defendant leave to appeal (38 NY3d 1191 [2022]) and we now affirm.

II.

The legislature has long afforded parties to a criminal trial a statutory right to exercise a certain number of peremptory strikes, which are “objection[s] to a prospective juror for which no reason need be assigned” (CPL 270.25 [1]). Unlike a strike for cause, a party exercising a peremptory strike need not give a specific reason why they believe a juror cannot be impartial (*see People v Allen*, 86 NY2d 101, 108-109 [1995]). Nonetheless, equal justice under the law requires that a criminal trial be devoid of racial discrimination in jury selection, and the *Batson* process endeavors to ensure that such discrimination does not infect the selection process (*see Batson*, 476 US at 91).

A *Batson* challenge requires a three-step analysis to determine whether a peremptory strike was used for the purpose of improper discrimination. At step one, the moving party must make a prima facie showing that the opposing party has exercised a peremptory strike to remove a potential juror on

the basis of race (*see* 476 US at 96). At step two, the burden shifts to the nonmoving party to come forward with a nondiscriminatory reason for each of the challenged strikes (*see People v James*, 99 NY2d 264, 270 [2002]). Finally, at step three, once race-neutral reasons for the strike are provided, “the inference of discrimination is overcome” and the ultimate burden shifts back to the moving party to “persuad[e] the court that the reasons are merely a pretext for intentional discrimination” (*People v Smocum*, 99 NY2d 418, 422 [2003]; *see People v Hecker*, 15 NY3d 625, 634 [2010]).

A trial court’s determination at step three of the *Batson* analysis as to whether use of a peremptory strike is pretextual is accorded “great deference” on appeal (*Hecker*, 15 NY3d at 656 [internal quotation marks omitted]). “A trial court is best situated to evaluate both the words and the demeanor of jurors who are peremptorily challenged, as well as the credibility of the prosecutor who exercised those strikes” (*Davis v Ayala*, 576 US 257, 273-274 [2015]). Even where reasonable minds might differ as to whether a proffered justification is pretextual, the trial court’s finding should be affirmed so long as there exists record support for it (*see People v Hernandez*, 75 NY2d 350, 356 [1990], *aff’d* 500 US 352 [1991]). Only where a trial court’s decision as to pretext finds no support in the record may that decision be overturned on the cold record of appeal (*see People v Malloy*, 33 NY3d 1078, 1079 [2019]; *Hecker*, 15 NY3d at 657).

The People’s asserted reason for striking C.C. was that “he had cousins who had been arrested . . . had other friends that had been involved in multiple arrests . . . that he rents, and he has no children . . . [and] is not married.” Initially, we have characterized “family involvement with police officers” as a “clearly nonpretextual” reason for exercising a peremptory challenge (*Smocum*, 99 NY2d at 420, 423). Moreover, here, the record demonstrates that C.C. felt strongly about the prior incident in which his cousin and family members had been arrested. Indeed, C.C. first mentioned the arrest in response to the court’s inquiry as to whether any of the potential jurors knew anyone who had been a victim of a crime, not in response to an inquiry about whether jurors knew anyone who had been arrested. Further, C.C. stated that police “raided the house” and “barged in” prior to arresting his cousin and detaining other family members, suggesting that he harbored strong feelings about the methods used by law enforcement. Finally, C.C. responded in the affirmative when pressed by the People as to

whether this incident caused him to have negative feelings towards police.

[1] Any one of these responses would constitute record support for the trial court's pretext determination. Overall, C.C.'s responses gave rise to reasonable inferences that: (1) he viewed the arrest of his cousin for marijuana possession as a crime against his cousin; (2) he viewed the arrest of his cousin as a "raid" by police; and (3) his negative feelings towards police could affect his view of police witnesses in the case, regardless of any contradictory assurances he might have given. These inferences are patently reasonable and the trial court's determination that the nondiscriminatory reasons offered by the People in support of their peremptory strike of C.C. were credible and non-pretextual finds ample support in the record (*see Miller-El v Cockrell*, 537 US 322, 338-339 [2003]; *see also Smocum*, 99 NY2d at 420-423).

While it is true that unequal application of even facially neutral reasons for a strike can support a finding of pretext, that is but one factor for a court to consider and does not demonstrate discriminatory intent in and of itself, especially where the circumstances surrounding the challenged juror are distinguishable (*see Flowers v Mississippi*, 588 US 284, 301-302 [2019]). Here, although there were other prospective jurors whose family members had also been arrested, the record does not indicate that those jurors shared C.C.'s feelings about the police or felt as strongly as he did about their respective incidents. None of those other jurors made comments indicating that they felt the arrest in question was wrong, or that they had lingering negative feelings about it.

Similarly, although the dissent is correct that disparate questioning "can arm a prosecutor with seemingly race-neutral reasons to strike the prospective jurors of a particular race' while 'declin[ing] to seek what they do not want to find about white prospective jurors'" (dissenting op at 733, quoting *Flowers*, 588 US at 310), this observation lends more towards a condemnation of the *Batson* process itself than it does the trial court's decision in this case. After all, *Batson* requires simply that the People provide a credible non-pretextual reason for striking a particular juror; it does not require a justification for why other jurors were not stricken, and the Supreme Court has never endorsed such an analysis. Moreover, the prosecutor here *did* question other jurors who related negative experiences with police. For instance K.L. revealed during voir dire

that he had a “bad experience[]” with the police approximately 10 years earlier when they detained his mother while verifying that she had a vendor’s license for her food truck. The prosecutor questioned K.L. about his lingering negative feelings toward police officers because of this encounter and, ultimately, challenged K.L. for cause.¹

Further, the People were not required to credit C.C.’s statement that his feelings regarding his cousin’s arrest would not influence his ability to be fair and impartial if his other answers showed an inability to live up to that promise (*see Hernandez*, 75 NY2d at 356). The dissent’s emphasis on C.C.’s self-proclaimed impartiality seems to ignore the purpose of peremptory challenges, which exist for precisely this kind of situation. Indeed, had C.C. answered the other way—that he would not be able to be fair and impartial—the People would have had a legitimate basis to challenge C.C. for cause (*see* CPL 270.20 [1]).

On this record, “we cannot say as a matter of law that the [People’s] proffered reason[s] [were] ‘pretext for racial discrimination’ ” (*Malloy*, 33 NY3d at 1079, quoting *Hernandez v New York*, 500 US 352, 363 [1991]). In so concluding, we do not supply our own non-pretextual reasons to justify the People’s peremptory strike. We merely review the record before us—as is our obligation—and find ample support for the trial court’s undisturbed factual finding that the People’s treatment of C.C., to the extent it differed from that of other jurors who had relatives arrested, was not racially motivated (*see Hecker*, 15 NY3d at 656; *People v Vandover*, 20 NY3d 235, 239 [2012]).² Unlike the dissent, we cannot engage in de novo fact-finding.

1. K.L. was stricken on consent of defendant, obviating any need for the People to exercise a peremptory strike as to that juror.

2. The facts of *Foster v Chatman* (578 US 488 [2016]), relied on by the dissent, are strikingly different. In *Foster*, the prosecutor’s voir dire notes and other documentary evidence contained considerable evidence that the People had taken into account the race of the jurors as part of their deliberations as to which jurors to strike, with the Supreme Court observing that the “sheer number of references to race in [the prosecution’s] file is arresting” (*id.* at 513). A “compelling” showing of disparate treatment of Black and non-Black prospective jurors, combined with “shifting explanations, . . . misrepresentations of the record, and the persistent focus on race in the prosecution’s file,” left the Supreme Court with the “firm conviction that the strikes [in question] were motivated in substantial part by discriminatory intent” (*id.* at 512-513 [internal quotation marks omitted]). To be sure, such conspicuous evidence of racial motivation is not required for a defendant to sustain the ultimate burden of persuasion on pretext. Nonetheless, the

(n. cont’d)

Finally, the only *Batson* issue before us on this appeal is whether the record supports the trial court's determination at step three that the People's stated justifications for striking C.C. and K.C. were non-pretextual.³ We note, however, that the trial court did articulate the wrong test at step one of defendant's *Batson* challenge relating to C.C., stating that the defendant had met his burden of showing that the People were excluding jurors *solely* on the basis of race. However, the dissent's attempt to arrogate this misstatement into reversible error—on an issue that was neither objected to below nor raised by defendant on appeal—is misplaced. The parties agree that the trial court properly concluded that defendant satisfied step one of the *Batson* analysis. There is no evidence that the court's misstatement at step one infected the court's step three analysis. The court applied the correct standard at step three in determining that the People's proffered reason was not pretextual, finding no "basis for discrimination" in the way the People exercised their strikes and that it "believed the reasons given for these jurors given peremptory challenges were not pretextual and were the genuine reasons why [the prosecutor] challenged these jurors." The court's function at step three is distinct from its role at step one and, the dissent's transference theory notwithstanding, the trial court here did not reject defendant's *Batson* challenge on the ground that defendant had failed to demonstrate that racial discrimination was the *sole* basis for the strikes. Given the court applied the correct standard at step three, any mischaracterization of the standard at step one is not determinative.

As for prospective juror K.C., the People offered a race-neutral reason for their use of a peremptory strike, specifically that "she works for [P]robation with juveniles." The People expressed concern that K.C.'s job duties would cause her to be inappropriately sympathetic to defendant. K.C.'s job involved determining whether juvenile offenders would be entitled to intake diversion, or face prosecution, and she was previously employed as a caseworker. We have previously recognized that a party may permissibly strike a juror "who works in a certain field . . . because that party believes—for reasons unrelated to

ultimate burden of persuasion on pretext rests on defendant and, here, the People's race-neutral explanations find support in the record.

3. It is unclear why the dissent includes other potential jurors in its analysis. A.S., who was struck for cause, and T.C., on whom the People exercised a peremptory strike, are not at issue in this appeal.

the facts of the case—that such individual may have a more sympathetic attitude or view toward the opposing party” (*Hecker*, 15 NY3d at 664, citing *People v Wilson*, 43 AD3d 1409, 1411 [4th Dept 2007] [permissible for the People to challenge a social worker on the basis they may be predisposed to sympathy towards defendants], *lv denied* 9 NY3d 994 [2007]; *see also People v Hardy*, 61 AD3d 616, 616 [1st Dept 2009] [use of a peremptory strike against a juror who was an aspiring social worker], *lv denied* 13 NY3d 744 [2009]; *People v Wint*, 237 AD2d 195, 197 [1st Dept 1997] [use of peremptory strikes against psychiatric worker and social worker], *lv denied* 89 NY2d 1103 [1997]; *People v Mancini*, 219 AD2d 456, 457-458 [1st Dept 1995] [use of a peremptory strike against a teacher], *lv denied* 86 NY2d 844 [1995]). Here, we cannot say that there is no record support for the trial court’s finding that the reason offered by the People was not pretextual and as such there is no basis for reversal on these grounds (*see Hecker*, 15 NY3d at 663-664).⁴

III.

[2] Finally, the courts below did not err in holding that the showup identification procedures used immediately after defendant’s arrest were not unduly suggestive. Showups are “generally suspect and disfavored” (*People v Duuvon*, 77 NY2d 541, 543 [1991]). Nonetheless, “at-the-crime-scene civilian showup identifications are not presumptively infirm” (*id.*) and are permissible “if exigent circumstances require immediate identification, or if the suspects are captured at or near the crime scene and can be viewed by the witness immediately” (*People v Riley*, 70 NY2d 523, 529 [1987] [citation omitted]; *see People v Johnson*, 81 NY2d 828, 831 [1993]; *People v Gilford*, 16 NY3d 864, 868 [2011]).

4. To be sure, there have been many calls for the reform of peremptory strikes (*see generally Commonwealth v Fernandes*, 487 Mass 770, 776 n 6, 170 NE3d 286, 298 n 6 [2021] [“peremptory challenges themselves are not essential to the constitutional guarantee of a fair trial by an impartial jury, and some have advocated for their outright elimination”]; *see also* New York State Justice Task Force, *Recommendations Regarding Reforms to Jury Selection in New York* [Aug. 2022], <http://www.nyjusticetaskforce.com/pdfs/Report-on-Recommendations-Regarding-Reforms-to-Jury-Selection-in-New-York.pdf>). However, as the law stands, our review is limited to whether there was record support for the trial court’s determination. Indeed, defendant neither sought below nor seeks before this Court an alteration to *Batson* such as that proposed by the dissent.

Although this Court has stated that a showup procedure in which a suspect is handcuffed and in the presence of police is “suggestive and not preferred” and “presses judicial tolerance to its limits” (*People v Duuvon*, 77 NY2d 541, 545 [1991]), we have concluded that such a showup is “reasonable under the circumstances” when it is conducted in close geographic and temporal proximity to the crime (*People v Brisco*, 99 NY2d 596, 597 [2003]). When a showup is done as part of “one unbroken chain of events—crime, escape, pursuit, apprehension and identifications”—such a procedure is acceptable (*Duuvon*, 77 NY2d at 544-545; *see also People v Ortiz*, 90 NY2d 533, 537 [1997] [“Proof that the showup was conducted in close geographic and temporal proximity to the crime will generally satisfy . . . the People’s burden” of showing that a showup procedure was not unduly suggestive]). As we have recognized, “‘prompt showup identifications by witnesses following a defendant’s arrest at or near the crime scene have been generally allowed’” (*People v Johnson*, 81 NY2d 828, 831 [1993], quoting *Duuvon*, 77 NY2d at 544; *accord People v Howard*, 22 NY3d 388, 402 [2013]). Moreover, “[w]hether a crime scene showup is unduly suggestive is a mixed question of law and fact. Thus, if record evidence supports the determination below, this Court’s review is at an end” (*Brisco*, 99 NY2d at 597; *see People v Romero*, 27 NY3d 981, 982 [2016]; *Howard*, 22 NY3d at 403; *Gilford*, 16 NY3d at 868; *People v Clark*, 85 NY2d 886, 889 [1995]).

Here, as the trial court found, the showups were conducted within a few blocks of the crime scene and took place immediately after the robbery and defendant’s apprehension. That defendant was handcuffed and in the presence of police officers is not unusual for a crime-scene showup justified by exigency, particularly where a weapon may have been used in the crime (*see e.g. Howard*, 22 NY3d at 403; *Gilford*, 16 NY3d at 867). “[G]iven that the police were looking for armed robbers, they logically would have wanted to move as quickly as possible to find out whether they had apprehended the . . . perpetrator[]” and a “showup is not improper merely because the police already have probable cause to detain a suspect” (*Howard*, 22 NY3d at 403). That the police may have had cause to arrest defendant for trespass, as the dissent contends, does little to mitigate the concern that, if he was not identified by the victims as one of the robbers, the perpetrators of that crime might have remained at large in the community. Moreover, there are indicia of reasonableness in the procedures used; de-

fendant was not shown handcuffed in the back of a police car (*compare Duuvon*, 77 NY2d at 545); he was not shown to the witnesses with any evidence of the stolen property (*compare Riley*, 70 NY2d at 530); and the showups were conducted separately—reducing any risk of the witnesses inadvertently influencing each other (*compare People v Adams*, 53 NY2d 241, 249 [1981]).

To the extent defendant argues that statements overheard by Guzman in the back of the police car were unduly suggestive, certainly, such conduct is not to be encouraged. Nonetheless, it is pertinent that the police had already shown Guzman two other individuals—who they presumably also suspected could have been the robbers and Guzman declined to identify as the perpetrators. In any event, even if “it is possible to disagree with the lower courts here, it simply cannot be said that no record support exists for their unanimous determination that [these] showup[s] [were] reasonable and not unduly suggestive” (*Howard*, 22 NY3d at 403). “As a result, the determination of the hearing court in this case, undisturbed by the Appellate Division and supported by evidence in the record, is beyond our further review” (*Gilford*, 16 NY3d at 868).

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge WILSON (dissenting). Mr. Wright was convicted, upon a jury trial, of robbing a Taco Bell. He may have done so, but that is not the question before our Court. The question is whether his conviction was obtained consistent with two rules fundamental to the procedural fairness of trials: the police should not use highly suggestive procedures to obtain eyewitness identifications, and prosecutors should not consider the race of prospective jurors when exercising peremptory strikes. I conclude it was not, and for that reason I would reverse and vacate his conviction so that he can be retried consistent with the requirements of due process.

I.

I turn first to the suggestiveness of the identification procedure. Ms. Ramsahoye, the supervisor on duty, testified that the person who directed her to hand over the registers was “wearing a red hoodie, black jacket.” When asked, “Could you see any part of his face,” she answered: “No. He had something over his nose.” The other witness, Mr. Guzman, testified that

he was asleep when the robbers entered the Taco Bell, was awakened by the noise, and before the man took Ms. Ramsahoye into the office he observed only the man's forehead and eyes, because the rest was covered by the hoodie and a bandana. He identified the man as wearing a red hoodie, with no mention of a jacket, black or otherwise. The record is clear: neither witness saw the face of either robber.

Officers Blake and Schuman were in the vicinity of the Taco Bell and responded to a radio call for a robbery in progress, describing the perpetrator as "a male Black, black jacket," with no mention of a red hoodie. When they stopped in front of the Taco Bell, they saw a man wearing a black jacket and red hoodie walking toward a Lincoln Town Car who "took off running" when he saw the officers. They saw him enter the back yard of a house, and although they tried to follow him, they lost sight of him twice, first for "less than ten minute[s]," and then a second time for less than a minute.

Officer Blake then apprehended Mr. Wright in the living room of a house he had no permission to enter, and Officer Blake placed him under arrest. Approximately 5 to 10 minutes later, officers arrived at the scene with Ms. Ramsahoye and Mr. Guzman for the showup identification process. Ms. Ramsahoye testified that officers responding at the Taco Bell "asked [her] to go and identify someone." After arriving at the house, one of the officers told her that they "would bring someone out" of another police car. Although she did not recall exactly how many officers were present, Ms. Ramsahoye testified that there were "quite a few" and that there were at least four police cars.

While sitting in the patrol car, from approximately 30 feet away, Ms. Ramsahoye saw "police br[ing] the suspect" out from another officer's car with his hands behind his back. He was wearing a red hoodie but not a jacket. She did not recognize his face but identified the man as the robber due to "the clothes that he was wearing, the height and his body weight." When asked at the suppression hearing what else Wright was wearing, Ms. Ramsahoye testified, "I don't remember—that's all I remember, just wearing a red hoodie. Of course his jeans or whatnot." At the suppression hearing, Mr. Wright was present, and Ms. Ramsahoye was asked if she recognized him. She said that she was not sure who he was.

At trial, however, Ms. Ramsahoye first testified that when the police brought her to see if she could identify the person they were bringing out of a police car, in handcuffs, she

recognized that person as the person who had robbed the store, and twice described him, at the time the police brought him out, as wearing a red hoodie and a black jacket when she identified him. Next, she testified that the man she identified when the police brought him out was the defendant. Then, she testified that Mr. Wright was someone with whom she had worked approximately seven years before the robbery, but had not recognized him as her former coworker as the robbery occurred, when she made an identification shortly thereafter, or during the 45 minutes she observed him during the suppression hearing (at which time she could not even identify him as the man who robbed the store).

Turning back to the time just after the robbery, other officers had been driving around the neighborhood with Mr. Guzman in search of the robbers. After “circling the area” for 6 to 10 minutes, Mr. Guzman heard the officers receive “a call and said they stopped a guy and they think it is the guy” and “went to the location” relayed over the radio, the house where Mr. Wright had been apprehended. At the suppression hearing, Mr. Guzman clarified that he overheard the officers receive a call on the police radio, and that one of the officers escorting him stated “I think it is the guy.” At trial, Mr. Guzman reaffirmed that while in the police car he heard, over the police radio, someone say that the police had “stopped someone that might be the person,” and that one of the officers in the car transporting Mr. Guzman said, “I think we got the guy.” When they arrived at the location, Mr. Guzman remembered seeing “a lot of police officers,” and he saw “a guy getting arrested outside of a house, escorted outside of a house” handcuffed and in police custody. While seated in a patrol car, from about 20 feet away, Mr. Guzman identified the person under arrest as the robber wearing the red hoodie. However, at trial, Mr. Guzman was not asked whether he saw the robber anywhere in the courtroom, or to make an in-court identification of the defendant.

Mr. Wright moved to suppress both identifications as unduly suggestive. Supreme Court denied his motion, holding that the identifications were not “overly suggestive and improper” because the witnesses were transported one block to identify Mr. Wright 10 to 20 minutes after the robbery, a “very short spatial and temporal time between the incident and arrest.” The Appellate Division affirmed without mentioning the challenge to the identifications by Ms. Ramsahoye and Mr. Guzman as unduly suggestive (203 AD3d 965 [2d Dept 2022]).

Noting that a “confrontation compelled by the State between the accused and the victim or witnesses to a crime to elicit identification evidence is peculiarly riddled with innumerable dangers and variable factors which might seriously, even crucially, derogate from a fair trial,” the United States Supreme Court, in the *Wade-Stovall-Gilbert* trio of cases, established an exclusionary rule barring such identifications when made in the absence of counsel (*United States v Wade*, 388 US 218, 228 [1967]). Although lineups and photo arrays, even when constructed with the best of intentions, may still create some improper suggestiveness, “[i]t is hard to imagine a situation more clearly conveying the suggestion to the witness that the one presented is believed guilty by police” than “the presentation to the witness of the suspect alone handcuffed to police officers” (*id.* at 234). “It is firmly established in our jurisprudence that unduly suggestive pretrial identification procedures violate due process and therefore are not admissible to determine the guilt or innocence of an accused” (*People v Chipp*, 75 NY2d 327, 335 [1990]). The use of impermissibly suggestive identification procedures violates a defendant’s right to due process of law (*Neil v Biggers*, 409 US 188, 196 [1972]). As we have stated, “erroneously induced identification evidence via showups . . . must be vigilantly guarded against because this kind of error drives right into the heart of the adjudicative guilt or innocence process affecting the person accused and identified” (*People v Riley*, 70 NY2d 523, 531 [1987]).

Nevertheless, we have not held that any suggestiveness attendant to a showup requires the suppression of identification evidence where the police have used a showup. Instead, we have “emphasized . . . that the proof ‘must be scrutinized very carefully for [evidence of] unacceptable suggestiveness and unreliability’ ” (*People v Ortiz*, 90 NY2d 533, 537 [1997], quoting *People v Duuvon*, 77 NY2d 541, 543 [1991]), and have set out the following procedure to determine whether identification evidence may be admitted despite the use of a showup:

“While the defendant bears the ultimate burden of proving that a showup procedure is unduly suggestive and subject to suppression, the burden is on the People first to produce evidence validating the admission of such evidence. Initially, the People must demonstrate that the showup was reasonable under the circumstances. Proof that the showup was conducted in close geographic and temporal

proximity to the crime will generally satisfy this element of the People's burden. This does not end the inquiry, however. The People also have the burden of producing some evidence relating to the showup itself, in order to demonstrate that the procedure was not unduly suggestive. As we noted in *People v Chipp*, 'the People have the initial burden of going forward to establish the reasonableness of the police conduct *and the lack of any undue suggestiveness* in a pretrial identification procedure' ” (*id.* [citations omitted]).

Here, the showups failed both elements of the People's burden, especially with respect to suggestiveness. As to reasonableness under the circumstances, although *generally* geographic and temporal proximity will establish reasonableness, that is so because in the ordinary case there is an important policy at play that favors a quick determination of whether there is a basis to arrest someone. In this case, however, as Supreme Court itself acknowledged, because Mr. Wright was trespassing in a home whose owner informed the police Mr. Wright had no reason to be there, the police could have (and did) arrest him on that basis, take him to the precinct, and arrange for witnesses to identify Mr. Wright using a far less suggestive procedure, such as a lineup.¹

As to the second element of the People's burden, production of evidence demonstrating that the showup was not unduly suggestive, Supreme Court conflated the two different examinations, responding to Mr. Wright's contention that "the showups were unnecessary" because there was "probable cause without

1. The majority observes that the ability to arrest the defendant for trespass "does little to mitigate the concern that, if he was not identified by the victims as one of the robbers, the perpetrators of that crime might have remained at large in the community" (majority op at 720). But that observation skirts the problem here: an impermissibly suggestive showup increases the probability that the police have apprehended the wrong person—which not only leaves the perpetrator at large in the community, but gives the false sense of security that the perpetrator is in police custody. The majority's other observations do not advance its position: Mr. Wright was not "shown to the witnesses with any evidence of the stolen property" (*id.* at 721) because (unlike the situation in *Riley*) Mr. Wright was not found with any evidence of the stolen property, which increases the probability that he was not the robber. Mr. Wright "was not shown handcuffed in the back of a police car" (*id.* at 720-721), but the witness saw him being removed from the back of a police car with his hands behind his back—hardly a meaningful distinction in terms of suggestiveness.

the complainants” by pointing out the “very short spatial and temporal time [sic] between the incident and arrest.”

“We have held that ‘[s]howup identifications, by their nature [are] suggestive [and] are strongly disfavored’ . . . By contrast corporeal lineups, properly conducted, generally provide a reliable pretrial identification procedure” (*Chipp*, 75 NY2d at 335, quoting *Riley*, 70 NY2d at 529). Here, the showups were particularly suggestive because neither witness saw the robber’s face and because the showups could easily have been replaced with a less suggestive pretrial identification procedure.

As a further matter, the evidence at the suppression hearing demonstrated the extreme suggestiveness of the procedures used here. Both witnesses observed Mr. Wright as he was handcuffed, surrounded by “a lot of police officers” and at least four police cars. On his way to identify Mr. Wright, Mr. Guzman heard a transmission over the police radio that the police had apprehended someone they believed was the robber, and an officer in the car transporting Mr. Guzman said “I think we got the guy”—both when Mr. Guzman and the officers were merely three or four blocks away from the scene. Functionally, the suggestiveness in this scenario is no different than a police precinct showup, which we have held inadmissible absent exigent circumstances or proof of an independent source (*Riley*, 70 NY2d at 529-532).

As to Ms. Ramsahoye, although she did not hear the police statements that Mr. Guzman did, the remaining circumstances were identical. In addition, her sworn testimony at the suppression hearing—that, after observing Mr. Wright there for 45 minutes, she could not say that he was the robber—is strong evidence that the inherent suggestiveness of the showup resulted in her identification of Mr. Wright as the robber, an identification she admittedly did not make based on his facial appearance, but only on his wearing a red hoodie and his general build, which in itself was not distinctive (five feet, six inches, to five feet, eight inches, 170 to 180 pounds).

The combined effect of the suggestive circumstances of this showup procedure pushed “judicial tolerance” beyond “its limits” (*Duuvon*, 77 NY2d at 545). Absolutely no effort was made by the police to provide for reliable identifications (*see Ortiz*, 90 NY2d at 537). Particularly because the faces of both of the robbers were covered, we should be loath to sanction use

of a highly disfavored identification procedure in a situation where a superior procedure was readily available.

II.

I also conclude that the People impermissibly employed a peremptory strike to exclude potential juror C.C. because of that panelist's race, in violation of *Batson v Kentucky* (476 US 79 [1986]) and our related case law. When a party raises a *Batson* challenge, the trial court engages in a familiar three-step process. In step one, the moving party bears the burden of establishing a prima facie case of purposeful discrimination against a cognizable group in the exercise of peremptory strikes (*id.* at 96; *People v Smocum*, 99 NY2d 418, 421 [2003]). Once the court finds a prima facie case of unlawful discrimination has been established, the inquiry moves on to step two, in which the nonmoving party must provide a race-neutral reason for excluding each panelist challenged (*Batson*, 476 US at 94-98; *Smocum*, 99 NY2d at 422 [(a)t this second stage the reasons need be only facially permissible]; *People v Allen*, 86 NY2d 101, 109 [1995]; *see also Hernandez v New York*, 500 US 352 [1991]). At step three, the burden shifts back to the moving party to "persuad[e] the court that [the] reasons are merely a pretext for intentional discrimination" (*People v Hecker*, 15 NY3d 625, 656 [2010]). In step three, the trial court "make[s] an ultimate determination on the issue of discriminatory intent based on all of the facts and circumstances presented," evaluating whether the moving party's proffered reasons are "merely a pretext for intentional discrimination" (*Smocum*, 99 NY2d at 422).

A.

The trial court's *Batson* analysis was infected by an erroneous statement of law. The court repeatedly articulated Mr. Wright's burden at step one as establishing "a prima facie case that your adversary has excluded jurors *solely* on account of their [race]" (emphasis added). That was not a transcription error or errant misspeak: the court repeated its erroneous statement of the law by stating, "I'm asking you what facts and inferences establish a prima facie case that the Prosecutor has excluded jurors solely on the account of their [race]"; and "your position is that you've established a prima facie case that these jurors were excluded solely because they were African American; is that correct?" That misstates the law. The standard at

step one, two or three is the same in this regard: if race (or any other invidious classification) forms *any part* of a reason for use of a peremptory strike, *Batson* requires that the strike be rejected (*People v Luciano*, 10 NY3d 499, 505 [2008] [“The purpose of the *Batson* rule is to eliminate discrimination, not minimize it” (citation and quotation marks omitted)]; *Smith v United States*, 966 A2d 367, 369 [DC 2009, *as amended on reh* May 14, 2009] [“race is an impermissible factor, even if a minor one, in exercising peremptory strikes”], quoting *Tursio v United States*, 634 A2d 1205, 1212 n 7 [DC 1993]).

However, applying that incorrect standard, the court found that Mr. Wright had made out a *prima facie* case. That is, at step one, the court found that Mr. Wright had established a *prima facie* case that certain of the People’s peremptory strikes (as to three prospective jurors, C.C., T.C. and A.S.) had been made *solely* because of the panelists’ race. Given that finding, the People’s later nonpretextual reasons at most established that the People considered those factors, along with race, as the basis to exclude certain jurors. That, nevertheless, would run afoul of *Batson* and render the peremptory strikes impermissible.² Looking at it from another angle, the court’s error in concluding that a peremptory strike is unlawful only if race (or another protected classification) is the *sole* basis for the strike imposed a legally incorrect burden on Mr. Wright at step three, concluding that he failed to prove that the People’s reasons were pretextual because he had not demonstrated that racial discrimination was the *sole* basis for the strikes. That error of law requires automatic reversal and a new trial (*Hecker*, 15 NY3d at 661).

B.

Even setting aside that error, Mr. Wright met his burden to show that the People’s peremptory strike of prospective juror

2. This is not, as the majority claims, a “transference” theory between the first and third *Batson* steps (*see* majority op at 718). At step one, the trial court made findings of fact that Mr. Wright had demonstrated *prima facie* that the prosecutor struck C.C. solely because of C.C.’s race. In view of that factual finding, the evidence tendered by the People at step two, providing some nondiscriminatory reasons for the strike—even if true—is at most legally sufficient to show that the prosecutor had mixed motives, some permissible, some not. As our case law and United States Supreme Court case law firmly establishes, and the majority concedes, a mix of discriminatory and nondiscriminatory motives still establishes a *Batson* violation (*see Luciano*, 10 NY3d at 505; *Smith*, 966 A2d at 369).

C.C. violated *Batson*. In the first round of voir dire, 16 potential jurors were questioned, two of whom were African American: C.C. and A.S. During questioning, the court asked:

“Has anyone on the jury or any close friend or associate or family member been the victim of a crime or *witnessed a crime or in any way participated somehow in a criminal proceeding*? Does anyone know a person who has been the victim of a crime or yourself been the victim of a crime or witness to a crime? Any type of crimes, various crimes. . . . Raise your hand if you’ve been the victim of a crime. Almost everybody” (emphasis added).

After several potential jurors answered, C.C. answered as follows:

“[C.C.]: Yeah, I had a cousin. This was, like, maybe 15 years ago. He got arrested in his home while I was there because he had some weed on him. And they came to the house. They just arrested him and took him out and took the other cousins. I had two or three cousins in the house at the time. So they took all three of them actually, my aunt, which is their mother, with them to the precinct. So they just raided the house and took them all out. That’s the only thing I got.

“THE COURT: That was going to be my next topic or subject matter. Anyway, we’ll discuss it. Now would that affect your ability to be fair and impartial in this matter?

“[C.C.]: No.”

Five additional, non-African American panelists disclosed having family members or close friends who had been arrested; the prosecutor did not challenge or question any of them. Instead, the prosecutor questioned only C.C., at length, about his feelings on his relative’s incident:

“[PROSECUTOR]: Okay. How do you feel about how everybody was treated in that situation by the Police Department?

“[C.C.]: Well, I mean, my cousin did the wrong thing and had what he had and bringing it into the house. And that was a bad thing right here. And the fact that they had to come in—one thing I didn’t like

was when they barged in. I'm not sure if they actually knocked or anything like that, but I know they came in, just grabbed my cousin, found that he had stuff on him, cuffed him and brought everybody out of the house.

"[PROSECUTOR]: So you have a negative feeling about how the police got there and their approach in going inside?"

"[C.C.]: Well, yeah, the way—just the fact they took everybody. I didn't know that they had to take everybody. But that was it."

The prosecutor then asked about C.C.'s present feelings and how they might bear on his ability to be impartial here:

"[PROSECUTOR]: . . . There are police officers that are going to take the stand in this case. Do you have any negative feelings from that incident? . . . [D]o you have any negative feelings from that incident with your family that may make it so that when those police officers testify, you may have a prejudgment of them before they even say anything?"

"[C.C.]: Not at all.

"[PROSECUTOR]: Okay. So you'll give the police officers a fair shake. . . . [Y]ou'll give them a fair shake, and you'll listen to what they have to say before making any conclusions about them?"

"[C.C.] Yes, I will."

Both African American panelists were removed during the first round of voir dire: A.S. was excused for cause; C.C. was peremptorily struck by the prosecution. During the second round, the prosecutor exercised a peremptory challenge against T.C., another African American potential juror, and Mr. Wright's counsel raised a *Batson* objection as to both T.C. and C.C. After the court found that Mr. Wright had made a prima facie case of discrimination, the *Batson* inquiry progressed:

"[PROSECUTOR]: . . . I exercised a peremptory challenge based on the fact that [C.C.] had cousins who had been arrested. And I have a note that he had other friends who had been involved in multiple arrests. That was one of the main reasons there.

Also, that he rents, and he has no children. He is not married. Those were the reasons at the time for [C.C.].

“[DEFENSE COUNSEL]: Judge, respectfully, there were jurors that are on this panel that are not African American who meet every one of those criteria that was just [e]nunciated. There are people who have been crime victims, people who rent.

“THE COURT: [C.C.] did explain that number [sic] of people arrested in the house that he was present concerning marijuana. I recall that. In his background. Okay. . . .

“I don’t find any basis for discrimination in the way [the prosecutor] used these challenges. She has good reasons for the reasons she used these challenges, and she stated them on the record. . . . I find I believe the reasons given for these jurors given peremptory challenges were not pretextual and were the genuine reasons why [the prosecutor] challenged these jurors.”

i.

The People gave three race-neutral reasons for striking C.C.: (1) C.C. had “cousins who had been arrested”; (2) C.C. “had other friends that had been involved in multiple arrests”; and (3) C.C. was an unmarried renter with no children. The record here demonstrates that those reasons were pretextual.

As to the People’s first reason, C.C. recounted an incident 15 years earlier in which his cousin who was arrested for possession of marijuana was taken to the police station along with all of the occupants of the house except C.C.’s grandmother. The prosecutor probed C.C. extensively about the incident, asking pointed questions such as how C.C. felt about “how everybody was treated in that situation by the Police Department” and whether he had “a negative feeling about how the police got there and their approach in going inside.” When asked directly about his present feelings, C.C. unequivocally stated twice that his feelings about his cousin’s arrest would not influence his ability to be fair and impartial here.

In contrast, at least five non-African American panelists had family members or close friends who had been arrested; none of them was stricken by the People. Some of those arrests were

for far more serious crimes, more recent, and of more closely related relatives. The record established that as to those five prospective jurors:

- One's younger brother served approximately four years in prison for third-degree robbery committed "over 15 years ago" and also had an uncle who had been "incarcerated for drugs";
- One had a cousin who served time in prison for tax evasion "between three and five years" ago;
- One had a family member previously incarcerated for gun charges and another family member who was currently serving time for assault;
- One had a cousin who was arrested trying to enter the country without proper legal status "over 10 years ago"; and
- One had a close friend whose husband who was arrested for dealing drugs "about two years ago" as part of a "drug raid" in the Bronx.

Like C.C., each of those panelists answered that their family members' experiences would not affect their ability to be fair in the case here. However, although C.C.'s relationship to someone on the wrong side of the law was far more attenuated in time and/or severity than the other potential jurors who were not African American, the prosecutor subjected only C.C. to extended questioning about his feelings on his relative's relatively minor incident and peremptorily struck only C.C.

In the abstract, "family involvement with police officers" may be a nonpretextual reason for use of a peremptory strike, as the majority asserts (*see* majority op at 715, quoting *Smocum*, 99 NY2d at 423). But in the context here, it is simply not credible to assert that the extended questioning of an African American juror whose cousin was arrested for marijuana possession 15 years ago was not pretextual when the prosecutor cared not a whit about jurors whose relatives and close friends were incarcerated for criminal possession of a weapon, assault, drug dealing and robbery—the crime at issue here. The distinguishing feature as to the disparate prosecutorial interest was that C.C. was African American, and the others with more recent and more severe "family involvement with police officers" were not. The majority's rationale means that if the People point to some issue that, in the abstract, might be a nondiscriminatory basis to strike a juror, they may wield it in a discriminatory way, singling out African Americans or members of other

protected groups for peremptory strikes while ignoring those factors as to others. The majority’s rationale is incompatible with the United States Supreme Court’s recognition that disparate questioning “can arm a prosecutor with seemingly race-neutral reasons to strike the prospective jurors of a particular race” while “declin[ing] to seek what they do not want to find about white prospective jurors” (*Flowers v Mississippi*, 588 US 284, 310 [2019]).

The second reason given by the People for striking C.C.—that he had “other friends that had been involved in multiple arrests”—has no support in the record whatsoever. The People now acknowledge that the prosecutor’s second reason was “[c]learly . . . in error.” It is noteworthy that, among the three reasons given by the prosecutor, the prosecutor singled out this reason as “one of the main reasons” for striking C.C.³ The provision of a reason wholly devoid of support in the record suggests that the reason was pretextual (see *People v Coleman*, 195 AD3d 1411, 1413 [4th Dept 2021] [“a proffered race-neutral reason cannot withstand a *Batson* objection where it is based on a statement that the prospective juror did not in fact make”]).

The third reason offered by the prosecutor was that C.C. was an unmarried renter without children. That explanation likewise suggests pretext for two reasons. First, several other non-African American prospective jurors were renters, several were unmarried, and several were childless. Yet the People did not use a peremptory strike on any of those prospective jurors. “If a prosecutor’s proffered reason for striking a black panelist applies just as well to an otherwise-similar nonblack [panelist] who is permitted to serve, that is evidence tending to prove purposeful discrimination” (*Miller-El v Dretke*, 545 US 231, 241 [2005]). Second, those characteristics are irrelevant to the facts of this case, which was a commercial robbery that did not involve children, renters or spouses. Although not dispositive standing alone, “[w]hether a proffered reason relates to the

3. The People now speculate that “[p]erhaps [the prosecutor] meant to refer to the additional cousins who were arrested instead of ‘friends.’” However, “our review power is limited to the examination of [the] Supreme Court’s pretext determination in light of the reasons placed on the record by” the prosecutor (*Hecker*, 15 NY3d at 657), and the reason given here was that C.C. had friends involved in multiple arrests. The prosecutor’s mischaracterization that friends of C.C.’s were involved in multiple arrests is strong evidence that the prosecutor was engaged in fabricating pretextual reasons to strike C.C.

facts of a case or a prospective juror's qualifications is certainly a factor relevant to a court's determination of pretext" (*Hecker*, 15 NY3d at 664; see also *Miller-El v Cockrell*, 537 US 322, 339 [in the *Batson* context, "(c)redibility can be measured by, among other factors . . . whether the proffered rationale has some basis in accepted trial strategy"]; *Batson*, 476 US at 98 ["The prosecutor . . . must articulate a neutral explanation related to the particular case to be tried"]).

Recently, the United States Supreme Court rejected justifications very much like those constituting the People's third reason proffered in this case. In *Foster v Chatman*, in holding that the prosecutors had violated *Batson*, the Court rejected proffered reasons because white jurors sharing the characteristics used to justify the peremptory strike of an African American juror were not stricken:

"[O]ther explanations given by the prosecution, while not explicitly contradicted by the record, are difficult to credit because the State willingly accepted white jurors with the same traits that supposedly rendered Garrett an unattractive juror. Lanier told the trial court that he struck Garrett because she was divorced. But he declined to strike three out of the four prospective white jurors who were also divorced. Additionally, Lanier claimed that he struck Garrett because she was too young, and the 'State was looking for older jurors that would not easily identify with the defendant.' Yet Garrett was 34, and the State declined to strike eight white prospective jurors under the age of 36. Two of those white jurors served on the jury; one of those two was only 21 years old" (578 US 488, 505-506 [2016] [citations omitted]).⁴

Here, because several non-African American jurors were ultimately empaneled even though they were renters, unmarried and/or childless, the claim that those characteristics were the bases to strike C.C. rests on no "valid line of reasoning" or intentional trial strategy (*c.f.* *Hecker*, 15 NY3d at 663-665 [rec-

4. In an attempt to distinguish *Foster*, the majority points to other portions of *Foster* that reference the record in that case. However, as the portion quoted above makes clear, this part of *Foster*'s analysis relates to the prosecutor's race-based differential use of strikes for otherwise similarly situated jurors, not anything having to do with the "prosecutor's voir dire notes and other documentary evidence" (majority op at 717-718 n 2).

ord supported trial court's finding that People's proffered reason was genuine when the People asserted that panelists' education and employment level informed their jury selection strategy and nearly all impaneled jurors met the People's education and employment criteria]). Because "much of the reasoning provided by [the People] has no grounding in fact" (*Foster*, 578 US at 502), Mr. Wright met his burden to show that the People's stated reasons for striking C.C. were pretextual.

ii.

In *Batson* cases, our review is "limited to the examination of Supreme Court's pretext determination *in light of the reasons placed on the record by . . . counsel* concerning her removal of [a prospective juror]. In doing so, we cannot engage in factfinding, but merely search the record for support for the trial court's ultimate pretext determination" (*Hecker*, 15 NY3d 625, 656-657 [2010] [emphasis added]; *see also People v Bridgeforth*, 28 NY3d 567, 571 [2016] ["(A)t step three, the trial court must determine, *based on the arguments presented by the parties*, whether the proffered reason for the peremptory strike was pretextual" (emphasis added)]). It is therefore imperative that the trial court "establish a meaningful record for a reviewing court to uphold its ruling" (*Hecker*, 15 NY3d at 657; *see also People v Payne*, 88 NY2d 172, 184 [1996] ["the trial courts bear the judicial responsibility of ensuring that an adequate record is made and *of reflecting the basis for their rulings*" (emphasis added)]; *cf. Snyder v Louisiana*, 552 US 472, 479 [2008] [appellate court could not presume the trial judge credited the prosecutor's assertion regarding a struck panelist's demeanor when the record did not show that the trial judge actually made a determination concerning his demeanor]).

Here, the trial court failed to establish an adequate record of its pretext determination with respect to C.C., stating simply that the prosecutor's three proffered reasons were "good reasons for . . . us[ing] these challenges . . . [which] she . . . stated on the record," elaborating only that C.C.'s cousin had been arrested for marijuana—nothing else.⁵ For the reasons I discussed earlier, those rationales are not supported by the record.

5. "THE COURT: [C.C.] did explain that number of people arrested in the house that he was present concerning marijuana. I recall that. In his background. Okay."

Instead of attempting to defend the reasons given by the prosecutor, as required by *Hecker* and *Bridgeforth*, the majority has scoured the record and come up with some reasons the prosecutor could have given, but didn't: "the record demonstrates that C.C. felt strongly about the prior incident in which his cousin and other family members had been arrested" and cites three pieces of evidence "[a]ny one" of which "would constitute record support for the trial court's pretext determination": (1) C.C. first mentioned the arrest in response to the court's inquiry about whether any jurors knew anyone who had been the victim of a crime; (2) C.C. stated that the police "'raided the house' and 'barged in' [when] arresting his cousin and detaining other family members"; and (3) "C.C. responded in the affirmative when pressed by the People as to whether this incident caused him to have negative feelings towards police" (majority op at 715-716).

The People did not give those as reasons for striking C.C., and the court likewise did not refer to any of them when concluding that the reasons given by the People were not pretextual. When providing their nonpretextual reasons for striking C.C., the People did not mention C.C.'s feelings toward the police, his use of the words "raid" or "barge," or the fact that he was upset that others in his family had been taken to the police precinct.

Not only has the majority invented reasons never given by the prosecutor or the court, but it has gone far afield of the actual record to do so. For example, contrary to the majority's "reasonable inference" that C.C. "viewed the arrest of his cousin for marijuana possession as a crime against his cousin" (majority op at 716), C.C. stated just the opposite: "Well, I mean, my cousin did the wrong thing and had what he had and bringing it into the house. And that was a bad thing right here."

When the majority offers its own nonpretextual reason that C.C. "viewed the arrest of his cousin as a 'raid' by police" (majority op at 716), the majority is making its own factual determination that "raid" meant something illegitimate, ignoring common parlance⁶ and this own Court's

6. Media and law enforcement agencies use the term "raid" to describe legitimate law enforcement actions (see e.g. *Retired Vice Detective and Seven Active Duty NYPD Police Officers Indicted for Involvement with Prostitution Ring in Queens, Brooklyn, and Nassau Counties*, NYPD Press Release, Sept. 13, 2018, <https://www.nyc.gov/site/nypd/news/pr0913/retired-vice-detective-seven-active-duty-nypd-police-officers-indicted-involvement-with#0> [retired

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opinions⁷ describing legitimate police actions as “raids.” The record evidence suggests that the prosecutor did not share the majority’s antipathy to the word “raid”: a non-Black panelist said that her friend’s husband had been arrested in a Bronx “drug raid,” yet the prosecutor did not challenge or even ask further questions of that panelist.

Hecker does not permit an appellate court to search the record for facts that would support reasons not given by the People as a basis for striking a juror and conclude that those would have been sufficient had the People asserted them. Reasons not asserted by the People as a basis for a peremptory strike, even if supported in the record, are legally irrelevant under *Batson*, because a *Batson* inquiry does not attempt to determine whether a different prosecutor (or the majority of our Court) might have been able to come up with nonpretextual reasons to strike a juror, but whether this prosecutor actually struck the juror solely for nondiscriminatory reasons. That inquiry depends on what the prosecutor said, not on what the prosecutor might have said but didn’t.

By allowing an appellate court to arrive at its own nonpretextual reasons found somewhere in the record when the People did not assert those as the reasons they struck a juror who was a member of a protected classification, the majority has undermined the fundamental purpose of *Batson*. Indeed, even during a *Batson* hearing, when a prosecutor provided a new reason for a strike after defense counsel pointed out that the originally proffered reasons were factually untrue, the United States Supreme Court observed that “[i]t would be difficult to credit the State’s new explanation, which reeks of afterthought” (*Miller-El*, 545 US at 246).

detective indicted when he “allegedly used his contacts within the NYPD to thwart *raids* by paying for confidential police information” (emphasis added)]; *Fentanyl Dealer Sentenced to 20 Years in Prison*, DEA Press Release, Mar. 18, 2024, <https://www.dea.gov/press-releases/2024/03/18/fentanyl-dealer-sentenced-20-years-prison> [“Mr. Ray admitted that during a 2019 *raid* on his apartment, law enforcement seized more than 28,000 counterfeit fentanyl pills weighing more than 12.5 kilograms. During subsequent *raids* on the homes of two coconspirators, law enforcement seized an additional 114,000 counterfeit fentanyl pills” (emphasis added)]]).

7. See e.g. *Ferreira v City of Binghamton*, 38 NY3d 298, 317 (2022) (describing lawful no-knock search warrants as “raids [that] are often conducted in the early-morning hours to catch people off-guard”); *People v Mirenda*, 57 NY2d 261, 264-265 (1982) (upholding conviction where “the police, armed with a search warrant” conducted a “raid on a Yonkers garage”).

Batson rests on a subjective determination of a prosecutor's motive: Did race (or some other protected classification) form any part of the reason why the prosecutor struck a juror? If so, a new trial is warranted because as a matter of due process and equal protection, we will not allow such discrimination against prospective jurors or violations of a defendant's constitutional rights to be sanctioned by the court.

III.

A.

The majority's struggle to interject its own state of mind into that of the prosecutor's illustrates why the *Batson* test itself is fraught with difficulty and should be abandoned in favor of an objective test. Because the *Batson* test "leave[s] us with a subjective understanding of the concept of discriminatory intent in the peremptories context" (Robin Charlow, *Tolerating Deception and Discrimination after Batson*, 50 Stan L Rev 9, 37 [1997]), it can provide cover for parties who intend to discriminate by allowing them to obscure their discriminatory intent behind plausible, facially neutral justifications (see e.g. *People v Bolling*, 79 NY2d 317, 330 [1992, Bellacosa, J., concurring] ["Unfortunately, the *Batson* procedural hurdles have become 'less obstacles to racial discrimination than they are road maps' to disguised discrimination"], quoting Brian J. Serr & Mark Maney, *Racism, Peremptory Challenges, and the Democratic Jury: The Jurisprudence of A Delicate Balance*, 79 J Crim L & Criminology 1, 59 [1988]). Furthermore, because it focuses solely on the nonmoving party's subjective *intent* to discriminate, the *Batson* test is poorly calibrated to detect discrimination deriving from implicit bias, which is likely more common than intentional discrimination deriving from conscious racial animus.⁸

8. See e.g. Caren Myers Morrison, *Negotiating Peremptory Challenges*, 104 J Crim L & Criminology 1, 4-5 (2014) ("[T]he *Batson* framework relies on apparently commonsense assumptions about human behavior [that] are contrary to what we know about human mental processes and the influence of race on decisionmaking. . . . [*Batson* is] inconsistent with recent advances in cognitive social psychology. While long suspected, there is now substantial empirical evidence that most of us labor under some amount of implicit bias against racial minorities, even when we believe ourselves to be unbiased. . . . It is time to subject *Batson* to behavioral realism—the demand 'that the law account for the most accurate model of human thought, decisionmaking, and action

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Justice Marshall anticipated those concerns in his *Batson* concurrence:

“[W]hen a defendant can establish a prima facie case, trial courts face the difficult burden of assessing prosecutors’ motives. Any prosecutor can easily assert facially neutral reasons for striking a juror, and trial courts are ill equipped to second-guess those reasons. How is the court to treat a prosecutor’s statement that he struck a juror because the juror had a son about the same age as defendant . . . ? If such easily generated explanations are sufficient to discharge the prosecutor’s obligation to justify his strikes on nonracial grounds, then the protection erected by the Court today may be illusory.

“Nor is outright prevarication by prosecutors the only danger here. ‘[I]t is even possible that an attorney may lie to himself in an effort to convince himself that his motives are legal.’ A prosecutor’s own conscious or unconscious racism may lead him easily to the conclusion that a prospective black juror is ‘sullen,’ or ‘distant,’ a characterization that would not have come to his mind if a white juror has acted identically. A judge’s own conscious or unconscious racism may lead him to accept such an explanation as well supported” (*Batson v Kentucky*, 476 US 79, 105-106 [1986, Marshall, J., concurring] [citations omitted]).

Six years later, in *People v Bolling*, Judge Bellacosa noted that “[t]ime and experience with many cases have proven the prescience of Justice Marshall’s observations” with respect to the shortcomings of the *Batson* remedy (79 NY2d at 327 [Bellacosa, J., concurring]), and proclaimed

“[i]t is time for the Legislature to come to terms with the undisputed fact that ‘peremptory challenges constitute a jury selection practice that permits “those to discriminate who are of a mind to discriminate,” ’ and that the *Batson* effort has failed to fulfill its stated goal of eradicating invidious discrimination from the jury selection process” (*id.* at 331 [citations omitted]).

provided by the sciences’ ”), quoting Jerry Kang & Kristin Lane, *Seeing through Colorblindness: Implicit Bias and the Law*, 58 UCLA L Rev 465, 468 (2010).

What was evident to some shortly after *Batson* has been borne out by research over the past four decades: “Even in extreme instances of bias—such as the exclusion of every Black member of the venire . . . it would be relatively easy to generate multiple, race-neutral justifications” (Samuel R. Sommers & Michael I. Norton, *Race-Based Judgments, Race-Neutral Justifications: Experimental Examination of Peremptory Use and the Batson Challenge Procedure*, 31 Law Hum Behav 261, 269 [2007]; see also Jeffrey Bellin & Junichi P. Semitsu, *Widening Batson’s Net to Ensnare More than the Unapologetically Bigoted or Painfully Unimaginative Attorney*, 96 Cornell L Rev 1075, 1106 [2011] [“Batson, as currently applied, is unable to prevent the use of race in jury selection because its dictates are so easily avoided”]).

B.

In the past several years, other states have addressed *Batson*’s inherent shortcomings by adopting an objective standard, which reduces the influence of racial bias in both its conscious and unconscious forms.

In 2018, the State of Washington adopted, in the form of General Rule 37, an objective standard for determining whether a peremptory challenge should be disallowed. Under that rule, “[i]f the court determines that an objective observer could view race or ethnicity as a factor in the use of the peremptory challenge, then the peremptory challenge shall be denied. The court need not find purposeful discrimination to deny the peremptory challenge” (Wash Ct Gen Rules 37 [e]).

Following Washington’s lead, in 2020, the California legislature adopted section 231.7 to the California Code of Civil Procedure, which provides that the “court shall consider only the reasons actually given” and shall disallow use of a peremptory strike if “the court determines there is a substantial likelihood that an objectively reasonable person would view race, ethnicity, gender, gender identity, sexual orientation, national origin, or religious affiliation, or perceived membership in any of those groups, as a factor in the use of the peremptory challenge” (Cal Civ Pro Code § 231.7 [d] [1]).⁹

9. Acknowledging the ubiquity and intractability of implicit bias, those states explicitly ascribe the to the objective observer cognizance of that phenomenon. Washington, for example, defines an “objective observer” as one who “is aware that implicit, institutional, and unconscious biases, in addition

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Shortly thereafter, the New Jersey Supreme Court observed that “implicit bias is no less real and no less problematic than intentional bias” and that “[t]he effects of both can be the same: a jury selection process that is tainted by discrimination” (*State v Andujar*, 254 A3d 606, 623 [NJ 2021]). Holding that the use of peremptory challenges driven by implicit bias violated the New Jersey State Constitution, the court modified step three of New Jersey’s *Batson* test to eliminate the requirement that the nonmoving party intended to discriminate, to reduce the use of peremptory challenges driven by implicit bias (*id.* at 622-623).

Two years ago, the New York State Justice Task Force (the Task Force) recommended amending Criminal Procedure Law § 270.25 by adopting a “reasonable person standard” (see *Recommendations Regarding Reforms to Jury Selection in New York* at 15, New York State Justice Task Force [Aug. 2022], <https://www.nyjusticetaskforce.org/pdfs/Report-on-Recommendations-Regarding-Reforms-to-Jury-Selection-in-New-York.pdf>).¹⁰ Under that standard, at *Batson* step three, the trial court evaluates the nonmoving party’s proffered reason by asking “[w]hether, in the view of a reasonable person, the race of a juror was a factor in the exercise of the peremptory challenge. If the court determines that the answer is yes, then the peremptory challenge shall be denied” (*id.*).

Although the Task Force’s recommended “reasonable person standard” does not specifically incorporate consideration of implicit bias, because it would replace the current subjective standard with an objective one, it would represent a significant improvement over our current *Batson* test because it removes

to purposeful discrimination, have resulted in the unfair exclusion of potential jurors” (Wash Ct Gen Rules rule 37 [f]; see also Cal Civ Pro Code § 231.7 [d] [2] [A] [(A)n objectively reasonable person is aware that unconscious bias, in addition to purposeful discrimination, have resulted in the unfair exclusion of potential jurors in the State of California”]; Conn Rules Super Ct § 5-12 [e] [1] [“an objective observer . . . is aware that purposeful discrimination, and implicit, institutional, and unconscious biases, have historically resulted in the unfair exclusion of potential jurors on the basis of their race, or ethnicity”]).

10. The Justice Task Force is composed of distinguished “prosecutors, defense attorneys, judges, law enforcement personnel, legal scholars, legislative representatives, executive branch officials, forensic experts and victim advocates” (New York State Justice Task Force, *Mission Statement, About The Task Force*, <http://www.nyjusticetaskforce.com/mission.html> [accessed June 10, 2024]). Its mission is “to promote fairness, effectiveness, and efficiency in the criminal justice system; to eradicate harms caused by wrongful convictions; to further public safety; and to recommend judicial and legislative reforms to advance these causes throughout the State of New York” (*id.*).

the requirement of the court's evaluation of the nonmoving party's subjective intent to discriminate. Instead, the "reasonable person standard" asks the court to consider whether, from an outside person's perspective, it appears that race played any role at all, increasing the likelihood of empaneling a "jury selected by racially neutral criteria" (*People v Childress*, 81 NY2d 263, 267 [1993]) Beyond the obvious virtues of relying on a test taken from an objective perspective that will be consistent from court to court and trial to trial, and of rooting out implicit biases, not just intentional ones, the use of an objective standard removes some of the stigma attached to a lawyer's failed attempt to justify a peremptory strike, because the rejection of a strike does not ascribe discriminatory intent to the lawyer:

"No one wishes to accuse those with whom they regularly associate, both professionally and often personally, of moral wrongdoing. Yet virtually every *Batson* ruling potentially carries such a stigma. . . . *Batson* violations necessarily involve findings of such socially unacceptable behavior as intentional race or sex discrimination, as well as false representations of the reasons for those unsociable acts. . . . [R]ulings that an attorney has purposefully discriminated by race or sex and then lied about having done so seem freighted with a dimension of personal moral delinquency" (Robin Charlow, *Batson "Blame" and its Implications for Equal Protection Analysis*, 97 Iowa L Rev 1489, 1493 [2012]).

Our recent decision in *People v Boone* (30 NY3d 521 [2017]), holding that when a cross-racial eyewitness identification is introduced to prove the identity of a criminal defendant, the defendant is entitled to a jury instruction on the frequent unreliability of such identifications, underscores our court's commitment to eliminating racial bias in the Unified Court System, as does the Unified Court System's operation of its robust Office of Justice Initiatives. The majority's decision undermines that overarching goal.¹¹ Because our Court is now unwilling to apply the *Batson* test in a meaningful manner, we can only

11. Likewise, the majority's statements that "our review is limited to whether there was record support" (majority op at 719 n 4) and "the only *Batson* issue before us on this appeal is whether the record supports the trial court's determination at step three" (*id.* at 718) are incompatible with our

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hope that the legislature will implement measures to reduce the effect of bias in the selection of jurors.

Judges GARCIA, SINGAS and PRITZKER* concur. Chief Judge WILSON dissents in an opinion, in which Judges RIVERA and TROUTMAN concur. Judge HALLIGAN took no part.

Order affirmed.

powers and responsibilities. *Batson* itself is a court-made rule, as are the improvements to *Batson* adopted by the Supreme Courts of Washington and New Jersey; and our Court has regularly announced new rules to promote the fairness of the trial process (most recently in *Boone*).

* Designated pursuant to NY Constitution, article VI, § 2.

[252 NE3d 1118, 228 NYS3d 121]

In the Matter of VICTOR O. IBHAWA, Appellant, v NEW YORK
STATE DIVISION OF HUMAN RIGHTS et al., Respondents.

Argued October 17, 2024; decided November 26, 2024

SUMMARY

APPEAL, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 30, 2023. The Appellate Division (1) reversed, on the law, insofar as appealed from, an order of the Supreme Court, Erie County (E. Jeannette Ogden, J.), entered in a proceeding pursuant to Executive Law § 298, which had (a) granted the petition in part by annulling the determination of respondent New York State Division of Human Rights (SDHR) to the extent it dismissed petitioner's claim of hostile work environment; and (b) remanded the matter to SDHR; (2) dismissed the petition in its entirety; and (3) reinstated the determination to the extent it dismissed the hostile work environment claim.

Matter of Ibhawa v New York State Div. of Human Rights, 217 AD3d 1500, reversed.

HEADNOTE**Civil Rights — State Division of Human Rights — Discrimination in Employment — Ministerial Exception**

The ministerial exception, a doctrine which protects the rights of religious institutions to decide for themselves, free from state interference, matters of church government, is an affirmative defense to claims brought under laws governing the employment relationship between a religious institution and certain key employees, not a jurisdictional bar. Accordingly, in a proceeding pursuant to Human Rights Law § 298 arising out of petitioner's termination from his position as a Catholic priest, the order of respondent New York State Division of Human Rights dismissing petitioner's hostile work environment claim on the ground that the ministerial exception deprived respondent of jurisdiction over the complaint was affected by an error of law. Respondent's determination was contrary to the U.S. Supreme Court's express holding that the exception operates as an affirmative defense to an otherwise cognizable claim, not a jurisdictional bar. Thus, once the employer raised the ministerial exception as one of several affirmative defenses, the question confronting respondent was not whether the exception limited its power to consider petitioner's claim, but whether any of the employer's affirmative defenses, including the two statutory defenses raised, established that the case could not proceed beyond its current stage.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Job Discrimination §§ 43, 142, 807.

McKINNEY's, Human Rights Law § 298.

NY JUR 2d Civil Rights §§ 48, 86.

ANNOTATION REFERENCE

Application of First Amendment's "Ministerial Exception" or "Ecclesiastical Exception" to State Civil Rights Claims. 53 ALR6th 569.

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exception

POINTS OF COUNSEL

Donna A. Milling and Rosanne E. Johnson, Buffalo, for appellant. The ministerial exception is not a jurisdictional bar to New York State Division of Human Rights's (NYSDHR) mandate to investigate discriminatory harassment and hostile work environment claims brought by a minister and NYSDHR should not be permitted to abdicate its statutory duty under the Executive Law. (*Avitzur v Avitzur*, 58 NY2d 108; *Matter of Tessy Plastics Corp. v State Div. of Human Rights*, 47 NY2d 789; *Stoudymire v N.Y.S. Div. of Human Rights*, 36 Misc 3d 919, 109 AD3d 1096; *Matter of Baust v New York State Div. of Human Rights*, 70 AD3d 1107, 15 NY3d 710; *Ahmed v City of New York*, 44 Misc 3d 228, 129 AD3d 435.)

New York State Division of Human Rights, Bronx (Aaron M. Woskoff of counsel), for New York State Division of Human Rights, respondent. I. The ministerial exception, which, as set out by recent United States Supreme Court decisions, bars consideration of employment discrimination claims by ministers against religious employers, constrained the New York State Division of Human Rights to dismiss all of Victor O. Ibhawa's charges, including those related to hostile work environment. (*Hosanna-Tabor Evangelical Lutheran Church and School v EEOC*, 565 US 171; *Serbian Eastern Orthodox Diocese for United States and Canada v Milivojevic*, 426 US 696; *Skrzypczak v Roman Catholic Diocese Of Tulsa*, 611 F3d 1238; *O'Connor v Church of St. Ignatius Loyola*, 8 AD3d 125, 3 NY3d 610; *Mills v Standing Gen. Commn. on Christian Unity*, 39 Misc 3d 296, 117 AD3d 509.) II. The Appellate Division properly held that the New York State Division of Human Rights's de-

termination that it could not consider the Victor O. Ibhawa complaint was reasonable and not arbitrary and capricious. (*Matter of Meyer v Foster*, 187 AD3d 918; *Matter of McDonald v New York State Div. of Human Rights*, 147 AD3d 1482; *Matter of Scopelliti v Town of New Castle*, 210 AD2d 339; *Matter of Baust v New York State Div. of Human Rights*, 70 AD3d 1107, 15 NY3d 710; *Stoudymire v N.Y.S. Div. of Human Rights*, 36 Misc 3d 919.)

Bond, Schoeneck & King PLLC, Buffalo (Kathleen H. McGraw and Erin S. Torcello of counsel), for Diocese of Buffalo, respondent. I. The Appellate Division correctly reversed the Supreme Court. (*Stoudymire v N.Y.S. Div. of Human Rights*, 36 Misc 3d 919; *Matter of LeTray v New York State Div. of Human Rights*, 181 AD3d 1296; *Matter of Save America's Clocks, Inc. v City of New York*, 33 NY3d 198; *Matter of Baird v New York State Div. of Human Rights*, 100 AD3d 880; *Atlas Henrietta, LLC v Town of Henrietta Zoning Bd. of Appeals*, 46 Misc 3d 325.) II. Appellant's remaining contentions are unsupported and without merit. (*Matter of Diocese of Rochester v New York State Div. of Human Rights*, 305 AD2d 1000.) III. Appellant is not left without a remedy.

OPINION OF THE COURT

HALLIGAN, J.

The New York State Division of Human Rights dismissed Victor Ibhawa's hostile work environment claim against his former employer, concluding that the "ministerial exception" that flows from the First Amendment to the U.S. Constitution deprived the agency of jurisdiction over Ibhawa's complaint. But the U.S. Supreme Court has expressly held that the ministerial exception is an affirmative defense, not a jurisdictional bar, and thus the agency's determination was affected by an error of law. We therefore reverse the order of the Appellate Division and remit with directions to remand Ibhawa's hostile work environment claim to the agency for further proceedings consistent with this opinion.

I.

In 2016, the Diocese of Buffalo (the Diocese) hired Ibhawa—a Black, Nigerian Catholic priest—to serve as Parish Administrator of the Blessed Trinity Church in Buffalo. Ibhawa was reappointed in January 2019 to an additional three-year term, but on September 28, 2020, the Diocese prematurely terminated his employment.

Ibhawa filed an employment complaint with the New York State Division of Human Rights (DHR) in November 2020, claiming that the Diocese had engaged in discriminatory employment practices in violation of the New York Human Rights Law (*see* Executive Law art 15). Ibhawa alleged that he had experienced racial discrimination at the Diocese, including from an employee who directed a racial slur at him and a parishioner who made xenophobic remarks to him. He further alleged that the Diocesan officials to whom he reported the incidents declined to investigate them, questioned his decision to terminate the employee who had used a racial slur, and made “highly insulting and offensive” remarks about “foreign priests.” At a subsequent meeting, two Diocesan officials offered to buy Ibhawa a plane ticket to Nigeria and told him that the “Bishop could remove [his] faculties.” Shortly afterwards, the Diocese informed Ibhawa that his employment had been terminated and his priestly faculties removed, which meant that he could not apply for a position as a priest in the Diocese. The Diocese eventually hired a white priest to replace him. Based on these assertions, Ibhawa alleged claims of hostile work environment and unlawful termination on the basis of race and national origin. He sought, among other remedies, compensatory and punitive damages.

The Diocese denied Ibhawa’s allegations and raised three affirmative defenses to his claims. Among these defenses was the assertion that Ibhawa’s entire complaint fell within the “ministerial exception” because the Diocese is a religious institution and Ibhawa qualified as a “minister” for purposes of the exception.

The ministerial exception is a doctrine grounded in the First Amendment to the U.S. Constitution and recognized by the United States Supreme Court in two recent decisions: *Hosanna-Tabor Evangelical Lutheran Church and School v EEOC* (565 US 171 [2012]) and *Our Lady of Guadalupe School v Morrissey-Berru* (591 US 732 [2020]). Those decisions explain that the ministerial exception “protects the right of religious institutions to decide for themselves, free from state interference, matters of church government as well as those of faith and doctrine” by supplying an affirmative defense to claims brought under “laws governing the employment relationship between a religious institution and certain key employees” (*Our Lady of Guadalupe*, 591 US at 737 [internal quotation marks omitted]; *see also Hosanna-Tabor*, 565 US at 194-195, 195 n 4). But

Hosanna-Tabor and *Our Lady of Guadalupe* involved only unlawful termination claims against religious institutions, not hostile work environment claims, and the Court left open the “applicability” of the ministerial exception to “other types of suits” (*Hosanna-Tabor*, 565 US at 196).

The Diocese also raised two statutory affirmative defenses based on the Human Rights Law. The first defense relied on section 296 (11), which provides that

“[n]othing contained in this section shall be construed to bar any religious or denominational institution or organization, or any organization operated for charitable or educational purposes, which is operated, supervised or controlled by or in connection with a religious organization, from limiting employment or sales or rental of housing accommodations or admission to or giving preference to persons of the same religion or denomination or from taking such action as is calculated by such organization to promote the religious principles for which it is established or maintained” (Executive Law § 296 [11]).

The Diocese argued that Ibhawa’s complaint should be dismissed because its “determination as to who will lead a congregation and teach its faith clearly falls within this [statutory] exception.” It asserted in its second defense that as a clergy member, Ibhawa was not an “employee” entitled to bring a claim under the Human Rights Law.

Ibhawa responded that none of the Diocese’s affirmative defenses applied. He contended in cursory terms that the ministerial exception did not apply to his hostile work environment claim, but focused primarily upon other issues.

DHR’s Regional Director then released a brief report summarizing Ibhawa’s complaint and the agency’s findings. The report noted the parties’ respective positions on the ministerial exception and that the parties did not dispute Ibhawa was a priest and “the pastor of the church in his role as parish administrator.” The report thus concluded that Ibhawa “comes under the ministerial exception relative to the first amendment of the U.S. Constitution, and [DHR] cannot proceed as it lacks jurisdiction over this matter.” The only explanation given for this result was an assertion that “[t]he ministerial exception grants a church/religion the right to choose (or terminate) ministers or persons who serve in a similar religious role

without governmental interference, including discrimination claims.” No mention was made of the statutory defenses raised by the Diocese.

DHR then issued an order dismissing Ibhawa’s complaint for “lack of jurisdiction.” The order stated only that “[Ibhawa], a priest serving as the pastor (Parish Administrator) of a church comes under the ministerial exception (relative to the first amendment of the U.S. Constitution). [DHR] cannot interfere with the right of a church or other religious group, to determine who will work for them in this type of religious role.” The order did not specifically address the question reserved in *Hosanna-Tabor* or the Diocese’s statutory defenses.

Ibhawa petitioned New York Supreme Court for an order pursuant to Human Rights Law § 298 reversing DHR’s dismissal of his complaint, which the court granted in part. It found that the Diocese is a religious institution and that Ibhawa worked in a ministerial capacity. Although the court determined that Ibhawa’s unlawful termination claim was properly dismissed, it noted that “there is a question as to whether the ministerial exception bars [Ibhawa’s] hostile work environment claim, and the relevant law is unsettled on that issue.” The court concluded that “the absence of controlling authority does not constitute a rational basis to determine that the ministerial exception barred review of [Ibhawa’s] hostile work environment claim,” and, accordingly, that DHR’s determination on that claim was affected by an error of law. It thus reversed DHR’s order insofar as it dismissed the hostile work environment claim and remanded the complaint to DHR.

Both DHR and the Diocese appealed.¹ The Appellate Division held that Supreme Court did not give “requisite deference” to DHR, stating instead that the agency’s “determination is entitled to considerable deference given its expertise in evaluating discrimination claims” (217 AD3d 1500, 1501 [4th Dept 2023] [internal quotation marks omitted]). Applying that standard of review, the Court concluded that DHR’s “determination with respect to the hostile work environment claim is not arbitrary and capricious or affected by an error of law” because “there is no controlling . . . precedent and the federal courts that have addressed the issue are divided on the extent to

1. No party appealed the portion of Supreme Court’s order denying Ibhawa’s petition to reverse DHR’s dismissal of his unlawful termination claim, and that issue is not before us.

which the ministerial exception applies to [such] claims” (*id.*, citing *Demkovich v St. Andrew the Apostle Parish, Calumet City*, 3 F4th 968, 979 [7th Cir 2021 en banc] [concluding that the exception applied to a hostile work environment claim], and *Elvig v Calvin Presbyt. Church*, 375 F3d 951, 964 [9th Cir 2004] [concluding that a hostile work environment claim could survive a religious institution’s motion to dismiss based on the ministerial exception]). The Appellate Division accordingly reversed the order of Supreme Court insofar as appealed from, dismissed Ibhawa’s petition in its entirety, and reinstated DHR’s dismissal of the hostile work environment claim.

Ibhawa appealed to this Court as of right pursuant to CPLR 5601 (b) (1) and moved for leave to appeal from the order of the Appellate Division. After accepting further briefing from the parties as part of our jurisdictional inquiry, we denied Ibhawa’s motion for leave to appeal as unnecessary and the appeal proceeded in the normal course (*see* 40 NY3d 1088 [2024]).

II.

We must decide whether DHR improperly concluded that the ministerial exception prohibited it from exercising jurisdiction over Ibhawa’s hostile work environment claim. Our review of DHR’s determination is “limited to the grounds invoked by the agency” (*Matter of Scherbryn v Wayne-Finger Lakes Bd. of Coop. Educ. Servs.*, 77 NY2d 753, 758 [1991]). “If those grounds are inadequate or improper,” we are “powerless to affirm the administrative action by substituting what [we] consider[] to be a more adequate or proper basis” (*id.* [internal quotation marks omitted]).

Human Rights Law § 298, which authorized Ibhawa’s petition to Supreme Court, supplies the standard under which we review this appeal. That statute permits “appellate review in the same manner and form and with the same effect as provided for appeals from a judgment in a special proceeding” (Executive Law § 298). Accordingly, our task is to decide whether DHR’s determination “was affected by an error of law or was arbitrary and capricious or an abuse of discretion” (*New York City Health & Hosps. Corp. v McBarnette*, 84 NY2d 194, 204 [1994], quoting CPLR 7803 [3]). Because the issue presented is purely a question of law, “there is little basis to rely on any special competence or expertise of the administrative agency,” and we “need not accord any deference to the agency’s determination” (*Matter of Jun Wang v James*, 40 NY3d 497,

502 [2023] [internal quotation marks omitted]; *see also id.* at 502 n 1).²

DHR’s order dismissing Ibhawa’s hostile work environment claim was affected by an error of law. After noting the parties’ agreement that Ibhawa was “a priest serving as the pastor (Parish Administrator) of a church,” DHR found that his complaint “comes under the ministerial exception (relative to the first amendment of the U.S. Constitution).” On that basis, DHR concluded that it lacked jurisdiction over Ibhawa’s claims. This determination was contrary to the U.S. Supreme Court’s express holding that the “exception operates as an affirmative defense to an otherwise cognizable claim, not a jurisdictional bar” (*Hosanna-Tabor*, 565 US at 195 n 4).

DHR and the Diocese argue that we should overlook the agency’s error of law because DHR would still have dismissed Ibhawa’s claims if it had properly understood the ministerial exception as an affirmative defense. But the distinction matters. *Hosanna-Tabor* explained that because the question presented by the ministerial exception “is whether the allegations the plaintiff makes entitle him to relief, not whether the court has power to hear the case,” it is an affirmative defense, not a jurisdictional bar (*id.* [internal quotation marks and alterations omitted]; *compare Hunt v Hunt*, 72 NY 217, 229 [1878] [explaining that subject matter jurisdiction is a “power to adjudge concerning the general question involved” in a dispute, “and is not dependent upon the state of facts which may appear in a particular case”], *with Whitlatch v Fidelity & Cas. Co. of N.Y.*, 149 NY 45, 50 [1896] [explaining that an affirmative defense that seeks to defeat the “cause of action alleged . . . must be pleaded and proved by the defendant”]). Thus, once the Diocese raised the ministerial exception as one of several affirmative defenses, the question confronting DHR was not whether the exception limited its power to consider Ibhawa’s claim, but whether any of the Diocese’s affirmative defenses—including the two statutory defenses raised by the Dio-

2. The Appellate Division erroneously gave “considerable deference” to DHR’s determination based on “its expertise in evaluating discrimination claims” (217 AD3d at 1501). As we recently explained, “courts defer to the administrative agency where the issue involves knowledge and understanding of underlying operational practices or entails an evaluation of factual data and inferences to be drawn therefrom” (*James*, 40 NY3d at 502 [internal quotation marks omitted]). Whether the First Amendment limits the jurisdiction of DHR is a pure question of federal constitutional law, and DHR has no special expertise in resolving that issue.

cese—established that the case could not proceed beyond its current stage (see *Hosanna-Tabor*, 565 US at 195 n 4).

Because DHR erred in treating the ministerial exception as a jurisdictional bar rather than an affirmative defense, its determination was affected by an error of law. In reaching that conclusion, we express no view on whether any of the Diocese's defenses are meritorious.

Accordingly, the order of the Appellate Division should be reversed, with costs, and matter remitted to that Court with direction to remand to DHR for further proceedings in accordance with this opinion.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and TROUTMAN concur.

Order reversed, with costs, and matter remitted to the Appellate Division, Fourth Department, with direction to remand to the New York State Division of Human Rights, for further proceedings in accordance with the opinion herein.

[253 NE3d 618, 228 NYS3d 424]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CODIE
HAYWARD, Appellant.

Argued September 12, 2024; decided October 24, 2024

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered February 2, 2023. The Appellate Division affirmed a judgment of the Fulton County Court (Polly A. Hoye, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a controlled substance in the third degree and criminal possession of a controlled substance in the seventh degree.

People v Hayward, 213 AD3d 989, affirmed.

HEADNOTES

Crimes — Right to Counsel — Effective Representation — Failure to Seek Suppression Based on Violation of Knock-and-Announce Rule

1. In defendant's prosecution for criminal possession of a controlled substance, trial counsel's single alleged error—failing to move to suppress the physical evidence recovered by police during the execution of the search warrant on the ground that the police violated the knock-and-announce rule when executing the warrant—did not constitute ineffective assistance, because the omitted argument was not so clear-cut and dispositive that no reasonable defense counsel would have failed to assert it. Under New York's single-error standard, counsel is not ineffective when the success of the argument the defendant claims should have been made by counsel depended on the resolution of novel questions, or when, at the time of the defendant's trial, there was no clear appellate authority supporting the argument the defendant claims that counsel should have made. The United States Supreme Court has held that a violation of the knock-and-announce rule by police when executing a search warrant does not require the application of the exclusionary rule under the Federal Constitution (*see generally Hudson v Michigan*, 547 US 586 [2006]). Defendant acknowledged that no New York appellate decision had decided to the contrary, either by distinguishing *Hudson*, on the basis of the New York Constitution, or otherwise. Indeed, defendant conceded that the issue was novel.

Crimes — Proof of Other Crimes — Uncharged Drug Sale

2. In defendant's prosecution for criminal possession of a controlled substance, the trial court did not err in holding that evidence that defendant had completed an uncharged drug sale hours before the search warrant was executed was relevant to defendant's constructive possession and intent to sell the drugs found in the apartment during execution of the search warrant. The uncharged sale occurred in the same apartment in which police subsequently recovered the drugs defendant was charged with possessing.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 1111–1116; AM JUR 2d Evidence §§ 405, 406.
CARMODY-WAIT 2d Right to Counsel §§ 184:168, 184:233, 184:235; CARMODY-WAIT 2d Fundamentals of Criminal Evidence §§ 193:18, 193:19, 193:26.
LAFAYE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 11.7, 11.10.
NY JUR 2d Criminal Law: Procedure §§ 872, 915, 2067–2069.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Exclusion of Evidence; Prior Acts and Matters.

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POINTS OF COUNSEL

Rural Law Center of New York, Plattsburgh (Kristin A. Bluvass of counsel), for appellant. I. The defendant was deprived of his state and federal constitutional right to the effective assistance of counsel by counsel's failure to challenge the police use of a no-knock warrant without authorization. (*People v Nicholson*, 26 NY3d 813; *Strickland v Washington*, 466 US 668; *People v Benevento*, 91 NY2d 708; *Wilson v Arkansas*, 514 US 927; *Mapp v Ohio*, 367 US 643; *Ker v California*, 374 US 23; *Richards v Wisconsin*, 520 US 385; *People v Garzia*, 56 AD2d 635; *Hudson v Michigan*, 547 US 586; *Segura v United States*, 468 US 796.) II. The verdict convicting the defendant of criminal possession of a controlled substance in the third degree was not supported by legally sufficient evidence and was against the weight of the evidence. (*People v Bleakley*, 69 NY2d 490; *People v Davis*, 208 AD2d 1062; *People v Gray*, 86 NY2d 10; *People v Baltes*, 75 AD3d 656; *People v Danielson*, 9 NY3d 342; *People v Maricle*, 158 AD3d 984; *People v Leduc*, 140 AD3d 1305; *People v McGough*, 122 AD3d 1164; *People v Yerian*, 163 AD3d 1045; *People v Edwards*, 206 AD2d 597.) III. County Court abused its discretion when it permitted the People to elicit testimony about an uncharged drug sale earlier the same

day; by instructing the jurors that the proof could be considered as proof of the defendant's propensity to sell drugs; and by allowing other testimony that strongly inferred that the defendant had previously sold drugs. (*People v Billups*, 45 AD3d 1176; *People v Alvino*, 71 NY2d 233; *People v Molineux*, 168 NY 264; *People v Williams*, 156 AD3d 1224.)

New York Prosecutors Training Institute, Albany (*Bridget Rahrilly Steller* of counsel) and *Michael J. Poulin*, *District Attorney*, Johnstown, for respondent. I. Based on this record, defendant's trial attorney provided meaningful and effective assistance of counsel. (*People v Honghirun*, 29 NY3d 284; *People v Caban*, 5 NY3d 143; *People v Williams*, 36 NY2d 829; *Hudson v Michigan*, 547 US 586; *People v Rodriguez*, 31 NY3d 1067; *People v McGee*, 20 NY3d 513; *People v Jennings*, 37 NY3d 1078; *People v Robinson*, 36 NY2d 224; *People v Kelly*, 5 NY3d 116.) II. This case does not present an issue of law on the legal sufficiency or weight of the evidence and this Court should not disturb the Appellate Division's determination. (*People v Robinson*, 36 NY2d 224; *People v Kelly*, 5 NY3d 116; *People v Bleakley*, 69 NY2d 490; *People v Smith*, 22 NY3d 462; *People v Feingold*, 7 NY3d 288; *People v Sanchez*, 32 NY3d 1021; *People v Romero*, 7 NY3d 633; *People v Malizia*, 62 NY2d 755; *People v Dlugash*, 41 NY2d 725; *People v Delamota*, 18 NY3d 107.) III. The issue of whether the trial court properly exercised its discretion when it allowed the introduction of evidence of an uncharged crime and instructed the jury on the limited purpose for which that evidence was admitted is not a proper issue for this Court's review and in any event the trial court acted appropriately. (*People v Bailey*, 32 NY3d 70; *People v Alvino*, 71 NY2d 233; *People v Molineux*, 168 NY 264.)

OPINION OF THE COURT

TROUTMAN, J.

Defendant contends that his trial counsel was ineffective for failing to move to suppress the physical evidence recovered by police during the execution of the search warrant on the ground that the police violated the knock-and-announce rule when executing the warrant. We disagree.

We have recognized that a single error in an otherwise competent performance may be sufficiently "egregious and prejudicial as to deprive a defendant of [the] constitutional right to effective legal representation" (*People v Keschner*, 25 NY3d 704, 723 [2015] [internal quotation marks omitted]; *see also*

e.g. *People v Watkins*, 42 NY3d 635, 640 [2024]; *People v McGee*, 20 NY3d 513, 518 [2013]; *People v Turner*, 5 NY3d 476, 480-481 [2005]). To “rise to that level,” however, defense counsel’s omission “must typically involve an issue that is so clear-cut and dispositive that no reasonable defense counsel would have failed to assert it, and it must be evident that the decision to forgo the contention could not have been grounded in a legitimate trial strategy” (*McGee*, 20 NY3d at 518; see also *Watkins*, 42 NY3d at 640; *People v Espinosa*, 40 NY3d 1065, 1066 [2023]; *Keschner*, 25 NY3d at 723).

That standard is not satisfied if the “omitted argument was not so compelling that a failure to make it amounted to ineffective assistance of counsel” (*Keschner*, 25 NY3d at 723 [internal quotation marks omitted]). We have stated that counsel is not ineffective when the success of the argument the defendant claims should have been made by counsel “depended on the resolution of novel questions” (*Watkins*, 42 NY3d at 640), or when, at the time of the defendant’s trial, “there was no clear appellate authority” supporting the argument the defendant claims that counsel should have made (*People v Saenger*, 39 NY3d 433, 442 [2023]).

[1] The United States Supreme Court has held that a violation of the knock-and-announce rule by police when executing a search warrant does not require the application of the exclusionary rule under the Federal Constitution (see generally *Hudson v Michigan*, 547 US 586 [2006]). Defendant acknowledges that no New York appellate decision has decided to the contrary, either by distinguishing *Hudson*, on the basis of the New York Constitution, or otherwise. Indeed, defendant concedes that the issue is novel. We need not and do not resolve the merits of that question on this appeal. We merely hold that the issue was not so clear-cut and dispositive that no reasonable defense attorney would have failed to assert it, and therefore “defendant’s claim of ineffective assistance must fail” (*Saenger*, 39 NY3d at 442; see *Keschner*, 25 NY3d at 724).

Our concurring colleagues’ reliance on concurring and dissenting opinions in the Second Circuit is puzzling, for three reasons. First, no party to this appeal has argued, either before this Court or the Appellate Division, that New York’s single-error standard for ineffective assistance of counsel is irreconcilable with the federal standard or should no longer be followed.

Second, the concern expressed in the concurring and dissenting opinions in both *Rosario v Ercole* (601 F3d 118 [2d Cir

2010]) and the denial of en banc rehearing in that case (617 F3d 683 [2d Cir 2010]) was that the state standard could “act to deny relief despite an egregious error from counsel so long as counsel provides an overall meaningful representation” (617 F3d at 688 [Pooler, J., dissenting from denial of rehearing en banc]). But as our cases demonstrate, a single, sufficiently egregious and prejudicial error *will* constitute ineffective assistance of counsel, *despite* an otherwise competent performance (see e.g. *Keschner*, 25 NY3d at 723). In cases decided after *Rosario*, the Second Circuit has repeatedly acknowledged that our state standard for ineffective assistance of counsel “is not contrary to *Strickland* [*v Washington* (466 US 668 [1984])]” (*Schouenborg v Superintendent Auburn Corr. Facility*, 707 Fed Appx 20, 22 [2d Cir 2017] [internal quotation marks omitted]; see e.g. *Cummings v LaValley*, 582 Fed Appx 49, 50-51 [2d Cir 2014]; *Brown v Ercole*, 563 Fed Appx 821, 823-824 [2d Cir 2014]). Indeed, in *Rosario* itself, Judge Wesley, writing for the majority, correctly reasoned that if a court misunderstood “the New York standard and look[ed] past a prejudicial error as long as counsel conducted himself in a way that bespoke of general competency throughout the trial,” it “would produce an absurd result inconsistent with New York constitutional jurisprudence and the mandates of *Strickland*” (*Rosario*, 601 F3d at 126). The concurrence fails to demonstrate that the widespread misunderstanding of our single-error standard of which federal jurists warned in the nearly 15-year-old *Rosario* decision has since come to pass.

Third, no such misunderstanding has occurred here. We have not relied to any extent on counsel’s overall competent performance, which defendant does not dispute, but instead hold that counsel’s single alleged failure did not constitute ineffective assistance because the omitted argument was “not so clear-cut and dispositive that no reasonable defense counsel would have failed to assert it” (*Saenger*, 39 NY3d at 442 [internal quotation marks omitted]). Our concurring colleagues acknowledge that meaningful representation does not require counsel to raise “every conceivable claim” (concurring op at 762). But there is nothing to indicate that “counsel’s failure to seek suppression under the State Constitution based upon a violation of the knock-and-announce requirement” was “sufficiently foreshadowed in existing case law” (concurring op at 761-762).

[2] Defendant’s legal sufficiency contention is unpreserved for appellate review, and we have no power to review his

contention that the verdict is against the weight of the evidence. The trial court did not err in holding that evidence that defendant had completed an uncharged drug sale hours before the search warrant was executed was relevant to defendant's constructive possession and intent to sell the drugs found in the apartment during execution of the search warrant (*cf. People v Telfair*, 41 NY3d 107, 114-117 [2023]). The uncharged sale occurred in the same apartment in which police subsequently recovered the drugs defendant was charged with possessing. To the extent defendant challenges the trial court's limiting instruction to the jury on that issue, he failed to preserve that contention for appellate review.

Accordingly, the order of the Appellate Division should be affirmed.

RIVERA, J. (concurring). I generally agree with the majority's disposition of defendant's challenges to his conviction. However, I would dispose of defendant's ineffective assistance of counsel claim based on the inadequacy of the record on that issue, rather than on the merits. We have done the same in the past and I see no reason to deviate from that approach in this appeal.

* * *

Defendant was convicted on one count of possession of heroin with intent to sell and one count of possession of cocaine, after police recovered drugs and drug paraphernalia seized during a search of an apartment where defendant and several other persons were arrested. Defense counsel sought suppression of the seized items on the grounds that the warrant was inaccurate and unreliable. It is undisputed that defense counsel did not raise a claim that the warrant was executed without notice before entry in violation of CPL 690.50 (1). As relevant to this appeal, defendant argued before the Appellate Division that this failure, among others, deprived him of effective representation, in violation of the State and Federal Constitutions. A divided Appellate Division rejected this claim (*see* 213 AD3d 989 [3d Dept 2023]).

When a defendant claims on direct appeal that they have been deprived of the effective assistance of counsel, but the record is insufficient to decide the issue, the Court usually rejects the claim without prejudice to the defendant raising it in a CPL 440.10 proceeding (*see e.g. People v Sims*, 41 NY3d 995, 996 [2024]; *People v Henderson*, 28 NY3d 63, 66 [2016]; *People*

v Brown, 45 NY2d 852, 853-854 [1978]). Moreover, we are bound by the Appellate Division’s factual findings so long as they have record support (see e.g. *People v Garvin*, 30 NY3d 174, 184 [2017]; Arthur Karger, Powers of the New York Court of Appeals § 16:3 [3d ed rev, Sept. 2024 update]). Here, the Appellate Division majority had to choose among three possible interpretation of the record: (1) the officers announced themselves before entering the apartment; (2) the officers failed to make themselves known before breaking through the door; or (3) this factual question could not be resolved on the record. The Appellate Division concluded that defendant had “failed” to fulfill his “obligation to establish that a no-knock violation occurred in the first place” because his position was “based solely on conjecture” (213 AD3d at 993). The majority explained that the record was silent as to the officers’ actions prior to entry and “without resort to inappropriate speculation, it simply cannot be concluded from the record . . . that the police failed to knock and announce their presence before forcefully entering the apartment” (*id.*). Whether read as a finding that the officers announced themselves before entering or as a determination that the question could not be resolved, the Appellate Division majority’s interpretation has record support.¹ Thus, defendant failed to carry his burden and his ineffective assistance of counsel claim fails.

Our analysis should end here. However, the majority in this Court goes further and states that where a defendant identifies only a single error as the basis for an ineffective-assistance claim, “defense counsel’s omission ‘must typically involve an issue that is so clear-cut and dispositive that no reasonable defense counsel would have failed to assert it’ ” (majority op at 756, quoting *People v McGee*, 20 NY3d 513, 518 [2013], and citing *People v Watkins*, 42 NY3d 635, 640 [2024]; *People v Espinosa*, 40 NY3d 1065, 1066 [2023]; *People v Keschner*, 25 NY3d 704, 723 [2015]). The Court has used this language in the past, including in the cases cited by the majority.

As these cases explain, our State Constitution requires that counsel provide “meaningful representation” (see e.g. *Watkins*, 42 NY3d at 639 [internal quotation marks omitted]). Our standard is more protective than the federal rule established in

1. Nor may we consider whether counsel was ineffective for failing to develop the record, because defendant has made no such argument. Instead, he based his challenges in the Appellate Division and before us on the premise that the record clearly establishes a violation of CPL 690.50.

Strickland v Washington, which requires that a defendant establish both that their counsel's performance was not "reasonable considering all the circumstances" and "there is a reasonable probability that, but for counsel's unprofessional errors, the result of the proceeding would have been different" (466 US 668, 688, 694 [1984]).

Several federal jurists have warned that some New York courts might apply our meaningful-representation standard in single-error cases in a manner that does not meet *Strickland*'s minimum requirements (see e.g. *Henry v Poole*, 409 F3d 48, 71 [2d Cir 2005], *recognized as abrogated on other grounds by Englert v Lowerre*, 115 F4th 69, 83 n 13 [2d Cir 2024]; *Rosario v Ercole*, 617 F3d 683, 685 [2d Cir 2010, Jacobs, J., dissenting from denial of rehearing en banc]; *id.* at 688 [Pooler, J., dissenting from denial of rehearing en banc]; *Rosario v Ercole*, 601 F3d 118, 138 [2d Cir 2010, Straub, J., dissenting in part and concurring in part]; see also *Rosario*, 617 F3d at 685 [Katzmann, J., concurring in denial of rehearing en banc]). Even those who have concluded that the state and federal standards may be harmonized, and that our state standard is not contrary to *Strickland*, have recognized the potential for constitutional error and suggested that it "would be wise to engage in separate assessments of counsel's performance under both the federal and the state standards" to avoid any confusion (*id.* at 685 [Wesley, J., concurring in denial of rehearing en banc]; see also *id.* at 685 [Katzmann, J., concurring in the denial of rehearing en banc] [same]; *Rosario*, 601 F3d at 125-126 [Wesley, J.]).

As identified by these jurists, the central problem is that our standard may be misread to deny any constitutional defect where defense counsel makes but one error, even a serious one, in an otherwise-competent representation (see e.g. *Rosario*, 617 F3d at 686 [Jacobs, J., dissenting from denial of rehearing en banc] ["(T)he New York test averages out the lawyer's performance while *Strickland* focuses on any serious error and its consequences"]; *id.* at 687 ["(M)embers of this Court entertain serious disquiet that in the courts of New York the gravity of individual mistakes may be submerged in an overall assessment of effectiveness, in a way that violates the federal Constitution"]; *id.* at 688 [Pooler, J., dissenting from denial of rehearing en banc] ["The (New York) standard can act to deny relief despite an egregious error from counsel so long as counsel provides an overall meaningful representation. This is contrary

to *Strickland*”). Under *Strickland*, by contrast, if defense counsel’s unprofessional error was prejudicial, they would be found ineffective under the Sixth Amendment “even if defense counsel had performed superbly throughout the bulk of the proceedings” and even if counsel was deficient “only for a moment and not deliberately” (*Rosario*, 601 F3d at 138 [Straub, J., dissenting in part and concurring in part]). Indeed, to “rel[y]” upon “counsel’s competency in all other respects” besides the error is to “fail[] to apply the *Strickland* standard at all” (*Henry*, 409 F3d at 72 [internal quotation marks omitted]). As Judge Wesley, a former member of our Court, has observed: New York’s standard “has, to some degree, combined the two prongs of *Strickland*,” thereby “creat[ing] a danger that some courts might misunderstand the New York standard and look past a prejudicial error as long as counsel conducted [themselves] in a way that bespoke of general competency throughout the trial” (*Rosario*, 601 F3d at 125-126). Such an approach, Judge Wesley explained, “would produce an absurd result inconsistent” with both the New York and *Strickland* standards (*id.* at 126).

In stretching to reject defendant’s claim on the merits, the majority risks encouraging the very misreading against which federal jurists have warned. The majority “hold[s] that counsel’s single alleged failure did not constitute ineffective assistance because the omitted argument was ‘not so clear-cut and dispositive that no reasonable defense counsel would have failed to assert it’ ” (majority op at 757, quoting *People v Saenger*, 39 NY3d 433, 442 [2023]). We are left to wonder whether counsel’s failure to seek suppression under the State Constitution based upon a violation of the knock-and-announce requirement was “reasonable considering all the circumstances” and whether counsel’s error, if any, was prejudicial (*Strickland*, 466 US at 688; *see id.* at 694). We thus cannot be certain that defense counsel’s performance satisfied federal minima, let alone New York’s more-rigorous standard.

This case illustrates the dangers of such uncertainty. The Appellate Division invoked the “totality” of counsel’s performance as counterbalancing counsel’s omission (213 AD3d at 994)—precisely what Judge Wesley and others have criticized.² On appeal to this Court, the prosecution echoed that flawed

2. Other decisions give cause for similar concerns (*see e.g. People v Ti-rado*, 221 AD3d 834, 834-835 [2d Dept 2023], *lv denied* 41 NY3d 967 [2024];

(n. cont’d)

reasoning. Similarly troubling is the majority's suggestion that the omitted basis for suppression was not "compelling" because it depended upon the resolution of a "novel" legal issue (majority op at 756 [internal quotation marks omitted]). To be sure, "meaningful representation" does not mean raising every conceivable claim (see e.g. *People v Turner*, 5 NY3d 476, 480-481 [2005]). But some federal courts of appeals have already recognized that, even under *Strickland*, counsel may be "obliged to make, or at least to evaluate, an argument that was sufficiently foreshadowed in existing case law" (*Leeds v Russell*, 75 F4th 1009, 1020 [9th Cir 2023] [internal quotation marks and brackets omitted], quoting *Bridges v United States*, 991 F3d 793, 804 [7th Cir 2021]; cf. *People v Cabrera*, 41 NY3d 35, 48 [2023] [requiring preservation where, among other things, arguments raised on appeal "were not unanticipated at the time of (defendant's) trial"]). Effective advocacy under the New York Constitution might well require lawyers to advance some less-than-clear-cut claims. Moreover, where defense counsel makes a mistaken choice without a strategic basis that denies a defendant a fair trial, then regardless of whether counsel's representation was otherwise competent, the defendant has been denied meaningful representation. We must be vigilant, lest the "typical[]" single-error standard morph into a misguided per se rule (majority op at 756 [internal quotation marks omitted]).³

The longer we wait, the greater the danger that, rather than properly treating our standard for ineffective assistance of counsel claims as "*more* protective than the federal standard," more courts will misapply it with the absurd result of providing *less* protection than *Strickland* (*People v Debellis*, 40 NY3d 431, 436 [2023] [emphasis added]). In an appropriate case, we should address directly the "serious disquiet" among federal judges about the misapplication of our single-error standard (*Rosario*, 617 F3d at 685 [Jacobs, J., dissenting from denial of rehearing en banc]).

Judges GARCIA, SINGAS and CANNATARO concur. Judge RIVERA concurs in result in an opinion, in which Chief Judge WILSON and Judge HALLIGAN concur.

People v Sherman, 182 AD3d 987, 988 [4th Dept 2020]; see also *People v McGee*, 20 NY3d 513, 518 [2013]).

3. *People v Watkins* does not control here. That case does not stand for the broad proposition that defense counsel can never be ineffective for failing to raise an issue, merely because that issue may be characterized as "novel" (*Watkins*, 42 NY3d at 640).

Order affirmed.

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